

The History of the Decline and Fall of the Roman Empire

Edward Gibbon

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Contents

The History of the Decline and Fall of the Roman Empire	2
Chapter Xvi	3
Chapter Xvii	48
Chapter Xviii	89
Chapter Xix	117
Chapter Xx	145
Chapter Xxi	173
Appendix Additional Notes by the Editor	216
1.: the Rescript of Antoninus Concerning the Christians [<i>Hebrew</i>] (p. 30)	217
2.: Exile of Marcellus and Eusebius, Bishops of Rome [<i>Hebrew</i>] (p. 77)	218
3.: PERSECUTIONS OF THE CHRISTIANS IN THE FIRST AND SECOND CENTURIES, ad [<i>Hebrew</i>] (C. XVI.)	219
4.: Augusteum and Forum of Constantine [<i>Hebrew</i>] (p. 104-106)	222
5.: the New Monarchy [<i>Hebrew</i>] (c. Xvii.)	224
6.: DIOCESES AND PROVINCES [<i>Hebrew</i>] (P. 126 sqq.)	226
7.: THE ORGANISATION OF THE ARMY UNDER THE NEW SYSTEM [<i>Hebrew</i>] (P. 136 sqq.)	232
8.: Protectores and Domestici [<i>Hebrew</i>] (p. 150)	234
9.: THE TRAGEDY OF FAUSTA AND CRISPUS [<i>Hebrew</i>] (P. 175 sqq.)	236
10.: DIVISIONS OF THE EMPIRE, ad 293 to 378 [<i>Hebrew</i>] (P. 183, 196)	237
11.: the Sarmatians [<i>Hebrew</i>] (p. 186)	241
12.: Battle of Singara [<i>Hebrew</i>] (p. 200)	242
13.: Sources and Chronology of Armenian History Under Trdat and His Successors [<i>Hebrew</i>] (c. Xix.)	243
14.: Constantine and Christianity [<i>Hebrew</i>] (c. Xx.)	246
15.: Ecclesiastical Geography [<i>Hebrew</i>] (p. 314)	249

The History of the Decline and Fall of the Roman Empire

Chapter Xvi

The Conduct of the Roman Government towards the Christians, from the Reign of Nero to that of Constantine

If we seriously consider the purity of the Christian religion, the sanctity of its moral precepts, and the innocent as well as austere lives of the greater number of those who, during the first ages, embraced the faith of the gospel, we should naturally suppose that so benevolent a doctrine would have been received with due reverence, even by the unbelieving world; that the learned and the polite, however they might deride the miracles, would have esteemed the virtues of the new sect; and that the magistrates, instead of persecuting, would have protected an order of men who yielded the most passive obedience to the laws, though they declined the active cares of war and government. If, on the other hand, we recollect the universal toleration of Polytheism, as it was invariably maintained by the faith of the people, the incredulity of philosophers, and the policy of the Roman senate and emperors, we are at a loss to discover what new offence the Christians had committed, what new provocation could exasperate the mild indifference of antiquity, and what new motives could urge the Roman princes, who beheld, without concern, a thousand forms of religion subsisting in peace under their gentle sway, to inflict a severe punishment on any part of their subjects, who had chosen for themselves a singular, but an inoffensive, mode of faith and worship. Edition: current; Page: [2]

The religious policy of the ancient world seems to have assumed a more stern and intolerant character, to oppose the progress of Christianity. About fourscore years after the death of Christ, his innocent disciples were punished with death, by the sentence of a proconsul of the most amiable and philosophic character, and, according to the laws of an emperor, distinguished by the wisdom and justice of his general administration. The apologies which were repeatedly addressed to the successors of Trajan, are filled with the most pathetic complaints, that the Christians, who obeyed the dictates, and solicited the liberty, of conscience, were alone, among all the subjects of the Roman empire, excluded from the common benefits of their auspicious government. The deaths of a few eminent martyrs have been recorded with care; and from the time that Christianity was invested with the supreme power, the governors of the church have been no less diligently employed in displaying the cruelty, than in imitating the conduct, of their Pagan adversaries. To separate (if it be possible) a few authentic, as well as interesting, facts, from an undigested mass of fiction and error, and to relate, in a clear and rational manner, the causes, the extent, the duration, and the most important circumstances of the persecutions to which the first Christians were exposed, is the design of the present Chapter.

The sectaries of a persecuted religion, depressed by fear, animated with resentment, and perhaps heated by enthusiasm, are seldom in a proper temper of mind calmly to investigate, or candidly to appreciate, the motives of their enemies, which often escape the impartial and discerning view even of those who are placed at a secure distance from the flames of persecution. A reason has been assigned for the conduct of the emperors towards the primitive Christians, which may appear the more specious and probable as it is drawn from the acknowledged genius of Polytheism. It has already been observed that the religious concord of the world was principally supported by the implicit assent and reverence which the nations of antiquity expressed for their respective traditions and ceremonies. It might therefore be expected that they would unite with indignation against any sect of people which should separate itself from the communion of mankind, and, claiming the exclusive possession of divine knowledge, should disdain every form of worship, except its own, as impious and idolatrous. The rights of toleration were held

by mutual indulgence; they were justly forfeited by a refusal of the accustomed tribute. As the payment of this tribute was inflexibly refused by the Jews, and by them alone, the consideration of the treatment which they experienced from the Roman magistrates will serve to explain how far these speculations are justified by facts, and will lead us to discover the true causes of the persecution of Christianity.

Without repeating what has been already mentioned of the reverence of the Roman princes and governors for the temple of Jerusalem, we shall only observe that the destruction of the temple and city was accompanied and followed by every circumstance that could exasperate the minds of the conquerors, and authorise religious persecution by the most specious arguments of political justice and the public safety. From the reign of Nero to that of Antoninus Pius, the Jews discovered a fierce impatience of the dominion of Rome, which repeatedly broke out in the most furious massacres and insurrections. Humanity is shocked at the recital of the horrid cruelties which they committed in the cities of Egypt, of Cyprus, and of Cyrene, where they dwelt in treacherous friendship with the unsuspecting natives;¹ and we are tempted to applaud the severe retaliation which was exercised by the arms of the legions against a race of fanatics, whose dire and Edition: current; Page: [4] credulous superstition seemed to render them the implacable enemies not only of the Roman government, but of human kind.² The enthusiasm of the Jews was supported by the opinion that it was unlawful for them to pay taxes to an idolatrous master; and by the flattering promise which they derived from their ancient oracles, that a conquering Messiah would soon arise, destined to break their fetters and to invest the favourites of heaven with the empire of the earth. It was by announcing himself as their long-expected deliverer, and by calling on all the descendants of Abraham to assert the hope of Israel, that the famous Barchochebas collected a formidable army, with which he resisted, during two years, the power of the emperor Hadrian.³

Notwithstanding these repeated provocations, the resentment of the Roman princes expired after the victory; nor were their apprehensions continued beyond the period of war and danger. By the general indulgence of Polytheism, and by the mild temper of Antoninus Pius, the Jews were restored to their ancient privileges, and once more obtained the permission of circumcising their children, with the easy restraint that they should never confer on any foreign proselyte that distinguishing mark of the Hebrew race.⁴ The numerous remains of that people, though they were still excluded from the precincts of Jerusalem, were permitted to form and to maintain considerable establishments both in Italy and in the provinces, to acquire the freedom of Rome, to enjoy municipal honours, and to obtain, at the same time, an exemption from Edition: current; Page: [5] the burdensome and expensive offices of society. The moderation or the contempt of the Romans gave a legal sanction to the form of ecclesiastical police which was instituted by the vanquished sect. The patriarch, who had fixed his residence at Tiberias, was empowered to appoint

¹In Cyrene they massacred 220,000 Greeks; in Cyprus, 240,000; in Egypt, a very great multitude. Many of these unhappy victims were sawed asunder, according to a precedent to which David had given the sanction of his example. The victorious Jews devoured the flesh, licked up the blood, and twisted the entrails like a girdle round their bodies. See Dion Cassius, l. lxxviii. p. 1145 [c. 32].

²Without repeating the well-known narratives of Josephus, we may learn from Dion (l. lxxix. p. 1162 [c. 14]) that in Hadrian[*Hebrew*]'s war 580,000 Jews were cut off by the sword, besides an infinite number which perished by famine, by disease, and by fire.

³For the sect of the Zealots, see Basnage, *Histoire des Juifs*, l. i. c. 17, for the characters of the Messiah, according to the Rabbis, l. v. c. 11, 12, 13, for the actions of Barchochebas, l. vii. c. 12.

⁴It is to Modestinus, a Roman lawyer (l. vi. regular.), that we are indebted for a distinct knowledge of the Edict of Antoninus. See Casaubon ad Hist. August. p. 27.

his subordinate ministers and apostles, to exercise a domestic jurisdiction, and to receive from his dispersed brethren an annual contribution.⁵ New synagogues were frequently erected in the principal cities of the empire; and the sabbaths, the fasts, and the festivals, which were either commanded by the Mosaic law or enjoined by the traditions of the Rabbis, were celebrated in the most solemn and public manner.⁶ Such gentle treatment insensibly assuaged the stern temper of the Jews. Awakened from their dream of prophecy and conquest, they assumed the behaviour of peaceable and industrious subjects. Their irreconcilable hatred of mankind, instead of flaming out in acts of blood and violence, evaporated in less dangerous gratifications. They embraced every opportunity of overreaching the idolaters in trade; and they pronounced secret and ambiguous imprecations against the haughty kingdom of Edom.⁷

Since the Jews, who rejected with abhorrence the deities adored by their sovereign and by their fellow-subjects, enjoyed, however, the free exercise of their unsocial religion; there must have existed some other cause, which exposed the disciples of Christ to those severities from which the posterity Edition: current; Page: [6] of Abraham was exempt. The difference between them is simple and obvious; but, according to the sentiments of antiquity, it was of the highest importance. The Jews were a nation; the Christians were a sect; and, if it was natural for every community to respect the sacred institutions of their neighbours, it was incumbent on them, to persevere in those of their ancestors. The voice of oracles, the precepts of philosophers, and the authority of the laws unanimously enforced this national obligation. By their lofty claim of superior sanctity, the Jews might provoke the Polytheists to consider them as an odious and impure race. By disdaining the intercourse of other nations they might deserve their contempt. The laws of Moses might be for the most part frivolous or absurd; yet, since they had been received during many ages by a large society, his followers were justified by the example of mankind; and it was universally acknowledged that they had a right to practise what it would have been criminal in them to neglect. But this principle which protected the Jewish synagogue afforded not any favour or security to the primitive church. By embracing the faith of the Gospel, the Christians incurred the supposed guilt of an unnatural and unpardonable offence. They dissolved the sacred ties of custom and education, violated the religious institutions of their country, and presumptuously despised whatever their fathers had believed as true, or had revered as sacred. Nor was this apostacy (if we may use the expression) merely of a partial or local kind; since the pious deserter who withdrew himself from the temples of Egypt or Syria would equally disdain to seek an asylum in those of Athens or Carthage. Every Christian rejected with contempt the superstitions of his family, his city, and his province. The whole body of Christians unanimously refused to hold any communion with the gods of Rome, of the empire, and of mankind. It was in vain that the oppressed believer asserted the inalienable rights of conscience and private judgment. Though his situation might excite the pity, his arguments Edition: current; Page: [7] could never reach the understanding, either of the philosophic or of the believing part of the Pagan world. To their apprehensions, it was no less a matter of surprise that any individuals should entertain scruples against complying with the established mode of worship, than if they had conceived a sudden abhorrence to the manners, the

⁵See Basnage, *Histoire des Juifs*, l.iii. c. 2, 3. The office of Patriarch was suppressed by Theodosius the younger.

⁶We need only mention the purim, or deliverance of the Jews from the rage of Haman, which, till the reign of Theodosius, was celebrated with insolent triumph and riotous intemperance. Basnage, *Hist. des Juifs*, l. vi. c. 17, l. viii. c. 6.

⁷According to the false Josephus, Tsepho, the grandson of Esau, conducted into Italy the army of Æneas, king of Carthage. Another colony of Idumæans, flying from the sword of David, took refuge in the dominions of Romulus. For these, or for other reasons of equal weight, the name of Edom was applied by the Jews to the Roman empire.

dress, or the language of their native country.⁸

The surprise of the Pagans was soon succeeded by resentment; and the most pious of men were exposed to the unjust but dangerous imputation of impiety. Malice and prejudice concurred in representing the Christians as a society of atheists, who, by the most daring attack on the religious constitution of the empire, had merited the severest animadversion of the civil magistrate. They had separated themselves (they gloried in the confession) from every mode of superstition which was received in any part of the globe by the various temper of Polytheism; but it was not altogether so evident what deity or what form of worship they had substituted to the gods and temples of antiquity. The pure and sublime idea which they entertained of the Supreme Being escaped the gross conception of the Pagan multitude, who were at a loss to discover a spiritual and solitary God, that was neither represented under any corporeal figure or visible symbol, nor was adored with the accustomed pomp of libations and festivals, of altars and sacrifices.⁹ The sages of Greece and Rome, who had elevated their minds to the contemplation of the existence and attributes of the First Cause, Edition: current; Page: [8] were induced, by reason or by vanity, to reserve for themselves and their chosen disciples the privilege of this philosophical devotion.¹⁰ They were far from admitting the prejudices of mankind as the standard of truth; but they considered them as flowing from the original disposition of human nature; and they supposed that any popular mode of faith and worship which presumed to disclaim the assistance of the senses would, in proportion as it receded from superstition, find itself incapable of restraining the wanderings of the fancy and the visions of fanaticism. The careless glance which men of wit and learning condescended to cast on the Christian revelation served only to confirm their hasty opinion, and to persuade them that the principle, which they might have revered, of the divine unity was defaced by the wild enthusiasm, and annihilated by the airy speculations, of the new sectaries. The author of a celebrated dialogue which has been attributed to Lucian, whilst he affects to treat the mysterious subject of the Trinity in a style of ridicule and contempt, betrays his own ignorance of the weakness of human reason, and of the inscrutable nature of the divine perfections.¹¹

It might appear less surprising that the founder of Christianity should not only be revered by his disciples as a sage and a prophet, but that he should be adored as a God. The Edition: current; Page: [9] Polytheists were disposed to adopt every article of faith which seemed to offer any resemblance, however distant or imperfect, with the popular mythology; and the legends of

⁸From the arguments of Celsus, as they are represented and refuted by Origen (l. v. p. 247-259 [p. 1276, sqq.]), we may clearly discover the distinction that was made between the Jewish people and the Christian sect. See in the Dialogue of Minucius Felix (c. 5, 6) a fair and not inelegant description of the popular sentiments, with regard to the desertion of the established worship.

⁹Cur nullas aras habent? templa nulla? nulla nota simulacra? . . . Unde autem, vel quis ille, aut ubi, Deus unicus, solitarius, destitutus? Minucius Felix, c. 10. The Pagan interlocutor goes on to make a distinction in favour of the Jews, who had once a temple, altars, victims, &c.

¹⁰It is difficult (says Plato) to attain, and dangerous to publish, the knowledge of the true God. See the Théologie des Philosophes, in the Abbé d[Hebrew]/Olivet[Hebrew]'s French translation of Tully de Naturâ Deorum, tom. i. p. 275.

¹¹The author of the Philopatris [a much later work; cp. vol. ii. App. 10, ad init.] perpetually treats the Christians as a company of dreaming enthusiasts, δαίμόνιοι αἰθ[Hebrew]ριοι αἰθεροβατονντες [Hebrew]εροβατονντες, &c., and in one place manifestly alludes to the vision, in which St. Paul was transported to the third heaven. In another place, Triephton, who personates a Christian, after deriding the Gods of Paganism, proposes a mysterious oath,

[Hebrew]ψιμέδοντα θε[Hebrew]ν, μέγαν, [Hebrew]μβροτον, ούρανίωνα,

Υἱ[Hebrew]ν πατρ[Hebrew]ς, πνευμα [Hebrew]χ πατρ[Hebrew]ς [Hebrew]χορευόμενον

[Hebrew]ν [Hebrew]χ τριων, χα[Hebrew]ξ [Hebrew]ν[Hebrew]ς τρία.

Ἀριθμέειν με διδάσχεις (is the profane answer of Critias) χα[Hebrew] δρκος [Hebrew]ριθμητική ο[Hebrew]χ ο[Editor: illegible character]δα γ[Hebrew]ρ τί λέγεις. [Hebrew]ν τρία, τρία [Hebrew]ν!

Bacchus, of Hercules, and of Æsculapius had, in some measure, prepared their imagination for the appearance of the Son of God under a human form.¹² But they were astonished that the Christians should abandon the temples of those ancient heroes who, in the infancy of the world, had invented arts, instituted laws, and vanquished the tyrants or monsters who infested the earth; in order to choose, for the exclusive object of their religious worship, an obscure teacher who, in a recent age, and among a barbarous people, had fallen a sacrifice either to the malice of his own countrymen, or to the jealousy of the Roman government. The Pagan multitude, reserving their gratitude for temporal benefits alone, rejected the inestimable present of life and immortality which was offered to mankind by Jesus of Nazareth. His mild constancy in the midst of cruel and voluntary sufferings, his universal benevolence, and the sublime simplicity of his actions and character were insufficient, in the opinion of those carnal men, to compensate for the want of fame, of empire, and of success; and, whilst they refused to acknowledge his stupendous triumph over the powers of darkness and of the grave, they misrepresented, or they insulted, the equivocal birth, wandering life, and ignominious death of the divine Author of Christianity.¹³

The personal guilt which every Christian had contracted, in thus preferring his private sentiment to the national religion, was aggravated, in a very high degree, by the number and Edition: current; Page: [10] union of the criminals. It is well known, and has been already observed, that Roman policy viewed with the utmost jealousy and distrust any association among its subjects; and that the privileges of private corporations, though formed for the most harmless or beneficial purposes, were bestowed with a very sparing hand.¹⁴ The religious assemblies of the Christians, who had separated themselves from the public worship, appeared of a much less innocent nature: they were illegal in their principle and in their consequences might become dangerous; nor were the emperors conscious that they violated the laws of justice, when, for the peace of society, they prohibited those secret and sometimes nocturnal meetings.¹⁵ The pious disobedience of the Christians made their conduct, or perhaps their designs, appear in a much more serious and criminal light; and the Roman princes, who might perhaps have suffered themselves to be disarmed by a ready submission, deeming their honour concerned in the execution of their commands, sometimes attempted by rigorous punishments to subdue this independent spirit, which boldly acknowledged an authority superior to that of the magistrate. The extent and duration of this spiritual conspiracy seemed to render it every day more deserving of his animadversion. We have already seen that the active and successful zeal of the Christians had insensibly diffused them through every province and almost every city of the empire. The new converts seemed to renounce their family and country, that they might connect themselves in an indissoluble band of union with a peculiar society, which everywhere assumed a different character from the rest of mankind. Their gloomy and austere aspect, their abhorrence of the common business and pleasures of life, and Edition: current; Page:

¹²According to Justin Martyr (*Apolog. Major*, c. 70-85), the *dæmon*, who had gained some imperfect knowledge of the prophecies, purposely contrived this resemblance, which might deter, though by different means, both the people and the philosophers from embracing the faith of Christ.

¹³In the first and second books of Origen, Celsus treats the birth and character of our Saviour with the most impious contempt. The orator Libanius praises Porphyry and Julian for confuting the folly of a sect which styled a dead man of Palestine God, and the Son of God. Socrates, *Hist. Ecclesiast.* iii. 23.

¹⁴The emperor Trajan refused to incorporate a company of 150 firemen, for the use of the city of Nicomedia. He disliked all associations. See Plin. *Epist.* x. 42, 43.

¹⁵The proconsul Pliny had published a general edict against unlawful meetings. The prudence of the Christians suspended their *Agapæ*; but it was impossible for them to omit the exercise of public worship.

[none] Edition: current; Page: [11] their frequent predictions of impending calamities,¹⁶ inspired the Pagans with the apprehension of some danger which would arise from the new sect, the more alarming as it was the more obscure. [Hebrew]Whatever,[Hebrew]" says Pliny, [Hebrew]may be the principle of their conduct, their inflexible obstinacy appeared deserving of punishment.[Hebrew]"¹⁷

St. Peter preaching in the Catacombs. From a drawing by Jan Styka.

The precautions with which the disciples of Christ performed the offices of religion were at first dictated by fear and necessity; but they were continued from choice. By imitating the awful secrecy which reigned in the Eleusinian mysteries, the Christians had flattered themselves that they should render their sacred institutions more respectable in the eyes of the Pagan world.¹⁸ But the event, as it often happens to the operations of subtile policy, deceived their wishes and their expectations. It was concluded that they only concealed what they would have blushed to disclose. Their mistaken prudence afforded an opportunity for malice to invent, and for suspicious credulity to believe, the horrid tales which described the Christians as the most wicked of human kind, who practised in their dark recesses every abomination that a depraved fancy could suggest, and who solicited the favour of their unknown God by the sacrifice of every moral virtue. There were many who pretended to confess or to relate the ceremonies of this abhorred society. It was asserted, [Hebrew]that a new-born infant, entirely covered over with flour, was presented, like some mystic symbol of initiation, to the knife of the proselyte, who unknowingly inflicted many a secret and mortal wound on the innocent victim of his error; that, as soon as the cruel deed was perpetrated, the sectaries drank Edition: current; Page: [12] up the blood, greedily tore asunder the quivering members, and pledged themselves to eternal secrecy, by a mutual consciousness of guilt. It was as confidently affirmed that this inhuman sacrifice was succeeded by a suitable entertainment, in which intemperance served as a provocative to brutal lust; till, at the appointed moment, the lights were suddenly extinguished, shame was banished, nature was forgotten; and, as accident might direct, the darkness of the night was polluted by the incestuous commerce of sisters and brothers, of sons and of mothers.[Hebrew]"¹⁹

But the perusal of the ancient apologies was sufficient to remove even the slightest suspicion from the mind of a candid adversary. The Christians, with the intrepid security of innocence, appeal from the voice of rumour to the equity of the magistrates. They acknowledge that, if any proof can be produced of the crimes which calumny has imputed to them, they are worthy of the most severe punishment. They provoke the punishment, and they challenge the proof. At the same time they urge, with equal truth and propriety, that the charge is not less devoid of probability than it is destitute of evidence; they ask whether any one can seriously believe that the pure and holy precepts of the Gospel, which so frequently restrain the use of the most lawful enjoyments, should inculcate the practice of the most abominable crimes; that a large society should resolve to dishonour itself in the eyes of its own members; and that a great number of persons of either sex,

¹⁶As the prophecies of the Antichrist, approaching conflagration, &c., provoked those Pagans whom they did not convert, they were mentioned with caution and reserve; and the Montanists were censured for disclosing too freely the dangerous secret. See Mosheim, p. 413.

¹⁷Neque enim dubitabam, quodcunque esset quod faterentur (such are the words of Pliny), pervicaciam certe et inflexibilem obstinationem debere puniri.

¹⁸See Mosheim[Hebrew]'s Ecclesiastical History, vol. i. p. 101, and Spanheim, Remarques sur les Césars de Julien, p. 468, &c.

¹⁹See Justin Martyr, Apolog. i. 35 [c. 26, sqq.], ii. 14 [12]. Athenagoras in Legation. c. 27. Tertullian, Apolog. c. 7, 8, 9. Minucius Felix, c. 9, 10, 30, 31. The last of these writers relates the accusation in the most elegant and circumstantial manner. The answer of Tertullian is the boldest and most vigorous.

and every age and character, insensible to the fear of death or infamy, should consent to violate those principles which nature and education had imprinted most deeply in their minds.²⁰ Edition: current; Page: [13] Nothing, it should seem, could weaken the force or destroy the effect of so unanswerable a justification, unless it were the injudicious conduct of the apologists themselves, who betrayed the common cause of religion, to gratify their devout hatred to the domestic enemies of the church. It was sometimes faintly insinuated, and sometimes boldly asserted, that the same bloody sacrifices, and the same incestuous festivals, which were so falsely ascribed to the orthodox believers, were in reality celebrated by the Marcionites, by the Carpocratians, and by several other sects of the Gnostics, who, notwithstanding they might deviate into the paths of heresy, were still actuated by the sentiments of men, and still governed by the precepts of Christianity.²¹ Accusations of a similar kind were retorted upon the church by the schismatics who had departed from its communion;²² and it was confessed on all sides that the most scandalous licentiousness of manners prevailed among great numbers of those who affected the name of Christians. A Pagan magistrate, who possessed neither leisure nor abilities to discern the almost imperceptible line which divides the orthodox faith from heretical pravity, might easily have imagined that their mutual animosity had extorted the discovery of their common guilt. It was fortunate for the repose, or at least for the reputation, of the first Christians, that the Edition: current; Page: [14] magistrates sometimes proceeded with more temper and moderation than is usually consistent with religious zeal, and that they reported, as the impartial result of their judicial inquiry, that the sectaries who had deserted the established worship appeared to them sincere in their professions and blameless in their manners; however they might incur, by their absurd and excessive superstition, the censure of the laws.²³

History, which undertakes to record the transactions of the past, for the instruction of future, ages, would ill deserve that honourable office, if she condescended to plead the cause of tyrants, or to justify the maxims of persecution. It must, however, be acknowledged that the conduct of the emperors who appeared the least favourable to the primitive church is by no means so criminal as that of modern sovereigns who have employed the arm of violence and terror against the religious opinions of any part of their subjects. From their reflections, or even from their own feelings, a Charles V. or a Louis XIV. might have acquired a just knowledge of the rights of conscience, of the obligation of faith, and of the innocence of error. But the princes and magistrates of ancient Rome were strangers to those principles which inspired and authorised the inflexible obstinacy of the Christians in the cause of truth, nor could they themselves discover in their own breasts any motive which would have prompted them to refuse a legal, and as it were a natural, submission to the sacred institutions of their country. The same reason which contributes to alleviate the guilt, must have tended to abate the rigour, of their persecutions. As they were actuated, not by the furious

²⁰In the persecution of Lyons, some Gentile slaves were compelled, by the fear of tortures, to accuse their Christian master. The church of Lyons, writing to their brethren of Asia, treat the horrid charge with proper indignation and contempt. Euseb. Hist. Eccles. v. 1.

²¹See Justin Martyr, Apolog. i. 35 [26]. Irenæus adv. Hæres. i. 24. Clemens Alexandrin., Stromat. l. iii. p. 438 [ed. Paris; ed. Migne, vol. 6, p. 1136]. Euseb. iv. 8. It would be tedious and disgusting to relate all that the succeeding writers have imagined, all that Epiphanius has received, and all that Tillemont has copied. M. de Beausobre (Hist. du Manichéisme, l. ix. c. 8, 9) has exposed, with great spirit, the disingenuous arts of Augustin and Pope Leo I.

²²When Tertullian became a Montanist, he aspersed the morals of the church which he had so resolutely defended. [*Hebrew*]Sed majoris est Agape, quia per hanc adolescentes tui cum sororibus dormiunt, appendices scilicet gulæ lascivia et luxuria.[*Hebrew*]” De Jejuniis, c. 17. The 35th canon of the council of Illiberis provides against the scandals which too often polluted the vigils of the church, and disgraced the Christian name in the eyes of unbelievers.

²³Tertullian (Apolog. c. 2) expatiates on the fair and honourable testimony of Pliny, with much reason, and some declamation.

zeal of bigots, but by the temperate policy of legislators, contempt must often have relaxed, and humanity must frequently have suspended, the execution of those laws which they enacted against the humble and obscure Edition: current; Page: [15] followers of Christ. From the general view of their character and motives we might naturally conclude: I. That a considerable time elapsed before they considered the new sectaries as an object deserving of the attention of government. II. That, in the conviction of any of their subjects who were accused of so very singular a crime, they proceeded with caution and reluctance. III. That they were moderate in the use of punishments; and IV. That the afflicted church enjoyed many intervals of peace and tranquillity. Notwithstanding the careless indifference which the most copious and the most minute of the Pagan writers have shewn to the affairs of the Christians,²⁴ it may still be in our power to confirm each of these probable suppositions by the evidence of authentic facts.

I. By the wise dispensation of Providence, a mysterious veil was cast over the infancy of the church, which, till the faith of the Christians was matured and their numbers were multiplied, served to protect them not only from the malice, but even from the knowledge, of the Pagan world. The slow and gradual abolition of the Mosaic ceremonies afforded a safe and innocent disguise to the more early proselytes of the Gospel. As they were far the greater part of the race of Abraham, they were distinguished by the peculiar mark of circumcision, offered up their devotions in the Temple of Jerusalem till its final destruction, and received both the Law and the Prophets as the genuine inspirations of the Deity. The Gentile converts, who by a spiritual adoption had been associated to the hope of Israel, were likewise confounded under the garb and appearance of Jews,²⁵ and, as the Polytheists paid less regard Edition: current; Page: [16] to articles of faith than to the external worship, the new sect, which carefully concealed, or faintly announced, its future greatness and ambition, was permitted to shelter itself under the general toleration which was granted to an ancient and celebrated people in the Roman empire. It was not long, perhaps, before the Jews themselves, animated with a fiercer zeal and a more jealous faith, perceived the gradual separation of their Nazarene brethren from the doctrine of the synagogue; and they would gladly have extinguished the dangerous heresy in the blood of its adherents. But the decrees of heaven had already disarmed their malice; and, though they might sometimes exert the licentious privilege of sedition, they no longer possessed the administration of criminal justice; nor did they find it easy to infuse into the calm breast of a Roman magistrate the rancour of their own zeal and prejudice. The provincial governors declared themselves ready to listen to any accusation that might affect the public safety; but, as soon as they were informed that it was a question not of facts but of words, a dispute relating only to the interpretation of the Jewish laws and prophecies, they deemed it unworthy of the majesty of Rome seriously to discuss the obscure differences which might arise among a barbarous and superstitious people. The innocence of the first Christians was protected by ignorance and contempt; and the tribunal of the Pagan magistrate often proved their most assured refuge against the fury of the synagogue.²⁶ If, indeed, we were disposed to adopt the traditions of a too credulous antiquity, we might relate the distant peregrinations, the wonderful achievements, and the various deaths, of the twelve apostles; but a more accurate inquiry will induce us to doubt

²⁴In the various compilation of the Augustan History (a part of which was composed under the reign of Constantine), there are not six lines which relate to the Christians; nor has the diligence of Xiphilin discovered their name in the large history of Dion Cassius.

²⁵An obscure passage of Suetonius (in Claud. c. 25) may seem to offer a proof how strangely the Jews and Christians of Rome were confounded with each other.

²⁶See in the xviiith and xxvth chapters of the Acts of the Apostles, the behaviour of Gallio, proconsul of Achaia, and of Festus, procurator of Judæa.

whether any of those persons who had been witnesses to the miracles of Christ were permitted, beyond the limits of Palestine, to seal with their blood the truth of their testimony.²⁷ From the ordinary term Edition: current; Page: [17] of human life, it may very naturally be presumed that most of them were deceased before the discontent of the Jews broke out into that furious war which was terminated only by the ruin of Jerusalem. During a long period, from the death of Christ to that memorable rebellion, we cannot discover any traces of Roman intolerance, unless they are to be found in the sudden, the transient, but the cruel persecution, which was exercised by Nero against the Christians of the capital, thirty-five years after the former, and only two years before the latter, of those great events. The character of the philosophic historian, to whom we are principally indebted for the knowledge of this singular transaction, would alone be sufficient to recommend it to our most attentive consideration.

In the tenth year of the reign of Nero, the capital of the empire was afflicted by a fire which raged beyond the memory or example of former ages.²⁸ The monuments of Grecian art and of Roman virtue, the trophies of the Punic and Gallic wars, the most holy temples, and the most splendid palaces were involved in one common destruction. Of the fourteen regions or quarters into which Rome was divided, four only subsisted entire, three were levelled with the ground, and the remaining seven, which had experienced the fury of the flames, displayed a melancholy prospect of ruin and desolation. The vigilance of government appears not to have neglected any of the precautions which might alleviate the sense of so dreadful a calamity. The Imperial gardens were thrown open to the distressed multitude, temporary buildings were erected for their accommodation, and a plentiful supply of corn and provisions was distributed at a very moderate price.²⁹ The most Edition: current; Page: [18] generous policy seemed to have dictated the edicts which regulated the disposition of the streets and the construction of private houses; and, as it usually happens in an age of prosperity, the conflagration of Rome, in the course of a few years, produced a new city, more regular and more beautiful than the former. But all the prudence and humanity affected by Nero on this occasion were insufficient to preserve him from the popular suspicion. Every crime might be imputed to the assassin of his wife and mother; nor could the prince who prostituted his person and dignity on the theatre be deemed incapable of the most extravagant folly. The voice of rumour accused the emperor as the incendiary of his own capital; and, as the most incredible stories are the best adapted to the genius of an enraged people, it was gravely reported, and firmly believed, that Nero, enjoying the calamity which he had occasioned, amused himself with singing to his lyre the destruction of ancient Troy.³⁰ To divert a suspicion which the power of despotism was unable to suppress the emperor resolved to substitute in his own place some fictitious criminals. [*Hebrew*]With this view (continues Tacitus) he inflicted the most exquisite tortures on those men, who, under the vulgar appellation of Christians, were already branded with deserved infamy. They derived their name and origin from Christ, who, in the reign

²⁷In the time of Tertullian and Clemens of Alexandria, the glory of martyrdom was confined to St. Peter, St. Paul, and St. James. It was gradually bestowed on the rest of the apostles, by the more recent Greeks, who prudently selected for the theatre of their preaching and sufferings, some remote country beyond the limits of the Roman empire. See Mosheim, p. 81, and Tillemont, *Mémoires Ecclésiastiques*, tom. i. part iii.

²⁸Tacit. *Annal.* xv. 38-44. Sueton. in *Neron.* c. 38. Dion Cassius, l. lxii. p. 1014 [c. 16]. Orosius, vii. 7

²⁹The price of wheat (probably of the modius) was reduced as low as terni nummi; which would be equivalent to about fifteen shillings the English quarter.

³⁰We may observe, that the rumour is mentioned by Tacitus with a very becoming distrust and hesitation, whilst it is greedily transcribed by Suetonius, and solemnly confirmed by Dion.

of Tiberius, had suffered death, by the sentence of the procurator Pontius Pilate.³¹ For a while Edition: current; Page: [19] this dire superstition was checked; but it again burst forth, and not only spread itself over Judæa, the first seat of this mischievous sect, but was even introduced into Rome, the common asylum which receives and protects whatever is impure, whatever is atrocious. The confessions of those who were seized, discovered a great multitude of their accomplices, and they were all convicted, not so much for the crime of setting fire to the city, as for their hatred of human kind.³² They died in torments, and their torments were embittered by insult and derision. Some were nailed on crosses; others sewn up in the skins of wild beasts, and exposed to the fury of dogs; others again, smeared over with combustible materials, were used as torches to illuminate the darkness of the night. The gardens of Nero were destined for the melancholy spectacle, which was accompanied with a horse race, and honoured with the presence of the emperor, who mingled with the populace in the dress and attitude of a charioteer. The guilt of the Christians deserved, indeed, the most exemplary punishment, but the public abhorrence was changed into commiseration, from the opinion that those unhappy wretches were sacrificed, not so much to the public welfare, as to the cruelty of a jealous tyrant.*[Hebrew]*³³ Those who survey, Edition: current; Page: [20] with a curious eye, the revolutions of mankind may observe that the gardens and circus of Nero on the Vatican, which were polluted with the blood of the first Christians, have been rendered still more famous by the triumph and by the abuse of the persecuted religion. On the same spot,³⁴ a temple, which far surpasses the ancient glories of the Capitol, has been since erected by the Christian Pontiffs, who, deriving their claim of universal dominion from an humble fisherman of Galilee, have succeeded to the throne of the Cæsars, given laws to the barbarian conquerors of Rome, and extended their spiritual jurisdiction from the coast of the Baltic to the shores of the Pacific Ocean.

But it would be improper to dismiss this account of Nero*[Hebrew]*'s persecution, till we have made some observations, that may serve to remove the difficulties with which it is perplexed and to throw some light on the subsequent history of the church.

1. The most sceptical criticism is obliged to respect the truth of this extraordinary fact, and the integrity of this celebrated passage of Tacitus. The former is confirmed by the diligent and accurate Suetonius, who mentions the punishment which Nero inflicted on the Christians, a sect of men who had embraced a new and criminal superstition.³⁵ The latter may be proved by the

³¹This testimony is alone sufficient to expose the anachronism of the Jews, who place the birth of Christ near a century sooner (Basnage, *Histoire des Juifs*, l. v. c. 14, 15). We may learn from Josephus (*Antiquitat.* xviii. 3), that the procuratorship of Pilate corresponded with the last ten years of Tiberius, ad 27-37. As to the particular time of the death of Christ, a very early tradition fixed it to the 25th of March, ad 29, under the consulship of the two Gemini (Tertullian *adv. Judæos*, c. 8). This date, which is adopted by Pagi, cardinal Noris, and Le Clerc, seems at least as probable as the vulgar era, which is placed (I know not from what conjectures) four years later. [See above, vol. ii. p. 333, n. 158.]

³²*Odio humani generis convicti.* These words may either signify the hatred of mankind towards the Christians, or the hatred of the Christians towards mankind. I have preferred the latter sense, as the most agreeable to the style of Tacitus, and to the popular error, of which a precept of the Gospel (see Luke xiv. 26) had been, perhaps, the innocent occasion. My interpretation is justified by the authority of Lipsius; of the Italian, the French, and the English translators of Tacitus; of Mosheim (p. 102), of Le Clerc (*Historia Ecclesiast.* p. 427), of Dr. Lardner (*Testimonies*, vol. i. p. 345), and of the bishop of Gloucester (*Divine Legation*, vol. iii. p. 38). But as the word *convicti* does not unite very happily with the rest of the sentence, James Gronovius has preferred the reading of *conjuncti*, which is authorised by the valuable MS. of Florence. [The interpretation adopted by Gibbon is certainly correct, but there is no reason to question the reading *convicti*.]

³³Tacit. *Annal.* xv. 44.

³⁴Nardini *Roma Antica*, p. 487. Donatus de *Româ Antiquâ*, l. iii. p. 449.

³⁵Sueton. in *Nerone*, c. 16. The epithet of *malefica*, which some sagacious commentators have translated magical, is considered by the more rational Mosheim as only synonymous to the *exitiabilis* of Tacitus.

consent of the most ancient manuscripts; by the inimitable character of the style of Tacitus; by his reputation, which guarded his text from the interpolations of pious fraud; and by the purport of his narration, which accused the first Christians of the most atrocious crimes, without insinuating that they possessed any miraculous or even magical powers above the rest of mankind.³⁶ Edition: current; Page: [21] 2. Notwithstanding it is probable that Tacitus was born some years before the fire of Rome,³⁷ he could derive only from reading and conversation the knowledge of an event which happened during his infancy. Before he gave himself to the Public, he calmly waited till his genius had attained its full maturity, and he was more than forty years of age, when a grateful regard for the memory of the virtuous Agricola extorted from him the most early of those historical compositions which will delight and instruct the most distant posterity. After making a trial of his strength in the life of Agricola and the description of Germany, he conceived, and at length executed, a more arduous work: the history of Rome, in thirty books, from the fall of Nero to the accession of Nerva. The administration of Nerva introduced an age of justice and prosperity, which Tacitus had destined for the occupation of his old age;³⁸ but, when he took a nearer view of his subject, judging, perhaps, that it was a more honourable or a less invidious office to record the vices of past tyrants than to celebrate the virtues of a reigning monarch, he chose rather to relate, under the form of annals, the actions of four Edition: current; Page: [22] immediate successors of Augustus. To collect, to dispose, and to adorn a series of fourscore years in an immortal work, every sentence of which is pregnant with the deepest observations and the most lively images, was an undertaking sufficient to exercise the genius of Tacitus himself during the greatest part of his life. In the last years of the reign of Trajan, whilst the victorious monarch extended the power of Rome beyond its ancient limits, the historian was describing, in the second and fourth books of his annals, the tyranny of Tiberius;³⁹ and the emperor Hadrian must have succeeded to the throne, before Tacitus, in the regular prosecution of his work, could relate the fire of the capital and the cruelty of Nero towards the unfortunate Christians. At the distance of sixty years, it was the duty of the annalist to adopt the narratives of contemporaries; but it was natural for the philosopher to indulge himself in the description of the origin, the progress, and the character of the new sect, not so much according to the knowledge or prejudices of the age of Nero, as according to those of the time of Hadrian. 3. Tacitus very frequently trusts to the curiosity or reflection of his readers to supply those intermediate circumstances and ideas which, in his extreme conciseness, he has thought proper to suppress. We may, therefore, presume to imagine some probable cause which could direct the cruelty of Nero against the Christians of Rome, whose obscurity, as well as innocence, should have

³⁶The passage concerning Jesus Christ, which was inserted into the text of Josephus between the time of Origen and that of Eusebius, may furnish an example of no vulgar forgery. The accomplishment of the prophecies, the virtues, miracles, and resurrection of Jesus are distinctly related. Josephus acknowledges that he was the Messiah, and hesitates whether he should call him a man. If any doubt can still remain concerning this celebrated passage, the reader may examine the pointed objections of Le Fevre (Havercamp. Joseph. tom. ii. p. 267-273), the laboured answers of Daubuz (p. 187-232), and the masterly reply (Bibliothèque Ancienne et Moderne, tom. vii. p. 237-288) of an anonymous critic, whom I believe to have been the learned Abbé de Longuerue. [Most unluckily book xviii. of the Antiquities, in which the passage occurs (c. 3, 3), is not contained in the Palatinus, the best MS. of the work. It has found defenders in recent times, and Ewald has given reasons for regarding it as not entirely spurious but tainted with interpolations. There is another noteworthy passage in xx. 9, 1, about the death of St. James, [Hebrew]brother of Jesus, called the Christ.[Hebrew]"

³⁷See the lives of Tacitus, by Lipsius and the Abbé de la Bléterie, Dictionnaire de Bayle à l[Hebrew]'article Tacite, and Fabricius, Biblioth. Latin. tom. ii. p. 386, edit. Ernest.

³⁸Principatum Divi Nervæ et imperium Trajani, uberiorem securioremque materiam senectuti seposui. Tacit. Hist. i. [1].

³⁹See Tacit. Annal. ii. 61, iv. 4.

shielded them from his indignation, and even from his notice. The Jews, who were numerous in the capital, and oppressed in their own country, were a much fitter object for the suspicions of the emperor and of the people; nor did it seem unlikely that a vanquished nation, who already discovered their abhorrence of the Roman yoke, might have recourse to the most atrocious means of gratifying their implacable revenge. But the Jews possessed very powerful advocates in the palace, and even in the heart of the tyrant: his wife and mistress, the beautiful Edition: current; Page: [23] Poppæa, and a favourite player of the race of Abraham, who had already employed their intercession in behalf of the obnoxious people.⁴⁰ In their room it was necessary to offer some other victims, and it might easily be suggested, that, although the genuine followers of Moses were innocent of the fire of Rome, there had arisen among them a new and pernicious sect of Galilæans, which was capable of the most horrid crimes. Under the appellation of Galilæans, two distinctions of men were confounded, the most opposite to each other in their manners and principles: the disciples who had embraced the faith of Jesus of Nazareth,⁴¹ and the zealots who had followed the standard of Judas the Gaulonite.⁴² The former were the friends, and the latter were the enemies, of human kind; and the only resemblance between them consisted in the same inflexible constancy which, in the defence of their cause, rendered them insensible of death and tortures. The followers of Judas, who impelled their countrymen into rebellion, were soon buried under the ruins of Jerusalem; whilst those of Jesus, known by the more celebrated name of Christians, diffused themselves over the Roman empire. How natural was it for Tacitus, in the time of Hadrian, to appropriate to the Christians the guilt and the sufferings which he might, with far greater truth and justice, have attributed to a sect whose odious memory was almost extinguished! 4. Whatever opinion may be entertained of this conjecture (for it is no more than a conjecture), it is evident Edition: current; Page: [24] that the effect, as well as the cause, of Nero[Hebrew]'s persecution were confined to the walls of Rome;⁴³ that the religious tenets of the Galilæans, or Christians, were never made a subject of punishment or even of inquiry; and that, as the idea of their sufferings was, for a long time, connected with the idea of cruelty and injustice, the moderation of succeeding princes inclined them to spare a sect, oppressed by a tyrant whose rage had been usually directed against virtue and innocence.

It is somewhat remarkable that the flames of war consumed almost at the same time the temple of Jerusalem and the Capitol of Rome;⁴⁴ and it appears no less singular that the tribute which devotion had destined to the former should have been converted by the power of an assaulting

⁴⁰The player[Hebrew]'s name was Aliturus. Through the same channel, Josephus (*De Vitâ suâ*, c. 3), about two years before, had obtained the pardon and release of some Jewish priests, who were prisoners at Rome.

⁴¹The learned Dr. Lardner (*Jewish and Heathen Testimonies*, vol. ii. p. 102, 103) has proved that the name of Galilæans was a very ancient and, perhaps, the primitive appellation of the Christians.

⁴²Joseph. *Antiquitat.* xviii. 1, 2. Tillemont, *Ruine des Juifs*, p. 742. The sons of Judas were crucified in the time of Claudius. His grandson Eleazar, after Jerusalem was taken, defended a strong fortress with 960 of his most desperate followers. When the battering-ram had made a breach, they turned their swords against their wives, their children, and at length against their own breasts. They died to the last man.

⁴³See Dodwell. *Paucitat. Mart.* l. xiii. The Spanish Inscription in Gruter, p. 238, No. 9, is a manifest and acknowledged forgery, contrived by that noted impostor Cyriacus of Ancona, to flatter the pride and prejudices of the Spaniards. See Ferreras, *Histoire d[Hebrew]'Espagne*, tom. i. p. 192. [Gibbon[Hebrew]'s conjecture is not happy, and need not be considered seriously.]

⁴⁴The Capitol was burnt during the civil war between Vitellius and Vespasian, the 19th of December, ad 69. On the 10th of August, ad 70, the Temple of Jerusalem was destroyed by the hands of the Jews themselves, rather than by those of the Romans.

victor to restore and adorn the splendour of the latter.⁴⁵ The emperors levied a general capitation tax on the Jewish people; and, although the sum assessed on the head of each individual was inconsiderable, the use for which it was designed, and the severity with which it was exacted, were considered as an intolerable grievance.⁴⁶ Since the officers of the revenue extended their unjust claim to many persons who were strangers to the blood or religion of the Jews, it was impossible that the Christians, Edition: current; Page: [25] who had so often sheltered themselves under the shade of the synagogue, should now escape this rapacious persecution. Anxious as they were to avoid the slightest infection of idolatry, their conscience forbade them to contribute to the honour of that dæmon who had assumed the character of the Capitoline Jupiter. As a very numerous, though declining, party among the Christians still adhered to the law of Moses, their efforts to dissemble their Jewish origin were detected by the decisive test of circumcision,⁴⁷ nor were the Roman magistrates at leisure to inquire into the difference of their religious tenets. Among the Christians who were brought before the tribunal of the emperor, or, as it seems more probable, before that of the procurator of Judæa, two persons are said to have appeared, distinguished by their extraction, which was more truly noble than that of the greatest monarchs. These were the grandsons of St. Jude the apostle, who himself was the brother of Jesus Christ.⁴⁸ Their natural pretensions to the throne of David might perhaps attract the respect of the people, and excite the jealousy of the governor; but the meanness of their garb and the simplicity of their answers soon convinced him that they were neither desirous nor capable of disturbing the peace of the Roman empire. They frankly confessed their royal origin and their near relation to the Messiah; but they disclaimed any temporal views, and professed that his kingdom, which they devoutly expected, was Edition: current; Page: [26] purely of a spiritual and angelic nature. When they were examined concerning their fortune and occupation, they shewed their hands hardened with daily labour, and declared that they derived their whole subsistence from the cultivation of a farm near the village of Cocaba, of the extent of about twenty-four English acres,⁴⁹ and of the value of nine thousand drachms, or three hundred pounds sterling. The grandsons of St. Jude were dismissed with compassion and contempt.⁵⁰

But, although the obscurity of the house of David might protect them from the suspicions of a tyrant, the present greatness of his own family alarmed the pusillanimous temper of Domitian,

⁴⁵The new Capitol was dedicated by Domitian. Sueton. in Domitian. c. 5. Plutarch in Poplicola, tom. i. p. 230, edit. Bryan. The gilding alone cost 12,000 talents (above two millions and a half). It was the opinion of Martial (l. ix. Epigram 3) that, if the emperor had called in his debts, Jupiter himself, even though he had made a general auction of Olympus, would have been unable to pay two shillings in the pound.

⁴⁶With regard to the tribute, see Dion Cassius, l. lxvi. p. 1082 [c. 7], with Reimar[us]'s notes. Spanheim, de Usû Numismatum, tom. ii. p. 571, and Basnage, Histoire des Juifs, l. vii. c. 2.

⁴⁷Suetonius (in Domitian. c. 12) had seen an old man of ninety publicly examined before the procurator[Hebrew]'s tribunal. This is what Martial calls, *Mentula tributis damnata*.

⁴⁸This appellation was at first understood in the most obvious sense, and it was supposed that the brothers of Jesus were the lawful issue of Joseph and of Mary. A devout respect for the virginity of the Mother of God suggested to the Gnostics, and afterwards to the orthodox Greeks, the expedient of bestowing a second wife on Joseph. The Latins (from the time of Jerome) improved on that hint, asserted the perpetual celibacy of Joseph, and justified, by many similar examples, the new interpretation that Jude, as well as Simon and James, who are styled the brothers of Jesus Christ, were only his first cousins. See Tillemont, *Mém. Ecclésiast.* tom. i. part iii., and Beausobre, *Hist. Critique du Manichéisme*, l. ii. c. 2.

⁴⁹Thirty-nine πλῆθρα, squares of an hundred feet each, which, if strictly computed, would scarcely amount to nine acres. But the probability of circumstances, the practice of other Greek writers, and the authority of M. de Valois inclined me to believe that the πλῆθρον is used to express the Roman jugerum.

⁵⁰Eusebius, iii. 20. The story is taken from Hegesippus.

which could only be appeased by the blood of those Romans whom he either feared, or hated, or esteemed. Of the two sons of his uncle Flavius Sabinus,⁵¹ the elder was soon convicted of treasonable intentions, and the younger, who bore the name of Flavius Clemens, was indebted for his safety to his want of courage and ability.⁵² The emperor, for a long time, distinguished so harmless a kinsman by his favour and protection, bestowed on him his own niece Domitilla, adopted the children of that marriage to the hope of the succession, and invested their father with the honours of the consulship. But he had scarcely finished the term of his annual magistracy, when, on a slight pretence, he was condemned and executed; Domitilla was banished to a desolate island on the coast of Campania;⁵³ and sentences Edition: current; Page: [27] either of death or of confiscation were pronounced against a great number of persons who were involved in the same accusation. The guilt imputed to their charge was that of Atheism and Jewish manners;⁵⁴ a singular association of ideas, which cannot with any propriety be applied except to the Christians, as they were obscurely and imperfectly viewed by the magistrates and by the writers of that period. On the strength of so probable an interpretation, and too eagerly admitting the suspicions of a tyrant as an evidence of their honourable crime, the church has placed both Clemens and Domitilla among its first martyrs, and has branded the cruelty of Domitian with the name of the second persecution. But this persecution (if it deserves that epithet) was of no long duration. A few months after the death of Clemens and the banishment of Domitilla, Stephen, a freedman belonging to the latter, who had enjoyed the favour, but who had not surely embraced the faith, of his mistress, assassinated the emperor in his palace.⁵⁵ The memory of Domitian was condemned by the senate; his acts were rescinded; his exiles recalled; and under the gentle administration of Nerva, while the innocent were restored to their rank and fortunes, even the most guilty either obtained pardon or escaped punishment.⁵⁶

II. About ten years afterwards, under the reign of Trajan, the younger Pliny was entrusted by his friend and master with the government of Bithynia and Pontus. He soon found himself at a loss to determine by what rule of justice or of law he should direct his conduct in the execution of an office the most repugnant to his humanity. Pliny had never Edition: current; Page: [28] assisted at any judicial proceedings against the Christians, with whose name alone he seems to be acquainted; and he was totally uninformed with regard to the nature of their guilt, the method of their conviction, and the degree of their punishment. In this perplexity he had recourse to his usual expedient, of submitting to the wisdom of Trajan an impartial and, in some respects, a favourable account of the new superstition, requesting the emperor that he would condescend to resolve his doubts and to instruct his ignorance.⁵⁷ The life of Pliny had been employed in the acquisition of learning, and in

⁵¹See the death and character of Sabinus in Tacitus (Hist. iii. 74, 75). Sabinus was the elder brother, and, till the accession of Vespasian, had been considered as the principal support of the Flavian family.

⁵²Flavium Clementem patruelem suum contemptissimæ inertæi . . . extenuissimâ suspicione interemit. Sueton. in Domitian. c. 15.

⁵³The isle of Pandataria, according to Dion. Bruttius Præsens (apud Euseb. iii. 18) banishes her to that of Pontia, which was not far distant from the other. That difference, and a mistake, either of Eusebius or of his transcribers, have given occasion to suppose two Domitillas, the wife and the niece of Clemens. See Tillemont, Mémoires Ecclésiastiques, tom. ii. p. 224.

⁵⁴Dion, l. lxxvii. p. 1112 [c. 14]. If the Bruttius Præsens, from whom it is probable that he collected, this account, was the correspondent of Pliny (Epistol. vii. 3), we may consider him as a contemporary writer.

⁵⁵Suet. in Domit. c. 17. Philostratus in Vit. Apollon, l. viii.

⁵⁶Dion, l. lxxviii. p. 1118 [c. 1]. Plin. Epistol. iv. 22.

⁵⁷Plin. Epistol. x. 97. The learned Mosheim expresses himself (p. 147, 232) with the highest approbation of Pliny[Hebrew]'s moderate and candid temper. Notwithstanding Dr. Lardner[Hebrew]'s suspicions (see Jewish and

the business of the world. Since the age of nineteen he had pleaded with distinction in the tribunals of Rome,⁵⁸ filled a place in the senate, had been invested with the honours of the consulship, and had formed very numerous connections with every order of men, both in Italy and in the provinces. From his ignorance, therefore, we may derive some useful information. We may assure ourselves that when he accepted the government of Bithynia there were no general laws or decrees of the senate in force against the Christians; that neither Trajan nor any of his virtuous predecessors, whose edicts were received into the civil and criminal jurisprudence, had publicly declared their intentions concerning the new sect; and that, whatever proceedings had been carried on against the Christians, there were none of sufficient weight and authority to establish a precedent for the conduct of a Roman magistrate.

The answer of Trajan, to which the Christians of the succeeding age have frequently appealed, discovers as much regard for justice and humanity as could be reconciled with Edition: current; Page: [29] his mistaken notions of religious policy.⁵⁹ Instead of displaying the implacable zeal of an inquisitor, anxious to discover the most minute particles of heresy and exulting in the number of his victims, the emperor expresses much more solicitude to protect the security of the innocent than to prevent the escape of the guilty. He acknowledges the difficulty of fixing any general plan; but he lays down two salutary rules, which often afforded relief and support to the distressed Christians. Though he directs the magistrates to punish such persons as are legally convicted, he prohibits them, with a very humane inconsistency, from making any inquiries concerning the supposed criminals. Nor was the magistrate allowed to proceed on every kind of information. Anonymous charges the emperor rejects, as too repugnant to the equity of his government; and he strictly requires, for the conviction of those to whom the guilt of Christianity is imputed, the positive evidence of a fair and open accuser. It is likewise probable that the persons who assumed so invidious an office were obliged to declare the grounds of their suspicions, to specify (both in respect to time and place) the secret assemblies which their Christian adversary had frequented, and to disclose a great number of circumstances which were concealed with the most vigilant jealousy from the eye of the profane. If they succeeded in their prosecution, they were exposed to the resentment of a considerable and active party, to the censure of the more liberal portion of mankind, and to the ignominy which, in every age and country, has attended the character of an informer. If, on the contrary, they failed in their proofs, they incurred the severe, and perhaps capital, penalty which, according to a law published by the emperor Hadrian, was inflicted on those who falsely attributed to their fellow-citizens Edition: current; Page: [30] the crime of Christianity. The violence of personal or superstitious animosity might sometimes prevail over the most natural apprehensions of disgrace and danger; but it cannot surely be imagined that accusations of so unpromising an appearance were either lightly or frequently undertaken by the Pagan subjects of the Roman empire.⁶⁰

The expedient which was employed to elude the prudence of the laws affords a sufficient proof

Heathen Testimonies, vol. ii. p. 46), I am unable to discover any bigotry in his language or proceedings.

⁵⁸Plin. Epist. v. 8. He pleaded his first cause ad 81: the year after the famous eruptions of Mount Vesuvius, in which his uncle lost his life.

⁵⁹Plin. Epist. x. 98. [Tillemont[*Hebrew*]'s date, 104; Mommsen[*Hebrew*]'s, 112.] Tertullian (Apolog. c. 5) considers this rescript as a relaxation of the ancient penal laws, [*Hebrew*]quas Trajanus ex parte frustratus est[*Hebrew*]"; and yet Tertullian, in another part of his Apology, exposes the inconsistency of prohibiting inquiries and enjoining punishments.

⁶⁰Eusebius (Hist. Ecclesiast. l. iv. c. 9) has preserved the edict of Hadrian. He has likewise (c. 13) given us one still more favourable under the name of Antoninus; the authenticity of which is not so universally allowed. [See Appendix 1.] The second Apology of Justin contains some curious particulars relative to the accusations of Christians.

how effectually they disappointed the mischievous designs of private malice or superstitious zeal. In a large and tumultuous assembly, the restraints of fear and shame, so forcible on the minds of individuals, are deprived of the greatest part of their influence. The pious Christian, as he was desirous to obtain or to escape the glory of martyrdom, expected, either with impatience or with terror, the stated returns of the public games and festivals. On those occasions, the inhabitants of the great cities of the empire were collected in the circus of the theatre, where every circumstance of the place, as well as of the ceremony, contributed to kindle their devotion and to extinguish their humanity. Whilst the numerous spectators, crowned with garlands, perfumed with incense, purified with the blood of victims, and surrounded with the altars and statues of their tutelary deities, resigned themselves to the enjoyment of pleasures which they considered as an essential part of their religious worship; they recollected that the Christians alone abhorred the gods of mankind, and by their absence and melancholy on these solemn festivals seemed to insult or to lament the public felicity. If the empire had been afflicted by any recent calamity, by a plague, a famine, or an unsuccessful war; if the Tiber had, or if the Nile had not, risen beyond its banks; if the earth had shaken, or if the Edition: current; Page: [none] Edition: current; Page: [31] temperate order of the seasons had been interrupted, the superstitious Pagans were convinced that the crimes and the impiety of the Christians, who were spared by the excessive lenity of the government, had at length provoked the Divine Justice. It was not among a licentious and exasperated populace that the forms of legal proceedings could be observed; it was not in an amphitheatre, stained with the blood of wild beasts and gladiators, that the voice of compassion could be heard. The impatient clamours of the multitude denounced the Christians as the enemies of gods and men, doomed them to the severest tortures, and, venturing to accuse by name some of the most distinguished of the new sectaries, required, with irresistible vehemence, that they should be instantly apprehended and cast to the lions.⁶¹ The provincial governors and magistrates who presided in the public spectacles were usually inclined to gratify the inclinations, and to appease the rage, of the people by the sacrifice of a few obnoxious victims. But the wisdom of the emperors protected the church from the danger of these tumultuous clamours and irregular accusations, which they justly censured as repugnant both to the firmness and to the equity of their administration. The edicts of Hadrian and of Antoninus Pius expressly declared that the voice of the multitude should never be admitted as legal evidence to convict or to punish those unfortunate persons who had embraced the enthusiasm of the Christians.⁶²

The Christian Martyrs. From a drawing by Jan Styka.

III. Punishment was not the inevitable consequence of conviction, and the Christians, whose guilt was the most clearly proved by the testimony of witnesses, or even by their voluntary confession, still retained in their own power the alternative of life or death. It was not so much the past Edition: current; Page: [32] offence, as the actual resistance, which excited the indignation of the magistrate. He was persuaded that he offered them an easy pardon, since, if they consented to cast a few grains of incense upon the altar, they were dismissed from the tribunal in safety and with applause. It was esteemed the duty of a humane judge to endeavour to reclaim, rather than to punish, those deluded enthusiasts. Varying his tone according to the age, the sex, or the situation of the prisoners, he frequently condescended to set before their eyes every circumstance which

⁶¹See Tertullian (Apolog. c. 40). The acts of the martyrdom of Polycarp exhibit a lively picture of these tumults, which were usually fomented by the malice of the Jews.

⁶²These regulations are inserted in the above-mentioned edicts of Hadrian and Pius. See the apology of Melito (apud Euseb. l. iv. c. 26).

could render life more pleasing, or death more terrible; and to solicit, nay, to entreat them, that they would show some compassion to themselves, to their families, and to their friends.⁶³ If threats and persuasions proved ineffectual, he had often recourse to violence; the scourge and the rack were called in to supply the deficiency of argument, and every art of cruelty was employed to subdue such inflexible and, as it appeared to the Pagans, such criminal obstinacy. The ancient apologists of Christianity have censured, with equal truth and severity, the irregular conduct of their persecutors, who, contrary to every principle of judicial proceeding, admitted the use of torture, in order to obtain not a confession but a denial of the crime which was the object of their inquiry.⁶⁴ The monks of succeeding ages, who, in their peaceful solitudes, entertained themselves with diversifying the death and sufferings of the primitive martyrs, have frequently invented torments of a much more refined and ingenious nature. In particular, it has pleased them to suppose that the zeal of the Roman magistrates, disdaining every consideration of moral virtue or public decency, endeavoured to seduce those whom they were unable to vanquish, and that, by their orders, the most brutal violence Edition: current; Page: [33] was offered to those whom they found it impossible to seduce. It is related that pious females, who were prepared to despise death, were sometimes condemned to a more severe trial, and called upon to determine whether they set a higher value on their religion or on their chastity. The youths to whose licentious embraces they were abandoned received a solemn exhortation from the judge to exert their most strenuous efforts to maintain the honour of Venus against the impious virgin who refused to burn incense on her altars. Their violence, however, was commonly disappointed; and the seasonable interposition of some miraculous power preserved the chaste spouses of Christ from the dishonour even of an involuntary defeat. We should not, indeed, neglect to remark that the more ancient, as well as authentic, memorials of the church are seldom polluted with these extravagant and indecent fictions.⁶⁵

The total disregard of truth and probability in the representation of these primitive martyrdoms was occasioned by a very natural mistake. The ecclesiastical writers of the fourth or fifth centuries ascribed to the magistrates of Rome the same degree of implacable and unrelenting zeal which filled their own breasts against the heretics or the idolaters of their own times. It is not improbable that some of those persons who were raised to the dignities of the empire might have imbibed the prejudices of the populace, and that the cruel disposition of others might occasionally be stimulated by motives of avarice or of personal resentment.⁶⁶ But it is certain, and we may appeal to the grateful confessions of the first Christians, that the greatest part of those magistrates Edition: current; Page: [34] who exercised in the provinces the authority of the emperor, or of the senate, and to whose hands alone the jurisdiction of life and death was entrusted, behaved like men of polished manners and liberal educations, who respected the rules of justice, and who were conversant with the precepts of philosophy. They frequently declined the odious task of persecution, dismissed the charge with contempt, or suggested to the accused Christian some legal evasion by which he

⁶³See the rescript of Trajan, and the conduct of Pliny. The most authentic acts of the martyrs abound in these exhortations.

⁶⁴In particular, see Tertullian (*Apolog.* c. 2, 3) and Lactantius (*Institut. Divin.* v. 9). Their reasonings are almost the same; but we may discover that one of these apologists had been a lawyer and the other a rhetorician.

⁶⁵See two instances of this kind of torture in the *Acta Sincera Martyrum* published by Ruinart, p. 160, 399. Jerome, in his *Legend of Paul the Hermit*, tells a strange story of a young man, who was chained naked on a bed of flowers, and assaulted by a beautiful and wanton courtesan. He quelled the rising temptation by biting off his tongue.

⁶⁶The conversion of his wife provoked Claudius Herminianus, governor of Cappadocia, to treat the Christians with uncommon severity. Tertullian *ad Scapulam*, c. 3.

might elude the severity of the laws.⁶⁷ Whenever they were invested with a discretionary power,⁶⁸ they used it much less for the oppression than for the relief and benefit of the afflicted church. They were far from condemning all the Christians who were accused before their tribunal, and very far from punishing with death all those who were convicted of an obstinate adherence to the new superstition. Contenting themselves, for the most part, with the milder chastisements of imprisonment, exile, or slavery in the mines,⁶⁹ they left the unhappy victims of their justice some reason to hope that a prosperous event, the accession, the marriage, or the triumph of an emperor might speedily restore them, by a general pardon, to their former state. The martyrs, devoted to immediate execution by the Roman magistrates, appear to have been selected from the most opposite extremes. They were either bishops and presbyters, the persons the most distinguished among the Christians by their rank and influence, and whose example might strike terror into the whole sect;⁷⁰ or else they were Edition: current; Page: [35] the meanest and most abject among them, particularly those of the servile condition, whose lives were esteemed of little value, and whose sufferings were viewed by the ancients with too careless an indifference.⁷¹ The learned Origen, who, from his experience as well as reading, was intimately acquainted with the history of the Christians, declares, in the most express terms, that the number of martyrs was very inconsiderable.⁷² His authority would alone be sufficient to annihilate that formidable army of martyrs whose relics, drawn for the most part from the catacombs of Rome, have replenished so many churches,⁷³ and whose marvellous achievements have been the subject of so many volumes Edition: current; Page:

⁶⁷Tertullian, in his epistle to the governor of Africa, mentions several remarkable instances of lenity and forbearance which had happened within his knowledge.

⁶⁸Neque enim in universum aliquid quod quasi certam formam habeat constitui potest: an expression of Trajan which gave a very great latitude to the governors of provinces.

⁶⁹In metalla damnamur, in insulas relegamur. Tertullian, Apolog. c. 12. The mines of Numidia contained nine bishops, with a proportionable number of their clergy and people, to whom Cyprian addressed a pious epistle of praise and comfort. See Cyprian, Epistol. 76, 77.

⁷⁰Though we cannot receive with entire confidence either the epistles or the acts of Ignatius (they may be found in the 2d volume of the Apostolic Fathers), yet we may quote that bishop of Antioch as one of those exemplary martyrs. He was sent in chains to Rome as a public spectacle; and, when he arrived at Troas, he received the pleasing intelligence that the persecution of Antioch was already at an end. [The Acts are certainly spurious; the Epistles are doubtless genuine, though some German critics still question Lightfoot[Hebrew]'s conclusions. The question is closely connected with the origin of episcopacy which is assumed in the Letters. They are edited by Lightfoot in his [Hebrew]Apostolic Fathers.[Hebrew]" Cp. vol. ii. Appendix 13.]

⁷¹Among the martyrs of Lyons (Euseb. l. v. c. 1), the slave Blandina was distinguished by more exquisite tortures. Of the five martyrs so much celebrated in the acts of Felicitas and Perpetua, two were of a servile, and two others of a very mean, condition. [Acts of the Martyrdom of Perp. and Felic., Harris and Gifford, 1890.]

⁷²Origen. advers. Celsum. l. iii. p. 116 [p. 929]. His words deserve to be transcribed. [Hebrew][Heβρεω]λιγοι κατ[Heβρεω] καιρο[Heβρεω]ς, κα[Heβρεω] σφόδρα ε[Heβρεω]αριθμητοι περ[Heβρεω] [leg. [Heβρεω]π[Heβρεω]ρ] των Χριστιανων θεοσεβειας τεθνήχασιν.[Hebrew]"

⁷³If we recollect that all the plebeians of Rome were not Christians, and that all the Christians were not saints and martyrs, we may judge with how much safety religious honours can be ascribed to bones or urns indiscriminately taken from the public burial-place. After ten centuries of a very free and open trade, some suspicions have arisen among the more learned Catholics. They now require, as a proof of sanctity and martyrdom, the letters B. M., a vial full of red liquor, supposed to be blood, or the figure of a palm tree. But the two former signs are of little weight, and with regard to the last it is observed by the critics, 1. That the figure, as it is called, of a palm is perhaps a cypress, and perhaps only a stop, the flourish of a comma, used in the monumental inscriptions. 2. That the palm was the symbol of victory among the Pagans. 3. That among the Christians it served as the emblem, not only of martyrdom, but in general of a joyful resurrection. See the epistle of P. Mabillon, on the worship of unknown saints, and Muratori sopra le Antichità Italiane, Dissertat. lviii.

[36] of holy romance.⁷⁴ But the general assertion of Origen may be explained and confirmed by the particular testimony of his friend Dionysius, who, in the immense city of Alexandria, and under the rigorous persecution of Decius, reckons only ten men and seven women who suffered for the profession of the Christian name.⁷⁵

During the same period of persecution, the zealous, the eloquent, the ambitious Cyprian governed the church, not only of Carthage, but even of Africa. He possessed every quality which could engage the reverence of the faithful or provoke the suspicions and resentment of the Pagan magistrates. His character as well as his station seemed to mark out that holy prelate as the most distinguished object of envy and of danger.⁷⁶ The experience, however, of the life of Cyprian is sufficient to prove that our fancy has exaggerated the perilous situation of a Christian bishop; and that the dangers to which he was exposed were less imminent than those which temporal ambition is always prepared to encounter in the pursuit of honours. Four Roman emperors, with their families, their favourites, and their adherents, perished by the sword in the space of ten years, during which the bishop of Carthage guided, by his authority Edition: current; Page: [37] and eloquence, the counsels of the African church. It was only in the third year of his administration that he had reason, during a few months, to apprehend the severe edicts of Decius, the vigilance of the magistrate, and the clamours of the multitude, who loudly demanded that Cyprian, the leader of the Christians, should be thrown to the lions. Prudence suggested the necessity of a temporary retreat, and the voice of prudence was obeyed. He withdrew himself into an obscure solitude, from whence he could maintain a constant correspondence with the clergy and people of Carthage; and, concealing himself till the tempest was past, he preserved his life, without relinquishing either his power or his reputation. His extreme caution did not, however, escape the censure of the more rigid Christians who lamented, or the reproaches of his personal enemies who insulted, a conduct which they considered as a pusillanimous and criminal desertion of the most sacred duty.⁷⁷ The propriety of reserving himself for the future exigencies of the church, the example of several holy bishops,⁷⁸ and the divine admonitions which, as he declares himself, he frequently received in visions and ecstasies, were the reasons alleged in his justification.⁷⁹ But his best apology may be found in the cheerful resolution with which, about eight years afterwards, he suffered death in the cause of religion. The authentic history of his martyrdom has been recorded with unusual candour and impartiality. A short abstract, therefore, of its most important circumstances will convey the clearest information of the spirit, and of the forms, of the Roman persecutions.⁸⁰ Edition: current;

⁷⁴As a specimen of these legends, we may be satisfied with 10,000 Christian soldiers crucified in one day, either by Trajan or Hadrian, on Mount Ararat. See Baronius ad Martyrologium Romanum; Tillemont, *Mém. Ecclésiast.* tom. ii. part ii. p. 438; and Geddes[*Hebrew's*] *Miscellanies*, vol. ii. p. 203. The abbreviation of Mil. which may signify either soldiers or thousands is said to have occasioned some extraordinary mistakes.

⁷⁵Dionysius ap. Euseb. l. vi. c. 41. One of the seventeen was likewise accused of robbery [falsely].

⁷⁶The letters of Cyprian exhibit a very curious and original picture both of the man and of the times. See likewise the two lives of Cyprian, composed with equal accuracy, though with very different views; the one by Le Clerc (*Bibliothèque Universelle*, tom. xii. p. 208-378), the other by Tillemont, *Mémoires Ecclésiastiques*, tom. iv. part i. p. 76-459. [His name was Thascius Cæcilius Cyprianus. The best ed. of his works is that of Hartel in the Vienna *Corpus Script. eccl. Lat.*]

⁷⁷See the polite but severe epistle of the clergy of Rome to the bishop of Carthage (Cyprian, *Epist.* 8, 9). Pontius labours with the greatest care and diligence to justify his master against the general censure.

⁷⁸In particular those of Dionysius of Alexandria and Gregory Thaumaturgus of Neo-Cæsarea. See Euseb. *Hist. Ecclesiast.* l. vi. c. 40, and *Mémoires de Tillemont*, tom. iv. part ii. p. 685.

⁷⁹See Cyprian, *Epist.* 16, and his life by Pontius. [*Cp. Epp.* 7, 12, 14, 43.]

⁸⁰We have an original life of Cyprian by the deacon Pontius, the companion of his exile, and the spectator of his death; and we likewise possess the ancient proconsular acts of his martyrdom. These two relations are consistent with each

When Valerian was consul for the third, and Gallienus for the fourth, time, Paternus, proconsul of Africa, summoned Cyprian to appear in his private council-chamber. He there acquainted him with the Imperial mandate which he had just received,⁸¹ that those who had abandoned the Roman religion should immediately return to the practice of the ceremonies of their ancestors. Cyprian replied without hesitation that he was a Christian and a bishop, devoted to the worship of the true and only Deity, to whom he offered up his daily supplications for the safety and prosperity of the two emperors, his lawful sovereigns. With modest confidence he pleaded the privilege of a citizen, in refusing to give any answer to some invidious and, indeed, illegal questions which the proconsul had proposed. A sentence of banishment was pronounced as the penalty of Cyprian's disobedience; and he was conducted, without delay, to Curubis, a free and maritime city of Zeugitana, in a pleasant situation, a fertile territory, and at the distance of about forty miles from Carthage.⁸² The exiled bishop enjoyed the conveniences of life and the consciousness of virtue. His reputation was diffused Edition: current; Page: [39] over Africa and Italy; an account of his behaviour was published for the edification of the Christian world;⁸³ and his solitude was frequently interrupted by the letters, the visits, and the congratulations of the faithful. On the arrival of a new proconsul in the province, the fortune of Cyprian appeared for some time to wear a still more favourable aspect. He was recalled from banishment; and, though not yet permitted to return to Carthage, his own gardens in the neighbourhood of the capital were assigned for the place of his residence.⁸⁴

At length, exactly one year⁸⁵ after Cyprian was first apprehended, Galerius Maximus, proconsul of Africa, received the Imperial warrant for the execution of the Christian teachers. The bishop of Carthage was sensible that he should be singled out for one of the first victims; and the frailty of nature tempted him to withdraw himself, by a secret flight, from the danger and the honour of martyrdom; but, soon recovering that fortitude which his character required,⁸⁶ he returned to his gardens, and patiently expected the ministers of death. Two officers of rank, who were entrusted with that commission, placed Cyprian between them in a chariot; and, as the proconsul was not then at leisure, they conducted him, not to a prison, but to a private house in Carthage, which belonged to one of them. An elegant supper was provided for the entertainment of the bishop, and his Christian friends were permitted for the last time to enjoy his society, whilst the streets were filled with a multitude of the faithful, anxious and alarmed at the approaching fate of their

other and with probability; and, what is somewhat remarkable, they are both unsullied by any miraculous circumstances.

⁸¹It should seem that these were circular orders, sent at the same time to all the governors. Dionysius (ap. Euseb. l. vii. c. 11) relates the history of his own banishment from Alexandria almost in the same manner. But, as he escaped and survived the persecution, we must account him either more or less fortunate than Cyprian.

⁸²See Plin. Hist. Natur. v. 3. Cellarius, Geograph. Antiq. part iii. p. 96. Shaw's Travels, p. 90; and for the adjacent country (which is terminated by Cape Bona, or the promontory of Mercury), l'Afrique de Marmol. tom. ii. p. 494. There are the remains of an aqueduct near Curubis, or Curbis, at present altered into Gurbes [Kurba; Korbes is Col. Iulia Karpis]; and Dr. Shaw read an inscription [C.I.L. 8, 980], which styles that city Colonia Fulvia [not Fulvia, but Iulia]. The deacon Pontius (in Vit. Cyprian. c. 12) calls it *Apricum et competentem locum, hospitium pro voluntate secretum, et quicquid apponi eis ante promissum est, qui regnum et justitiam Dei quærunt.*

⁸³See Cyprian, Epistol. 77. Edit. Fell.

⁸⁴Upon his conversion, he had sold those gardens for the benefit of the poor. The indulgence of God (most probably the liberality of some Christian friend) restored them to Cyprian. See Pontius, c. 15.

⁸⁵When Cyprian, a twelvemonth before, was sent into exile, he dreamt that he should be put to death the next day. The event made it necessary to explain that word as signifying a year. Pontius, c. 12.

⁸⁶[But cp. Ep. 83.]

spiritual father.⁸⁷ In the morning Edition: current; Page: [40] he appeared before the tribunal of the proconsul, who, after informing himself of the name and situation of Cyprian, commanded him to offer sacrifice, and pressed him to reflect on the consequences of his disobedience. The refusal of Cyprian was firm and decisive; and the magistrate, when he had taken the opinion of his council, pronounced with some reluctance the sentence of death. It was conceived in the following terms: [Hebrew]That Thascius Cyprianus should be immediately beheaded, as the enemy of the gods of Rome, and as the chief and ringleader of a criminal association, which he had seduced into an impious resistance against the laws of the most holy emperors, Valerian and Gallienus.[Hebrew]”⁸⁸ The manner of his execution was the mildest and least painful that could be inflicted on a person convicted of any capital offence: nor was the use of torture admitted to obtain from the bishop of Carthage either the recantation of his principles or the discovery of his accomplices.

As soon as the sentence was proclaimed, a general cry of [Hebrew]We will die with him! [Hebrew]” arose at once among the listening multitude of Christians who waited before the palace gates. The generous effusions of their zeal and affection were neither serviceable to Cyprian nor dangerous to themselves. He was led away under a guard of tribunes and centurions, without resistance and without insult, to the place of his execution, a spacious and level plain near the city, which was already filled with great numbers of spectators. His faithful presbyters and deacons were permitted to accompany their holy bishop. They assisted him in laying aside his upper garment, spread linen on the ground to catch the precious relics of his blood, and received his orders to bestow five-and-twenty Edition: current; Page: [41] pieces of gold on the executioner. The martyr then covered his face with his hands, and at one blow his head was separated from his body. His corpse remained during some hours exposed to the curiosity of the Gentiles; but in the night it was removed, and transported in a triumphal procession and with a splendid illumination to the burial-place of the Christians. The funeral of Cyprian was publicly celebrated without receiving any interruption from the Roman magistrates; and those among the faithful who had performed the last offices to his person and his memory were secure from the danger of inquiry or of punishment. It is remarkable that of so great a multitude of bishops in the province of Africa Cyprian was the first who was esteemed worthy to obtain the crown of martyrdom.⁸⁹

It was in the choice of Cyprian either to die a martyr or to live an apostate, but on that choice depended the alternative of honour or infamy. Could we suppose that the bishop of Carthage had employed the profession of the Christian faith only as the instrument of his avarice or ambition, it was still incumbent on him to support the character which he had assumed;⁹⁰ and, if he possessed the smallest degree of manly fortitude, rather to expose himself to the most cruel tortures than by a single act to exchange the reputation of a whole life for the abhorrence of his Christian brethren and the contempt of the Gentile world. But, if the zeal of Cyprian was supported by the sincere conviction of the truth of those doctrines which he preached, the crown of martyrdom must have appeared to him as an object of desire rather than of terror. It is not easy to extract any distinct

⁸⁷Pontius (c. 15) acknowledges that Cyprian, with whom he supped, passed the night *custodiâ delicatâ*. The bishop exercised a last and very proper act of jurisdiction, by directing that the younger females who watched in the street should be removed from the dangers and temptations of a nocturnal crowd. Act. Proconsularia, c. 2.

⁸⁸See the original sentence in the Acts, c. 4, and in Pontius, c. 17. The latter expresses it in a more rhetorical manner.

⁸⁹Pontius, c. 19. M. de Tillemont (*Mémoires*, tom. iv. part i. p. 450, note 50) is not pleased with so positive an exclusion of any former martyrs of the episcopal rank.

⁹⁰Whatever opinion we may entertain of the character or principles of Thomas Becket, we must acknowledge that he suffered death with a constancy not unworthy of the primitive martyrs. See Lord Lyttelton[Hebrew]’s History of Henry II. vol. ii. p. 592, &c.

ideas from the Edition: current; Page: [42] vague though eloquent declamations of the Fathers or to ascertain the degree of immortal glory and happiness which they confidently promised to those who were so fortunate as to shed their blood in the cause of religion.⁹¹ They inculcated with becoming diligence that the fire of martyrdom supplied every defect and expiated every sin; that, while the souls of ordinary Christians were obliged to pass through a slow and painful purification, the triumphant sufferers entered into the immediate fruition of eternal bliss, where, in the society of the patriarchs, the apostles, and the prophets, they reigned with Christ, and acted as his assessors in the universal judgment of mankind. The assurance of a lasting reputation upon earth, a motive so congenial to the vanity of human nature, often served to animate the courage of the martyrs. The honours which Rome or Athens bestowed on those citizens who had fallen in the cause of their country were cold and unmeaning demonstrations of respect, when compared with the ardent gratitude and devotion which the primitive church expressed towards the victorious champions of the faith. The annual commemoration of their virtues and sufferings was observed as a sacred ceremony, and at length terminated in religious worship. Among the Christians who had publicly confessed their religious principles, those who (as it very frequently happened) had been dismissed from the tribunal or the prisons Edition: current; Page: [43] of the Pagan magistrates obtained such honours as were justly due to their imperfect martyrdom and their generous resolution. The most pious females courted the permission of imprinting kisses on the fetters which they had worn and on the wounds which they had received. Their persons were esteemed holy, their decisions were admitted with deference, and they too often abused, by their spiritual pride and licentious manners, the pre-eminence which their zeal and intrepidity had acquired.⁹² Distinctions like these, whilst they display the exalted merit, betray the inconsiderable number, of those who suffered and of those who died for the profession of Christianity.

The sober discretion of the present age will more readily censure than admire, but can more easily admire than imitate, the fervour of the first Christians; who, according to the lively expression of Sulpicius Severus, desired martyrdom with more eagerness than his own contemporaries solicited a bishopric.⁹³ The epistles which Ignatius composed as he was carried in chains through the cities of Asia breathe sentiments the most repugnant to the ordinary feelings of human nature. He earnestly beseeches the Romans that, when he should be exposed in the amphitheatre, they would not, by their kind but unseasonable intercession, deprive him of the crown of glory; and he declares his resolution to provoke and irritate the wild beasts which might be employed as the instruments of his death.⁹⁴ Some stories are related of the courage of martyrs who actually Edition:

⁹¹See, in particular, the treatise of Cyprian de Lapsis, p. 87-98, edit. Fell. The learning of Dodwell (Dissertat. Cyprianic. xii. xiii.) and the ingenuity of Middleton (Free Inquiry, p. 162, &c.) have left scarcely anything to add concerning the merit, the honours, and the motives of the martyrs. [In the Decian persecution, many Christians had lapsed or denied their faith; cp. Cyprian Epp. 11, 34, 59, &c. Afterwards the question arose as to their being received back into the church. Some were ready to receive them by indulgences from confessors and martyrs; but there was another party (strong at Rome) which strenuously opposed this policy. Cyprian took a moderate view, and the First Council of Carthage decided that the church could remit all such offences, but that the indulgences of martyrs were ineffectual. The leading representative of the rigorous view was Novatian. The controversy was a precursor of the great Donatist schism, which turned on the same question of church discipline; see c. xxi. Cp. below, n. 101 and n. 104.]

⁹²Cyprian. Epistol. 5, 6, 7, 22, 24, and de Unitat. Ecclesiæ. The number of pretended martyrs has been very much multiplied by the custom which was introduced of bestowing that honourable name on confessors.

⁹³Certatim gloriosa in certamina ruebatur; multoque avidius tum martyria gloriosis mortibus quærebantur, quam nunc Episcopatus pravis ambitionibus appetuntur. Sulpicius Severus, l. ii. He might have omitted the word nunc.

⁹⁴See Epist. ad Roman. c. 4, 5, ap. Patres Apostol. tom. ii. p. 27. It suited the purpose of Bishop Pearson (see Vindiciæ Ignatianæ, part ii. c. 9) to justify, by a profusion of examples and authorities, the sentiments of Ignatius.

current; Page: [44] performed what Ignatius had intended; who exasperated the fury of the lions, pressed the executioner to hasten his office, cheerfully leaped into the fires which were kindled to consume them, and discovered a sensation of joy and pleasure in the midst of the most exquisite tortures. Several examples have been preserved of a zeal impatient of those restraints which the emperors had provided for the security of the church. The Christians sometimes supplied by their voluntary declaration the want of an accuser, rudely disturbed the public service of Paganism,⁹⁵ and, rushing in crowds round the tribunal of the magistrates, called upon them to pronounce and to inflict the sentence of the law. The behaviour of the Christians was too remarkable to escape the notice of the ancient philosophers; but they seem to have considered it with much less admiration than astonishment. Incapable of conceiving the motives which sometimes transported the fortitude of believers beyond the bounds of prudence or reason, they treated such an eagerness to die as the strange result of obstinate despair, of stupid insensibility, or of superstitious frenzy.⁹⁶ [Hebrew]Unhappy men! [Hebrew]" exclaimed the proconsul Antoninus to the Christians of Asia; [Hebrew]unhappy men! if you are thus weary of your lives, is it so difficult for you to find ropes and precipices? [Hebrew]"⁹⁷ He was extremely cautious (as it is observed by a learned and Edition: current; Page: [45] pious historian) of punishing men who had found no accusers but themselves, the Imperial laws not having made any provision for so unexpected a case; condemning, therefore, a few as a warning to their brethren, he dismissed the multitude with indignation and contempt.⁹⁸ Notwithstanding this real or affected disdain, the intrepid constancy of the faithful was productive of more salutary effects on those minds which nature or grace had disposed for the easy reception of religious truth. On these melancholy occasions, there were many among the Gentiles who pitied, who admired, and who were converted. The generous enthusiasm was communicated from the sufferer to the spectators; and the blood of martyrs, according to a well-known observation, became the seed of the church.

But, although devotion had raised, and eloquence continued to inflame, this fever of the mind, it insensibly gave way to the more natural hopes and fears of the human heart, to the love of life, the apprehension of pain, and the horror of dissolution. The more prudent rulers of the church found themselves obliged to restrain the indiscreet ardour of their followers, and to distrust a constancy which too often abandoned them in the hour of trial.⁹⁹ As the lives of the faithful became less mortified and austere, they were every day less ambitious of the honours of martyrdom; and the soldiers of Christ, instead of distinguishing themselves by voluntary deeds of heroism, frequently deserted their post, and fled in confusion before the enemy whom it was their duty to resist. There were three methods, however, of escaping the flames of persecution, which were not attended with an equal degree of guilt: the first, indeed, was generally allowed to be innocent; the second was of a doubtful, or a least of a venial, nature; but the third implied a direct and criminal apostacy from

⁹⁵The story of Polyuctes, on which Corneille has founded a very beautiful tragedy, is one of the most celebrated, though not perhaps the most authentic, instances of this excessive zeal. We should observe that the 60th canon of the council of Illiberis refuses the title of martyrs to those who exposed themselves to death by publicly destroying the idols. [Polyuctes is first mentioned in Gregory of Tours, Hist. Fr. vii. 6. His Acta are published by Aubé in Polyucte dans l'[Hebrew]'histoire, 1882.]

⁹⁶See Epictetus, l. iv. c. 7 (though there is some doubt whether he alludes to the Christians), Marcus Antoninus de Rebus suis, l. xi. c. 3, Lucian. in Peregrin.

⁹⁷Tertullian ad Scapul. c. 5. The learned are divided between three persons of the same name, who were all proconsuls of Asia. I am inclined to ascribe this story to Antoninus Pius, who was afterwards emperor; and who may have governed Asia under the reign of Trajan.

⁹⁸Mosheim, de Rebus Christ. ante Constantin. p. 235.

⁹⁹See the Epistle of the Church at Smyrna, ap. Euseb. Hist. Eccles. l. iv. c. 15.

the Christian faith. Edition: current; Page: [46]

I. A modern inquisitor would hear with surprise that, whenever an information was given to a Roman magistrate of any person within his jurisdiction who had embraced the sect of the Christians, the charge was communicated to the party accused, and that a convenient time was allowed him to settle his domestic concerns and to prepare an answer to the crime which was imputed to him.¹⁰⁰ If he entertained any doubt of his own constancy, such a delay afforded him the opportunity of preserving his life and honour by flight, of withdrawing himself into some obscure retirement or some distant province, and of patiently expecting the return of peace and security. A measure so consonant to reason was soon authorised by the advice and example of the most holy prelates, and seems to have been censured by few, except by the Montanists, who deviated into heresy by their strict and obstinate adherence to the rigour of ancient discipline.¹⁰¹

II. The provincial governors, whose zeal was less prevalent than their avarice, had countenanced the practice of selling certificates (or libels, as they were called), which attested that the persons therein mentioned had complied with the laws and sacrificed to the Roman deities. By producing these false declarations, the opulent and timid Christians were enabled to silence the malice of an informer and to reconcile, in some measure, their safety with their religion. A slight penance atoned for this profane dissimulation.¹⁰² Edition: current; Page: [47] III. In every persecution there were great numbers of unworthy Christians who publicly disowned or renounced the faith which they had professed; and who confirmed the sincerity of their abjuration by the legal acts of burning incense or of offering sacrifices. Some of these apostates had yielded on the first menace or exhortation of the magistrate; whilst the patience of others had been subdued by the length and repetition of tortures. The affrighted countenances of some betrayed their inward remorse, while others advanced, with confidence and alacrity, to the altars of the gods.¹⁰³ But the disguise which fear had imposed subsisted no longer than the present danger. As soon as the severity of the persecution was abated, the doors of the churches were assailed by the returning multitude of penitents, who detested their idolatrous submission, and who solicited, with equal ardour, but with various success, their readmission into the society of Christians.¹⁰⁴

IV. Notwithstanding the general rules established for the conviction and punishment of the Christians, the fate of those sectaries, in an extensive and arbitrary government, must still, in a great measure, have depended on their own behaviour, the circumstances of the times, and the temper of their supreme as well as subordinate rulers. Zeal might sometimes provoke, and prudence might sometimes avert or assuage, the superstitious fury of the Pagans. A variety of motives might

¹⁰⁰In the second apology of Justin, there is a particular and very curious instance of this legal delay. The same indulgence was granted to accused Christians in the persecution of Decius; and Cyprian (de Lapsis) expressly mentions the [*Hebrew*] *Dies negantibus præstitutus*. [*Hebrew*]"

¹⁰¹Tertullian considers flight from persecution as an imperfect, but very criminal apostacy, as an impious attempt to elude the will of God, &c. &c. He has written a treatise on this subject (see p. 536-544, edit. Rigalt.), which is filled with the wildest fanaticism and the most incoherent declamation. It is, however, somewhat remarkable that Tertullian did not suffer martyrdom himself.

¹⁰²The Libellatici, who are chiefly known by the writings of Cyprian, are described, with the utmost precision, in the copious commentary of Mosheim, p. 483-489.

¹⁰³Plin. Epistol. x. 97, Dionysius Alexandrin. ap. Euseb. l. vi. c. 41. Ad prima statim verba minantis inimici maximus fratrum numerus fidem suam prodidit; nec prostratus est persecutionis impetu, sed voluntario lapsu seipsum prostravit. Cyprian. Opera, p. 89. Among these deserters were many priests, and even bishops.

¹⁰⁴It was on this occasion that Cyprian wrote his treatise De Lapsis and many of his epistles. The controversy concerning the treatment of penitent apostates does not occur among the Christians of the preceding century. Shall we ascribe this to the superiority of their faith and courage or to our less intimate knowledge of their history?

dispose the provincial governors either to enforce or to relax the execution of the laws; and of these motives the Edition: current; Page: [48] most forcible was their regard not only for the public edicts, but for the secret intentions of the emperor, a glance from whose eye was sufficient to kindle or to extinguish the flames of persecution. As often as any occasional severities were exercised in the different parts of the empire, the primitive Christians lamented and perhaps magnified their own sufferings; but the celebrated number of ten persecutions has been determined by the ecclesiastical writers of the fifth century, who possessed a more distinct view of the prosperous or adverse fortunes of the church, from the age of Nero to that of Diocletian. The ingenious parallels of the ten plagues of Egypt and of the ten horns of the Apocalypse first suggested this calculation to their minds; and in their application of the faith of prophecy to the truth of history they were careful to select those reigns which were indeed the most hostile to the Christian cause.¹⁰⁵ But these transient persecutions served only to revive the zeal, and to restore the discipline, of the faithful: and the moments of extraordinary rigour were compensated by much longer intervals of peace and security. The indifference of some princes and the indulgence of others permitted the Christians to enjoy, though not perhaps a legal, yet an actual and public, toleration of their religion.

The apology of Tertullian contains two very ancient, very singular, but at the same time very suspicious, instances of Imperial clemency; the edicts published by Tiberius and by Marcus Antoninus, and designed not only to protect the innocence of the Christians, but even to proclaim those stupendous miracles which had attested the truth of their doctrine. The first of these examples is attended with some difficulties which might perplex the sceptical mind.¹⁰⁶ We are required to Edition: current; Page: [49] believe that Pontius Pilate informed the emperor of the unjust sentence of death which he had pronounced against an innocent, and, as it appeared, a divine, person; and that, without acquiring the merit, he exposed himself to the danger, of martyrdom; that Tiberius, who avowed his contempt for all religion, immediately conceived the design of placing the Jewish Messiah among the gods of Rome; that his servile senate ventured to disobey the commands of their master; that Tiberius, instead of resenting their refusal, contented himself with protecting the Christians from the severity of the laws, many years before such laws were enacted, or before the church had assumed any distinct name or existence; and lastly, that the memory of this extraordinary transaction was preserved in the most public and authentic records, which escaped the knowledge of the historians of Greece and Rome, and were only visible to the eyes of an African Christian, who composed his apology one hundred and sixty years after the death of Tiberius. The edict of Marcus Antoninus is supposed to have been the effect of his devotion and gratitude for the miraculous deliverance which he had obtained in the Marcomannic war. The distress of the legions, the seasonable tempest of rain and hail, of thunder and lightning, and the dismay and defeat of the barbarians, have been celebrated by the eloquence of several Pagan writers. If there were any Christians in that army, it was natural that they should ascribe some merit to the fervent prayers which, in the moment of danger, they had offered up for their own and the public safety. But we are still assured by monuments of brass and marble, by the Imperial medals, and by the Antonine column, that neither the prince nor the people entertained any sense of this

¹⁰⁵See Mosheim, p. 97. Sulpicius Severus was the first author of this computation; though he seemed desirous of reserving the tenth and greatest persecution for the coming of the Antichrist.

¹⁰⁶The testimony given by Pontius Pilate is first mentioned by Justin. The successive improvements which the story has acquired (as it passed through the hands of Tertullian, Eusebius, Epiphanius, Chrysostom, Orosius, Gregory of Tours, and the authors of the several editions of the acts of Pilate) are very fairly stated by Dom. Calmet, *Dissertat. sur l'Hebreu*'Ecriture, tom. iii. p. 651, &c.

signal obligation, since they unanimously attribute their deliverance to the providence Edition: current; Page: [50] of Jupiter and to the interposition of Mercury. During the whole course of his reign, Marcus despised the Christians as a philosopher, and punished them as a sovereign.¹⁰⁷

By a singular fatality, the hardships which they had endured under the government of a virtuous prince immediately ceased on the accession of a tyrant, and, as none except themselves had experienced the injustice of Marcus, so they alone were protected by the lenity of Commodus. The celebrated Marcia, the most favoured of his concubines, and who at length contrived the murder of her Imperial lover, entertained a singular affection for the oppressed church; and, though it was impossible that she could reconcile the practice of vice with the precepts of the Gospel, she might hope to atone for the frailties of her sex and profession, by declaring herself the patroness of the Christians.¹⁰⁸ Under the gracious protection of Marcia, they passed in safety the thirteen years of a cruel tyranny; and, when the empire was established in the house of Severus, they formed a domestic but more honourable connection with the new court. The emperor was persuaded that, in a dangerous sickness, he had derived some benefit, either spiritual or physical, from the holy oil with which one of his slaves had anointed him. He always treated with peculiar distinction several persons of both sexes who had embraced the new religion. The nurse as well as the preceptor of Caracalla were Christians; and, if that young prince ever betrayed a sentiment of humanity, it was occasioned by an incident which, however trifling, bore some relation to the cause of Christianity.¹⁰⁹ Under the reign of Severus, Edition: current; Page: [51] the fury of the populace was checked; the rigour of ancient laws was for some time suspended; and the provincial governors were satisfied with receiving an annual present from the churches within their jurisdiction, as the price, or as the reward, of their moderation.¹¹⁰ The controversy concerning the precise time of the celebration of Easter armed the bishops of Asia and Italy against each other, and was considered as the most important business of this period of leisure and tranquillity.¹¹¹ Nor was the peace of the church interrupted till the increasing numbers of proselytes seem at length to have attracted the attention, and to have alienated the mind, of Severus. With the design of restraining the progress of Christianity, he published an edict which, though it was designed to affect only the new converts, could not be carried into strict execution without exposing to danger and punishment the most zealous of their teachers and missionaries. In this mitigated persecution, we may still discover the indulgent spirit of Rome and of Polytheism, which so readily admitted every excuse in favour of those who practised the religious ceremonies of their fathers.¹¹²

But the laws which Severus had enacted soon expired with the authority of that emperor; and the Christians, after this accidental tempest, enjoyed a calm of thirty-eight years.¹¹³ Till this period

¹⁰⁷On this miracle, as it is commonly called, of the Thundering Legion, see the admirable criticism of Mr. Moyle, in his Works, vol. ii. p. 81-390.

¹⁰⁸Dion Cassius, or rather his abbreviator Xiphilin, l. lxxii. p. 1206 [4]. Mr. Moyle (p. 266) has explained the condition of the church under the reign of Commodus. [Cp. Görres, Jahrb. für protestantische Theologie X. 401 sqq.]

¹⁰⁹Compare the life of Caracalla in the Augustan History with the epistle of Tertullian to Scapula. Dr. Jortin (Remarks on Ecclesiastical History, vol. ii. p. 5, &c.) considers the cure of Severus by the means of holy oil, with a strong desire to convert it into a miracle. [Wirth dates Tertullian[*Hebrew*]'s letter 21½ ad]

¹¹⁰Tertullian de Fugâ, c. 13. The present was made during the feast of the Saturnalia; and it is a matter of serious concern to Tertullian that the faithful should be confounded with the most infamous professions which purchased the connivance of the government.

¹¹¹Euseb. l. v. c. 23, 24. Mosheim, p. 435-447.

¹¹²Judæos fieri sub gravi pœna vetuit. Idem etiam de Christianis sanxit. Hist. August. p. 70 [x. 17, 1]. [See A. Wirth, Quaestiones Severianae, 1888.]

¹¹³Sulpicius Severus, l. ii. p. 384. This computation (allowing for a single exception) is confirmed by the history of

they had usually held their assemblies in private houses and sequestered places. They were now permitted to erect and consecrate convenient edifices for the Edition: current; Page: [52] purpose of religious worship;¹¹⁴ to purchase lands, even at Rome itself, for the use of the community; and to conduct the elections of their ecclesiastical ministers in so public, but at the same time in so exemplary, a manner as to deserve the respectful attention of the Gentiles.¹¹⁵ This long repose of the church was accompanied with dignity. The reigns of those princes who derived their extraction from the Asiatic provinces proved the most favourable to the Christians; the eminent persons of the sect, instead of being reduced to implore the protection of a slave or concubine, were admitted into the palace in the honourable characters of priests and philosophers; and their mysterious doctrines, which were already diffused among the people, insensibly attracted the curiosity of their sovereign. When the empress Mammæa passed through Antioch, she expressed a desire of conversing with the celebrated Origen, the fame of whose piety and learning was spread over the East. Origen obeyed so flattering an invitation, and, though he could not expect to succeed in the conversion of an artful and ambitious woman, she listened with pleasure to his eloquent exhortations, and honourably dismissed him to his retirement in Palestine.¹¹⁶ The sentiments of Mammæa were adopted by her son Alexander, and the philosophic devotion of that emperor was marked by a singular but injudicious regard for the Christian religion. In his domestic chapel he placed the statues of Abraham, of Orpheus, of Apollonius, and of Christ, as an Edition: current; Page: [53] honour justly due to those respectable sages who had instructed mankind in the various modes of addressing their homage to the supreme and universal deity.¹¹⁷ A purer faith, as well as worship, was openly professed and practised among his household. Bishops, perhaps for the first time, were seen at court; and after the death of Alexander, when the inhuman Maximin discharged his fury on the favourites and servants of his unfortunate benefactor, a great number of Christians, of every rank, and of both sexes, were involved in the promiscuous massacre, which, on their account, has improperly received the name of Persecution.¹¹⁸

Notwithstanding the cruel disposition of Maximin, the effects of his resentment against the Christians were of a very local and temporary nature, and the pious Origen, who had been proscribed as a devoted victim, was still reserved to convey the truths of the Gospel to the ear

Eusebius, and by the writings of Cyprian.

¹¹⁴The antiquity of Christian churches is discussed by Tillemont (*Mémoires Ecclésiastiques*, tom. iii. part ii. p. 68-72), and by Mr. Moyle (vol. i. p. 378-398). The former refers the first construction of them to the peace of Alexander Severus; the latter to the peace of Gallienus.

¹¹⁵See the Augustan History, p. 130 [xviii. 45, 7]. The emperor Alexander adopted their method of publicly proposing the names of those persons who were candidates for ordination. It is true that the honour of this practice is likewise attributed to the Jews.

¹¹⁶Euseb. Hist. Ecclesiast. l. vi. c. 21. Hieronym. de Script. Eccles. c. 54. Mammæa was styled a holy and pious woman, both by the Christians and the Pagans. From the former, therefore, it was impossible that she should deserve that honourable epithet.

¹¹⁷See the Augustan History, p. 123 [xviii. 29, 2]. Mosheim (p. 465) seems to refine too much on the domestic religion of Alexander. His design of building a public temple to Christ (Hist. August. p. 129, [ib. 43, 6]) and the objection which was suggested either to him or in similar circumstances to Hadrian appear to have no other foundation than an improbable report, invented by the Christians and credulously adopted by an historian of the age of Constantine.

¹¹⁸Euseb. l. vi. c. 28. It may be presumed that the success of the Christians had exasperated the increasing bigotry of the Pagans. Dion Cassius, who composed his history under the former reign, had most probably intended for the use of his master those counsels of persecution which he ascribes to a better age and to the favourite of Augustus. Concerning this oration of Mæcenas, or rather of Dion, I may refer to my own unbiassed opinion (vol. i. p. 86, Not. 25) and to the Abbé de la Bléterie (*Mémoires de l'Académie*, tom. xxiv. p. 303, tom. xxv. p. 432).

of monarchs.¹¹⁹ He addressed several edifying letters to the emperor Philip, to his wife, and to his mother; and, as soon as that prince, who was born in the neighbourhood of Palestine, had usurped the Imperial sceptre, the Christians acquired a friend and a protector. The public and even partial favour of Philip Edition: current; Page: [54] towards the sectaries of the new religion, and his constant reverence for the ministers of the church, gave some colour to the suspicion, which prevailed in his own times, that the emperor himself was become a convert to the faith;¹²⁰ and afforded some grounds for a fable which was afterwards invented, that he had been purified by confession and penance from the guilt contracted by the murder of his innocent predecessor.¹²¹ The fall of Philip introduced, with the change of masters, a new system of government, so oppressive to the Christians that their former condition, ever since the time of Domitian, was represented as a state of perfect freedom and security, if compared with the rigorous treatment which they experienced under the short reign of Decius.¹²² The virtues of that prince will scarcely allow us to suspect that he was actuated by a mean resentment against the favourites of his predecessor, and it is more reasonable to believe that, in the prosecution of his general design to restore Edition: current; Page: [55] the purity of Roman manners, he was desirous of delivering the empire from what he condemned as a recent and criminal superstition. The bishops of the most considerable cities were removed by exile or death; the vigilance of the magistrates prevented the clergy of Rome during sixteen months from proceeding to a new election; and it was the opinion of the Christians that the emperor would more patiently endure a competitor for the purple than a bishop in the capital.¹²³ Were it possible to suppose that the penetration of Decius had discovered pride under the disguise of humility, or that he could foresee the temporal dominion which might insensibly arise from the claims of spiritual authority, we might be less surprised that he should consider the successors of St. Peter as the most formidable rivals to those of Augustus.

The administration of Valerian was distinguished by a levity and inconstancy, ill-suited to the gravity of the Roman Censor. In the first part of his reign, he surpassed in clemency those princes who had been suspected of an attachment to the Christian faith. In the last three years and a half, listening to the insinuations of a minister addicted to the superstitions of Egypt, he adopted the

¹¹⁹Orosius, l. vii. c. 19, mentions Origen as the object of Maximin[Hebrew]'s resentment; and Firmilianus, a Cappadocian bishop of that age, gives a just and confined idea of this persecution (apud Cyprian. Epist. 75).

¹²⁰The mention of those princes who were publicly supposed to be Christians, as we find it in an epistle of Dionysius of Alexandria (ap. Euseb. l. vii. c. 10), evidently alludes to Philip and his family, and forms a contemporary evidence that such a report had prevailed; but the Egyptian bishop, who lived at an humble distance from the court of Rome, expresses himself with a becoming diffidence concerning the truth of the fact. The epistles of Origen (which were extant in the time of Eusebius, see l. vi. c. 36) would most probably decide this curious, rather than important, question.

¹²¹Euseb. l. vi. c. 34. The story, as is usual, has been embellished by succeeding writers, and is confuted, with much superfluous learning, by Frederick Spanheim (Opera Varia, tom. ii. p. 400, &c.).

¹²²Lactantius, de Mortibus Persecutorum, c. 3, 4. After celebrating the felicity and increase of the church, under a long succession of good princes, he adds, [Hebrew]Exstitit post annos plurimos, execrabile animal, Decius, qui vexaret Ecclesiam.[Hebrew]" [The object of Decius was to enforce universal observance of the national religion, and he was successful in inducing many Christians to concede external compliance to the pagan ceremonies, by sacrifice and sprinkling incense on the altars of the gods. Many Christians purchased libelli from the magistrates certifying that they were free from the imputation of Christianity, and were hence called libellatici. The chief sources are Cyprian[Hebrew]'s Letters and his De Lapsis; fragments of Dionysius, Bishop of Alexandria, who hid himself during the persecution, in Eusebius, H. E., vi. 40-42; and the Vita of Gregory Thaumaturgus by Gregory of Nyssa.]

¹²³Euseb. l. vi. c. 39. Cyprian. Epistol. 55. The see of Rome remained vacant from the martyrdom of Fabianus, the 20th of January, ad 250, till the election of Cornelius, the 4th of June, ad 251. Decius had probably left Rome, since he was killed before the end of that year.

maxims, and imitated the severity, of his predecessor Decius.¹²⁴ The accession of Gallienus, which increased the calamities of the empire, restored peace to the church; and the Christians obtained the free exercise of their religion, by an edict addressed to the bishops and conceived in such terms as seemed to acknowledge their office and public character.¹²⁵ The ancient laws, without being formally repealed, were suffered to sink into Edition: current; Page: [56] oblivion; and (excepting only some hostile intentions which are attributed to the emperor Aurelian¹²⁶) the disciples of Christ passed above forty years in a state of prosperity, far more dangerous to their virtue than the severest trials of persecution.

The story of Paul of Samosata, who filled the metropolitan see of Antioch, while the East was in the hands of Odenathus and Zenobia, may serve to illustrate the condition and character of the times. The wealth of that prelate was a sufficient evidence of his guilt, since it was neither derived from the inheritance of his fathers nor acquired by the arts of honest industry. But Paul considered the service of the church as a very lucrative profession.¹²⁷ His ecclesiastical jurisdiction was venal and rapacious; he extorted frequent contributions from the most opulent of the faithful, and converted to his own use a considerable part of the public revenue. By his pride and luxury the Christian religion was rendered odious in the eyes of the Gentiles. His council chamber and his throne, the splendour with which he appeared in public, the suppliant crowd who solicited his attention, the multitude of letters and petitions to which he dictated his answers, and the perpetual hurry of business in which he was involved, were circumstances much better suited to the state of a civil magistrate¹²⁸ than to the humility of a primitive bishop. Edition: current; Page: [57] When he harangued his people from the pulpit, Paul affected the figurative style and the theatrical gestures of an Asiatic sophist, while the cathedral resounded with the loudest and most extravagant acclamations in the praise of his divine eloquence. Against those who resisted his power, or refused to flatter his vanity, the prelate of Antioch was arrogant, rigid, and inexorable; but he relaxed the discipline, and lavished the treasures, of the church on his dependent clergy, who were permitted to imitate their master in the gratification of every sensual appetite. For Paul indulged himself very freely in the pleasures of the table, and he had received into the episcopal palace two young and beautiful women, as the constant companions of his leisure moments.¹²⁹

Notwithstanding these scandalous vices, if Paul of Samosata had preserved the purity of the orthodox faith, his reign over the capital of Syria would have ended only with his life; and, had

¹²⁴Euseb. l. vii. c. 10. Mosheim (p. 548) has very clearly shown that the Prefect Macrianus and the Egyptian Magus are one and the same person.

¹²⁵Eusebius (l. vii. c. 13) gives us a Greek version of this Latin edict, which seems to have been very concise. By another edict he directed that the Cæmeteria should be restored to the Christians.

¹²⁶Euseb. l. vii. c. 30. Lactantius de M. P. c. 6. Hieronym. in Chron. p. 177 [ad ann. 2290]. Orosius, l. vii. c. 23. Their language is in general so ambiguous and incorrect that we are at a loss to determine how far Aurelian had carried his intentions before he was assassinated. [He intended to rescind the edict of Gallienus.] Most of the moderns (except Dodwell, Dissertat. Cyprian. xi. 64) have seized the occasion of gaining a few extraordinary martyrs.

¹²⁷Paul was better pleased with the title of Ducenarius, than with that of bishop. The Ducenarius was an Imperial procurator, so called from his salary of two hundred Sestertia, or 1600l. a year. (See Salmasius ad Hist. August. p. 124.) Some critics suppose that the bishop of Antioch had actually obtained such an office from Zenobia, while others consider it only as a figurative expression of his pomp and insolence.

¹²⁸Simony was not unknown in those times; and the clergy sometimes bought what they intended to sell. It appears that the bishopric of Carthage was purchased by a wealthy matron, named Lucilla, for her servant Majorinus. The price was 400 Folles. (Monument. Antiq. ad calcem Optati, p. 263.) Every Follis contained 125 pieces of silver, and the whole sum may be computed at about 2400l.

¹²⁹If we are desirous of extenuating the vices of Paul, we must suspect the assembled bishops of the East of publishing the most malicious calumnies in circular epistles addressed to all the churches of the empire (ap. Euseb. l. vii. c. 30).

a seasonable persecution intervened, an effort of courage might perhaps have placed him in the rank of saints and martyrs. Some nice and subtle errors, which he imprudently adopted and obstinately maintained, concerning the doctrine of the Trinity, excited the zeal and indignation of the Eastern churches.¹³⁰ From Egypt to the Euxine Sea, the bishops were in arms and in motion. Several councils were held, confutations were published, excommunications Edition: current; Page: [58] were pronounced, ambiguous explanations were by turns accepted and refused, treaties were concluded and violated, and, at length, Paul of Samosata was degraded from his episcopal character, by the sentence of seventy or eighty bishops, who assembled for that purpose at Antioch, and who, without consulting the rights of the clergy or people, appointed a successor by their own authority. The manifest irregularity of this proceeding increased the numbers of the discontented faction; and as Paul, who was no stranger to the arts of courts, had insinuated himself into the favour of Zenobia, he maintained above four years the possession of the episcopal house and office. The victory of Aurelian changed the face of the East, and the two contending parties, who applied to each other the epithets of schism and heresy, were either commanded or permitted to plead their cause before the tribunal of the conqueror. This public and very singular trial affords a convincing proof that the existence, the property, the privileges, and the internal policy of the Christians were acknowledged, if not by the laws, at least by the magistrates, of the empire. As a Pagan and as a soldier, it could scarcely be expected that Aurelian should enter into the discussion, whether the sentiments of Paul or those of his adversaries were most agreeable to the true standard of the orthodox faith. His determination, however, was founded on the general principles of equity and reason. He considered the bishops of Italy as the most impartial and respectable judges among the Christians, and, as soon as he was informed that they had unanimously approved the sentence of the council, he acquiesced in their opinion, and immediately gave orders that Paul should be compelled to relinquish the temporal possessions belonging to an office of which, in the judgment of his brethren, he had been regularly deprived. But, while we applaud the justice, we should not overlook the policy, of Aurelian; who was desirous of restoring and cementing the dependence of the provinces on the capital by every means Edition: current; Page: [59] which could bind the interest or prejudices of any part of his subjects.¹³¹

Amidst the frequent revolutions of the empire, the Christians still flourished in peace and prosperity; and, notwithstanding a celebrated era of martyrs has been deduced from the accession of Diocletian,¹³² the new system of policy, introduced and maintained by the wisdom of that prince, continued, during more than eighteen years, to breathe the mildest and most liberal spirit of religious toleration. The mind of Diocletian himself was less adapted indeed to speculative inquiries than to the active labours of war and government. His prudence rendered him averse to any great innovation, and, though his temper was not very susceptible of zeal or enthusiasm, he always maintained an habitual regard for the ancient deities of the empire. But the leisure of the two empresses, of his wife Prisca and of Valeria his daughter, permitted them to listen with more attention and respect to the truths of Christianity, which in every age has acknowledged its important

¹³⁰His heresy (like those of Noetus and Sabellius, in the same century) tended to confound the mysterious distinction of the divine persons. See Mosheim, p. 702, &c.

¹³¹Euseb. Hist. Ecclesiast. l. vii. c. 30. We are entirely indebted to him for the curious story of Paul of Samosata.

¹³²The era of Martyrs, which is still in use among the Copts and the Abyssinians, must be reckoned from the 29th of August, ad 284; as the beginning of the Egyptian year was nineteen days earlier than the real accession of Diocletian. See Dissertation Préliminaire à l'*Hebrew*' Art de vérifier les Dates.

obligations to female devotion.¹³³ The principal eunuchs, Lucian¹³⁴ and Dorotheus, Gorgonius and Andrew, who attended the person, possessed the favour, and governed the household of Diocletian, protected by their powerful influence the faith which they had embraced. Their example was imitated by many of the most considerable officers of the palace, who, in their respective stations, had the Edition: current; Page: [60] care of the Imperial ornaments, of the robes, of the furniture, of the jewels, and even of the private treasury; and, though it might sometimes be incumbent on them to accompany the emperor when he sacrificed in the temple,¹³⁵ they enjoyed, with their wives, their children, and their slaves, the free exercise of the Christian religion. Diocletian and his colleagues frequently conferred the most important offices on those persons who avowed their abhorrence for the worship of the gods, but who had displayed abilities proper for the service of the state. The bishops held an honourable rank in their respective provinces, and were treated with distinction and respect, not only by the people, but by the magistrates themselves. Almost in every city, the ancient churches were found insufficient to contain the increasing multitude of proselytes; and in their place more stately and capacious edifices were erected for the public worship of the faithful. The corruption of manners and principles, so forcibly lamented by Eusebius,¹³⁶ may be considered, not only as a consequence, but as a proof, of the liberty which the Christians enjoyed and abused under the reign of Diocletian. Prosperity had relaxed the nerves of discipline. Fraud, envy, and malice prevailed in every congregation. The presbyters aspired to the episcopal office, which every day became an object more worthy of their ambition. The bishops, who contended with each other for ecclesiastical pre-eminence, appeared by their conduct to claim a secular and tyrannical power in the church; and the lively faith which still distinguished the Christians from the Gentiles was shewn much less in their lives than in their controversial writings.

Notwithstanding this seeming security, an attentive observer might discern some symptoms that threatened the church with a more violent persecution than any which she had yet endured. The zeal and rapid progress of the Christians Edition: current; Page: [61] awakened the Polytheists from their supine indifference in the cause of those deities whom custom and education had taught them to revere. The mutual provocations of a religious war, which had already continued above two hundred years, exasperated the animosity of the contending parties. The Pagans were incensed at the rashness of a recent and obscure sect which presumed to accuse their countrymen of error and to devote their ancestors to eternal misery. The habits of justifying the popular mythology against the invectives of an implacable enemy produced in their minds some sentiments of faith and reverence for a system which they had been accustomed to consider with the most careless levity. The supernatural powers assumed by the church inspired at the same time terror and emulation. The followers of the established religion intrenched themselves behind a similar fortification of prodigies; invented new modes of sacrifice, of expiation, and of initiation;¹³⁷ attempted to revive

¹³³The expression of Lactantius (de M. P. c. 15), [*Hebrew*]sacrificio pollui coegit,[*Hebrew*]" implies their antecedent conversion to the faith; but does not seem to justify the assertion of Mosheim (p. 912) that they had been privately baptized.

¹³⁴M. de Tillemont (*Mémoires Ecclésiastiques*, tom. v. part i. p. 11, 12) has quoted, from the *Spicilegium* of Dom. Luc d[*Hebrew*] Acheri [iii. 297], a very curious instruction which Bishop Theonas composed for the use of Lucian.

¹³⁵Lactantius de M. P. c. 10.

¹³⁶Eusebius, *Hist. Ecclesiast.* l. viii. c. i. The reader who consults the original will not accuse me of heightening the picture. Eusebius was about sixteen years of age at the accession of the emperor Diocletian.

¹³⁷We might quote, among a great number of instances, the mysterious worship of Mithras, and the Taurobolia; the latter of which became fashionable in the time of the Antonines (see a Dissertation of M. de Boze, in the *Mémoires de l'Académie des Inscriptions*, tom. ii. p. 443). The romance of Apuleius is as full of devotion as of satire.

the credit of their expiring oracles;¹³⁸ and listened with eager credulity to every impostor who flattered their prejudices by a tale of wonders.¹³⁹ Both parties seemed to acknowledge the truth of those miracles which were claimed by their adversaries; and, while they were contented with ascribing them to the arts of magic and to Edition: current; Page: [62] the power of dæmons, they mutually concurred in restoring and establishing the reign of superstition.¹⁴⁰ Philosophy, her most dangerous enemy, was now converted into her most useful ally. The groves of the academy, the gardens of Epicurus, and even the portico of the Stoics were almost deserted, as so many different schools of scepticism or impiety;¹⁴¹ and many among the Romans were desirous that the writings of Cicero should be condemned and suppressed by the authority of the senate.¹⁴² The prevailing sect of the new Platonicians judged it prudent to connect themselves with the priests, whom perhaps they despised, against the Christians, whom they had reason to fear. These fashionable philosophers prosecuted the design of extracting allegorical wisdom from the fictions of the Greek poets; instituted mysterious rites of devotion for the use of their chosen disciples; recommended the worship of the ancient gods as the emblems or ministers of the Supreme Deity, and composed against the faith of the Gospel many elaborate treatises,¹⁴³ which have since been committed to the flames by the prudence of orthodox emperors.¹⁴⁴ Edition: current; Page: [63]

Although the policy of Diocletian and the humanity of Constantius inclined them to preserve inviolate the maxims of toleration, it was soon discovered that their two associates Maximian and Galerius entertained the most implacable aversion for the name and religion of the Christians. The minds of those princes had never been enlightened by science; education had never softened their temper. They owed their greatness to their swords, and in their most elevated fortune they still retained their superstitious prejudices of soldiers and peasants. In the general administration of the provinces they obeyed the laws which their benefactor had established; but they frequently found occasions of exercising within their camp and palaces a secret persecution,¹⁴⁵ for which

¹³⁸The impostor Alexander very strongly recommended the oracle of Trophonius at Mallos, and those of Apollo at Claros and Miletus (Lucian, tom. ii. p. 236, edit. Reitz). The last of these, whose singular history would furnish a very curious episode, was consulted by Diocletian before he published his edicts of persecution (Lactantius, de M. P. c. 11).

¹³⁹Besides the ancient stories of Pythagoras and Aristeas, the cures performed at the shrine of Æsculapius and the fables related of Apollonius of Tyana were frequently opposed to the miracles of Christ; though I agree with Dr. Lardner (see Testimonies, vol. iii. p. 253, 352) that, when Philostratus composed the life of Apollonius, he had no such intention.

¹⁴⁰It is seriously to be lamented that the Christian fathers, by acknowledging the supernatural or, as they deem it, the infernal part of Paganism, destroy with their own hands the great advantage which we might otherwise derive from the liberal concessions of our adversaries.

¹⁴¹Julian (p. 301, edit. Spanheim) expresses a pious joy that the providence of the gods had extinguished the impious sects, and for the most part destroyed the books of the Pyrrhonians and Epicureans, which had been very numerous, since Epicurus himself composed no less than 300 volumes. See Diogenes Laertius, l. x. c. 26.

¹⁴²Cumque alios audiam mussitare indignanter, et dicere oportere statui per Senatum, aboleantur ut hæc scripta, quibus Christiana Religio comprobetur et vetustatis opprimatur auctoritas. Arnobius adversus Gentes, l. iii. p. 103, 104. He adds very properly, Erroris convincite Ciceronem . . . nam intercipere scripta, et publicatam velle submergere lectionem, non est Deum [Deos] defendere sed veritatis testificationem timere.

¹⁴³Lactantius (Divin. Institut. l. v. c. 2, 3) gives a very clear and spirited account of two of these philosophic adversaries of the faith. The large treatise of Porphyry against the Christians consisted of thirty books, and was composed in Sicily about the year 270.

¹⁴⁴See Socrates, Hist. Ecclesiast. l. i. c. 9, and Codex Justinian. l. i. tit. l. i. 3.

¹⁴⁵Eusebius, l. viii. c. 4. c. 17. He limits the number of military martyrs, by a remarkable expression (σπανίως τούτων ε[Editor: illegible character]ς που χα[Heβρεω] δέύτερος), of which neither his Latin nor French translations have rendered the energy. Notwithstanding the authority of Eusebius, and the silence of Lactantius, Ambrose, Sulpicius, Orosius, &c., it has been long believed that the Thebæan legion, consisting of 6000 Christians, suffered martyrdom, by the order of Maximian, in the valley of the Pennine Alps. The story was first published about the middle of the fifth century by

the imprudent zeal of the Christians sometimes offered the most specious pretences. A sentence of death was executed upon Maximilianus, an African youth, who had been produced by his own father before the magistrate as a sufficient and legal recruit, but who obstinately persisted in declaring that his conscience would not permit him to embrace the profession of a soldier.¹⁴⁶ It could scarcely be expected that any government should suffer the action of Marcellus the centurion to pass with impunity. On the day of a public festival, that officer threw away his belt, his arms Edition: current; Page: [64] and the ensigns of his office, and exclaimed with a loud voice that he would obey none but Jesus Christ the eternal King, and that he renounced for ever the use of carnal weapons and the service of an idolatrous master. The soldiers, as soon as they recovered from their astonishment, secured the person of Marcellus. He was examined in the city of Tingi by the president of that part of Mauritania; and, as he was convicted by his own confession, he was condemned and beheaded for the crime of desertion.¹⁴⁷ Examples of such a nature savour much less of religious persecution than of martial or even civil law: but they served to alienate the mind of the emperors, to justify the severity of Galerius, who dismissed a great number of Christian officers from their employments, and to authorise the opinion that a sect of enthusiasts which avowed principles so repugnant to the public safety must either remain useless, or would soon become dangerous, subjects of the empire.

After the success of the Persian war had raised the hopes and the reputation of Galerius, he passed a winter with Diocletian in the palace of Nicomedia; and the fate of Christianity became the object of their secret consultations.¹⁴⁸ The experienced emperor was still inclined to pursue measures of lenity; and, though he readily consented to exclude the Christians from holding any employments in the household or the army, he urged in the strongest terms the danger as well as cruelty of shedding the blood of those deluded fanatics. Galerius at length extorted from him the permission of summoning a council, composed of a few persons the most distinguished in the civil and military departments of the state. The important question was agitated in their presence, and those ambitious courtiers easily discerned that Edition: current; Page: [65] it was incumbent on them to second, by their eloquence, the importunate violence of the Cæsar. It may be presumed that they insisted on every topic which might interest the pride, the piety, or the fears of their sovereign in the destruction of Christianity. Perhaps they represented that the glorious work of the deliverance of the empire was left imperfect, as long as an independent people was permitted to subsist and multiply in the heart of the provinces. The Christians (it might speciously be alleged), renouncing the gods and the institutions of Rome, had constituted a distinct republic, which might yet be suppressed before it had acquired any military force; but which was already governed by its own laws and magistrates, was possessed of a public treasure, and was intimately connected in all its parts by the frequent assemblies of the bishops, to whose decrees their numerous and opulent congregations yielded an implicit obedience. Arguments like these may seem to have determined

Eucherius, bishop of Lyons, who received it from certain persons, who received it from Isaac, bishop of Geneva, who is said to have received it from Theodore, bishop of Octodurum. The abbey of St. Maurice still subsists, a rich monument of the credulity of Sigismund, king of Burgundy. See an excellent Dissertation in the xxxvith volume of the *Bibliothèque Raisonnée*, p. 427-454.

¹⁴⁶See the *Acta Sincera*, p. 299. The accounts of his martyrdom and of that of Marcellus bear every mark of truth and authenticity.

¹⁴⁷*Acta Sincera*, p. 302.

¹⁴⁸De M. P. c. 11. Lactantius (or whoever was the author of this little treatise) was, at that time, an inhabitant of Nicomedia; but it seems difficult to conceive how he could acquire so accurate a knowledge of what passed in the Imperial cabinet. [Cp. vol. ii. Appendix 10 ad init.]

the reluctant mind of Diocletian to embrace a new system of persecution: but, though we may suspect, it is not in our power to relate, the secret intrigues of the palace, the private views and resentments, the jealousy of women or eunuchs, and all those trifling but decisive causes which so often influence the fate of empires and the councils of the wisest monarchs.¹⁴⁹

The pleasure of the emperors was at length signified to the Christians, who, during the course of this melancholy winter, had expected, with anxiety, the result of so many secret consultations. The twenty-third of February, which coincided with the Roman festival of the Terminalia,¹⁵⁰ was appointed Edition: current; Page: [66] (whether from accident or design) to set bounds to the progress of Christianity. At the earliest dawn of day, the Prætorian prefect,¹⁵¹ accompanied by several generals, tribunes, and officers of the revenue, repaired to the principal church of Nicomedia, which was situated on an eminence in the most populous and beautiful part of the city. The doors were instantly broken open; they rushed into the sanctuary; and, as they searched in vain for some visible object of worship, they were obliged to content themselves with committing to the flames the volumes of holy scripture. The ministers of Diocletian were followed by a numerous body of guards and pioneers, who marched in order of battle, and were provided with all the instruments used in the destruction of fortified cities. By their incessant labour, a sacred edifice, which towered above the Imperial palace, and had long excited the indignation and envy of the Gentiles, was in a few hours levelled with the ground.¹⁵²

The next day the general edict of persecution was published;¹⁵³ and, though Diocletian, still averse to the effusion of blood, had moderated the fury of Galerius, who proposed that every one refusing to offer sacrifice should immediately be burnt alive, the penalties inflicted on the obstinacy of the Christians might be deemed sufficiently rigorous and effectual. It was enacted that their churches, in all the provinces of the empire, should be demolished to their foundations; and the punishment of death was denounced against all who should presume to hold any secret assemblies for the purpose of religious worship. The philosophers, who now assumed the unworthy office of directing the blind zeal of persecution, had diligently Edition: current; Page: [67] studied the nature and genius of the Christian religion; and, as they were not ignorant that the speculative doctrines of the faith were supposed to be contained in the writings of the prophets, of the evangelists, and of the apostles, they most probably suggested the order that the bishops and presbyters should deliver all their sacred books into the hands of the magistrates; who were commanded, under the severest penalties, to burn them in a public and solemn manner. By the same edict, the property of the church was at once confiscated; and the several parts of which it might consist were either sold to the highest bidder, united to the Imperial domain, bestowed on the cities and corporations, or granted to the solicitations of rapacious courtiers. After taking such effectual measures to abolish the worship, and to dissolve the government of the Christians, it was thought necessary to subject to the most intolerable hardships the condition of those perverse individuals who should still reject

¹⁴⁹The only circumstance which we can discover is the devotion and jealousy of the mother of Galerius. She is described by Lactantius as *Deorum montium cultrix; mulier admodum superstitiosa*. She had a great influence over her son, and was offended by the disregard of some of her Christian servants.

¹⁵⁰The worship and festival of the God Terminus are elegantly illustrated by M de Boze, *Mém. de l'Hebrew* Académie des Inscriptions, tom. i. p. 50.

¹⁵¹In our only MS. of Lactantius, we read *profectus*; but reason and the authority of all the critics allow us, instead of that word, which destroys the sense of the passage, to substitute *præfectus*.

¹⁵²Lactantius de M. P. c. 12, gives a very lively picture of the destruction of the church.

¹⁵³Mosheim (p. 922-926), from many scattered passages of Lactantius and Eusebius, has collected a very just and accurate notion of this edict; though he sometimes deviates into conjecture and refinement.

the religion of Nature, of Rome, and of their ancestors. Persons of a liberal birth were declared incapable of holding any honours or employments; slaves were for ever deprived of the hopes of freedom, and the whole body of the people were put out of the protection of the law. The judges were authorised to hear and to determine every action that was brought against a Christian. But the Christians were not permitted to complain of any injury which they themselves had suffered; and thus those unfortunate sectaries were exposed to the severity, while they were excluded from the benefits, of public justice. This new species of martyrdom, so painful and lingering, so obscure and ignominious, was, perhaps, the most proper to weary the constancy of the faithful; nor can it be doubted that the passions and interest of mankind were disposed on this occasion to second the designs of the emperors. But the policy of a well-ordered government must sometimes have interposed in behalf of the oppressed Christians; nor was it possible for the Roman princes entirely to remove the apprehension of punishment, or to Edition: current; Page: [68] connive at every act of fraud and violence, without exposing their own authority and the rest of their subjects to the most alarming dangers.¹⁵⁴

This edict was scarcely exhibited to the public view, in the most conspicuous place of Nicomedia, before it was torn down by the hands of a Christian, who expressed, at the same time, by the bitterest invectives, his contempt as well as abhorrence for such impious and tyrannical governors. His offence, according to the mildest laws, amounted to treason, and deserved death. And, if it be true that he was a person of rank and education, those circumstances could serve only to aggravate his guilt. He was burnt, or rather roasted, by a slow fire; and his executioners, zealous to revenge the personal insult which had been offered to the emperors, exhausted every refinement of cruelty, without being able to subdue his patience, or to alter the steady and insulting smile which in his dying agonies he still preserved in his countenance. The Christians, though they confessed that his conduct had not been strictly conformable to the laws of prudence, admired the divine fervour of his zeal; and the excessive commendations which they lavished on the memory of their hero and martyr contributed to fix a deep impression of terror and hatred in the mind of Diocletian.¹⁵⁵

His fears were soon alarmed by the view of a danger from which he very narrowly escaped. Within fifteen days the palace of Nicomedia, and even the bed-chamber of Diocletian, were twice in flames; and, though both times they were extinguished without any material damage, the singular Edition: current; Page: [69] repetition of the fire was justly considered as an evident proof that it had not been the effect of chance or negligence. The suspicion naturally fell on the Christians; and it was suggested, with some degree of probability, that those desperate fanatics, provoked by their present sufferings and apprehensive of impending calamities, had entered into a conspiracy with their faithful brethren, the eunuchs of the palace, against the lives of two emperors, whom they detested as the irreconcilable enemies of the church of God. Jealousy and resentment prevailed in every breast, but especially in that of Diocletian. A great number of persons, distinguished either by the offices which they had filled or by the favour which they had enjoyed, were thrown into prison. Every mode of torture was put in practice, and the court, as well as city, was polluted with many bloody executions.¹⁵⁶ But, as it was found impossible to extort any discovery of this

¹⁵⁴Many ages afterwards, Edward I. practised with great success the same mode of persecution against the clergy of England. See Hume[*Hebrew*]'s History of England, vol. ii. p. 300, last 4to edition.

¹⁵⁵Lactantius only calls him quidam, etsi non recte, magno tamen animo, &c. c. 12. Eusebius (l. viii. c. 5) adorns him with secular honours. Neither have condescended to mention his name; but the Greeks celebrate his memory under that of John. See Tillemont, Mémoires Ecclésiastiques, tom. v. part ii. p. 320.

¹⁵⁶Lactantius de M. P. c. 13, 14. Potentissimi quondam Eunuchi necati, per quos Palatium et ipse constabat. Eusebius (l. viii. c. 6) mentions the cruel extortions of the eunuchs, Gorgonius and Dorotheus, and of Anthimus, bishop of Nicomedia;

mysterious transaction, it seems incumbent on us either to presume the innocence, or to admire the resolution, of the sufferers. A few days afterwards Galerius hastily withdrew himself from Nicomedia, declaring that, if he delayed his departure from that devoted palace, he should fall a sacrifice to the rage of the Christians. The ecclesiastical historians, from whom alone we derive a partial and imperfect knowledge of this persecution, are at a loss how to account for the fears and dangers of the emperors. Two of these writers, a Prince and a Rhetorician, were eye-witnesses of the fire of Nicomedia. The one ascribes it to lightning and the divine wrath; the other affirms that it was kindled by the malice of Galerius himself.¹⁵⁷ Edition: current; Page: [70]

As the edict against the Christians was designed for a general law of the whole empire, and as Diocletian and Galerius, though they might not wait for the consent, were assured of the concurrence, of the Western princes, it would appear more consonant to our ideas of policy that the governors of all the provinces should have received secret instructions to publish, on one and the same day, this declaration of war within their respective departments. It was at least to be expected that the convenience of the public highways and established posts would have enabled the emperors to transmit their orders with the utmost despatch from the palace of Nicomedia to the extremities of the Roman world; and that they would not have suffered fifty days to elapse before the edict was published in Syria, and near four months before it was signified to the cities of Africa.¹⁵⁸ This delay may perhaps be imputed to the cautious temper of Diocletian, who had yielded a reluctant consent to the measures of persecution, and who was desirous of trying the experiment under his more immediate eye, before he gave way to the disorders and discontent which it must inevitably occasion in the distant provinces. At first, indeed, the magistrates were restrained from the effusion of blood; but the use of every other severity was permitted and even recommended to their zeal; nor could the Christians, though they cheerfully resigned the ornaments of their churches, resolve to interrupt their religious assemblies or to deliver their sacred books to the flames. The pious obstinacy of Felix, an African bishop, appears to have embarrassed the subordinate ministers of the government. The curator of his city sent him in chains to the proconsul. The proconsul transmitted him to the Prætorian prefect of Italy; and Felix, who disdained even to give an evasive answer, was at length beheaded at Venusia, in Lucania, a place on which the birth of Horace has conferred fame.¹⁵⁹ This precedent, and perhaps some Imperial rescript, Edition: current; Page: [71] which was issued in consequence of it, appeared to authorise the governors of provinces in punishing with death the refusal of the Christians to deliver up their sacred books. There were undoubtedly many persons who embraced this opportunity of obtaining the crown of martyrdom; but there were likewise too many who purchased an ignominious life by discovering and betraying the holy scripture into the hands of infidels. A great number even of bishops and presbyters acquired, by this criminal compliance, the opprobrious epithet of Traditors; and their offence was productive of much present scandal, and of much future discord, in the African church.¹⁶⁰

The copies, as well as the versions, of scripture were already so multiplied in the empire that

and both those writers describe, in a vague but tragical manner, the horrid scenes which were acted even in the Imperial presence.

¹⁵⁷See Lactantius, Eusebius, and Constantine, ad Cœtum Sanctorum, c. 25. Eusebius confesses his ignorance of the cause of the fire.

¹⁵⁸Tillemont, Mémoires Ecclésiast. tom. v. part i. p. 43.

¹⁵⁹See the Acta Sincera of Ruinart, p. 353; those of Felix of Thibara, or Tibiur, appear much less corrupted than in the other editions, which afford a lively specimen of legendary licence.

¹⁶⁰See the first book of Optatus of Milevis against the Donatists at Paris, 1700 [leg. 1702], edit. Dupin. He lived under the reign of Valens.

the most severe inquisition could no longer be attended with any fatal consequences; and even the sacrifice of those volumes which, in every congregation, were preserved for public use required the consent of some treacherous and unworthy Christians. But the ruin of the churches was easily effected by the authority of the government and by the labour of the Pagans. In some provinces, however, the magistrates contented themselves with shutting up the places of religious worship. In others, they more literally complied with the terms of the edict; and, after taking away the doors, the benches, and the pulpit, which they burnt, as it were in a funeral pile, they completely demolished the remainder of the edifice.¹⁶¹ It is perhaps to this melancholy occasion that we should apply Edition: current; Page: [72] a very remarkable story, which is related with so many circumstances of variety and improbability that it serves rather to excite than to satisfy our curiosity. In a small town in Phrygia, of whose name as well as situation we are left ignorant, it should seem that the magistrates and the body of the people had embraced the Christian faith; and, as some resistance might be apprehended to the execution of the edict, the governor of the province was supported by a numerous detachment of legionaries. On their approach the citizens threw themselves into the church, with the resolution either of defending by arms that sacred edifice or of perishing in its ruins. They indignantly rejected the notice and permission which was given them to retire, till the soldiers, provoked by their obstinate refusal, set fire to the building on all sides, and consumed, by this extraordinary kind of martyrdom, a great number of Phrygians, with their wives and children.¹⁶²

Some slight disturbances, though they were suppressed almost as soon as excited, in Syria and the frontiers of Armenia, afforded the enemies of the church a very plausible occasion to insinuate that those troubles had been secretly fomented by the intrigues of the bishops, who had already forgotten their ostentatious professions of passive and unlimited obedience.¹⁶³ The resentment, or the fears, of Diocletian at length transported Edition: current; Page: [73] him beyond the bounds of moderation which he had hitherto preserved, and he declared, in a series of cruel edicts, his intention of abolishing the Christian name. By the first of these edicts, the governors of the provinces were directed to apprehend all persons of the ecclesiastical order; and the prisons, destined for the vilest criminals, were soon filled with a multitude of bishops, presbyters, deacons, readers, and exorcists. By a second edict, the magistrates were commanded to employ every method of severity which might reclaim them from their odious superstition and oblige them to return to the established worship of the gods. This rigorous order was extended by a subsequent

¹⁶¹The ancient monuments, published at the end of Optatus, p. 261, &c., describe, in a very circumstantial manner, the proceedings of the governors in the destruction of churches. They made a minute inventory of the plate, &c., which they found in them. That of the Church of Cirta, in Numidia, is still extant. It consisted of two chalices of gold, and six of silver; six urns, one kettle, seven lamps, all likewise of silver; besides a large quantity of brass utensils, and wearing apparel.

¹⁶²Lactantius (*Institut. Divin.* v. 11) confines the calamity to the conventiculum, with its congregation. Eusebius (*viii.* 11) extends it to a whole city, and introduces something very like a regular siege. His ancient Latin translator, Rufinus, adds the important circumstance of the permission given to the inhabitants of retiring from thence. As Phrygia reached to the confines of Isauria, it is possible that the restless temper of those independent Barbarians may have contributed to this misfortune.

¹⁶³Eusebius, *l. viii. c. 6.* M. de Valois (with some probability) thinks that he has discovered the Syrian rebellion in an oration of Libanius; and that it was a rash attempt of the tribune Eugenius, who with only five hundred men seized Antioch, and might perhaps allure the Christians by the promise of religious toleration. From Eusebius (*l. ix. c. 8.*), as well as from Moses of Chorene (*Hist. Armen. l. ii. c. 77, &c.*), it may be inferred that Christianity was already introduced into Armenia. [See Appendix 13.]

edict to the whole body of Christians, who were exposed to a violent and general persecution.¹⁶⁴ Instead of those salutary restraints, which had required the direct and solemn testimony of an accuser, it became the duty as well as the interest of the Imperial officers to discover, to pursue, and to torment the most obnoxious among the faithful. Heavy penalties were denounced against all who should presume to save a proscribed sectary from the just indignation of the gods, and of the emperors. Yet, notwithstanding the severity of this law, the virtuous courage of many of the Pagans, in concealing their friends or relations, affords an honourable proof that the rage of superstition had not extinguished in their minds the sentiments of nature and humanity.¹⁶⁵

Diocletian had no sooner published his edicts against the Christians than, as if he had been desirous of committing to other hands the work of persecution, he divested himself of the Imperial purple. The character and situation of his colleagues and successors sometimes urged them to enforce, Edition: current; Page: [74] and sometimes inclined them to suspend the execution of these rigorous laws; nor can we acquire a just and distinct idea of this important period of ecclesiastical history, unless we separately consider the state of Christianity, in the different parts of the empire, during the space of ten years, which elapsed between the first edicts of Diocletian and the final peace of the church.

The mild and humane temper of Constantius was averse to the oppression of any part of his subjects. The principal offices of his palace were exercised by Christians. He loved their persons, esteemed their fidelity, and entertained not any dislike to their religious principles. But, as long as Constantius remained in the subordinate station of Cæsar, it was not in his power openly to reject the edicts of Diocletian or to disobey the commands of Maximian. His authority contributed, however, to alleviate the sufferings which he pitied and abhorred. He consented, with reluctance, to the ruin of the churches; but he ventured to protect the Christians themselves from the fury of the populace and from the rigour of the laws. The provinces of Gaul (under which we may probably include those of Britain) were indebted for the singular tranquillity which they enjoyed to the gentle interposition of their sovereign.¹⁶⁶ But Datianus, the president or governor of Spain, actuated either by zeal or policy, chose rather to execute the public edicts of the emperors than to understand the secret intentions of Constantius; and it can scarcely be doubted that his provincial administration was stained with the blood of a few martyrs.¹⁶⁷ The elevation Edition: current; Page: [75] of Constantius to the supreme and independent dignity of Augustus gave a free scope to the exercise of his virtues, and the shortness of his reign did not prevent him from establishing a system of toleration, of which he left the precept and the example to his son Constantine. His fortunate

¹⁶⁴See Mosheim, p. 938; the text of Eusebius very plainly shows that the governors, whose powers were enlarged, not restrained, by the new laws, could punish with death the most obstinate Christians, as an example to their brethren. [For 4th edict, see Euseb. Mart. Pal. c. 3.]

¹⁶⁵Athanasius, p. 833, ap. Tillemont, Mém. Ecclésiast. tom. v. part i. p. 90.

¹⁶⁶Eusebius, l. viii. c. 13. Lactantius de M. P. c. 15. Dodwell (Dissertat. Cyprian. xi. 75) represents them as inconsistent with each other. But the former evidently speaks of Constantius in the station of Cæsar, and the latter of the same prince in the rank of Augustus. [On the religious policy of Constantius, see papers of Görres in Zeitschrift für wiss. Theologie, vol. 31, 1888, p. 72 sqq. and 33, 1890, p. 469 sqq.]

¹⁶⁷Datianus is mentioned in Gruter[*Hebrew*]'s Inscriptions, as having determined the limits between the territories of Pax Julia, and those of Ebora, both cities in the southern part of Lusitania. [This inscription is not genuine. See No. 17 of the False Inscriptions at end of C.I.L., vol. 2.] If we recollect the neighbourhood of those places to Cape St. Vincent, we may suspect that the celebrated deacon and martyr of that name has been inaccurately assigned by Prudentius, &c., to Saragossa, or Valentia. See the pompous history of his sufferings, in the Mémoires de Tillemont, tom. v. part ii. p. 58-85. Some critics are of opinion that the department of Constantius, as Cæsar, did not include Spain, which still continued under the immediate jurisdiction of Maximian. [See vol. ii. p. 149-150.]

son, from the first moment of his accession declaring himself the protector of the church, at length deserved the appellation of the first emperor who publicly professed and established the Christian religion. The motives of his conversion, as they may variously be deduced from benevolence, from policy, from conviction, or from remorse; and the progress of the revolution which, under his powerful influence, and that of his sons, rendered Christianity the reigning religion of the Roman empire, will form a very interesting and important chapter in the third volume of this history. At present it may be sufficient to observe that every victory of Constantine was productive of some relief or benefit to the church.

The provinces of Italy and Africa experienced a short but violent persecution. The rigorous edicts of Diocletian were strictly and cheerfully executed by his associate Maximian, who had long hated the Christians, and who delighted in acts of blood and violence. In the autumn of the first year of the persecution, the two emperors met at Rome to celebrate their triumph; several oppressive laws appear to have issued from their secret consultations, and the diligence of the magistrates was animated by the presence of their sovereigns. After Diocletian had divested himself of the purple, Italy and Africa were administered under the name of Severus, and were Edition: current; Page: [76] exposed, without defence, to the implacable resentment of his master Galerius. Among the martyrs of Rome, Adautus deserves the notice of posterity. He was of a noble family in Italy, and had raised himself, through the successive honours of the palace, to the important office of treasurer of the private demesnes. Adautus is the more remarkable for being the only person of rank and distinction who appears to have suffered death during the whole course of this general persecution.¹⁶⁸

The revolt of Maxentius immediately restored peace to the churches of Italy and Africa; and the same tyrant who oppressed every other class of his subjects showed himself just, humane, and even partial towards the afflicted Christians. He depended on their gratitude and affection, and very naturally presumed that the injuries which they had suffered, and the dangers which they still apprehended from his most inveterate enemy, would secure the fidelity of a party already considerable by their numbers and opulence.¹⁶⁹ Even the conduct of Maxentius towards the bishops of Rome and Carthage may be considered as the proof of his toleration, since it is probable that the most orthodox princes would adopt the same measures with regard to their established clergy. Marcellus, the former of those prelates, had thrown the capital into confusion by the severe penance which he imposed on a great number of Christians, who, during the late persecution, had renounced or dissembled their religion. The rage of faction broke out in frequent and violent seditions; the blood of the faithful was shed by each other[*Hebrew*]'s hands; and the exile of Marcellus, whose prudence seems to have been less eminent than his zeal, was found to be the only measure Edition: current; Page: [77] capable of restoring peace to the distracted church of Rome.¹⁷⁰ The behaviour of

¹⁶⁸Eusebius, l. viii. c. 11. Gruter, Inscript. p. 1171. No. 18. Rufinus has mistaken the office of Adautus, as well as the place of his martyrdom.

¹⁶⁹Eusebius, l. viii. c. 14. But, as Maxentius was vanquished by Constantine, it suited the purpose of Lactantius to place his death among those of the persecutors. [On toleration of Maxentius see Görres, Z. f. wiss. Theol. 33, p. 206.]

¹⁷⁰The epitaph of Marcellus is to be found in Gruter, Inscript. p. 1172, No. 3, and it contains all that we know of his history. Marcellinus and Marcellus, whose names follow in the list of popes, are supposed by many critics to be different persons; but the learned Abbé de Longuerue was convinced that they were one and the same.

Veridicus rector, lapsis [leg. lapsos] quia crimina fieri
Prædixit, miseris fuit omnibus hostis amarus.
Hinc furor, hinc odium; sequitur discordia, lites,
Seditio, cædes; solvuntur fœdera pacis.

Mensurius, bishop of Carthage, appears to have been still more reprehensible. A deacon of that city had published a libel against the emperor. The offender took refuge in the episcopal palace; and, though it was somewhat early to advance any claims of ecclesiastical immunities, the bishop refused to deliver him up to the officers of justice. For this treasonable resistance, Mensurius was summoned to court, and, instead of receiving a legal sentence of death or banishment, he was permitted, after a short examination, to return to his diocese.¹⁷¹ Such was the happy condition of the Christian subjects of Maxentius that, whenever they were desirous of procuring for their own use any bodies of martyrs, they were obliged to purchase them from the most distant provinces of the East. A story is related of Aglae, a Roman lady, descended from a consular family, and possessed of so ample an estate that it required the management of seventy-three stewards. Among these, Boniface was the favourite of his mistress; and, as Aglae mixed love with devotion, it is reported that he was admitted to share her bed. Her fortune enabled her to gratify the pious desire of obtaining some sacred relics from the East. Edition: current; Page: [78] She entrusted Boniface with a considerable sum of gold and a large quantity of aromatics; and her lover, attended by twelve horsemen and three covered chariots, undertook a remote pilgrimage, as far as Tarsus in Cilicia.¹⁷²

The sanguinary temper of Galerius, the first and principal author of the persecution, was formidable to those Christians whom their misfortunes had placed within the limits of his dominions; and it may fairly be presumed that many persons of a middle rank, who were not confined by the chains either of wealth or of poverty, very frequently deserted their native country, and sought a refuge in the milder climate of the West. As long as he commanded only the armies and provinces of Illyricum, he could with difficulty either find or make a considerable number of martyrs, in a warlike country, which had entertained the missionaries of the Gospel with more coldness and reluctance than any other part of the empire.¹⁷³ But, when Galerius had obtained the supreme power and the government of the East, he indulged in their fullest extent his zeal and cruelty, not only in the provinces of Thrace and Asia, which acknowledged his immediate jurisdiction, but in those of Syria, Palestine, and Egypt, where Maximin gratified his own inclination by yielding a rigorous obedience to the stern commands of his benefactor.¹⁷⁴ The frequent disappointments of his ambitious views, the experience of six years of persecution, and the salutary reflections which a Edition: current; Page: [79] lingering and painful distemper suggested to the mind of Galerius, at length convinced him that the most violent efforts of despotism are insufficient to extirpate a whole people or to subdue their religious prejudices. Desirous of repairing the mischief that he had occasioned, he published in his own name, and in those of Licinius and Constantine, a general edict, which, after a pompous recital of the Imperial titles, proceeded in the following manner:

Crimen ob alterius, Christum qui in pace negavit,
 Finibus expulsus patriæ est feritate Tyranni.
 Hæc breviter Damasus voluit comperta referre:
 Marcelli [ut] populus meritum cognoscere posset.

We may observe, that Damasus was made bishop of Rome, ad 366. [Cp. App. 2.]

¹⁷¹Optatus contr. Donatist. l. i. c. 17, 18.

¹⁷²The Acts of the Passion of St. Boniface, which abound in miracles and declamation, are published by Ruinart (p. 283-291) both in Greek and Latin, from the authority of very ancient manuscripts.

¹⁷³During the four first centuries there exist few traces of either bishops or bishoprics in the western Illyricum. It has been thought probable that the primate of Milan extended his jurisdiction over Sirmium, the capital of that great province. See the *Geographia Sacra* of Charles de St. Paul, p. 68-76, with the observations of Lucas Holstenius.

¹⁷⁴The eighth book of Eusebius, as well as the supplement concerning the martyrs of Palestine, principally relate to the persecution of Galerius and Maximin. The general lamentations with which Lactantius opens the fifth book of his *Divine Institutions* allude to their cruelty.

[*Hebrew*] Among the important cares which have occupied our mind for the utility and preservation of the empire, it was our intention to correct and re-establish all things according to the ancient laws and public discipline of the Romans. We were particularly desirous of reclaiming, into the way of reason and nature, the deluded Christians, who had renounced the religion and ceremonies instituted by their fathers, and, presumptuously despising the practice of antiquity, had invented extravagant laws and opinions, according to the dictates of their fancy, and had collected a various society from the different provinces of our empire. The edicts which we have published to enforce the worship of the gods, having exposed many of the Christians to danger and distress, many having suffered death, and many more, who still persist in their impious folly, being left destitute of any public exercise of religion, we are disposed to extend to those unhappy men the effects of our wonted clemency. We permit them, therefore, freely to profess their private opinions, and to assemble in their conventicles without fear or molestation, provided always that they preserve a due respect to the established laws and government. By another rescript we shall signify our intentions to the judges and magistrates; and we hope that our indulgence will engage the Christians to offer up their prayers to the Deity whom they adore, for our safety and prosperity, for their own, and for that of the republic.[*Hebrew*]"¹⁷⁵ It is not usually in the language of edicts Edition: current; Page: [80] and manifestoes that we should search for the real character or the secret motives of princes; but, as these were the words of a dying emperor, his situation, perhaps, may be admitted as a pledge of his sincerity.

When Galerius subscribed this edict of toleration, he was well assured that Licinius would readily comply with the inclinations of his friend and benefactor, and that any measures in favour of the Christians would obtain the approbation of Constantine. But the emperor would not venture to insert in the preamble the name of Maximin, whose consent was of the greatest importance, and who succeeded a few days afterwards to the provinces of Asia. In the first six months, however, of his new reign, Maximin affected to adopt the prudent counsels of his predecessor; and, though he never condescended to secure the tranquillity of the church by a public edict, Sabinus, his Prætorian prefect, addressed a circular letter to all the governors and magistrates of the provinces, expatiating on the Imperial clemency, acknowledging the invincible obstinacy of the Christians, and directing the officers of justice to cease their ineffectual prosecutions and to connive at the secret assemblies of those enthusiasts. In consequence of these orders, great numbers of Christians were released from prison or delivered from the mines. The confessors, singing hymns of triumph, returned into their own countries; and those who had yielded to the violence of the tempest solicited with tears of repentance their re-admission into the bosom of the church.¹⁷⁶

But this treacherous calm was of short duration; nor could the Christians of the East place any confidence in the character of their sovereign. Cruelty and superstition were the ruling passions of the soul of Maximin. The former suggested the means, the latter pointed out the objects, of Edition: current; Page: [81] persecution. The emperor was devoted to the worship of the gods, to the study of magic, and to the belief of oracles. The prophets or philosophers, whom he revered as the favourites of heaven, were frequently raised to the government of provinces and admitted into his most secret counsels. They easily convinced him that the Christians had been indebted for their victories to their regular discipline, and that the weakness of Polytheism had principally flowed from a want of

¹⁷⁵Eusebius (l. viii. c. 17) has given us a Greek version, and Lactantius (de M. P. c. 34) the Latin original, of this memorable edict. Neither of these writers seems to recollect how directly it contradicts whatever they have just affirmed of the remorse and repentance of Galerius.

¹⁷⁶Eusebius, l. ix. c. 1. He inserts the epistle of the prefect.

union and subordination among the ministers of religion. A system of government was therefore instituted, which was evidently copied from the policy of the church. In all the great cities of the empire, the temples were repaired and beautified by the order of Maximin; and the officiating priests of the various deities were subjected to the authority of a superior pontiff, destined to oppose the bishop and to promote the cause of Paganism. These pontiffs acknowledged, in their turn, the supreme jurisdiction of the metropolitans or high priests of the province, who acted as the immediate vicegerents of the emperor himself. A white robe was the ensign of their dignity; and these new prelates were carefully selected from the most noble and opulent families. By the influence of the magistrates and of the sacerdotal order, a great number of dutiful addresses were obtained, particularly from the cities of Nicomedia, Antioch, and Tyre, which artfully represented the well-known intentions of the court as the general sense of the people; solicited the emperor to consult the laws of justice rather than the dictates of his clemency; expressed their abhorrence of the Christians; and humbly prayed that those impious sectaries might at least be excluded from the limits of their respective territories. The answer of Maximin to the address which he obtained from the citizens of Tyre is still extant. He praises their zeal and devotion in terms of the highest satisfaction, descants on the obstinate impiety of the Christians, and betrays, by the readiness with which he consents to their banishment, Edition: current; Page: [82] that he considered himself as receiving, rather than as conferring, an obligation. The priests, as well as the magistrates, were empowered to enforce the execution of his edicts, which were engraved on tables of brass; and, though it was recommended to them to avoid the effusion of blood, the most cruel and ignominious punishments were inflicted on the refractory Christians.¹⁷⁷

The Asiatic Christians had everything to dread from the severity of a bigoted monarch, who prepared his measures of violence with such deliberate policy. But a few months had scarcely elapsed before the edicts published by the two Western emperors obliged Maximin to suspend the prosecution of his designs: the civil war, which he so rashly undertook against Licinius, employed all his attention; and the defeat and death of Maximin soon delivered the church from the last and most implacable of her enemies.¹⁷⁸

In this general view of the persecution, which was first authorised by the edicts of Diocletian, I have purposely refrained from describing the particular sufferings and deaths of the Christian martyrs. It would have been an easy task, from the history of Eusebius, from the declamations of Lactantius, and from the most ancient acts, to collect a long series of horrid and disgusting pictures, and to fill many pages with racks and scourges, with iron hooks and red-hot beds, and with all the variety of tortures which fire and steel, savage beasts and more savage executioners, could inflict on the human body. These melancholy scenes might be enlivened by a crowd of visions and miracles destined either Edition: current; Page: [83] to delay the death, to celebrate the triumph, or to discover the relics, of those canonised saints who suffered for the name of Christ. But I cannot determine what I ought to transcribe, till I am satisfied how much I ought to believe. The gravest of the ecclesiastical historians, Eusebius himself, indirectly confesses that he has related whatever might redound to the glory, and that he has suppressed all that could tend to the disgrace,

¹⁷⁷See Eusebius, l. viii. c. 14, l. ix. c. 2-8. Lactantius de M. P. c. 36. These writers agree in representing the arts of Maximin; but the former relates the execution of several martyrs, while the latter expressly affirms, *occidi servos Dei vetuit*. [For Maximin[*Hebrew*]'s persecutions, cp. Görres, Brieger[*Hebrew*]'s Z. f. Kirchengesch. xi. 333 sqq.]

¹⁷⁸A few days before his death, he published a very ample edict of toleration, in which he imputes all the severities which the Christians suffered to the judges and governors, who had misunderstood his intentions. See the Edict. in Eusebius, l. ix. c. 10. [Summer, 313 ad]

of religion.¹⁷⁹ Such an acknowledgment will naturally excite a suspicion that a writer who has so openly violated one of the fundamental laws of history has not paid a very strict regard to the observance of the other; and the suspicion will derive additional credit from the character of Eusebius, which was less tinctured with credulity, and more practised in the arts of courts, than that of almost any of his contemporaries. On some particular occasions, when the magistrates were exasperated by some personal motives of interest or resentment, when the zeal of the martyrs urged them to forget the rules of prudence, and perhaps of decency, to overturn the altars, to pour out imprecations against the emperors, or to strike the judge as he sat on his tribunal, it may be presumed that every mode of torture, which cruelty could invent or constancy could endure, was exhausted on those devoted victims.¹⁸⁰ Two circumstances, however, Edition: current; Page: [84] have been unwarily mentioned, which insinuate that the general treatment of the Christians who had been apprehended by the officers of justice was less intolerable than it is usually imagined to have been. 1. The confessors who were condemned to work in the mines were permitted, by the humanity or the negligence of their keepers, to build chapels and freely to profess their religion in the midst of those dreary habitations.¹⁸¹ 2. The bishops were obliged to check and to censure the forward zeal of the Christians, who voluntarily threw themselves into the hands of the magistrates. Some of these were persons oppressed by poverty and debts, who blindly sought to terminate a miserable existence by a glorious death. Others were allured by the hope that a short confinement would expiate the sins of a whole life; and others, again, were actuated by the less honourable motive of deriving a plentiful subsistence, and perhaps a considerable profit, from the alms which the charity of the faithful bestowed on the prisoners.¹⁸² After the church had triumphed over all her enemies, the interest as well as vanity of the captives prompted them to magnify the merit of their respective suffering. A convenient distance of time or place gave an ample scope to the progress of fiction; and the frequent instances which might be alleged of holy martyrs, whose wounds had been instantly healed, whose strength had been renewed, and whose lost members had miraculously been restored, were extremely convenient for the purpose of removing every difficulty and of silencing every objection. The most extravagant legends, as they conduced to the honour of the church, were applauded by the credulous multitude, countenanced by the power of the clergy, and attested by the suspicious evidence of ecclesiastical history. Edition: current; Page: [85]

The vague descriptions of exile and imprisonment, of pain and torture, are so easily exaggerated or softened by the pencil of an artful orator that we are naturally induced to inquire into a fact of a more distinct and stubborn kind: the number of persons who suffered death, in consequence of the edicts published by Diocletian, his associates, and his successors. The recent legends

¹⁷⁹Such is the fair deduction from two remarkable passages in Eusebius, [H. E.] l. viii. c. 2, and de Martyr. Palestin. c. 12. The prudence of the historian has exposed his own character to censure and suspicion. It is well known that he himself had been thrown into prison; and it was suggested that he had purchased his deliverance by some dishonourable compliance. The reproach was urged in his lifetime, and even in his presence, at the council of Tyre. See Tillemont, *Mémoires Ecclésiastiques*, tom. viii. part i. p. 67. [Milman admits that the authority of Eusebius is [Hebrew]loose[Hebrew]" and [Hebrew]by no means scrupulous.[Hebrew]"]

¹⁸⁰The ancient, and perhaps authentic, account of the sufferings of Tarachus and his companions (*Acta Sincera*, Ruinart, p. 419-448) is filled with strong expressions of resentment and contempt, which could not fail of irritating the magistrate. The behaviour of Ædesius to Hierocles, prefect of Egypt, was still more extraordinary, λόγους τε κα[Hebrew]ργούς τ[Hebrew]ν δικαστ[Hebrew]ν . . . περιβαλόν. Euseb. de Martyr. Palestin. c. 5.

¹⁸¹Euseb. de Martyr. Palestin. c. 13.

¹⁸²Augustin. *Collat. Carthagin. Dei*, iii. c. 13, ap. Tillemont, *Mémoires Ecclésiastiques*, tom. v. part i. p. 46. The controversy with the Donatists has reflected some, though perhaps a partial, light on the history of the African church.

record whole armies and cities, which were at once swept away by the undistinguishing rage of persecution. The more ancient writers content themselves with pouring out a liberal effusion of loose and tragical invectives, without condescending to ascertain the precise number of those persons who were permitted to seal with their blood their belief of the gospel. From the history of Eusebius, it may however be collected that only nine bishops were punished with death; and we are assured, by his particular enumeration of the martyrs of Palestine, that no more than ninety-two Christians were entitled to that honourable appellation.¹⁸³ As we are unacquainted with the degree of episcopal zeal and courage which prevailed at that time, it is not in our power to draw any useful inferences from the Edition: current; Page: [86] former of these facts; but the latter may serve to justify a very important and probable conclusion. According to the distribution of Roman provinces, Palestine may be considered as the sixteenth part of the Eastern empire;¹⁸⁴ and since there were some governors who, from a real or affected clemency, had preserved their hands unstained with the blood of the faithful,¹⁸⁵ it is reasonable to believe that the country which had given birth to Christianity produced at least the sixteenth part of the martyrs who suffered death within the dominions of Galerius and Maximin; the whole might consequently amount to about fifteen hundred; a number which, if it is equally divided between the ten years of the persecution, will allow an annual consumption of one hundred and fifty martyrs. Allotting the same proportion to the provinces of Italy, Africa, and perhaps Spain, where, at the end of two or three years, the rigour of the penal laws was either suspended or abolished, the multitude of Christians in the Roman empire on whom a capital punishment was inflicted by a judicial sentence will be reduced to somewhat less than two thousand persons. Since it cannot be doubted that the Christians were more numerous, and their enemies more exasperated, in the time of Diocletian, than they had ever been in any former persecution, this probable and moderate computation may teach us to estimate the number of primitive saints and martyrs who sacrificed their lives for the important purpose of introducing Christianity into the world.

We shall conclude this chapter by a melancholy truth which obtrudes itself on the reluctant mind; that even admitting, Edition: current; Page: [87] without hesitation or inquiry, all that history has recorded, or devotion has feigned, on the subject of martyrdoms, it must still be acknowledged that the Christians, in the course of their intestine dissensions, have inflicted far greater severities on each other than they had experienced from the zeal of infidels. During the ages of ignorance which

¹⁸³Eusebius de Martyr. Palestin. c. 13. He closes his narration by assuring us that these were the martyrdoms inflicted in Palestine during the whole course of the persecution. The fifth chapter of his eighth book, which relates to the province of Thebais in Egypt, may seem to contradict our moderate computation; but it will only lead us to admire the artful management of the historian. Choosing for the scene of the most exquisite cruelty the most remote and sequestered country of the Roman empire, he relates that in Thebais from ten to one hundred persons had frequently suffered martyrdom in the same day. But when he proceeds to mention his own journey into Egypt, his language insensibly becomes more cautious and moderate. Instead of a large, but definite number, he speaks of many Christians (πλείους), and most artfully selects two ambiguous words (ιστορησαμεν, and υπομειναντας), which may signify either what he had seen or what he had heard; either the expectation or the execution of the punishment. Having thus provided a secure evasion, he commits the equivocal passage to his readers and translators; justly conceiving that their piety would induce them to prefer the most favourable sense. There was perhaps some malice in the remark of Theodorus Metochita, that all who, like Eusebius, had been conversant with the Egyptians delighted in an obscure and intricate style. (See Valesius ad loc.)

¹⁸⁴When Palestine was divided into three, the prefecture of the East contained forty-eight provinces. As the ancient distinctions of nations were long since abolished, the Romans distributed the provinces according to a general proportion of their extent and opulence. [Cp. Appendix 6.]

¹⁸⁵Ut gloriari possint nullum se innocentium peremisse, nam et ipse audivi aliquos gloriantes, quia administratio sua in hac parte fuerit incruenta. Lactant. Institut. Divin. v. 11.

followed the subversion of the Roman empire in the West, the bishops of the Imperial city extended their dominion over the laity as well as clergy of the Latin church. The fabric of superstition which they had erected, and which might long have defied the feeble efforts of reason, was at length assaulted by a crowd of daring fanatics, who, from the twelfth to the sixteenth century, assumed the popular character of reformers. The church of Rome defended by violence the empire which she had acquired by fraud; a system of peace and benevolence was soon disgraced by proscriptions, wars, massacres, and the institution of the holy office. And, as the reformers were animated by the love of civil, as well as of religious, freedom, the Catholic princes connected their own interest with that of the clergy, and enforced by fire and the sword the terrors of spiritual censures. In the Netherlands alone, more than one hundred thousand of the subjects of Charles the Fifth are said to have suffered by the hand of the executioner; and this extraordinary number is attested by Grotius,¹⁸⁶ a man of genius and learning, who preserved his moderation amidst the fury of contending sects, and who composed the annals of his own age and country, at a time when the invention of printing had facilitated the means of intelligence and increased the danger of detection. If we are obliged to submit our belief to the authority of Grotius, it must be allowed that the number of Protestants who were executed in a single province and a single reign far exceeded that of the primitive martyrs in the space of three centuries and of the Roman empire. But, if the improbability of the Edition: current; Page: [88] fact itself should prevail over the weight of evidence; if Grotius should be convicted of exaggerating the merit and sufferings of the Reformers;¹⁸⁷ we shall be naturally led to inquire what confidence can be placed in the doubtful and imperfect monuments of ancient credulity; what degree of credit can be assigned to a courtly bishop, and a passionate declaimer, who, under the protection of Constantine, enjoyed the exclusive privilege of recording the persecutions inflicted on the Christians by the vanquished rivals, or disregarded predecessors, of their gracious sovereign.

Edition: current; Page: [89]

¹⁸⁶Grot. *Annal. de Rebus Belgicis*, l. i. p. 12, edit. fol.

¹⁸⁷Fra Paolo (*Istoria del Concilio Tridentino*, l. iii.) reduces the number of Belgic martyrs to 50,000. In learning and moderation, Fra Paolo was not inferior to Grotius. The priority of time gives some advantage to the evidence of the former, which he loses on the other hand by the distance of Venice from the Netherlands.

Chapter Xvii

Foundation of Constantinople [*Hebrew*] Political System of Constantine, and his Successors
[*Hebrew*] Military Discipline [*Hebrew*] The Palace [*Hebrew*] The Finances

The unfortunate Licinius was the last rival who opposed the greatness, and the last captive who adorned the triumph, of Constantine. After a tranquil and prosperous reign, the conqueror bequeathed to his family the inheritance of the Roman empire: a new capital, a new policy, and a new religion; and the innovations which he established have been embraced and consecrated by succeeding generations. The age of the great Constantine and his sons is filled with important events; but the historian must be oppressed by their number and variety, unless he diligently separates from each other the scenes which are connected only by the order of time. He will describe the political institutions that gave strength and stability to the empire, before he proceeds to relate the wars and revolutions which hastened its decline. He will adopt the division, unknown to the ancients, of civil and ecclesiastical affairs: the victory of the Christians and their intestine discord will supply copious and distinct materials both for edification and for scandal.

After the defeat and abdication of Licinius, his victorious rival proceeded to lay the foundations of a city destined to reign in future times the mistress of the East, and to survive the empire and religion of Constantine. The motives, whether of pride or of policy, which first induced Diocletian to withdraw himself from the ancient seat of government, had acquired additional weight by the example of his successors Edition: current; Page: [90] and the habits of forty years. Rome was insensibly confounded with the dependent kingdoms which had once acknowledged her supremacy; and the country of the Cæsars was viewed with cold indifference by a martial prince, born in the neighbourhood of the Danube, educated in the courts and armies of Asia, and invested with the purple by the legions of Britain. The Italians, who had received Constantine as their deliverer, submissively obeyed the edicts which he sometimes condescended to address to the senate and people of Rome; but they were seldom honoured with the presence of their new sovereign. During the vigour of his age, Constantine, according to the various exigencies of peace and war, moved with slow dignity, or with active diligence, along the frontiers of his extensive dominions; and was always prepared to take the field either against a foreign or a domestic enemy. But, as he gradually reached the summit of prosperity and the decline of life, he began to meditate the design of fixing in a more permanent station the strength as well as majesty of the throne. In the choice of an advantageous situation, he preferred the confines of Europe and Asia; to curb, with a powerful arm, the barbarians who dwelt between the Danube and the Tanais; to watch with an eye of jealousy the conduct of the Persian monarch, who indignantly supported the yoke of an ignominious treaty. With these views Diocletian had selected and embellished the residence of Nicomedia: but the memory of Diocletian was justly abhorred by the protector of the church; and Constantine was not insensible to the ambition of founding a city which might perpetuate the glory of his own name. During the late operations of the war against Licinius, he had sufficient opportunity to contemplate, both as a soldier and as a statesman, the incomparable position of Byzantium; and to observe how strongly it was guarded by Nature against an hostile attack, whilst it was accessible on every side to the benefits of commercial intercourse. Many ages before Constantine, one of the most judicious historians of antiquity¹⁸⁸ Edition: current; Page: [91] had described the advantages of a situation, from whence a feeble colony of Greeks derived the

¹⁸⁸Polybius, l. iv. p. 423, edit. Casaubon [c. 45]. He observes that the peace of the Byzantines was frequently disturbed, and the extent of their territory contracted, by the inroads of the wild Thracians.

command of the sea and the honours of a flourishing and independent republic.¹⁸⁹

If we survey Byzantium in the extent which it acquired with the august name of Constantinople, the figure of the Imperial city may be represented under that of an unequal triangle. The obtuse point, which advances towards the east and the shores of Asia, meets and repels the waves of the Thracian Bosphorus. The northern side of the city is bounded by the harbour; and the southern is washed by the Propontis, or sea of Marmara. The basis of the triangle is opposed to the west, and terminates the continent of Europe. But the admirable form and division of the circumjacent land and water cannot, without a more ample explanation, be clearly or sufficiently understood.

The winding channel through which the waters of the Euxine flow with a rapid and incessant course towards the Mediterranean received the appellation of Bosphorus, a name not less celebrated in the history than in the fables of antiquity.¹⁹⁰ A crowd of temples and of votive altars, profusely scattered along its steep and woody banks, attested the unskilfulness, the terrors, and the devotion of the Grecian navigators, who, Edition: current; Page: [92] after the example of the Argonauts, explored the dangers of the inhospitable Euxine. On these banks tradition long preserved the memory of the palace of Phineus, infested by the obscene harpies;¹⁹¹ and of the sylvan reign of Amycus, who defied the son of Leda to the combat of the Cestus.¹⁹² The straits of the Bosphorus are terminated by the Cyanean rocks, which, according to the description of the poets, had once floated on the face of the waters, and were destined by the gods to protect the entrance of the Euxine against the eye of profane curiosity.¹⁹³ From the Cyanean rocks to the point and harbour of Byzantium, the winding length of the Bosphorus extends about sixteen miles,¹⁹⁴ and its most ordinary breadth may be computed at about one mile and a half. The new castles of Europe and Asia are constructed, on either continent, upon the foundations of two celebrated temples, of Serapis and of Jupiter Urius. The old castles, a work of the Greek emperors, command the narrowest part of the channel, in a place where the opposite banks advance within five hundred paces of each other. These fortresses were restored and strengthened by Mahomet the Second, when he meditated the siege of Constantinople:¹⁹⁵ but the Turkish conqueror was most probably ignorant that, near two Edition: current; Page: [93] thousand years before his reign, Darius had chosen the

¹⁸⁹The navigator Byzas, who was styled the son of Neptune, founded the city 656 [leg. 657] years before the Christian era. His followers were drawn from Argos and Megara. Byzantium was afterwards rebuilt and fortified by the Spartan general Pausanias. See Scaliger *Animadvers. ad Euseb.* p. 81. Ducange, *Constantinopolis*, l. i. part i. cap. 15, 16. With regard to the wars of the Byzantines against Philip, the Gauls, and the kings of Bithynia, we should trust none but the ancient writers who lived before the greatness of the Imperial city had excited a spirit of flattery and fiction.

¹⁹⁰The Bosphorus has been very minutely described by Dionysius of Byzantium, who lived in the time of Domitian (Hudson, *Geograph. Minor.* tom. iii.), and by Gilles or Gyllius, a French traveller of the XVIth century. Tournefort (*Lettre XV.*) seems to have used his own eyes and the learning of Gyllius.

¹⁹¹There are very few conjectures so happy as that of Le Clerc (*Bibliothèque Universelle*, tom. i. p. 148), who supposes that the harpies were only locusts. The Syriac or Phœnician name of those insects, their noisy flight, the stench and devastation which they occasion, and the north wind which drives them into the sea, all contribute to form this striking resemblance.

¹⁹²The residence of Amycus was in Asia, between the old and the new castles, at a place called *Laurus Insana*. That of Phineus was in Europe, near the village of *Mauromole* and the Black Sea. See Gyllius *de Bosph.* l. ii. c. 23. Tournefort, *Lettre XV.*

¹⁹³The deception was occasioned by several pointed rocks, alternately covered and abandoned by the waves. At present there are two small islands, one towards either shore: that of Europe is distinguished by the column of Pompey.

¹⁹⁴The ancients computed one hundred and twenty stadia, or fifteen Roman miles. They measured only from the new castles, but they carried the straits as far as the town of Chalcedon.

¹⁹⁵Ducas, *Hist.* c. 34. Leunclavius, *Hist. Turcica Mussulmanica*, l. xv. p. 577. Under the Greek empire these castles were used as state prisons, under the tremendous name of *Lethe*, or towers of oblivion.

same situation to connect the two continents by a bridge of boats.¹⁹⁶ At a small distance from the old castles we discover the little town of Chrysopolis, or Scutari, which may almost be considered as the Asiatic suburb of Constantinople. The Bosphorus, as it begins to open into the Propontis, passes between Byzantium and Chalcedon. The latter of those cities was built by the Greeks, a few years before the former; and the blindness of its founders, who overlooked the superior advantages of the opposite coast, has been stigmatised by a proverbial expression of contempt.¹⁹⁷

The harbour of Constantinople, which may be considered as an arm of the Bosphorus, obtained, in a very remote period, the denomination of the Golden Horn. The curve which it describes might be compared to the horn of a stag, or, as it should seem, with more propriety, to that of an ox.¹⁹⁸ The epithet of golden was expressive of the riches which every wind wafted from the most distant countries into the secure and capacious port of Constantinople. The river Lycus, formed by the conflux of two little streams, pours into the harbour¹⁹⁹ a perpetual supply of fresh water, which serves to cleanse the bottom and to invite the periodical shoals of fish. Edition: current; Page: [94] to seek their retreat in that convenient recess. As the vicissitudes of tides are scarcely felt in those seas, the constant depth of the harbour allows goods to be landed on the quays without the assistance of boats; and it has been observed that in many places the largest vessels may rest their prows against the houses, while their sterns are floating in the water.²⁰⁰ From the mouth of the Lycus to that of the harbour this arm of the Bosphorus is more than seven miles in length. The entrance is about five hundred yards broad, and a strong chain could be occasionally drawn across it, to guard the port and city from the attack of an hostile navy.²⁰¹

Between the Bosphorus and the Hellespont, the shores of Europe and Asia receding on either side enclose the sea of Marmara, which was known to the ancients by the denomination of Propontis. The navigation from the issue of the Bosphorus to the entrance of the Hellespont is about one hundred and twenty miles. Those who steer their westward course through the middle of the Propontis may at once descry the high lands of Thrace and Bithynia, and never lose sight of the lofty summit of Mount Olympus, covered with eternal snows.²⁰² They leave on the left a deep gulf, at the bottom of which Nicomedia was seated, the imperial residence of Diocletian; and they pass the small islands of Cyzicus and Proconnesus before they cast anchor at Gallipoli; where the sea, which Edition: current; Page: [95] separates Asia from Europe, is again contracted into a narrow

¹⁹⁶Darius engraved in Greek and Assyrian letters on two marble columns the names of his subject nations, and the amazing numbers of his land and sea forces. The Byzantines afterwards transported these columns into the city, and used them for the altars of their tutelar deities. Herodotus, l. iv. c. 87.

¹⁹⁷Namque artissimo inter Europam Asiamque divortio Byzantium in extremâ Europâ posuere Græci, quibus, Pythium Apollinem consulentibus ubi conderent urbem, redditum oraculum est, quærerent sedem cæcorum terris adversam. Eâ ambage Chalcedonii monstrabantur, quod priores illuc advecti prævisâ locorum utilitate pejora legissent. Tacit. Annal. xii. 62.

¹⁹⁸Strabo, l. x. p. 492. Most of the antlers are now broken off; or, to speak less figuratively, most of the recesses of the harbour are filled up. See Gyllius de Bosphoro Thracio, l. i. c. 5.

¹⁹⁹[It flowed into the Propontis. See Plan.]

²⁰⁰Procopius de Ædificiis, l. i. c. 5. His description is confirmed by modern travellers. See Thévenot, part i. l. i. c. 15. Tournefort, Lettre XII. Niebuhr, Voyage d[Hebrew] Arabie, p. 22. [The description of Himerius is rhetorical, or. 16.]

²⁰¹See Ducange, C. P. l. i. part i. c. 16, and his Observations sur Villehardouin, p. 289. The chain was drawn from the Acropolis near the modern Kiosk to the tower of Galata, and was supported at convenient distances by large wooden piles.

²⁰²Thévenot (Voyages au Levant, part i. l. i. c. 14) contracts the measure to 125 small Greek miles. Belon (Observations, l. ii. c. 1) gives a good description of the Propontis, but contents himself with the vague expression of one day and one night[Hebrew]'s sail. When Sandys (Travels, p. 21) talks of 150 furlongs in length as well as breadth, we can only suppose some mistake of the press in the text of that judicious traveller.

channel.

The geographers who, with the most skilful accuracy, have surveyed the form and extent of the Hellespont, assign about sixty miles for the winding course, and about three miles for the ordinary breadth of those celebrated straits.²⁰³ But the narrowest part of the channel is found to the northward of the old Turkish castles between the cities of Sestus and Abydus. It was here that the adventurous Leander braved the passage of the flood for the possession of his mistress.²⁰⁴ It was here likewise, in a place where the distance between the opposite banks cannot exceed five hundred paces, that Xerxes imposed a stupendous bridge of boats, for the purpose of transporting into Europe an hundred and seventy myriads of barbarians.²⁰⁵ A sea contracted within such narrow limits may seem but ill to deserve the singular epithet of broad, which Homer, as well as Orpheus, has frequently bestowed on the Hellespont. But our ideas of greatness are of a relative nature: the traveller, and especially the poet, who sailed along the Hellespont, who pursued the windings of the stream, and contemplated the rural scenery, which appeared on every side to terminate the Edition: current; Page: [96] prospect, insensibly lost the remembrance of the sea; and his fancy painted those celebrated straits with all the attributes of a mighty river flowing with a swift current, in the midst of a woody and inland country, and at length, through a wide mouth, discharging itself into the Ægean or Archipelago.²⁰⁶ Ancient Troy,²⁰⁷ seated on an eminence at the foot of Mount Ida, overlooked the mouth of the Hellespont, which scarcely received an accession of waters from the tribute of those immortal rivulets Simois and Scamander. The Grecian camp had stretched twelve miles along the shore from the Sigæan to the Rhœtean promontory; and the flanks of the army were guarded by the bravest chiefs who fought under the banners of Agamemnon. The first of those promontories was occupied by Achilles with his invincible Myrmidons, and the dauntless Ajax pitched his tents on the other. After Ajax had fallen a sacrifice to his disappointed pride and to the ingratitude of the Greeks, his sepulchre was erected on the ground where he had defended the navy against the rage of Jove and of Hector; and the citizens of the rising town of Rhœteum celebrated his memory with divine honours.²⁰⁸ Before Constantine gave a just preference to the situation of Byzantium, he had conceived the design of erecting the seat of empire on this celebrated spot, from

²⁰³See an admirable dissertation of M. d[Hebrew]'Anville upon the Hellespont or Dardanelles, in the *Mémoires de l'Académie des Inscriptions*, tom. xxviii. p. 318-346. Yet even that ingenious geographer is too fond of supposing new and perhaps imaginary measures, for the purpose of rendering ancient writers as accurate as himself. The stadia employed by Herodotus in the description of the Euxine, the Bosphorus, &c. (l. iv. c. 85), must undoubtedly be all of the same species; but it seems impossible to reconcile them either with truth or with each other. [Length of Hellespont about 40 miles, breadth 1 mile.]

²⁰⁴The oblique distance between Sestus and Abydus was thirty stadia. The improbable tale of Hero and Leander is exposed by M. Mahudel, but is defended on the authority of poets and medals by M. de la Nauze. See the *Académie des Inscriptions*, tom. vii. Hist. p. 74. *Mém.* p. 240.

²⁰⁵See the seventh book of Herodotus, who has erected an elegant trophy to his own fame and to that of his country. The review appears to have been made with tolerable accuracy; but the vanity, first of the Persians and afterwards of the Greeks, was interested to magnify the armament and the victory. I should much doubt whether the invaders have ever outnumbered the men of any country which they attacked.

²⁰⁶See Wood[Hebrew]'s observations on Homer, p. 320. I have, with pleasure, selected this remark from an author who in general seems to have disappointed the expectation of the public as a critic, and still more as a traveller. He had visited the banks of the Hellespont; he had read Strabo; he ought to have consulted the Roman itineraries; how was it possible for him to confound Ilium and Alexandria Troas (Observations, p. 340, 341), two cities which were sixteen miles distant from each other?

²⁰⁷Demetrius of Scepsis wrote sixty books on thirty lines of Homer[Hebrew]'s Catalogue. The XIIIth Book of Strabo is sufficient for our curiosity.

²⁰⁸Strabo, l. xiii. p. 595. The disposition of the ships which were drawn up on dry land, and the posts of Ajax and Achilles, are very clearly described by Homer. See *Iliad* ix. [leg. viii.] 220.

whence the Romans derived their fabulous origin. The extensive plain which lies below ancient Troy, towards the Rhœtean promontory and the tomb of Ajax, was first chosen for his new capital; and, Edition: current; Page: [97] though the undertaking was soon relinquished, the stately remains of unfinished walls and towers attracted the notice of all who sailed through the straits of the Hellespont.²⁰⁹

We are at present qualified to view the advantageous position of Constantinople; which appears to have been formed by Nature for the centre and capital of a great monarchy. Situated in the forty-first degree of latitude, the imperial city commanded, from her seven hills,²¹⁰ the opposite shores of Europe and Asia; the climate was healthy and temperate, the soil fertile, the harbour secure and capacious; and the approach on the side of the continent was of small extent and easy defence. The Bosphorus and Hellespont may be considered as the two gates of Constantinople; and the prince who possessed those important passages could always shut them against a naval enemy and open them to the fleets of commerce. The preservation of the Eastern provinces may, in some degree, be ascribed to the policy of Constantine, as the barbarians of the Euxine, who in the preceding age had poured their armaments into the heart of the Mediterranean, soon desisted from the exercise of piracy, and despaired of forcing this insurmountable barrier. When the gates of the Hellespont and Bosphorus were shut, the capital still enjoyed, within their spacious enclosure, every production which could supply the wants, or gratify the luxury, of its numerous inhabitants. The sea-coast of Thrace Edition: current; Page: [98] and Bithynia, which languish under the weight of Turkish oppression, still exhibits a rich prospect of vineyards, of gardens, and of plentiful harvests; and the Propontis has ever been renowned for an inexhaustible store of the most exquisite fish, that are taken in their stated seasons without skill and almost without labour.²¹¹ But, when the passages of the Straits were thrown open for trade, they alternately admitted the natural and artificial riches of the north and south, of the Euxine, and of the Mediterranean. Whatever rude commodities were collected in the forests of Germany and Scythia, as far as the sources of the Tanais and the Borysthenes; whatsoever was manufactured by the skill of Europe or Asia; the corn of Egypt, and the gems and spices of the farthest India, were brought by the varying winds into the port of Constantinople, which, for many ages, attracted the commerce of the ancient world.²¹²

The prospect of beauty, of safety, and of wealth, united in a single spot, was sufficient to justify the choice of Constantine. But, as some decent mixture of prodigy and fable has, in every age, been supposed to reflect a becoming majesty on the origin of great cities,²¹³ the emperor was desirous of

²⁰⁹Zosim. l. ii. p. 105 [c. 30]. Sozomen, l. ii. c. 3. Theophanes, p. 18. Nicephorus Callistus, l. vii. p. 48. Zonaras, tom. ii. l. xiii. p. 6 [3]. Zosimus places the new city between Ilium and Alexandria, but this apparent difference may be reconciled by the large extent of its circumference. [There is some doubt about the text of Zosimus, see Mendelssohn ad. loc.] Before the foundation of Constantinople, Thessalonica is mentioned by Cedrenus (p. 283) [i. 496, Bonn], and Sardica by Zonaras, as the intended capital. [Cp. also Anon. Continuator of Dion (prob. Peter the Patrician), Müller, F. H. G. 4, 199.] They both suppose, with very little probability, that the emperor, if he had not been prevented by a prodigy, would have repeated the mistake of the blind Chalcedonians.

²¹⁰Pocock[*Hebrew*]'s Description of the East, vol. ii. part ii. p. 127. His plan of the seven hills is clear and accurate. That traveller is seldom so satisfactory.

²¹¹See Belon, Observations, c. 72-76. Among a variety of different species, the Pelamides, a sort of Thunnies, were the most celebrated. We may learn from Polybius, Strabo, and Tacitus that the profits of the fishery constituted the principal revenue of Byzantium.

²¹²See the eloquent description of Busbequius, epistol. i. p. 64, Est in Europa; habet in conspectu Asiam, Ægyptum, Africamque a dextrâ: quæ tametsi contiguæ non sunt, maris tamen navigandique commoditate veluti junguntur. A sinistra vero Pontus est Euxinus, &c.

²¹³Datur hæc venia antiquitati, ut, miscendo humana divinis, primordia urbium augustiora faciat, T. Liv. in proem.

ascribing his resolution, not so much to the uncertain counsels of human policy, as to the infallible and eternal decrees of divine wisdom. In one of his laws he has been careful to instruct posterity that, in obedience to the commands of God, he laid the everlasting foundations of Constantinople:²¹⁴ and, though he has not condescended Edition: current; Page: [99] to relate in what manner the celestial inspiration was communicated to his mind, the defect of his modest silence has been liberally supplied by the ingenuity of succeeding writers, who describe the nocturnal vision which appeared to the fancy of Constantine, as he slept within the walls of Byzantium. The tutelar genius of the city, a venerable matron sinking under the weight of years and infirmities, was suddenly transformed into a blooming maid, whom his own hands adorned with all the symbols of imperial greatness.²¹⁵ The monarch awoke, interpreted the auspicious omen, and obeyed, without hesitation, the will of heaven. The day which gave birth to a city or colony was celebrated by the Romans with such ceremonies as had been ordained by a generous superstition;²¹⁶ and, though Constantine might omit some rites which savoured too strongly of their Pagan origin, yet he was anxious to leave a deep impression of hope and respect on the minds of the spectators. On foot, with a lance in his hand, the emperor himself led the solemn procession; and directed the line which was traced as the boundary of the destined capital; till the growing circumference was observed with astonishment by the assistants, who, at length, ventured to observe that he had already exceeded the most ample measure of a great city. *[Hebrew]* I shall still advance, *[Hebrew]*” replied Constantine, *[Hebrew]* till he, the invisible guide who marches before me, thinks proper to stop. *[Hebrew]*”²¹⁷ Without presuming to investigate the nature or motives of this extraordinary conductor, we shall content ourselves with the more humble Edition: current; Page: [100] task of describing the extent and limits of Constantinople.²¹⁸

In the actual state of the city, the palace and gardens of the Seraglio occupy the eastern promontory, the first of the seven hills, and cover about one hundred and fifty acres of our own measure. The seat of Turkish jealousy and despotism is erected on the foundations of a Grecian republic; but it may be supposed that the Byzantines were tempted by the conveniency of the harbour to extend their habitations on that side beyond the modern limits of the Seraglio. The new walls of Constantine stretched from the port to the Propontis across the enlarged breadth of the triangle, at the distance of fifteen stadia from the ancient fortification; and with the city of Byzantium they enclosed five of the seven hills, which, to the eyes of those who approach Constantinople, appear to rise above each other in beautiful order.²¹⁹ About a century after the death of the founder, the

²¹⁴He says in one of his laws, *pro commoditate Urbis quam æterno nomine, jubente Deo, donavimus*. Cod. Theodos. l. xiii. tit. v. leg. 7.

²¹⁵The Greeks, Theophanes, Cedrenus, and the author of the Alexandrian Chronicle, confine themselves to vague and general expressions. For a more particular account of the vision, we are obliged to have recourse to such Latin writers as William of Malmesbury. See Ducange, C. P. l. i. p. 24, 25.

²¹⁶See Plutarch in Romul. tom. i. p. 49, edit. Bryan. Among other ceremonies, a large hole, which had been dug for that purpose, was filled up with handfuls of earth, which each of the settlers brought from the place of his birth, and thus adopted his new country.

²¹⁷Philostorgius, l. ii. c. 9. This incident, though borrowed from a suspected writer, is characteristic and probable.

²¹⁸See in the *Mémoires de l'Académie*, tom. xxxv. p. 747-758, a dissertation of M. d'Anville on the extent of Constantinople. He takes the plan inserted in the *Imperium Orientale* of Banduri as the most complete; but by a series of very nice observations, he reduces the extravagant proportion of the scale, and instead of 9500, determines the circumference of the city as consisting of about 7800 French toises.

²¹⁹Codinus *Antiquitat. Const.* p. 12. He assigns the church of St. Antony as the boundary on the side of the harbour. It is mentioned in Ducange, l. iv. c. 6; but I have tried, without success, to discover the exact place where it was situated. [The Monastery of St. Antony, Kauleas, near the Neôrion (see Plan). The two hills outside Constantine's wall are

new building, extending on one side up the harbour, and on the other along the Propontis, already covered the narrow ridge of the sixth, and the broad summit of the seventh, hill. The necessity of protecting those suburbs from the incessant inroads of the barbarians engaged the younger Theodosius to surround his capital with an adequate and permanent enclosure of walls.²²⁰ From the Edition: current; Page: [none] Edition: current; Page: [101] eastern promontory to the golden gate, the extreme length of Constantinople was about three Roman miles;²²¹ the circumference measured between ten and eleven; and the surface might be computed as equal to about two thousand English acres. It is impossible to justify the vain and credulous exaggerations of modern travellers, who have sometimes stretched the limits of Constantinople over the adjacent villages of the European, and even of the Asiatic, coast.²²² But the suburbs of Pera and Galata, though situate beyond the harbour, may deserve to be considered as a part of the city;²²³ and this addition may perhaps authorise the measure of a Byzantine historian, who assigns sixteen Greek (about fourteen Roman) miles for the circumference of his native city.²²⁴ Such an extent may seem not unworthy Edition: current; Page: [102] of an imperial residence. Yet Constantinople must yield to Babylon and Thebes,²²⁵ to ancient Rome, to London, and even to Paris.²²⁶

Plan of Constantinople.

The master of the Roman world, who aspired to erect an eternal monument of the glories of his reign, could employ in the prosecution of that great work the wealth, the labour, and all that yet remained of the genius, of obedient millions. Some estimate may be formed of the expense bestowed with imperial liberality on the foundation of Constantinople, by the allowance of about two millions five hundred thousand pounds for the construction of the walls, the porticoes, and

v. and vi.; and the space between the wall and that of Theodosius was never included in the Regions of the city, but was called *exokionion* and was divided into seven quarters (*deuteron*, *triton*, &c.), except *Blachernæ*, which formed Region xiv. See Plan, and Mordtmann, *Esquisse top. de Constantinople*, p. 2.]

²²⁰The new wall of Theodosius was constructed in the year 413. In 447 it was thrown down by an earthquake, and rebuilt in three months by the diligence of the prefect Cyrus. The suburb of the *Blachernæ* was first taken into the city in the reign of Heraclius. Ducange *Const.* l. i. c. 10, 11. [The triple defence of Theodosius ii. can be clearly traced: (1) inner wall of Anthemius; (2) the outer wall of Cyrus; (3) a ditch and counterscarp, representing a third wall (Mordtmann, *ib.* p. 11).]

²²¹The measurement is expressed in the *Notitia* by 14,075 feet. It is reasonable to suppose that these were Greek feet; the proportion of which has been ingeniously determined by M. d[*Hebrew*]’Anville. He compares the 180 feet with the 78 Hashemite cubits which in different writers are assigned for the height of St. Sophia. Each of these cubits was equal to 27 French inches.

²²²The accurate Thévenot (l. i. c. 15) walked in one hour and three quarters round two of the sides of the triangle, from the Kiosk of the Seraglio to the seven towers. D[*Hebrew*]’Anville examines with care, and receives with confidence, this decisive testimony, which gives a circumference of ten or twelve miles. The extravagant computation of Tournefort (*Lettre XI.*) of thirty-four or thirty miles, without including *Scutari*, is a strange departure from his usual character.

²²³The *scyæ*, or fig-trees, formed the thirteenth region, and were very much embellished by Justinian. It has since borne the names of Pera and Galata. The etymology of the former is obvious; that of the latter is unknown. See Ducange *Const.* l. i. c. 22, and Gyllius de Byzant. l. iv. c. 10. [It seems probable that Galata was the quarter of Celtic mercenaries in 3rd century bc, and hence, like the country of Galatia, derived its name.]

²²⁴One hundred and eleven stadia, which may be translated into modern Greek miles each of seven stadia, or 660, sometimes only 600, French toises. See d[*Hebrew*]’Anville, *Mesures Itinéraires*, p. 53.

²²⁵When the ancient texts which describe the size of Babylon and Thebes are settled, the exaggerations reduced, and the measures ascertained, we find that those famous cities filled the great but not incredible circumference of about twenty-five or thirty miles. Compare d[*Hebrew*]’Anville, *Mém. de l[Hebrew]’Acad.* tom. xxxviii. p. 235, with his *Description de l[Hebrew]’Egypte*, p. 201, 202.

²²⁶If we divide Constantinople and Paris into equal squares of 50 French toises, the former contains 850, and the latter 1160, of those divisions.

the aqueducts.²²⁷ The forests that overshadowed the shores of the Euxine, and the celebrated quarries of white marble in the little island of Proconnesus, supplied an inexhaustible stock of materials, ready to be conveyed, by the convenience of a short water-carriage, to the harbour of Byzantium.²²⁸ A multitude of labourers and artificers urged the conclusion of the work with incessant toil: but the impatience of Constantine soon discovered that, in the decline of the arts, the skill as well as numbers of his architects bore a very unequal proportion to the greatness of his designs. The magistrates of the most distant provinces were therefore directed to institute schools, to appoint professors, and by the hopes of rewards and privileges, to engage in the study and practice Edition: current; Page: [103] of architecture a sufficient number of ingenious youths, who had received a liberal education.²²⁹ The buildings of the new city were executed by such artificers as the reign of Constantine could afford; but they were decorated by the hands of the most celebrated masters of the age of Pericles and Alexander. To revive the genius of Phidias and Lysippus surpassed indeed the power of a Roman emperor; but the immortal productions which they had bequeathed to posterity were exposed without defence to the rapacious vanity of a despot. By his commands the cities of Greece and Asia were despoiled of their most valuable ornaments.²³⁰ The trophies of memorable wars, the objects of religious veneration, the most finished statues of the gods and heroes, of the sages and poets of ancient times, contributed to the splendid triumph of Constantinople; and gave occasion to the remark of the historian Cedrenus,²³¹ who observes, with some enthusiasm, that nothing seemed wanting except the souls of the illustrious men whom those admirable monuments were intended to represent. But it is not in the city of Constantine, nor in the declining period of an empire when the human mind was depressed by civil and religious slavery, that we should seek for the souls of Homer and of Demosthenes.

During the siege of Byzantium, the conqueror had pitched his tent on the commanding eminence of the second hill. To perpetuate the memory of his success, he chose the same Edition: current; Page: [104] advantageous position for the principal Forum;²³² which appears to have been of a circular, or rather elliptical, form. The two opposite entrances formed triumphal arches; the porticoes, which enclosed it on every side, were filled with statues; and the centre of the Forum was occupied by a lofty column, of which a mutilated fragment is now degraded by the appellation of the burnt pillar. This column was erected on a pedestal of white marble twenty feet high; and was composed of ten pieces of porphyry, each of which measured above ten feet in height and

²²⁷Six hundred centenaries, or sixty thousand pounds weight of gold. This sum is taken from Codinus *Antiquit. Const.* p. 11; but, unless that contemptible author had derived his information from some purer sources, he would probably have been unacquainted with so obsolete a mode of reckoning.

²²⁸For the forests of the Black Sea, consult Tournefort, *Lettre XVI.*; for the marble quarries of Proconnesus, see Strabo, l. xiii. p. 588. The latter had already furnished the materials of the stately buildings of Cyzicus.

²²⁹See the *Codex Theodos.* l. xiii. tit. iv. leg. 1. This law is dated in the year 334, and was addressed to the prefect of Italy, whose jurisdiction extended over Africa. The commentary of Godefroy on the whole title well deserves to be consulted.

²³⁰*Constantinopolis dedicatur pœne omnium urbium nuditate.* Hieronym. *Chron.* p. 181. See Codinus, p. 8, 9. The author of the *Antiquitat. Const.* l. iii. (apud Banduri *Imp. Orient. tom. i.* p. 41), enumerates Rome, Sicily, Antioch, Athens, and a long list of other cities. The provinces of Greece and Asia Minor may be supposed to have yielded the richest booty.

²³¹*Hist. Compend.* p. 369 [i. 648, Bonn]. He describes the statue, or rather bust, of Homer with a degree of taste which plainly indicates that Cedrenus copied the style of a more fortunate age.

²³²*Zosim.* l. ii. p. 106 [c. 30]. *Chron. Alexandrin. vel Paschal,* p. 284 [528, Bonn]. Ducange *Const.* l. i. c. 24. Even the last of those writers seems to confound the Forum of Constantine with the Augusteum, or court of the palace. I am not satisfied whether I have properly distinguished what belongs to the one and the other. [See App. 4.]

about thirty-three in circumference.²³³ On the summit of the pillar, above one hundred and twenty feet from the ground, stood the colossal statue of Apollo. It was of bronze, had been transported either from Athens or from a town of Phrygia, and was supposed to be the work of Pheidias. The artist had represented the god of day, or, as it was afterwards interpreted, the emperor Constantine himself, with a sceptre in his right hand, the globe of the world in his left, and a crown of rays glittering on his head.²³⁴ The Circus, or Hippodrome, was a stately building about four hundred paces in length and one hundred in breadth.²³⁵ The space between the two metæ or goals was filled with statues and obelisks; and we may still Edition: current; Page: [105] remark a very singular fragment of antiquity: the bodies of three serpents, twisted into one pillar of brass. Their triple heads had once supported the golden tripod which, after the defeat of Xerxes, was consecrated in the temple of Delphi by the victorious Greeks.²³⁶ The beauty of the Hippodrome has been long since defaced by the rude hands of the Turkish conquerors; but, under the similar appellation of Atmeidan, it still serves as a place of exercise for their horses. From the throne, whence the emperor viewed the Circensian games, a winding staircase²³⁷ descended to the palace; a magnificent edifice, which scarcely yielded to the residence of Rome itself, and which, together with the dependent courts, gardens, and porticoes, covered a considerable extent of ground upon the banks of the Propontis between the Hippodrome and the church of St. Sophia.²³⁸ We might likewise celebrate the baths, which still retained the name of Zeuxippus, after they Edition: current; Page: [106] had been enriched, by the munificence of Constantine, with lofty columns, various marbles, and above threescore statues of bronze.²³⁹ But we should deviate from the design of this history, if we

²³³The most tolerable account of this column is given by Pocock. *Description of the East*, vol. ii. part ii. p. 131. But it is still in many instances perplexed and unsatisfactory.

²³⁴Ducange *Const.* l. i. c. 24, p. 76, and his notes ad *Alexiad.* p. 382. The statue of Constantine or Apollo was thrown down under the reign of Alexis Comnenus.

²³⁵Tournefort (*Lettre XII.*) computes the Atmeidan at four hundred paces. If he means geometrical paces of five feet each, it was three hundred toises in length, about forty more than the great Circus of Rome. See d[*Hebrew*]'Anville, *Mesures Itinéraires*, p. 73. [According to the measurements of M. Paspâtès the length was 320 yards long, 79 yards broad.]

²³⁶The guardians of the most holy relics would rejoice if they were able to produce such a chain of evidence as may be alleged on this occasion. See Banduri ad *Antiquitat.* *Const.* p. 668. Gyllius de Byzant. l. ii. c. 13. 1. The original consecration of the tripod and pillar in the temple of Delphi may be proved from Herodotus and Pausanias. 2. The Pagan Zosimus agrees with the three ecclesiastical historians, Eusebius, Socrates, and Sozomen, that the sacred ornaments of the temple of Delphi were removed to Constantinople by the order of Constantine; and among these the serpentine pillar of the Hippodrome is particularly mentioned. 3. All the European travellers who have visited Constantinople, from Buondelmonte to Pocock, describe it in the same place, and almost in the same manner; the differences between them are occasioned only by the injuries which it has sustained from the Turks. Mahomet the Second broke the under-jaw of one of the serpents with a stroke of his battle-axe. Thévenot, l. i. c. 17. [Zosimus mentions only a tripod of Apollo with a statue of the god on it (ii. 31), but not the serpent coils, and therefore (so Mendelssohn) not the Plataean dedication.]

²³⁷The Latin name Cochlea was adopted by the Greeks, and very frequently occurs in the Byzantine history. Ducange *Const.* l. ii. c. i. p. 104.

²³⁸There are three topographical points which indicate the situation of the palace. 1. The staircase, which connected it with the Hippodrome or Atmeidan. 2. A small artificial port on the Propontis, from whence there was an easy ascent, by a flight of marble steps, to the gardens of the palace. 3. The Augusteum was a spacious court, one side of which was occupied by the front of the palace, and another by the church of St. Sophia. [See App. 4.]

²³⁹Zeuxippus was an epithet of Jupiter, and the baths were a part of old Byzantium. The difficulty of assigning their true situation has not been felt by Ducange. History seems to connect them with St. Sophia and the palace; but the original plan, inserted in Banduri, places them on the other side of the city, near the harbour. [They were close to the Palace and Hippodrome, on south side of the Augusteum, see App. 4.] For their beauties, see Chron. Paschal. p. 285, and Gyllius de Byzant. l. ii. c. 7. Christodorus (see *Antiquitat.* *Const.* l. vii.) composed inscriptions in verse for each of the statues. He was a Theban poet in genius as well as in birth:

attempted minutely to describe the different buildings or quarters of the city. It may be sufficient to observe that whatever could adorn the dignity of a great capital, or contribute to the benefit or pleasure of its numerous inhabitants, was contained within the walls of Constantinople. A particular description, composed about a century after its foundation, enumerates a capitol or school of learning, a circus, two theatres, eight public, and one hundred and fifty-three private, baths, fifty-two porticoes, five granaries, eight aqueducts or reservoirs of water, four spacious halls for the meetings of the senate or courts of justice, fourteen churches, fourteen palaces, and four thousand three hundred and eighty-eight houses, which, for their size or beauty, deserved to be distinguished from the multitude of plebeian habitations.²⁴⁰

The populousness of his favoured city was the next and most serious object of the attention of its founder. In the dark ages which succeeded the translation of the empire, the remote and the immediate consequences of that memorable event were strangely confounded by the vanity of the Greeks and the credulity of the Latins.²⁴¹ It was asserted and believed Edition: current; Page: [107] that all the noble families of Rome, the senate, and the equestrian order, with their innumerable attendants, had followed their emperor to the banks of the Propontis; that a spurious race of strangers and plebeians was left to possess the solitude of the ancient capital; and that the lands of Italy, long since converted into gardens, were at once deprived of cultivation and inhabitants.²⁴² In the course of this history, such exaggerations will be reduced to their just value: yet, since the growth of Constantinople cannot be ascribed to the general increase of mankind and of industry, it must be admitted that this artificial colony was raised at the expense of the ancient cities of the empire. Many opulent senators of Rome, and of the Eastern provinces, were probably invited by Constantine to adopt for their country the fortunate spot which he had chosen for his own residence. The invitations of a master are scarcely to be distinguished from commands; and the liberality of the emperor obtained a ready and cheerful obedience. He bestowed on his favourites the palaces which he had built in the several quarters of the city, assigned them lands and pensions for the support of their dignity,²⁴³ and alienated the demesnes of Pontus and Asia, to grant hereditary estates by the easy tenure of maintaining a house Edition: current; Page: [108] in the capital.²⁴⁴ But these encouragements and obligations soon became superfluous, and were

Bœotum in crasso jurares aëre natum.

²⁴⁰See the Notitia. Rome only reckoned 1780 large houses, domus; but the word must have had a more dignified signification. No insulæ are mentioned at Constantinople. The old capital consisted of 424 streets, the new of 322.

²⁴¹Liutprand, Legatio ad Imp. Nicephorum, p. 153 [c. 62]. The modern Greeks have strangely disfigured the antiquities of Constantinople. We might excuse the errors of the Turkish or Arabian writers; but it is somewhat astonishing that the Greeks, who had access to the authentic materials preserved in their own language, should prefer fiction to truth and loose tradition to genuine history. In a single page of Codinus we may detect twelve unpardonable mistakes: the reconciliation of Severus and Niger, the marriage of their son and daughter, the siege of Byzantium by the Macedonians, the invasion of the Gauls, which recalled Severus to Rome, the sixty years which elapsed from his death to the foundation of Constantinople, &c.

²⁴²Montesquieu, Grandeur et Décadence des Romains, c. 17.

²⁴³Themist. Orat. iii. p. 48. edit Hardouin. Sozomen. l. ii. c. 3. Zosim. l. ii. p. 107 [32]. Anonym. Valesian. p. 715 [§ 30]. If we could credit Codinus (p. 10), Constantine built houses for the senators on the exact model of their Roman palaces, and gratified them, as well as himself, with the pleasure of an agreeable surprise; but the whole story is full of fictions and inconsistencies.

²⁴⁴The law by which the younger Theodosius, in the year 438, abolished this tenure may be found among the Novellæ of that emperor at the end of the Theodosian Code, tom. vi. nov. 12. M. de Tillemont (Hist. des Empereurs, tom. iv. p. 371), has evidently mistaken the nature of these estates. With a grant from the Imperial demesnes, the same condition was accepted as a favour which would justly have been deemed a hardship, if it had been imposed upon private property.

gradually abolished. Wherever the seat of government is fixed, a considerable part of the public revenue will be expended by the prince himself, by his ministers, by the officers of justice, and by the domestics of the palace. The most wealthy of the provincials will be attracted by the powerful motives of interest and duty, of amusement and curiosity. A third and more numerous class of inhabitants will insensibly be formed, of servants, of artificers, and of merchants, who derive their subsistence from their own labour and from the wants or luxury of the superior ranks. In less than a century, Constantinople disputed with Rome itself the pre-eminence of riches and numbers. New piles of buildings, crowded together with too little regard to health or convenience, scarcely allowed the intervals of narrow streets for the perpetual throng of men, of horses, and of carriages. The allotted space of ground was insufficient to contain the increasing people; and the additional foundations, which, on either side, were advanced into the sea, might alone have composed a very considerable city.²⁴⁵

The frequent and regular distributions of wine and oil, of corn or bread, of money or provisions, had almost exempted the poorer citizens of Rome from the necessity of labour. The magnificence of the first Cæsars was in some measure Edition: current; Page: [109] imitated by the founder of Constantinople:²⁴⁶ but his liberality, however it might excite the applause of the people, has incurred the censure of posterity. A nation of legislators and conquerors might assert their claim to the harvests of Africa, which had been purchased with their blood; and it was artfully contrived by Augustus that, in the enjoyment of plenty, the Romans should lose the memory of freedom. But the prodigality of Constantine could not be excused by any consideration either of public or private interest; and the annual tribute of corn imposed upon Egypt for the benefit of his new capital was applied to feed a lazy and indolent populace, at the expense of the husbandmen of an industrious province.²⁴⁷ Some other regulations of this emperor are less liable to blame, but they are less deserving of notice. He divided Constantinople into fourteen regions or quarters,²⁴⁸ dignified the public council with the appellation of Senate,²⁴⁹ Edition: current; Page: [110] communicated to

²⁴⁵The passages of Zosimus, of Eunapius, of Sozomen, and of Agathias, which relate to the increase of buildings and inhabitants at Constantinople, are collected and connected by Gyllius de Byzant. l. i. c. 3. Sidonius Apollinaris (in Panegy. Anthem. 56, p. 290, edit. Sirmond) describes the moles that were pushed forwards into the sea; they consisted of the famous Puzzolan sand, which hardens in the water.

²⁴⁶Sozomen, l. ii. c. 3, Philostorg. l. ii. c. 9, Codin. Antiq. Const. p. 8. It appears by Socrates, l. ii. c. 13, that the daily allowances of the city consisted of eight myriads of σίτου, which we may either translate with Valesius by the words modii of corn or consider as expressive of the number of loaves of bread. [Cp. also Zosimus, ii. 32; Photius, p. 475, a. 39, ed. Bekker; Codinus, de or cp. p. 16, 4, ed. Bekk. ([Ἡεβρεω]ρτους [Ἡεβρεω]μερησίους). We must understand loaves, not modii (nor medimni, as Finlay thought; 1 med. = 6 mod.). See E. Gebhardt, das Verpflegungswesen von Rom und Constantinopel, 1881.]

²⁴⁷See Cod. Theodos. l. xiii. and xiv. [16] and Cod. Justinian. Edict. xii. tom. ii. p. 648, edit. Genev. See the beautiful complaint of Rome in the poem of Claudian de Bell. Gildonico, ver. 46-64.

Cum subiit par Roma mihi divisaque sumsit

Æquales aurora togas: Ægyptia rura

In partem cessere novam.

[Cp. also Libanius περ[Ἡεβρεω] των [Ἡεβρεω]ερ. 184, ed. Reiske; Themistius, Or. 4, p. 52. C.I.L., i. p. 394.]

²⁴⁸The regions of Constantinople are mentioned in the code of Justinian, and particularly described in the Notitia of the younger Theodosius; but, as the four last of them are not included within the wall of Constantine, it may be doubted whether this division of the city should be referred to the founder.

²⁴⁹Senatum constituit secundi ordinis; Claros vocavit. Anon. Valesian. p. 715 [§ 30]. The senators of old Rome were styled Clarissimi. See a curious note of Valesius ad Ammian. Marcellin. xxii. 9. From the 11th epistle of Julian, it should seem that the place of senator was considered as a burthen rather than as an honour; but the Abbé de la Bléterie (Vie de Jovien, t. ii. p. 371) has shewn that this epistle could not relate to Constantinople. Might we not read, instead of the celebrated name of Βυζαντίους, the obscure but more probable word Βισανθηνοίς? Bisanthe or Rhœdestus, now

the citizens the privileges of Italy,²⁵⁰ and bestowed on the rising city the title of Colony, the first and most favoured daughter of ancient Rome. The venerable parent still maintained the legal and acknowledged supremacy which was due to her age, to her dignity, and to the remembrance of her former greatness.²⁵¹

As Constantine urged the progress of the work with the impatience of a lover, the walls, the porticoes, and the principal edifices, were completed in a few years, or, according to another account, in a few months;²⁵² but this extraordinary Edition: current; Page: [111] diligence should excite the less admiration, since many of the buildings were finished in so hasty and imperfect a manner that, under the succeeding reign, they were preserved with difficulty from impending ruin.²⁵³ But, while they displayed the vigour and freshness of youth, the founder prepared to celebrate the dedication of his city.²⁵⁴ The games and largesses which crowned the pomp of this memorable festival may easily be supposed; but there is one circumstance of a more singular and permanent nature, which ought not entirely to be overlooked. As often as the birthday of the city returned, the statue of Constantine, framed, by his order, of gilt wood, and bearing in its right hand a small image of the genius of the place, was erected on a triumphal car. The guards, carrying white tapers, and clothed in their richest apparel, accompanied the solemn procession as it moved through the Hippodrome. When it was opposite to the throne of the reigning emperor, he rose from his seat, and with grateful reverence adored the memory of his predecessor.²⁵⁵ At the festival of the dedication, an edict, engraved on a column of marble, bestowed the title of Second or New

Rhodosto, was a small maritime city of Thrace. See Stephan. Byz. de Urbibus, p. 225, and Cellar Geograph. tom. i. p. 849. [Certain gold medallions with Emperor standing and the legend *Senatus*, on the reverse, have been shown to refer to the foundation of the new senate (Kenner, Wiener numism. Zeit., 3, 117). Hertlein, p. 491, keeps Βυζαντιοίς but notices Gibbon[*Hebrew*]'s conjecture.]

²⁵⁰Cod. Theodos. l. xiv. 13. The Commentary of Godefroy (t. v. p. 220) is long, but perplexed; nor indeed is it easy to ascertain in what the *Jus Italicum* could consist, after the freedom of the city had been communicated to the whole empire. [*Jus Italicum* gave exemption from tributum or landtax, [*Hebrew*] an exemption which Italy herself had recently lost.]

²⁵¹Julian (Orat. i. p. 8) celebrates Constantinople as not less superior to all other cities than she was inferior to Rome itself. His learned commentator (Spanheim, p. 75, 76), justifies this language by several parallel and contemporary instances. Zosimus, as well as Socrates and Sozomen, flourished after the division of the empire between the two sons of Theodosius, which established a perfect equality between the old and the new capital.

²⁵²Codinus (Antiquitat. p. 8), affirms that the foundations of Constantinople were laid in the year of the world 5837 (ad 329), on the 26th of September, and that the city was dedicated the 11th of May 5838 (ad 330). He connects these dates with several characteristic epochs, but they contradict each other; the authority of Codinus is of little weight, and the space which he assigns must appear insufficient. The term of ten years is given us by Julian (Orat. i. p. 8), and Spanheim labours to establish the truth of it (p. 69-75), by the help of two passages from Themistius (Orat. iv. p. 58), and of Philostorgius (l. ii. c. 9), which form a period from the year 324 to the year 334. Modern critics are divided concerning this point of chronology, and their different sentiments are very accurately discussed by Tillemont, Hist. des Empereurs, tom. iv. p. 619-625. [The date of dedication, 11th May 330, is certain, see Idatius, Descr. Consul., Chron. Pasch. p. 285, Hesychius, F.H.G. 4, p. 154, cp. Malalas, p. 322, Cedren. i. p. 497. The foundation of the Western Wall was laid Nov. 4, 326, acc. to Anon. Band. i. 3.]

²⁵³Themistius, Orat. iii. p. 47. Zosim. l. ii. p. 108. Constantine himself, in one of his laws (Cod. Theod. l. xv. tit. 1), betrays his impatience.

²⁵⁴Cedrenus and Zonaras, faithful to the mode of superstition which prevailed in their own times, assure us that Constantinople was consecrated to the Virgin Mother of God.

²⁵⁵The earliest and most complete account of this extraordinary ceremony may be found in the Alexandrian Chronicle, p. 285 [Chr. Pasch. p. 529-30]. Tillemont, and the other friends of Constantine, who are offended with the air of Paganism which seems unworthy of a Christian Prince, had a right to consider it as doubtful, but they were not authorised to omit the mention of it.

Rome on the city of Constantine.²⁵⁶ But the name of Constantinople²⁵⁷ has prevailed over that honourable epithet; and, after the Edition: current; Page: [112] revolution of fourteen centuries, still perpetuates the fame of its author.²⁵⁸

The foundation of a new capital is naturally connected with the establishment of a new form of civil and military administration. The distinct view of the complicated system of policy, introduced by Diocletian, improved by Constantine, and completed by his immediate successors, may not only amuse the fancy by the singular picture of a great empire, but will tend to illustrate the secret and internal causes of its rapid decay. In the pursuit of any remarkable institution, we may be frequently led into the more early or the more recent times of the Roman history; but the proper limits of this inquiry will be included within a period of about one hundred and thirty years, from the accession of Constantine to the publication of the Theodosian code;²⁵⁹ from which, as well as from the Notitia of the East and West,²⁶⁰ we derive the most copious and authentic information of the state of the empire. This variety of objects will suspend, for some time, the course of the narrative; but the interruption will be censured only by those readers who are insensible to the importance of laws and manners, while they peruse, with eager curiosity, the Edition: current; Page: [113] transient intrigues of a court, or the accidental event of a battle.

The manly pride of the Romans, content with substantial power, had left to the vanity of the East the forms and ceremonies of ostentatious greatness.²⁶¹ But when they lost even the semblance of those virtues which were derived from their ancient freedom, the simplicity of Roman manners was insensibly corrupted by the stately affectation of the courts of Asia. The distinctions of personal merit and influence, so conspicuous in a republic, so feeble and obscure under a monarchy, were abolished by the despotism of the emperors; who substituted in their room a severe subordination of rank and office, from the titled slaves, who were seated on the steps of the throne, to the meanest instruments of arbitrary power. This multitude of abject dependants was interested in the support of the actual government, from the dread of a revolution, which might at once confound their hopes and intercept the reward of their services. In this divine hierarchy (for such it is frequently styled) every rank was marked with the most scrupulous exactness, and its dignity was displayed in a variety of trifling and solemn ceremonies, which it was a study to learn and a sacrilege to neglect.²⁶²

²⁵⁶Sozomen, l. ii. c. 2. Ducange, C. P. l. i. c. 6. Velut ipsius Romæ filiam, is the expression of Augustin. de Civitat. Dei, l. v. c. 25.

²⁵⁷Eutropius, l. x. c. 8. Julian. Orat. i. p. 8. Ducange, C. P. l. i. c. 5. The name of Constantinople is extant on the medals of Constantine.

²⁵⁸The lively Fontenelle (Dialogues des Morts, xii.) affects to deride the vanity of human ambition, and seems to triumph in the disappointment of Constantine, whose immortal name is now lost in the vulgar appellation of Istambol, a Turkish corruption of εἰς τ[ῆ]ς πόλιν. Yet the original name is still preserved, 1. By the nations of Europe. 2. By the modern Greeks. 3. By the Arabs, whose writings are diffused over the wide extent of their conquests in Asia and Africa. See d[Hebrew]'Herbelot Bibliothèque Orientale, p. 275. 4. By the more learned Turks, and by the emperor himself in his public mandates. Cantemir[Hebrew]'s History of [Growth and Decay of] the Othman [Ottoman] Empire, p. 51 [Eng. Tr., 1734].

²⁵⁹The Theodosian code was promulgated ad 438. See the Prolegomena of Godefroy, c. i. p. 185.

²⁶⁰Pancirolos, in his elaborate Commentary, assigns to the Notitia a date almost similar to that of the Theodosian code: but his proofs, or rather conjectures, are extremely feeble. I should be rather inclined to place this useful work between the final division of the empire (ad 395), and the successful invasion of Gaul by the Barbarians (ad 407). See Histoire des anciens Peuples de l[Hebrew]'Europe, tom. vii. p. 40. [Cp. App. 6.]

²⁶¹Scilicet externæ superbiæ sueto, non inerat notitia nostri (perhaps nostræ); apud quos vis Imperii valet, inania transmittuntur. Tacit. Annal. xv. 31. The gradation from the style of freedom and simplicity to that of form and servitude may be traced in the Epistles of Cicero, of Pliny, and of Symmachus.

²⁶²The emperor Gratian, after confirming a law of precedence published by Valentinian, the father of his Divinity, thus

The purity of the Latin language was debased by adopting, in the intercourse of pride and flattery, a profusion of epithets, which Tully would scarcely have understood, and which Augustus would have rejected with indignation. The principal officers of the empire were saluted, even by the sovereign himself, with the Edition: current; Page: [114] deceitful titles of your Sincerity, your Gravity, your Excellency, your Eminence, your sublime and wonderful Magnitude, your illustrious and magnificent Highness.²⁶³ The codicils or patents of their office were curiously emblazoned with such emblems as were best adapted to explain its nature and high dignity; the image or portrait of the reigning emperors; a triumphal car; the book of mandates placed on a table, covered with a rich carpet, and illuminated by four tapers; the allegorical figures of the provinces which they governed; or the appellations and standards of the troops whom they commanded. Some of these official ensigns were really exhibited in their hall of audience; others preceded their pompous march whenever they appeared in public; and every circumstance of their demeanour, their dress, their ornaments, and their train was calculated to inspire a deep reverence for the representatives of supreme majesty. By a philosophic observer, the system of the Roman government might have been mistaken for a splendid theatre, filled with players of every character and degree, who repeated the language, and imitated the passions, of their original model.²⁶⁴

All the magistrates of sufficient importance to find a place in the general state of the empire were accurately divided into three classes. 1. The Illustrious. 2. The Spectabiles, or Respectable. And, 3. The Clarissimi; whom we may translate by the word Honourable. In the times of Roman simplicity, the last-mentioned epithet was used only as a vague expression of deference, till it became at length the peculiar and appropriated title of all who were members of the senate,²⁶⁵ Edition: current; Page: [115] and consequently of all who, from that venerable body, were selected to govern the provinces. The vanity of those who, from their rank and office, might claim a superior distinction above the rest of the senatorial order was long afterwards indulged with the new appellation of Respectable; but the title of Illustrious was always reserved to some eminent personages who were obeyed or revered by the two subordinate classes. It was communicated only, I. To the consuls and patricians; II. To the prætorian prefects, with the prefects of Rome and Constantinople; III. To the masters general of the cavalry and the infantry; and, IV. To the seven ministers of the palace, who exercised their sacred functions about the person of the emperor.²⁶⁶ Among those illustrious magistrates who were esteemed co-ordinate with each other, the seniority of appointment gave place to the union of dignities.²⁶⁷ By the expedient of honorary codicils, the emperors, who were

continues: Siquis igitur indebitum sibi locum usurpaverit, nulla se ignoracione defendat; sitque plane sacrilegii reus, qui divina præcepta neglexerit. Cod. Theod. l. vi. tit. v. leg. 2.

²⁶³Consult the Notitia Dignitatum, at the end of the Theodosian Code, tom. vi. p. 316.

²⁶⁴Pancirolos ad Notitiam utriusque Imperii, p. 39. But his explanations are obscure, and he does not sufficiently distinguish the painted emblems from the effective ensigns of office.

²⁶⁵In the Pandects, which may be referred to the reigns of the Antonines, Clarissimus is the ordinary and legal title of a senator. [Another important title is that of vir consularis (origin uncertain). All clarissimi who were admitted into the senate had this rank, which must be carefully distinguished from consularis in the old sense of ex-consul. Some provincial governorships could only be held by consulares; hence the Consularis of *[Hebrew]* &c.]

²⁶⁶Pancirolos. p. 12-17. I have not taken any notice of the two inferior ranks, Perfectissimus and Egregius, which were given to many persons who were not raised to the senatorial dignity. [For example, the urban prefect was perfectissimus; likewise the governors of dioceses under Diocletian and Constantine. But, as these and lesser officials were promoted to senatorial rank, they became clarissimi or spectabiles. The rank of egregius is not found after Constantine; that of perfectissimus lingered longer and was still borne by the governor of Dalmatia in the early years of the fifth century.]

²⁶⁷Cod. Theodos. l. vi. tit. vi. The rules of precedency are ascertained with the most minute accuracy by the emperors and illustrated with equal prolixity by their learned interpreter.

fond of multiplying their favours, might sometimes gratify the vanity, though not the ambition, of impatient courtiers.²⁶⁸

I. As long as the Roman consuls were the first magistrates of a free state, they derived their right to power from the choice of the people. As long as the emperors condescended to disguise the servitude which they imposed, the consuls were still elected by the real or apparent suffrage of the senate. From the reign of Diocletian, even these vestiges of liberty Edition: current; Page: [116] were abolished, and the successful candidates who were invested with the annual honours of the consulship affected to deplore the humiliating condition of their predecessors. The Scipios and the Catos had been reduced to solicit the votes of Plebeians, to pass through the tedious and expensive forms of a popular election, and to expose their dignity to the shame of a public refusal; while their own happier fate had reserved them for an age and government in which the rewards of virtue were assigned by the unerring wisdom of a gracious sovereign.²⁶⁹ In the epistles which the emperor addressed to the two consuls elect, it was declared that they were created by his sole authority.²⁷⁰ Their names and portraits, engraved on gilt tablets of ivory, were dispersed over the empire as presents to the provinces, the cities, the magistrates, the senate, and the people.²⁷¹ Their solemn inauguration was performed at the place of the imperial residence; and, during a period of one hundred and twenty years, Rome was constantly deprived of the presence of her ancient magistrates.²⁷² On the morning of the first of January, the consuls assumed the ensigns of their dignity. Their dress was a robe of purple, embroidered in silk and gold, and sometimes ornamented Edition: current; Page: [117] with costly gems.²⁷³ On this solemn occasion they were attended by the most eminent officers of the state and army, in the habit of senators; and the useless fasces, armed with the once formidable axes, were borne before them by the lictors.²⁷⁴ The procession moved from the palace²⁷⁵ to the Forum, or principal square of the city; where the consuls ascended

²⁶⁸Cod. Theodos. l. vi. tit. xxii.

²⁶⁹Ausonius (in Gratianum Actione) basely expatiates on this unworthy topic, which is managed by Mamertinus (Panegy. Vet. xi. 16, 19) with somewhat more freedom and ingenuity.

²⁷⁰Cum de Consulibus in annum creandis solus mecum volutarem . . . te Consulem et designavi, et declaravi, et priorem nuncupavi; are some of the expressions employed by the emperor Gratian to his preceptor the poet Ausonius.

²⁷¹Immanesque . . . dentes,

Qui secti ferro in tabulas auroque micantes

Inscripti rutilum cælato consule nomen

Per procures et vulgus eant.

Claud. in ii. Cons. Stilichon. 346.

²⁷²Consule lætatur post plurima sæcula viso

Pallanteus apex: agnoscunt rostra curules

Auditas quondam proavis: desuetaque cingit

Regius auratis Fora fascibus Ulpia lictor.

Claud. in vi. Cons. Honorii, 643.

²⁷³See Claudian in Cons. Prob. et Olybrii, 178, &c., and in iv. Cons. Honorii, 585, &c.; though in the latter it is not easy to separate the ornaments of the emperor from those of the consul. Ausonius received, from the liberality of Gratian, a vestis palmata, or robe of state, in which the figure of the emperor Constantius was embroidered.

²⁷⁴Cernis ut armorum procures legumque potentes

Patricios sumunt habitus, et more Gabino

Discolor incedit legio positisque parumper

Bellorum signis sequitur vexilla Quirini?

Lictori cedunt aquilæ, ridetque togatus

Miles, et in mediis effulget curia castris.

Claud. in iv. Cons. Honorii, 5.

²⁷⁵See Valesius ad Ammian. Marcellin. l. xxii. c. 7.

their tribunal, and seated themselves in the curule chairs, which were framed after the fashion of ancient times. They immediately exercised an act of jurisdiction, by the manumission of a slave, who was brought before them for that purpose; and the ceremony was intended to represent the celebrated action of the elder Brutus, the author of liberty and of the consulship, when he admitted among his fellow-citizens the faithful Vindex, who had revealed the conspiracy of the Tarquins.²⁷⁶ The public festival was continued during Edition: current; Page: [118] several days in all the principal cities; in Rome, from custom; in Constantinople, from imitation; in Carthage, Antioch, and Alexandria, from the love of pleasure and the superfluity of wealth.²⁷⁷ In the two capitals of the empire the annual games of the theatre, the circus, and the amphitheatre,²⁷⁸ cost four thousand pounds of gold, (about) one hundred and sixty thousand pounds sterling: and if so heavy an expense surpassed the faculties or the inclination of the magistrates themselves, the sum was supplied from the imperial treasury.²⁷⁹ As soon as the consuls had discharged these customary duties, they were at liberty to retire into the shade of private life, and to enjoy, during the remainder of the year, the undisturbed contemplation of their own greatness. They no longer presided in the national councils; they no longer executed the resolutions of peace or war. Their abilities (unless they were employed in more effective offices) were of little moment; and their names served only as the legal date of the year in which they had filled the chair of Marius and of Cicero. Yet it was still felt and acknowledged, in the last period of Roman servitude, that this empty name might be compared, and even preferred, to the possession of substantial power. The title of consul was still the most splendid object of ambition, the noblest reward of virtue and loyalty. The emperors themselves, who disdained the faint shadow of the republic, were conscious that they acquired an additional splendour and majesty Edition: current; Page: [119] as often as they assumed the annual honours of the consular dignity.²⁸⁰

The proudest and most perfect separation which can be found in any age or country between the nobles and the people is perhaps that of the Patricians and the Plebeians, as it was established in the first age of the Roman republic. Wealth and honours, the offices of the state, and the ceremonies of religion, were almost exclusively possessed by the former; who, preserving the purity of their blood with the most insulting jealousy,²⁸¹ held their clients in a condition of specious vassalage.

²⁷⁶Auspice mox læto [laetum] sonuit clamore tribunal

Te fastos ineunte quater; sollemnia ludit

Omnia [omina] libertas: deductum Vindice morem

Lex servat [celebrat], famulusque jugo laxatus erili

Ducitur, et grato remeat securior ictu.

Claud. in iv. Cons. Honorii, 611.

²⁷⁷Celebrant quidem solemnes istos dies, omnes ubique urbes quæ sub legibus agunt; et Roma de more, et Constantinopolis de imitatione, et Antiochia pro luxu, et distincta Carthago, et domus fluminis Alexandria sed Treviri Principis beneficio. Ausonius in Grat. Actione.

²⁷⁸Claudian (in Cons. Mall. Theodori, 279-331) describes, in a lively and fanciful manner, the various games of the circus, the theatre, and the amphitheatre, exhibited by the new consul. The sanguinary combats of gladiators had already been prohibited.

²⁷⁹Procopius in Hist. Arcana, c. 26. [20 centenaria = 2000 (not 4000) lbs. of gold.]

²⁸⁰In Consulatu honos sine labore suscipitur (Mamertin. in Panegy. Vet. xi. 2). This exalted idea of the consulship is borrowed from an Oration (iii. p. 107) pronounced by Julian in the servile court of Constantius. See the Abbé de la Bléterie (*Mémoires de l'Académie*, tom. xxiv. p. 289), who delights to pursue the vestiges of the old constitution, and who sometimes finds them in his copious fancy. [Before the end of the fourth century, the arrangement was made that one consul was appointed by the Western, the other by the Eastern, emperor.]

²⁸¹Intermarriages between the Patricians and Plebeians were prohibited by the laws of the XII. Tables; and the uniform operations of human nature may attest that the custom survived the law. See in Livy (lv. 1-6), the pride of family urged

But these distinctions, so incompatible with the spirit of a free people, were removed, after a long struggle, by the persevering efforts of the Tribunes. The most active and successful of the Plebeians accumulated wealth, aspired to honours, deserved triumphs, contracted alliances, and, after some generations, assumed the pride of ancient nobility.²⁸² The Patrician families, on the other hand, whose original number was never recruited till the end of the commonwealth, either failed in the ordinary course of nature, or were extinguished Edition: current; Page: [120] in so many foreign and domestic wars, or, through a want of merit or fortune, insensibly mingled with the mass of the people.²⁸³ Very few remained who could derive their pure and genuine origin from the infancy of the city, or even from that of the republic, when Cæsar and Augustus, Claudius and Vespasian, created from the body of the senate a competent number of new Patrician families, in the hope of perpetuating an order which was still considered as honourable and sacred.²⁸⁴ But these artificial supplies (in which the reigning house was always included) were rapidly swept away by the rage of tyrants, by frequent revolutions, by the change of manners, and by the intermixture of nations.²⁸⁵ Little more was left when Constantine ascended the throne than a vague and imperfect tradition that the Patricians had once been the first of the Romans. To form a body of nobles, whose influence may restrain, while it secures, the authority of the monarch, would have been very inconsistent with the character and policy of Constantine; but, had he seriously entertained such a design, it might have exceeded the measure of his power to ratify, by an arbitrary edict, an institution Edition: current; Page: [121] which must expect the sanction of time and of opinion. He revived, indeed, the title of Patricians, but he revived it as a personal, not as an hereditary, distinction. They yielded only to the transient superiority of the annual consuls; but they enjoyed the pre-eminence over all the great officers of state, with the most familiar access to the person of the prince. This honourable rank was bestowed on them for life; and, as they were usually favourites and ministers who had grown old in the Imperial court, the true etymology of the word was perverted by ignorance and flattery; and the Patricians of Constantine were revered as the adopted Fathers of the emperor and the republic.²⁸⁶

II. The fortunes of the Prætorian prefects were essentially different from those of the consuls and Patricians. The latter saw their ancient greatness evaporate in a vain title. The former, rising by

by the consul, and the rights of mankind asserted by the tribune Canuleius.

²⁸²See the animated pictures drawn by Sallust, in the Jugurthine war, of the pride of the nobles, and even of the virtuous Metellus, who was unable to brook the idea that the honour of the consulship should be bestowed on the obscure merit of his lieutenant Marius (c. 64). Two hundred years before, the race of the Metelli themselves were confounded among the Plebeians of Rome; and from the etymology of their name of Cæcilius, there is reason to believe that those haughty nobles derived their origin from a sutler.

²⁸³In the year of Rome 800, very few remained not only of the old Patrician families, but even of those which had been created by Cæsar and Augustus (Tacit. Annal. xi. 25). The family of Scaurus (a branch of the Patrician Æmili) was degraded so low that his father, who exercised the trade of a charcoal merchant, left him only ten slaves, and somewhat less than three hundred pounds sterling (Valerius Maximus, l. iv. c. 4, n. 11, Aurel. Victor in Scauro). The family was saved from oblivion by the merit of the son.

²⁸⁴Tacit. Annal. xi. 25, Dion Cassius, l. iii. p. 693 [c. 42]. The virtues of Agricola, who was created a Patrician by the emperor Vespasian, reflected honour on that ancient order; but his ancestors had not any claim beyond an equestrian nobility.

²⁸⁵This failure would have been almost impossible, if it were true, as Casaubon compels Aurelius Victor to affirm (ad Sueton. in Cæsar. c. 42. See Hist. August. p. 203 [-c. 3], and Casaubon. Comment. p. 220), that Vespasian created at once a thousand Patrician families. But this extravagant number is too much even for the whole senatorial order, unless we should include all the Roman knights who were distinguished by the permission of wearing the laticlave.

²⁸⁶Zosimus, l. ii. p. 118 [c. 40]; and Godefroy ad Cod. Theodos. l. vi. tit. vi. [These Patricians had precedence of all dignitaries except the consuls in office. But they were hardly regarded as adoptive fathers of the emperor.]

degrees from the most humble condition, were invested with the civil and military administration of the Roman world. From the reign of Severus to that of Diocletian, the guards and the palace, the laws and the finances, the armies and the provinces, were entrusted to their superintending care; and, like the Vizirs of the East, they held with one hand the seal, and with the other the standard, of the empire. The ambition of the prefects, always formidable and sometimes fatal to the masters whom they served, was supported by the strength of the Prætorian bands; but after those haughty troops had been weakened by Diocletian, and finally suppressed by Constantine, the prefects, who survived their fall, were reduced without difficulty to the station of useful and obedient ministers. When they were no longer responsible for the safety of the emperor[*Hebrew*]'s person, they resigned the jurisdiction which they had hitherto claimed and exercised over all the departments of the palace. They were Edition: current; Page: [122] deprived by Constantine of all military command, as soon as they had ceased to lead into the field, under their immediate orders, the flower of the Roman troops; and at length, by a singular revolution, the captains of the guard were transformed into the civil magistrates of the provinces. According to the plan of government instituted by Diocletian, the four princes had each their Prætorian prefect;²⁸⁷ and, after the monarchy was once more united in the person of Constantine, he still continued to create the same number of four prefects, and entrusted to their care the same provinces which they already administered. 1. The prefect of the East stretched his ample jurisdiction into the three parts of the globe which were subject to the Romans, from the cataracts of the Nile to the banks of the Phasis, and from the mountains of Thrace to the frontiers of Persia. 2. The important provinces of Pannonia, Dacia, Macedonia, and Greece once acknowledged the authority of the prefect of Illyricum. 3. The power of the prefect of Italy was not confined to the country from whence he derived his title; it extended over the additional territory of Rhætia as far as the banks of the Danube, over the dependent islands of the Mediterranean, and over that part of the continent of Africa which lies between the confines of Cyrene and those of Tingitania. 4. The prefect of the Gauls comprehended under that plural denomination the kindred provinces of Britain and Spain, and his authority was obeyed from the wall of Antoninus to the foot of Mount Atlas.²⁸⁸

After the Prætorian prefects had been dismissed from all military command,²⁸⁹ the civil functions which they were Edition: current; Page: [123] ordained to exercise over so many subject nations were adequate to the ambition and abilities of the most consummate ministers. To their wisdom was committed the supreme administration of justice and of the finances, the two objects which, in a state of peace, comprehend almost all the respective duties of the sovereign and of the people; of the former, to protect the citizens who are obedient to the laws; of the latter, to contribute the share of their property which is required for the expenses of the state.²⁹⁰ The coin, the highways, the posts, the granaries, the manufactures, whatever could interest the public prosperity was moderated by the authority of the Prætorian prefects. As the immediate representatives of the Imperial majesty, they were empowered to explain, to enforce, and on some occasions to modify

²⁸⁷[It is probable that the Cæsars had Prætorian prefects as well as the Augusti; but there is not evidence that there were 4 prefects regularly under Constantine. See App. 1 and 10.]

²⁸⁸Zosimus, l. ii. p. 109, 110 [c. 33]. If we had not fortunately possessed this satisfactory account of the division of the power and provinces of the Prætorian prefects, we should frequently have been perplexed amidst the copious details of the Code, and the circumstantial minuteness of the Notitia.

²⁸⁹[By Constantine; not entirely by Diocletian. The only duty which still connected them with the army was that of providing the supplies for the soldiers; and this was a consequence of their financial functions.]

²⁹⁰[The prefect was head of the office for the collection of inland revenue. The emperor only intervened when the ordinary taxes were insufficient or a remission of arrears was expedient.]

the general edicts by their discretionary proclamations. They watched over the conduct of the provincial governors,²⁹¹ removed the negligent, and inflicted punishments on the guilty. From all the inferior jurisdictions, an appeal in every matter of importance, either civil or criminal, might be brought before the tribunal of the prefect: but his sentence was final and absolute; and the emperors themselves refused to admit any complaints against the judgment or the integrity of a magistrate whom they honoured with such unbounded confidence.²⁹² His appointments were suitable to his dignity;²⁹³ and, if Edition: current; Page: [124] avarice was his ruling passion, he enjoyed frequent opportunities of collecting a rich harvest of fees, of presents, and of perquisites. Though the emperors no longer dreaded the ambition of their prefects, they were attentive to counterbalance the power of this great office by the uncertainty and shortness of its duration.²⁹⁴

From their superior importance and dignity, Rome and Constantinople were alone excepted from the jurisdiction of the Prætorian prefects. The immense size of the city and the experience of the tardy, ineffectual operation of the laws had furnished the policy of Augustus with a specious pretence for introducing a new magistrate, who alone could restrain a servile and turbulent populace by the strong arm of arbitrary power.²⁹⁵ Valerius Messalla was appointed the first prefect of Rome, that his reputation might countenance so invidious a measure: but, at the end of a few days, that accomplished citizen²⁹⁶ resigned his office, declaring with a spirit worthy of the friend of Brutus, that he found himself incapable of exercising a power incompatible with public freedom.²⁹⁷ Edition: current; Page: [125] As the sense of liberty became less exquisite, the advantages of order were more clearly understood; and the prefect, who seemed to have been designed as a terror only to slaves and vagrants, was permitted to extend his civil and criminal jurisdiction over the equestrian and noble families of Rome. The prætors, annually created as the judges of law and equity, could not long dispute the possession of the Forum with a vigorous and permanent magistrate, who was usually admitted into the confidence of the prince. Their courts were deserted, their number, which had once fluctuated between twelve and eighteen,²⁹⁸ was gradually reduced

²⁹¹[Whom they practically appointed.]

²⁹²See a law of Constantine himself. *A præfectis autem prætorio provocare non sinimus.* Cod. Justinian. l. vii. tit. lxii. leg. 19. Charisius, a lawyer of the time of Constantine (Heinec. *Hist. Juris Romani*, p. 349), who admits this law as a fundamental principle of jurisprudence, compares the Prætorian prefects to the masters of the horse of the ancient dictators. Pandect. l. i. tit. xi.

²⁹³When Justinian, in the exhausted condition of the empire, instituted a Prætorian prefect for Africa, he allowed him a salary of one hundred pounds of gold. Cod. Justinian. l. i. tit. xxvii. leg. 1.

²⁹⁴For this, and the other dignities of the empire, it may be sufficient to refer to the ample commentaries of Pancirolus and Godefroy, who have diligently collected and accurately digested in their proper order all the legal and historical materials. From those authors Dr. Howell (*History of the World*, vol. ii. p. 24-77) has deduced a very distinct abridgment of the state of the Roman empire.

²⁹⁵Tacit. *Annal.* vi. 11. Euseb. in *Chron.* p. 155. Dion Cassius, in the oration of Mæcenus (l. lii. p. 675 [21]), describes the prerogatives of the prefect of the city as they were established in his own time.

²⁹⁶The fame of Messalla has been scarcely equal to his merit. In the earliest youth he was recommended by Cicero to the friendship of Brutus. He followed the standard of the republic till it was broken in the fields of Philippi: he then accepted and deserved the favour of the most moderate of the conquerors; and uniformly asserted his freedom and dignity in the court of Augustus. The triumph of Messalla was justified by the conquest of Aquitain. As an orator he disputed the palm of eloquence with Cicero himself. Messalla cultivated every muse, and was the patron of every man of genius. He spent his evenings in philosophic conversation with Horace; assumed his place at table between Delia and Tibullus; and amused his leisure by encouraging the poetical talents of young Ovid.

²⁹⁷*Incivilem esse potestatem contestans*, says the translator of Eusebius. Tacitus expresses the same idea in other words: *quasi nescius exercendi.*

²⁹⁸See Lipsius, *Excursus D. ad 1 lib. Tacit. Annal.*

to two or three, and their important functions were confined to the expensive obligation²⁹⁹ of exhibiting games for the amusement of the people. After the office of the Roman consuls had been changed into a vain pageant, which was rarely displayed in the capital, the prefects assumed their vacant place in the senate, and were soon acknowledged as the ordinary presidents of that venerable assembly. They received appeals from the distance of one hundred miles; and it was allowed as a principle of jurisprudence, that all municipal authority was derived from them alone.³⁰⁰ In the discharge of his laborious employment, the governor of Rome was assisted by fifteen officers, some of whom had been originally his equals, or even his superiors. The principal departments were relative to the command of a numerous watch, Edition: current; Page: [126] established as a safeguard against fires, robberies, and nocturnal disorders; the custody and distribution of the public allowance of corn and provisions; the care of the port, of the aqueducts, of the common sewers, and of the navigation and bed of the Tiber; the inspection of the markets, the theatres, and of the private as well as public works. Their vigilance ensured the three principal objects of a regular police, safety, plenty, and cleanliness; and, as a proof of the attention of government to preserve the splendour and ornaments of the capital, a particular inspector was appointed for the statues; the guardian, as it were, of that inanimate people, which, according to the extravagant computation of an old writer, was scarcely inferior in number to the living inhabitants of Rome. About thirty years after the foundation of Constantinople, a similar magistrate was created in that rising metropolis, for the same uses, and with the same powers. A perfect equality was established between the dignity of the two municipal, and that of the four Prætorian, prefects.³⁰¹

Those who, in the Imperial hierarchy, were distinguished by the title of Respectable, formed an intermediate class between the illustrious prefects and the honourable magistrates of the provinces. In this class the proconsuls of Asia, Achaia, and Africa claimed a pre-eminence, which was yielded to the remembrance of their ancient dignity; and the appeal from their tribunal to that of the prefects was almost the only mark of their dependence.³⁰² But the civil government of the Edition: current; Page: [127] empire was distributed into thirteen great dioceses, each of which equalled the just measure of a powerful kingdom. The first of these dioceses was subject to the jurisdiction of the count of the East; and we may convey some idea of the importance and variety of his functions, by observing that six hundred apparitors, who would be styled at present either secretaries, or clerks, or ushers, or messengers, were employed in his immediate office.³⁰³ The place of Augustal

²⁹⁹Heineccii Element. Juris Civilis secund. ordinem Pandect. tom. i. p. 70. See likewise Spanheim de Usu Numismatum, tom. ii. dissertat. x. p. 219. In the year 450, Marcian published a law that three citizens should be annually created Prætors of Constantinople by the choice of the senate, but with their own consent. Cod. Justinian. l. i. tit. xxxix. leg. 2.

³⁰⁰Quidquid igitur intra urbem admittitur, ad P. U. videtur pertinere; sed et siquid intra centesimum milliariū. Ulpian in Pandect. l. i. tit. xiii. n. 1. He proceeds to enumerate the various offices of the prefect, who, in the code of Justinian (l. i. tit. xxxix. leg. 3), is declared to precede and command all city magistrates, sine injuriâ ac detrimento honoris alieni.

³⁰¹Besides our usual guides, we may observe that Felix Cantelorius has written a separate treatise, De Præfecto Urbis; and that many curious details concerning the police of Rome and Constantinople are contained in the fourteenth book of the Theodosian Code. [E. Léotard, De præf. urbana quarto p. C. sæculo. 1873.]

³⁰²Eunapius affirms that the proconsul of Asia was independent of the prefect; which must, however, be understood with some allowance: the jurisdiction of the vice-prefect he most assuredly disclaimed. Pancirolus, p. 161. [The proconsuls of Asia and Africa had precedence of all the other provincial governors, and were subordinate neither to the vicars of Asia and Africa, nor to the Prætorian prefects. (Theodosius I. gave the proconsul of Asia the position of vicar over the Islands and the Hellespont.) The proconsul of Achaia was subordinate to the prefect of Illyricum, but not to the vicar of Macedonia. All three were appointed by the emperor without the intervention of the Prætorian prefect.]

³⁰³The proconsul of Africa had four hundred apparitors; and they all received large salaries, either from the treasury or the province. See Pancirol. p. 26, and Cod. Justinian. l. xii. tit. lvi. lvii. [The comes orientis seems to be a survival of the diocesan counts who were instituted by Constantine (c. ad 327) to control and check the vicarii, of whom they had

prefect of Egypt was no longer filled by a Roman knight; but the name was retained; and the extraordinary powers which the situation of the country and the temper of the inhabitants had once made indispensable were still continued to the governor. The eleven remaining dioceses, of Asiana, Pontica, and Thrace; of Macedonia, Dacia,³⁰⁴ and Pannonia or Western Illyricum; of Italy and Africa; of Gaul, Spain, and Britain; were governed by twelve vicars or vice-prefects,³⁰⁵ whose name sufficiently explains the nature and dependence of their office. It may be added that the lieutenant-generals of the Roman armies, the military counts and dukes, who will be hereafter mentioned, were allowed the rank and title of Respectable.

As the spirit of jealousy and ostentation prevailed in the councils of the emperors, they proceeded with anxious diligence to divide the substance, and to multiply the titles of power. The vast countries which the Roman conquerors had united under the same simple form of administration were imperceptibly crumbled into minute fragments; till at length the whole empire was distributed into one hundred and sixteen provinces, each of which supported an expensive and splendid establishment. Of these, three were governed by proconsuls, thirty-seven by consulars, five by correctors, and seventy-one by presidents. The appellations of these magistrates were different; they ranked in successive order, the ensigns of their dignity were curiously varied, and their situation, from accidental circumstances, might be more or less agreeable or advantageous. But they were all (excepting only the proconsuls) alike included in the class of honourable persons; and they were alike entrusted, during the pleasure of the prince, and under the authority of the prefects or their deputies, with the administration of justice and the finances in their respective districts. The ponderous volumes of the Codes and Pandects³⁰⁶ would furnish ample materials for a minute inquiry into the system of provincial government, as in the space of six centuries it was improved by the wisdom of the Roman statesmen and lawyers. It may be sufficient for the historian to select two singular and salutary provisions intended to restrain the abuse of authority. 1. For the preservation of peace and order, the governors of the provinces were armed with the sword of justice. They inflicted corporal punishments, and they exercised, in capital offences, the power of life and death. But they were not authorised to indulge the condemned criminal with the choice of his own execution, or to pronounce a sentence of the mildest and most honourable kind of exile. These prerogatives were reserved to the prefects, who alone could impose the heavy fine of fifty pounds of gold: their vicegerents were confined to the trifling weight of a few ounces.³⁰⁷ This distinction, which seems to grant the larger, while it denies

precedence. The institution seems not to have survived its author, except in the case of *Oriens Aegyptus et Mesopotamia*, where the vicar appears in 331 ad (Cod. Theod. i. 16, 6) with the title of count; perhaps the distinction was due (as Schiller has suggested) to the fact that Egypt was part of his province. Sometime between 365 and 386 the administration of Egypt was taken from him, and that country became a separate diocese.]

³⁰⁴[Dacia, from Constantine forward, had no vicar but was directly under the Prætorian prefect of Italia et Illyricum, or Illyricum. See Appendix 10.]

³⁰⁵In Italy there was likewise the Vicar of Rome. It has been much disputed, whether his jurisdiction measured one hundred miles from the city, or whether it stretched over the ten southern provinces of Italy. [He was vicar of the Prætorian prefect of Italy, not of the præfectus urbis, and he administered the ten provinces, of which the revenue went to Rome. The rest of Italy, under the vicarius Italiae, was distinguished as *annonaria*.]

³⁰⁶Among the works of the celebrated Ulpian, there was one in ten books concerning the office of a proconsul, whose duties in the most essential articles were the same as those of an ordinary governor of a province.

³⁰⁷The presidents, or consulars, could impose only two ounces; the vice-prefects, three; the proconsuls, count of the East, and prefect of Egypt, six. See Heineccii Jur. Civil. tom. i. p. 75. Pandect. l. xlviii. tit. xix. n. 8. Cod. Justinian. l. i. tit. liv. leg. 4, 6. [The name *praesides* came in when Gallienus excluded senators from governorships of Imperial provinces and appointed knights. The title *correctores* was first used in Italy. Cp. above, vol. ii., Appendix 6.]

the smaller, degree of authority, was founded on a very rational motive. The smaller degree was infinitely more liable to abuse. The passions of a provincial magistrate might frequently provoke him into acts of oppression which affected only the freedom or the fortunes of the subject; though, from a principle of prudence, perhaps of humanity, he might still be terrified by the guilt of innocent blood. It may likewise be considered that exile, considerable fines, or the choice of an easy death relate more particularly to the rich and the noble; and the persons the most exposed to the avarice or resentment of a provincial magistrate were thus removed from his obscure persecution to the more august and impartial tribunal of the Prætorian prefect. 2. As it was reasonably apprehended that the integrity of the judge might be biassed, if his interest was concerned or his affections were engaged, the strictest regulations were established to exclude any person, without the special dispensation of the emperor, from the government of the province where he was born;³⁰⁸ and to prohibit the governor or his son from contracting Edition: current; Page: [130] marriage with a native or an inhabitant;³⁰⁹ or from purchasing slaves, lands, or houses, within the extent of his jurisdiction.³¹⁰ Notwithstanding these rigorous precautions, the emperor Constantine, after a reign of twenty-five years, still deplores the venal and oppressive administration of justice, and expresses the warmest indignation that the audience of the judge, his despatch of business, his seasonable delays, and his final sentence were publicly sold, either by himself or by the officers of his court. The continuance, and perhaps the impunity, of these crimes is attested by the repetition of important laws and ineffectual menaces.³¹¹

All the civil magistrates were drawn from the profession of the law. The celebrated Institutes of Justinian are addressed to the youth of his dominions, who had devoted themselves to the study of Roman jurisprudence; and the sovereign condescends to animate their diligence by the assurance that their skill and ability would in time be rewarded by an adequate share in the government of the republic.³¹² The rudiments of this lucrative science were taught in all the considerable cities of the East and West; but the most famous school was that of Edition: current; Page: [131] Berytus,³¹³ on the coast of Phœnicia; which flourished above three centuries from the time of Alexander Severus, the author perhaps of an institution so advantageous to his native country. After a regular course of education, which lasted five years, the students dispersed themselves through the provinces, in search of fortune and honours; nor could they want an inexhaustible supply of business in a great empire, already corrupted by the multiplicity of laws, of arts, and of vices. The court of the Prætorian prefect of the East could alone furnish employment for one hundred and fifty advocates,

³⁰⁸Ut nulli patriæ suæ administratio sine speciali principis permissu permittatur. Cod. Justinian. l. i. tit. xli. This law was first enacted by the emperor Marcus, after the rebellion of Cassius (Dion. l. lxxi.). The same regulation is observed in China, with equal strictness and with equal effect.

³⁰⁹Pandect. l. xxiii. tit. ii. n. 38, 57, 63.

³¹⁰In jure continetur, ne quis in administratione constitutus aliquid compararet. Cod. Theod. l. viii. tit. xv. leg. 1. This maxim of common law was enforced by a series of edicts (see the remainder of the title) from Constantine to Justin. From this prohibition, which is extended to the meanest offices of the governor, they except only clothes and provisions. The purchase within five years may be recovered; after which, on information, it devolves to the treasury.

³¹¹Cessent rapaces jam nunc officialium manus; cessent, inquam; nam si moniti non cessaverint, gladiis præcidentur, &c. Cod. Theod. l. i. tit. vii. leg. 1. Zeno enacted that all governors should remain in the province, to answer any accusations, fifty days after the expiration of their power. Cod. Justinian. l. ii. tit. xlix. leg. 1.

³¹²Summâ igitur ope, et alacri studio has leges nostras accipite; et vos metipsos sic eruditos ostendite, ut spes vos pulcherrima foveat; toto legitimo opere perfecto, posse etiam nostram rempublicam in partibus ejus vobis credendis gubernari. Justinian. in proem. Institutionum.

³¹³The splendour of the school of Berytus, which preserved in the East the language and jurisprudence of the Romans, may be computed to have lasted from the third to the middle of the sixth century. Heinecc. Jur. Rom. Hist. p. 351-356.

sixty-four of whom were distinguished by peculiar privileges, and two were annually chosen with a salary of sixty pounds of gold, to defend the causes of the treasury. The first experiment was made of their judicial talents, by appointing them to act occasionally as assessors to the magistrates; from thence they were often raised to preside in the tribunals before which they had pleaded. They obtained the government of a province; and, by the aid of merit, of reputation, or of favour, they ascended, by successive steps, to the illustrious dignities of the state.³¹⁴ In the practice of the bar, Edition: current; Page: [132] these men had considered reason as the instrument of dispute; they interpreted the laws according to the dictates of private interest; and the same pernicious habits might still adhere to their characters in the public administration of the state. The honour of a liberal profession has indeed been vindicated by ancient and modern advocates, who have filled the most important stations with pure integrity and consummate wisdom: but in the decline of Roman jurisprudence, the ordinary promotion of lawyers was pregnant with mischief and disgrace. The noble art, which had once been preserved as the sacred inheritance of the patricians, was fallen into the hands of freedmen and plebeians,³¹⁵ who, with cunning rather than skill, exercised a sordid and pernicious trade. Some of them procured admittance into families for the purpose of fomenting differences, of encouraging suits, and of preparing a harvest of gain for themselves or their brethren. Others, recluse in their chambers, maintained the dignity of legal professors by furnishing a rich client with subtleties to confound the plainest truth and with arguments to colour the most unjustifiable pretensions. The splendid and popular class was Edition: current; Page: [133] composed of the advocates, who filled the Forum with the sound of their turgid and loquacious rhetoric. Careless of fame and of justice, they are described, for the most part, as ignorant and rapacious guides, who conducted their clients through a maze of expense, of delay, and of disappointment; from whence, after a tedious series of years, they were at length dismissed, when their patience and fortune were almost exhausted.³¹⁶

³¹⁴As in a former period I have traced the civil and military promotion of Pertinax, I shall here insert the civil honours of Mallius Theodorus. 1. He was distinguished by his eloquence, while he pleaded as an advocate in the court of the Prætorian prefect. 2. He governed one of the provinces of Africa, either as president or consular, and deserved, by his administration, the honour of a brass statue. 3. He was appointed vicar, or vice-prefect, of Macedonia. 4. Quæstor. 5. Count of the sacred largesses. 6. Prætorian prefect of the Gauls; whilst he might yet be represented as a young man. 7. After a retreat, perhaps a disgrace, of many years, which Mallius (confounded by some critics with the poet Manilius, see Fabricius Bibliothec. Latin. Edit. Ernest. tom. i. c. 18, p. 501) employed in the study of the Grecian philosophy, he was named Prætorian prefect of Italy, in the year 397. 8. While he still exercised that great office, he was created, in the year 399, consul for the West; and his name, on account of the infamy of his colleague, the eunuch Eutropius, often stands alone in the Fasti. 9. In the year 408, Mallius was appointed a second time Prætorian prefect of Italy. Even in the venal panegyric of Claudian, we may discover the merit of Mallius Theodorus, who, by a rare felicity, was the intimate friend both of Symmachus and of St. Augustin. See Tillemont, Hist. des Emp. tom. v. p. 1110-1114. [Inscriptions supply us with more illustrations of official careers under the Constantinian monarchy. The career of Caelius Saturninus (C.I.L. 6, 1704) occasioned an important study by Mommsen in the *Memorie d. Institut. d. corr. arch.* ii. 299; and that of L. Aradius Valerius Proculus is recorded fully in C.I.L. 6. 1690 and 1691. Proculus began his career apparently as one of the legati subordinate to the proconsul of Africa (this is Mommsen's explanation of legato pro præ. prov. Numidia). He was then sent to Gallicia to revise the taxation (as peraequator census); after which he became governor successively of Byzacena; Europe and Thrace (temporarily combined); and Sicily; then proconsul of Africa. He finally attained to the Prætorian prefecture and the prefecture of the city of Rome. We know from other sources that he was præf. urbi in 337, and ordinary consul in 340 ad The career constantly began with the post of advocatus fisci (Caelius Saturninus is an instance) or of advocate in the ordinary law-courts.]

³¹⁵Mamertinus in Panegy. Vet. xi. 20. Asterius apud Photium, p. 1500.

³¹⁶The curious passage of Ammianus (l. xxx. c. 4), in which he paints the manners of contemporary lawyers, affords a strange mixture of sound sense, false rhetoric, and extravagant satire. Godefroy (Prolegom. ad Cod. Theod. c. i. p. 185) supports the historian by similar complaints and authentic facts. In the fourth century, many camels might have

III. In the system of policy introduced by Augustus, the governors, those at least of the Imperial provinces, were invested with the full powers of the sovereign himself. Ministers of peace and war, the distribution of rewards and punishments depended on them alone, and they successively appeared on their tribunal in the robes of civil magistracy, and in complete armour at the head of the Roman legions.³¹⁷ The influence of the revenue, the authority of law, and the command of a military force concurred to render their power supreme and absolute; and whenever they were tempted to violate their allegiance, the loyal province which they involved in their rebellion was scarcely sensible of any change in its political state. From the time of Commodus to the reign of Constantine, near one hundred governors might be enumerated, who, with various success, erected the standard of revolt; and though the innocent were too often sacrificed, the guilty might be sometimes prevented, by the suspicious Edition: current; Page: [134] cruelty of their master.³¹⁸ To secure his throne and the public tranquillity from these formidable servants, Constantine resolved to divide the military from the civil administration; and to establish, as a permanent and professional distinction, a practice which had been adopted only as an occasional expedient. The supreme jurisdiction exercised by the Prætorian prefects over the armies of the empire was transferred to the two masters general whom he instituted, the one for the cavalry, the other for the infantry; and, though each of these illustrious officers was more peculiarly responsible for the discipline of those troops which were under his immediate inspection, they both indifferently commanded in the field the several bodies, whether of horse or foot, which were united in the same army.³¹⁹ Their number was soon doubled by the division of the East and West; and, as separate generals of the same rank and title were appointed on the four important frontiers of the Rhine, of the Upper and the Lower Danube, and of the Euphrates, the defence of the Roman empire was at length committed to eight masters general of the cavalry and infantry. Under their orders, thirty-five military commanders were stationed in the provinces: three in Britain, six in Gaul, one in Spain, one in Italy, five on the Upper, and four on the Lower Danube; in Asia eight, three in Egypt, and four in Africa. The titles Edition: current; Page: [135] of counts, and dukes,³²⁰ by which they were properly distinguished, have obtained in modern languages so very different a sense that the use of them may occasion some surprise. But it should be recollected that the second of those appellations is only a corruption of the Latin word which was indiscriminately applied to any military chief. All

been laden with law-books. Eunapius in Vet. Edesii, p. 72. [The advocate (also called *iuris peritus* and *scholasticus*) in the new Monarchy takes the place which under the Principate was filled by the *iuris consultus*, from whom the old *advocatus* was carefully distinguished.]

³¹⁷See a very splendid example in the Life of Agricola, particularly c. 20, 21. The lieutenant of Britain was entrusted with the same powers which Cicero, proconsul of Cilicia, had exercised in the name of the senate and people.

³¹⁸The Abbé Dubos, who has examined with accuracy (see *Hist. de la Monarchie Française*, tom. i. p. 41-100, edit. 1742) the institutions of Augustus and of Constantine, observes that, if Otho had been put to death the day before he executed his conspiracy, Otho would now appear in history as innocent as Corbulo.

³¹⁹Zosimus, l. ii. p. 110 [33]. Before the end of the reign of Constantius, the *magistri militum* were already increased to four. See Valesius ad Ammian. l. xvi. c. 7. [We first meet *magistri militum* about 315 (Cod. Theod. ii. i. 1). The titles *mag. ped.* and *mag. eq.* survived in the West, but were superseded in the East by the titles *mag. utriusque militiae* or *mag. eq. et ped.* The masters who were in attendance at the Imperial court were distinguished from those stationed on the frontiers by the addition in *praesenti*. For the increase of the number of *magistri* between Constantius and the time of the *Notitia* cf. Ammianus, xxvi. 5, and Zosimus, iv. 27.]

³²⁰Though the military counts and dukes are frequently mentioned, both in history and the codes, we must have recourse to the *Notitia* for the exact knowledge of their number and stations. For the institution, rank, privileges, &c., of the counts in general, see Cod. Theod. l. vi. tit. xii.-xx., with the Commentary of Godefroy. [As a rule the sphere of the *dux* or *comes* corresponded to that of the *praeses* or civil governor of a province, but in some cases was larger, as in that of the *dux Libyarum*.]

these provincial generals were therefore dukes; but no more than ten among them were dignified with the rank of counts or companions, a title of honour, or rather of favour, which had been recently invented in the court of Constantine.³²¹ A gold belt was the ensign which distinguished the office of the counts and dukes; and besides their pay, they received a liberal allowance, sufficient to maintain one hundred and ninety servants, and one hundred and fifty-eight horses. They were strictly prohibited from interfering in any matter which related to the administration of justice or the revenue; but the command which they exercised over the troops of their department was independent of the authority of the magistrates. About the same time that Constantine gave a legal sanction to the ecclesiastical order, he instituted in the Roman empire the nice balance of the civil and the military powers. The emulation, and sometimes the discord, which reigned between two professions of opposite interests and incompatible manners, was productive of beneficial and of pernicious consequences. It was seldom to be expected that the general and the civil governor of a province should either conspire for the disturbance, or should unite for the service, of their country. While the one delayed to offer the assistance which Edition: current; Page: [136] the other disdained to solicit, the troops very frequently remained without orders or without supplies; the public safety was betrayed, and the defenceless subjects were left exposed to the fury of the Barbarians. The divided administration which had been formed by Constantine relaxed the vigour of the state, while it secured the tranquillity of the monarch.

The memory of Constantine has been deservedly censured for another innovation, which corrupted military discipline and prepared the ruin of the empire. The nineteen years which preceded his final victory over Licinius had been a period of licence and intestine war. The rivals who contended for the possession of the Roman world had withdrawn the greatest part of their forces from the guard of the general frontier; and the principal cities which formed the boundary of their respective dominions were filled with soldiers, who considered their countrymen as their most implacable enemies. After the use of these internal garrisons had ceased with the civil war, the conqueror wanted either wisdom or firmness to revive the severe discipline of Diocletian, and to suppress a fatal indulgence which habit had endeared and almost confirmed to the military order. From the reign of Constantine, a popular and even legal distinction was admitted between the Palatines³²² and the Borderers; the troops of the court as they were improperly styled, and the troops of the frontier. The former, elevated by the superiority of their pay and privileges, were permitted, except in the extraordinary emergencies of war, to occupy their tranquil stations in the heart of the provinces. The most flourishing cities were oppressed by the intolerable weight of quarters. The soldiers insensibly forgot the virtues of their profession, and contracted only Edition: current; Page: [137] the vices of civil life. They were either degraded by the industry of mechanic trades, or enervated by the luxury of baths and theatres. They soon became careless of their martial exercises, curious in their diet and apparel; and, while they inspired terror to the subjects of the empire, they trembled at the hostile approach of the Barbarians.³²³ The chain of fortifications which Diocletian and his colleagues had extended along the banks of the great rivers was no longer maintained with the same care or defended with the same vigilance. The numbers

³²¹[Derived from the comites who attended the Princeps when he visited the provinces.]

³²²Zosimus, l. ii. p. 111. The distinction between the two classes of Roman troops is very darkly expressed in the historians, the laws, and the Notitia. Consult, however, the copious paratitlon, or abstract, which Godefroy has drawn up of the seventh book, de Re Militari, of the Theodosian Code, l. vii. tit. i. leg. 18, l. viii. tit. i. leg. 10. [Gibbon uses *[Hebrew]Palatines[Hebrew]* as equivalent to Palatines and Comitatuses *[Hebrew]* an erroneous use. See Appendix 7.]

³²³Ferox erat in suos miles et rapax, ignavus vero in hostes et fractus. Ammian. l. xxii. c. 4. He observes that they loved downy beds and houses of marble; and that their cups were heavier than their swords.

which still remained under the name of the troops of the frontier might be sufficient for the ordinary defence. But their spirit was degraded by the humiliating reflection that they who were exposed to the hardships and dangers of a perpetual warfare were rewarded only with about two-thirds of the pay and emoluments which were lavished on the troops of the court. Even the bands or legions that were raised the nearest to the level of those unworthy favourites were in some measure disgraced by the title of honour which they were allowed to assume. It was in vain that Constantine repeated the most dreadful menaces of fire and sword against the Borderers who should dare to desert their colours, to connive at the inroads of the Barbarians, or to participate in the spoil.³²⁴ The mischiefs which flow from injudicious counsels are seldom removed by the application of partial severities; and, though succeeding princes laboured to restore the strength and numbers of the frontier garrisons, the empire, till the last moment of its dissolution, continued to languish under the mortal wound which had been so rashly or so weakly inflicted by the hand of Constantine. Edition: current; Page: [138]

The same timid policy, of dividing whatever is united, of reducing whatever is eminent, of dreading every active power, and of expecting that the most feeble will prove the most obedient, seems to pervade the institutions of several princes, and particularly those of Constantine. The martial pride of the legions, whose victorious camps had so often been the scene of rebellion, was nourished by the memory of their past exploits and the consciousness of their actual strength. As long as they maintained their ancient establishment of six thousand men, they subsisted, under the reign of Diocletian, each of them singly, a visible and important object in the military history of the Roman empire. A few years afterwards these gigantic bodies were shrunk to a very diminutive size; and, when seven legions, with some auxiliaries, defended the city of Amida against the Persians, the total garrison, with the inhabitants of both sexes, and the peasants of the deserted country, did not exceed the number of twenty thousand persons.³²⁵ From this fact, and from similar examples, there is reason to believe that the constitution of the legionary troops, to which they partly owed their valour and discipline, was dissolved by Constantine; and that the bands of Roman infantry, which still assumed the same names and the same honours, consisted only of one thousand or fifteen hundred men.³²⁶ The conspiracy of so many separate detachments, each of which was awed by the sense of its own weakness, could easily be checked; and the successors of Constantine might indulge their love of ostentation, by issuing their orders to one hundred and thirty-two legions, inscribed on the muster-roll of their numerous armies. The Edition: current; Page: [139] remainder of their troops was distributed into several hundred cohorts of infantry, and squadrons of cavalry. Their arms, and titles, and ensigns were calculated to inspire terror, and to display the variety of nations who marched under the Imperial standard. And not a vestige was left of that severe simplicity which, in the ages of freedom and victory, had distinguished the line of battle of a Roman army from the confused host of an Asiatic monarch.³²⁷ A more particular enumeration,

³²⁴Cod. Theod. l. vii. tit. i. leg. 1, tit. xii. leg. 1. See Howell[*Hebrew*]'s Hist. of the World, vol. ii. p. 19. That learned historian, who is not sufficiently known, labours to justify the character and policy of Constantine.

³²⁵Ammian. l. xix. c. 2. He observes (c. 5), that the desperate sallies of two Gallic legions were like an handful of water thrown on a great conflagration.

³²⁶Pancirolos ad Notitiam, p. 96. Mémoires de l[*Hebrew*] Académie des Inscriptions, tom. xxv. p. 491. [This is partly true, but not altogether. See Appendix 7. The Notitia gives 62 legions in the West, 70 in the East [*Hebrew*] Gibbon[*Hebrew*]'s 132.]

³²⁷Romana acies unius prope formæ erat et hominum et armorum genere. [*Hebrew*] Regia acies varia magis multis gentibus dissimilitudine armorum auxiliorumque erat. T. Liv. l. xxxvii. c. 39, 40. Flaminius, even before the event, had compared the army of Antiochus to a supper, in which the flesh of one vile animal was diversified by the skill of the

drawn from the *Notitia*, might exercise the diligence of an antiquary; but the historian will content himself with observing that the number of permanent stations or garrisons established on the frontiers of the empire amounted to five hundred and eighty-three; and that, under the successors of Constantine, the complete force of the military establishment was computed at six hundred and forty-five thousand soldiers.³²⁸ An effort so prodigious surpassed the wants of a more ancient, and the faculties of a later, period.

In the various states of society, armies are recruited from very different motives. Barbarians are urged by the love of war; the citizens of a free republic may be prompted by a principle of duty; the subjects, or at least the nobles, of a monarchy are animated by a sentiment of honour; but the timid and luxurious inhabitants of a declining empire must be allured into the service by the hopes of profit, or compelled by the dread of punishment. The resources of the Roman treasury were exhausted by the increase of pay, Edition: current; Page: [140] by the repetition of donatives, and by the invention of new emoluments and indulgences, which, in the opinion of the provincial youth, might compensate the hardships and dangers of a military life. Yet, although the stature was lowered,³²⁹ although slaves, at least by a tacit connivance, were indiscriminately received into the ranks, the insurmountable difficulty of procuring a regular and adequate supply of volunteers obliged the emperors to adopt more effectual and coercive methods. The lands bestowed on the veterans, as the free reward of their valour, were henceforward granted under a condition, which contains the first rudiments of the feudal tenures: that their sons, who succeeded to the inheritance, should devote themselves to the profession of arms, as soon as they attained the age of manhood; and their cowardly refusal was punished by the loss of honour, of fortune, or even of life.³³⁰ But, as the annual growth of the sons of the veterans bore a very small proportion to the demands of the service, levies of men were frequently required from the provinces, and every proprietor was obliged either to take up arms, or to procure a substitute, or to purchase his exemption by the payment of a heavy fine. The sum of forty-two pieces of gold, to which it was reduced, ascertains the exorbitant price of volunteers and the reluctance with which the government admitted of this alternative.³³¹ Edition: current; Page: [141] Such was the horror for the profession of a soldier which had affected the minds of the degenerate Romans that many of the youth of Italy and the provinces chose to cut off the fingers of their right hand to escape from being pressed into the service; and this strange expedient was so commonly practised as to deserve the severe animadversion of the

cooks. See the life of Flaminus in Plutarch.

³²⁸Agathias, l. v. p. 157, edit. Louvre [P. 305, ed. Bonn. ad 558. This was the estimate on paper; the actual strength 150,000. For an estimate by Mommsen, see Appendix 7. The number of frontier garrisons, in the *Notitia*, is 305, not 583.]

³²⁹Valentinian (Cod. Theodos. l. vii. tit. xiii. leg. 3) fixes the standard at five feet seven inches, about five feet four inches and a half English measure. It had formerly been five feet ten inches, and in the best corps six Roman feet. Sed tunc erat amplior multitudo, et plures sequebantur militiam armatam. Vegetius de Re Militari, l. i. c. 5.

³³⁰See the two titles, *De Veteranis* and *De Filiis Veteranorum*, in the seventh book of the Theodosian Code. The age at which their military service was required varied from twenty-five to sixteen. If the sons of the veterans appeared with a horse, they had a right to serve in the cavalry; two horses gave them some valuable privileges.

³³¹Cod. Theod. l. vii. tit. xiii. leg. 7. According to the historian Socrates (see Godefroy ad. loc.), the same emperor Valens sometimes required eighty pieces of gold for a recruit. In the following law it is faintly expressed that slaves shall not be admitted inter optimas lectissimorum militum turmas.

laws³³² and a peculiar name in the Latin language.³³³

The introduction of Barbarians into the Roman armies became every day more universal, more necessary, and more fatal. The most daring of the Scythians, of the Goths, and of the Germans, who delighted in war, and who found it more profitable to defend than to ravage the provinces, were enrolled, not only in the auxiliaries of their respective nations, but in the legions themselves, and among the most distinguished of the Palatine troops. As they freely mingled with the subjects of the empire, they gradually learned to despise their manners and to imitate their arts. They abjured the implicit reverence which the pride of Rome had exacted from their ignorance, while they acquired the knowledge and possession of those advantages by which alone she supported her declining greatness. The Barbarian soldiers who displayed any military talents were advanced, without exception, to Edition: current; Page: [142] the most important commands; and the names of the tribunes, of the counts and dukes, and of the generals themselves betray a foreign origin, which they no longer condescended to disguise. They were often entrusted with the conduct of a war against their countrymen; and, though most of them preferred the ties of allegiance to those of blood, they did not always avoid the guilt, or at least the suspicion, of holding a treasonable correspondence with the enemy, of inviting his invasion, or of sparing his retreat. The camps and the palace of the son of Constantine were governed by the powerful faction of the Franks, who preserved the strictest connection with each other and with their country, and who resented every personal affront as a national indignity.³³⁴ When the tyrant Caligula was suspected of an intention to invest a very extraordinary candidate with the consular robes, the sacrilegious profanation would have scarcely excited less astonishment if, instead of a horse, the noblest chieftain of Germany or Britain had been the object of his choice. The revolution of three centuries had produced so remarkable a change in the prejudices of the people that, with the public approbation, Constantine shewed his successors the example of bestowing the honours of the consulship on the Barbarians who, by their merit and services, had deserved to be ranked among the first of the Romans.³³⁵ But as these hardy veterans, who had been educated in the ignorance or contempt of the laws, were incapable of exercising any civil offices, the powers of the human mind were contracted by the irreconcilable separation of talents as well as of professions. Edition: current; Page: [143] The accomplished citizens of the Greek and Roman republics, whose characters could adapt themselves to the bar, the senate, the camp, or the schools, had learned to write, to speak, and to act, with the same spirit, and with equal abilities.

³³²The person and property of a Roman knight, who had mutilated his two sons, were sold by public auction by the order of Augustus (Sueton. in August. c. 27). The moderation of that artful usurper proves that this example of severity was justified by the spirit of the times. Ammianus makes a distinction between the effeminate Italians and the hardy Gauls (l. xv. c. 12). Yet only fifteen years afterwards, Valentinian, in a law addressed to the prefect of Gaul, is obliged to enact that these cowardly deserters shall be burnt alive (Cod. Theod. l. vii. tit. xiii. leg. 5). Their numbers in Illyricum were so considerable that the province complained of a scarcity of recruits (id. leg. 10).

³³³They were called *Murci*. *Murcidus* is found in Plautus and Festus, to denote a lazy and cowardly person, who, according to Arnobius and Augustin, was under the immediate protection of the goddess *Murcia*. From this particular instance of cowardice, *murcare* is used as synonymous to *mutilare*, by the writers of the middle Latinity. See Lindenbrogius, and Valesius ad Ammian. Marcellin. l. xv. c. 12.

³³⁴*Malarichus [Hebrew] adhibitis Francis quorum eâ tempestate in palatio multitudo florebat, erectius jam loquebatur tumultuabaturque.* Ammian. l. xv. c. 5.

³³⁵*Barbaros omnium primus, ad usque fasces auxerat et trabeas consulares.* Ammian. l. xx. c. 10. Eusebius (in Vit. Constantin. l. iv. c. 7) and Aurelius Victor seem to confirm the truth of this assertion; yet in the thirty-two consular *Fasti* of the reign of Constantine I cannot discover the name of a single Barbarian. I should therefore interpret the liberality of that prince, as relative to the ornaments, rather than to the office, of the consulship.

IV. Besides the magistrates and generals, who at a distance from the court diffused their delegated authority over the provinces and armies, the emperor conferred the rank of Illustrious on seven of his more immediate servants, to whose fidelity he entrusted his safety, or his counsels, or his treasures. 1. The private apartments of the palace were governed by a favourite eunuch, who, in the language of that age, was styled the *præpositus* or prefect of the sacred bed-chamber. His duty was to attend the emperor in his hours of state, or in those of amusement, and to perform about his person all those menial services which can only derive their splendour from the influence of royalty. Under a prince who deserved to reign, the great chamberlain (for such we may call him) was an useful and humble domestic; but an artful domestic, who improves every occasion of unguarded confidence, will insensibly acquire over a feeble mind that ascendant which harsh wisdom and uncomplying virtue can seldom obtain. The degenerate grandsons of Theodosius, who were invisible to their subjects and contemptible to their enemies, exalted the prefects of their bed-chamber above the heads of all the ministers of the palace;³³⁶ and even his deputy, the first of the splendid train of slaves who waited in the presence, was thought worthy to rank before the respectable proconsuls of Greece or Asia. The jurisdiction of the chamberlain was acknowledged by the counts, or superintendents, who regulated the two important provinces of the magnificence of the wardrobe and of the luxury of the imperial table.³³⁷ 2. The Edition: current; Page: [144] principal administration of public affairs was committed to the diligence and abilities of the master of the offices.³³⁸ He was the supreme magistrate of the palace, inspected the discipline of the civil and military schools, and received appeals from all parts of the empire; in the causes which related to that numerous army of privileged persons who, as the servants of the court, had obtained, for themselves and families, a right to decline the authority of the ordinary judges. The correspondence between the prince and his subjects was managed by the four *scrinia* or offices of this minister of state. The first was appropriated to memorials, the second to epistles, the third to petitions, and the fourth to papers and orders of a miscellaneous kind.³³⁹ Each of these was directed by an inferior master of respectable dignity, and the whole business was despatched by an hundred and forty-eight secretaries, chosen for the most part from the profession of the law, on account of the variety of abstracts of reports and references which frequently occurred in the exercise of their several functions. From a condescension, which in former ages would have been esteemed unworthy of the Roman majesty, a particular secretary was allowed for the Greek language; and interpreters were appointed to receive the ambassadors of the Barbarians: but the department of foreign affairs, which constitutes so essential a part of modern policy, seldom diverted the attention of the master of the offices. His Edition: current; Page: [145] mind was more seriously engaged by the general direction of the posts and arsenals of the empire. There were thirty-four cities, fifteen in the East, and nineteen in the West, in which regular companies of workmen were perpetually

³³⁶Cod. Theod. l. vi. tit. 8.

³³⁷By a very singular metaphor, borrowed from the military character of the first emperors, the steward of their household was styled the count of their camp (*comes castrensis*). Cassiodorus very seriously represents to him that his own fame, and that of the empire, must depend on the opinion which foreign ambassadors may conceive of the plenty and magnificence of the royal table (*Variar. l. vi. epistol. 9*).

³³⁸Gutherius (*de Officiis Domus Augustæ, l. ii. c. 20, l. iii.*) has very accurately explained the functions of the master of the offices and the constitution of his subordinate *scrinia*. But he vainly attempts, on the most doubtful authority, to deduce from the time of the Antonines, or even of Nero, the origin of a magistrate who cannot be found in history before the reign of Constantine. [His importance *[Hebrew]* if not his origin *[Hebrew]* probably dated from the reign of Constantine, and gradually developed during the fourth century. The original title was *tribunus et mag. off.* (Cod. Theod. ii. 9. 1), which further obscures the origin.]

³³⁹[*Scr. dispositionum*, of which one duty was to make dispositions in case of an Imperial journey.]

employed in fabricating defensive armour, offensive weapons of all sorts, and military engines, which were deposited in the arsenals, and occasionally delivered for the service of the troops.³⁴⁰ 3. In the course of nine centuries, the office of quæstor had experienced a very singular revolution. In the infancy of Rome, two inferior magistrates were annually elected by the people, to relieve the consuls from the invidious management of the public treasure;³⁴¹ a similar assistant was granted to every proconsul, and to every prætor, who exercised a military or provincial command; with the extent of conquest, the two quæstors were gradually multiplied to the number of four, of eight, of twenty, and, for a short time, perhaps, of forty;³⁴² and the noblest citizens ambitiously solicited an office which gave them a seat in the senate, and a just hope of obtaining the honours of the republic. Whilst Augustus affected to maintain the freedom of election, he consented to accept the annual privilege of recommending, or rather indeed of nominating, a certain proportion of candidates; and it was his custom to select one of these distinguished youths, to read his orations or epistles in the assemblies Edition: current; Page: [146] of the senate.³⁴³ The practice of Augustus was imitated by succeeding princes; the occasional commission was established as a permanent office; and the favoured quæstor, assuming a new and more illustrious character, alone survived the suppression of his ancient and useless colleagues.³⁴⁴ As the orations which he composed in the name of the emperor³⁴⁵ acquired the force, and, at length, the form of absolute edicts, he was considered as the representative of the legislative Edition: current; Page: [147] power, the oracle of the council, and the original source of the civil jurisprudence. He was sometimes invited to take his seat in

³⁴⁰[It should not be overlooked that the mag. off. was head of the school of agentes in rebus; see below, note 170.]

³⁴¹Tacitus (Annal. xi. 22) says that the first quæstors were elected by the people, sixty-four years after the foundation of the republic; but he is of opinion that they had, long before that period, been annually appointed by the consuls, and even by the kings. But this obscure point of antiquity is contested by other writers. [Mommsen (Staatsrecht, 2, p. 525) thinks that the quæstorship originated simultaneously with the consulship.]

³⁴²Tacitus (Annal. xi. 22) seems to consider twenty [fixed by Sulla] as the highest number of quæstors; and Dion. (l. xliii. p. 374 [c. 47; cp. 51]) insinuates that, if the dictator Cæsar once created forty, it was only to facilitate the payment of an immense debt of gratitude. Yet the augmentation which he made of prætors subsisted under the succeeding reigns.

³⁴³Sueton. in August. c. 65, and Torrent. ad loc. Dion. Cas. p. 755.

³⁴⁴The youth and inexperience of the quæstors, who entered on that important office in their twenty-fifth year (Lips. Excurs. ad Tacit. l. iii. D.), engaged Augustus to remove them from the management of the treasury; and, though they were restored by Claudius, they seem to have been finally dismissed by Nero (Tacit. Annal. xxii. 29. Sueton. in Aug. c. 36, in Claud. c. 24, Dion. p. 696 [liii. 2], 961 [lx. 24], &c.; Plin. Epistol. x. 20, et alib.). In the provinces of the Imperial division, the place of the quæstors was more ably supplied by the procurators (Dion. Cass. p. 707 [liii. 15]; Tacit. in Vit. Agricola. c. 15); or, as they were afterwards called, rationales (Hist. August. p. 130 [xviii. 45, 46]). But in the provinces of the senate we may still discover a series of quæstors till the reign of Marcus Antoninus (see the Inscriptions of Gruter, the Epistles of Pliny, and a decisive fact in the Augustan history, p. 64). From Ulpian we may learn (Pandect. l. i. tit. 13) that, under the government of the house of Severus, their provincial administration was abolished; and in the subsequent troubles the annual or triennial elections of quæstors must have naturally ceased. [The quæstorship continued to exist under the Constantinian monarchy, but it became virtually a municipal office at Rome, and the quæstors were no longer [Hebrew]commended[Hebrew]" by the Emperor, but were entirely appointed by the Senate. Their chief function was to defray the cost of games.]

³⁴⁵Cum patris nomine et epistolas ipse dictaret, et edicta conscriberet, orationesque in senatu recitaret, etiam quæstoris vice. Sueton. in Tit. c. 6. The office must have acquired new dignity, which was occasionally executed by the heir-apparent of the empire. Trajan entrusted the same care to Hadrian, his quæstor and cousin. See Dodwell, Prælection. Cambden. x. xi. p. 362-394. [It is not at all likely that the quæstor of the new Monarchy can be derived from the quæstor who read the orations of Augustus in the Senate. Mommsen proposes (Ephem. Epig. 5, 625 ff.) to derive him from the vicarius a consiliis sacris, the president (as he believes) of the consistorium. In any case he was probably instituted by Constantine (Zos. v. 32). As a rule, he had precedence of the master of offices. Observe that to both these officials were diverted functions which formerly belonged to the Præt. prefect. The quæstor took his place in the consistorium (cp. App. 5), while the master of offices superseded him as commander of the palace guards.]

the supreme judicature of the Imperial consistory, with the Prætorian prefects, and the master of the offices; and he was frequently requested to resolve the doubts of inferior judges; but, as he was not oppressed with a variety of subordinate business, his leisure and talents were employed to cultivate that dignified style of eloquence which, in the corruption of taste and language, still preserves the majesty of the Roman laws.³⁴⁶ In some respects, the office of the Imperial quæstor may be compared with that of a modern chancellor; but the use of a great seal, which seems to have been adopted by the illiterate Barbarians, was never introduced to attest the public acts of the emperors. 4. The extraordinary title of count of the sacred largesses was bestowed on the treasurer-general of the revenue, with the intention perhaps of inculcating that every payment flowed from the voluntary bounty of the monarch. To conceive the almost infinite detail of the annual and daily expense of the civil and military administration in every part of a great empire. would exceed the powers of the most vigorous imagination. The actual account employed several hundred persons, distributed into eleven different offices, which were artfully contrived to examine and control their respective operations. The multitude of these agents had a natural tendency to increase; and it was more than once thought expedient to dismiss to their native homes the useless supernumeraries, who, deserting their honest labours, had pressed with too much eagerness into the lucrative profession of the finances.³⁴⁷ Twenty-nine Edition: current; Page: [148] provincial receivers, of whom eighteen were honoured with the title of count, corresponded with the treasurer; and he extended his jurisdiction over the mines, from whence the precious metals were extracted, over the mints, in which they were converted into the current coin, and over the public treasuries of the most important cities, where they were deposited for the service of the state. The foreign trade of the empire was regulated by this minister, who directed likewise all the linen and woollen manufactures, in which the successive operations of spinning, weaving, and dyeing were executed, chiefly by women of a servile condition, for the use of the palace and army. Twenty-six of these institutions are enumerated in the West, where the arts had been more recently introduced, and a still larger proportion may be allowed for the industrious provinces of the East.³⁴⁸ 5. Besides the public revenue, which an absolute monarch might levy and expend according to his pleasure, the emperors, in the capacity of opulent citizens, possessed a very extensive property, which was administered by the count, or treasurer, of the private estate. Some part had perhaps been the ancient demesnes of kings and republics; some accessions might be derived from the families which were successively invested with the purple; but the most considerable portion flowed from the impure source of confiscations and forfeitures. The Imperial estates were scattered through the provinces, from Mauritania to Britain; but the rich and fertile soil of Cappadocia tempted the

³⁴⁶[*Hebrew*] *Terris edicta daturus;*

Supplicibus responsa. [Hebrew] Oracula regis

Eloquio crevere tuo; nec dignius unquam

Majestas meminit sese Romana locutam.

Claudian in *Consulat. Mall. Theodor.* 33. See likewise Symmachus (*Epistol.* i. 17 [= 23, ed. Seeck]) and Cassiodorius (*Variar.* vi. 5).

³⁴⁷*Cod. Theod.* lv. i. tit. 30. *Cod. Justinian.* l. xii. tit. 24. [The sacred largesses corresponds to the *fiscus* of the principate. The title comes *sacrarum largitionum* came into use about the middle of the fourth century; under Constantine he was called *rationalis summæ rei* (*C.I.L.* 6, 1145), and had the rank of a count of the first order. At first a *perfectissimus*, he finally became an *illustris*.]

³⁴⁸In the departments of the two counts of the treasury, the Eastern part of the *Notitia* happens to be very defective. It may be observed that we had a treasury-chest in London, and a *gyneceum* or manufacture [of wool] at Winchester. But Britain was not thought worthy either of a mint or of an arsenal. Gaul alone possessed three of the former, and eight of the latter.

monarch to acquire in that country Edition: current; Page: [149] his fairest possessions,³⁴⁹ and either Constantine or his successors embraced the occasion of justifying avarice by religious zeal. They suppressed the rich temple of Comana, where the high priest of the goddess of war supported the dignity of a sovereign prince; and they applied to their private use the consecrated lands, which were inhabited by six thousand subjects or slaves of the Deity and her ministers.³⁵⁰ But these were not the valuable inhabitants; the plains that stretch from the foot of Mount Argæus to the banks of the Sarus bred a generous race of horses, renowned above all others in the ancient world for their majestic shape and incomparable swiftness. These sacred animals, destined for the service of the palace and the Imperial games, were protected by the laws from the profanation of a vulgar master.³⁵¹ The demesnes of Cappadocia were important enough to require the inspection of a count;³⁵² officers of an inferior rank were stationed in the other parts of the empire; and the deputies of the private, as well as those of the public, treasurer were maintained in the exercise of their independent functions, and encouraged to control the authority of the provincial Edition: current; Page: [150] magistrates.³⁵³ 6, 7. The chosen bands of cavalry and infantry which guarded the person of the emperor, were under the immediate command of the two counts of the domestics. The whole number consisted of three thousand five hundred men, divided into seven schools, or troops, of five hundred each; and in the East, this honourable service was almost entirely appropriated to the Armenians. Whenever, on public ceremonies, they were drawn up in the courts and porticoes of the palace, their lofty stature, silent order, and splendid arms of silver and gold displayed a martial pomp, not unworthy of the Roman majesty.³⁵⁴ From the seven schools two companies of horse and foot were selected, of the protectors, whose advantageous station was the hope and reward of the most deserving soldiers. They mounted guard in the interior apartments, and were occasionally despatched into the provinces to execute with celerity and vigour the orders of their master.³⁵⁵ The counts of the domestics had succeeded to the office of the Prætorian prefects, they aspired from the service of the palace to the command of armies.

The perpetual intercourse between the court and the provinces was facilitated by the construction of roads and the institution of posts. But these beneficial establishments were accidentally connected with a pernicious and intolerable abuse. Two or three hundred agents or messengers were employed, under the jurisdiction of the master of the offices, to announce the names of the annual consuls and the edicts or victories of the emperors. They insensibly assumed the licence of reporting whatever they could observe of the conduct either of magistrates or of private citizens;

³⁴⁹Cod. Theod. l. vi. tit. xxx. leg. 2, and Godefroy ad loc. [With Diocletian there ceased to be any real distinction between the *fiscus* and the *res privata*, but the double treasury was maintained. Under Diocletian the title was *magister*; Constantine changed it to *rationalis rei privatae*; subsequently this minister is called *comes largitionum privatarum*.]

³⁵⁰Strabon. Geograph. l. xii. p. 809. The other temple of Comana, in Pontus, was a colony from that of Cappadocia, l. xii. p. 825. The president Des Brosses (see his *Saluste*, tom. ii. p. 21) conjectures that the deity adored in both Comanas was *Beltis*, the *Venus* of the East, the goddess of generation; a very different being indeed from the goddess of war.

³⁵¹Cod. Theod. l. x. tit. vi. de Grege Dominico. Godefroy has collected every circumstance of antiquity relative to the Cappadocian horses. One of the finest breeds, the *Palmatian*, was the forfeiture of a rebel, whose estate lay about sixteen miles from Tyana, near the great road between Constantinople and Antioch.

³⁵²Justinian (Novell. 30 [44, ed. Zachariä]) subjected the province of the count of Cappadocia to the immediate authority of the favourite eunuch who presided over the sacred bed-chamber. [The *divina domus Cappadociae* is placed under the *praep. sacri cubiculi* in the *Notitia orientis*, x.]

³⁵³Cod. Theod. l. vi. tit. leg. 4, &c.

³⁵⁴Pancirolos, p. 102, 136. The appearance of these military domestics is described in the Latin poem of Corippus, de *Laudibus Justin.* l. iii. 157-179, p. 419, 420 of the Appendix Hist. Byzantin. Rom. 1777. [See Appendix 8.]

³⁵⁵Ammianus Marcellinus, who served so many years, obtained only the rank of a Protector. The first ten among these honourable soldiers were *Clarissimi*.

and were Edition: current; Page: [151] soon considered as the eyes of the monarch,³⁵⁶ and the scourge of the people. Under the warm influence of a feeble reign, they multiplied to the incredible number of ten thousand, disdained the mild though frequent admonitions of the laws, and exercised in the profitable management of the posts a rapacious and insolent oppression. These official spies, who regularly corresponded with the palace, were encouraged, by favour and reward, anxiously to watch the progress of every treasonable design, from the faint and latent symptoms of disaffection to the actual preparation of an open revolt. Their careless or criminal violation of truth and justice was covered by the consecrated mask of zeal; and they might securely aim their poisoned arrows at the breast either of the guilty or the innocent, who had provoked their resentment or refused to purchase their silence. A faithful subject, of Syria perhaps, or of Britain, was exposed to the danger, or at least to the dread, of being dragged in chains to the court of Milan or Constantinople, to defend his life and fortune against the malicious charge of these privileged informers. The ordinary administration was conducted by those methods which extreme necessity can alone palliate; and the defects of evidence were diligently supplied by the use of torture.³⁵⁷

The deceitful and dangerous experiment of the criminal question, as it is emphatically styled, was admitted, rather than approved, in the jurisprudence of the Romans. They applied this sanguinary mode of examination only to servile Edition: current; Page: [152] bodies, whose sufferings were seldom weighed by those haughty republicans in the scale of justice or humanity: but they would never consent to violate the sacred person of a citizen, till they possessed the clearest evidence of his guilt.³⁵⁸ The annals of tyranny, from the reign of Tiberius to that of Domitian, circumstantially relate the executions of many innocent victims; but, as long as the faintest remembrance was kept alive of the national freedom and honour, the last hours of a Roman were secure from the danger of ignominious torture.³⁵⁹ The conduct of the provincial magistrates was not, however, regulated by the practice of the city or the strict maxims of the civilians. They found the use of torture established, not only among the slaves of oriental despotism, but among the Macedonians, who obeyed a limited monarch; among the Rhodians, who flourished by the liberty of commerce; and even among the sage Athenians, who had asserted and adorned the dignity of human kind.³⁶⁰ The acquiescence of the provincials encouraged their governors to acquire, or perhaps to usurp, a discretionary power of employing the rack, to extort from vagrants or plebeian criminals the confession of their guilt, till they insensibly proceeded to confound the distinction of rank and to disregard the privileges of Roman citizens. The apprehensions of the

³⁵⁶Xenophon, *Cyropæd.* l. viii. Brisson, *de Regno Persico*, l. i. No. 190, p. 264. The emperors adopted with pleasure this Persian metaphor. [Originally, like the *frumentarii*, superintendents of the supplies of public corn, the *agentes in rebus* acted as secret police and became so much detested that Diocletian abolished them. They were revived as a military schola, and employed in the same way as confidential agents.]

³⁵⁷For the *Agentes in Rebus*, see Ammian. l. xv. c. 3, l. xvi. c. 5, l. xxii. c. 7, with the curious annotations of Valesius. Cod. Theod. l. vi. t. xxvii., xxviii., xxix. Among the passages collected in the Commentary of Godefroy, the most remarkable one is from Libanius, in his discourse concerning the death of Julian.

³⁵⁸The *Pandects* (l. xlvi. tit. xviii.) contain the sentiments of the most celebrated civilians on the subject of torture. They strictly confine it to slaves; and Ulpian himself is ready to acknowledge that *Res est fragilis, et periculosa, et quæ veritatem fallat*.

³⁵⁹In the conspiracy of Piso against Nero, Epicharis (libertina mulier) was the only person tortured; the rest were intacti tormentis. It would be superfluous to add a weaker, and it would be difficult to find a stronger, example. Tacit. *Annal.* xv. 57.

³⁶⁰*Dicendum . . . de institutis Atheniensium, Rhodiorum, doctissimorum hominum, apud quos etiam (id quod acerbissimum est) liberi civesque torquentur.* Cicero. *Partit. Orat.* c. 34. We may learn from the trial of Philotas the practice of the Macedonians (Diodor. *Sicul.* l. xvii. p. 604. Q. Curt. l. vi. c. 11).

subjects urged them to solicit, and the interest of the sovereign engaged him to grant, a variety of special exemptions, which Edition: current; Page: [153] tacitly allowed, and even authorised, the general use of torture. They protected all persons of illustrious or honourable rank, bishops and their presbyters, professors of the liberal arts, soldiers and their families, municipal officers, and their posterity to the third generation, and all children under the age of puberty.³⁶¹ But a fatal maxim was introduced into the new jurisprudence of the empire, that in the case of treason, which included every offence that the subtlety of lawyers could derive from an hostile intention towards the prince or republic,³⁶² all privileges were suspended, and all conditions were reduced to the same ignominious level. As the safety of the emperor was avowedly preferred to every consideration of justice or humanity, the dignity of age and the tenderness of youth were alike exposed to the most cruel tortures; and the terrors of a malicious information, which might select them as the accomplices, or even as the witnesses, perhaps, of an imaginary crime, perpetually hung over the heads of the principal citizens of the Roman world.³⁶³

These evils, however terrible they may appear, were confined to the smaller number of Roman subjects, whose dangerous situation was in some degree compensated by the enjoyment of those advantages, either of nature or of fortune, which exposed them to the jealousy of the monarch. The obscure millions of a great empire have much less to dread Edition: current; Page: [154] from the cruelty than from the avarice of their masters; and their humble happiness is principally affected by the grievance of excessive taxes, which, gently pressing on the wealthy, descend with accelerated weight on the meaner and more indigent classes of society. An ingenious philosopher³⁶⁴ has calculated the universal measure of the public impositions by the degrees of freedom and servitude; and ventures to assert that, according to an invariable law of nature, it must always increase with the former, and diminish in a just proportion to the latter. But this reflection, which would tend to alleviate the miseries of despotism, is contradicted at least by the history of the Roman empire; which accuses the same princes of despoiling the senate of its authority and the provinces of their wealth. Without abolishing all the various customs and duties on merchandises, which are imperceptibly discharged by the apparent choice of the purchaser, the policy of Constantine and his successors preferred a simple and direct mode of taxation, more congenial to the spirit of an arbitrary government.³⁶⁵

The name and use of the indictions,³⁶⁶ which serve to ascertain Edition: current; Page: [155] the

³⁶¹Heineccius (Element. Jur. Civil. part vii. p. 81) has collected these exemptions into one view.

³⁶²This definition of the sage Ulpian (Pandect. l. xlviii. tit. iv.) seems to have been adapted to the court of Caracalla rather than to that of Alexander Severus. See the Codes of Theodosius and Justinian ad leg. Juliam majestatis.

³⁶³Arcadius Charisius is the oldest lawyer quoted in the Pandects to justify the universal practice of torture in all cases of treason; but this maxim of tyranny, which is admitted by Ammianus (l. xix. c. 12) with the most respectful terror, is enforced by several laws of the successors of Constantine. See Cod. Theod. l. ix. tit. xxxv. In majestatis crimine omnibus æqua est conditio.

³⁶⁴Montesquieu, *Esprit des Loix*, l. xii. c. 13.

³⁶⁵Mr. Hume (Essays, vol. i. p. 389) has seen this important truth, with some degree of perplexity.

³⁶⁶The cycle of indictions, which may be traced as high as the reign of Constantius, or perhaps of his father Constantine, is still employed by the papal court: but the commencement of the year has been very reasonably altered to the first of January. See [*Hebrew*] *Art de vérifier les Dates*, p. xi.; and *Dictionnaire Raison. de la Diplomatie*, tom. ii. p. 25; two accurate treatises, which come from the workshop of the Benedictines. [A fifteen-yearly valuation of property, for purposes of taxation, was as old as Hadrian (Mommson, *Staatsrecht*, ii. 975). The financial year or [*Hebrew*] *indiction* [*Hebrew*] ran from 1st Sept. to 31st Aug., and thus included unequal parts of two calendar years; as a mode of chronology, it came into general use in the course of the fifth century. On this system 312-13 ad was regarded as the first year of the first fifteen-year cycle. Accordingly, if we wish to determine the indiction corresponding to any year, we subtract 312 and divide the difference by 15; the remainder is the indiction to which the first eight months of the

chronology of the middle ages, was derived from the regular practice of the Roman tributes.³⁶⁷ The emperor subscribed with his own hand, and in purple ink, the solemn edict, or indiction, which was fixed up in the principal city of each diocese during two months previous to the first day of September. And, by a very easy connection of ideas, the word indiction was transferred to the measure of tribute which it prescribed, and to the annual term which it allowed for the payment. This general estimate of the supplies was proportioned to the real and imaginary wants of the state; but, as often as the expense exceeded the revenue, or the revenue fell short of the computation, an additional tax, under the name of superindiction, was imposed on the people, and the most valuable attribute of sovereignty was communicated to the Prætorian prefects, who, on some occasions, were permitted to provide for the unforeseen and extraordinary exigencies of the public service. The execution of these laws (which it would be tedious to pursue in their minute and intricate detail) consisted of two distinct operations: the resolving the general imposition into its constituent parts, which were assessed on the provinces, the cities, and the individuals of the Roman world, and the collecting the separate contributions Edition: current; Page: [156] of the individuals, the cities, and the provinces, till the accumulated sums were poured into the Imperial treasuries. But, as the account between the monarch and the subject was perpetually open, and as the renewal of the demand anticipated the perfect discharge of the preceding obligation, the weighty machine of the finances was moved by the same hands round the circle of its yearly revolution. Whatever was honourable or important in the administration of the revenue was committed to the wisdom of the prefects and their provincial representatives; the lucrative functions were claimed by a crowd of subordinate officers, some of whom depended on the treasurer, others on the governor of the province; and who, in the inevitable conflicts of a perplexed jurisdiction, had frequent opportunities of disputing with each other the spoils of the people. The laborious offices, which could be productive only of envy and reproach, of expense and danger, were imposed on the Decurions, who formed the corporations of the cities, and whom the severity of the Imperial laws had condemned to sustain the burthens of civil society.³⁶⁸ The whole landed property of the empire (without excepting the patrimonial estates of the monarch) was the object of ordinary taxation; and every new purchaser contracted the obligations of the former proprietor. An accurate census,³⁶⁹ or survey, was the only equitable mode of ascertaining the proportion which every citizen should be obliged to contribute for the public service; and from the well-known period of the indictions there

given year (and the last four of the preceding year) belong. Take 700 ad: $(700-312) \div 15 = 25$ with a remainder of 13; therefore 1st Sept. 699 ad to 31st Aug. 700 ad is a 13th indiction. (If there is no remainder, the indiction is 15.) It is clear that the converse process requires a knowledge of the approximate period in terms of Anni Domini. Thus, if we know the date of the reign of Justinian ii., we may determine the indiction, say, of the first year in that reign, and so reckon which year corresponds to Ind. 13. [*Hebrew*] In the twelfth century this usage changed; the period of fifteen years was called the indiction; and the Birth of Christ was adopted as the starting-point. A year was known as the first, second, &c., year of such and such an indiction. [*Hebrew*] It is also to be observed that in Egypt (under the empire) the indictional year did not begin on 1st Sept. or any fixed date, but varied from year to year. This has been shown by Wilcken (*Hermes*, 19, 293 sqq.), whereas it had been formerly thought (by Hartel) that the Egyptian ind. began on some day between 11th and 15th June.]

³⁶⁷The first twenty-eight titles of the eleventh book of the Theodosian Code are filled with the circumstantial regulations on the important subject of tributes; but they suppose a clearer knowledge of fundamental principles than it is at present in our power to attain.

³⁶⁸The title concerning the Decurions (l. xii. tit. i.) is the most ample in the whole Theodosian Code; since it contains not less than one hundred and ninety-two distinct laws to ascertain the duties and privileges of that useful order of citizens.

³⁶⁹*Habemus enim et hominum numerum qui delati sunt, et agrum modum.* Eumenius in Panegyry. Vet. viii. 6. See Cod. Theod. l. xiii. tit. x., xi., with Godefroy [*Hebrew*]'s Commentary.

is reason to believe that this difficult and expensive operation was repeated at the regular distance of fifteen years. The lands were measured by surveyors, who were sent into Edition: current; Page: [157] the provinces; their nature, whether arable or pasture, or vineyards or woods, was distinctly reported; and an estimate was made of their common value from the average produce of five years. The numbers of slaves and of cattle constituted an essential part of the report; an oath was administered to the proprietors, which bound them to disclose the true state of their affairs; and their attempts to prevaricate, or elude the intention of the legislator, were severely watched, and punished as a capital crime which included the double guilt of treason and sacrilege.³⁷⁰ A large portion of the tribute was paid in money; and of the current coin of the empire, gold alone could be legally accepted.³⁷¹ The remainder of the taxes, according to the proportions determined by the annual indiction, was furnished in a manner still more direct, and still more oppressive. According to the different nature of lands, their real produce, in the various articles of wine or oil, corn or barley, wood or iron, was transported by the labour or at the expense of the provincials to the Imperial magazines, from whence they were occasionally distributed, for the use of the court, of the army, and of the two capitals, Rome and Constantinople. The commissioners of the revenue were so frequently obliged to make considerable purchases that they were strictly prohibited from allowing any compensation or from receiving in money the value of those supplies which were exacted in kind. In the primitive simplicity of small communities, this method may be well adapted to collect the almost voluntary offerings of the people; but it is at once susceptible of the utmost latitude and of the utmost Edition: current; Page: [158] strictness, which in a corrupt and absolute monarchy must introduce a perpetual contest between the power of oppression and the arts of fraud.³⁷² The agriculture of the Roman provinces was insensibly ruined, and, in the progress of despotism, which tends to disappoint its own purpose, the emperors were obliged to derive some merit from the forgiveness of debts, or the remission of tributes, which their subjects were utterly incapable of paying. According to the new division of Italy, the fertile and happy province of Campania, the scene of the early victories and of the delicious retirements of the citizens of Rome, extended between the sea and the Apennine from the Tiber to the Silarus. Within sixty years after the death of Constantine, and on the evidence of an actual survey, an exemption was granted in favour of three hundred and thirty thousand English acres of desert and uncultivated land; which amounted to one-eighth of the whole surface of the province. As the footsteps of the Barbarians had not yet been seen in Italy, the cause of this amazing desolation, which is recorded in the laws, can be ascribed only to the administration of the Roman emperors.³⁷³

Either from design or from accident, the mode of assessment seemed to unite the substance of a

³⁷⁰*Siquis sacrilegâ vitem falce succiderit, aut feracium ramorum foetus hebetaverit, quo declinet fidem censuum, et mentiatu callide paupertatis ingenium, mox detectus capitale subibit exitium, et bona ejus in fisci jura migrabunt.* Cod. Theod. l. xiii. tit. xi. leg. 1. Although this law is not without its studied obscurity, it is, however, clear enough to prove the minuteness of the inquisition, and the disproportion of the penalty.

³⁷¹The astonishment of Pliny would have ceased. *Equidem miror P. R. victis gentibus argentum semper imperitasse non aurum.* Hist. Natur. xxxiii. 15.

³⁷²Some precautions were taken (see Cod. Theod. l. xi. tit. ii. and Cod. Justinian. l. x. tit. xxvii. leg. 1, 2, 3) to restrain the magistrates from the abuse of their authority, either in the exaction or in the purchase of corn: but those who had learning enough to read the orations of Cicero against Verres (iii. de Frumento) might instruct themselves in all the various arts of oppression, with regard to the weight, the price the quality, and the carriage. The avarice of an unlettered governor would supply the ignorance of precept or precedent.

³⁷³Cod. Theod. l. xi. tit. xxviii. leg. 2, published the 24th of March, ad 395, by the emperor Honorius, only two months after the death of his father Theodosius. He speaks of 528,042 Roman jugera, which I have reduced to the English measure. The jugerum contained 28,800 square Roman feet.

land-tax with the forms of a capitation.³⁷⁴ The returns which were sent of Edition: current; Page: [159] every province or district expressed the number of tributary subjects and the amount of the public impositions. The latter of these sums was divided by the former; and the estimate, that such a province contained so many capita, or heads of tribute, and that each head was rated at such a price, was universally received, not only in the popular, but even in the legal, computation. The value of a tributary head must have varied, according to many accidental, or at least fluctuating, circumstances; but some knowledge has been preserved of a very curious fact, the more important, since it relates to one of the richest provinces of the Roman empire, and which now flourishes as the most splendid of the European kingdoms. The rapacious ministers of Constantius had exhausted the wealth of Gaul, by exacting twenty-five pieces of gold for the annual tribute of every head. The humane policy of his successor reduced the capitation to seven pieces.³⁷⁵ A moderate proportion between these opposite extremes of extravagant oppression and of transient indulgence may Edition: current; Page: [160] therefore be fixed at sixteen pieces of gold, or about nine pounds sterling, the common standard perhaps of the impositions of Gaul.³⁷⁶ But this calculation, or rather indeed the facts from whence it is deduced, cannot fail of suggesting two difficulties to a thinking mind, who will be at once surprised by the equality and by the enormity of the capitation. An attempt to explain them may perhaps reflect some light on the interesting subject of the finances of the declining empire.

I. It is obvious that, as long as the immutable constitution of human nature produces and maintains so unequal a division of property, the most numerous part of the community would be deprived of their subsistence by the equal assessment of a tax from which the sovereign would

³⁷⁴Godefroy (Cod. Theod. tom. vi. p. 116) argues with weight and learning on the subject of the capitation; but, while he explains the caput as a share or measure of property, he too absolutely excludes the idea of a personal assessment. [The old land tax or tributum (so called in imperial provinces; stipendium in senatorial) now became the capitatio terrena (or iugatio), and the assessment was made on a valuation, not of the produce, but of the capital. In the Eastern part of the empire, property was divided into a number of unities which paid the same tax, and consequently differed in size according to the value of the land. (Seven classes of land were distinguished: 1, wine-producing; 2, 3, oil-producing; 4, 5, 6, arable; 7, pasture.) The unity or iugum was valued at 1000 solidi, and might be made up of land of different classes. Under Diocletian this tax was paid in kind, though assessed in money (annonae, measures of corn, and capita, units of hay, &c., being equated with money-values), but after Constantine[Hebrew]'s monetary reforms the payment could be made in coin. Landed proprietors had, besides this tax, to supply rations for the support of the government officials and the army. The cap. terrena must be distinguished from the cap. humana or poll-tax, which is very obscure, but possibly fell on the coloni, as it certainly did on widows and orphans (so Schiller). Compare Mommsen[Hebrew]'s article in Hermes, 3, 429 sqq.; Schiller, R.G. ii. 68 sqq.]

³⁷⁵Quid profuerit (Julianus) anhelantibus extremâ penuriâ Gallis, hinc maxime claret, quod primitus partes eas ingressus, pro capitibus singulis tributi nomine vicenos quinos aureos reperit flagitari; discedens vero septenos tantum munera universa complentes. Ammian. l. xvi. c. 5. [The caput is the iugum.]

³⁷⁶In the calculation of any sum of money under Constantine and his successors, we need only refer to the excellent discourse of Mr. Greaves on the Denarius for the proof of the following principles: 1. That the ancient and modern Roman pound, containing 5256 grains of Troy weight, is about one-twelfth lighter than the English pound, which is composed of 5760 of the same grains. 2. That the pound of gold, which had once been divided into forty-eight aurei, was at this time coined into seventy-two smaller pieces of the same denomination. 3. That five of these aurei were the legal tender for a pound of silver, and that consequently the pound of gold was exchanged for fourteen pounds eight ounces of silver according to the Roman, or about thirteen pounds according to the English, weight. 4. That the English pound of silver is coined into sixty-two shillings. From these elements we may compute the Roman pound of gold, the usual method of reckoning large sums, at forty pounds sterling; and we may fix the currency of the aureus at somewhat more than eleven shillings. [Before Diocletian 70 aurei were struck from a pound of gold. Diocletian raised the value of the aureus from 1/70 to 1/60, and Constantine reduced it again, but to 1/72. This new Constantinian aureus was also called Solidus (whence Ital. soldo, French sou). Schiller has shown that from 307 to 323 there was a transitional period in which the 1/72 lb. aureus was struck in the West, but not in the East. Röm. Gesch. ii. p. 222.]

derive a very trifling revenue. Such indeed might be the theory of the Roman capitation; but in the practice, this unjust equality was no longer felt, as the tribute was collected on the principle of a real, not of a personal, imposition. Several indigent citizens contributed to compose a single head, or share of taxation; while the wealthy provincial, in proportion to his fortune, Edition: current; Page: [161] alone represented several of those imaginary beings. In a poetical request, addressed to one of the last and most deserving of the Roman princes who reigned in Gaul, Sidonius Apollinaris personifies his tribute under the figure of a triple monster, the Geryon of the Grecian fables, and entreats the new Hercules that he would most graciously be pleased to save his life by cutting off three of his heads.³⁷⁷ The fortune of Sidonius far exceeded the customary wealth of a poet; but, if he had pursued the allusion, he must have painted many of the Gallic nobles with the hundred heads of the deadly Hydra spreading over the face of the country and devouring the substance of an hundred families. II. The difficulty of allowing an annual sum of about nine pounds sterling, even for the average of the capitation of Gaul, may be rendered more evident by the comparison of the present state of the same country, as it is now governed by the absolute monarch of an industrious, wealthy, and affectionate people. The taxes of France cannot be magnified, either by fear or by flattery, beyond the annual amount of eighteen millions sterling, which ought perhaps to be shared among four and twenty millions of inhabitants.³⁷⁸ Seven millions of these, in the Edition: current; Page: [162] capacity of fathers or brothers or husbands, may discharge the obligations of the remaining multitude of women and children; yet the equal proportion of each tributary subject will scarcely rise above fifty shillings of our money, instead of a proportion almost four times as considerable, which was regularly imposed on their Gallic ancestors. The reason of this difference may be found, not so much in the relative scarcity or plenty of gold and silver, as in the different state of society in ancient Gaul and in modern France. In a country where personal freedom is the privilege of every subject, the whole mass of taxes, whether they are levied on property or on consumption, may be fairly divided among the whole body of the nation. But the far greater part of the lands of ancient Gaul, as well as of the other provinces of the Roman world, were cultivated by slaves, or by peasants whose dependent condition was a less rigid servitude.³⁷⁹ In such a state the poor were maintained at the expense of the masters, who enjoyed the fruits of their labour; and, as the rolls of tribute were filled only with the names of those citizens who possessed the means of an honourable, or at least of a decent, subsistence, the comparative smallness of their numbers explains and justifies the high rate of their capitation. The truth of this assertion may be illustrated by the following example: The *Ædui*, one of the most powerful and civilised tribes or

³⁷⁷*Geryones nos esse puta, monstrumque tributum,*

Hic capita, ut vivam, tu mihi tolle tria.

[*Hebrew*] Sidon. Apollinar. Carm. xiii.

³⁷⁸This assertion, however formidable it may seem, is founded on the original registers of births, deaths, and marriages, collected by public authority, and now deposited in the *Contrôle Général* at Paris. The annual average of births throughout the whole kingdom, taken in five years (from 1770 to 1774 (both inclusive), is 479,649 boys and 449,269 girls, in all 928,918 children. The province of French Hainault alone furnishes 9906 births: and we are assured, by an actual enumeration of the people, annually repeated from the year 1773 to the year 1776, that, upon an average, Hainault contains 257,097 inhabitants. By the rules of fair analogy, we might infer that the ordinary proportion of annual births to the whole people, is about 1 to 26; and that the kingdom of France contains 24,151,868 persons of both sexes and of every age. If we content ourselves with the more moderate proportion of 1 to 25, the whole population will amount to 23,222,950. From the diligent researches of the French government (which are not unworthy of our own imitation), we may hope to obtain a still greater degree of certainty on this important subject.

³⁷⁹*Cod. Theod. l. v. tit. ix., x., xi. Cod. Justinian. l. xi. tit. lxxiii. Coloni appellantur qui conditionem debent genitali solo, propter agriculturam sub dominio possessorum. Augustin. de Civitate Dei, l. x. c. 1.*

cities of Gaul, occupied an extent of territory which now contains above five hundred thousand inhabitants in the two ecclesiastical dioceses of Autun and Nevers:³⁸⁰ and with the Edition: current; Page: [163] probable accession of those of Châlons and Macon,³⁸¹ the population would amount to eight hundred thousand souls. In the time of Constantine, the territory of the Ædui afforded no more than twenty-five thousand heads of capitation, of whom seven thousand were discharged by that prince from the intolerable weight of tribute.³⁸² A just analogy would seem to countenance the opinion of an ingenious historian,³⁸³ that the free and tributary citizens did not surpass the number of half a million; and if, in the ordinary administration of government, their annual payments may be computed at about four millions and a half of our money, it would appear that, although the share of each individual was four times as considerable, a fourth part only of the modern taxes of France was levied on the Imperial province of Gaul.³⁸⁴ The exactions of Constantius may be calculated at seven millions Edition: current; Page: [164] sterling, which were reduced to two millions by the humanity or the wisdom of Julian.

But this tax or capitation on the proprietors of land would have suffered a rich and numerous class of free citizens to escape. With the view of sharing that species of wealth which is derived from art or labour, and which exists in money or in merchandise, the emperors imposed a distinct and personal tribute on the trading part of their subjects.³⁸⁵ Some exemptions, very strictly confined both in time and place, were allowed to the proprietors who disposed of the produce of their own estates. Some indulgence was granted to the profession of the liberal arts: but every other branch of commercial industry was affected by the severity of the law. The honourable merchant of Alexandria, who imported the gems and spices of India for the use of the Western world; the usurer, who derived from the interest of money a silent and ignominious profit; the ingenious manufacturer, the diligent mechanic, and even the most obscure retailer of a sequestered village, were obliged to admit the officers of the revenue into the partnership of their gain: and the sovereign of the Roman empire, who tolerated the profession, consented to share the infamous salary, of public prostitutes. As this general tax upon industry was collected every fourth year, it was styled the Lustral Contribution: and the historian Zosimus³⁸⁶ laments that the approach of the fatal period

³⁸⁰The ancient jurisdiction of (Augustodunum) Autun in Burgundy, the capital of the Ædui, comprehended the adjacent territory of (Noviodunum) Nevers. See d[Hebrew]'Anville, Notice de l[Hebrew]'ancienne Gaule, p. 491. The two dioceses of Autun and Nevers are now composed, the former of 610, and the latter of 160, parishes. The registers of births, taken during eleven years, in 476 parishes of the same province of Burgundy, and multiplied by the moderate proportion of 25 (see Messance, Recherches sur la Population, p. 142), may authorise us to assign an average number of 656 persons for each parish, which being again multiplied by the 770 parishes of the diocese of Nevers and Autun will produce the sum of 505,120 persons for the extent of country which was once possessed by the Ædui.

³⁸¹We might derive an additional supply of 301,750 inhabitants from the dioceses of Châlons (Cabillonum) and of Macon (Matisco); since they contain, the one 200, and the other 260, parishes. This accession of territory might be justified by very specious reasons. 1. Châlons and Macon were undoubtedly within the original jurisdiction of the Ædui (see d[Hebrew]'Anville, Notice, p. 187, 443). 2. In the Notitia of Gaul, they are enumerated not as Civitates, but merely as Castra. 3. They do not appear to have been episcopal seats before the fifth and sixth centuries. Yet there is a passage in Eumenius (Panegy. Vet. viii. 7) which very forcibly deters me from extending the territory of the Ædui, in the reign of Constantine, along the beautiful banks of the navigable Sône.

³⁸²Eumenius in Panegy. Vet. viii. 11. [The land of the Ædui contained 32,000 capita of land, which the discharge of 7000 reduced to 25,000. The passage of Eumenius was first explained rightly by Savigny. Smith (ed. of Gibbon, ii. 341) has a good note on the errors of Gibbon[Hebrew]'s computation.]

³⁸³L[Hebrew]'Abbé du Bos, Hist. Critique de la M. F. tom. i. p. 121.

³⁸⁴[Gibbon does not take into account the other taxes in the empire.]

³⁸⁵See Cod. Theod. l. xiii. tit. i. and iv.

³⁸⁶Zosimus, l. ii. p. 115 [c. 38]. There is probably as much passion and prejudice in the attack of Zosimus as in the

was announced by the tears and terrors of the citizens, who were often compelled by the impending scourge to embrace the most abhorred and unnatural methods of procuring the sum at which their property had been assessed. The testimony of Zosimus cannot indeed be justified from the charge of passion and prejudice; but, from the nature of this tribute, it Edition: current; Page: [165] seems reasonable to conclude that it was arbitrary in the distribution, and extremely rigorous in the mode of collecting. The secret wealth of commerce, and the precarious profits of art or labour, are susceptible only of a discretionary valuation, which is seldom disadvantageous to the interest of the treasury; and, as the person of the trader supplies the want of a visible and permanent security, the payment of the imposition, which, in the case of a land-tax, may be obtained by the seizure of property, can rarely be extorted by any other means than those of corporal punishments. The cruel treatment of the insolvent debtors of the state is attested, and was perhaps mitigated, by a very humane edict of Constantine, who, disclaiming the use of racks and of scourges, allots a spacious and airy prison for the place of their confinement.³⁸⁷

These general taxes were imposed and levied by the absolute authority of the monarch; but the occasional offerings of the coronary gold still retained the name and semblance of popular consent. It was an ancient custom that the allies of the republic, who ascribed their safety or deliverance to the success of the Roman arms; and even the cities of Italy, who admired the virtues of their victorious general; adorned the pomp of his triumph by their voluntary gifts of crowns of gold, which, after the ceremony, were consecrated in the temple of Jupiter, to remain a lasting monument of his glory to future ages. The progress of zeal and flattery soon multiplied the number, and increased the size, of these popular donations; and the triumph of Cæsar was enriched with two thousand eight hundred and twenty-two massy crowns, whose weight amounted to twenty thousand four hundred and fourteen pounds of gold. This treasure was immediately melted down by the prudent dictator, who was satisfied that it would be more serviceable to his soldiers than to the gods: his example was imitated by his successors; and the custom was introduced of exchanging these splendid ornaments for the more acceptable present of Edition: current; Page: [166] the current gold coin of the empire.³⁸⁸ The spontaneous offering was at length exacted as the debt of duty; and, instead of being confined to the occasion of a triumph, it was supposed to be granted by the several cities and provinces of the monarchy as often as the emperor condescended to announce his accession, his consulship, the birth of a son, the creation of a Cæsar, a victory over the Barbarians, or any other real or imaginary event which graced the annals of his reign. The peculiar free gift of the senate of Rome was fixed by custom at sixteen hundred pounds of gold, or about sixty-four thousand pounds sterling. The oppressed subjects celebrated their own felicity, that their sovereign should graciously consent to accept this feeble but voluntary testimony of their loyalty and gratitude.³⁸⁹

elaborate defence of the memory of Constantine by the zealous Dr. Howell. Hist. of the World, vol. ii. p 20. [The lustralis collatio was also called chrysargyron.]

³⁸⁷Cod. Theod. l. xi. tit. vii. leg. 3.

³⁸⁸See Lipsius de Magnitud. Romana, l. ii. c. 9. The Tarragonese Spain presented the emperor Claudius with a crown of gold of seven, and Gaul with another of nine, hundred pounds[*Hebrew*] weight. I have followed the rational emendation of Lipsius.

³⁸⁹Cod. Theod. l. xii. tit. xiii. The senators were supposed to be exempt from the Aurum Coronarium; but the Auri Oblatio, which was required at their hands, was precisely of the same nature. [The amount mentioned in the text was that paid on the Decennalia of Valentinian ii. (Symmachus, Relat. 13, 3). The senators had also to pay a regular tax, the follis, paid by the emperor himself as a senator, which did not free him from the land-tax, if he were a proprietor. The follis was of three grades: 8, 4, and 2 pounds of gold.]

A people elated by pride, or soured by discontent, are seldom qualified to form a just estimate of their actual situation. The subjects of Constantine were incapable of discerning the decline of genius and manly virtue, which so far degraded them below the dignity of their ancestors; but they could feel and lament the rage of tyranny, the relaxation of discipline, and the increase of taxes. The impartial historian, who acknowledges the justice of their complaints, will observe some favourable circumstances which tended to alleviate the misery of their condition. The threatening tempest of Barbarians, which so soon subverted the foundations of Roman greatness, was still repelled, or suspended, on the Edition: current; Page: [167] frontiers. The arts of luxury and literature were cultivated, and the elegant pleasures of society were enjoyed, by the inhabitants of a considerable portion of the globe. The forms, the pomp, and the expense of the civil administration contributed to restrain the irregular licence of the soldiers; and, although the laws were violated by power or perverted by subtlety, the sage principles of the Roman jurisprudence preserved a sense of order and equity, unknown to the despotic governments of the East. The rights of mankind might derive some protection from religion and philosophy; and the name of freedom, which could no longer alarm, might sometimes admonish, the successors of Augustus that they did not reign over a nation of slaves or barbarians.³⁹⁰

Edition: current; Page: [168]

³⁹⁰The great Theodosius, in his judicious advice to his son (Claudian in iv. Consulat. Honorii, 214, &c.), distinguishes the station of a Roman prince from that of a Parthian monarch. Virtue was necessary for the one; birth might suffice for the other. [In connection with Constantine[*Hebrew*]'s finance, it should be observed that the oppressiveness of taxation in the latter part of his reign, as noticed by Zosimus, ii. 38, was probably caused in a great measure by the enormous expenses connected with the foundation of his new city (cp. Schiller, ii. 226). We must notice too the immunities from taxation which he allowed to certain favoured classes and communities; e.g., to physicians and professors, Cod. Theod. 13, 4, 1; Athens received supplies of corn, Julian. Or. i. 10.]

Chapter Xviii

Character of Constantine [Hebrew] Gothic War [Hebrew] Death of Constantine [Hebrew] Division of the Empire among his three Sons [Hebrew] Persian War [Hebrew] Tragic Deaths of Constantine the Younger and Constans [Hebrew] Usurpation of Magnentius [Hebrew] Civil War [Hebrew] Victory of Constantius

The character of the prince who removed the seat of empire and introduced such important changes into the civil and religious constitution of his country has fixed the attention, and divided the opinions, of mankind. By the grateful zeal of the Christians, the deliverer of the church has been decorated with every attribute of a hero, and even of a saint; while the discontent of the vanquished party has compared Constantine to the most abhorred of those tyrants who, by their vice and weakness, dishonoured the Imperial purple. The same passions have in some degree been perpetuated to succeeding generations, and the character of Constantine is considered, even in the present age, as an object either of satire or of panegyric. By the impartial union of those defects which are confessed by his warmest admirers and of those virtues which are acknowledged by his most implacable enemies, we might hope to delineate a just portrait of that extraordinary man, which the truth and candour of history should adopt without a blush.³⁹¹ But it would soon appear that the vain attempt to blend such discordant colours, and Edition: current; Page: [169] to reconcile such inconsistent qualities, must produce a figure monstrous rather than human, unless it is viewed in its proper and distinct lights by a careful separation of the different periods of the reign of Constantine.

The person, as well as the mind, of Constantine had been enriched by Nature with her choicest endowments. His stature was lofty, his countenance majestic, his deportment graceful; his strength and activity were displayed in every manly exercise, and from his earliest youth to a very advanced season of life, he preserved the vigour of his constitution by a strict adherence to the domestic virtues of chastity and temperance. He delighted in the social intercourse of familiar conversation; and, though he might sometimes indulge his disposition to raillery with less reserve than was required by the severe dignity of his station, the courtesy and liberality of his manners gained the hearts of all who approached him. The sincerity of his friendship has been suspected; yet he shewed, on some occasions, that he was not incapable of a warm and lasting attachment. The disadvantage of an illiterate education had not prevented him from forming a just estimate of the value of learning; and the arts and sciences derived some encouragement from the munificent protection of Constantine. In the despatch of business, his diligence was indefatigable; and the active powers of his mind were almost continually exercised in reading, writing, or meditating, in giving audience to ambassadors, and in examining the complaints of his subjects. Even those who censured the propriety of his measures were compelled to acknowledge that he possessed magnanimity to conceive, and patience to execute, the most arduous designs, without being checked either by the prejudices of education or by the clamours of the multitude. In the field, he infused his own intrepid spirit into the troops, whom he conducted with the talents of a consummate general; and to his abilities, rather than to his fortune, we may ascribe the signal victories which he obtained Edition: current; Page: [170] over the foreign and domestic foes of the republic. He loved glory, as the reward, perhaps as the motive, of his labours. The boundless ambition, which, from the

³⁹¹On ne se trompera point sur Constantin, en croyant tout le mal qu[Hebrew]'en dit Eusèbe, et tout le bien qu[Hebrew]'en dit Zosime. Fleury, Hist. Ecclésiastique, t. iii. p. 233. Eusebius and Zosimus form indeed the two extremes of flattery and invective. The intermediate shades are expressed by those writers whose character or situation variously tempered the influence of their religious zeal.

moment of his accepting the purple at York, appears as the ruling passion of his soul, may be justified by the dangers of his own situation, by the character of his rivals, by the consciousness of superior merit, and by the prospect that his success would enable him to restore peace and order to the distracted empire. In his civil wars against Maxentius and Licinius, he had engaged on his side the inclinations of the people, who compared the undissembled vices of those tyrants with the spirit of wisdom and justice which seemed to direct the general tenor of the administration of Constantine.³⁹²

Had Constantine fallen on the banks of the Tiber, or even in the plains of Hadrianople, such is the character which, with a few exceptions, he might have transmitted to posterity. But the conclusion of his reign (according to the moderate and indeed tender sentence of a writer of the same age) degraded him from the rank which he had acquired among the most deserving of the Roman princes.³⁹³ In the life of Augustus, we behold the tyrant of the republic converted, almost by imperceptible degrees, into the father of his country and of human kind. In that of Constantine, we may contemplate a hero, who had so long inspired his subjects with love and his enemies with terror, degenerating into a cruel and dissolute monarch, Edition: current; Page: [171] corrupted by his fortune, or raised by conquest above the necessity of dissimulation. The general peace which he maintained during the last fourteen years of his reign was a period of apparent splendour rather than of real prosperity; and the old age of Constantine was disgraced by the opposite yet reconcilable vices of rapaciousness and prodigality. The accumulated treasures found in the palaces of Maxentius and Licinius were lavishly consumed; the various innovations introduced by the conqueror were attended with an increasing expense; the cost of his buildings, his court, and his festivals required an immediate and plentiful supply; and the oppression of the people was the only fund which could support the magnificence of the sovereign.³⁹⁴ His unworthy favourites, enriched by the boundless liberality of their master, usurped with impunity the privilege of rapine and corruption.³⁹⁵ A secret but universal decay was felt in every part of the public administration, and the emperor himself, though he still retained the obedience, gradually lost the esteem, of his subjects. The dress and manners which, towards the decline of life, he chose to affect, served only to degrade him in the eyes of mankind. The Asiatic pomp, which had been adopted by the pride of Diocletian, assumed an air of softness and effeminacy in the person of Constantine. He is represented with false hair of various colours, laboriously arranged by the skilful artists of the times; a diadem of a new and more expensive fashion; a profusion of gems and pearls, of collars and bracelets, and a variegated flowing robe of silk, most curiously embroidered with flowers of gold. In such apparel, scarcely to be excused by the youth and folly of Elagabalus, Edition: current;

³⁹²The virtues of Constantine are collected for the most part from Eutropius and the younger Victor, two sincere Pagans, who wrote after the extinction of his family. Even Zosimus and the emperor Julian acknowledge his personal courage and military achievements.

³⁹³See Eutropius, x. 6. *In primo Imperii tempore optimis principibus, ultimo mediis comparandus*. From the ancient Greek version of Pæanius (edit. Havercamp. p. 697), I am inclined to suspect that Eutropius had originally written *vix mediis*; and that the offensive monosyllable was dropped by the wilful inadvertency of transcribers. Aurelius Victor [Epit. 41] expresses the general opinion by a vulgar and indeed obscure proverb: *Trachala decem annis præstantissimus; duodecim sequentibus latro; decem novissimis pupillus ob immodicas profusiones*.

³⁹⁴Julian. *Orat. i.* p. 8 [9, ed. Hertl.], in a flattering discourse pronounced before the son of Constantine; and Cæsares, p. 335. Zosimus, p. 114, 115 [ii. 38]. The stately buildings of Constantinople, &c., may be quoted as a lasting and unexceptionable proof of the profuseness of their founder.

³⁹⁵The impartial Ammianus deserves all our confidence. *Proximorum fauces aperuit primus omnium Constantinus*. L. xvi. c. 8. Eusebius himself confesses the abuse (*Vit. Constantin. l. iv. c. 29, 54*); and some of the Imperial laws feebly point out the remedy. See above, p. 129-130 of this volume.

Page: [172] we are at a loss to discover the wisdom of an aged monarch and the simplicity of a Roman veteran.³⁹⁶ A mind thus relaxed by prosperity and indulgence was incapable of rising to that magnanimity which disdains suspicion and dares to forgive. The deaths of Maximian and Licinius may perhaps be justified by the maxims of policy, as they are taught in the schools of tyrants; but an impartial narrative of the executions, or rather murders, which sullied the declining age of Constantine, will suggest to our most candid thoughts the idea of a prince who could sacrifice without reluctance the laws of justice and the feelings of nature to the dictates either of his passions or of his interest.

The same fortune which so invariably followed the standard of Constantine seemed to secure the hopes and comforts of his domestic life. Those among his predecessors who had enjoyed the longest and most prosperous reigns, Augustus, Trajan, and Diocletian, had been disappointed of posterity; and the frequent revolutions had never allowed sufficient time for any Imperial family to grow up and multiply under the shade of the purple. But the royalty of the Flavian line, which had been first ennobled by the Gothic Claudius, descended through several generations; and Constantine himself derived from his royal father the hereditary honours which he transmitted to his children. The emperor had been twice married. Minervina, the obscure but lawful object of his youthful attachment,³⁹⁷ had left him only one son, who was called Crispus. Edition: current; Page: [173] By Fausta, the daughter of Maximian, he had three daughters, and three sons, known by the kindred names of Constantine, Constantius, and Constans. The unambitious brothers of the great Constantine, Julius Constantius, Dalmatius, and Hannibalianus,³⁹⁸ were permitted to enjoy the most honourable rank, and the most affluent fortune, that could be consistent with a private station. The youngest of the three lived without a name, and died without posterity. His two elder brothers obtained in marriage the daughters of wealthy senators, and propagated new branches of the Imperial race. Gallus and Julian afterwards became the most illustrious of the children of Julius Constantius, the Patrician. The two sons of Dalmatius, who had been decorated with the vain title of censor, were named Dalmatius and Hannibalianus. The two sisters of the great Constantine, Anastasia and Eutropia, were bestowed on Optatus and Nepotianus, two senators of noble birth and of consular dignity. His third sister, Constantia, was distinguished by her pre-eminence of greatness and of misery. She remained the widow of the vanquished Licinius; and it was by her entreaties that an innocent boy, the offspring of their marriage, preserved, for some time, his life, the title of Cæsar, and a precarious hope of the succession. Besides the females and the allies of the Flavian house, ten or twelve males, to whom the language of modern courts would apply the title

³⁹⁶Julian, in the Cæsars, attempts to ridicule his uncle. His suspicious testimony is confirmed however by the learned Spanheim, with the authority of medals (see Commentaire, p. 156, 299, 397, 459). Eusebius (Orat. c. 5) alleges that Constantine dressed for the public, not for himself. Were this admitted, the vainest coxcomb could never want an excuse.

³⁹⁷Zosimus [ii. 20] and Zonaras [13, 2] agree in representing Minervina as the concubine of Constantine; but Ducange has very gallantly rescued her character, by producing a decisive passage from one of the panegyrics: [*Hebrew*] Ab ipso fine pueritiæ te [ilico] matrimonii legibus dedisti [tradidisti]. [*Hebrew*] Incert. Pan. vi. § 4. [The reference is probably to an early (and childless) marriage of Constantine, not to Minervina, who was doubtless his concubine. Cp. Seeck, Gesch. des Untergangs der ant. Welt, i. p. 442. It has been doubted whether the three younger sons were the children of Fausta; Zosimus denies it (ii. 39). We have to accept the fact that the first eight years of the marriage were fruitless, Constantine being born in 315-16 if Julian [*Hebrew*]'s statement is true, Or. i. 10, p. 25. Mommsen thinks they may have been adopted by Fausta: C.I.L. 10, 678.]

³⁹⁸Ducange (Familie Byzantinæ, p. 44) bestows on him, after Zonaras, the name of Constantine; a name somewhat unlikely, as it was already occupied by the elder brother. That of Hannibalianus is mentioned in the Paschal Chronicle, and is approved by Tillemont, Hist. des Empereurs, tom. iv. p. 527. [The correct form of the second brother [*Hebrew*]'s name is Delmatius.]

of princes of the blood, seemed according to the order of their birth to be destined either to inherit or to support the throne of Constantine. Edition: current; Page: [174] But in less than thirty years, this numerous and increasing family was reduced to the persons of Constantius and Julian, who alone had survived a series of crimes and calamities, such as the tragic poets have deplored in the devoted lines of Pelops and of Cadmus.

Crispus, the eldest son of Constantine, and the presumptive heir of the empire, is represented by impartial historians as an amiable and accomplished youth. The care of his education, or at least of his studies, was entrusted to Lactantius, the most eloquent of the Christians; a preceptor admirably qualified to form the taste, and to excite the virtues, of his illustrious disciple.³⁹⁹ At the age of seventeen, Crispus was invested with the title of Cæsar, and the administration of the Gallic provinces, where the inroads of the Germans gave him an early occasion of signalling his military prowess. In the civil war which broke out soon afterwards, the father and son divided their powers; and this history has already celebrated the valour as well as conduct displayed by the latter in forcing the straits of the Hellespont, so obstinately defended by the superior fleet of Licinius. This naval victory contributed to determine the event of the war; and the names of Constantine and of Crispus were united in the joyful acclamations of their Eastern subjects: who loudly proclaimed that the world had been subdued, and was now governed, by an emperor endowed with every virtue; and by his illustrious son, a prince beloved of heaven, and the lively image of his father[*Hebrew*]'s perfections. The public favour, which seldom accompanies old age, diffused its lustre over the youth of Crispus. He deserved the esteem, and he engaged the affections, of the court, the army, and the people. The experienced merit of a reigning monarch is acknowledged by his subjects with Edition: current; Page: [175] reluctance, and frequently denied with partial and discontented murmurs; while, from the opening virtues of his successor, they fondly conceive the most unbounded hopes of private as well as public felicity.⁴⁰⁰

This dangerous popularity soon excited the attention of Constantine, who, both as a father and as a king, was impatient of an equal. Instead of attempting to secure the allegiance of his son, by the generous ties of confidence and gratitude, he resolved to prevent the mischiefs which might be apprehended from dissatisfied ambition. Crispus soon had reason to complain that, while his infant brother Constantius was sent, with the title of Cæsar, to reign over his peculiar department of the Gallic provinces,⁴⁰¹ he, a prince of mature years, who had performed such recent and signal services, instead of being raised to the superior rank of Augustus, was confined almost a prisoner to his father[*Hebrew*]'s court; and exposed, without power or defence, to every calumny which the malice of his enemies could suggest. Under such painful circumstances, the royal youth might not always be able to compose his behaviour, or suppress his discontent; and we may be assured that he was encompassed by a train of indiscreet or perfidious followers, who assiduously studied to

³⁹⁹Jerom. in Chron. The poverty of Lactantius may be applied either to the praise of the disinterested philosopher or to the shame of the unfeeling patron. See Tillemont, Mém. Ecclésiast. tom. vi. part i. p. 345. Dupin, Bibliothèque Ecclésiast. tom. i. p. 205. Lardner[*Hebrew*]'s Credibility of the Gospel History, part ii. vol. vii. p. 66.

⁴⁰⁰Euseb. Hist. Ecclesiast. l. x. c. 9. Eutropius (x. 6) styles him [*Hebrew*]egregium virum[*Hebrew*]; and Julian (Orat. i.) very plainly alludes to the exploits of Crispus in the civil war. See Spanheim, Comment. p. 92.

⁴⁰¹Compare Idatius and the Paschal Chronicle with Ammianus, l. xiv. c. 5. The year in which Constantius was created Cæsar seems to be more accurately fixed by the two chronologists; but the historian who lived in his court could not be ignorant of the day of the anniversary. [The day is Nov. 8; so Idatius, confirmed by the Fasti of Philocalus, C.I.L. i. p. 379. Ammian[*Hebrew*]'s Oct. is a slip for Nov.] For the appointment of the new Cæsar to the provinces of Gaul, see Julian. Orat. i. p. 12; Godefroy, Chronol. Legum, p. 26; and Blondel de la Primauté de l[*Hebrew*]'Eglise, p. 1183. [Idatius gives 324 ad, Chron. Pasch. 325 ad The right year is in Jerome, Chron. 323 ad Cp. Stobbe, Philologus, 32, p. 85.]

inflame, and who were perhaps instructed to betray, the unguarded warmth of his resentment. An edict of Constantine, published about this time, manifestly indicates his real or affected suspicions that a secret Edition: current; Page: [176] conspiracy had been formed against his person and government. By all the allurements of honours and rewards, he invites informers of every degree to accuse without exception his magistrates or ministers, his friends or his most intimate favourites, protesting, with a solemn asseveration, that he himself will listen to the charge, that he himself will revenge his injuries; and concluding with a prayer, which discovers some apprehension of danger, that the providence of the Supreme Being may still continue to protect the safety of the emperor and of the empire.⁴⁰²

The informers, who complied with so liberal an invitation, were sufficiently versed in the arts of courts to select the friends and adherents of Crispus as the guilty persons; nor is there any reason to distrust the veracity of the emperor, who had promised an ample measure of revenge and punishment. The policy of Constantine maintained, however, the same appearances of regard and confidence towards a son whom he began to consider as his most irreconcilable enemy. Medals were struck with the customary vows for the long and auspicious reign of the young Cæsar;⁴⁰³ and as the people, who were not admitted into the secrets of the palace, still loved his virtues and respected his dignity, a poet who solicits his recall from exile, adores with equal devotion the majesty of the father and that of the son.⁴⁰⁴ The time was now arrived for celebrating the august ceremony of the twentieth year of the reign of Constantine; and the emperor, for that purpose, removed his court from Nicomedia to Rome, where the most splendid preparations had been made for his reception. Every eye and every Edition: current; Page: [177] tongue affected to express their sense of the general happiness, and the veil of ceremony and dissimulation was drawn for a while over the darkest designs of revenge and murder.⁴⁰⁵ In the midst of the festival the unfortunate Crispus was apprehended by order of the emperor, who laid aside the tenderness of a father, without assuming the equity of a judge. The examination was short and private;⁴⁰⁶ and, as it was thought decent to conceal the fate of the young prince from the eyes of the Roman people, he was sent under a strong guard to Pola, in Istria, where, soon afterwards, he was put to death, either by the hand of the executioner or by the more gentle operation of poison.⁴⁰⁷ The Cæsar Licinius, a youth of amiable manners, was involved in the ruin of Crispus;⁴⁰⁸ and the stern jealousy of

⁴⁰²Cod. Theod. l. ix. tit. iv. [leg. 1, 4]. Godefroy suspected the secret motives of this law. Comment. tom. iii. p. 9. [But it is very doubtful whether such secret motives, and not rather flagrant abuses, led to this edict.]

⁴⁰³Ducange, Fam. Byzant. p. 28. Tillemont, tom. iv. p. 610.

⁴⁰⁴His name was Porphyrius Optatianus. The date of his panegyric, written according to the taste of the age in vile acrostics, is settled by Scaliger ad Euseb. p. 250. Tillemont, tom. iv. p. 607 [cp. p. 221], and Fabricius, Biblioth. Latin. l. iv. c. 1. [Clinton gives the date as 325 ad Jerome, Chron., enters it under 329 ad]

⁴⁰⁵Zosim. l. ii. p. 103 [29]. Godefroy, Chronol. Legum, p. 28.

⁴⁰⁶Ἀκρίτως, without a trial, is the strong, and most probably the just, expression of Suidas. The elder Victor, who wrote under the next reign, speaks with becoming caution. [*Hebrew*]Natū grandior incertum quā causâ patris iudicio occidisset.[*Hebrew*] If we consult the succeeding writers, Eutropius, the younger Victor, Orosius, Jerom, Zosimus, Philostorgius, and Gregory of Tours, their knowledge will appear gradually to increase, as their means of information must have diminished; a circumstance which frequently occurs in historical disquisition. [See Appendix 9.]

⁴⁰⁷Ammianus (l. xiv. c. 11) uses the general expression of peremptum. Codinus (p. 34 [63, ed. Bonn]) beheads the young prince; but Sidonius Apollinaris (Epistol. v. 8), for the sake perhaps of an antithesis to Fausta[*Hebrew*]'s warm bath, chooses to administer a draught of cold poison. [All critics are agreed as to the date, 326, though Chron. Alex. gives 325. The true causes of the tragedy are enveloped in a tantalising veil of obscurity. It may be noted that the name of Crispus was often erased on inscriptions; cp. C.I.L. 10, 517, &c.]

⁴⁰⁸Sorosis filium, commodæ indolis juvenem. Eutropius, x. 6 [date, see Jerome, Chron.]. May I not be permitted to conjecture that Crispus had married Helena, the daughter of the emperor Licinius, and that on the happy delivery of

Constantine was unmoved by the prayers and tears of his favourite sister, pleading for the life of a son, whose rank was his only crime, and whose loss Edition: current; Page: [178] she did not long survive. The story of these unhappy princes, the nature and evidence of their guilt, the forms of their trial, and the circumstances of their death, were buried in mysterious obscurity; and the courtly bishop, who has celebrated in an elaborate work the virtues and piety of his hero, observes a prudent silence on the subject of these tragic events.⁴⁰⁹ Such haughty contempt for the opinion of mankind, whilst it imprints an indelible stain on the memory of Constantine, must remind us of the very different behaviour of one of the greatest monarchs of the present age. The Czar Peter, in the full possession of despotic power, submitted to the judgment of Russia, of Europe, and of posterity the reasons which had compelled him to subscribe to the condemnation of a criminal, or at least of a degenerate, son.⁴¹⁰

The innocence of Crispus was so universally acknowledged that the modern Greeks, who adore the memory of their founder, are reduced to palliate the guilt of a parricide, which the common feelings of human nature forbade them to justify. They pretend that, as soon as the afflicted father discovered the falsehood of the accusation by which his credulity had been so fatally misled, he published to the world his repentance and remorse; that he mourned forty days, during which he abstained from the use of the bath and all the ordinary comforts of life; and that, for the lasting instruction of posterity, he erected a golden statue of Crispus, with this memorable inscription: To my Son, whom I unjustly condemned.⁴¹¹ A tale so moral and so interesting would deserve to be supported Edition: current; Page: [179] by less exceptionable authority; but, if we consult the more ancient and authentic writers, they will inform us that the repentance of Constantine was manifested only in acts of blood and revenge; and that he atoned for the murder of an innocent son, by the execution, perhaps, of a guilty wife. They ascribe the misfortunes of Crispus to the arts of his stepmother Fausta, whose implacable hatred, or whose disappointed love, renewed in the palace of Constantine the ancient tragedy of Hippolytus and of Phædra.⁴¹² Like the daughter of Minos, the daughter of Maximian accused her son-in-law of an incestuous attempt on the chastity of his father[*Hebrew*]'s wife; and easily obtained, from the jealousy of the emperor, a sentence of death against a young prince whom she considered with reason as the most formidable rival of her own children. But Helena, the aged mother of Constantine, lamented and revenged the untimely fate of her grandson Crispus: nor was it long before a real or pretended discovery was made, that Fausta herself entertained a criminal connection with a slave belonging to the Imperial stables.⁴¹³ Her condemnation and punishment were the instant consequences of the charge; and

the princess, in the year 322, a general pardon was granted by Constantine? [So Seeck.] See Ducange, *Fam. Byzant.* p. 47, and the law (l. ix. tit. xxxviii. [leg. 1]) of the Theodosian Code, which has so much embarrassed the interpreters. Godefroy, tom. iii. p. 267. [As to the younger Licinius, cp. Appendix 9.]

⁴⁰⁹See the Life of Constantine, particularly l. ii. c. 19, 20. Two hundred and fifty years afterwards, Evagrius (l. iii. c. 41) deduced from the silence of Eusebius a vain argument against the reality of the fact.

⁴¹⁰*Histoire de Pierre le Grand*, par Voltaire, part ii. c. x.

⁴¹¹In order to prove that the statue was erected by Constantine, and afterwards concealed by the malice of the Arians, Codinus very readily creates (p. 34) two witnesses, Hippolytus and the younger Herodotus, to whose imaginary histories he appeals with unblushing confidence.

⁴¹²Zosimus (l. ii. p. 103 [29]) may be considered as our original. The ingenuity of the moderns, assisted by a few hints from the ancients, has illustrated and improved his obscure and imperfect narrative. [For Seeck[*Hebrew*]'s view, see Appendix 9.]

⁴¹³Philostorgius, l. ii. c. 4. Zosimus (l. ii. p. 104, 116 [29; 39]) imputes to Constantine the death of two wives: of the innocent Fausta, and of an adulteress who was the mother of his three successors. According to Jerom, three or four years elapsed between the death of Crispus and that of Fausta. The elder Victor is prudently silent. [Thus Jerome[*Hebrew*]'s

the adulteress was suffocated by the steam of a bath, which, for that purpose, had been heated to an extraordinary degree.⁴¹⁴ By some it will perhaps be thought, that Edition: current; Page: [180] the remembrance of a conjugal union of twenty years, and the honour of their common offspring, the destined heirs of the throne, might have softened the obdurate heart of Constantine; and persuaded him to suffer his wife, however guilty she might appear, to expiate her offences in a solitary prison. But it seems a superfluous labour to weigh the propriety, unless we could ascertain the truth, of this singular event; which is attended with some circumstances of doubt and perplexity. Those who have attacked, and those who have defended, the character of Constantine have alike disregarded two very remarkable passages of two orations pronounced under the succeeding reign. The former celebrates the virtues, the beauty, and the fortune of the empress Fausta, the daughter, wife, sister, and mother of so many princes.⁴¹⁵ The latter asserts, in explicit terms, that the mother of the younger Constantine, who was slain three years after his father[*Hebrew*]'s death, survived to weep over the fate of her son.⁴¹⁶ Notwithstanding the positive testimony of several writers of the Pagan as well as of the Christian religion, there may still remain some reason to believe, or at least to suspect, that Fausta escaped the blind and suspicious cruelty of her husband. The deaths of a son, and of a nephew, with the execution of a great number of respectable and perhaps innocent friends,⁴¹⁷ who were involved in their fall, may be sufficient, however, to justify the discontent of the Roman people, and to explain the satirical Edition: current; Page: [181] verses affixed to the palace-gate, comparing the splendid and bloody reigns of Constantine and Nero.⁴¹⁸

By the death of Crispus, the inheritance of the empire seemed to devolve on the three sons of Fausta, who have been already mentioned under the names of Constantine, of Constantius, and of Constans. These young princes were successively invested with the title of Cæsar; and the dates of their promotion may be referred to the tenth, the twentieth, and the thirtieth years of the reign of their father.⁴¹⁹ This conduct, though it tended to multiply the future masters of the Roman world, might be excused by the partiality of paternal affection; but it is not easy to understand the motives of the emperor, when he endangered the safety both of his family and of his people, by the unnecessary elevation of his two nephews, Dalmatius and Hannibalianus. The former was raised, by the title of Cæsar, to an equality with his cousins. In favour of the latter, Constantine invented the new and singular appellation of Nobilissimus;⁴²⁰ to which he annexed the flattering distinction

date would be c. 329 ad Greg. of Tours, H.F. i. 36, suggests 326 (so Tillemont, iv. p. 224). Clinton decides for 327.]

⁴¹⁴If Fausta was put to death, it is reasonable to believe that the private apartments of the palace were the scene of her execution. The orator Chrysostom indulges his fancy by exposing the naked empress on a desert mountain, to be devoured by wild beasts.

⁴¹⁵Julian. Orat. i. [p. 10, ed. Hertl.]. He seems to call her the mother of Crispus. She might assume that title by adoption. At least, she was not considered as his mortal enemy. Julian compares the fortune [not the fate] of Fausta with that of Parysatis, the Persian queen. A Roman would have more naturally recollected the second Agrippina: [*Hebrew*]Et moi, qui sur le trône ai suivi mes ancêtres:

Moi, fille, femme, sœur et mère de vos maîtres.

⁴¹⁶Monod. in Constantin. Jun. c. 4, ad Calcem. Eutrop. edit. Havercamp. The orator styles her the most divine and pious of queens. [Ranke, Weltgeschichte, iii. 521, accepts the evidence of this document and rejects the execution of Fausta. But the Monodia has nothing to do with Constantine; see vol. ii. Appendix 10.]

⁴¹⁷Interfecit numerosos amicos. Eutrop. x. 6.

⁴¹⁸Saturni aurea sæcula quis requirat?

Sunt hæc gemmea, sed Neroniana.

[*Hebrew*] Sidon. Apollinar. v. 8.

⁴¹⁹Euseb. Orat. in Constantin. c. 3. These dates are sufficiently correct to justify the orator. [The right dates are 317, 323, 333, respectively.]

⁴²⁰Zosim. l. ii. p. 117 [c. 39]. Under the predecessors of Constantine, Nobilissimus was a vague epithet rather than a

of a robe of purple and gold. But of the whole series of Roman princes in any age of the empire, Hannibalianus alone was distinguished by the title of King; a name which the subjects of Tiberius would have detested, as the profane and cruel insult of capricious tyranny. The use of such a title, even as it appears under the reign of Constantine, is a strange and unconnected fact, which can Edition: current; Page: [182] scarcely be admitted on the joint authority of Imperial medals and contemporary writers.⁴²¹

The whole empire was deeply interested in the education of these five youths, the acknowledged successors of Constantine. The exercises of the body prepared them for the fatigues of war and the duties of active life. Those who occasionally mention the education or talents of Constantius allow that he excelled in the gymnastic arts of leaping and running; that he was a dexterous archer, a skilful horseman, and a master of all the different weapons used in the service either of the cavalry or of the infantry.⁴²² The same assiduous cultivation was bestowed, though not perhaps with equal success, to improve the minds of the sons and nephews of Constantine.⁴²³ The most celebrated professors of the Christian faith, of the Grecian philosophy, and of the Roman jurisprudence were invited by the liberality of the emperor, who reserved for himself the important task of instructing the royal youths in the science of government and the knowledge of mankind. But the genius of Constantine himself had been formed by adversity and experience. In the free intercourse of private life, and amidst the dangers of the court of Galerius, he had learned Edition: current; Page: [183] to command his own passions, to encounter those of his equals, and to depend for his present safety and future greatness on the prudence and firmness of his personal conduct. His destined successors had the misfortune of being born and educated in the Imperial purple. Incessantly surrounded with a train of flatterers, they passed their youth in the enjoyment of luxury and the expectation of a throne; nor would the dignity of their rank permit them to descend from that elevated station from whence the various characters of human nature appear to wear a smooth and uniform aspect. The indulgence of Constantine admitted them at a very tender age to share the administration of the empire; and they studied the art of reigning at the expense of the people entrusted to their care. The younger Constantine was appointed to hold his court in Gaul; and his brother Constantius exchanged that department, the ancient patrimony of their father, for the more opulent, but less martial, countries of the East. Italy, the Western Illyricum, and Africa were accustomed to revere Constans, the third of his sons, as the representative of the great Constantine. He fixed Dalmatius on the Gothic frontier, to which he annexed the government of Thrace, Macedonia, and Greece. The city of Cæsarea was chosen for the residence of Hannibalianus; and the provinces of Pontus, Cappadocia, and the Lesser Armenia were destined to form the extent of his new kingdom. For each of these princes a suitable establishment was provided. A just proportion of guards, of legions,

legal and determined title. [Dalmatius is named on coins: nob. Cæs. and princ. iuventutis, Cohen, 6.]

⁴²¹Adstruunt nummi veteres ac singulares. Spanheim de Usu Numismat. Dissertat. xii. vol. ii. p. 357 [cp. Eckhel, 8, p. 174]. Ammianus speaks of this Roman king (l. xiv. c. 1) and Valesius ad loc. The Valesian fragment styles him King of kings; and the Paschal Chronicle (p. 286 [p. 532, ed. Bonn]), by employing the word [Ἡεβρεω]ηγγα, acquires the weight of Latin evidence. Pontic and Armenian regions were assigned to him in 335 ad with the title of rex regum. He was thus to be a vassal king, subordinate to the emperors. Observe that [Ἡεβρεω]ηγγα (not βασιλέα) is used of him in the Paschal Chronicle. Mommsen guesses that Bosporus (in the Chersonesus) was included in this kingdom, from the fact that the last coin of Bosporus dates from 335 ad (Röm. Ges. v. 289).]

⁴²²His dexterity in martial exercise is celebrated by Julian (Orat. i. p. 11 [12], Orat. ii. p. 53 [67], and allowed by Ammianus (l. xxi. c. 16).

⁴²³Euseb. in Vit. Constantin. l. iv. c. 51. Julian. Orat. i. p. 11-16, with Spanheim[*Hebrew*]'s elaborate Commentary. Libanius, Orat. iii. p. 109 [ed. Paris, 1627]. Constantius studied with laudable diligence; but the dulness of his fancy prevented him from succeeding in the art of poetry, or even of rhetoric.

and of auxiliaries was allotted for their respective dignity and defence. The ministers and generals who were placed about their persons were such as Constantine could trust to assist, and even to control, these youthful sovereigns in the exercise of their delegated power. As they advanced in years and experience, the limits of their authority were insensibly enlarged: but the emperor always reserved for himself the title of Augustus; and, while he shewed the Cæsars to the armies and provinces, he maintained every part of the empire in equal obedience to its supreme Edition: current; Page: [184] head.⁴²⁴ The tranquillity of the last fourteen years of his reign was scarcely interrupted by the contemptible insurrection of a camel-driver in the island of Cyprus,⁴²⁵ or by the active part which the policy of Constantine engaged him to assume in the wars of the Goths and Sarmatians.

Among the different branches of the human race, the Sarmatians form a very remarkable shade; as they seem to unite the manners of the Asiatic barbarians with the figure and complexion of the ancient inhabitants of Europe. According to the various accidents of peace and war, of alliance or conquest, the Sarmatians were sometimes confined to the banks of the Tanais; and they sometimes spread themselves over the immense plains which lie between the Vistula and the Volga.⁴²⁶ The care of their numerous flocks and herds, the pursuit of game, and the exercise of war, or rather of rapine, directed the vagrant motions of the Sarmatians. The movable camps or cities, the ordinary residence of their wives and children, consisted only of large waggons, drawn by oxen and covered in the form of tents. The military strength of the nation was composed of cavalry; and the custom of their warriors, to lead in their hand one or two spare horses, enabled them to advance and to retreat with a rapid diligence which surprised the security, and eluded the pursuit, of a distant enemy.⁴²⁷ Edition: current; Page: [185] Their poverty of iron prompted their rude industry to invent a sort of cuirass, which was capable of resisting a sword or javelin, though it was formed only of horses[*Hebrew*] hoofs, cut into thin and polished slices, carefully laid over each other in the manner of scales or feathers, and strongly sewed upon an under-garment of coarse linen.⁴²⁸ The offensive arms of the Sarmatians were short daggers, long lances, and a weighty bow with a quiver of arrows. They were reduced to the necessity of employing fish bones for the points of their weapons; but the custom of dipping them in a venomous liquor that poisoned the wounds which they inflicted is alone sufficient to prove the most savage manners; since a people impressed with a sense of humanity would have abhorred so cruel a practice, and a nation skilled in the arts of war would have disdained so impotent a resource.⁴²⁹ Whenever these Barbarians issued from their deserts in

⁴²⁴Eusebius ([*Vita C.*] l. iv. c. 51, 52), with a design of exalting the authority and glory of Constantine, affirms that he divided the Roman empire as a private citizen might have divided his patrimony. His distribution of the provinces may be collected from Eutropius, the two Victors, and the Valesian fragment. [On this division see Appendix 10.]

⁴²⁵Calocerus, the obscure leader of this rebellion, or rather tumult, was apprehended and burnt alive in the market-place of Tarsus, by the vigilance of Dalmatius. See the elder Victor, the chronicle of Jerom, and the doubtful traditions of Theophanes and Cedrenus.

⁴²⁶Cellarius has collected the opinions of the ancients concerning the European and Asiatic Sarmatia; and M. d[*Hebrew*] Anville has applied them to modern geography with the skill and accuracy which always distinguishes that excellent writer.

⁴²⁷Ammian. l. xvii. c. 12. The Sarmatian horses were castrated, to prevent the mischievous accidents which might happen from the noisy and ungovernable passions of the males.

⁴²⁸Pausanias, l. i. p. 50, edit. Kuhn [c. 21]. That inquisitive traveller had carefully examined a Sarmatian cuirass, which was preserved in the temple of Æsculapius at Atnens.

⁴²⁹Aspicis et mitti sub adunco toxica ferro,

Et telum causas mortis habere duas.

[*Hebrew*]Ovid. ex Ponto, l. iv. ep. 7, ver. 7.

quest of prey, their shaggy beards, uncombed locks, the furs with which they were covered from head to foot, and their fierce countenances, which seemed to express the innate cruelty of their minds, inspired the more civilised provincials of Rome with horror and dismay.

The tender Ovid, after a youth spent in the enjoyment of fame and luxury, was condemned to an hopeless exile on the frozen banks of the Danube, where he was exposed, almost without defence, to the fury of these monsters of the desert, with whose stern spirits he feared that his gentle shade might Edition: current; Page: [186] hereafter be confounded. In his pathetic, but sometimes unmanly, lamentations,⁴³⁰ he describes, in the most lively colours, the dress and manners, the arms and inroads, of the Getæ and Sarmatians, who were associated for the purposes of destruction; and from the accounts of history there is some reason to believe that these Sarmatians were the Jazygæ, one of the most numerous and warlike tribes of the nation. The allurements of plenty engaged them to seek a permanent establishment on the frontiers of the empire. Soon after the reign of Augustus, they obliged the Dacians, who subsisted by fishing on the banks of the river Theiss or Tibiscus, to retire into the hilly country, and to abandon to the victorious Sarmatians the fertile plains of the Upper Hungary, which are bounded by the course of the Danube and the semi-circular enclosure of the Carpathian mountains.⁴³¹ In this advantageous position, they watched or suspended the moment of attack, as they were provoked by injuries or appeased by presents; they gradually acquired the skill of using more dangerous weapons; and, although the Sarmatians did not illustrate their name by any memorable exploits, they occasionally assisted their eastern and western neighbours, the Goths and the Germans, with a formidable body of cavalry. They lived under the irregular aristocracy of their chieftains;⁴³² but, after they had received Edition: current; Page: [187] into their bosom the fugitive Vandals, who yielded to the pressure of the Gothic power, they seem to have chosen a king from that nation, and from the illustrious race of the Astingi, who had formerly dwelt on the shores of the Northern ocean.⁴³³

This motive of enmity must have inflamed the subjects of contention, which perpetually arise on the confines of warlike and independent nations. The Vandal princes were stimulated by fear and revenge; the Gothic kings aspired to extend their dominion from the Euxine to the frontiers of Germany: and the waters of the Maros, a small river which falls into the Theiss, were stained with the blood of the contending Barbarians. After some experience of the superior strength and number of their adversaries, the Sarmatians implored the protection of the Roman monarch, who beheld with pleasure the discord of the nations, but who was justly alarmed by the progress of the Gothic arms. As soon as Constantine had declared himself in favour of the weaker party, the haughty Araric, king of the Goths, instead of expecting the attack of the legions, boldly passed the

⁴³⁰The nine books of Poetical Epistles, which Ovid composed during the seven first years of his melancholy exile, possess, besides the merit of elegance, a double value. They exhibit a picture of the human mind under very singular circumstances; and they contain many curious observations, which no Roman, except Ovid, could have an opportunity of making. Every circumstance which tends to illustrate the history of the Barbarians has been drawn together by the very accurate Count de Buat. *Hist. Ancienne des Peuples de l'Hebreu/Europe*, tom. iv. c. xvi. p. 286-317. [For Sarmatians cp. Appendix 11.]

⁴³¹The Sarmatians [? leg. Sarmatian] Jazygæ were settled on the banks of the Pathissus or Tibiscus, when Pliny, in the year 79, published his Natural History. See l. iv. c. 25. In the time of Strabo and Ovid, sixty or seventy years before, they appear to have inhabited beyond the Getæ, along the coast of the Euxine.

⁴³²*Principes Sarmatarum Jazygum penes quos civitatis regimen . . . plebem quoque et vim equitum quâ solâ valent offerebant.* Tacit. Hist. iii. 5. This offer was made in the civil war between Vitellius and Vespasian.

⁴³³This hypothesis of a Vandal king reigning over Sarmatian subjects seems necessary to reconcile the Goth Jornandes with the Greek and Latin historians of Constantine. It may be observed that Isidore, who lived in Spain under the dominion of the Goths, gives them for enemies, not the Vandals, but the Sarmatians. See his Chronicle in Grotius, p. 709.

Danube, and spread terror and devastation through the province of Mæsia. To oppose the inroad of this destroying host, the aged emperor took the field in person; but on this occasion either his conduct or his fortune betrayed the glory which he had acquired in so many foreign and domestic wars. He had the mortification of seeing his troops fly before an inconsiderable detachment of the Barbarians, who pursued them to the edge of their fortified camp and obliged him to consult his safety by a precipitate and ignominious retreat.⁴³⁴ The event of a second and more successful action retrieved the honour of the Roman name; Edition: current; Page: [188] and the powers of art and discipline prevailed, after an obstinate contest, over the efforts of irregular valour. The broken army of the Goths abandoned the field of battle, the wasted province, and the passage of the Danube: and, although the eldest of the sons of Constantine was permitted to supply the place of his father, the merit of the victory, which diffused universal joy, was ascribed to the auspicious counsels of the emperor himself.

He contributed at least to improve this advantage, by his negotiations with the free and warlike people of Chersonesus,⁴³⁵ whose capital, situate on the western coast of the Tauric or Crimæan peninsula, still retained some vestiges of a Grecian colony, and was governed by a perpetual magistrate, assisted by a council of senators, emphatically styled the Fathers of the City. The Chersonites were animated against the Goths by the memory of the wars which, in the preceding century, they had maintained with unequal forces against the invaders of their country. They were connected with the Romans by the mutual benefits of commerce; as they were supplied from the provinces of Asia with corn and manufactures, which they purchased with their only productions, salt, wax, and hides. Obedient to the requisition of Constantine, they prepared, under the conduct of their magistrate Diogenes, a considerable army, of which the principal strength consisted in crossbows Edition: current; Page: [189] and military chariots. The speedy march and intrepid attack of the Chersonites, by diverting the attention of the Goths, assisted the operations of the Imperial generals. The Goths, vanquished on every side, were driven into the mountains, where, in the course of a severe campaign, above an hundred thousand were computed to have perished by cold and hunger. Peace was at length granted to their humble supplications; the eldest son of Araric was accepted as the most valuable hostage; and Constantine endeavoured to convince their chiefs, by a liberal distribution of honours and rewards, how far the friendship of the Romans was preferable to their enmity. In the expressions of his gratitude towards the faithful Chersonites, the emperor was still more magnificent. The pride of the nation was gratified by the splendid and almost royal decorations bestowed on their magistrate and his successors. A perpetual exemption from all duties was stipulated for their vessels which traded to the ports of the Black Sea. A regular subsidy was promised, of iron, corn, oil, and of every supply which could be useful either in peace or war. But it was thought that the Sarmatians were sufficiently rewarded by their deliverance from impending ruin; and the emperor, perhaps with too strict an economy, deducted some part of

⁴³⁴[There seems to be no evidence for this defeat of Constantine. It is a curious error of Gibbon.]

⁴³⁵I may stand in need of some apology for having used, without scruple, the authority of Constantine Porphyrogenitus, in all that relates to the wars and negotiations of the Chersonites. I am aware that he was a Greek of the tenth century, and that his accounts of ancient history are frequently confused and fabulous. But on this occasion his narrative is, for the most part, consistent and probable; nor is there much difficulty in conceiving that an emperor might have access to some secret archives, which had escaped the diligence of meaner historians. For the situation and history of Cherson, see Peyssonel *des Peuples barbares qui ont habité les Bords du Danube*, c. xvi. p. 84-90. [Const. Porph., *de Adm. Imp.* c. 53. See St. Martin (note on Lebeau, i. 326), who points out that Gibbon has confounded the city of Cherson, to which Constantine Porph. refers, with the whole peninsula. He is also mistaken in describing the Stephanephoros (who was annually elected) as a perpetual magistrate. Milman calls attention to St. Martin [*Hebrew*]'s note.]

the expenses of the war from the customary gratifications which were allowed to that turbulent nation.⁴³⁶

Exasperated by this apparent neglect, the Sarmatians soon forgot, with the levity of Barbarians, the services which they had so lately received and the dangers which still threatened their safety. Their inroads on the territory of the empire provoked the indignation of Constantine to leave them to their fate, and he no longer opposed the ambition of Geberic, a renowned warrior, who had recently ascended the Gothic throne. Wisumar, the Vandal king, whilst alone and unassisted Edition: current; Page: [190] he defended his dominions with undaunted courage, was vanquished and slain in a decisive battle, which swept away the flower of the Sarmatian youth. The remainder of the nation embraced the desperate expedient of arming their slaves, a hardy race of hunters and herdsmen, by whose tumultuary aid they revenged their defeat and expelled the invader from their confines. But they soon discovered that they had exchanged a foreign for a domestic enemy, more dangerous and more implacable. Enraged by their former servitude, elated by their present glory, the slaves, under the name of Limigantes, claimed and usurped the possession of the country which they had saved. Their masters, unable to withstand the ungoverned fury of the populace, preferred the hardships of exile to the tyranny of their servants. Some of the fugitive Sarmatians solicited a less ignominious dependence, under the hostile standard of the Goths. A more numerous band retired beyond the Carpathian mountains, among the Quadi, their German allies, and were easily admitted to share a superfluous waste of uncultivated land. But the far greater part of the distressed nation turned their eyes towards the fruitful provinces of Rome. Imploring the protection and forgiveness of the emperor, they solemnly promised, as subjects in peace and as soldiers in war, the most inviolable fidelity to the empire which should graciously receive them into its bosom. According to the maxims adopted by Probus and his successors, the offers of this Barbarian colony were eagerly accepted; and a competent portion of lands, in the provinces of Pannonia, Thrace, Macedonia, and Italy, were immediately assigned for the habitation and subsistence of three hundred thousand Sarmatians.⁴³⁷ Edition: current; Page: [191]

By chastising the pride of the Goths, and by accepting the homage of a suppliant nation, Constantine asserted the majesty of the Roman empire; and the ambassadors of Æthiopia, Persia, and the most remote countries of India congratulated the peace and prosperity of his government.⁴³⁸ If he reckoned, among the favours of fortune, the death of his eldest son, of his nephew, and perhaps of his wife, he enjoyed an uninterrupted flow of private as well as public felicity, till the thirtieth year of his reign; a period which none of his predecessors, since Augustus, had been permitted to celebrate. Constantine survived that solemn festival about ten months; and, at the mature age

⁴³⁶[This is a misconception. No such *[Hebrew]*deduction^[Hebrew] is mentioned in the sources.]

⁴³⁷The Gothic and Sarmatian wars are related in so broken and imperfect a manner that I have been obliged to compare the following writers, who mutually supply, correct, and illustrate each other. Those who will take the same trouble, may acquire a right of criticising my narrative. Ammianus, l. xvii. c. 12. Anonym. Valesian. p. 715. Eutropius, x. 7. Sextus Rufus de Provinciis, c. 26. Julian. Orat. i. p. 9, and Spanheim, Comment. p. 94. Hieronym. in Chron. Euseb. in Vit. Constantin. l. iv. c. 6. Socrates, l. i. c. 18. Sozomen, l. i. c. 8. Zosimus, l. ii. p. 108 [c. 21]. Jornandes de Reb. Geticis, c. 22. Isidorus in Chron. p. 709; in Hist. Gothorum Grotii. Constantin. Porphyrogenitus de administrat. Imperii. c. 53, p. 208, edit. Meursii. [Add John of Antioch, fr. 171 (Müller, F.H.G. 4). It has been conjectured by Böcking that the Sarmatian settlements in Ausonius Mosella 819 were made at this time. Sarmatic games were instituted (C.I.L. i. 407) and Constantine is called Sarmaticus in inscriptions. See Henzen, 5576; Eckhel, 8, 87, 101, 107.]

⁴³⁸Eusebius (in Vit. Const. l. iv. c. 50) remarks three circumstances relative to these Indians. 1. They came from the shores of the Eastern ocean; a description which might be applied to the coast of China or Coromandel. 2. They presented shining gems and unknown animals. 3. They protested their kings had erected statues to represent the supreme majesty of Constantine.

of sixty-four, after a short illness, he ended his memorable life at the palace of Aquyrion, in the suburbs of Nicomedia, whither he had retired for the benefit of the air, and with the hope of recruiting his exhausted strength by the use of the warm baths. The excessive demonstrations of grief, or at least of mourning, surpassed whatever had been practised on any former occasion. Notwithstanding the claims of the senate and people of ancient Rome, the corpse of the deceased emperor, according to his last request, was transported to the city which was destined to preserve the name and memory of its founder. The body of Constantine, adorned with the vain symbols of greatness, the purple and Edition: current; Page: [192] diadem, was deposited on a golden bed in one of the apartments of the palace, which for that purpose had been splendidly furnished and illuminated. The forms of the court were strictly maintained. Every day, at the appointed hours, the principal officers of the state, the army, and the household, approaching the person of their sovereign with bended knees and a composed countenance, offered their respectful homage as seriously as if he had been still alive. From motives of policy, this theatrical representation was for some time continued; nor could flattery neglect the opportunity of remarking that Constantine alone, by the peculiar indulgence of heaven, had reigned after his death.⁴³⁹

But this reign could subsist only in empty pageantry; and it was soon discovered that the will of the most absolute monarch is seldom obeyed, when his subjects have no longer anything to hope from his favour, or to dread from his resentment. The same ministers and generals who bowed with such reverential awe before the inanimate corpse of their deceased sovereign were engaged in secret consultations to exclude his two nephews, Dalmatius and Hannibalianus, from the share which he had assigned them in the succession of the empire. We are too imperfectly acquainted with the court of Constantine to form any judgment of the real motives which influenced the leaders of the conspiracy; unless we should suppose that they were actuated by a spirit of jealousy and revenge against the prefect Ablavius, a proud favourite, who had long directed the counsels and abused the confidence of the late emperor. The arguments by which they solicited the concurrence of the soldiers and people are of a more obvious nature: and they Edition: current; Page: [193] might with decency, as well as truth, insist on the superior rank of the children of Constantine, the danger of multiplying the number of sovereigns, and the impending mischiefs which threatened the republic, from the discord of so many rival princes, who were not connected by the tender sympathy of fraternal affection. The intrigue was conducted with zeal and secrecy till a loud and unanimous declaration was procured from the troops that they would suffer none except the sons of their lamented monarch to reign over the Roman empire.⁴⁴⁰ The younger Dalmatius, who was united with his collateral relations by the ties of friendship and interest, is allowed to have inherited a considerable share of the abilities of the great Constantine; but, on this occasion, he does not appear to have concerted any measures for supporting, by arms, the just claims which himself and his royal brother derived from the liberality of their uncle.⁴⁴¹ Astonished and overwhelmed by the

⁴³⁹Funus relatum in urbem sui nominis, quod sane P. R. ægerrime tulit. Aurelius Victor (Cæs. 41). Constantine had prepared for himself a stately tomb in the church of the Holy Apostles. Euseb. l. iv. c. 60. The best, and indeed almost the only, account of the sickness, death, and funeral of Constantine is contained in the fourth book of his Life, by Eusebius. [The Cæsars did not become Augusti till 9th September, and the dead emperor nominally reigned in the four intervening months.]

⁴⁴⁰Eusebius (l. iv. c. 6) terminates his narrative by this loyal declaration of the troops, and avoids all the invidious circumstances of the subsequent massacre.

⁴⁴¹The character of Dalmatius is advantageously, though concisely, drawn by Eutropius (x. 9). Dalmatius Cæsar prosperrimâ indole, neque patruo absimilis, haud multo post oppressus est factione militari. As both Jerom and the Alexandrian Chronicle mention the third year of the Cæsar, which did not commence till the 18th or 24th of September,

tide of popular fury, they seem to have remained, without the power of flight or of resistance, in the hands of their implacable enemies. Their fate was suspended till the arrival of Constantius, the second, and perhaps the most favoured, of the sons of Constantine.

The voice of the dying emperor had recommended the care of his funeral to the piety of Constantius; and that prince, by the vicinity of his Eastern station, could easily prevent the diligence of his brothers, who resided in their distant government of Italy and Gaul. As soon as he had taken possession of the palace of Constantinople, his first care was to remove the apprehensions of his kinsmen by a solemn oath, which he Edition: current; Page: [194] pledged for their security. His next employment was to find some specious pretence which might release his conscience from the obligation of an imprudent promise. The arts of fraud were made subservient to the designs of cruelty; and a manifest forgery was attested by a person of the most sacred character. From the hands of the bishop of Nicomedia, Constantius received a fatal scroll affirmed to be the genuine testament of his father; in which the emperor expressed his suspicions that he had been poisoned by his brother; and conjured his sons to revenge his death, and to consult their own safety by the punishment of the guilty.⁴⁴² Whatever reasons might have been alleged by these unfortunate princes to defend their life and honour against so incredible an accusation, they were silenced by the furious clamours of the soldiers, who declared themselves at once their enemies, their judges, and their executioners. The spirit, and even the forms, of legal proceedings were repeatedly violated in a promiscuous massacre; which involved the two uncles of Constantius, seven of his cousins, of whom Dalmatius and Hannibalianus were the most illustrious, the patrician Optatus, who had married a sister of the late emperor, and the prefect Ablavius, whose power and riches had inspired him with some hopes of obtaining the purple. If it were necessary to aggravate the horrors of this bloody scene, we might add that Constantius himself had espoused the daughter of his uncle Julius, and that he had bestowed his sister in marriage on his cousin Hannibalianus. These alliances, which the policy of Constantine, regardless of the public⁴⁴³ prejudice, had Edition: current; Page: [195] formed between the several branches of the Imperial house, served only to convince mankind that these princes were as cold to the endearments of conjugal affection, as they were insensible to the ties of consanguinity and the moving entreaties of youth and innocence. Of so numerous a family Gallus and Julian alone, the two youngest children of Julius Constantius, were saved from the hands of the assassins, till their rage, satiated with slaughter, had in some measure subsided. The emperor Constantius, who, in the absence of his brothers, was the most obnoxious to guilt and reproach, discovered, on some future occasions, a faint and transient remorse for those cruelties, which the perfidious counsels of his ministers and the irresistible violence of the troops

ad 337, it is certain that these military factions continued above four months.

⁴⁴²I have related this singular anecdote on the authority of Philostorgius, l. ii. c. 16. But, if such a pretext was ever used by Constantine and his adherents, it was laid aside with contempt, as soon as it had served their immediate purpose. Athanasius (tom. i. p. 856) mentions the oath which Constantius had taken for the security of his kinsmen. [The story is very doubtful.]

⁴⁴³*Conjugia sobrinorum diu ignorata, tempore addito percrebuisse.* Tac. Ann. xii. 6, and Lipsius ad loc. The repeal of the ancient law, and the practice of five hundred years, were insufficient to eradicate the prejudices of the Romans; who still considered the marriages of cousins-german as a species of imperfect incest (Augustin de Civitate Dei, xv. 6); and Julian, whose mind was biassed by superstition and resentment, stigmatises these unnatural alliances between his own cousins with the opprobrious epithet of γάμων τε ο[Heβρεω] γάμων (Orat. vii. p. 228 [296]). The jurisprudence of the canons has since revived and enforced this prohibition, without being able to introduce it either into the civil or the common law of Europe. See on the subject of these marriages, Taylor[Hebrew]'s Civil Law, p. 331; Brouer, de Jure Connub. l. ii. c. 12; Hericourt, des Loix Ecclésiastiques, part iii. c. 5; Fleury, Institutions du Droit Canonique, tom. i. p. 331. Paris, 1767; and Fra Paolo, Istoria del Concilio Trident. l. viii.

had extorted from his unexperienced youth.⁴⁴⁴

The massacre of the Flavian race was succeeded by a new division of the provinces; which was ratified in a personal interview of the three brothers. Constantine, the eldest of the Cæsars, obtained, with a certain pre-eminence of rank, the possession of the new capital, which bore his own name and that of his father. Thrace and the countries of the East were allotted for the patrimony of Constantius; and Constans was Edition: current; Page: [196] acknowledged as the lawful sovereign of Italy, Africa, and the Western Illyricum. The armies submitted to their hereditary right; and they condescended, after some delay, to accept from the Roman senate the title of Augustus. When they first assumed the reins of government, the eldest of these princes was twenty-one, the second twenty, and the third only seventeen, years of age.⁴⁴⁵

While the martial nations of Europe followed the standards of his brothers, Constantius, at the head of the effeminate troops of Asia, was left to sustain the weight of the Persian war. At the decease of Constantine, the throne of the East was filled by Sapor, son of Hormouz or Hormisdas, and grandson of Narses, who, after the victory of Galerius, had humbly confessed the superiority of the Roman power. Although Sapor was in the thirtieth year of his long reign, he was still in the vigour of youth, as the date of his accession, by a very strange fatality, had preceded that of his birth. The wife of Hormouz remained pregnant at the time of her husband's death; and the uncertainty of the sex, as well as of the event, excited the ambitious hopes of the princes of the house of Sassan. The apprehensions of civil war were at length removed by the positive assurance of the Magi that the widow of Hormouz had conceived, and would safely produce, a son. Obedient to the voice of superstition, the Persians prepared, without delay, the ceremony of his coronation. A royal bed, on which the queen lay in state, was exhibited in the midst of the palace; the diadem was placed on the spot which might be supposed to conceal the future heir of Artaxerxes, and the prostrate Satraps adored the majesty of their invisible and insensible sovereign.⁴⁴⁶ Edition: current; Page: [197] If any credit can be given to this marvellous tale, which seems however to be countenanced by the manners of the people and by the extraordinary duration of his reign, we must admire not only the fortune, but the genius, of Sapor. In the soft sequestered education of a Persian harem, the royal youth could discover the importance of exercising the vigour of his mind and body; and, by his personal merit, deserved a throne, on which he had been seated while he was yet unconscious of the duties and temptations of absolute power. His minority was exposed to the almost inevitable calamities of domestic discord; his capital was surprised and plundered by Thair, a powerful king of Yemen, or Arabia; and the majesty of the royal family was degraded by the captivity of a princess, the sister of the deceased king. But, as soon as Sapor attained the age of manhood, the presumptuous Thair, his nation, and his country fell beneath the first effort of

⁴⁴⁴Julian (ad S. P. Q. Athen. p. 270 [i. p. 348, ed. Hertl.]) charges his cousin Constantius with the whole guilt of a massacre from which he himself so narrowly escaped. His assertion is confirmed by Athanasius, who, for reasons of a very different nature, was not less an enemy of Constantius (tom. i. p. 856 [ad. mon. 69]). Zosimus joins in the same accusation. But the three abbreviators, Eutropius and the Victors, use very qualifying expressions; [Hebrew]sinente potius quam jubente; [Hebrew]incertum quo suasore; [Hebrew]vi militum. [Hebrew]" [But Julian also says Constantius acted under compulsion; cp. Or. i. p. 19.]

⁴⁴⁵Euseb. in Vit. Constantin. l. iv. c. 69. Zosimus, l. ii. p. 117 [39]. Idat. in Chron. See two notes of Tillemont, Hist. des Empereurs, tom. iv. p. 1086-1091 [p. 666-668]. The reign of the eldest brother at Constantinople is noticed only in the Alexandrian Chronicle. [But see Appendix 10.]

⁴⁴⁶Agathias, who lived in the sixth century, is the author of this story (l. iv. p. 135, edit. Louvre [p. 262, ed. Bonn]). He derived his information from some extracts of the Persian Chronicles, obtained and translated by the interpreter Sergius, during his embassy at that court. The coronation of the mother of Sapor is likewise mentioned by Schikard (Tarikh. p. 116) and d[Hebrew]'Herbelot (Bibliothèque Orientale, p. 763). [Tabari does not mention the ceremony; Nöldeke, 51-2.]

the young warrior; who used his victory with so judicious a mixture of rigour and clemency that he obtained from the fears and gratitude of the Arabs the title of Dhoulacnaf, or protector of the nation.⁴⁴⁷

The ambition of the Persian, to whom his enemies ascribe the virtues of a soldier and a statesman, was animated by the desire of revenging the disgrace of his fathers, and of wresting from the hands of the Romans the five provinces beyond the Tigris. The military fame of Constantine, and the real or apparent strength of his government, suspended the attack; and, while the hostile conduct of Sapor provoked the resentment, his artful negotiations amused the patience, of the Imperial court. The death of Constantine was the signal of war,⁴⁴⁸ and the actual condition of the Syrian and Armenian Edition: current; Page: [198] frontier seemed to encourage the Persians by the prospect of a rich spoil and an easy conquest. The example of the massacres of the palace diffused a spirit of licentiousness and sedition among the troops of the East, who were no longer restrained by their habits of obedience to a veteran commander. By the prudence of Constantius, who, from the interview with his brothers in Pannonia, immediately hastened to the banks of the Euphrates, the legions were gradually restored to a sense of duty and discipline; but the season of anarchy had permitted Sapor to form the siege of Nisibis, and to occupy several of the most important fortresses of Mesopotamia.⁴⁴⁹ In Armenia, the renowned Tiridates had long enjoyed the peace and glory which he deserved by his valour and fidelity to the cause of Rome. The firm alliance which he maintained with Constantine was productive of spiritual as well as of temporal benefits: by the conversion of Tiridates, the character of a saint was applied to that of a hero, the Christian faith was preached and established from the Euphrates to the shores of the Caspian, and Armenia was attached to the empire by the double ties of policy and of religion. But, as many of the Armenian nobles still refused to abandon the plurality of their gods and of their wives, the public tranquillity was disturbed by a discontented faction, which insulted the feeble age of their sovereign, and impatiently expected the hour of his death. He died at length after a reign of fifty-six years, and the fortune of the Armenian monarchy expired with Tiridates. His lawful heir was driven into exile, the Christian priests were either murdered or expelled from their churches, the barbarous tribes of Albania were Edition: current; Page: [199] solicited to descend from their mountains; and two of the most powerful governors, usurping the ensigns or the powers of royalty, implored the assistance of Sapor, and opened the gates of their cities to the Persian garrisons. The Christian party, under the guidance of the Archbishop of Artaxata, the immediate successor of St. Gregory the Illuminator, had recourse to the piety of Constantius. After the troubles had continued about three years, Antiochus, one of the officers of the household, executed with success the Imperial commission of restoring Chosroes, the son of Tiridates, to the throne of his fathers, of distributing honours and rewards among the faithful servants of the house of Arsaces, and of proclaiming a general amnesty, which was accepted by the greater part of the rebellious Satraps. But the Romans derived more honour than advantage from this revolution. Chosroes was a prince of a puny stature,

⁴⁴⁷D[Hebrew]'Herbelot, Bibliothèque Orientale, p. 764.

⁴⁴⁸Sextus Rufus (c. 26), who on this occasion is no contemptible authority, affirms that the Persians sued in vain for peace, and that Constantine was preparing to march against them: yet the superior weight of the testimony of Eusebius obliges us to admit the preliminaries, if not the ratification, of the treaty. See Tillemont, Hist. des Empereurs, tom. iv. p. 420. [An important feature in connection with these wars is Sapor[Hebrew]'s persecution of the Christians in his dominion. See Ruinart, Acta sinc. p. 584 sqq., and Görres, Das Christenthum im Sassanidenreiche, in Zeitschr. f. wiss. Theol., vol. 31, 1888, p. 449 sqq.]

⁴⁴⁹Julian. Orat. i. p. 20 [p. 24, ed. Hertl. From some successes gained possibly in the campaign of this year Constantius won the title of Adiabenicus Maximus. C.I.L. 3, 3705].

and a pusillanimous spirit. Unequal to the fatigues of war, averse to the society of mankind, he withdrew from his capital to a retired palace, which he built on the banks of the river Eleutherus, and in the centre of a shady grove; where he consumed his vacant hours in the rural sports of hunting and hawking. To secure this inglorious ease, he submitted to the conditions of peace which Sapor condescended to impose; the payment of an annual tribute, and the restitution of the fertile province of Atropatene, which the courage of Tiridates and the victorious arms of Galerius had annexed to the Armenian monarchy.⁴⁵⁰

During the long period of the reign of Constantius, the provinces of the East were afflicted by the calamities of the Persian war. The irregular incursions of the light troops alternately Edition: current; Page: [200] spread terror and devastation beyond the Tigris and beyond the Euphrates, from the gates of Ctesiphon to those of Antioch; and this active service was performed by the Arabs of the desert, who were divided in their interest and affections; some of their independent chiefs being enlisted in the party of Sapor, whilst others had engaged their doubtful fidelity to the emperor.⁴⁵¹ The more grave and important operations of the war were conducted with equal vigour; and the armies of Rome and Persia encountered each other in nine bloody fields, in two of which Constantius himself commanded in person.⁴⁵² The event of the day was most commonly adverse to the Romans, but in the battle of Singara⁴⁵³ their imprudent valour had almost achieved a signal and decisive victory. The stationary troops of Singara retired on the approach of Sapor, who passed the Tigris over three bridges, and occupied near the village of Hilleh an advantageous camp, which, by the labour of his numerous pioneers, he surrounded in one day with a deep ditch and a lofty rampart. His formidable host, Edition: current; Page: [201] when it was drawn out in order of battle, covered the banks of the river, the adjacent heights, and the whole extent of a plain of above twelve miles, which separated the two armies. Both were alike impatient to engage; but the Barbarians, after a slight resistance, fled in disorder; unable to resist, or desirous to weary, the strength of the heavy legions, who, fainting with heat and thirst, pursued them across the plain, and cut in pieces a line of cavalry, clothed in complete armour, which had been posted before the gates of the camp to protect their retreat. Constantius, who was hurried along in the pursuit,

⁴⁵⁰Julian. Orat. i. p. 20, 21 [24, 25]. Moses of Chorene, l. ii. c. 89, l. iii. c. 1-9, p. 226-240. The perfect agreement between the vague hints of the contemporary orator and the circumstantial narrative of the national historian gives light to the former and weight to the latter. For the credit of Moses it may be likewise observed that the name of Antiochus is found a few years before in a civil office of inferior dignity. See Godefroy, Cod. Theod. tom. vi. p. 350. [For the Armenian affairs see Appendix 13.]

⁴⁵¹Ammianus (xiv. 4) gives a lively description of the wandering and predatory life of the Saracens, who stretched from the confines of Assyria to the cataracts of the Nile. It appears from the adventures of Malchus, which Jerom has related in so entertaining a manner, that the high road between Beroëa and Edessa was infested by these robbers. See Hieronym. tom. i. p. 256.

⁴⁵²We shall take from Eutropius the general idea of the war (x. 10). *A Persis enim multa et gravia perpessus, sæpe captis oppidis, obsessis urbibus, cæsis exercitibus, nullumque ei contra Saporem prosperum prælium fuit, nisi quod apud Singaram, &c.* This honest account is confirmed by the hints of Ammianus, Rufus, and Jerom. The two first orations of Julian and the third oration of Libanius exhibit a more flattering picture; but the recantation of both those orators, after the death of Constantius, while it restores us to the possession of the truth, degrades their own character, and that of the emperor. The commentary of Spanheim on the first oration of Julian is profusely learned. See likewise the judicious observations of Tillemont, *Hist. des Empereurs*, tom. iv. p. 656. [Julian puts the campaign about six years before the revolt of Magnentius, that would be 344 (Or. i. p. 32, [Ἑβραῶ]χτον που μάλιστα μετ[Ἑβραῶ] τ[Ἑβραῶ]ν πόλεμον [Ἑβραῶ]τος). See Appendix 12.]

⁴⁵³[Singara, now called Sinjâr, is situated due west of Nineveh (Môsil), and about the same distance [Hebrew] a geographical degree, roughly [Hebrew] east of the river Chaboras. See map in Sachau[Hebrew]'s *Reise in Syrien und Mesopotamien*, 1883, and p. 327 sqq.; or Mr. Le Strange[Hebrew]'s map in *Journal of Asiatic Soc.*, Jan., 1895.]

attempted, without effect, to restrain the ardour of his troops, by representing to them the dangers of the approaching night and the certainty of completing their success with the return of day. As they depended much more on their own valour than on the experience or the abilities of their chief, they silenced by their clamours his timid remonstrances; and rushing with fury to the charge filled up the ditch, broke down the rampart, and dispersed themselves through the tents, to recruit their exhausted strength and to enjoy the rich harvest of their labours. But the prudent Sapor had watched the moment of victory. His army, of which the greater part, securely posted on the heights, had been spectators of the action, advanced in silence, and under the shadow of the night; and his Persian archers, guided by the illumination of the camp, poured a shower of arrows on a disarmed and licentious crowd. The sincerity of history⁴⁵⁴ declares that the Romans were vanquished with a dreadful slaughter, and that the flying remnant of the legions was exposed to the most intolerable hardships. Even the tenderness of panegyric, confessing that the glory of the emperor was sullied by the disobedience of his soldiers, chooses to draw a veil over the circumstances of this melancholy retreat. Yet one of those venal orators, so jealous of the fame of Constantius, Edition: current; Page: [202] relates with amazing coolness an act of such incredible cruelty, as, in the judgment of posterity, must imprint a far deeper stain on the honour of the Imperial name. The son of Sapor, the heir of his crown, had been made a captive in the Persian camp. The unhappy youth, who might have excited the compassion of the most savage enemy, was scourged, tortured, and publicly executed by the inhuman Romans.⁴⁵⁵

Whatever advantages might attend the arms of Sapor in the field, though nine repeated victories diffused among the nations the fame of his valour and conduct, he could not hope to succeed in the execution of his designs, while the fortified towns of Mesopotamia, and, above all, the strong and ancient city of Nisibis, remained in the possession of the Romans. In the space of twelve years, Nisibis, which, since the time of Lucullus, had been deservedly esteemed the bulwark of the East, sustained three memorable sieges against the power of Sapor, and the disappointed monarch, after urging his attacks above sixty, eighty, and an hundred days, was thrice repulsed with loss and ignominy.⁴⁵⁶ This last and populous city was situate about two days[*Hebrew*]’ journey from the Tigris, in the midst of a pleasant and fertile plain at the foot of Mount Masius. A treble enclosure of brick walls was defended by a deep ditch;⁴⁵⁷ and the intrepid assistance of Count Lucilianus and Edition: current; Page: [203] his garrison was seconded by the desperate courage of the people. The citizens of Nisibis were animated by the exhortations of their bishop,⁴⁵⁸ enured to arms by the presence of danger, and convinced of the intentions of Sapor to plant a Persian

⁴⁵⁴Acerrimâ nocturnâ concertatione pugnatum est, nostrorum copiis ingenti strage confossis. Ammian. xviii. 5. See likewise Eutropius, x. 10, and S. Rufus [Festus], c. 27.

⁴⁵⁵Libanius, Orat. iii. p. 133, with Julian. Orat. i. p. 24 [29-30], and Spanheim[*Hebrew*]’s Commentary, p. 179.

⁴⁵⁶See Julian. Orat. i. p. 27 [29], Orat. ii. p. 62 [79], &c., with the Commentary of Spanheim (p. 188-202), who illustrates the circumstances, and ascertains the time, of the three sieges of Nisibis. Their dates are likewise examined by Tillemont (Hist. des Empereurs, tom. iv. p. 668, 671, 674). Something is added from Zosimus, l. iii. p. 151 [8], and the Alexandrine Chronicle, p. 290.

⁴⁵⁷Sallust, Fragment. lxxxiv. edit. Bosses, and Plutarch in Lucull. tom. iii. p. 184. Nisibis is now reduced to one hundred and fifty houses; the marshy lands produce rice, and the fertile meadows as far as Mosul and the Tigris are covered with the ruins of towns and villages. See Niebuhr, Voyages, tom. ii. p. 300-309. [Compare Sachau[*Hebrew*]’s description (op. cit. p. 391): [*Hebrew*]200 poor huts built chiefly of mud and straw,[*Hebrew*]” most of them inhabited by Jews.]

⁴⁵⁸The miracles which Theodoret (l. ii. c. 30) ascribes to St. James, Bishop of Edessa, were at least performed in a worthy cause, the defence of his country. He appeared on the walls under the figure of the Roman emperor, and sent an army of gnats to sting the trunks of the elephants, and to discomfit the host of the new Senacherib.

colony in their room and to lead them away into distant and barbarous captivity. The event of the two former sieges elated their confidence, and exasperated the haughty spirit of the Great King, who advanced a third time towards Nisibis, at the head of the united forces of Persia and India. The ordinary machines invented to batter or undermine the walls were rendered ineffectual by the superior skill of the Romans; and many days had vainly elapsed, when Sapor embraced a resolution, worthy of an Eastern monarch, who believed that the elements themselves were subject to his power. At the stated season of the melting of the snows in Armenia, the river Mygdonius, which divides the plain and the city of Nisibis, forms, like the Nile,⁴⁵⁹ an inundation over the adjacent country. By the labour of the Persians, the course of the river was stopped below the town, and the waters were confined on every side by solid mounds of earth. On this artificial lake, a fleet of armed vessels, filled with soldiers and with engines which discharged stones of five hundred pounds[*Hebrew*] weight, advanced in order of battle, and engaged, almost upon a level, the troops which defended Edition: current; Page: [204] the ramparts. The irresistible force of the waters was alternately fatal to the contending parties, till at length a portion of the walls, unable to sustain the accumulated pressure, gave way at once, and exposed an ample breach of one hundred and fifty feet. The Persians were instantly driven to the assault, and the fate of Nisibis depended on the event of the day. The heavy-armed cavalry, who led the van of a deep column, were embarrassed in the mud, and great numbers were drowned in the unseen holes which had been filled by the rushing waters. The elephants, made furious by their wounds, increased the disorder, and trampled down thousands of the Persian archers. The Great King, who, from an exalted throne, beheld the misfortunes of his arms, sounded, with reluctant indignation, the signal of the retreat, and suspended for some hours the prosecution of the attack. But the vigilant citizens improved the opportunity of the night; and the return of day discovered a new wall of six feet in height, rising every moment to fill up the interval of the breach. Notwithstanding the disappointment of his hopes, and the loss of more than twenty thousand men, Sapor still pressed the reduction of Nisibis, with an obstinate firmness which could have yielded only to the necessity of defending the eastern provinces of Persia against a formidable invasion of the Massagetæ.⁴⁶⁰ Alarmed by this intelligence, he hastily relinquished the siege, and marched with rapid diligence from the banks of the Tigris to those of the Oxus. The danger and difficulties of the Scythian war engaged him soon afterwards to conclude, or at least to observe, a truce with the Roman emperor, which was equally grateful to both princes; as Constantius himself, after the deaths of his two brothers, was involved, by the revolutions of the West, in a civil contest, which Edition: current; Page: [205] required and seemed to exceed the most vigorous exertion of his undivided strength.

After the partition of the empire three years had scarcely elapsed, before the sons of Constantine seemed impatient to convince mankind that they were incapable of contenting themselves with the dominions which they were unqualified to govern. The eldest of those princes soon complained that he was defrauded of his just proportion of the spoils of their murdered kinsmen; and, though

⁴⁵⁹Julian. Orat. i. p. 27. Though Niebuhr (tom. ii. p. 307) allows a very considerable swell to the Mygdonius, over which he saw a bridge of twelve arches; it is difficult, however, to understand this parallel of a trifling rivulet with a mighty river. There are many circumstances obscure, and almost unintelligible, in the description of these stupendous water-works. [The river (now called Jaghjagha) is split into three arms where the bridge spans it. Sachu, who describes the bridge as old but in tolerably good condition, saw the river very full (viel und reissend fliessendes Wasser, p. 390).]

⁴⁶⁰We are obliged to Zonaras (tom. ii. l. xiii. p. 11 [7]) for this invasion of the Massagetæ, which is perfectly consistent with the general series of events, to which we are darkly led by the broken history of Ammianus. [In memory of the brave resistance and the raising of the siege of Nisibis, Constantius founded [*Hebrew*]Persian Games[*Hebrew*] in May 350. See Corp. Ins. Lat. i. p. 393.]

he might yield to the superior guilt and merit of Constantius, he exacted from Constans the cession of the African provinces, as an equivalent for the rich countries of Macedonia and Greece, which his brother had acquired by the death of Dalmatius. The want of sincerity which Constantine experienced in a tedious and fruitless negotiation exasperated the fierceness of his temper; and he eagerly listened to those favourites who suggested to him that his honour, as well as his interest, was concerned in the prosecution of the quarrel. At the head of a tumultuary band, suited for rapine rather than for conquest, he suddenly broke into the dominions of Constans, by the way of the Julian Alps, and the country round Aquileia felt the first effects of his resentment. The measures of Constans, who then resided in Dacia, were directed with more prudence and ability. On the news of his brother[*Hebrew*]'s invasion, he despatched a select and disciplined body of his Illyrian troops, proposing to follow them in person with the remainder of his forces. But the conduct of his lieutenants soon terminated the unnatural contest. By the artful appearances of flight, Constantine was betrayed into an ambuscade, which had been concealed in a wood, where the rash youth, with a few attendants, was surprised, surrounded, and slain. His body, after it had been found in the obscure stream of the Elsa, obtained the honours of an Imperial sepulchre; but his provinces transferred their allegiance to the conqueror, who, refusing to admit his elder brother Constantius to any share in these new acquisitions, Edition: current; Page: [206] maintained the undisputed possession of more than two-thirds of the Roman empire.⁴⁶¹

The fate of Constans himself was delayed about ten years longer, and the revenge of his brother[*Hebrew*]'s death was reserved for the more ignoble hand of a domestic traitor. The pernicious tendency of the system introduced by Constantine was displayed in the feeble administration of his sons; who, by their vices and weakness, soon lost the esteem and affections of their people. The pride assumed by Constans, from the unmerited success of his arms, was rendered more contemptible by his want of abilities and application. His fond partiality towards some German captives, distinguished only by the charms of youth, was an object of scandal to the people;⁴⁶² and Magnentius, an ambitious soldier, who was himself of barbarian extraction, was encouraged by the public discontent to assert the honour of the Roman name.⁴⁶³ The chosen bands Edition: current; Page: [207] of Jovians and Herculians, who acknowledged Magnentius as their leader, maintained the most respectable and important station in the Imperial camp. The friendship of Marcellinus, count of the sacred largesses, supplied with a liberal hand the means of seduction. The soldiers were convinced, by the most specious arguments, that the republic summoned them

⁴⁶¹The causes and the events of this civil war are related with much perplexity and contradiction. I have chiefly followed Zonaras, and the younger Victor. The monody (ad calcem Eutrop. edit. Havercamp [but cp. App. 10]) pronounced on the death of Constantine, might have been very instructive; but prudence and false taste engaged the orator to involve himself in vague declamation. [Eutropius and others make Constantine invade his brother[*Hebrew*]'s land without reason or provocation (Zosimus, ii. 41, states that Constans sent soldiers to murder Constantine). The dissatisfaction of Constantine at the territorial division, given as the cause of the quarrel by Victor, Epit. 41, and Zosimus, and adopted by Gibbon, may be right. Schiller thinks it was a [*Hebrew*]Kompetenzkonflikt,[*Hebrew*] Constantine claiming a sort of primacy over his brothers, and supports his view by certain coins, which suggest that Constantine held an isolated position among the Augusti (ii. 241).]

⁴⁶²Quarum (gentium) obsides pretio quæsitos pueros venustiores, quod cultius habuerat, libidine hujusmodi arsisse pro certo habetur [Cæs. 41]. Had not the depraved tastes of Constans been publicly avowed, the elder Victor, who held a considerable office in his brother[*Hebrew*]'s reign, would not have asserted it in such positive terms.

⁴⁶³Julian. Orat. i. and ii. Zosim. l. ii. p. 134 [42]. Victor in Epitome. There is reason to believe that [Fl. Magnus] Magnentius was born in one of those Barbarian Colonies which Constantius Chlorus had established in Gaul (see this History, vol. ii. p. 159-160). His behaviour may remind us of the patriot Earl of Leicester, the famous Simon de Montfort, who could persuade the good people of England that he, a Frenchman by birth, had taken arms to deliver them from foreign favourites.

to break the bonds of hereditary servitude and, by the choice of an active and vigilant prince, to reward the same virtues which had raised the ancestors of the degenerate Constans from a private condition to the throne of the world. As soon as the conspiracy was ripe for execution, Marcellinus, under the pretence of celebrating his son[*Hebrew*]'s birthday, gave a splendid entertainment to the illustrious and honourable persons of the court of Gaul, which then resided in the city of Autun. The intemperance of the feast was artfully protracted till a very late hour of the night; and the unsuspecting guests were tempted to indulge themselves in a dangerous and guilty freedom of conversation. On a sudden the doors were thrown open, and Magnentius, who had retired for a few moments, returned into the apartment, invested with the diadem and purple. The conspirators instantly saluted him with the titles of Augustus and Emperor. The surprise, the terror, the intoxication, the ambitious hopes, and the mutual ignorance of the rest of the assembly prompted them to join their voices to the general acclamation. The guards hastened to take the oath of fidelity; the gates of the town were shut; and, before the dawn of day, Magnentius became master of the troops and treasure of the palace and city of Autun. By his secrecy and diligence he entertained some hopes of surprising the person of Constans, who was pursuing in the adjacent forest his favourite amusement of hunting, or perhaps some pleasures of a more private and criminal nature. The rapid progress of fame allowed him, however, an instant for flight, though the desertion of his soldiers and subjects deprived him of the power of resistance. Before he could reach a seaport in Spain, where he intended to embark, he was Edition: current; Page: [208] overtaken near Helena,⁴⁶⁴ at the foot of the Pyrenees, by a party of light cavalry, whose chief, regardless of the sanctity of a temple, executed his commission by the murder of the son of Constantine.⁴⁶⁵

As soon as the death of Constans had decided this easy but important revolution, the example of the court of Autun was imitated by the provinces of the West. The authority of Magnentius was acknowledged through the whole extent of the two great prefectures of Gaul and Italy;⁴⁶⁶ and the usurper prepared, by every act of oppression, to collect a treasure, which might discharge the obligation of an immense donative and supply the expenses of a civil war. The martial countries of Illyricum, from the Danube to the extremity of Greece, had long obeyed the government of Vetricano, an aged general, beloved for the simplicity of his manners, and who had acquired some reputation by his experience and services in war.⁴⁶⁷ Attached, by habit, by duty, and by gratitude, to the house of Constantine, he immediately gave the strongest assurances to Edition: current; Page: [209] the only surviving son of his late master that he would expose, with unshaken fidelity, his person and his troops, to inflict a just revenge on the traitors of Gaul. But the legions of Vetricano were seduced rather than provoked by the example of rebellion; their leader soon betrayed a

⁴⁶⁴This ancient city had once flourished under the name of Illiberis (Pomponius Mela, ii. 5). The munificence of Constantine gave it new splendour, and his mother[*Hebrew*]'s name. Helena (it is still called Elne) became the seat of a bishop, who long afterwards transferred his residence to Perpignan, the capital of modern Rousillon. See d[*Hebrew*]' Anville, Notice de l[*Hebrew*]' Ancienne Gaule, p. 380; Longuerue, Description de la France, p. 223, and the Marca Hispanica, l. i. c. 2.

⁴⁶⁵Zosimus, l. ii. p. 119, 120 [42]; Zonaras, tom. ii. l. xiii. p. 13 [6], and the Abbreviators.

⁴⁶⁶[This fact is confirmed in detail by inscriptions: see list in Schiller, ii. 249. In religion, Magnentius was probably a pagan; he permitted pagan sacrifices. But he professed to be a Christian of Nicene views, sought the support of Athanasius, and issued coins with the anti-Arian symbol $\Lambda \rho \Omega$.]

⁴⁶⁷Eutropius (x. 10) describes Vetricano with more temper, and probably with more truth, than either of the two Victors. Vetricano was born of obscure parents in the wildest parts of Mæsia; and so much had his education been neglected that, after his elevation, he studied the alphabet. [For the part played by Constantina see Chron. Pasch. i. 539, 540. The coins seem to support the hypothesis that Vetricano was loyal; see next note. Vetricano coins with Concordia militum, and Virtus Augustorum, are referred by Schiller to an understanding between Vetricano and Constantius.]

want of firmness, or a want of sincerity; and his ambition derived a specious pretence from the approbation of the princess Constantina. That cruel and aspiring woman, who had obtained from the great Constantine her father the rank of Augusta, placed the diadem with her own hands on the head of the Illyrian general; and seemed to expect from his victory the accomplishment of those unbounded hopes of which she had been disappointed by the death of her husband Hannibalianus. Perhaps it was without the consent of Constantina that the new emperor formed a necessary, though dishonourable, alliance with the usurper of the West, whose purple was so recently stained with her brother[*Hebrew*]'s blood.⁴⁶⁸

The intelligence of these important events, which so deeply affected the honour and safety of the Imperial house, recalled the arms of Constantius from the inglorious prosecution of the Persian war. He recommended the care of the East to his lieutenants, and afterwards to his cousin Gallus, whom he raised from a prison to a throne; and marched towards Europe, with a mind agitated by the conflict of hope and fear, of grief and indignation. On his arrival at Heraclea in Thrace, the emperor gave audience to the ambassadors of Magnentius and Vetranio. The first author of the conspiracy, Marcellinus, who in some measure had bestowed the purple on his new master, boldly accepted Edition: current; Page: [210] this dangerous commission; and his three colleagues were selected from the illustrious personages of the state and army. These deputies were instructed to soothe the resentment, and to alarm the fears, of Constantius. They were empowered to offer him the friendship and alliance of the Western princes, to cement their union by a double marriage; of Constantius with the daughter of Magnentius, and of Magnentius himself with the ambitious Constantina; and to acknowledge in the treaty the pre-eminence of rank, which might justly be claimed by the emperor of the East. Should pride and mistaken piety urge him to refuse these equitable conditions, the ambassadors were ordered to expatiate on the inevitable ruin which must attend his rashness, if he ventured to provoke the sovereigns of the West to exert their superior strength and to employ against him that valour, those abilities, and those legions, to which the house of Constantine had been indebted for so many triumphs. Such propositions and such arguments appeared to deserve the most serious attention; the answer of Constantius was deferred till the next day; and, as he had reflected on the importance of justifying a civil war in the opinion of the people, he thus addressed his council, who listened with real or affected credulity: [*Hebrew*]Last night,[*Hebrew*]” said he, [*Hebrew*]after I retired to rest, the shade of the great Constantine, embracing the corpse of my murdered brother, rose before my eyes; his well-known voice awakened me to revenge, forbade me to despair of the republic, and assured me of the success and immortal glory which would crown the justice of my arms.[*Hebrew*]” The authority of such a vision, or rather of the prince who alleged it, silenced every doubt, and excluded all negotiation. The ignominious terms of peace were rejected with disdain. One of the ambassadors of the tyrant was dismissed with the haughty answer of Constantius; his colleagues, as unworthy of the privileges of the law of nations, were put in irons; and Edition: current; Page: [211] the contending powers prepared to wage an implacable war.⁴⁶⁹

Such was the conduct, and such perhaps was the duty, of the brother of Constans towards the

⁴⁶⁸The doubtful, fluctuating conduct of Vetranio is described by Julian in his first oration [p. 32 sqq., ed. Hertl.] and accurately explained by Spanheim, who discusses the situation and behaviour of Constantina. [Schiller (ii. 250 sqq.) discusses the conduct of Vetranio and concludes that he was loyal throughout to the house of Constantine; that he assumed the purple lest a true rebel should be proclaimed; and that the dramatic scene of his repentance and resignation was prearranged between himself and Constantius.]

⁴⁶⁹See Peter the Patrician, in the *Excerpta Legationum*, p. 27.

perfidious usurper of Gaul. The situation and character of Vetranio admitted of milder measures; and the policy of the Eastern emperor was directed to disunite his antagonists, and to separate the forces of Illyricum from the cause of rebellion. It was an easy task to deceive the frankness and simplicity of Vetranio, who, fluctuating some time between the opposite views of honour and interest, displayed to the world the insincerity of his temper, and was insensibly engaged in the snares of an artful negotiation. Constantius acknowledged him as a legitimate and equal colleague in the empire, on condition that he would renounce his disgraceful alliance with Magnentius and appoint a place of interview on the frontiers of their respective provinces, where they might pledge their friendship by mutual vows of fidelity and regulate by common consent the future operations of the civil war. In consequence of this agreement, Vetranio advanced to the city of Sardica,⁴⁷⁰ at the head of twenty thousand horse and of a more numerous body of infantry; a power so far superior to the forces of Constantius that the Illyrian emperor appeared to command the life and fortunes of his rival, who, depending on the success of his private negotiations, had seduced the troops, and undermined the throne, of Vetranio. The chiefs, who had secretly embraced the party of Constantius, prepared in his favour a public spectacle, calculated to discover and inflame the passions of the multitude.⁴⁷¹ Edition: current; Page: [212] The united armies were commanded to assemble in a large plain near the city. In the centre, according to the rules of ancient discipline, a military tribunal, or rather scaffold, was erected, from whence the emperors were accustomed, on solemn and important occasions, to harangue the troops. The well-ordered ranks of Romans and Barbarians, with drawn swords or with erected spears, the squadrons of cavalry and the cohorts of infantry, distinguished by the variety of their arms and ensigns, formed an immense circle round the tribunal; and the attentive silence which they preserved was sometimes interrupted by loud bursts of clamour or of applause. In the presence of this formidable assembly, the two emperors were called upon to explain the situation of public affairs: the precedence of rank was yielded to the royal birth of Constantius; and, though he was indifferently skilled in the arts of rhetoric, he acquitted himself, under these difficult circumstances, with firmness, dexterity, and eloquence. The first part of his oration seemed to be pointed only against the tyrant of Gaul; but, while he tragically lamented the cruel murder of Constans, he insinuated that none, except a brother, could claim a right to the succession of his brother. He displayed, with some complacency, the glories of his Imperial race; and recalled to the memory of the troops the valour, the triumphs, the liberality of the great Constantine, to whose sons they had engaged their allegiance by an oath of fidelity, which the ingratitude of his most favoured servants had tempted them to violate. The officers, who surrounded the tribunal and were instructed to act their parts in this extraordinary scene, confessed the irresistible power of reason and eloquence by saluting the emperor Constantius as their lawful sovereign. The Edition: current; Page: [213] contagion of loyalty and repentance was communicated from rank to rank; till the plain of Sardica resounded with the universal acclamation of [Hebrew]Away with these upstart usurpers! Long life and victory to the son of Constantine! Under his banners alone we will fight and conquer.[Hebrew]" The shout of thousands, their menacing gestures, the fierce clashing of their arms, astonished and subdued the courage of Vetranio, who stood, amidst the defection of his followers, in anxious and silent suspense. Instead

⁴⁷⁰Zonaras, t. ii. l. xiii. p. 16 [c. 7]. The position of Sardica, near the modern city of Sophia, appears better suited to this interview than the situation of either Naissus or Sirmium, where it is placed by Jerom, Socrates, and Sozomen.

⁴⁷¹See the two first orations of Julian, particularly p. 31; and Zosimus, l. ii. p. 122 [c. 44]. The distinct narrative of the historian serves to illustrate the diffuse, but vague, descriptions of the orator. [Cp. also Them. Orat. 3, p. 45 C, and 4, p. 56 B. [Hebrew] Libanius, Vita, p. 58, Reiske. [Hebrew] Ammian, 21, 8, 1.]

of embracing the last refuge of generous despair, he tamely submitted to his fate; and taking the diadem from his head, in view of both armies, fell prostrate at the feet of his conqueror. Constantius used his victory with prudence and moderation; and raising from the ground the aged suppliant, whom he affected to style by the endearing name of Father, he gave him his hand to descend from the throne. The city of Prusa was assigned for the exile or retirement of the abdicated monarch, who lived six years in the enjoyment of ease and affluence. He often expressed his grateful sense of the goodness of Constantius, and, with a very amiable simplicity, advised his benefactor to resign the sceptre of the world, and to seek for content (where alone it could be found) in the peaceful obscurity of a private condition.⁴⁷²

The behaviour of Constantius on this memorable occasion was celebrated with some appearance of justice; and his courtiers compared the studied orations which a Pericles or a Demosthenes addressed to the populace of Athens with the victorious eloquence which had persuaded an armed multitude to desert and depose the object of their partial choice.⁴⁷³ The approaching contest with Magnentius Edition: current; Page: [214] was of a more serious and bloody kind. The tyrant advanced by rapid marches to encounter Constantius, at the head of a numerous army, composed of Gauls and Spaniards, of Franks and Saxons; of those provincials who supplied the strength of the legions, and of those Barbarians who were dreaded as the most formidable enemies of the republic. The fertile plains⁴⁷⁴ of the Lower Pannonia, between the Drave, the Save, and the Danube, presented a spacious theatre; and the operations of the civil war were protracted during the summer months by the skill or timidity of the combatants.⁴⁷⁵ Constantius had declared his intention of deciding the quarrel in the fields of Cibalis, a name that would animate his troops by the remembrance of the victory which, on the same auspicious ground, had been obtained by the arms of his father Constantine. Yet, by the impregnable fortifications with which the emperor encompassed his camp, he appeared to decline, rather than to invite, a general engagement. It was the object of Magnentius to tempt or to compel his adversary to relinquish this advantageous position; and he employed, with that view, the various marches, evolutions, and stratagems, which the knowledge of the art of war could suggest to an experienced officer. He carried by assault the important town of Siscia; made an attack on the city of Sirmium, which lay in the rear of the Imperial Edition: current; Page: [215] camp; attempted to force a passage over the Save into the eastern provinces of Illyricum; and cut in pieces a numerous detachment, which he had allured into the narrow passes of Adarne. During the greater part of the summer, the tyrant of Gaul shewed himself master of the field. The troops of Constantius were harassed and dispirited; his reputation declined in the eye of the world; and his pride condescended to solicit a treaty of peace, which would have resigned to the assassin of Constans the sovereignty of the provinces beyond the Alps. These offers were enforced by the eloquence of Philip, the Imperial ambassador; and the council as

⁴⁷²The younger Victor assigns to his exile the emphatical appellation of [*Hebrew*]Voluptarium otium.[*Hebrew*]“ Socrates (l. ii. c. 28) is the voucher for the correspondence with the emperor, which would seem to prove that Vetrano was, indeed, prope ad stultitiam simplicissimus.

⁴⁷³Eum Constantius . . . facundiæ vi dejectum Imperio in privatum otium removit. Quæ gloria post natum Imperium soli processit eloquio clementiâque, &c. Aurelius Victor, Julian, and Themistius (Orat. iii. and iv.) adorn this exploit with all the artificial and gaudy colouring of their rhetoric.

⁴⁷⁴Busbequius (p. 112) traversed the Lower Hungary and Sclavonia at a time when they were reduced almost to a desert by the reciprocal hostilities of the Turks and Christians. Yet he mentions with admiration the unconquerable fertility of the soil; and observes that the height of the grass was sufficient to conceal a loaded waggon from his sight. See likewise Browne[*Hebrew*]’s Travels, in Harris[*Hebrew*]’s Collection, vol. ii. p. 762, &c.

⁴⁷⁵Zosimus gives a very large account of the war and the negotiation (l. ii. p. 123-130 [c. 45-49]). But, as he neither shews himself a soldier nor a politician, his narrative must be weighed with attention, and received with caution.

well as the army of Magnentius were disposed to accept them. But the haughty usurper, careless of the remonstrances of his friends, gave orders that Philip should be detained as a captive, or at least as a hostage; while he despatched an officer to reproach Constantius with the weakness of his reign, and to insult him by the promise of a pardon, if he would instantly abdicate the purple. [*Hebrew*]That he should confide in the justice of his cause and the protection of an avenging Deity,[*Hebrew*]" was the only answer which honour permitted the emperor to return. But he was so sensible of the difficulties of his situation that he no longer dared to retaliate the indignity which had been offered to his representative. The negotiation of Philip was not, however, ineffectual, since he determined Sylvanus, the Frank, a general of merit and reputation, to desert with a considerable body of cavalry, a few days before the battle of Mursa.

The city of Mursa, or Essek, celebrated in modern times for a bridge of boats five miles in length over the river Drave and the adjacent morasses,⁴⁷⁶ has been always considered as Edition: current; Page: [216] a place of importance in the wars of Hungary. Magnentius, directing his march towards Mursa, set fire to the gates, and, by a sudden assault, had almost scaled the walls of the town. The vigilance of the garrison extinguished the flames; the approach of Constantius left him no time to continue the operations of the siege; and the emperor soon removed the only obstacle that could embarrass his motions, by forcing a body of troops which had taken post in an adjoining amphitheatre. The field of battle round Mursa was a naked and level plain: on this ground the army of Constantius formed, with the Drave on their right; while their left, either from the nature of their disposition or from the superiority of their cavalry, extended far beyond the right flank of Magnentius.⁴⁷⁷ The troops on both sides remained under arms in anxious expectation during the greatest part of the morning; and the son of Constantine, after animating his soldiers by an eloquent speech, retired into a church at some distance from the field of battle, and committed to his generals the conduct of this decisive day.⁴⁷⁸ They deserved his confidence by the valour and military skill which they exerted. They wisely began the action upon the left; and, advancing their whole wing of cavalry in an oblique line, they suddenly wheeled it on the right flank of the enemy, which was unprepared to resist the impetuosity of their charge. But the Romans of the West soon rallied, by the habits of discipline; and the Barbarians of Germany supported the renown of their national bravery. The engagement soon became general; was maintained Edition: current; Page: [217] with various and singular turns of fortune; and scarcely ended with the darkness of the night. The signal victory which Constantius obtained is attributed to the arms of his cavalry. His cuirassiers are described as so many massy statues of steel, glittering with their scaly armour, and breaking with their ponderous lances the firm array of the Gallic legions. As soon as the legions gave way, the lighter and more active squadrons of the second line rode sword in hand into the intervals, and completed the disorder. In the meanwhile, the huge bodies of the Germans were exposed almost naked to the dexterity of the oriental archers; and whole troops of those Barbarians were urged by

⁴⁷⁶This remarkable bridge, which is flanked with towers, and supported on large wooden piles, was constructed, ad 1566, by Sultan Soliman, to facilitate the march of his armies into Hungary. See Browne[*Hebrew*]'s Travels, and Busching[*Hebrew*]'s System of Geography, vol. ii. p. 90.

⁴⁷⁷This position, and the subsequent evolutions, are clearly, though concisely, described by Julian. Orat. i. p. 36 [p. 44, ed. Hertl.].

⁴⁷⁸Sulpicius Severus, l. ii. p. 405 [ed. Lugd. Bat. 1647; c. 38]. The emperor passed the day in prayer with Valens, the Arian bishop of Mursa, who gained his confidence by announcing the success of the battle. M. de Tillemont (Hist. des Empereurs, tom. iv. p. 1110) very properly remarks the silence of Julian with regard to the personal prowess of Constantius in the battle of Mursa. The silence of flattery is sometimes equal to the most positive and authentic evidence.

anguish and despair to precipitate themselves into the broad and rapid stream of the Drave.⁴⁷⁹ The number of the slain was computed at fifty-four thousand men, and the slaughter of the conquerors was more considerable than that of the vanquished,⁴⁸⁰ a circumstance which proves the obstinacy of the contest, and justifies the observation of an ancient writer that the forces of the empire were consumed in the fatal battle of Mursa, by the loss of a veteran army, sufficient to defend the frontiers or to add new triumphs to the glory of Rome.⁴⁸¹ Notwithstanding the invectives of a Edition: current; Page: [218] servile orator, there is not the least reason to believe that the tyrant deserted his own standard in the beginning of the engagement. He seems to have displayed the virtues of a general and of a soldier till the day was irrecoverably lost, and his camp in the possession of the enemy. Magnentius then consulted his safety, and, throwing away the Imperial ornaments, escaped with some difficulty from the pursuit of the light horse, who incessantly followed his rapid flight from the banks of the Drave to the foot of the Julian Alps.⁴⁸²

The approach of winter supplied the indolence of Constantius with specious reasons for deferring the prosecution of the war till the ensuing spring. Magnentius had fixed his residence in the city of Aquileia, and shewed a seeming resolution to dispute the passage of the mountains and morasses which fortified the confines of the Venetian province. The surprisal of a castle in the Alps by the secret march of the Imperialists could scarcely have determined him to relinquish the possession of Italy, if the inclinations of the people had supported the cause of their tyrant.⁴⁸³ But the memory of the cruelties exercised by his ministers, after the unsuccessful revolt of Nepotian, had left a deep impression of horror and resentment on the minds of the Romans. That rash youth, the son of the princess Eutropia, and the nephew of Constantine, had seen with indignation the sceptre of the West usurped by a perfidious Barbarian. Arming a desperate troop of slaves and gladiators, he overpowered the feeble guard of the domestic tranquillity of Rome, received the homage of the senate, and, Edition: current; Page: [219] assuming the title of Augustus, precariously reigned during a tumult of twenty-eight days. The march of some regular forces put an end to his ambitious hopes: the rebellion was extinguished in the blood of Nepotian, of his mother Eutropia, and of his adherents; and the proscription was extended to all who had contracted a fatal alliance with the name and family of Constantine.⁴⁸⁴ But, as soon as Constantius, after the battle of Mursa,

⁴⁷⁹Julian Orat. i. p. 36 37 [45, 46, ed. Hertl.]; and Orat. ii. p. 59, 60. Zonaras, tom. ii. l. xiii. p. 17 [8]. Zosimus, l. ii. p. 130-133 [49-52]. The last of these celebrates the dexterity of the archer Menelaus, who could discharge three arrows at the same time; an advantage which, according to his apprehension of military affairs, materially contributed to the victory of Constantius.

⁴⁸⁰According to Zonaras, Constantius, out of 80,000 men, lost 30,000, and Magnentius lost 24,000 out of 36,000. The other articles of this account seem probable and authentic, but the numbers of the tyrant[*Hebrew*]'s army must have been mistaken, either by the author or his transcribers. Magnentius had collected the whole force of the West, Romans and Barbarians, into one formidable body, which cannot fairly be estimated at less than 100,000 men. Julian. Orat. i. p. 34, 35 [75, 76].

⁴⁸¹*Ingentes R. I. vires eâ dimicatione consumptæ sunt, ad quælibet bella externa idoneæ, quæ multum triumphorum possent securitatisque conferre.* Eutropius, x. 13. The younger Victor expresses himself to the same effect. [Cp. Sulpicius Severus, Chron. 2, 38.]

⁴⁸²On this occasion, we must prefer the unsuspected testimony of Zosimus and Zonaras to the flattering assertions of Julian. The younger Victor paints the character of Magnentius in a singular light: [*Hebrew*]Sermonis acer animi tumidi, et immodice timidus; artifex tamen ad occultandam audaciæ specie formidinem.[*Hebrew*] Is it most likely that in the battle of Mursa his behaviour was governed by nature or by art? I should incline for the latter.

⁴⁸³Julian. Orat. i. p. 38, 39 [48, 49]. In that place, however, as well as in Oration ii. p. 97 [124], he insinuates the general disposition of the senate, the people, and the soldiers of Italy, towards the party of the emperor.

⁴⁸⁴The elder Victor describes in a pathetic manner the miserable condition of Rome: [*Hebrew*]Cujus stolidum ingenium adeo P. R. patribusque exitio fuit, uti passim domus, fora, viæ, templeaque, cruore, cadaveribusque opplerentur bustorum

became master of the sea-coast of Dalmatia, a band of noble exiles, who had ventured to equip a fleet in some harbour of the Hadriatic, sought protection and revenge in his victorious camp. By their secret intelligence with their countrymen, Rome and the Italian cities were persuaded to display the banners of Constantius on their walls. The grateful veterans, enriched by the liberality of the father, signalled their gratitude and loyalty to the son. The cavalry, the legions, and the auxiliaries of Italy renewed their oath of allegiance to Constantius; and the usurper, alarmed by the general desertion, was compelled, with the remains of his faithful troops, to retire beyond the Alps into the provinces of Gaul. The detachments, however, which were ordered either to press or to intercept the flight of Magnentius, conducted themselves with the usual imprudence of success; and allowed him, in the plains of Pavia, an opportunity of turning on his pursuers and of gratifying his despair by the carnage of a useless victory.⁴⁸⁵

The pride of Magnentius was reduced, by repeated misfortunes, Edition: current; Page: [220] to sue, and to sue in vain, for peace. He first despatched a senator, in whose abilities he confided, and afterwards several bishops, whose holy character might obtain a more favourable audience, with the offer of resigning the purple, and the promise of devoting the remainder of his life to the service of the emperor. But Constantius, though he granted fair terms of pardon and reconciliation to all who abandoned the standard of rebellion,⁴⁸⁶ avowed his inflexible resolution to inflict a just punishment on the crimes of an assassin, whom he prepared to overwhelm on every side by the effort of his victorious arms. An Imperial fleet acquired the easy possession of Africa and Spain, confirmed the wavering faith of the Moorish nations, and landed a considerable force, which passed the Pyrenees, and advanced towards Lyons, the last and fatal station of Magnentius.⁴⁸⁷ The temper of the tyrant, which was never inclined to clemency, was urged by distress to exercise every act of oppression which could extort an immediate supply from the cities of Gaul.⁴⁸⁸ Their patience was at length exhausted; and Treves, the seat of Prætorian government, gave the signal of revolt by shutting her gates against Decentius, who had been raised by his brother to the rank either of Cæsar or of Augustus.⁴⁸⁹ From Treves, Decentius was obliged to retire to Sens, Edition: current; Page: [221] where he was soon surrounded by an army of Germans, whom the pernicious arts of Constantius had introduced into the civil dissensions of Rome.⁴⁹⁰ In the meantime the Imperial troops forced the passages of the Cottian Alps, and in the bloody combat of Mount Seleucus

modo.[*Hebrew*]” Athanasius (tom. i. p. 677) deplores the fate of several illustrious victims, and Julian (Orat. ii. p. 58 [74]) execrates the cruelty of Marcellinus, the implacable enemy of the house of Constantine. [June is given as the date in Idatius and Chron. Pasch.; but Rossi argues for July; Rev. Arch. 6, 375.]

⁴⁸⁵Zosim. l. ii. p. 133 [52]. Victor in Epitome. The panegyrists of Constantius, with their usual candour, forget to mention this accidental defeat.

⁴⁸⁶Zonaras, tom. ii. l. xiii. p. 17. Julian, in several places of the two orations, expatiates on the clemency of Constantius to the rebels.

⁴⁸⁷Zosim. l. ii. p. 133 [ib.]. Julian. Orat. i. p. 40 [50]; ii. p. 74 [95].

⁴⁸⁸Ammian. xv. 6. Zosim. l. ii. p. 133. Julian, who (Orat. i. p. 40) inveighs against the cruel effects of the tyrant[*Hebrew*]/s despair, mentions (Orat. i. p. 34) the oppressive edicts which were dictated by his necessities, or by his avarice. His subjects were compelled to purchase the Imperial demesnes; a doubtful and dangerous species of property, which, in case of a revolution, might be imputed to them as a treasonable usurpation.

⁴⁸⁹The medals of Magnentius celebrate the victories of the two Augusti, and of the Cæsar. The Cæsar was another brother, named Desiderius. See Tillemont, Hist. des Empereurs, tom. iv. p. 757. [Decentius was only Cæsar. The two Augusti (Augustorum) on the coins are Magnentius and Constantius. Magnentius posed as the colleague of Constantius.]

⁴⁹⁰Julian. Orat. i. p. 40, ii. p. 74, with Spanheim, p. 263. His Commentary illustrates the transactions of this civil war. Mons Seleuci was a small place in the Cottian Alps, a few miles distant from Vapincum, or Gap, an episcopal city of Dauphiné. See d[*Hebrew*]/Anville, Notice de la Gaule, p. 464; and Longuerue, Description de la France, p. 327.

irrevocably fixed the title of Rebels on the party of Magnentius.⁴⁹¹ He was unable to bring another army into the field; the fidelity of his guards was corrupted: and, when he appeared in public to animate them by his exhortations, he was saluted with an unanimous shout of [*Hebrew*]Long live the emperor Constantius! [*Hebrew*]” The tyrant, who perceived that they were preparing to deserve pardon and rewards by the sacrifice of the most obnoxious criminal, prevented their design by falling on his sword;⁴⁹² a death more easy and more honourable than he could hope to obtain from the hands of an enemy, whose revenge would have been coloured with the specious pretence of justice and fraternal piety. The example of suicide was imitated by Decentius, who strangled himself on the news of his brother [*Hebrew*]’s death. The author of the conspiracy, Marcellinus, had long since disappeared in the battle of Mursa,⁴⁹³ and the public tranquillity Edition: current; Page: [222] was confirmed by the execution of the surviving leaders of a guilty and unsuccessful faction. A severe inquisition was extended over all who, either from choice or from compulsion, had been involved in the cause of rebellion. Paul, surnamed Catena, from his superior skill in the judicial exercise of tyranny, was sent to explore the latent remains of the conspiracy in the remote province of Britain. The honest indignation expressed by Martin, vice-prefect of the island, was interpreted as an evidence of his own guilt; and the governor was urged to the necessity of turning against his breast the sword with which he had been provoked to wound the Imperial minister. The most innocent subjects of the West were exposed to exile and confiscation, to death and torture; and, as the timid are always cruel, the mind of Constantius was inaccessible to mercy.⁴⁹⁴

Edition: current; Page: [223]

⁴⁹¹Zosimus, l. ii. p. 134 [52]. Liban. Orat. x. p. 268, 269. The latter most vehemently arraigns this cruel and selfish policy of Constantius.

⁴⁹²Julian. Orat. i. p. 40. Zosimus, l. ii. p. 134 [53]. Socrates, l. ii. c. 32. Sozomen, l. iv. c. 7. The younger Victor describes his death with some horrid circumstances: Transfossus latere, ut erat vasti corporis, vulnere naribusque et ore cruorem effundens, exspiravit. If we can give credit to Zonaras, the tyrant, before he expired, had the pleasure of murdering with his own hands his mother and his brother Desiderius. [The date 11th Aug. must be accepted from Idatius. Gibbon took 10th Aug. from Chron. Pasch., which gives the wrong year, 354.]

⁴⁹³Julian (Orat. i. p. 58, 59) seems at a loss to determine whether he inflicted on himself the punishment of his crimes, whether he was drowned in the Drave, or whether he was carried by the avenging demons from the field of battle to his destined place of eternal tortures.

⁴⁹⁴Ammian. xiv. 5; xxi. 16. [Several inscriptions are extant celebrating the victory of Constantius; e.g., C.I.L. 6, 1158: restitutor urbis Romæ atque orbis et extinctor pestiferæ tyrannidis. Magnentius had been described as liberator orbis terrarum, &c. Cod. Theod. 15, 14, 5, and 9, 38, 2, annul all the acts of the tyrant.]

Chapter Xix

Constantius sole Emperor [*Hebrew*] Elevation and Death of Gallus [*Hebrew*] Danger and Elevation of Julian [*Hebrew*] Sarmatian and Persian Wars [*Hebrew*] Victories of Julian in Gaul

The divided provinces of the empire were again united by the victory of Constantius; but, as that feeble prince was destitute of personal merit, either in peace or war; as he feared his generals and distrusted his ministers; the triumph of his arms served only to establish the reign of the eunuchs over the Roman world. Those unhappy beings, the ancient production of oriental jealousy and despotism,⁴⁹⁵ were introduced into Greece and Rome by the contagion of Asiatic luxury.⁴⁹⁶ Their progress was rapid; and the eunuchs, who, in the time of Augustus, had been abhorred, as the monstrous retinue of an Egyptian queen,⁴⁹⁷ were gradually admitted into the families of matrons, of Edition: current; Page: [224] senators, and of the emperors themselves.⁴⁹⁸ Restrained by the severe edicts of Domitian and Nerva,⁴⁹⁹ cherished by the pride of Diocletian, reduced to an humble station by the prudence of Constantine,⁵⁰⁰ they multiplied in the palaces of his degenerate sons, and insensibly acquired the knowledge, and at length the direction, of the secret councils of Constantius. The aversion and contempt which mankind has so uniformly entertained for that imperfect species appears to have degraded their character, and to have rendered them almost as incapable as they were supposed to be of conceiving any generous sentiment or of performing any worthy action.⁵⁰¹ But the eunuchs were skilled in the arts of flattery and intrigue; and they alternately governed the mind of Constantius by his fears, his indolence, Edition: current; Page: [225] and his vanity.⁵⁰² Whilst he viewed in a deceitful mirror the fair appearance of public prosperity, he supinely permitted them to intercept the complaints of the injured provinces, to

⁴⁹⁵Ammianus (l. xiv. c. 6) imputes the first practice of castration to the cruel ingenuity of Semiramis, who was supposed to have reigned above nineteen hundred years before Christ. The use of eunuchs is of high antiquity, both in Asia and Egypt. They are mentioned in the law of Moses, Deuteron. xxiii. 1. See Goguet, Origines des Loix, &c. part i. l. i. c. 3.

⁴⁹⁶Eunuchum dixti velle te;

Quia solæ utuntur his reginæ [*Hebrew*] Terent. Eunuch. Act i. scene 2.

⁴⁹⁷Miles . . . spadonibus

Servire rugosis potest.

[*Hebrew*] Horat. Carm. v. 9 [Epode 9], and Dacier ad loc.

⁴⁹⁸We need only mention Posides, a freedman and eunuch of Claudius, in whose favour the emperor prostituted some of the most honourable rewards of military valour. See Sueton. in Claudio, c. 28. Posides employed a great part of his wealth in building.

Ut spado vincebat Capitolia nostra

Posides.

[*Hebrew*] Juvenal. Sat. xiv. [91].

⁴⁹⁹Castrari mares vetuit. Sueton. in Domitian. c. 7. See Dion Cassius, l. lxxvii. p. 1107 [2]; lxxviii. p. 1119 [2].

⁵⁰⁰There is a passage in the Augustan History, p. 137 [xviii. 66], in which Lampridius, whilst he praises Alexander Severus and Constantine for restraining the tyranny of the eunuchs, deploras the mischiefs which they occasioned in other reigns. Huc accedit quod eunuchos nec in consiliis nec in ministeriis habuit; qui soli principes perdunt, dum eos more gentium aut regum Persarum volunt vivere; qui a populo etiam amicissimum semovent; qui internuntii sunt, aliud quam respondetur referentes claudentes; principem suum, et agentes ante omnia ne quid sciat.

⁵⁰¹Xenophon (Cyropædia, l. viii. [leg. vii.] p. 540 [c. 5, 60]) has stated the specious reasons which engaged Cyrus to entrust his person to the guard of eunuchs. He had observed in animals that, although the practice of castration might tame their ungovernable fierceness, it did not diminish their strength or spirit; and he persuaded himself that those who were separated from the rest of human kind would be more firmly attached to the person of their benefactor. But a long experience has contradicted the judgment of Cyrus. Some particular instances may occur of eunuchs distinguished by their fidelity, their valour, and their abilities; but, if we examine the general history of Persia, India, and China, we shall find that the power of the eunuchs has uniformly marked the decline and fall of every dynasty.

⁵⁰²See Ammianus Marcellinus, l. xxi. c. 16, l. xxii. c. 4. The whole tenor of his impartial history serves to justify the invectives of Mamertinus, of Libanius, and of Julian himself, who have insulted the vices of the court of Constantius.

accumulate immense treasures by the sale of justice and of honours; to disgrace the most important dignities by the promotion of those who had purchased at their hands the powers of oppression,⁵⁰³ and to gratify their resentment against the few independent spirits who arrogantly refused to solicit the protection of slaves. Of these slaves the most distinguished was the chamberlain Eusebius, who ruled the monarch and the palace with such absolute sway that Constantius, according to the sarcasm of an impartial historian, possessed some credit with his haughty favourite.⁵⁰⁴ By his artful suggestions the emperor was persuaded to subscribe the condemnation of the unfortunate Gallus, and to add a new crime to the long list of unnatural murders which pollute the honour of the house of Constantine.

When the two nephews of Constantine, Gallus and Julian, were saved from the fury of the soldiers, the former was about twelve, and the latter about six, years of age; and, as the eldest was thought to be of a sickly constitution, they obtained with the less difficulty a precarious and dependent life from the affected pity of Constantius, who was sensible that the execution of these helpless orphans would have been esteemed by all mankind an act of the most Edition: current; Page: [226] deliberate cruelty.⁵⁰⁵ Different cities of Ionia and Bithynia were assigned for the places of their exile and education; but, as soon as their growing years excited the jealousy of the emperor, he judged it more prudent to secure those unhappy youths in the strong castle of Macellum, near Cæsarea. The treatment which they experienced during a six years[*Hebrew*] confinement was partly such as they could hope from a careful guardian, and partly such as they might dread from a suspicious tyrant.⁵⁰⁶ Their prison was an ancient palace, the residence of the kings of Cappadocia; the situation was pleasant, the buildings stately, the enclosure spacious. They pursued their studies, and practised their exercises, under the tuition of the most skilful masters; and the numerous household, appointed to attend, or rather to guard, the nephews of Constantine, was not unworthy of the dignity of their birth. But they could not disguise to themselves that they were deprived of fortune, of freedom, and of safety; secluded from the society of all whom they could trust or esteem; and condemned to pass their melancholy hours in the company of slaves, devoted to the commands of a tyrant, who had already injured Edition: current; Page: [227] them beyond the hope of reconciliation. At length, however, the emergencies of the state compelled the emperor, or rather his eunuchs, to invest Gallus, in the twenty-fifth year of his age, with the title of Cæsar,⁵⁰⁷ and to

⁵⁰³Aurelius Victor censures the negligence of his sovereign in choosing the governors of the provinces and the generals of the army, and concludes his history with a very bold observation, as it is much more dangerous under a feeble reign to attack the ministers than the master himself. [*Hebrew*] *Uti verum absolvam brevi, ut Imperatore ipso clarius ita apparitorum plerisque magis atrox nihil[Hebrew]"* [Cæs. 42].

⁵⁰⁴Apud que (si vere dici debeat) multum Constantius potuit. Ammian. l. xviii. c. 4.

⁵⁰⁵Gregory Nazianzen (Orat. iii. p. 90) reproaches the apostate with his ingratitude towards Mark, bishop of Arethusa, who had contributed to save his life; and we learn, though from a less respectable authority (Tillemont, Hist. des Empereurs, tom. iv. p. 916), that Julian was concealed in the sanctuary of a church. [Gallus and Julian were step-brothers, being sons of Galla and Basilina respectively. The exact date of Julian[*Hebrew*]'s birth has been recently a subject of discussion. Schwarz (de vita et scr. Jul. imp. p. 16) gives Nov.-Dec., 331; Kellerbauer, Sept., 331; C. Radinger (Philologus, 50, p. 761; 1891), May, 331, comparing lemma to Anth. Pal. 14, 148, [*Hebrew*] very probably as regards the month. But C. J. Neumann, Das Geburtsjahr K. Julians (ib.), shews that if we accept May from Radinger, the year must be 332; for he died in his thirty-second year (Amm. 25, 3, 23) in June. If born in May, 331, his death must have occurred in his thirty-third year.]

⁵⁰⁶The most authentic account of the education and adventures of Julian is contained in the epistle or manifesto which he himself addressed to the senate and people of Athens. Libanius (Orat. Parentalis), on the side of the Pagans, and Socrates (l. iii. c. 1), on that of the Christians, have preserved several interesting circumstances.

⁵⁰⁷[Flavius Claudius Constantius.]

cement this political connection by his marriage with the princess Constantina.⁵⁰⁸ After a formal interview, in which the two princes mutually engaged their faith never to undertake anything to the prejudice of each other, they repaired without delay to their respective stations. Constantius continued his march towards the West, and Gallus fixed his residence at Antioch, from whence, with a delegated authority, he administered the five great dioceses of the Eastern prefecture.⁵⁰⁹ In this fortunate change, the new Cæsar was not unmindful of his brother Julian, who obtained the honours of his rank, the appearances of liberty, and the restitution of an ample patrimony.⁵¹⁰

The writers the most indulgent to the memory of Gallus, and even Julian himself, though he wished to cast a veil over the frailties of his brother, are obliged to confess that the Cæsar was incapable of reigning. Transported from a prison to a throne, he possessed neither genius nor application, nor docility to compensate for the want of knowledge and experience. A temper naturally morose and violent, instead of being corrected, was soured, by solitude and adversity; the remembrance of what he had endured disposed him to retaliation rather than to sympathy; Edition: current; Page: [228] and the ungoverned sallies of his rage were often fatal to those who approached his person or were subject to his power.⁵¹¹ Constantina, his wife, is described, not as a woman, but as one of the infernal furies tormented with an insatiate thirst of human blood.⁵¹² Instead of employing her influence to insinuate the mild counsels of prudence and humanity, she exasperated the fierce passions of her husband; and, as she retained the vanity, though she had renounced the gentleness, of her sex, a pearl necklace was esteemed an equivalent price for the murder of an innocent and virtuous nobleman.⁵¹³ The cruelty of Gallus was sometimes displayed in the undissembled violence of popular or military executions; and was sometimes disguised by the abuse of law, and the forms of judicial proceedings. The private houses of Antioch and the places of public resort were besieged by spies and informers; and the Cæsar himself, concealed in a plebeian habit, very frequently condescended to assume that odious character. Every apartment of the palace was adorned with the instruments of death and torture, and a general consternation was diffused through the capital of Syria. The Prince of the East, as if he had been conscious how much he had to fear, and how little he deserved to reign, selected for the objects of his resentment the provincials, accused of some imaginary Edition: current; Page: [229] treason, and his own courtiers, whom with more reason he suspected of incensing, by their secret correspondence, the timid and suspicious mind of Constantius. But he forgot that he was depriving himself of his only support, the affection of the people; whilst he furnished the malice of his enemies with the arms of truth,

⁵⁰⁸[Widow of Hannibalianus.]

⁵⁰⁹For the promotion of Gallus, see Idatius [date 15th, not 5th March], Zosimus, and the two Victors. According to Philostorgius (l. iv. c. 1), Theophilus, an Arian bishop, was the witness, and, as it were, the guarantee, of this solemn engagement. He supported that character with generous firmness; but M. de Tillemont (Hist. des Empereurs, tom. iv. p. 1120) thinks it very improbable that an heretic should have possessed such virtue.

⁵¹⁰Julian was at first permitted to pursue his studies at Constantinople, but the reputation which he acquired soon excited the jealousy of Constantius; and the young prince was advised to withdraw himself to the less conspicuous scenes of Bithynia and Ionia.

⁵¹¹See Julian ad S. P. Q. A. p. 271 [350], Jerom. in Chron., Aurelius Victor [Cæs. 42, 8], Eutropius, x. 14 [leg. 13]. I shall copy the words of Eutropius, who wrote his abridgment about fifteen years after the death of Gallus, when there was no longer any motive either to flatter or to depreciate his character. [*Hebrew*] *Multis incivilibus gestis Gallus Cæsar . . . vir naturâ ferox [leg. ferus] et ad tyrannidem pronior, si suo jure imperare licuisset.* [*Hebrew*]"

⁵¹²Megæra quidem mortalis, inflammatrix sævientis assidua, humani cruoris avida, &c. Ammian. Marcellin. l. xiv. c. 1. The sincerity of Ammianus would not suffer him to misrepresent facts or characters, but his love of ambitious ornaments frequently betrayed him into an unnatural vehemence of expression.

⁵¹³His name was Clematius of Alexandria, and his only crime was a refusal to gratify the desires of his mother-in-law; who solicited his death, because she had been disappointed of his love. Ammian. l. xiv. c. 1.

and afforded the emperor the fairest pretence of exacting the forfeit of his purple, and of his life.⁵¹⁴

As long as the civil war suspended the fate of the Roman world, Constantius dissembled his knowledge of the weak and cruel administration to which his choice had subjected the East; and the discovery of some assassins, secretly despatched to Antioch by the tyrant of Gaul, was employed to convince the public, that the emperor and the Cæsar were united by the same interest and pursued by the same enemies.⁵¹⁵ But, when the victory was decided in favour of Constantius, his dependent colleague became less useful and less formidable. Every circumstance of his conduct was severely and suspiciously examined, and it was privately resolved either to deprive Gallus of the purple or at least to remove him from the indolent luxury of Asia to the hardships and dangers of a German war. The death of Theophilus, consular of the province of Syria, who in a time of scarcity had been massacred by the people of Antioch with the connivance, and almost at the instigation, of Gallus, was justly resented, not only as an act of wanton cruelty, but as a dangerous insult on the supreme majesty of Constantius. Two ministers of illustrious rank, Domitian, the oriental prefect, and Montius, quæstor of Edition: current; Page: [230] the palace, were empowered by a special commission to visit and reform the state of the East.⁵¹⁶ They were instructed to behave towards Gallus with moderation and respect, and, by the gentlest arts of persuasion, to engage him to comply with the invitation of his brother and colleague. The rashness of the prefect disappointed these prudent measures, and hastened his own ruin as well as that of his enemy. On his arrival at Antioch, Domitian passed disdainfully before the gates of the palace, and, alleging a slight pretence of indisposition, continued several days in sullen retirement to prepare an inflammatory memorial, which he transmitted to the Imperial court. Yielding at length to the pressing solicitations of Gallus, the prefect condescended to take his seat in council; but his first step was to signify a concise and haughty mandate, importing that the Cæsar should immediately repair to Italy, and threatening that he himself would punish his delay or hesitation by suspending the usual allowance of his household. The nephew and daughter of Constantine, who could ill brook the insolence of a subject, expressed their resentment by instantly delivering Domitian to the custody of a guard. The quarrel still admitted of some terms of accommodation. They were rendered impracticable by the imprudent behaviour of Montius, a statesman whose art and experience were frequently betrayed by the Edition: current; Page: [231] levity of his disposition.⁵¹⁷ The quæstor reproached Gallus in

⁵¹⁴See in Ammianus (l. xiv. c. 1 [and c.] 7) a very ample detail of the cruelties of Gallus. His brother Julian (p. 272 [351]) insinuates that a secret conspiracy had been formed against him; and Zosimus names (l. ii. p. 135 [c. 55]) the persons engaged in it; a minister of considerable rank, and two obscure agents, who were resolved to make their fortune.

⁵¹⁵Zonaras, l. xiii. tom. ii. p. 17, 18 [c. 8]. The assassins had seduced a great number of legionaries; but their designs were discovered and revealed by an old woman in whose cottage they lodged.

⁵¹⁶[So Schiller (ii. p. 300): *[Hebrew]*Constantius therefore sent the præf. præf. orientis Domitian, and the minister of justice (quæstor palatii) Montius,*[Hebrew]*" &c. But Ammian only says that Domitian was commissioned (xiv. 7, 9); nothing is said of the sending of Montius, *[Hebrew]* for the simple reason that he was not sent. Neither Gibbon, nor Schiller, nor Milman (who writes ad hunc loc.: *[Hebrew]*The commission seems to have been granted to Domitian alone. Montius interfered to support his authority*[Hebrew]* but does not explain how Montius came to be there) realised that Montius was the quæstor palatii of the Cæsar, not of Constantius. The Cæsars had a household (like the Augusti) and palace officials; thus we find Nebridius as qu. palat. of Julian (Amm. xx. 9, 5). These officials were probably appointed by the Augustus, as we may infer from Julian*[Hebrew]*'s demand that Constantius should allow him to appoint all officials in his own province except the prætorian prefect. Amm. xx. 8, 14.]

⁵¹⁷In the present text of Ammianus, we read, *Asper quidem sed ad lenitatem propensior*; which forms a sentence of contradictory nonsense. With the aid of an old manuscript Valesius has rectified the first of these corruptions, and we perceive a ray of light in the substitution of the word *vafer*. If we venture to change *lenitatem* into *levitatem*, this alteration of a single letter will render the whole passage clear and consistent. [The best MS. (Vatican, ninth cent.) has *ajen*, whence Kiesaling has restored *Afer*, which Gardthausen accepts.]

haughty language that a prince who was scarcely authorised to remove a municipal magistrate should presume to imprison a Prætorian prefect; convoked a meeting of the civil and military officers; and required them, in the name of their sovereign, to defend the person and dignity of his representatives. By this rash declaration of war, the impatient temper of Gallus was provoked to embrace the most desperate counsels. He ordered his guards to stand to their arms, assembled the populace of Antioch, and recommended to their zeal the care of his safety and revenge. His commands were too fatally obeyed. They rudely seized the prefect and the quæstor, and, tying their legs together with ropes, they dragged them through the streets of the city, inflicted a thousand insults and a thousand wounds on these unhappy victims, and at last precipitated their mangled and lifeless bodies into the stream of the Orontes.⁵¹⁸

After such a deed, whatever might have been the designs of Gallus, it was only in a field of battle that he could assert his innocence with any hope of success. But the mind of that prince was formed of an equal mixture of violence and weakness. Instead of assuming the title of Augustus, instead of employing in his defence the troops and treasures of the East, he suffered himself to be deceived by the Edition: current; Page: [232] affected tranquillity of Constantius, who, leaving him the vain pageantry of a court, imperceptibly recalled the veteran legions from the provinces of Asia. But, as it still appeared dangerous to arrest Gallus in his capital, the slow and safer arts of dissimulation were practised with success. The frequent and pressing epistles of Constantius were filled with professions of confidence and friendship; exhorting the Cæsar to discharge the duties of his high station, to relieve his colleague from a part of the public cares, and to assist the West by his presence, his counsels and his arms. After so many reciprocal injuries, Gallus had reason to fear and to distrust. But he had neglected the opportunities of flight and of resistance; he was seduced by the flattering assurances of the tribune Scudilo, who, under the semblance of a rough soldier, disguised the most artful insinuation; and he depended on the credit of his wife Constantina, till the unseasonable death of that princess completed the ruin in which he had been involved by her impetuous passions.⁵¹⁹

After a long delay, the reluctant Cæsar set forwards on his journey to the Imperial court. From Antioch to Hadrianople, he traversed the wide extent of his dominions with a numerous and stately train; and, as he laboured to conceal his apprehensions from the world, and perhaps from himself, he entertained the people of Constantinople with an exhibition of the games of the circus. The progress of the journey might, however, have warned him of the impending danger. In all the principal cities he was met by ministers of confidence, commissioned to seize the offices of government, to observe his motions, and to prevent the hasty sallies of his despair. The persons despatched to secure the provinces which he left behind passed him with cold salutations or affected disdain; and the troops, whose Edition: current; Page: [233] station lay along the public road, were studiously removed on his approach, lest they might be tempted to offer their swords for the service of a civil war.⁵²⁰ After Gallus had been permitted to repose himself a few days at

⁵¹⁸Instead of being obliged to collect scattered and imperfect hints from various sources, we now enter into the full stream of the history of Ammianus, and need only refer to the seventh and ninth chapters of his fourteenth book. Philostorgius, however (l. iii. c. 28), though partial to Gallus, should not be entirely overlooked.

⁵¹⁹She had preceded her husband; but died of a fever on the road, at a little place in Bithynia, called Cœnum Gallicanum [Cæni Gallicani. There is a good, straightforward narrative of the episode of Gallus in Vita Artemü, Act. Sct., Oct. 20.]

⁵²⁰The Thebæan legions, which were then quartered at Hadrianople, sent a deputation to Gallus, with a tender of their services. Ammian. l. xiv. c. 11 [15]. The Notitia (s. 6, 20, 38, edit. Labb.) mentions three several legions which bore the name of Thebæan. The zeal of M. de Voltaire, to destroy a despicable though celebrated legend, has tempted him on the slightest grounds to deny the existence of a Thebæan legion in the Roman armies. See Oeuvres de Voltaire, tom. xv. p.

Hadrianople he received a mandate, expressed in the most haughty and absolute style, that his splendid retinue should halt in that city, while the Cæsar himself, with only ten post-carriages, should hasten to the Imperial residence at Milan. In this rapid journey, the profound respect which was due to the brother and colleague of Constantius was insensibly changed into rude familiarity; and Gallus, who discovered in the countenances of the attendants that they already considered themselves as his guards, and might soon be employed as his executioners, began to accuse his fatal rashness, and to recollect with terror and remorse the conduct by which he had provoked his fate. The dissimulation which had hitherto been preserved, was laid aside at Poetovio in Pannonia. He was conducted to a palace in the suburbs, where the general Barbatio, with a select band of soldiers, who could neither be moved by pity nor corrupted by rewards, expected the arrival of his illustrious victim. In the close of the evening he was arrested, ignominiously stripped of the ensigns of Cæsar, and hurried away to Pola in Istria, a sequestered prison which had been so recently polluted with royal blood. The horror which he felt was soon increased by the appearance of his implacable enemy the eunuch Eusebius, who, with the assistance of a notary and a tribune, proceeded to interrogate him concerning the administration of the East. Edition: current; Page: [234] The Cæsar sunk under the weight of shame and guilt, confessed all the criminal actions, and all the treasonable designs, with which he was charged; and, by imputing them to the advice of his wife, exasperated the indignation of Constantius, who reviewed with partial prejudice the minutes of the examination. The emperor was easily convinced that his own safety was incompatible with the life of his cousin: the sentence of death was signed, despatched, and executed; and the nephew of Constantine, with his hands tied behind his back, was beheaded in prison like the vilest malefactor.⁵²¹ Those who are inclined to palliate the cruelties of Constantius assert that he soon relented and endeavoured to recall the bloody mandate: but that the second messenger entrusted with the reprieve was detained by the eunuchs, who dreaded the unforgiving temper of Gallus, and were desirous of reuniting to their empire the wealthy provinces of the East.⁵²²

Besides the reigning emperor, Julian alone survived, of all the numerous posterity of Constantius Chlorus. The misfortune of his royal birth involved him in the disgrace of Gallus. From his retirement in the happy country of Ionia, he was conveyed under a strong guard to the court of Milan; where he languished above seven months, in the continual apprehension of suffering the same ignominious death which was daily inflicted, almost before his eyes, on the friends and adherents of his persecuted family. His looks, his gestures, his silence, were scrutinised with malignant curiosity, and he was perpetually assaulted by enemies whom he had never offended, and by arts to which he was Edition: current; Page: [235] a stranger.⁵²³ But, in the school of adversity, Julian insensibly acquired the virtues of firmness and discretion. He defended his honour, as well as his life, against the ensnaring subtleties of the eunuchs, who endeavoured to extort some declaration of his sentiments; and, whilst he cautiously suppressed his grief and resentment, he

414, quarto edition.

⁵²¹See the complete narrative of the journey and death of Gallus in Ammianus, l. 14, c. 11. Julian complains that his brother was put to death without a trial; attempts to justify, or at least to excuse, the cruel revenge which he had inflicted on his enemies; but seems at last to acknowledge that he might justly have been deprived of the purple.

⁵²²Philostorgius, l. iv. c. 1. Zonaras, l. xiii. tom. ii. p. 19 [c. 9]. But the former was partial towards an Arian monarch, and the latter transcribed, without choice or criticism, whatever he found in the writings of the ancients.

⁵²³See Ammianus Marcellin. l. xv. c. 1, 3, 8. Julian himself, in his epistle to the Athenians, draws a very lively and just picture of his own danger, and of his sentiments. He shews, however, a tendency to exaggerate his sufferings, by insinuating, though in obscure terms, that they lasted above a year; a period which cannot be reconciled with the truth of chronology.

nobly disdained to flatter the tyrant by any seeming approbation of his brother[*Hebrew*]'s murder. Julian most devoutly ascribes his miraculous deliverance to the protection of the gods, who had exempted his innocence from the sentence of destruction pronounced by their justice against the impious house of Constantine.⁵²⁴ As the most effectual instrument of their providence, he gratefully acknowledges the steady and generous friendship of the empress Eusebia,⁵²⁵ a woman of beauty and merit, who, by the ascendant which she had gained over the mind of her husband, counterbalanced, in some measure, the powerful conspiracy of the eunuchs. By the intercession of his patroness, Julian was admitted into the Imperial presence; he pleaded his cause with a decent freedom, he was heard with favour; and, notwithstanding the efforts of his enemies, who urged the danger of sparing an avenger of the blood of Gallus, the milder sentiment of Eusebia prevailed in the council. But the effects of a second interview were dreaded by the eunuchs; Edition: current; Page: [236] and Julian was advised to withdraw for a while into the neighbourhood of Milan, till the emperor thought proper to assign the city of Athens for the place of his honourable exile. As he had discovered from his earliest youth a propensity, or rather passion, for the language, the manners, the learning, and the religion of the Greeks, he obeyed with pleasure an order so agreeable to his wishes. Far from the tumult of arms and the treachery of courts, he spent six months amidst the groves of the academy, in a free intercourse with the philosophers of the age, who studied to cultivate the genius, to encourage the vanity, and to inflame the devotion, of their royal pupil. Their labours were not unsuccessful; and Julian inviolably preserved for Athens that tender regard which seldom fails to arise in a liberal mind from the recollection of the place where it has discovered and exercised its growing powers. The gentleness and affability of manners, which his temper suggested and his situation imposed, insensibly engaged the affections of the strangers, as well as citizens, with whom he conversed. Some of his fellow-students might perhaps examine his behaviour with an eye of prejudice and aversion; but Julian established, in the schools of Athens, a general prepossession in favour of his virtues and talents, which was soon diffused over the Roman world.⁵²⁶

Whilst his hours were passed in studious retirement, the empress, resolute to achieve the generous design which she had undertaken, was not unmindful of the care of his fortune. The death of the late Cæsar had left Constantius invested with the sole command, and oppressed by the Edition: current; Page: [237] accumulated weight, of a mighty empire. Before the wounds of civil discord could be healed, the provinces of Gaul were overwhelmed by a deluge of Barbarians. The Sarmatians no longer respected the barrier of the Danube. The impunity of rapine had increased the boldness and numbers of the wild Isaurians: those robbers descended from their craggy mountains to ravage the adjacent country, and had even presumed, though without success, to besiege the important city of Seleucia, which was defended by a garrison of three Roman legions.

⁵²⁴Julian has worked the crimes and misfortunes of the family of Constantine into an allegorical fable, which is happily conceived and agreeably related. It forms the conclusion of the seventh Oration, from whence it has been detached and translated by the Abbé de la Bléterie, *Vie de Jovien*, tom. ii. p. 385-408.

⁵²⁵She was a native of Thessalonica in Macedonia, of a noble family, and the daughter as well as sister of consuls. Her marriage with the emperor may be placed in the year 352 [or beginning of 353]. In a divided age the historians of all parties agree in her praises. See their testimonies collected by Tillemont, *Hist. des Empereurs*, tom. iv. p. 750-754.

⁵²⁶Libanius and Gregory Nazianzen have exhausted the arts as well as the powers of their eloquence, to represent Julian as the first of heroes, or the worst of tyrants. Gregory was his fellow-student at Athens; and the symptoms, which he so tragically describes, of the future wickedness of the apostate amount only to some bodily imperfections and to some peculiarities in his speech and manner. He protests, however, that he then foresaw and foretold the calamities of the church and state (Greg. Nazianzen, *Orat.* iv. p. 121, 122). [See Libanius, *Epitaphios*, 526 sqq., ed. Reiske.]

Above all, the Persian monarch, elated by victory, again threatened the peace of Asia, and the presence of the emperor was indispensably required both in the West and in the East. For the first time, Constantius sincerely acknowledged that his single strength was unequal to such an extent of care and of dominion.⁵²⁷ Insensible to the voice of flattery, which assured him that his all-powerful virtue and celestial fortune would still continue to triumph over every obstacle, he listened with complacency to the advice of Eusebia, which gratified his indolence, without offending his suspicious pride. As she perceived that the remembrance of Gallus dwelt on the emperor[*Hebrew*]'s mind, she artfully turned his attention to the opposite characters of the two brothers, which from their infancy had been compared to those of Domitian and of Titus.⁵²⁸ She accustomed her husband to consider Julian as a youth of a mild unambitious disposition, whose allegiance and gratitude might be secured by the gift of the purple, and who was qualified to fill, with honour, a subordinate station, without aspiring to dispute Edition: current; Page: [238] the commands, or to shade the glories, of his sovereign and benefactor. After an obstinate, though secret, struggle, the opposition of the favourite eunuchs submitted to the ascendancy of the empress; and it was resolved that Julian, after celebrating his nuptials with Helena, sister of Constantius, should be appointed, with the title of Cæsar, to reign over the countries beyond the Alps.⁵²⁹

Although the order which recalled him to court was probably accompanied by some intimation of his approaching greatness, he appeals to the people of Athens to witness his tears of undissembled sorrow, when he was reluctantly torn away from his beloved retirement.⁵³⁰ He trembled for his life, for his fame, and even for his virtue; and his sole confidence was derived from the persuasion that Minerva inspired all his actions, and that he was protected by an invisible guard of angels, whom for that purpose she had borrowed from the Sun and Moon. He approached with horror the palace of Milan; nor could the ingenuous youth conceal his indignation, when he found himself accosted with false and servile respect by the assassins of his family. Eusebia, rejoicing in the success of her benevolent schemes, embraced him with the tenderness of a sister; and endeavoured, by the most soothing caresses, to dispel his terrors and reconcile him to his fortune. But the ceremony of shaving his beard, and his awkward demeanour, when he first exchanged the cloak of a Greek philosopher for the military habit of a Roman prince, amused, during a few days, the levity of the Imperial court.⁵³¹ Edition: current; Page: [239]

The emperors of the age of Constantine no longer deigned to consult with the senate in the choice of a colleague; but they were anxious that their nomination should be ratified by the consent of the army. On this solemn occasion, the guards, with the other troops whose stations were in the neighbourhood of Milan, appeared under arms; and Constantius ascended his lofty tribunal, holding by the hand his cousin Julian, who entered the same day into the twenty-fifth year of his age.⁵³² In a studied speech, conceived and delivered with dignity, the emperor represented the

⁵²⁷Succumbere tot necessitatibus tamque crebris unum se, quod nunquam fecerat, aperte demonstrans. Ammian. l. xv. c. 8 [2]. He then expresses, in their own words, the flattering assurances of the courtiers.

⁵²⁸Tantum a temperatis moribus Juliani differens fratris, quantum inter Vespasiani filios fuit Domitianum et Titum. Amm. l. xiv. c. 11 [28]. The circumstances and education of the two brothers were so nearly the same as to afford a strong example of the innate difference of characters.

⁵²⁹Ammianus, l. xv. c. 8. Zosimus, l. iii. p. 137, 138 [2].

⁵³⁰Julian. ad S. P. Q. A. p. 275, 276 [354-5]. Libanius, Orat. x. p. 268. Julian did not yield till the gods had signified their will by repeated visions and omens. His piety then forbade him to resist.

⁵³¹Julian himself relates (p. 274 [353]), with some humour, the circumstances of his own metamorphosis, his downcast looks, and his perplexity at being thus suddenly transported into a new world, where every object appeared strange and hostile.

⁵³²See Ammian. Marcellin. l. xv. c. 8. Zosimus, l. iii. p. 139 [1, 2]. Aurelius Victor [Cæs. 42, 16]. Victor Junior in Epitom.

various dangers which threatened the prosperity of the republic, the necessity of naming a Cæsar for the administration of the West, and his own intention, if it was agreeable to their wishes, of rewarding with the honours of the purple the promising virtues of the nephew of Constantine. The approbation of the soldiers was testified by a respectful murmur: they gazed on the manly countenance of Julian, and observed with pleasure that the fire which sparkled in his eyes was tempered by a modest blush, on being thus exposed, for the first time, to the public view of mankind. As soon as the ceremony of his investiture had been performed, Constantius addressed him with the tone of authority which his superior age and station permitted him to assume; and, exhorting the new Cæsar to deserve, by heroic deeds, that sacred and immortal name, the emperor gave his colleague the strongest assurances of a friendship which should never be impaired by time, nor interrupted by their separation into the most distant climates. As soon as the speech was ended, the troops, as a token of applause, clashed their shields against their knees;⁵³³ while the officers who surrounded the tribunal expressed, with Edition: current; Page: [240] decent reserve, their sense of the merits of the representative of Constantius.

The two princes returned to the palace in the same chariot; and, during the slow procession, Julian repeated to himself a verse of his favourite Homer, which he might equally apply to his fortune and to his fears.⁵³⁴ The four-and-twenty days which the Cæsar spent at Milan after his investiture, and the first months of his Gallic reign, were devoted to a splendid but severe captivity; nor could the acquisition of honour compensate for the loss of freedom.⁵³⁵ His steps were watched, his correspondence was intercepted; and he was obliged, by prudence, to decline the visits of his most intimate friends. Of his former domestics, four only were permitted to attend him: two pages, his physician, and his librarian; the last of whom was employed in the care of a valuable collection of books, the gift of the empress, who studied the inclinations as well as the interest of her friend. In the room of these faithful servants, an household was formed, such indeed as became the dignity of a Cæsar; but it was filled with a crowd of slaves, destitute and perhaps incapable of any attachment for their new master, to whom, for the most part, they were either unknown or suspected. His want of experience might require the assistance of a wise council; but the minute instructions which regulated the service of Edition: current; Page: [241] his table, and the distribution of his hours, were adapted to a youth still under the discipline of his preceptors, rather than to the situation of a prince entrusted with the conduct of an important war. If he aspired to deserve the esteem of his subjects, he was checked by the fear of displeasing his sovereign; and even the fruits of his marriage-bed were blasted by the jealous artifices of Eusebia⁵³⁶ herself, who, on this occasion alone,

[42, 12]. Eutrop. x. 14.

⁵³³Militares omnes horrendo fragore scuta genibus illidentes; quod est prosperitatis indicium plenum; nam contra cum hastis clypei feriuntur, iræ documentum est et doloris. . . . Ammianus [xv. 8, 16] adds, with a nice distinction, Eumque ut potiori reverentia servaretur, nec supra modum laudabant nec infra quam decebat.

⁵³⁴[Ἡεβρεω]λλαβε πορφύρεος θάνατος κα[Ἡεβρεω] μοιρα κραταιή. The word purple, which Homer had used as a vague but common epithet for death, was applied by Julian to express, very aptly, the nature and object of his own apprehensions [Amm. xv. 8, 17].

⁵³⁵He represents in the most pathetic terms (p. 277 [357]) the distress of his new situation. The provision for his table was, however, so elegant and sumptuous that the young philosopher rejected it with disdain. Quum legeret libellum assidue, quem Constantius ut privignum ad studia mittens manû suâ conscripserat, prælicenter disponens quid in convivio Cæsaris impendi deberet, phasianum et vulvam et sumen exigi vetuit et inferri. Ammian. Marcellin. l. xvi. c. 5.

⁵³⁶If we recollect that Constantine, the father of Helena, died above eighteen years before in a mature old age, it will appear probable that the daughter, though a virgin, could not be very young at the time of her marriage. She was soon afterwards delivered of a son, who died immediately, quod obstetrix, corrupta mercede, mox natum præsecto plusquam convenerat umbilico necavit. She accompanied the emperor and empress in their journey to Rome, and

seems to have been unmindful of the tenderness of her sex and the generosity of her character. The memory of his father and of his brothers reminded Julian of his own danger, and his apprehensions were increased by the recent and unworthy fate of Sylvanus. In the summer which preceded his own elevation, that general had been chosen to deliver Gaul from the tyranny of the Barbarians; but Sylvanus soon discovered that he had left his most dangerous enemies in the Imperial court. A dexterous informer, countenanced by several of the principal ministers, procured from him some commendatory letters; and erasing the whole of the contents, except the signature, filled up the vacant parchment with matters of high and treasonable import. By the industry and courage of his friends, the fraud was however detected, and in a great council of the civil and military officers, held in the presence of the emperor himself, the innocence of Sylvanus was publicly acknowledged. But the discovery came too late; the report of the calumny and the hasty seizure of Edition: current; Page: [242] his estate had already provoked the indignant chief to the rebellion of which he was so unjustly accused. He assumed the purple at his head-quarters of Cologne, and his active powers appeared to menace Italy with an invasion, and Milan with a siege. In this emergency, Ursicinus, a general of equal rank, regained, by an act of treachery, the favour which he had lost by his eminent services in the East. Exasperated, as he might speciously allege, by injuries of a similar nature, he hastened with a few followers to join the standard, and to betray the confidence, of his too credulous friend. After a reign of only twenty-eight days, Sylvanus was assassinated: the soldiers who, without any criminal intention, had blindly followed the example of their leader, immediately returned to their allegiance; and the flatterers of Constantius celebrated the wisdom and felicity of the monarch who had extinguished a civil war without the hazard of a battle.⁵³⁷

The protection of the Rhætian frontier, and the persecution of the Catholic Church, detained Constantius in Italy above eighteen months after the departure of Julian. Before the emperor returned into the East, he indulged his pride and curiosity in a visit to the ancient capital.⁵³⁸ He proceeded from Milan to Rome along the Æmilian and Flaminian ways; and, as soon as he approached within forty miles of the city, the march of a prince who had never vanquished a foreign enemy assumed the appearance of a triumphal procession. His splendid train was composed of all the ministers of luxury; but in a time of profound peace, he was encompassed by the glittering arms of the numerous Edition: current; Page: [243] squadrons of his guards and cuirassiers. Their streaming banners of silk, embossed with gold and shaped in the form of dragons, waved round the person of the emperor. Constantius sat alone in a lofty car resplendent with gold and precious gems; and, except when he bowed his head to pass under the gates of the cities, he affected a stately demeanour of inflexible and, as it might seem, of insensible gravity. The severe discipline of the Persian youth had been introduced by the eunuchs into the Imperial palace; and such were the habits of patience which they had inculcated that, during a slow and sultry march, he was never seen to move his hand towards his face or to turn his eyes either to the right or to the left. He was received by the magistrates and senate of Rome; and the emperor surveyed, with attention, the civil honours of the republic and the consular images of the noble families. The streets were

the latter, *quæsitum venenum bibere per fraudem illexit, ut quotiescunque concepisset, immaturum abjiceret partum.* Ammian. l. xvi. c. 10 [18]. Our physicians will determine whether there exists such a poison. For my own part, I am inclined to hope that the public malignity imputed the effects of accident as the guilt of Eusebia. [The charge seems highly improbable.]

⁵³⁷ Ammianus (xv. 5) was perfectly well informed of the conduct and fate of Sylvanus. He himself was one of the few followers who attended Ursicinus in his dangerous enterprise.

⁵³⁸ For the particulars of the visit of Constantius to Rome, see Ammianus, l. xvi. c. 10. We have only to add that Themistius was appointed deputy from Constantinople, and that he composed his fourth Oration for this ceremony.

lined with an innumerable multitude. Their repeated acclamations expressed their joy at beholding, after an absence of thirty-two years, the sacred person of their sovereign; and Constantius himself expressed, with some pleasantry, his affected surprise that the human race should thus suddenly be collected on the same spot. The son of Constantine was lodged in the ancient palace of Augustus: he presided in the senate, harangued the people from the tribunal which Cicero had so often ascended, assisted with unusual courtesy at the games of the circus, and accepted the crowns of gold as well as the panegyrics which had been prepared for this ceremony by the deputies of the principal cities. His short visit of thirty days was employed in viewing the monuments of art and power which were scattered over the seven hills and the interjacent valleys. He admired the awful majesty of the capitol, the vast extent of the baths of Caracalla and Diocletian, the severe simplicity of the Pantheon, the massy greatness of the amphitheatre of Titus, the elegant architecture of the theatre of Pompey and the Temple of Peace, and, above all, the stately structure Edition: current; Page: [244] of the Forum and column of Trajan; acknowledging that the voice of fame, so prone to invent and to magnify, had made an inadequate report of the metropolis of the world. The traveller, who has contemplated the ruins of ancient Rome, may conceive some imperfect idea of the sentiments which they must have inspired when they reared their heads in the splendour of unsullied beauty.

The satisfaction which Constantius had received from this journey excited him to the generous emulation of bestowing on the Romans some memorial of his own gratitude and munificence. His first idea was to imitate the equestrian and colossal statue which he had seen in the Forum of Trajan; but, when he had maturely weighed the difficulties of the execution,⁵³⁹ he chose rather to embellish the capital by the gift of an Egyptian obelisk. In a remote but polished age, which seems to have preceded the invention of alphabetical writing, a great number of these obelisks had been erected, in the cities of Thebes and Heliopolis, by the ancient sovereigns of Egypt, in a just confidence that the simplicity of their form and the hardness of their substance would resist the injuries of time and violence.⁵⁴⁰ Several of these extraordinary columns had been transported to Rome by Augustus and his successors, as the most durable monuments of their power and victory;⁵⁴¹ Edition: current; Page: [245] but there remained one obelisk which, from its size or sanctity, escaped for a long time the rapacious vanity of the conquerors. It was designed by Constantine to adorn his new city;⁵⁴²

⁵³⁹Hormisdas, a fugitive prince of Persia, observed to the emperor that, if he made such a horse, he must think of preparing a similar stable (the Forum of Trajan). Another saying of Hormisdas is recorded, [*Hebrew*]that one thing only had displeased him, to find that men died at Rome as well as elsewhere.[*Hebrew*]” If we adopt this reading of the text of Ammianus (displacuisse instead of placuisse), we may consider it as a reproof of Roman vanity. The contrary sense would be that of a misanthrope. [There is no authority for displ., a guess of Valesius.]

⁵⁴⁰When Germanicus visited the ancient monuments of Thebes, the eldest of the priests explained to him the meaning of these hieroglyphics. Tacit. Annal. ii. c. 60. But it seems probable that before the useful invention of an alphabet these natural or arbitrary signs were the common characters of the Egyptian nation. See Warburton[*Hebrew*]’s Divine Legation of Moses, vol. iii. p. 69-243.

⁵⁴¹See Plin. Hist. Natur. l. xxxvi. c. 14, 15.

⁵⁴²Ammian. Marcellin. l. xvii. c. 4. He gives us a Greek interpretation of the hieroglyphics, and his commentator Lindenbrogius adds a Latin inscription, which, in twenty verses of the age of Constantius, contain a short history of the obelisk. [The Greek interpretation of Hermapion given by Ammian cannot refer to the obelisk transferred from Heliopolis by Constantius, as may be seen by comparing it with Birch[*Hebrew*]’s translation of the hieroglyphics (see Parker[*Hebrew*]’s Twelve Egyptian Obelisks). This obelisk was erected by Thothmes III., completed by Thothmes IV. and restored by Ramses II. But the words of Ammian (qui autem notarum textus obelisco incisus est ueteri quem uidemus in Circo) rather suggest, I think, the obelisk of Augustus, which he had mentioned above. This obelisk, now in the Piazza del Popolo, begun by Seti, was completed by Ramses; and the στίχος δεύτερος and στίχος τρίτος of Hermapion (Amm. ib. 8, 19, 20) correspond sufficiently closely to the [*Hebrew*]2nd left column, south side,[*Hebrew*]” and the [*Hebrew*]left

and, after being removed by his order from the pedestal where it stood before the Temple of the Sun at Heliopolis, was floated down the Nile to Alexandria. The death of Constantine suspended the execution of his purpose, and this obelisk was destined by his son to the ancient capital of the empire. A vessel of uncommon strength and capaciousness was provided to convey this enormous weight of granite, at least an hundred and fifteen feet in length, from the banks of the Nile to those of the Tiber. The obelisk of Constantius was landed about three miles from the city, and elevated by the efforts of art and labour, in the great Circus of Rome.⁵⁴³

The departure of Constantius from Rome was hastened by the alarming intelligence of the distress and danger of the Illyrian provinces. The distractions of civil war, Edition: current; Page: [246] and the irreparable loss which the Roman legions had sustained in the battle of Mursa, exposed those countries, almost without defence, to the light cavalry of the Barbarians; and particularly to the inroads of the Quadi, a fierce and powerful nation, who seem to have exchanged the institutions of Germany for the arms and military arts of their Sarmatian allies.⁵⁴⁴ The garrisons of the frontier were insufficient to check their progress; and the indolent monarch was at length compelled to assemble, from the extremities of his dominions, the flower of the Palatine troops,⁵⁴⁵ to take the field in person, and to employ a whole campaign, with the preceding autumn and the ensuing spring, in the serious prosecution of the war. The emperor passed the Danube on a bridge of boats, cut in pieces all that encountered his march, penetrated into the heart of the country of the Quadi, and severely retaliated the calamities which they had inflicted on the Roman province. The dismayed Barbarians were soon reduced to sue for peace: they offered the restitution of his captive subjects as an atonement for the past, and the noblest hostages as a pledge of their future conduct. The generous courtesy which was shown to the first among their chieftains who implored the clemency of Constantius encouraged the more timid, or the more obstinate, to imitate their examples; and the Imperial camp was crowded with the princes and ambassadors of the most distant tribes, who occupied the plains of the Lesser Poland, and who might have deemed themselves secure behind the lofty ridge of the Carpathian mountains. While Constantius gave laws to the Barbarians beyond the Danube, he distinguished with specious compassion the Sarmatian exiles who had been expelled from their native country by the rebellion of Edition: current; Page: [247] their slaves, and who formed a very considerable accession to the power of the Quadi. The emperor, embracing a generous but artful system of policy, released the Sarmatians from the bands of this humiliating dependence, and restored them, by a separate treaty, to the dignity of a nation united under the government of a king, the friend and ally of the republic. He declared his resolution of asserting the justice of their cause, and of securing the peace of the provinces by the extirpation, or at least the banishment, of the Limigantes, whose manners were still infected with the vices of their servile origin. The execution of this design was attended with more difficulty than glory. The territory of the Limigantes was protected against the Romans by the Danube, against the hostile Barbarians by the Theiss. The marshy lands which lay between those rivers, and were often covered by their inundations, formed an intricate wilderness, pervious only to the inhabitants, who were acquainted

column, south side,[*Hebrew*]” in Birch[*Hebrew*]’s translation (Parker, *ib.* p. 18). The whole question is passed over in Mr. Parker[*Hebrew*]’s work.]

⁵⁴³See Donat. *Roma Antiqua*, l. iii. c. 14, l. iv. c. 12, and the learned, though confused, Dissertation of Bargæus on Obelisks, inserted in the fourth volume of Grævius[*Hebrew*]’s *Roman Antiquities*, p. 1897-1936. This Dissertation is dedicated to Pope Sixtus V., who erected the obelisk of Constantius in the square before the patriarchal church of St. John Lateran.

⁵⁴⁴The events of this Quadian and Sarmatian war are related by Ammianus, xvi. 10; xvii. 12, 13; xix. 11.

⁵⁴⁵[Rather the Comitatus. See above, p. 136.]

with its secret paths and inaccessible fortresses. On the approach of Constantius, the Limigantes tried the efficacy of prayers, of fraud, and of arms; but he sternly rejected their supplications, defeated their rude stratagems, and repelled with skill and firmness the efforts of their irregular valour. One of their most warlike tribes, established in a small island towards the conflux of the Theiss and the Danube, consented to pass the river with the intention of surprising the emperor during the security of an amicable conference. They soon became the victims of the perfidy which they meditated. Encompassed on every side, trampled down by the cavalry, slaughtered by the swords of the legions, they disdained to ask for mercy; and with an undaunted countenance still grasped their weapons in the agonies of death. After this victory a considerable body of Romans was landed on the opposite banks of the Danube; the Taifalæ, a Gothic tribe engaged in the service of the empire, invaded the Limigantes Edition: current; Page: [248] on the side of the Theiss; and their former masters, the free Sarmatians, animated by hope and revenge, penetrated through the hilly country into the heart of their ancient possessions. A general conflagration revealed the huts of the Barbarians, which were seated in the depth of the wilderness; and the soldier fought with confidence on marshy ground, which it was dangerous for him to tread. In this extremity the bravest of the Limigantes were resolved to die in arms, rather than to yield: but the milder sentiment, enforced by the authority of their elders, at length prevailed; and the suppliant crowd, followed by their wives and children, repaired to the Imperial camp, to learn their fate from the mouth of the conqueror. After celebrating his own clemency, which was still inclined to pardon their repeated crimes and to spare the remnant of a guilty nation, Constantius assigned for the place of their exile a remote country, where they might enjoy a safe and honourable repose. The Limigantes obeyed with reluctance; but before they could reach, at least before they could occupy, their destined habitations, they returned to the banks of the Danube, exaggerating the hardships of their situation, and requesting, with fervent professions of fidelity, that the emperor would grant them an undisturbed settlement within the limits of the Roman provinces. Instead of consulting his own experience of their incurable perfidy, Constantius listened to his flatterers, who were ready to represent the honour and advantage of accepting a colony of soldiers, at a time when it was much easier to obtain the pecuniary contributions than the military service of the subjects of the empire. The Limigantes were permitted to pass the Danube; and the emperor gave audience to the multitude in a large plain near the modern city of Buda. They surrounded the tribunal, and seemed to hear with respect an oration full of mildness and dignity; when one of the Barbarians, casting his shoe into the air, exclaimed with a loud voice, Marha! Marha! a word of defiance, which was Edition: current; Page: [249] received as the signal of the tumult. They rushed with fury to seize the person of the emperor; his royal throne and golden couch were pillaged by these rude hands; but the faithful defence of his guards, who died at his feet, allowed him a moment to mount a fleet horse, and to escape from the confusion. The disgrace which had been incurred by a treacherous surprise was soon retrieved by the numbers and discipline of the Romans; and the combat was only terminated by the extinction of the name and nation of the Limigantes. The free Sarmatians were reinstated in the possession of their ancient seats; and, although Constantius distrusted the levity of their character, he entertained some hopes that a sense of gratitude might influence their future conduct. He had remarked the lofty stature and obsequious demeanour of Zizais, one of the noblest of their chiefs. He conferred on him the title of King; and Zizais proved that he was not unworthy to reign by a sincere and lasting attachment to the interest of his benefactor, who, after this splendid success, received the name of Sarmaticus from the acclamations of his victorious

army.⁵⁴⁶

While the Roman emperor and the Persian monarch, at the distance of three thousand miles, defended their extreme limits against the Barbarians of the Danube and of the Oxus, their intermediate frontier experienced the vicissitudes of a languid war, and a precarious truce. Two of the Eastern ministers of Constantius, the Prætorian prefect Musonian, whose abilities were disgraced by the want of truth and integrity, and Cassian, duke of Mesopotamia, a hardy and veteran soldier, opened a secret negotiation with the satrap Tamsapor.⁵⁴⁷ These overtures of peace, translated into the servile and flattering language of Asia, were transmitted to Edition: current; Page: [250] the camp of the Great King; who resolved to signify, by an ambassador, the terms which he was inclined to grant to the suppliant Romans. Narses, whom he invested with that character, was honourably received in his passage through Antioch and Constantinople: he reached Sirmium after a long journey, and, at his first audience, respectfully unfolded the silken veil which covered the haughty epistle of his sovereign. Sapor, King of Kings, and Brother of the Sun and Moon (such were the lofty titles affected by oriental vanity), expressed his satisfaction that his brother, Constantius Cæsar, had been taught wisdom by adversity. As the lawful successor of Darius Hystaspes, Sapor asserted that the river Strymon in Macedonia was the true and ancient boundary of his empire; declaring, however, that, as an evidence of his moderation, he would content himself with the provinces of Armenia and Mesopotamia, which had been fraudulently extorted from his ancestors. He alleged that, without the restitution of these disputed countries, it was impossible to establish any treaty on a solid and permanent basis; and he arrogantly threatened that, if his ambassador returned in vain, he was prepared to take the field in the spring, and to support the justice of his cause by the strength of his invincible arms. Narses, who was endowed with the most polite and amiable manners, endeavoured, as far as was consistent with his duty, to soften the harshness of the message.⁵⁴⁸ Both the style and the substance were maturely weighed in the Imperial council, and he was dismissed with the following answer: [*Hebrew*]Constantius had a right to disclaim the officiousness of his ministers, who had acted without any specific orders from the throne: he was not, however, averse to an equal and Edition: current; Page: [251] honourable treaty; but it was highly indecent, as well as absurd, to propose to the sole and victorious emperor of the Roman world the same conditions of peace which he had indignantly rejected at the time when his power was contracted within the narrow limits of the East: the chance of arms was uncertain; and Sapor should recollect that, if the Romans had sometimes been vanquished in battle, they had almost always been successful in the event of the war.[*Hebrew*]" A few days after the departure of Narses, three ambassadors were sent to the court of Sapor, who was already returned from the Scythian expedition to his ordinary residence of Ctesiphon. A count, a notary, and a sophist had been selected for this important commission; and Constantius, who was secretly anxious for the conclusion of the peace, entertained some hopes that the dignity of the first of these ministers, the dexterity of the second, and the rhetoric of the third⁵⁴⁹ would persuade the Persian monarch to

⁵⁴⁶Genti Sarmatarum magno decore considens apud eos regem dedit. Aurelius Victor [Cæs. 42]. In a pompous oration pronounced by Constantius himself, he expatiates on his own exploits with much vanity, and some truth.

⁵⁴⁷Ammian. xvi. 9.

⁵⁴⁸Ammianus (xvii. 5) transcribes the haughty letter. Themistius (Orat. iv. p. 57, edit. Petav.) takes notice of the silk covering. Idatius and Zonaras mention the journey of the ambassador; and Peter the Patrician (in Excerpt. Legat. p. 28 [fr. 17, in F.H.G., iv.]) has informed us of his conciliating behaviour.

⁵⁴⁹Ammianus, xvii. 5, and Valesius ad loc. The sophist, or philosopher (in that age these words were almost synonymous), was Eustathius the Cappadocian, the disciple of Jamblichus, and the friend of St. Basil. Eunapius (in vit. Ædesii, p. 44-47) fondly attributes to this philosophic ambassador the glory of enchanting the Barbarian king by the persuasive

abate the rigour of his demands. But the progress of their negotiation was opposed and defeated by the hostile arts of Antoninus,⁵⁵⁰ a Roman subject of Syria, who had fled from the oppression, and was admitted into the councils of Sapor, and even to the royal table, where, according to the custom of the Persians, the most important business was frequently discussed.⁵⁵¹ The dexterous fugitive promoted his interest Edition: current; Page: [252] by the same conduct which gratified his revenge. He incessantly urged the ambition of his new master to embrace the favourable opportunity when the bravest of the Palatine troops were employed with the emperor in a distant war on the Danube. He pressed Sapor to invade the exhausted and defenceless provinces of the East, with the numerous armies of Persia, now fortified by the alliance and accession of the fiercest Barbarians. The ambassadors of Rome retired without success, and a second embassy of a still more honourable rank was detained in strict confinement, and threatened either with death or exile.

The military historian,⁵⁵² who was himself despatched to observe the army of the Persians, as they were preparing to construct a bridge of boats over the Tigris, beheld from an eminence the plain of Assyria, as far as the edge of the horizon, covered with men, with horses, and with arms. Sapor appeared in the front, conspicuous by the splendour of his purple. On his left hand, the place of honour among the Orientals, Grumbates, king of the Chionites,⁵⁵³ displayed the stern countenance of an aged and renowned warrior. The monarch had reserved a similar place on his right hand for the king of the Albanians, who led his independent tribes from the shores of the Caspian. The satraps and generals were distributed according to their several ranks, and the whole army, besides the numerous train of oriental luxury, consisted of more than one hundred thousand effective men, inured to fatigue, and selected from the bravest nations of Asia. The Roman deserter, who in some measure guided the councils of Sapor, had prudently advised that, instead of wasting the summer in tedious and difficult sieges, he would march directly to the Euphrates, Edition: current; Page: [253] and press forwards without delay to seize the feeble and wealthy metropolis of Syria. But the Persians were no sooner advanced into the plains of Mesopotamia than they discovered that every precaution had been used which could retard their progress or defeat their design. The inhabitants, with their cattle, were secured in places of strength, the green forage throughout the country was set on fire, the fords of the river were fortified by sharp stakes; military engines were planted on the opposite banks, and a seasonable swell of the waters of the Euphrates deterred the Barbarians from attempting the ordinary passage of the bridge of Thapsacus. Their skilful guide, changing his plan of operations, then conducted the army by a longer circuit, but through a fertile territory, towards the head of the Euphrates, where the infant river is reduced to a shallow and accessible stream. Sapor overlooked, with prudent disdain, the strength of Nisibis; but, as he passed under the walls of Amida, he resolved to try whether the majesty of his presence would not awe the garrison into immediate submission. The sacrilegious insult of a random dart, which glanced against the royal tiara, convinced him of his error; and the indignant monarch listened with impatience to the advice of his ministers, who conjured him

charms of reason and eloquence. See Tillemont, *Hist. des Empereurs*, tom. iv. p. 828, 1132.

⁵⁵⁰ *Ammian*, xviii. 5, 6, 8. The decent and respectful behaviour of Antoninus towards the Roman general sets him in a very interesting light: and Ammianus himself speaks of the traitor with some compassion and esteem.

⁵⁵¹ This circumstance, as it is noticed by Ammianus, serves to prove the veracity of Herodotus (l. i. c. 133), and the permanency of the Persian manners. In every age the Persians have been addicted to intemperance, and the wines of Shiraz have triumphed over the law of Mahomet. *Brisson de Regno Pers.* l. ii. p. 462-472, and *Chardin, Voyages en Perse*, tom. iii. p. 90.

⁵⁵² *Ammian*. l. xviii. 6, 7, 8, 10.

⁵⁵³ [An uncertain people: some have sought to identify them with the Huns.]

not to sacrifice the success of his ambition to the gratification of his resentment. The following day Grumbates advanced towards the gates with a select body of troops, and required the instant surrender of the city as the only atonement which could be accepted for such an act of rashness and insolence. His proposals were answered by a general discharge, and his only son, a beautiful and valiant youth, was pierced through the heart by a javelin, shot from one of the balistæ. The funeral of the prince of the Chionites was celebrated according to the rites of his country; and the grief of his aged father was alleviated by the solemn promise of Sapor that the guilty city of Amida should serve Edition: current; Page: [254] as a funeral pile to expiate the death, and to perpetuate the memory, of his son.

The ancient city of Amid or Amida,⁵⁵⁴ which sometimes assumes the provincial appellation of Diarbekir,⁵⁵⁵ is advantageously situate in a fertile plain, watered by the natural and artificial channels of the Tigris, of which the least inconsiderable stream bends in a semicircular form round the eastern part of the city. The emperor Constantius had recently conferred on Amida the honour of his own name, and the additional fortifications of strong walls and lofty towers. It was provided with an arsenal of military engines, and the ordinary garrison had been reinforced to the amount of seven legions, when the place was invested by the arms of Sapor.⁵⁵⁶ His first and most sanguine hopes depended on the success of a general assault. To the several nations which followed his standard their respective posts were assigned; the south to the Vertæ, the north to the Albanians, the east to the Chionites, inflamed with grief and indignation; the west to the Segestans, the bravest of his warriors, who covered their front with a formidable line of Indian elephants.⁵⁵⁷ The Persians, on every Edition: current; Page: [255] side, supported their efforts, and animated their courage; and the monarch himself, careless of his rank and safety, displayed, in the prosecution of the siege, the ardour of a youthful soldier. After an obstinate combat the Barbarians were repulsed; they incessantly returned to the charge; they were again driven back with a dreadful slaughter, and two rebel legions of Gauls, who had been banished into the East, signalised their undisciplined courage by a nocturnal sally into the heart of the Persian camp. In one of the fiercest of these repeated assaults, Amida was betrayed by the treachery of a deserter, who indicated to the Barbarians a secret and neglected staircase, scooped out of the rock that hangs over the stream of the Tigris. Seventy chosen archers of the royal guard ascended in silence to the third story of a lofty tower which commanded the precipice; they elevated on high the Persian banner, the signal of confidence to the assailants and of dismay to the besieged; and, if this devoted band could have maintained their post a few minutes longer, the reduction of the place might have been purchased by the

⁵⁵⁴For the description of Amida, see d[*Hebrew*]'Herbelot, *Bibliothèque Orientale*, p. 108; *Histoire de Timur Bec*, par Cherefeddin Ali, l. iii. c. 41; *Ahmed Arabsiades*, tom. i. p. 331, c. 43; *Voyages de Tavernier*, tom. i. p. 301; *Voyages d[Hebrew]'Otter*, tom. ii. p. 273; and *Voyages[Hebrew]' de Niebuhr*, tom. ii. p. 324-328. The last of these travellers, a learned and accurate Dane, has given a plan of Amida, which illustrates the operations of the siege.

⁵⁵⁵Diarbekir, which is styled Amid, or Kara-Amid, in the public writings of the Turks, contains above 16,000 houses, and is the residence of a pasha with three tails. The epithet of Kara is derived from the blackness of the stone which composes the strong and ancient wall of Amida.

⁵⁵⁶The operations of the siege of Amida are very minutely described by Ammianus (xix. 1-9), who acted an honourable part in the defence, and escaped with difficulty when the city was stormed by the Persians.

⁵⁵⁷Of these four nations, the Albanians are too well known to require any description. The Segestans inhabited a large and level country, which still preserves their name, to the south of Khorasan, and the west of Hindostan (see *Geographia Nubiensis*, p. 133, and d[*Hebrew*]'Herbelot, *Bibliothèque Orientale*, p. 797). Notwithstanding the boasted victory of Bahram (vol. i. p. 410), the Segestans, above fourscore years afterwards, appear as an independent nation, the ally of Persia. We are ignorant of the situation of the Vertæ and Chionites, but I am inclined to place them (at least the latter) towards the confines of India and Scythia. See Ammian. xvi. 9.

sacrifice of their lives. After Sapor had tried, without success, the efficacy of force and of stratagem, he had recourse to the slower but more certain operations of a regular siege, in the conduct of which he was instructed by the skill of the Roman deserters. The trenches were opened at a convenient distance, and the troops destined for that service advanced under the portable cover of strong hurdles, to fill up the ditch and undermine the foundations of the walls. Wooden towers were at the same time constructed, and moved forwards on wheels, till the soldiers, who were provided with every species of missile weapons, could engage almost on level ground with the troops who defended the rampart. Every mode of resistance which Edition: current; Page: [256] art could suggest, or courage could execute, was employed in the defence of Amida, and the works of Sapor were more than once destroyed by the fire of the Romans. But the resources of a besieged city may be exhausted. The Persians repaired their losses, and pushed their approaches; a large breach was made by the battering-ram,^{63a} and the strength of the garrison, wasted by the sword and by disease, yielded to the fury of the assault. The soldiers, the citizens, their wives, their children, all who had not time to escape through the opposite gate, were involved by the conquerors in a promiscuous massacre.

But the ruin of Amida was the safety of the Roman provinces. As soon as the first transports of victory had subsided, Sapor was at leisure to reflect that, to chastise a disobedient city, he had lost the flower of his troops, and the most favourable season for conquest.⁵⁵⁸ Thirty thousand of his veterans had fallen under the walls of Amida during the continuance of a siege which lasted seventy-three days; and the disappointed monarch returned to his capital with affected triumph and secret mortification. It was more Edition: current; Page: [257] than probable that the inconstancy of his Barbarian allies was tempted to relinquish a war in which they had encountered such unexpected difficulties; and that the aged king of the Chionites, satiated with revenge, turned away with horror from a scene of action where he had been deprived of the hope of his family and nation. The strength as well as spirit of the army with which Sapor took the field in the ensuing spring was no longer equal to the unbounded views of his ambition. Instead of aspiring to the conquest of the East, he was obliged to content himself with the reduction of two fortified cities of Mesopotamia, Singara and Bezabde;⁵⁵⁹ the one situate in the midst of a sandy desert, the other in a small peninsula, surrounded almost on every side by the deep and rapid stream of the Tigris. Five Roman legions, of the diminutive size to which they had been reduced in the age of Constantine, were made prisoners, and sent into remote captivity on the extreme confines of Persia. After dismantling the walls of Singara, the conqueror abandoned that solitary and sequestered place; but he carefully restored the fortifications of Bezabde, and fixed in that important post a garrison or colony of veterans, amply supplied with every means of defence, and animated by high sentiments of honour and fidelity. Towards the close of the campaign, the arms of Sapor

⁵⁵⁸ Ammianus has marked the chronology of this year by three signs, which do not perfectly coincide with each other, or with the series of the history. 1. The corn was ripe when Sapor invaded Mesopotamia; [*Hebrew*] Cum jam stipulâ flavente turgerent; [*Hebrew*] a circumstance which, in the latitude of Aleppo, would naturally refer us to the month of April or May. See Harmer [*Hebrew*]’s Observations on Scripture, vol. i. p. 41. Shaw [*Hebrew*]’s Travels, p. 335, edit. 4to. 2. The progress of Sapor was checked by the overflowing of the Euphrates, which generally happens in July and August. Plin. Hist. Nat. v. 21. Viaggi di Pietro della Valle, tom. i. p. 696. 3. When Sapor had taken Amida, after a siege of seventy-three days, the autumn was far advanced. [*Hebrew*] Autumno præcipiti hædorumque improbo sidere exorto. [*Hebrew*] To reconcile these apparent contradictions, we must allow for some delay in the Persian king, some inaccuracy in the historian, and some disorder in the seasons. [But see Clinton, Fasti Romani, i. p. 442; we may suppose that Sapor crossed the Tigris early in May, spent two months in Mesopotamia, began siege c. July 27; Amida taken c. Oct. 6-7.]

⁵⁵⁹ The account of these sieges is given by Ammianus, xx. 6, 7.

incurred some disgrace by an unsuccessful enterprise against Virtha, or Tecrit, a strong, or as it was universally esteemed till the age of Tamerlane, an impregnable fortress of the independent Arabs.⁵⁶⁰

The defence of the East against the arms of Sapor required, and would have exercised, the abilities of the most Edition: current; Page: [258] consummate general: and it seemed fortunate for the state that it was the actual province of the brave Ursicinus, who alone deserved the confidence of the soldiers and people. In the hour of danger, Ursicinus⁵⁶¹ was removed from his station by the intrigues of the eunuchs; and the military command of the East was bestowed, by the same influence, on Sabinian, a wealthy and subtle veteran, who had attained the infirmities, without acquiring the experience, of age. By a second order, which issued from the same jealous and inconstant counsels, Ursicinus was again despatched to the frontier of Mesopotamia, and condemned to sustain the labours of a war, the honours of which had been transferred to his unworthy rival. Sabinian fixed his indolent station under the walls of Edessa; and, while he amused himself with the idle parade of military exercise, and moved to the sound of flutes in the Pyrrhic dance, the public defence was abandoned to the boldness and diligence of the former general of the East. But, whenever Ursicinus recommended any vigorous plan of operations; when he proposed, at the head of a light and active army, to wheel round the foot of the mountains, to intercept the convoys of the enemy, to harass the wide extent of the Persian lines, and to relieve the distress of Amida; the timid and envious commander alleged that he was restrained by his positive orders from endangering the safety of the troops. Amida was at length taken; its bravest defenders, who had escaped the sword of the Barbarians, died in the Roman camp by the hand of the executioner; and Ursicinus himself, after supporting the disgrace of a partial inquiry, was punished for the misconduct of Sabinian by the loss of his military rank. But Constantius soon experienced the truth of the prediction which honest indignation had extorted Edition: current; Page: [259] from his injured lieutenant, that, as long as such maxims of government were suffered to prevail, the emperor himself would find it no easy task to defend his Eastern dominions from the invasion of a foreign enemy. When he had subdued or pacified the Barbarians of the Danube, Constantius proceeded by slow marches into the East; and, after he had wept over the smoking ruins of Amida, he formed, with a powerful army, the siege of Bezabde. The walls were shaken by the reiterated efforts of the most enormous of the battering-rams: the town was reduced to the last extremity; but it was still defended by the patient and intrepid valour of the garrison, till the approach of the rainy season obliged the emperor to raise the siege, and ingloriously to retreat into his winter quarters at Antioch.⁵⁶² The pride of Constantius and the ingenuity of his courtiers were at a loss to discover any materials for panegyric in the events of the Persian war; while the glory of his cousin Julian, to whose military command he had entrusted the provinces of Gaul, was proclaimed to the world in

⁵⁶⁰For the identity of Virtha and Tecrit, see d[*Hebrew*] Anville, *Géographie Ancienne*, tom. ii. p. 201. For the siege of that castle by Timur Bec, or Tamerlane, see Cherefeddin, l. iii. c. 33. The Persian biographer exaggerates the merit and difficulty of this exploit, which delivered the caravans of Bagdad from a formidable gang of robbers. [The identity of Virtha is uncertain.]

⁵⁶¹Ammianus (xviii. 5, 6, xix. 3, xx. 2) represents the merit and disgrace of Ursicinus with that faithful attention which a soldier owed to his general. Some partiality may be suspected, yet the whole account is consistent and probable.

⁵⁶²Ammian. xx. 11. *Omisso vano incepto, hiematurus Antiochiæ redit in Syriam ærumnosam, perpressus et ulcerum sed et atrociam, diuque deflenda.* It is thus that James Gronovius has restored an obscure passage; and he thinks that this correction alone would have deserved a new edition of his author; whose sense may now be darkly perceived. I expected some additional light from the recent labours of the learned Ernestus (Lipsiæ, 1773). [The MSS. have the unmeaning *etulerint sed*, for which Eyssenhardt, followed by Gardthausen, reads *inulta*.]

the simple and concise narrative of his exploits.

In the blind fury of civil discord, Constantius had abandoned to the Barbarians of Germany the countries of Gaul, which still acknowledged the authority of his rival. A numerous swarm of Franks and Alemanni were invited to cross the Rhine by presents and promises, by the hopes of spoil, and by a perpetual grant of all the territories which they should be able to subdue.⁵⁶³ But the emperor, who Edition: current; Page: [260] for a temporary service had thus imprudently provoked the rapacious spirit of the Barbarians, soon discovered and lamented the difficulty of dismissing these formidable allies, after they had tasted the richness of the Roman soil. Regardless of the nice distinction of loyalty and rebellion, these undisciplined robbers treated as their natural enemies all the subjects of the empire, who possessed any property which they were desirous of acquiring. Forty-five flourishing cities, Tongres, Cologne, Treves, Worms, Spire, Strasburg, &c., besides a far greater number of towns and villages, were pillaged, and for the most part reduced to ashes. The Barbarians of Germany, still faithful to the maxims of their ancestors, abhorred the confinement of walls, to which they applied the odious names of prisons and sepulchres; and, fixing their independent habitations on the banks of rivers, the Rhine, the Moselle, and the Meuse, they secured themselves against the danger of a surprise by a rude and hasty fortification of large trees, which were felled and thrown across the roads. The Alemanni were established in the modern countries of Alsace and Lorraine; the Franks occupied the island of the Batavians, together with an extensive district of Brabant, which was then known by the appellation of Toxandria,⁵⁶⁴ and may deserve to be considered as the original seat of their Gallic monarchy.⁵⁶⁵ From the sources to the mouth of the Rhine, the conquests Edition: current; Page: [261] of the Germans extended above forty miles to the west of that river, over a country peopled by colonies of their own name and nation; and the scene of their devastations was three times more extensive than that of their conquests. At a still greater distance the open towns of Gaul were deserted, and the inhabitants of the fortified cities, who trusted to their strength and vigilance, were obliged to content themselves with such supplies of corn as they could raise on the vacant land within the enclosure of their walls. The diminished legions, destitute of pay and provisions, of arms and discipline, trembled at the approach, and even at the name, of the Barbarians.

Under these melancholy circumstances, an unexperienced youth was appointed to save and to govern the provinces of Gaul, or rather, as he expresses it himself, to exhibit the vain image of Imperial greatness. The retired scholastic education of Julian, in which he had been more conversant with books than with arms, with the dead than with the living, left him in profound ignorance of the practical arts of war and government; and, when he awkwardly repeated some military exercise which it was necessary for him to learn, he exclaimed with a sigh, [*Hebrew*]O Plato, Plato, what a task for a philosopher! [*Hebrew*]" Yet even this speculative philosophy, which

⁵⁶³The ravages of the Germans, and the distress of Gaul, may be collected from Julian himself. Orat. ad S. P. Q. Athen. p. 277. Ammian. xv. 11 [rather 8, 1]. Libanius, Orat. x. Zosimus, l. iii. p. 140 [c. 3]. Sozomen, l. iii. c. 1.

⁵⁶⁴Ammianus (xvi. 8). This name seems to be derived from the Toxandri of Pliny, and very frequently occurs in the histories of the middle age. Toxandria was a country of woods and morasses which extended from the neighbourhood of Tongres to the conflux of the Vahal and the Rhine. See Valesius, Notit. Galliar. p. 558.

⁵⁶⁵The paradox of P. Daniel, that the Franks never obtained any permanent settlement on this side of the Rhine before the time of Clovis, is refuted with much learning and good sense by M. Bief, who has proved, by a chain of evidence, their uninterrupted possession of Toxandria one hundred and thirty years before the accession of Clovis. The Dissertation of M. Biet was crowned by the Academy of Soissons in the year 1736, and seems to have been justly preferred to the discourse of his more celebrated competitor, the Abbé le Bœuf, an antiquarian whose name was happily expressive of his talents.

men of business are too apt to despise, had filled the mind of Julian with the noblest precepts and the most shining examples; had animated him with the love of virtue, the desire of fame, and the contempt of death. The habits of temperance recommended in the schools are still more essential in the severe discipline of a camp. The simple wants of nature regulated the measure of his food and sleep. Rejecting with disdain the delicacies provided for his table, he satisfied his appetite with the coarse and common fare which was allotted to the meanest Edition: current; Page: [262] soldiers. During the rigour of a Gallic winter, he never suffered a fire in his bed-chamber; and after a short and interrupted slumber he frequently rose in the middle of the night from a carpet spread on the floor, to despatch any urgent business, to visit his rounds, or to steal a few moments for the prosecution of his favourite studies.⁵⁶⁶ The precepts of eloquence which he had hitherto practised on fancied topics of declamation were more usefully applied to excite or to assuage the passions of an armed multitude: and, although Julian, from his early habits of conversation and literature, was more familiarly acquainted with the beauties of the Greek language, he had attained a competent knowledge of the Latin tongue.⁵⁶⁷ Since Julian was not originally designed for the character of a legislator or a judge, it is probable that the civil jurisprudence of the Romans had not engaged any considerable share of his attention: but he derived from his philosophic studies an inflexible regard for justice, tempered by a disposition to clemency; the knowledge of the general principles of equity and evidence; and the faculty of patiently investigating the most intricate and tedious questions which could be proposed for his discussion. The measures of policy and the operations of war must submit to the various accidents of circumstance and character, and the unpractised student will often be perplexed in the application of the most perfect theory. But in the acquisition of this important science, Julian was assisted by the active vigour of his own genius, as well as by the wisdom and experience of Sallust, Edition: current; Page: [263] an officer of rank, who soon conceived a sincere attachment for a prince so worthy of his friendship; and whose incorruptible integrity was adorned by the talent of insinuating the harshest truths without wounding the delicacy of a royal ear.⁵⁶⁸

Immediately after Julian had received the purple at Milan, he was sent into Gaul, with a feeble retinue of three hundred and sixty soldiers. At Vienna, where he passed a painful and anxious winter, in the hands of those ministers to whom Constantius had entrusted the direction of his conduct, the Cæsar was informed of the siege and deliverance of Autun. That large and ancient city, protected only by a ruined wall and pusillanimous garrison, was saved by the generous resolution of a few veterans, who resumed their arms for the defence of their country. In his march from Autun through the heart of the Gallic provinces, Julian embraced with ardour the earliest opportunity of signalising his courage. At the head of a small body of archers and heavy cavalry, he preferred the shorter but the more dangerous of two roads; and sometimes eluding, and sometimes resisting, the attacks of the Barbarians, who were masters of the field, he arrived with honour and safety

⁵⁶⁶The private life of Julian in Gaul, and the severe discipline which he embraced, are displayed by Ammianus (xvi. 5), who professes to praise, and by Julian himself, who affects to ridicule (*Misopogon*, p. 340), a conduct which, in a prince of the house of Constantine, might justly excite the surprise of mankind.

⁵⁶⁷*Aderat Latine quoque disserenti [leg. disserendi] sufficiens sermo.* Ammianus, xvi. 5. But Julian, educated in the schools of Greece, always considered the language of the Romans as a foreign and popular dialect, which he might use on necessary occasions.

⁵⁶⁸We are ignorant of the actual office of this excellent minister, whom Julian afterwards created prefect of Gaul. Sallust was speedily recalled by the jealousy of the emperor; and we may still read a sensible but pedantic discourse (p. 240-252), in which Julian deplores the loss of so valuable a friend, to whom he acknowledges himself indebted for his reputation. See La Bléterie, *Préface à la Vie de Jovien*, p. 20.

at the camp near Rheims, where the Roman troops had been ordered to assemble. The aspect of their young prince revived the drooping spirit of the soldiers, and they marched from Rheims in search of the enemy, with a confidence which had almost proved fatal to them. The Alemanni, familiarised to the knowledge of the country, secretly collected their scattered forces and, seizing the opportunity of a dark and rainy day, poured with unexpected fury on Edition: current; Page: [264] the rear-guard of the Romans.⁵⁶⁹ Before the inevitable disorder could be remedied two legions were destroyed; and Julian was taught by experience that caution and vigilance are the most important lessons of the art of war. In a second and more successful action, he recovered and established his military fame: but, as the agility of the Barbarians saved them from the pursuit, his victory was neither bloody nor decisive. He advanced, however, to the banks of the Rhine, surveyed the ruins of Cologne, convinced himself of the difficulties of the war, and retreated on the approach of winter, discontented with the court, with his army, and with his own success.⁵⁷⁰ The power of the enemy was yet unbroken; and the Cæsar had no sooner separated his troops, and fixed his own quarters at Sens, in the centre of Gaul, than he was surrounded and besieged by a numerous host of Germans. Reduced in this extremity to the resources of his own mind, he displayed a prudent intrepidity which compensated for all the deficiencies of the place and garrison; and the Barbarians, at the end of thirty days, were obliged to retire with disappointed rage.

The conscious pride of Julian, who was indebted only to his sword for this signal deliverance, was embittered by the reflection that he was abandoned, betrayed, and perhaps devoted to destruction, by those who were bound to assist him by every tie of honour and fidelity. Marcellus, master-general of the cavalry in Gaul, interpreting too strictly the jealous orders of the court, beheld with supine indifference the distress of Julian, and had restrained the troops under his command from marching to the relief of Sens. If the Cæsar had dissembled in silence so dangerous an insult, his person and authority would have been exposed to Edition: current; Page: [265] the contempt of the world; and, if an action so criminal had been suffered to pass with impunity, the emperor would have confirmed the suspicions which received a very specious colour from his past conduct towards the princes of the Flavian family. Marcellus was recalled, and gently dismissed from his office.⁵⁷¹ In his room Severus was appointed general of the cavalry; an experienced soldier, of approved courage and fidelity, who could advise with respect and execute with zeal; and who submitted, without reluctance, to the supreme command which Julian, by the interest of his patroness Eusebia, at length obtained over the armies of Gaul.⁵⁷² A very judicious plan of operations was adopted for the approaching campaign. Julian himself, at the head of the remains of the veteran bands, and of some new levies which he had been permitted to form, boldly penetrated into the centre of the German cantonments and carefully re-established the fortifications of Saverne⁵⁷³ in an advantageous post, which would either check the incursions, or intercept the retreat, of the enemy. At the same time Barbatio, general of the infantry, advanced from Milan with an army of thirty

⁵⁶⁹[Julian was on his way to Decempagi, now Dieuze, in Lothringen.]

⁵⁷⁰Ammianus (xvi. 2, 3) appears much better satisfied with the success of his first campaign than Julian himself; who very fairly owns that he did nothing of consequence, and that he fled before the enemy.

⁵⁷¹Ammian. xvi. 7. Libanius speaks rather more advantageously of the military talents of Marcellus, Orat. x. p. 272. And Julian insinuates that he would not have been so easily recalled, unless he had given other reasons of offence to the court, p. 278.

⁵⁷²Severus, non discors, non arrogans, sed longs militiæ frugalitate compertus; et cum recta præeuntem secuturus, ut ductorem morigerus miles. Ammian. xvi. 11. Zosimus, l. iii. p. 140 [c. 2].

⁵⁷³[In Elsass, the German form of the name, Zabern, is now more familiar. On the restoration of the forts cp. Mommsen, Hermes 16, 489.]

thousand men,⁵⁷⁴ and passing the mountains prepared to throw a bridge over the Rhine, in the neighbourhood of Basil. It was reasonable to expect that the Alemanni, pressed on either side by the Roman arms, would soon be forced to evacuate the provinces of Gaul, and to hasten to the defence of their native country. But the hopes of the campaign were Edition: current; Page: [266] defeated by the incapacity, or the envy, or the secret instructions, of Barbatio; who acted as if he had been the enemy of the Cæsar and the secret ally of the Barbarians. The negligence with which he permitted a troop of pillagers freely to pass, and to return almost before the gates of his camp, may be imputed to his want of abilities; but the treasonable act of burning a number of boats, and a superfluous stock of provisions, which would have been of the most essential service to the army of Gaul, was an evidence of his hostile and criminal intentions. The Germans despised an enemy who appeared destitute either of power or of inclination to offend them; and the ignominious retreat of Barbatio deprived Julian of the expected support, and left him to extricate himself from a hazardous situation, where he could neither remain with safety nor retire with honour.⁵⁷⁵

As soon as they were delivered from the fears of invasion, the Alemanni prepared to chastise the Roman youth, who presumed to dispute the possession of that country which they claimed as their own by the right of conquest and of treaties. They employed three days and as many nights in transporting over the Rhine their military powers. The fierce Chnodomar, shaking the ponderous javelin which he had victoriously wielded against the brother of Magnentius, led the van of the Barbarians, and moderated by his experience the martial ardour which his example inspired.⁵⁷⁶ Edition: current; Page: [267] He was followed by six other kings, by ten princes of regal extraction, by a long train of high-spirited nobles, and by thirty-five thousand of the bravest warriors of the tribes of Germany. The confidence derived from the view of their own strength was increased by the intelligence which they received from a deserter, that the Cæsar, with a feeble army of thirteen thousand men, occupied a post about one-and-twenty miles from their camp of Strasburg. With this inadequate force, Julian resolved to seek and to encounter the Barbarian host; and the chance of a general action was preferred to the tedious and uncertain operation of separately engaging the dispersed parties of the Alemanni. The Romans marched in close order, and in two columns, the cavalry on the right, the infantry on the left; and the day was so far spent when they appeared in sight of the enemy, that Julian was desirous of deferring the battle till the next morning, and of allowing his troops to recruit their exhausted strength by the necessary refreshments of sleep and food. Yielding, however, with some reluctance to the clamours of the soldiers, and even to the opinion of his council, he exhorted them to justify by their valour the eager impatience, which, in case of a defeat, would be universally branded with the epithets of rashness and presumption. The trumpets sounded, the military shout was heard through the field, and the two armies rushed with equal fury to the charge. The Cæsar, who conducted in person his right wing, depended on the dexterity of his archers, and the weight of his cuirassiers. But his ranks were instantly

⁵⁷⁴[Rather 25,000; see Amm. ib.]

⁵⁷⁵On the design and failure of the co-operation between Julian and Barbatio, see Ammianus, xvi. 11, and Libanius, Orat. x. p. 273. [The [*Hebrew*]pillagers who passed were Læti; they surprised Lyons.]

⁵⁷⁶Ammianus (xvi. 12) describes with his inflated eloquence the figure and character of Chnodomar. Audax et fidens ingenti robore lacertorum, ubi ardor prælii sperabatur immanis, equo spumante, sublimior, erectus in jaculum formidandæ vastitatis, armorumque nitore conspicuus: antea strenuus et miles, et utilis præter cæteros ductor. . . . Decentium Cæsarem superavit æquo Marte congressus. [For criticism of the sources for the history of this campaign see vol. ii. Appendix 10. It may be noted that a very important hint for the topography of the battle has been missed by Gibbon. Libanius mentions that a part of the enemy was posted [*Hebrew*]π[*Hebrew*] ὄχετ[*Hebrew*] μετεώρ[*Hebrew*], a bit of the old aqueduct of Strasburg where it crosses the Musauthal. See F. Vogel, Hist. Zeitschrift, vol. 24, p. 89, 1888.]

broken by an irregular mixture of light-horse and of light-infantry, and he had the mortification of beholding the flight of six hundred of his most renowned cuirassiers.⁵⁷⁷ The fugitives were stopped and rallied by Edition: current; Page: [268] the presence and authority of Julian, who, careless of his own safety, threw himself before them, and, urging every motive of shame and honour, led them back against the victorious enemy. The conflict between the two lines of infantry was obstinate and bloody. The Germans possessed the superiority of strength and stature, the Romans that of discipline and temper; and, as the Barbarians who served under the standard of the empire united the respective advantages of both parties, their strenuous efforts, guided by a skilful leader, at length determined the event of the day. The Romans lost four tribunes, and two hundred and forty-three soldiers, in this memorable battle of Strasburg, so glorious to the Cæsar,⁵⁷⁸ and so salutary to the afflicted provinces of Gaul. Six thousand of the Alemanni were slain in the field, without including those who were drowned in the Rhine or transfixes with darts whilst they attempted to swim across the river.⁵⁷⁹ Chnodomar himself was surrounded and taken prisoner, with three of his brave companions, who had devoted themselves to follow in life or death the fate of their chieftain. Julian received Edition: current; Page: [269] him with military pomp in the council of his officers; and, expressing a generous pity for the fallen state, dissembled his inward contempt for the abject humiliation, of his captive. Instead of exhibiting the vanquished king of the Alemanni, as a grateful spectacle to the cities of Gaul, he respectfully laid at the feet of the emperor this splendid trophy of his victory. Chnodomar experienced an honourable treatment: but the impatient Barbarian could not long survive his defeat, his confinement, and his exile.⁵⁸⁰

After Julian had repulsed the Alemanni from the provinces of the Upper Rhine, he turned his arms against the Franks, who were seated nearer to the ocean on the confines of Gaul and Germany, and who, from their numbers, and still more from their intrepid valour, had ever been esteemed the most formidable of the Barbarians.⁵⁸¹ Although they were strongly actuated by the allurements of rapine, they professed a disinterested love of war, which they considered as the supreme honour and felicity of human nature; and their minds and bodies were so completely hardened by perpetual action that, according to the lively expression of an orator, the snows of winter were as pleasant to them as the flowers of spring. In the month of December, which followed the battle of Strasburg, Julian attacked a body of six hundred Franks, who had thrown themselves into two castles on the Meuse.⁵⁸² In the midst of that severe season they sustained, with

⁵⁷⁷After the battle, Julian ventured to revive the rigour of ancient discipline by exposing these fugitives in female apparel to the derision of the whole camp. In the next campaign, these troops nobly retrieved their honour. Zosimus, l. iii. p. 142 [c. 3].

⁵⁷⁸Julian himself (ad S. P. Q. Athen. p. 279 [359, ed. Hertl.]) speaks of the battle of Strasburg with the modesty of conscious merit; [Ἡεβρεω]μαχεσάμην ο[Ἡεβρεω]κ [Ἡεβρεω]κλεως, [Ἡεβρεω]σως κα[Ἡεβρεω] ε[Ἡεβρεω]ς [Ἡεβρεω]μας [Ἡεβρεω]φίκετο [Ἡεβρεω] τοιαύτη μάχη. Zosimus compares it with the victory of Alexander over Darius; and yet we are at a loss to discover any of those strokes of military genius which fix the attention of ages on the conduct and success of a single day. [Julian wrote an account of the battle, which is not extant but is mentioned by Eunapius (fr. 9, F.H.G. iv.), and may be the basis of Ammian[Hebrew]'s account.]

⁵⁷⁹Ammianus, xvi. 12. Libanius adds 2000 more to the number of the slain (Orat. x. p. 274). But these trifling differences disappear before the 60,000 Barbarians whom Zosimus has sacrificed to the glory of his hero (l. iii. p. 141 [c. 3]). We might attribute this extravagant number to the carelessness of transcribers, if this credulous or partial historian had not swelled the army of 35,000 Alemanni to an innumerable multitude of Barbarians, πληθος [Ἡεβρεω]πειρον βαρβάρων. It is our own fault if this detection does not inspire us with proper distrust on similar occasions.

⁵⁸⁰Ammian. xvi. 12. Libanius, Orat. x. p. 276.

⁵⁸¹Libanius (Orat. iii. p. 137) draws a very lively picture of the manners of the Franks.

⁵⁸²Ammianus, xvii. 2. Libanius, Orat. x. p. 278. The Greek orator, by misapprehending a passage of Julian, has been induced to represent the Franks as consisting of a thousand men; and, as his head was always full of the Peloponnesian

inflexible constancy, a siege of fifty-four days; till at length, exhausted by hunger, and satisfied that the vigilance of the enemy in breaking the ice of the river left them no hopes of escape, Edition: current; Page: [270] the Franks consented, for the first time, to dispense with the ancient law which commanded them to conquer or to die. The Cæsar immediately sent his captives to the court of Constantius, who, accepting them as a valuable present,⁵⁸³ rejoiced in the opportunity of adding so many heroes to the choicest troops of his domestic guards. The obstinate resistance of this handful of Franks apprised Julian of the difficulties of the expedition which he meditated for the ensuing spring against the whole body of the nation. His rapid diligence surprised and astonished the active Barbarians. Ordering his soldiers to provide themselves with biscuit for twenty days, he suddenly pitched his camp near Tongres, while the enemy still supposed him in his winter quarters of Paris, expecting the slow arrival of his convoys from Aquitain. Without allowing the Franks to unite or to deliberate, he skilfully spread his legions from Cologne to the ocean; and by the terror as well as by the success of his arms soon reduced the suppliant tribes to implore the clemency, and to obey the commands, of their conqueror. The Chamavians submissively retired to their former habitations beyond the Rhine: but the Salians were permitted to possess their new establishment of Toxandria, as the subjects and auxiliaries of the Roman empire.⁵⁸⁴ The treaty was ratified by solemn oaths; and perpetual inspectors were appointed to reside among the Franks, with the authority of enforcing the strict observance Edition: current; Page: [271] of the conditions. An incident is related, interesting enough in itself, and by no means repugnant to the character of Julian, who ingeniously contrived both the plot and the catastrophe of the tragedy. When the Chamavians sued for peace, he required the son of their king, as the only hostage on whom he could rely. A mournful silence, interrupted by tears and groans, declared the sad perplexity of the Barbarians; and their aged chief lamented in pathetic language that his private loss was now embittered by a sense of the public calamity. While the Chamavians lay prostrate at the foot of his throne, the royal captive, whom they believed to have been slain, unexpectedly appeared before their eyes; and, as soon as the tumult of joy was hushed into attention, the Cæsar addressed the assembly in the following terms: [*Hebrew*] Behold the son, the prince, whom you wept. You had lost him by your fault. God and the Romans have restored him to you. I shall still preserve and educate the youth, rather as a monument of my own virtue than as a pledge of your sincerity. Should you presume to violate the faith which you have sworn, the arms of the republic will avenge the perfidy, not on the innocent, but on the guilty.[*Hebrew*]” The Barbarians withdrew from his presence, impressed with the warmest sentiments of gratitude and admiration.⁵⁸⁵

It was not enough for Julian to have delivered the provinces of Gaul from the Barbarians of Germany. He aspired to emulate the glory of the first and most illustrious of the emperors; after

war, he compares them to the Lacedæmonians, who were besieged and taken in the island of Sphacteria.

⁵⁸³Julian. ad S. P. Q. Athen. p. 280. Libanius, Orat. x. p. 278. According to the expression of Libanius, the emperor δωρα [*Hebrew*]νόμαζε, which la Blérierie understands (*Vie de Julien*, p. 118) as an honest confession, and Valesius (ad Ammian. xvii. 2) as a mean evasion, of the truth. Dom. Bouquet (*Historiens de France*, tom. i. p. 733), by substituting another word, [*Hebrew*]νόμισε, would suppress both the difficulty and the spirit of this passage.

⁵⁸⁴Ammian. xvii. 8. Zosimus, l. iii. p. 146-150 [c. 4-7] (his narrative is darkened by a mixture of fable); and Julian. ad S. P. Q. Athen. p. 280 [361, ed. Hertl.]. His expression, [*Hebrew*]πεδεξάμην μ[*Hebrew*]ν μοίραν τον Σαλίων [*Hebrew*]θνους, Χαμάβους δ[*Hebrew*]ξήλασα. This difference of treatment confirms the opinion that the Salian Franks were permitted to retain the settlements in Toxandria. [Cp. Eunapius, 12, 13, ap. Müller, F.H.G. 4. Zosimus has confused Chnodomar with Vadomar.]

⁵⁸⁵This interesting story, which Zosimus has abridged, is related by Eunapius (in Excerpt. Legationum, p. 15, 16, 17) with all the amplifications of Grecian rhetoric: but the silence of Libanius, of Ammianus, and of Julian himself renders the truth of it extremely suspicious.

whose example he composed his own commentaries of the Gallic war.⁵⁸⁶ Cæsar has related, Edition: current; Page: [272] with conscious pride, the manner in which he twice passed the Rhine. Julian could boast that, before he assumed the title of Augustus, he had carried the Roman Eagles beyond that great river in three successful expeditions.⁵⁸⁷ The consternation of the Germans, after the battle of Strasburg, encouraged him to the first attempt; and the reluctance of the troops soon yielded to the persuasive eloquence of a leader who shared the fatigues and dangers which he imposed on the meanest of the soldiers. The villages on either side of the Main, which were plentifully stored with corn and cattle, felt the ravages of an invading army. The principal houses, constructed with some imitation of Roman elegance, were consumed by the flames; and the Cæsar boldly advanced about ten miles, till his progress was stopped by a dark and impenetrable forest, undermined by subterraneous passages, which threatened, with secret snares and ambush, every step of the assailant. The ground was already covered with snow; and Julian, after repairing an ancient castle which had been erected by Trajan,⁵⁸⁸ granted a truce of ten months to the submissive Barbarians. At the expiration of the truce, Julian undertook a second expedition beyond the Rhine, to humble the pride of Surmar⁵⁸⁹ and Hortaire, two of the kings of the Alemanni, who had been present at the battle of Strasburg. They promised to restore all the Roman captives who yet remained alive; and, as the Cæsar had procured an exact account from the cities and villages of Gaul, of the inhabitants whom they had lost, he detected every attempt to deceive him with a degree of readiness and accuracy which almost established the belief of his supernatural knowledge. His Edition: current; Page: [273] third expedition was still more splendid and important than the two former. The Germans had collected their military powers, and moved along the opposite banks of the river, with a design of destroying the bridge and of preventing the passage of the Romans. But this judicious plan of defence was disconcerted by a skilful diversion. Three hundred light-armed and active soldiers were detached in forty small boats, to fall down the stream in silence, and to land at some distance from the posts of the enemy. They executed their orders with so much boldness and celerity that they had almost surprised the Barbarian chiefs, who returned in the fearless confidence of intoxication from one of their nocturnal festivals. Without repeating the uniform and disgusting tale of slaughter and devastation, it is sufficient to observe that Julian dictated his own conditions of peace to six of the haughtiest kings of the Alemanni, three of whom were permitted to view the severe discipline and martial pomp of a Roman camp. Followed by twenty thousand captives, whom he had rescued from the chains of the Barbarians, the Cæsar repassed the Rhine, after terminating a war, the success of which has been compared to the ancient glories of the Punic and Cimbric victories.

As soon as the valour and conduct of Julian had secured an interval of peace, he applied himself to a work more congenial to his humane and philosophic temper. The cities of Gaul, which had suffered from the inroads of the Barbarians, he diligently repaired; and seven important posts, between Mainz and the mouth of the Rhine, are particularly mentioned, as having been rebuilt and fortified by the order of Julian.⁵⁹⁰ The vanquished Germans had Edition: current; Page: [274]

⁵⁸⁶Libanius, the friend of Julian, clearly insinuates (Orat. iv. p. 178) that his hero had composed the history of his Gallic campaigns. But Zosimus (l. iii. p. 140 [c. 2]) seems to have derived his information only from the Orations (λόγοι) and the Epistles of Julian. the discourse which is addressed to the Athenians contains an accurate, though general, account of the war against the Germans.

⁵⁸⁷See Ammian. xvii. 1. 10, xviii. 2, and Zosim. l. iii. p. 144. Julian. ad S. P. Q. Athen. p. 280.

⁵⁸⁸[Variously supposed to be Gustavsburg or Lupudunum (Ladenburg).]

⁵⁸⁹[The name is Suomar.]

⁵⁹⁰Ammian. xviii. 2. Libanius, Orat. x. p. 279, 280. Of these seven posts, four are at present towns of some consequence:

submitted to the just but humiliating condition of preparing and conveying the necessary materials. The active zeal of Julian urged the prosecution of the work; and such was the spirit which he had diffused among the troops that the auxiliaries themselves, waiving their exemption from any duties of fatigue, contended in the most servile labours with the diligence of the Roman soldiers. It was incumbent on the Cæsar to provide for the subsistence, as well as for the safety, of the inhabitants and of the garrisons. The desertion of the former, and the mutiny of the latter, must have been the fatal and inevitable consequences of famine. The tillage of the provinces of Gaul had been interrupted by the calamities of war; but the scanty harvests of the continent were supplied, by his paternal care, from the plenty of the adjacent island. Six hundred large barks, framed in the forest of the Ardennes, made several voyages to the coast of Britain; and, returning from thence laden with corn, sailed up the Rhine, and distributed their cargoes to the several towns and fortresses along the banks of the river.⁵⁹¹ The arms of Julian had restored a free and secure navigation, which Constantius had offered to purchase at the expense of his dignity, and of a tributary present of two thousand pounds of silver. The emperor parsimoniously refused to his soldiers the sums which he granted with a lavish and trembling hand to the Barbarians. The dexterity, as well as the firmness, of Julian was put to a severe trial, when he took the field with Edition: current; Page: [275] a discontented army, which had already served two campaigns without receiving any regular pay or any extraordinary donative.⁵⁹²

A tender regard for the peace and happiness of his subjects was the ruling principle which directed, or seemed to direct, the administration of Julian.⁵⁹³ He devoted the leisure of his winter quarters to the offices of civil government, and affected to assume with more pleasure the character of a magistrate than that of a general. Before he took the field, he devolved on the provincial governors most of the public and private causes which had been referred to his tribunal; but, on his return, he carefully revised their proceedings, mitigated the rigour of the law, and pronounced a second judgment on the judges themselves. Superior to the last temptation of virtuous minds, an indiscreet and intemperate zeal for justice, he restrained, with calmness and dignity, the warmth of an advocate who prosecuted, for extortion, the president of the Narbonnese province. [Hebrew]Who will ever be found guilty,[Hebrew]" exclaimed the vehement Delphidius, [Hebrew]if it be enough to deny?[Hebrew]And who,[Hebrew]" replied Julian, [Hebrew]will ever be innocent, if it be sufficient to affirm?[Hebrew]" In the general administration of peace and war, the interest of the sovereign is commonly the same as that of his people; but Constantius would have thought himself deeply injured, if the virtues of Julian had defrauded him of any part of the tribute which he extorted from an oppressed and exhausted country. The prince, who was invested with the ensigns of royalty, might sometimes presume to correct the rapacious insolence of the inferior agents, to expose their corrupt arts, and to introduce an equal and easier mode of collection. But the management of the

Bingen, Andernach, Bonn, and Neuss. The other three, Tricesimæ [has been identified with Kellen], Quadriburgium [Schenkenschanz], and Castra Herculis, or Heraclea [Erkelens], no longer subsist; but there is room to believe that, on the ground of Quadriburgium, the Dutch have constructed the fort of Schenk, a name so offensive to the fastidious delicacy of Boileau. See d[Hebrew]'Anville, Notice de l[Hebrew]'ancienne Gaule, p. 183. Boileau, *Épître iv.* and the notes.

⁵⁹¹We may credit Julian himself, *Orat. ad S. P. Q. Atheniensem*, p. 280 [361, ed. Hertl.], who gives a very particular account of the transaction. Zosimus adds two hundred vessels more, l. iii. p. 145 [c. 5]. If we compute the 600 corn ships of Julian at only seventy tons each, they were capable of exporting 120,000 quarters (see Arbuthnot[Hebrew]'s *Weights and Measures*, p. 237); and the country which could bear so large an exportation must already have attained an improved state of agriculture.

⁵⁹²The troops once broke out into a mutiny, immediately before the second passage of the Rhine. Ammian. xvii. 9.

⁵⁹³Ammian. xvi. 5, xviii. 1. Mamertinus in *Panegyrr.* Vet. xi. 4.

finances was more safely entrusted to Florentius, Prætorian prefect of Gaul, an effeminate tyrant, incapable Edition: current; Page: [276] of pity or remorse; and the haughty minister complained of the most decent and gentle opposition, while Julian himself was rather inclined to censure the weakness of his own behaviour. The Cæsar had rejected with abhorrence a mandate for the levy of an extraordinary tax; a new superindiction, which the prefect had offered for his signature; and the faithful picture of the public misery, by which he had been obliged to justify his refusal, offended the court of Constantius. We may enjoy the pleasure of reading the sentiments of Julian, as he expresses them with warmth and freedom in a letter to one of his most intimate friends. After stating his own conduct, he proceeds in the following terms: [*Hebrew*] Was it possible for the disciple of Plato and Aristotle to act otherwise than I have done? Could I abandon the unhappy subjects entrusted to my care? Was I not called upon to defend them from the repeated injuries of these unfeeling robbers? A tribune who deserts his post is punished with death and deprived of the honours of burial.⁵⁹⁴ With what justice could I pronounce his sentence, if, in the hour of danger, I myself neglected a duty far more sacred and far more important? God has placed me in this elevated post; his providence will guard and support me. Should I be condemned to suffer, I shall derive comfort from the testimony of a pure and upright conscience. Would to heaven that I still possessed a councillor like Sallust! If they think proper to send me a successor, I shall submit without reluctance; and had much rather improve the short opportunity of doing good than enjoy a long and lasting impunity of evil.[*Hebrew*]"⁵⁹⁵ The precarious and dependent situation of Julian displayed his virtues and concealed his defects. The young hero who Edition: current; Page: [277] supported, in Gaul, the throne of Constantius was not permitted to reform the vices of the government; but he had courage to alleviate or to pity the distress of the people. Unless he had been able to revive the martial spirit of the Romans, or to introduce the arts of industry and refinement among their savage enemies, he could not entertain any rational hopes of securing the public tranquillity, either by the peace or conquest of Germany. Yet the victories of Julian suspended, for a short time, the inroads of the Barbarians, and delayed the ruin of the Western empire.

His salutary influence restored the cities of Gaul, which had been so long exposed to the evils of civil discord, barbarian war, and domestic tyranny; and the spirit of industry was revived with the hopes of enjoyment. Agriculture, manufactures, and commerce again flourished under the protection of the laws; and the curiæ, or civil corporations, were again filled with useful and respectable members: the youth were no longer apprehensive of marriage; and married persons were no longer apprehensive of posterity: the public and private festivals were celebrated with customary pomp; and the frequent and secure intercourse of the provinces displayed the image of national prosperity.⁵⁹⁶ A mind like that of Julian must have felt the general happiness of which he was the author; but he viewed with peculiar satisfaction and complacency the city of Paris, the seat of his winter residence, and the object even of his partial affection.⁵⁹⁷ That splendid capital,

⁵⁹⁴[The reading and meaning of this sentence of Julian are uncertain.]

⁵⁹⁵Ammian. xvii. 3. Julian. Epistol. xv. [leg. xvii.] edit. Spanheim [497, ed. Hertl.]. Such a conduct almost justifies the encomium of Mamertinus. Ita illi anni spatia divisa sunt, ut aut Barbaros domitet, aut civibus jura restituat; perpetuum professus, aut contra hostem, aut contra vitia, certamen.

⁵⁹⁶Libanius, Orat. Parental. in Imp. Julian. c. 38, in Fabricius Bibliothec. Græc. tom. vii. p. 263, 264.

⁵⁹⁷See Julian. in Misopogon. p. 340, 341 [438, 439, ed. Hertl.]. The primitive state of Paris is illustrated by Henry Valesuis (ad Ammian. xx. 4), his brother Hadrian Valesius, or de Valois, and M. d[*Hebrew*]’Anville (in their respective Notitias of Ancient Gaul), the Abbé de Longuerue, Description de la France, tom. i. p. 12, 13, and M. Bonamy (in the Mém. de l[*Hebrew*]’Académie des Inscriptions, tom. xv. p. 656-691).

which now embraces an ample territory on either side of Edition: current; Page: [278] the Seine, was originally confined to the small island in the midst of the river, from whence the inhabitants derived a supply of pure and salubrious water. The river bathed the foot of the walls; and the town was accessible only by two wooden bridges. A forest overspread the northern side of the Seine; but on the south, the ground, which now bears the name of the university, was insensibly covered with houses, and adorned with a palace and amphitheatre, baths, an aqueduct, and a field of Mars for the exercise of the Roman troops. The severity of the climate was tempered by the neighbourhood of the ocean; and with some precautions, which experience had taught, the vine and figtree were successfully cultivated. But in remarkable winters, the Seine was deeply frozen; and the huge pieces of ice that floated down the stream might be compared, by an Asiatic, to the blocks of white marble which were extracted from the quarries of Phrygia. The licentiousness and corruption of Antioch recalled to the memory of Julian the severe and simple manners of his beloved Lutetia;⁵⁹⁸ where the amusements of the theatre were unknown or despised. He indignantly contrasted the effeminate Syrians with the brave and honest simplicity of the Gauls, and almost forgave the intemperance which was the only stain of the Celtic character.⁵⁹⁹ If Julian could now revisit the capital of France, he might converse with men of science and genius, capable of understanding and of instructing a disciple of the Greeks; he might excuse the lively and graceful follies of a nation whose martial spirit has never been enervated by the indulgence of luxury; and he must applaud the perfection of that inestimable art which softens and refines and embellishes the intercourse of social life.

Edition: current; Page: [279]

⁵⁹⁸Τ[Ηεβρεω]ν φίλην Λευκετίαν [Λουκετίαν]. Julian. in Misopogon. p. 340 [438, ed. Hertl.]. Leucetia, or Lutetia, was the ancient name of the city which, according to the fashion of the fourth century, assumed the territorial appellation of Parisii.

⁵⁹⁹Julian. in Misopogon. p. 359, 360 [463, 465, ed. Hertl.].

Chapter Xx

The Motives, Progress, and Effects of the Conversion of Constantine [*Hebrew*] Legal Establishment and Constitution of the Christian or Catholic Church

The public establishment of Christianity may be considered as one of those important and domestic revolutions which excite the most lively curiosity and afford the most valuable instruction. The victories and the civil policy of Constantine no longer influence the state of Europe; but a considerable portion of the globe still retains the impression which it received from the conversion of that monarch; and the ecclesiastical institutions of his reign are still connected, by an indissoluble chain, with the opinions, the passions, and the interests of the present generation.

In the consideration of a subject which may be examined with impartiality, but cannot be viewed with indifference, a difficulty immediately arises of a very unexpected nature: that of ascertaining the real and precise date of the conversion of Constantine. The eloquent Lactantius, in the midst of his court, seems impatient⁶⁰⁰ to proclaim to the world the glorious example of the sovereign of Gaul; who, Edition: current; Page: [280] in the first moments of his reign, acknowledged and adored the majesty of the true and only God.⁶⁰¹ The learned Eusebius has ascribed the faith of Constantine to the miraculous sign which was displayed in the heavens whilst he meditated and prepared the Italian expedition.⁶⁰² The historian Zosimus maliciously asserts that the emperor had imbrued his hands in the blood of his eldest son, before he publicly renounced the gods of Rome and of his ancestors.⁶⁰³ The perplexity produced by these discordant authorities is derived from the behaviour of Constantine himself. According to the strictness of ecclesiastical language, the first of the Christian emperors was unworthy of that name, till the moment of his death; since it was only during his last illness that he received, as a catechumen, the imposition of hands,⁶⁰⁴ and was afterwards admitted, by the initiatory rites of baptism, into the number of the faithful.⁶⁰⁵ Edition:

⁶⁰⁰The date of the *Divine Institutions* of Lactantius has been accurately discussed, difficulties have been started, solutions proposed, and an expedient imagined of two original editions: the former published during the persecution of Diocletian, the latter under that of Licinius. See Dufresnoy, *Prefat.* p. v. Tillemont, *Mém. Ecclésiast.* tom. vi. p. 465-470. Lardner[*Hebrew*]'s *Credibility*, part ii. vol. vii. p. 78-86. For my own part, I am almost convinced that Lactantius dedicated his *Institutions* to the sovereign of Gaul, at a time when Galerius, Maximin, and even Licinius persecuted the Christians; that is, between the years 306 and 311. [The work was probably begun about 304, and finished perhaps by 308, certainly before 311.]

⁶⁰¹Lactant. *Divin. Institut.* i. 1, vii. 27. The first and most important of these passages is indeed wanting in twenty-eight manuscripts; but it is found in nineteen. If we weigh the comparative value of those manuscripts, one of 900 years old, in the king of France[*Hebrew*]'s library, may be alleged in its favour; but the passage is omitted in the correct manuscript of Bologna, which the P. de Montfaucon ascribes to the sixth or seventh century (*Diarium Italic.* p. 409). The taste of most of the editors (except Isæus, see Lactant. edit. Dufresnoy, tom. i. p. 596) has felt the genuine style of Lactantius. [On these and other minor interpolations, see Brandt[*Hebrew*]'s papers in the *Sitzungsberichte* of the Vienna Academy, 118 and 119; cp. vol. ii. Appendix 10.]

⁶⁰²Euseb. in *Vit. Constant.* l. i. c. 27-32.

⁶⁰³Zosimus, l. ii. p. 104 [c. 29].

⁶⁰⁴That rite was always used in making a catechumen (see Bingham[*Hebrew*]'s *Antiquities*, l. x. c. 1, p. 419: Dom. Chardon, *Hist. des Sacrements*, tom. i. p. 62) and Constantine received it for the first time (Euseb. in *Vit. Constant.* l. iv. c. 61) immediately before his baptism and death. From the connection of these two facts, Valesius (ad loc. Euseb.) has drawn the conclusion, which is reluctantly admitted by Tillemont (*Hist. des Empereurs*, tom. iv. p. 628), and opposed with feeble arguments by Mosheim (p. 968).

⁶⁰⁵Euseb. in *Vit. Constant.* l. iv. c. 61, 62, 63. The legend of Constantine[*Hebrew*]'s baptism at Rome, thirteen years before his death, was invented in the eighth century, as a proper motive for his donation. Such has been the gradual progress of knowledge that a story of which Cardinal Baronius (*Annal. Ecclesiast.* ad 324, No. 43-49) declared himself the unblushing advocate is now feebly supported, even within the verge of the Vatican. See the *Antiquitates Christianæ*, tom. ii. p. 232; a work published with six approbations at Rome, in the year 1751, by Father Mamachi, a learned Dominican.

current; Page: [281] The Christianity of Constantine must be allowed in a much more vague and qualified sense; and the nicest accuracy is required in tracing the slow and almost imperceptible gradations by which the monarch declared himself the protector, and at length the proselyte, of the church. It was an arduous task to eradicate the habits and prejudices of his education, to acknowledge the divine power of Christ, and to understand that the truth of his revelation was incompatible with the worship of the gods. The obstacles which he had probably experienced in his own mind instructed him to proceed with caution in the momentous change of a national religion; and he insensibly discovered his new opinions, as far as he could enforce them with safety and with effect. During the whole course of his reign, the stream of Christianity flowed with a gentle, though accelerated, motion: but its general direction was sometimes checked, and sometimes diverted, by the accidental circumstances of the times, and by the prudence, or possibly by the caprice, of the monarch. His ministers were permitted to signify the intentions of their master in the various language which was best adapted to their respective principles;⁶⁰⁶ and he artfully balanced the hopes and fears of his subjects by publishing in the same year two edicts: the first of which enjoined the solemn observance of Sunday,⁶⁰⁷ and the second directed the regular consultation of the Aruspices.⁶⁰⁸ Edition: current; Page: [282] While this important revolution yet remained in suspense, the Christians and the Pagans watched the conduct of their sovereign with the same anxiety, but with very opposite sentiments. The former were prompted by every motive of zeal, as well as vanity, to exaggerate the marks of his favour, and the evidences of his faith. The latter, till their just apprehensions were changed into despair and resentment, attempted to conceal from the world, and from themselves, that the gods of Rome could no longer reckon the emperor in the number of their votaries. The same passions and prejudices have engaged the partial writers of the times to connect the public profession of Christianity with the most glorious or the most ignominious era of the reign of Constantine.

Whatever symptoms of Christian piety might transpire in the discourses or actions of Constantine, he persevered till he was near forty years of age in the practice of the established religion;⁶⁰⁹ and the same conduct, which in the court of Nicomedia might be imputed to his fear, could be ascribed only to the inclination or policy of the sovereign of Gaul. His liberality restored and enriched the temples of the gods: the medals which issued from his Imperial mint are impressed with the figures and attributes of Jupiter and Apollo, of Mars and Hercules; and his filial piety increased the council of Olympus by the solemn apotheosis of his father Constantius.⁶¹⁰ But the devotion of Constantine was more peculiarly directed to the genius of the Sun, the Apollo of Greek and Roman mythology; and he was pleased to be Edition: current; Page: [283] represented with

⁶⁰⁶The quæstor, or secretary, who composed the law of the Theodosian Code, makes his master say with indifference, [Hebrew]hominibus supradictæ religionis[Hebrew]" (l. xvi. tit. ii. leg. 1). The minister of ecclesiastical affairs was allowed a more devout and respectful style, της [Hebrew]νόσεμου κα[Hebrew]γιοτάτης καθολικης θρησκείας, the legal, most holy, and catholic worship. See Euseb. Hist. Eccl. l. x. c. 6.

⁶⁰⁷Cod. Theodos. l. ii. tit. viii. leg. 1. Cod. Justinian. l. iii. tit. xii. leg. iii. Constantine styles the Lord[Hebrew]'s day dies solis, a name which could not offend the ears of his Pagan subjects.

⁶⁰⁸Cod. Theod. l. xvi. tit. x. leg. 1. Godefroy, in the character of a commentator, endeavours (tom. vi. p. 257) to excuse Constantine; but the more zealous Baronius (Annal. Eccl. ad 321, No. 18) censures his profane conduct with truth and asperity.

⁶⁰⁹Theodoret (l. i. c. 18) seems to insinuate that Helena gave her son a Christian education; but we may be assured, from the superior authority of Eusebius (in Vit. Constant. l. iii. c. 47), that she herself was indebted to Constantine for the knowledge of Christianity.

⁶¹⁰See the medals of Constantine in Ducange and Banduri. As few cities had retained the privilege of coining, almost all the medals of that age issued from the mint under the sanction of the Imperial authority.

the symbols of the God of Light and Poetry. The unerring shafts of that deity, the brightness of his eyes, his laurel wreath, immortal beauty, and elegant accomplishments, seem to point him out as the patron of a young hero. The altars of Apollo were crowned with the votive offerings of Constantine; and the credulous multitude were taught to believe that the emperor was permitted to behold with mortal eyes the visible majesty of their tutelar deity, and that, either waking or in a vision, he was blessed with the auspicious omens of a long and victorious reign. The Sun was universally celebrated as the invincible guide and protector of Constantine; and the Pagans might reasonably expect that the insulted god would pursue with unrelenting vengeance the impiety of his ungrateful favourite.⁶¹¹

As long as Constantine exercised a limited sovereignty over the provinces of Gaul, his Christian subjects were protected by the authority, and perhaps by the laws, of a prince who wisely left to the gods the care of vindicating their own honour. If we may credit the assertion of Constantine himself, he had been an indignant spectator of the savage cruelties which were inflicted, by the hands of Roman soldiers, on those citizens whose religion was their only crime.⁶¹² In the East and in the West, he had seen the different effects of severity and indulgence; and, as the former was rendered still more odious by the example of Galerius, his implacable enemy, the latter was recommended to his imitation by the authority and advice of a dying father. The son of Constantius immediately suspended or repealed the edicts of persecution, and granted the free exercise of their religious ceremonies to all those who had already professed themselves members of the church. They were soon encouraged to depend on the favour as well as on the justice of their sovereign, who had imbibed a secret and sincere reverence for the name of Christ and for the God of the Christians.⁶¹³

About five months after the conquest of Italy, the emperor made a solemn and authentic declaration of his sentiments, by the celebrated edict of Milan, which restored peace to the Catholic church. In the personal interview of the two Western princes, Constantine, by the ascendant of genius and power, obtained the ready concurrence of his colleague Licinius; the union of their names and authority disarmed the fury of Maximin; and, after the death of the tyrant of the East, the edict of Milan was received as a general and fundamental law of the Roman world.⁶¹⁴ The wisdom of the emperors provided for the restitution of all the civil and religious rights of which the Christians had been so unjustly deprived. It was enacted that the places of worship, and public lands, which had been confiscated, should be restored to the church, without dispute, without delay, and without expense: and this severe injunction was accompanied with a gracious promise that, if any of the purchasers had paid a fair and adequate price, they should be indemnified from the Imperial treasury. The salutary regulations which guard the future tranquillity of the faithful

⁶¹¹The panegyric of Eumenius (vii. inter Panegy. Vet.), which was pronounced a few months before the Italian war, abounds with the most unexceptionable evidence of the Pagan superstition of Constantine, and of his particular veneration for Apollo, or the Sun; to which Julian alludes (Orat. vii. p. 228, [Ἡεβρεω]πολείπων σε). See Commentaire de Spanheim sur les Césars, p. 317.

⁶¹²Constantin. Orat. ad Sanctos, c. 25. But it might easily be shewn that the Greek translator has improved the sense of the Latin original; and the aged emperor might recollect the persecution of Diocletian with a more lively abhorrence than he had actually felt in the days of his youth and Paganism.

⁶¹³See Euseb. Hist. Eccles. l. viii. 13, l. ix. 9, and in Vit. Const. l. i. c. 16, 17. Lactant. Divin. Institut. i. 1. Cæcilius de Mort. Persecut. c. 25.

⁶¹⁴Cæcilius (de Mort. Persecut. c. 48) has preserved the Latin original; and Eusebius (Hist. Eccles. l. x. c. 5) has given a Greek translation of this perpetual edict, which refers to some provisional regulations. [O. Seeck holds that there was no such thing as the Edict of Milan, Zeitsch. f. Kirchengesch., 12, p. 181; cp. Gesch. des Untergangs der antiken Welt, i., p. 457.]

are framed on the principles of enlarged and equal toleration; and such Edition: current; Page: [285] an equality must have been interpreted by a recent sect as an advantageous and honourable distinction. The two emperors proclaim to the world that they have granted a free and absolute power to the Christians, and to all others, of following the religion which each individual thinks proper to prefer, to which he has addicted his mind, and which he may deem the best adapted to his own use. They carefully explain every ambiguous word, remove every exception, and exact from the governors of the provinces a strict obedience to the true and simple meaning of an edict which was designed to establish and secure, without any limitation, the claims of religious liberty. They condescend to assign two weighty reasons which have induced them to allow this universal toleration: the humane intention of consulting the peace and happiness of their people; and the pious hope that, by such a conduct, they shall appease and propitiate the Deity, whose seat is in heaven. They gratefully acknowledge the many signal proofs which they have received of the divine favour; and they trust that the same Providence will for ever continue to protect the prosperity of the prince and people. From these vague and indefinite expressions of piety, three suppositions may be deduced, of a different, but not of an incompatible, nature. The mind of Constantine might fluctuate between the Pagan and the Christian religions. According to the loose and complying notions of Polytheism, he might acknowledge the God of the Christians as one of the many deities who composed the hierarchy of heaven. Or perhaps he might embrace the philosophic and pleasing idea that, notwithstanding the variety of names, of rites, and of opinions, all the sects and all the nations of mankind are united in the worship of the common Father and Creator of the universe.⁶¹⁵ Edition: current; Page: [286]

But the counsels of princes are more frequently influenced by views of temporal advantage than by considerations of abstract and speculative truth. The partial and increasing favour of Constantine may naturally be referred to the esteem which he entertained for the moral character of the Christians; and to a persuasion that the propagation of the gospel would inculcate the practice of private and public virtue. Whatever latitude an absolute monarch may assume in his own conduct, whatever indulgence he may claim for his own passions, it is undoubtedly his interest that all his subjects should respect the natural and civil obligations of society. But the operation of the wisest laws is imperfect and precarious. They seldom inspire virtue, they cannot always restrain vice. Their power is insufficient to prohibit all that they condemn, nor can they always punish the actions which they prohibit. The legislators of antiquity had summoned to their aid the powers of education and of opinion. But every principle which had once maintained the vigour and purity of Rome and Sparta was long since extinguished in a declining and despotic empire. Philosophy still exercised her temperate sway over the human mind, but the cause of virtue derived very feeble support from the influence of the Pagan superstition. Under these discouraging circumstances, a prudent magistrate might observe with pleasure the progress of a religion, which diffused among the people a pure, benevolent, and universal system of ethics, adapted to every duty and every condition of life; recommended as the will and reason of the Supreme Deity, and enforced by the sanction of eternal rewards or punishments. The experience of Greek and Roman history could not inform the world how far the system of national manners might be reformed and improved by

⁶¹⁵A panegyric of Constantine, pronounced seven or eight months after the edict of Milan (see Gothofred. *Chronolog. Legum*, p. 7, and Tillemont, *Hist. des Empereurs*, tom. iv. p. 246), uses the following remarkable expression: [*Hebrew*] *Summe rerum sator, cujus tot nomina sunt, quot linguas gentium esse voluisti, quem enim te ipse dicivelis, scire non possumus.* [*Hebrew*] Panegy. Vet. ix. 26. In explaining Constantine [*Hebrew*]’s progress in the faith, Mosheim (p. 971, &c.) is ingenious, subtle, prolix.

the precepts of a divine revelation; and Constantine might listen with some confidence Edition: current; Page: [287] to the flattering, and indeed reasonable, assurances of Lactantius. The eloquent apologist seemed firmly to expect, and almost ventured to promise, that the establishment of Christianity would restore the innocence and felicity of the primitive age; that the worship of the true God would extinguish war and dissension among those who mutually considered themselves as the children of a common parent; that every impure desire, every angry or selfish passion, would be restrained by the knowledge of the gospel; and that the magistrates might sheathe the sword of justice among a people who would be universally actuated by the sentiments of truth and piety, of equity and moderation, of harmony and universal love.⁶¹⁶

The passive and unresisting obedience which bows under the yoke of authority, or even of oppression, must have appeared, in the eyes of an absolute monarch, the most conspicuous and useful of the evangelic virtues.⁶¹⁷ The primitive Christians derived the institution of civil government, not from the consent of the people, but from the decrees of heaven. The reigning emperor, though he had usurped the sceptre by treason and murder, immediately assumed the sacred character of viceroy of the Deity. To the Deity alone he was accountable for the abuse of his power; and his subjects were indissolubly bound, by their oath of fidelity, to a tyrant who had violated every law of nature and society. The humble Christians were sent into the world as sheep among wolves; and, since they were not permitted to employ force, even in the defence of their religion, they should be still more criminal if they were tempted to shed the blood of their fellow-creatures in disputing the vain privileges, or the sordid possessions, of this transitory life. Faithful to the Edition: current; Page: [288] doctrine of the apostle who in the reign of Nero had preached the duty of unconditional submission, the Christians of the three first centuries preserved their conscience pure and innocent of the guilt of secret conspiracy or open rebellion. While they experienced the rigour of persecution, they were never provoked either to meet their tyrants in the field or indignantly to withdraw themselves into some remote and sequestered corner of the globe.⁶¹⁸ The Protestants of France, of Germany, and of Britain, who asserted with such intrepid courage their civil and religious freedom, have been insulted by the invidious comparison between the conduct of the primitive and of the reformed Christians.⁶¹⁹ Perhaps, instead of censure, some applause may be due to the superior sense and spirit of our ancestors, who had convinced themselves that religion cannot abolish the unalienable rights of human nature.⁶²⁰ Perhaps the patience of the primitive church may be ascribed to its weakness, as well as to its virtue. A sect of unwarlike plebeians, without leaders, without arms, without fortifications, must have encountered inevitable destruction in a rash and fruitless resistance to the master of the Roman legions. But the Christians, when they deprecated the wrath of Diocletian, or solicited the favour

⁶¹⁶See the elegant description of Lactantius (*Divin. Institut.* v. 8), who is much more perspicuous and positive than it becomes a discreet prophet.

⁶¹⁷The political system of the Christians is explained by Grotius, *de Jure Belli et Pacis*, l. i. c. 3, 4. Grotius was a republican and an exile, but the mildness of his temper inclined him to support the established powers.

⁶¹⁸Tertullian. *Apolog.* c. 32, 34, 35, 36. *Tamen nunquam Albiniani, nec Nigriani vel Cassiani inveniri potuerunt Christiani.* *Ad Scapulam*, c. 2. If this assertion be strictly true, it excludes the Christians of that age from all civil and military employments, which would have compelled them to take an active part in the service of their respective governors. See Moyle[*Hebrew*]'s Works, vol. ii. p. 349.

⁶¹⁹See the artful Bossuet (*Hist. des Variations des Eglises Protestantes*, tom. iii. p. 210-258), and the malicious Bayle (tom. ii. p. 620). I name Bayle, for he was certainly the author of the *Avis aux Réfugiés*; consult the *Dictionnaire Critique de Chauffepié*, tom. i. part ii. p. 145.

⁶²⁰Buchanan is the earliest, or at least the most celebrated, of the reformers, who has justified the theory of resistance. See his *Dialogue de Jure Regni apud Scotos*, tom. ii. p. 28, 30, edit. fol. Ruddiman.

of Constantine, could allege, with truth and confidence, that they held the principle of passive obedience, and that, in the space of three centuries, their conduct had Edition: current; Page: [289] always been conformable to their principles. They might add that the throne of the emperors would be established on a fixed and permanent basis, if all their subjects, embracing the Christian doctrine, should learn to suffer and to obey.

In the general order of Providence, princes and tyrants are considered as the ministers of Heaven, appointed to rule or to chastise the nations of the earth. But sacred history affords many illustrious examples of the more immediate interposition of the Deity in the government of his chosen people. The sceptre and the sword were committed to the hands of Moses, of Joshua, of Gideon, of David, of the Maccabees; the virtues of those heroes were the motive or the effect of the divine favour, the success of their arms was destined to achieve the deliverance or the triumph of the church. If the judges of Israel were occasional and temporary magistrates, the kings of Judah derived from the royal unction of their great ancestor an hereditary and indefeasible right, which could not be forfeited by their own vices, nor recalled by the caprice of their subjects. The same extraordinary Providence, which was no longer confined to the Jewish people, might elect Constantine and his family as the protectors of the Christian world; and the devout Lactantius announces, in a prophetic tone, the future glories of his long and universal reign.⁶²¹ Galerius and Maximin, Maxentius and Licinius, were the rivals who shared with the favourite of Heaven the provinces of the empire. The tragic deaths of Galerius and Maximin soon gratified the resentment, and fulfilled the sanguine expectations, of the Christians. The success of Constantine against Maxentius and Licinius removed the two formidable competitors who still opposed the triumph of the second David, and his cause might seem to claim the peculiar interposition of Providence. The character of the Roman tyrant disgraced Edition: current; Page: [290] the purple and human nature; and, though the Christians might enjoy his precarious favour, they were exposed, with the rest of his subjects, to the effects of his wanton and capricious cruelty. The conduct of Licinius soon betrayed the reluctance with which he had consented to the wise and humane regulations of the edict of Milan. The convocation of provincial synods was prohibited in his dominions; his Christian officers were ignominiously dismissed; and, if he avoided the guilt, or rather danger, of a general persecution, his partial oppressions were rendered still more odious by the violation of a solemn and voluntary engagement.⁶²² While the East, according to the lively expression of Eusebius, was involved in the shades of infernal darkness, the auspicious rays of celestial light warmed and illuminated the provinces of the West. The piety of Constantine was admitted as an unexceptionable proof of the justice of his arms; and his use of victory confirmed the opinion of the Christians, that their hero was inspired, and conducted by the Lord of Hosts. The conquest of Italy produced a general edict of toleration: and, as soon as the defeat of Licinius had invested Constantine with the sole dominion of the Roman world, he immediately, by circular letters, exhorted all his subjects to imitate, without delay, the example of their sovereign, and to embrace the divine truth of Christianity.⁶²³

The assurance that the elevation of Constantine was intimately connected with the designs

⁶²¹Lactant. *Divin. Institut.* i. 1. Eusebius, in the course of his history, his life, and his oration, repeatedly inculcates the divine right of Constantine to the empire.

⁶²²Our imperfect knowledge of the persecution of Licinius is derived from Eusebius (*Hist. Eccles.* i. x. c. 8; *Vit. Constantin.* i. i. c. 49-56, i. ii. c. 1, 2). Aurelius Victor mentions his cruelty in general terms. [Cp. Görres, *die Licinianische Christenverfolgung*. He has shown that the persecution was not attended with much bloodshed. Some bishops were executed. P. 32 sqq.]

⁶²³Euseb. in *Vit. Constant.* i. ii. c. 24-42, 48-60.

of Providence instilled into the minds of the Christians two opinions, which, by very different means, assisted the accomplishment of the prophecy. Their warm and active loyalty exhausted in his Edition: current; Page: [291] favour every resource of human industry; and they confidently expected that their strenuous efforts would be seconded by some divine and miraculous aid. The enemies of Constantine have imputed to interested motives the alliance which he insensibly contracted with the Catholic church, and which apparently contributed^{24a} to the success of his ambition. In the beginning of the fourth century, the Christians still bore a very inadequate proportion to the inhabitants of the empire; but among a degenerate people, who viewed the change of masters with the indifference of slaves, the spirit and union of a religious party might assist the popular leader to whose service, from a principle of conscience, they had devoted their lives and fortunes.⁶²⁴ The example of his father had instructed Constantine to esteem and to reward the merit of the Christians; and in the distribution of public offices, he had the advantage of strengthening his government, by the choice of ministers or generals in whose fidelity he could repose a just and unreserved confidence. By the influence of these dignified missionaries, the proselytes of the new faith must have multiplied in the court and army; the Barbarians of Germany, who filled the ranks of the legions, were of a careless temper, which acquiesced without resistance in the religion of their commander; and, when they passed the Alps, it may fairly be presumed that a great number of the soldiers had already consecrated their swords to the service of Christ and of Constantine.⁶²⁵ The Edition: current; Page: [292] habits of mankind, and the interest of religion, gradually abated the horror of war and bloodshed, which had so long prevailed among the Christians; and, in the councils which were assembled under the gracious protection of Constantine, the authority of the bishops was seasonably employed to ratify the obligation of the military oath, and to inflict the penalty of excommunication on those soldiers who threw away their arms during the peace of the church.⁶²⁶ While Constantine, in his own dominions, increased the number and zeal of his faithful adherents, he could depend on the support of a powerful faction in those provinces which were still possessed or usurped by his rivals. A secret disaffection was diffused among the Christian subjects of Maxentius and Licinius; and the resentment which the latter did not attempt to conceal served only to engage them still more deeply in the interest of his competitor. The regular correspondence which connected the bishops of the most distant provinces enabled them freely to communicate their wishes and their designs, and to transmit without danger any useful intelligence, or any pious contributions, which might promote the service of Constantine, who publicly declared that he had taken up arms for the deliverance of the church.⁶²⁷

The enthusiasm which inspired the troops, and perhaps the emperor himself, had sharpened

⁶²⁴In the beginning of the last century, the Papists of England were only a thirtieth, and the Protestants of France only a fifteenth, part of the respective nations, to whom their spirit and power were a constant object of apprehension. See the relations which Bentivoglio (who was then nuncio at Brussels, and afterwards cardinal) transmitted to the court of Rome (*Relazione*, tom. ii. p. 211, 241). Bentivoglio was curious, well-informed, but somewhat partial.

⁶²⁵This careless temper of the Germans appears almost uniformly in the history of the conversion of each of the tribes. The legions of Constantine were recruited with Germans (*Zosimus*, l. ii. p. 86 [c. 15]); and the court even of his father had been filled with Christians. See the first book of the *Life of Constantine*, by Eusebius.

⁶²⁶*De his qui arma projiciunt in pace, placuit eos abstinere a communione.* Concil. Arelat. Canon iii. The best critics apply these words to the peace of the church.

⁶²⁷Eusebius always considers the second civil war against Licinius as a sort of religious crusade. At the invitation of the tyrant, some Christian officers had resumed their zones; or, in other words, had returned to the military service. Their conduct was afterwards censured by the 12th canon of the Council of Nice; if this particular application may be received, instead of the loose and general sense of the Greek interpreters, Balsamon, Zonaras, and Alexis Aristenus. See Beveridge, *Pandect. Eccles. Græc.* tom. i. p. 72, tom. ii. p. 78, Annotation.

their swords, while it satisfied their conscience. They marched to battle with the Edition: current; Page: [293] full assurance that the same God, who had formerly opened a passage to the Israelites through the waters of Jordan, and had thrown down the walls of Jericho at the sound of the trumpets of Joshua, would display his visible majesty and power in the victory of Constantine. The evidence of ecclesiastical history is prepared to affirm that their expectations were justified by the conspicuous miracle to which the conversion of the first Christian emperor has been almost unanimously ascribed. The real or imaginary cause of so important an event deserves and demands the attention of posterity; and I shall endeavour to form a just estimate of the famous vision of Constantine, by a distinct consideration of the standard, the dream, and the celestial sign; by separating the historical, the natural, and the marvellous parts of this extraordinary story, which, in the composition of a specious argument, have been artfully confounded in one splendid and brittle mass.

I. An instrument of the tortures which were inflicted only on slaves and strangers became an object of horror in the eyes of a Roman citizen; and the ideas of guilt, of pain, and of ignominy were closely united with the idea of the cross.⁶²⁸ The piety rather than the humanity of Constantine soon abolished in his dominions the punishment which the Saviour of mankind had condescended to suffer;⁶²⁹ but the emperor had already learned to despise the prejudices of his education, and of his people, before he could erect in the midst of Edition: current; Page: [294] Rome his own statue, bearing a cross in its right hand, with an inscription which referred the victory of his arms, and the deliverance of Rome, to the virtue of that salutary sign, the true symbol of force and courage.⁶³⁰ The same symbol sanctified the arms of the soldiers of Constantine; the cross glittered on their helmets, was engraved on their shields, was interwoven into their banners; and the consecrated emblems which adorned the person of the emperor himself were distinguished only by richer materials and more exquisite workmanship.⁶³¹ But the principal standard which displayed the triumph of the cross was styled the Labarum,⁶³² an obscure though celebrated name, which has been vainly

⁶²⁸Nomen ipsum crucis absit non modo a corpore civium Romanorum, sed etiam a cogitatione, oculis, auribus. Cicero pro Rabirio, c. 5. The Christian writers, Justin, Minucius Felix, Tertullian, Jerom, and Maximus of Turin, have investigated with tolerable success the figure or likeness of a cross in almost every object of nature or art; in the intersection of the meridian and equator, the human face, a bird flying, a man swimming, a mast and yard, a plough, a standard, &c., &c., &c. See Lipsius de Cruce, l. i. c. 9.

⁶²⁹See Aurelius Victor, who considers this law as one of the examples of Constantine[Hebrew]'s piety. An edict so honourable to Christianity deserved a place in the Theodosian Code, instead of the indirect mention of it, which seems to result from the comparison of the vth and xviiiith titles of the ixth book.

⁶³⁰Eusebius, in Vit. Constantin. l. i. c. 40. The statue, or at least the cross and inscription, may be ascribed with more probability to the second, or even the third, visit of Constantine to Rome. Immediately after the defeat of Maxentius, the minds of the senate and people were scarcely ripe for this public monument. [See App. 14.]

⁶³¹Agnoscas regina libens mea signa necesse est;

In quibus effigies crucis aut gemmata refulget

Aut longis solido ex auro præfertur in hastis.

Hoc signo invictus, transmissis Alpibus Ultor

Servitium solvit miserabile Constantinus.

* * * * *

Christus pur pureum gemmanti textus in auro

Signabat Labarum, clypeorum insignia Christus

Scripserat; ardebat summis crux addita cristis.

[Hebrew] Prudentius, in Symmachum, l. ii. 464, 486.

⁶³²The derivation and meaning of the word Labarum or Laborum, which is employed by Gregory Nazianzen, Ambrose, Prudentius, &c., still remain totally unknown; in spite of the efforts of the critics, who have ineffectually tortured the Latin, Greek, Spanish, Celtic, Teutonic, Illyric, Armenian, &c., in search of an etymology. See Ducange, in Gloss. Med. et

derived from almost all the languages of the world. It is described⁶³³ as a long pike intersected by a transversal beam. The silken veil which hung down from the beam was curiously enwrought with the images of the reigning monarch and his children. The summit of the pike supported a crown of gold which enclosed the mysterious monogram, at once expressive of the figure of the cross and the initial letters of the name of Christ.⁶³⁴ The safety of the labarum was entrusted to fifty guards, of approved valour and fidelity; their station was marked by honours and emoluments; and some fortunate accidents soon introduced an opinion that, as long as the guards of the labarum were engaged in the execution of their office, they were secure and invulnerable amidst the darts of the enemy. In the second civil war Licinius felt and dreaded the power of this consecrated banner, the sight of which, in the distress of battle, animated the soldiers of Constantine with an invincible enthusiasm, and scattered terror and dismay through the ranks of the adverse legions.⁶³⁵ The Christian emperors, who respected the example of Constantine, displayed in all their military expeditions the standard of the cross; but, when the degenerate successors of Theodosius had ceased to appear in person at the head of their armies, the labarum was deposited as a venerable but useless relic in the palace of Constantinople.⁶³⁶ Its honours are still preserved on the medals of the Flavian family. Their grateful devotion has placed the monogram of Christ in the midst of the ensigns of Rome. The solemn epithets of, safety of the republic, glory of the army, restoration of public happiness, are equally applied to the religious and military trophies; and there is still extant a medal of the emperor Constantius, where the standard of the labarum is accompanied with these memorable words, By this sign thou shalt conquer.⁶³⁷

II. In all occasions of danger or distress, it was the practice of the primitive Christians to fortify their minds and bodies by the sign of the cross, which they used, in all their ecclesiastical rites, in all the daily occurrences of life, as an infallible preservative against every species of spiritual or temporal evil.⁶³⁸ The authority of the church might alone have had sufficient weight to justify the devotion of Constantine, who, in the same prudent and gradual progress, acknowledged the truth, and assumed the symbol, of Christianity. But the testimony of a contemporary writer, who in a former treatise has avenged the cause of religion, bestows on the piety of the emperor a more awful and sublime character. He affirms, with the most perfect confidence, that, in the night which preceded the last battle against Maxentius, Constantine was admonished in a dream

infirm. Latinitat. sub voce Labarum, and Godefroy, ad Cod. Theodos. tom. ii. p. 143.

⁶³³Euseb. in Vit. Constant. l. i. c. 30, 31. Baronius (Annal. Eccles. ad 312, No. 26) has engraved a representation of the Labarum.

⁶³⁴Transversâ X literâ, summo capite circumflexo, Christum in scutis notat. Cæcilius de M. P. c. 44. Cuper (ad M. P. in edit. Lactant. tom. ii. p. 500) and Baronius (ad 312, No. 25) have engraved from ancient monuments several specimens (as thus P or P) of these monograms, which became extremely fashionable in the Christian world.

⁶³⁵Euseb. in Vit. Constantin. l. ii. c. 7, 8, 9. He introduces the Labarum before the Italian expedition; but his narrative seems to indicate that it was never shewn at the head of an army, till Constantine, above ten years afterwards, declared himself the enemy of Licinius and the deliverer of the church.

⁶³⁶See Cod. Theod. l. vi. tit. xxv. Sozomen, l. i. c. 2. Theophan. Chronogr. p. 11. Theophanes lived towards the end of the eighth century, almost five hundred years after Constantine. The modern Greeks were not inclined to display in the field the standard of the empire and of Christianity; and, though they depended on every superstitious hope of defence, the promise of victory would have appeared too bold a fiction.

⁶³⁷The Abbé du Voisin, p. 103, &c., alleges several of these medals, and quotes a particular dissertation of a Jesuit, the Père de Grainville, on this subject.

⁶³⁸Tertullian de Corona, c. 3. Athanasius, tom. i. p. 101. The learned Jesuit Petavius (Dogmata Theolog. l. xv. c. 9, 10) has collected many similar passages on the virtues of the cross, which in the last age embarrassed our Protestant disputants.

to inscribe the shields of his soldiers with the celestial sign of God, the sacred monogram of the name of Christ; that he executed the commands of heaven; and that his valour and obedience were rewarded by the decisive victory of the Milvian Bridge. Some considerations might perhaps incline a sceptical mind to suspect the judgment or the veracity of the rhetorician, whose pen, either from zeal or interest, was devoted to the cause of the prevailing faction.⁶³⁹ He appears to have published Edition: current; Page: [297] his deaths of the persecutors at Nicomedia about three years after the Roman victory; but the interval of a thousand miles, and a thousand days, will allow an ample latitude for the invention of declaimers, the credulity of party, and the tacit approbation of the emperor himself; who might listen without indignation to a marvellous tale, which exalted his fame and promoted his designs. In favour of Licinius, who still dissembled his animosity to the Christians, the same author has provided a similar vision, of a form of prayer, which was communicated by an angel, and repeated by the whole army before they engaged the legions of the tyrant Maximin. The frequent repetition of miracles serves to provoke, where it does not subdue, the reason of mankind;⁶⁴⁰ but, if the dream of Constantine is separately considered, it may be naturally explained either by the policy or the enthusiasm of the emperor. Whilst his anxiety for the approaching day, which must decide the fate of the empire, was suspended by a short and interrupted slumber, the venerable form of Christ, and the well-known symbol of his religion, might forcibly offer themselves to the active fancy of a prince who revered the name, and had perhaps secretly implored the power, of the God of the Christians. As Edition: current; Page: [298] readily might a consummate statesman indulge himself in the use of one of those military stratagems, one of those pious frauds, which Philip and Sertorius had employed with such art and effect.⁶⁴¹ The preternatural origin of dreams was universally admitted by the nations of antiquity, and a considerable part of the Gallic army was already prepared to place their confidence in the salutary sign of the Christian religion. The secret vision of Constantine could be disproved only by the event; and the intrepid hero who had passed the Alps and the Apennine might view with careless despair the consequences of a defeat under the walls of Rome. The senate and people, exulting in their own deliverance from an odious tyrant, acknowledged that the victory of Constantine surpassed the powers of man, without daring to insinuate that it had been obtained by the protection of the Gods. The triumphal arch which was erected about three years after the event proclaims, in ambiguous language, that, by the greatness of his own mind and by an instinct

⁶³⁹Cæcilius, de M. P. c. 44. It is certain that this historical declamation was composed and published while Licinius, sovereign of the East, still preserved the friendship of Constantine and of the Christians. Every reader of taste must perceive that the style is of a very different and inferior character to that of Lactantius; and such indeed is the judgment of Le Clerc and Lardner (*Bibliothèque Ancienne et Moderne*, tom. iii. p. 438. *Credibility of the Gospel, &c.*, part ii. vol. vii. p. 94). Three arguments from the title of the book, and from the names of Donatus and Cæcilius, are produced by the advocates for Lactantius (see the *P. Lestocq*, tom. ii. p. 46-60). Each of these proofs is singly weak and defective; but their concurrence has great weight. I have often fluctuated, and shall tamely follow the Colbert MS. in calling the author (whoever he was) Cæcilius. [See vol. ii. Appendix 10.]

⁶⁴⁰Cæcilius, de M. P. c. 46. There seems to be some reason in the observation of M. de Voltaire (*Oeuvres*, t. xiv. p. 307), who ascribes to the success of Constantine the superior fame of his Labarum above the angel of Licinius. Yet even this angel is favourably entertained by Pagi, Tillemont, Fleury, &c., who are fond of increasing their stock of miracles.

⁶⁴¹Besides these well-known examples, Tollius (Preface to Boileau[*Hebrew*]'s translation of Longinus) has discovered a vision of Antigonus, who assured his troops that he had seen a pentagon (the symbol of safety) with these words, [*Hebrew*]In this conquer.[*Hebrew*] But Tollius has most inexcusably omitted to produce his authority; and his own character, literary as well as moral, is not free from reproach (see *Chaufepié*, *Dictionnaire Critique*, t. iv. p. 460). Without insisting on the silence of Diodorus, Plutarch, Justin, &c., it may be observed that Polyænus, who in a separate chapter (l. iv. c. 6) has collected nineteen military stratagems of Antigonus, is totally ignorant of this remarkable vision.

or impulse of the Divinity, he had saved and avenged the Roman republic.⁶⁴² The Pagan orator, who had seized an earlier opportunity of celebrating the virtues of the conqueror, supposes that he alone enjoyed a secret and intimate commerce with the Supreme Being, who delegated the care of mortals to his subordinate deities; and thus assigns Edition: current; Page: [299] a very plausible reason why the subjects of Constantine should not presume to embrace the new religion of their sovereign.⁶⁴³

III. The philosopher, who with calm suspicion examines the dreams and omens, the miracles and prodigies, of profane or even of ecclesiastical history, will probably conclude that, if the eyes of the spectators have sometimes been deceived by fraud, the understanding of the readers has much more frequently been insulted by fiction. Every event, or appearance, or accident, which seems to deviate from the ordinary course of nature, has been rashly ascribed to the immediate action of the Deity; and the astonished fancy of the multitude has sometimes given shape and colour, language and motion, to the fleeting but uncommon meteors of the air.⁶⁴⁴ Nazarius and Eusebius are the two most celebrated orators who, in studied panegyrics, have laboured to exalt the glory of Constantine. Nine years after the Roman victory, Nazarius⁶⁴⁵ describes an army of divine warriors, who seemed to fall from the sky: he marks their beauty, their spirit, their gigantic forms, the stream of light which beamed from their celestial armour, their patience in suffering themselves to be heard, as well as seen, by mortals; and their declaration that they were sent, that they flew, to the assistance of the great Constantine. For the truth of this prodigy, the Pagan orator appeals to the whole Gallic nation, in whose presence he was then speaking; and seems to hope that the ancient apparitions⁶⁴⁶ would now obtain credit from this recent and public event. Edition: current; Page: [300] The Christian fable of Eusebius, which in the space of twenty-six years might arise from the original dream, is cast in a much more correct and elegant mould. In one of the marches of Constantine, he is reported to have seen with his own eyes the luminous trophy of the cross, placed above the meridian sun,^{47a} and inscribed with the following words: By this conquer. This amazing object in the sky astonished the whole army, as well as the emperor himself, who was yet undetermined in the choice of a religion; but his astonishment was converted into faith by the vision of the ensuing night. Christ appeared before his eyes; and, displaying the same celestial sign of the cross, he directed Constantine to frame a similar standard, and to march, with an assurance of victory, against Maxentius and all his enemies.⁶⁴⁷ The learned bishop of Cæsarea appears to be sensible that the recent discovery of this marvellous anecdote would excite some surprise and distrust among the most pious of his readers. Yet instead of ascertaining the precise circumstances

⁶⁴²*Instinctu Divinitatis, mentis magnitudine.* [Seeck thinks this an allusion to the dream.] The inscription on the triumphal arch of Constantine, which has been copied by Baronius, Gruter, &c., may still be perused by every curious traveller.

⁶⁴³*Habes profecto aliquid cum illâ mente Divinâ secretum; quæ delegatâ nostrâ Diis Minoribus curâ uni se tibi dignatur ostendere.* Panegy. Vet. ix. 2.

⁶⁴⁴M. Freret (*Mémoires de l'Académie des Inscriptions*, t. iv. p. 411-437) explains, by physical causes, many of the prodigies of antiquity; and Fabricius, who is abused by both parties, vainly tries to introduce the celestial cross of Constantine among the solar halos. *Bibliothec. Græc.* tom. vi. p. 8-29.

⁶⁴⁵Nazarius *inter Panegy.* Vet. x. 14, 15. It is unnecessary to name the moderns, whose undistinguishing and ravenous appetite has swallowed even the Pagan bait of Nazarius.

⁶⁴⁶The apparitions of Castor and Pollux, particularly to announce the Macedonian victory, are attested by historians and public monuments. See Cicero *de Naturâ Deorum*, ii. 2, iii. 5, 6, Florus, ii. 12. Valerius Maximus, l. i. c. 8, No. 1. Yet the most recent of these miracles is omitted, and indirectly denied, by Livy (xlv. 1).

⁶⁴⁷Eusebius, l. i. c. 28, 29, 30. The silence of the same Eusebius, in his *Ecclesiastical History*, is deeply felt by those advocates for the miracle who are not absolutely callous.

of time and place, which always serve to detect falsehood or establish truth;⁶⁴⁸ instead of collecting and recording the evidence of so many living witnesses, who must have been spectators of this stupendous Edition: current; Page: [301] miracle;⁶⁴⁹ Eusebius contents himself with alleging a very singular testimony; that of the deceased Constantine, who, many years after the event, in the freedom of conversation, had related to him this extraordinary incident of his own life, and had attested the truth of it by a solemn oath. The prudence and gratitude of the learned prelate forbade him to suspect the veracity of his victorious master; but he plainly intimates that, in a fact of such a nature, he should have refused his assent to any meaner authority. This motive of credibility could not survive the power of the Flavian family; and the celestial sign, which the Infidels might afterwards deride,⁶⁵⁰ was disregarded by the Christians of the age which immediately followed the conversion of Constantine.⁶⁵¹ But the Catholic church, both of the East and of the West, has adopted a prodigy, which favours, or seems to favour, the popular worship of the cross. The vision of Constantine maintained an honourable place in the legend of superstition, till the bold and sagacious spirit of criticism presumed to depreciate the triumph, and to arraign the truth, of the first Christian emperor.⁶⁵²

The protestant and philosophic readers of the present age will incline to believe that, in the account of his own conversion, Constantine attested a wilful falsehood by a solemn Edition: current; Page: [302] and deliberate perjury. They may not hesitate to pronounce that, in the choice of a religion, his mind was determined only by a sense of interest; and that (according to the expression of a profane poet⁶⁵³) he used the altars of the church as a convenient footstool to the

⁶⁴⁸The narrative of Constantine seems to indicate that he saw the cross in the sky before he passed the Alps against Maxentius. The scene has been fixed by provincial vanity at Treves, Besançon, &c. See Tillemont, *Hist. des Empereurs*, tom. iv. p. 573.

⁶⁴⁹The pious Tillemont (*Mém. Ecclés.* tom. vii. p. 1317) rejects with a sigh the useful Acts of Artemius, a veteran and a martyr, who attests as an eyewitness the vision of Constantine. [*Acta Sanctorum*, Oct. 20; cp. *App.* 10.]

⁶⁵⁰Gelasius Cyzic. in *Act. Concil. Nicen.* l. i. c. 4.

⁶⁵¹The advocates for the vision are unable to produce a single testimony from the Fathers of the fourth and fifth centuries, who, in their voluminous writings, repeatedly celebrate the triumph of the church and of Constantine. As these venerable men had not any dislike to a miracle, we may suspect (and the suspicion is confirmed by the ignorance of Jerom) that they were all unacquainted with the life of Constantine by Eusebius. This tract was recovered by the diligence of those who translated or continued his Ecclesiastical History, and who have represented in various colours the vision of the cross.

⁶⁵²Godefroy was the first who, in the year 1643 (*Not. ad Philostorgium*, l. i. c. 6, p. 16), expressed any doubt of a miracle which had been supported with equal zeal by Cardinal Baronius and the Centuriators of Magdeburg. Since that time, many of the Protestant critics have inclined towards doubt and disbelief. The objections are urged, with great force, by M. Chauffepié (*Dictionnaire Critique*, tom. iv. p. 6-11), and, in the year 1774, a doctor of Sorbonne, the Abbé du Voisin, published an Apology, which deserves the praise of learning and moderation.

⁶⁵³Lors Constantin dit ces propres paroles:

J[*Hebrew*]'ai renversé le culte des idoles;
 Sur les débris de leurs temples fumans
 Au Dieu du Ciel j[*Hebrew*]'ai prodigué l[*Hebrew*]'encens.
 Mais tous mes soins pour sa grandeur suprême
 N[*Hebrew*]'eurent jamais d[*Hebrew*]'autre objet que moi-même;
 Les saints autels n[*Hebrew*]'étoient à mes regards
 Qu[*Hebrew*]'un marchepié du trône des Césars.
 L[*Hebrew*]'ambition, la fureur, les délices
 Etoient mes Dieux, avoient mes sacrifices.
 L[*Hebrew*]'or des Chrétiens, leurs intrigues, leur sang
 Ont cimenté ma fortune et mon rang.

The poem which contains these lines may be read with pleasure, but cannot be named with decency.

throne of the empire. A conclusion so harsh and so absolute is not, however, warranted by our knowledge of human nature, of Constantine, or of Christianity. In an age of religious fervour, the most artful statesmen are observed to feel some part of the enthusiasm which they inspire; and the most orthodox saints assume the dangerous privilege of defending the cause of truth by the arms of deceit and falsehood. Personal interest is often the standard of our belief, as well as of our practice; and the same motives of temporal advantage which might influence the public conduct and professions of Constantine would insensibly dispose his mind to embrace a religion so propitious to his fame and fortunes. His vanity was gratified by the flattering assurance that he had been chosen by Heaven to reign over the earth; success had justified his divine title to the throne, and that title was founded on the truth of the Christian revelation. As real virtue is sometimes excited by undeserved applause, the specious piety of Constantine, if at first it was only specious, might gradually, by the influence of praise, of habit, and of Edition: current; Page: [303] example, be matured into serious faith and fervent devotion. The bishops and teachers of the new sect, whose dress and manners had not qualified them for the residence of a court, were admitted to the Imperial table; they accompanied the monarch in his expeditions; and the ascendant which one of them, an Egyptian or a Spaniard,⁶⁵⁴ acquired over his mind was imputed by the Pagans to the effect of magic.⁶⁵⁵ Lactantius, who has adorned the precepts of the gospel with the eloquence of Cicero,⁶⁵⁶ and Eusebius, who has consecrated the learning and philosophy of the Greeks to the service of religion,⁶⁵⁷ were both received into the friendship and familiarity of their sovereign: and those able masters of controversy could patiently watch the soft and yielding moments of persuasion, and dexterously apply the arguments which were the best adapted to his character and understanding. Whatever advantages might be derived from the acquisition of an Imperial proselyte, he was distinguished by the splendour of his purple, rather than by the superiority of wisdom or virtue, from the many thousands of his subjects who had embraced the doctrines of Christianity. Nor can it be deemed incredible that the mind of an unlettered Edition: current; Page: [304] soldier should have yielded to the weight of evidence, which, in a more enlightened age, has satisfied or subdued the reason of a Grotius, a Pascal, or a Locke. In the midst of the incessant labours of his great office, this soldier employed, or affected to employ, the hours of the night in the diligent study of the Scriptures and the composition of theological discourses; which he afterwards pronounced in the presence of a numerous and applauding audience. In a very long discourse, which is still extant, the royal preacher expatiates on the various proofs of religion; but he dwells with peculiar complacency on the Sibylline verses,⁶⁵⁸ and the fourth eclogue of Virgil.⁶⁵⁹ Forty

⁶⁵⁴This favourite was probably the great Osius, bishop of Cordova, who preferred the pastoral care of the whole church to the government of a particular diocese. His character is magnificently, though concisely, expressed by Athanasius (tom. i. p. 703). See Tillemont, *Mém. Ecclés.* tom. vii. p. 524-561. Osius was accused, perhaps unjustly, of retiring from court with a very ample fortune.

⁶⁵⁵See Eusebius (in *Vit. Constant.* passim), and Zosimus, l. ii. p. 104 [c. 29].

⁶⁵⁶The Christianity of Lactantius was of a moral rather than of a mysterious cast. [*Hebrew*] *Erat pæne rudis* (says the orthodox Bull) *disciplinæ Christianæ, et in rhetoricâ melius quam in theologiâ versatus.* [*Hebrew*] "Defensio Fidei Nicenæ, sect. ii. c. 14.

⁶⁵⁷Fabricius, with his usual diligence, has collected a list of between three and four hundred authors quoted in the Evangelical Preparation of Eusebius. See *Bibliothec. Græc.* l. v. c. 4, tom. vi. p. 37-56.

⁶⁵⁸See *Constantin. Orat. ad Sanctos*, c. 19, 20. He chiefly depends on a mysterious acrostic, composed in the sixth age after the Deluge by the Erythræan Sibyl, and translated by Cicero into Latin. The initial letters of the thirty-four Greek verses form this prophetic sentence: Jesus Christ, Son of God, Saviour of the World.

⁶⁵⁹In his paraphrase of Virgil, the emperor has frequently assisted and improved the literal sense of the Latin text. See Blondel des Sybilles, l. i. c. 14, 15, 16.

years before the birth of Christ, the Mantuan bard, as if inspired by the celestial muse of Isaiah, had celebrated, with all the pomp of oriental metaphor, the return of the Virgin, the fall of the serpent, the approaching birth of a god-like child, the offspring of the great Jupiter, who should expiate the guilt of human kind, and govern the peaceful universe with the virtues of his father; the rise and appearance of an heavenly race, a primitive nation throughout the world: and the gradual restoration of the innocence and felicity of the golden age. The poet was perhaps unconscious of the secret sense and object of these sublime predictions, which have been so unworthily applied to the infant son of a consul or a triumvir:⁶⁶⁰ but, if a more splendid, and indeed specious, interpretation of the fourth eclogue contributed to the conversion of the Edition: current; Page: [305] first Christian emperor, Virgil may deserve to be ranked among the most successful missionaries of the gospel.⁶⁶¹

The awful mysteries of the Christian faith and worship were concealed from the eyes of strangers, and even of catechumens, with an affected secrecy, which served to excite their wonder and curiosity.⁶⁶² But the severe rules of discipline which the prudence of the bishops had instituted were relaxed by the same prudence in favour of an Imperial proselyte, whom it was so important to allure, by every gentle condescension, into the pale of the church; and Constantine was permitted, at least by a tacit dispensation, to enjoy most of the privileges, before he had contracted any of the obligations, of a Christian. Instead of retiring from the congregation when the voice of the deacon dismissed the profane multitude, he prayed with the faithful, disputed with the bishops, preached on the most sublime and intricate subjects of theology, celebrated with sacred rites the vigil of Easter, and publicly declared himself, not only a partaker, but in some measure a priest and hierophant, of the Christian mysteries.⁶⁶³ The pride of Constantine might assume, and his services had deserved, some extraordinary distinction: an ill-timed rigour might have blasted the unripened fruits of his conversion; and, if the doors of the church had been strictly closed against a prince who had deserted the altars of the gods, the master of the empire would have been left Edition: current; Page: [306] destitute of any form of religious worship. In his last visit to Rome, he piously disclaimed and insulted the superstition of his ancestors by refusing to lead the military procession of the equestrian order and to offer the public vows to the Jupiter of the Capitoline Hill.⁶⁶⁴ Many years before his baptism and death, Constantine had proclaimed to the world that neither his person nor his image should ever more be seen within the walls of an idolatrous temple; while he distributed through the provinces a variety of medals and pictures, which represented the emperor in an humble and suppliant posture of Christian devotion.⁶⁶⁵

The pride of Constantine, who refused the privileges of a catechumen, cannot easily be explained or excused; but the delay of his baptism may be justified by the maxims and the practice of

⁶⁶⁰The different claims of an elder and younger son of Pollio, of Julia, of Drusus, of Marcellus, are found to be incompatible with chronology, history, and the good sense of Virgil.

⁶⁶¹See Lowth de Sacra Poesi Hebræorum Prælect. xxi. p. 289-293. In the examination of the fourth eclogue, the respectable bishop of London has displayed learning, taste, ingenuity, and a temperate enthusiasm, which exalts his fancy without degrading his judgment.

⁶⁶²The distinction between the public and the secret parts of divine service, the missa calechumenorum, and the missa fidelium, and the mysterious veil which piety or policy had cast over the latter, are very judiciously explained by Thiers, Exposition du Saint Sacrement, l. i. c. 8-12, p. 59-91; but as, on this subject, the Papists may reasonably be suspected, a Protestant reader will depend with more confidence on the learned Bingham, Antiquities, l. x. c. 5.

⁶⁶³See Eusebius in Vit. Const. l. iv. c. 15-32, and the whole tenor of Constantine[Hebrew]'s Sermon. The faith and devotion of the emperor have furnished Baronius with a specious argument in favour of his early baptism.

⁶⁶⁴Zosimus, l. ii. p. 105 [29, ad fin.].

⁶⁶⁵Eusebius in Vit. Constant. l. iv. c. 15, 16.

ecclesiastical antiquity. The sacrament of baptism⁶⁶⁶ was regularly administered by the bishop himself, with his assistant clergy, in the cathedral church of the diocese, during the fifty days between the solemn festivals of Easter and Pentecost; and this holy term admitted a numerous band of infants and adult persons into the bosom of the church. The discretion of parents often suspended the baptism of their children till they could understand the obligations which they contracted; the severity of ancient bishops exacted from the new converts a noviciate of two or three years; and the catechumens themselves, from different motives of a temporal or a spiritual nature, were seldom impatient to assume the character of perfect and initiated Christians. The sacrament of baptism was supposed to Edition: current; Page: [none] Edition: current; Page: [307] contain a full and absolute expiation of sin; and the soul was instantly restored to its original purity, and entitled to the promise of eternal salvation. Among the proselytes of Christianity, there were many who judged it imprudent to precipitate a salutary rite, which could not be repeated; to throw away an inestimable privilege, which could never be recovered. By the delay of their baptism, they could venture freely to indulge their passions in the enjoyments of this world, while they still retained in their own hands the means of a sure and easy absolution.⁶⁶⁷ The sublime theory of the gospel had made a much fainter impression on the heart than on the understanding of Constantine himself. He pursued the great object of his ambition through the dark and bloody paths of war and policy; and, after the victory, he abandoned himself, without moderation, to the abuse of his fortune. Instead of asserting his just superiority above the imperfect heroism and profane philosophy of Trajan and the Antonines, the mature age of Constantine forfeited the reputation which he had acquired in his youth. As he gradually advanced in the knowledge of truth, he proportionably declined in the practice of virtue; and the same year of his reign in which he convened the council of Nice was polluted by the execution, or rather murder, of his eldest son. This date is alone sufficient to refute the ignorant and malicious suggestions of Zosimus,⁶⁶⁸ Edition: current; Page: [308] who affirms that, after the death of Crispus, the remorse of his father accepted from the ministers of Christianity the expiation which he had vainly solicited from the Pagan Pontiffs. At the time of the death of Crispus, the emperor could no longer hesitate in the choice of a religion; he could no longer be ignorant that the church was possessed of an infallible remedy, though he chose to defer the application of it, till the approach of death had removed the temptation and danger of a relapse. The bishops, whom he summoned in his last illness to the palace of Nicomedia, were edified by the fervour with which he requested and received the sacrament of baptism, by the

⁶⁶⁶The theory and practice of antiquity with regard to the sacrament of baptism have been copiously explained by Dom. Chardon, *Hist. des Sacremens*, tom. i. p. 3-405; Dom. Martenne, *de Ritibus Ecclesiæ Antiquis*, tom. i.; and by Bingham, in the tenth and eleventh books of his *Christian Antiquities*. One circumstance may be observed, in which the modern churches have materially departed from the ancient custom. The sacrament of baptism (even when it was administered to infants) was immediately followed by confirmation and the holy communion.

⁶⁶⁷The fathers, who censured this criminal delay, could not deny the certain and victorious efficacy even of a deathbed baptism. The ingenious rhetoric of Chrysostom could find only three arguments against these prudent Christians. 1. That we should love and pursue virtue for her own sake, and not merely for the reward. 2. That we may be surprised by death without an opportunity of baptism. 3. That, although we shall be placed in heaven, we shall only twinkle like little stars, when compared to the suns of righteousness who have run their appointed course with labour, with success, and with glory. Chrysostom in *Epist. ad Hebræos Homil. xiii.* apud Chardon. *Hist. des Sacremens*, tom. i. p. 49. I believe that this delay of baptism, though attended with the most pernicious consequences, was never condemned by any general or provincial council, or by any public act or declaration of the church. The zeal of the bishops was easily kindled on much slighter occasions.

⁶⁶⁸Zosimus, l. ii. p. 104 [c. 29]. For this disingenuous falsehood he has deserved and experienced the harshest treatment from all the ecclesiastical writers, except Cardinal Baronius (ad 324, No. 15-28), who had occasion to employ the Infidel on a particular service against the Arian Eusebius.

solemn protestation that the remainder of his life should be worthy of a disciple of Christ, and by his humble refusal to wear the Imperial purple after he had been clothed in the white garment of a neophyte. The example and reputation of Constantine seemed to countenance the delay of baptism.⁶⁶⁹ Future tyrants were encouraged to believe that the innocent blood which they might shed in a long reign would instantly be washed away in the waters of regeneration; and the abuse of religion dangerously undermined the foundations of moral virtue.

Constantine's coronation at Rome. From a painting by Raphael, in the Vatican.

The gratitude of the church has exalted the virtues and excused the failings of a generous patron, who seated Christianity on the throne of the Roman world; and the Greeks, who celebrate the festival of the Imperial saint, seldom mention the name of Constantine without adding the title of equal to the Apostles.⁶⁷⁰ Such a comparison, if it allude to the character of those divine missionaries, must be imputed Edition: current; Page: [309] to the extravagance of impious flattery. But, if the parallel is confined to the extent and number of their evangelic victories, the success of Constantine might perhaps equal that of the Apostles themselves. By the edicts of toleration he removed the temporal disadvantages which had hitherto retarded the progress of Christianity; and its active and numerous ministers received a free permission, a liberal encouragement, to recommend the salutary truths of revelation by every argument which could affect the reason or piety of mankind. The exact balance of the two religions continued but a moment; and the piercing eye of ambition and avarice soon discovered that the profession of Christianity might contribute to the interest of the present, as well as of a future, life.⁶⁷¹ The hopes of wealth and honours, the example of an emperor, his exhortations, his irresistible smiles, diffused conviction among the venal and obsequious crowds which usually fill the apartments of a palace. The cities which signalised a forward zeal by the voluntary destruction of their temples were distinguished by municipal privileges, and rewarded with popular donatives; and the new capital of the East gloried in the singular advantage that Constantinople was never profaned by the worship of idols.⁶⁷² As the lower ranks of society are governed by imitation, the conversion of those who possessed any eminence of birth, of power, or of riches, was soon followed by dependent multitudes.⁶⁷³ The salvation of the common people was purchased at an easy rate, if it be true that, in Edition: current; Page: [310] one year, twelve thousand men were baptized at Rome, besides a proportionable number of women and children; and that a white garment, with twenty pieces of gold, had been promised by the emperor to every convert.⁶⁷⁴ The powerful influence of Constantine was not circumscribed by the narrow limits of

⁶⁶⁹Eusebius, l. iv. c. 61, 62, 63. The bishop of Cæsarea supposes the salvation of Constantine with the most perfect confidence.

⁶⁷⁰See Tillemont, *Hist. des Empereurs*, tom. iv. p. 429. The Greeks, the Russians, and, in the darker ages, the Latins themselves have been desirous of placing Constantine in the catalogue of saints.

⁶⁷¹See the third and fourth books of his life. He was accustomed to say that, whether Christ was preached in pretence or in truth, he should still rejoice (l. iii. c. 58).

⁶⁷²M. de Tillemont (*Hist. des Empereurs*, tom. iv. p. 374, 616) has defended, with strength and spirit, the virgin purity of Constantinople against some malevolent insinuations of the Pagan Zosimus.

⁶⁷³The author of the *Histoire Politique et Philosophique des deux Indes* (tom. i. p. 9) condemns a law of Constantine, which gave freedom to all the slaves who should embrace Christianity. The emperor did indeed publish a law which restrained the Jews from circumcising, perhaps from keeping, any Christian slaves (see Euseb. in *Vit. Constant.* l. iv. c. 27 and *Cod. Theod.* l. xvi. tit. ix. with Godefroy [*Hebrew*]'s *Commentary*, tom. vi. p. 247). But this imperfect exception related only to the Jews; and the great body of slaves, who were the property of Christian or Pagan masters, could not improve their temporal condition by changing their religion. I am ignorant by what guides the Abbé Raynal was deceived; as the total absence of quotations is the unpardonable blemish of his entertaining history.

⁶⁷⁴See *Acta Sti Silvestri*, and *Hist. Eccles. Nicephor. Callist.* l. vii. c. 34, ap. Baronium *Annal. Eccles.* ad 324. No. 67,

his life, or of his dominions. The education which he bestowed on his sons and nephews secured to the empire a race of princes whose faith was still more lively and sincere, as they imbibed, in their earliest infancy, the spirit, or at least the doctrine, of Christianity. War and commerce had spread the knowledge of the gospel beyond the confines of the Roman provinces; and the Barbarians, who had disdained an humble and proscribed sect, soon learned to esteem a religion which had been so lately embraced by the greatest monarch and the most civilised nation of the globe.⁶⁷⁵ The Goths and Germans who enlisted under the standard of Rome revered the cross which glittered at the head of the legions, and their fierce countrymen Edition: current; Page: [311] received at the same time the lessons of faith and of humanity. The kings of Iberia and Armenia worshipped the God of their protector; and their subjects, who have invariably preserved the name of Christians, soon formed a sacred and perpetual connection with their Roman brethren. The Christians of Persia were suspected, in time of war, of preferring their religion to their country; but, as long as peace subsisted between the two empires, the persecuting spirit of the Magi was effectually restrained by the interposition of Constantine.⁶⁷⁶ The rays of the gospel illuminated the coast of India. The colonies of Jews, who had penetrated into Arabia and Æthiopia,⁶⁷⁷ opposed the progress of Christianity; but the labour of the missionaries was in some measure facilitated by a previous knowledge of the Mosaic revelation; and Abyssinia still reveres the memory of Frumentius, who, in the time of Constantine, devoted his life to the conversion of those sequestered regions. Under the reign of his son Constantius, Theophilus,⁶⁷⁸ who was himself of Indian extraction, was invested with the double character of ambassador and bishop. He embarked on the Red Sea with two hundred horses of the purest breed of Cappadocia, which were sent by the emperor to the prince of the Sabæans, or Homerites. Theophilus was entrusted with many other useful or curious presents, which might raise the admiration and conciliate the friendship of the Edition: current; Page: [312] Barbarians; and he successfully employed several years in a pastoral visit to the churches of the torrid zone.⁶⁷⁹

The irresistible power of the Roman emperors was displayed in the important and dangerous change of the national religion. The terrors of a military force silenced the faint and unsupported murmurs of the Pagans, and there was reason to expect that the cheerful submission of the Christian clergy, as well as people, would be the result of conscience and gratitude. It was long

74. Such evidence is contemptible enough; but these circumstances are in themselves so probable that the learned Dr. Howell (*History of the World*, vol. iii. p. 14) has not scrupled to adopt them.

⁶⁷⁵The conversion of the Barbarians under the reign of Constantine is celebrated by the ecclesiastical historians (see Sozomen, l. ii. c. 6, and Theodoret, l. i. c. 23, 24). But Rufinus, the Latin translator of Eusebius, deserves to be considered as an original authority. His information was curiously collected from one of the companions of the Apostle of Æthiopia, and from Bacurius, an Iberian prince, who was count of the domestics. Father Mamachi has given an ample compilation on the progress of Christianity, in the first and second volumes of his great but imperfect work. [Rufinus, at first a friend, afterwards an opponent, of Jerome, also translated some works of Origen.]

⁶⁷⁶See in Eusebius (in *Vit. Constant. l. ib. c. 9*) the pressing and pathetic epistle of Constantine in favour of his Christian brethren of Persia.

⁶⁷⁷See Basnage, *Hist. des Juifs*, tom. vii. p. 182, tom. viii. p. 333, tom. ix. p. 810. The curious diligence of this writer pursues the Jewish exiles to the extremities of the globe.

⁶⁷⁸Theophilus had been given in his infancy as a hostage by his countrymen of the isle of Diva, and was educated by the Romans in learning and piety. The Maldives, of which Male, or Diva, may be the capital, are a cluster of 1900 or 2000 minute islands in the Indian Ocean. The ancients were imperfectly acquainted with the Maldives; but they are described in the two Mahometan travellers of the ninth century, published by Renaudot, *Geograph. Nubiensis*, p. 30, 31. D[*Hebrew*]'Herbelot, *Bibliothèque Orientale*, p. 704. *Hist. Générale des Voyages*, tom. viii.

⁶⁷⁹Philostorgius, l. iii. c. 4, 5, 6, with Godefroy[*Hebrew*]'s learned observations. The historical narrative is soon lost in an inquiry concerning the seat of paradise, strange monsters, &c.

since established, as a fundamental maxim of the Roman constitution, that every rank of citizens were alike subject to the laws, and that the care of religion was the right as well as duty of the civil magistrate. Constantine and his successors could not easily persuade themselves that they had forfeited, by their conversion, any branch of the Imperial prerogatives, or that they were incapable of giving laws to a religion which they had protected and embraced. The emperors still continued to exercise a supreme jurisdiction over the ecclesiastical order; and the sixteenth book of the Theodosian Code represents, under a variety of titles, the authority which they assumed in the government of the Catholic church.

But the distinction of the spiritual and temporal powers,⁶⁸⁰ which had never been imposed on the free spirit of Greece and Rome, was introduced and confirmed by the legal establishment of Christianity. The office of supreme pontiff, which, from the time of Numa to that of Augustus, had always been exercised by one of the most eminent of the senators, was at length united to the Imperial dignity. The first magistrate of the state, as often as he was prompted by superstition Edition: current; Page: [313] or policy, performed with his own hands the sacerdotal functions;⁶⁸¹ nor was there any order of priests, either at Rome or in the provinces, who claimed a more sacred character among men, or a more intimate communication with the Gods. But in the Christian church, which entrusts the service of the altar to a perpetual succession of consecrated ministers, the monarch, whose spiritual rank is less honourable than that of the meanest deacon, was seated below the rails of the sanctuary, and confounded with the rest of the faithful multitude.⁶⁸² The emperor might be saluted as the father of his people, but he owed a filial duty and reverence to the fathers of the church; and the same marks of respect which Constantine had paid to the persons of saints and confessors were soon exacted by the pride of the episcopal order.⁶⁸³ A secret conflict between the civil and ecclesiastical jurisdictions embarrassed the operations of the Roman government; and a pious emperor was alarmed by the guilt and danger of touching with a profane hand the ark of the covenant. The separation of men into the two orders of the clergy and of the laity was, indeed, familiar to many nations of antiquity; and the priests of India, of Persia, of Edition: current; Page: [314] Assyria, of Judea, of Æthiopia, of Egypt, and of Gaul derived from a celestial origin the temporal power and possessions which they had acquired. These venerable institutions had gradually assimilated themselves to the manners and government of their respective countries;⁶⁸⁴ but the opposition or contempt of the civil power served to cement the discipline of the primitive

⁶⁸⁰See the epistle of Osius, ap. Athanasium, vol. i. p. 840. The public remonstrance which Osius was forced to address to the son contained the same principles of ecclesiastical and civil government which he had secretly instilled into the mind of the father.

⁶⁸¹M. de la Bastie (*Mémoires de l'Académie des Inscriptions*, tom. xv. p. 38-61) has evidently proved that Augustus and his successors exercised in person all the sacred functions of pontifex maximus, or high-priest of the Roman empire.

⁶⁸²Something of a contrary practice had insensibly prevailed in the church of Constantinople; but the rigid Ambrose commanded Theodosius to retire below the rails, and taught him to know the difference between a king and a priest. See Theodoret, l. v. c. 18.

⁶⁸³At the table of the emperor Maximus, Martin, bishop of Tours, received the cup from an attendant, and gave it to the presbyter, his companion, before he allowed the emperor to drink; the empress waited on Martin at table. Sulpicius Severus, in Vit. Sti Martin, c. 23, and Dialogue ii. 7. Yet it may be doubted, whether these extraordinary compliments were paid to the bishop or the saint. The honours usually granted to the former character may be seen in Bingham's *Antiquities*, l. ii. c. 9, and Vales. ad Theodoret, l. iv. c. 6. See the haughty ceremonial which Leontius, bishop of Tripoli, imposed on the empress. Tillemont, *Hist. des Empereurs*, tom. iv. p. 754. *Patres Apostol.* tom. ii. p. 179.

⁶⁸⁴Plutarch, in his treatise of Isis and Osiris, informs us that the kings of Egypt, who were not already priests, were initiated, after their election, into the sacerdotal order.

church. The Christians had been obliged to elect their own magistrates, to raise and distribute a peculiar revenue, and to regulate the internal policy of their republic by a code of laws, which were ratified by the consent of the people and the practice of three hundred years. When Constantine embraced the faith of the Christians, he seemed to contract a perpetual alliance with a distinct and independent society; and the privileges granted or confirmed by that emperor, or by his successors, were accepted, not as the precarious favours of the court, but as the just and unalienable rights of the ecclesiastical order.

The Catholic church was administered by the spiritual and legal jurisdiction of eighteen hundred bishops;⁶⁸⁵ of whom one thousand were seated in the Greek, and eight hundred in the Latin, provinces of the empire. The extent and boundaries of their respective dioceses had been variously and accidentally decided by the zeal and success of the first missionaries, by the wishes of the people, and by the propagation of the gospel. Episcopal churches were closely planted along the banks of the Nile, on the sea-coast of Africa, in the proconsular Asia, and through the southern provinces of Italy. The Edition: current; Page: [315] bishops of Gaul and Spain, of Thrace and Pontus, reigned over an ample territory, and delegated their rural suffragans to execute the subordinate duties of the pastoral office.⁶⁸⁶ A Christian diocese might be spread over a province or reduced to a village; but all the bishops possessed an equal and indelible character: they all derived the same powers and privileges from the apostles, from the people, and from the laws. While the civil and military professions were separated by the policy of Constantine, a new and perpetual order of ecclesiastical ministers, always respectable, sometimes dangerous, was established in the church and state. The important review of their station and attributes may be distributed under the following heads: I. Popular election. II. Ordination of the clergy. III. Property. IV. Civil jurisdiction. V. Spiritual censures. VI. Exercise of public oratory. VII. Privilege of legislative assemblies.

I. The freedom of elections subsisted long after the legal establishment of Christianity;⁶⁸⁷ and the subjects of Rome enjoyed in the church the privilege which they had lost in the republic, of choosing the magistrates whom they were bound to obey. As soon as a bishop had closed his eyes, the metropolitan issued a commission to one of his suffragans to administer the vacant see, and prepare, within a limited time, the future election. The right of voting was vested in the inferior clergy, who were best qualified to judge of the merit of the candidates; in the senators or nobles of the city, all those Edition: current; Page: [316] who were distinguished by their rank or property; and finally in the whole body of the people, who, on the appointed day, flocked in multitudes from the most remote parts of the diocese,⁶⁸⁸ and sometimes silenced, by their tumultuous acclamations,

⁶⁸⁵The numbers are not ascertained by any ancient writer, or original catalogue; for the partial lists of the Eastern churches are comparatively modern. The patient diligence of Charles a Sto Paolo, of Luke Holstenius, and of Bingham has laboriously investigated all the episcopal sees of the Catholic church, which was almost commensurate with the Roman empire. The ninth book of the Christian Antiquities is a very accurate map of ecclesiastical geography. [Cp. Append. 15.]

⁶⁸⁶On the subject of the rural bishops, or Chorepiscopi, who voted in synods, and conferred the minor orders, see Thomassin, *Discipline de l'Église*, tom. i. p. 447, &c., and Chardon, *Hist. des Sacrements*, tom. v. p. 395, &c. They do not appear till the fourth century; and this equivocal character, which had excited the jealousy of the prelates, was abolished before the end of the tenth both in the East and the West.

⁶⁸⁷Thomassin (*Discipline de l'Église*, tom. ii. l. ii. c. i.-8, p. 673-721) has copiously treated of the election of bishops during the five first centuries, both in the East and in the West; but he shews a very partial bias in favour of the episcopal aristocracy. Bingham (l. iv. c. 2) is moderate; and Chardon (*Hist. des Sacrements*, tom. v. p. 108-128) is very clear and concise.

⁶⁸⁸*Incredibilis multitudo, non solum ex eo oppido (Tours), sed etiam ex vicinis urbibus ad suffragia ferenda convenerat, &c.* Sulpicius Severus, in Vit. Martin. c. 7. The council of Laodicea (canon xiii.) prohibits mobs and tumults; and

the voice of reason and the laws of discipline. These acclamations might accidentally fix on the head of the most deserving competitor; of some ancient presbyter, some holy monk, or some layman, conspicuous for his zeal and piety. But the episcopal chair was solicited, especially in the great and opulent cities of the empire, as a temporal rather than as a spiritual dignity. The interested views, the selfish and angry passions, the arts of perfidy and dissimulation, the secret corruption, the open and even bloody violence, which had formerly disgraced the freedom of election in the commonwealths of Greece and Rome, too often influenced the choice of the successors of the apostles. While one of the candidates boasted the honours of his family, a second allured his judges by the delicacies of a plentiful table, and a third, more guilty than his rivals, offered to share the plunder of the church among the accomplices of his sacrilegious hopes.⁶⁸⁹ The civil as well as ecclesiastical laws attempted to exclude the populace from this solemn and important transaction. The canons of ancient discipline, by requiring several episcopal qualifications of age, station, &c., restrained in some measure the indiscriminate caprice of the electors. The authority of the provincial bishops, who were assembled in the vacant church to consecrate the choice of the people, was interposed to moderate their passions and to correct their mistakes. The bishops could refuse to ordain an unworthy Edition: current; Page: [317] candidate, and the rage of contending factions sometimes accepted their impartial mediation. The submission, or the resistance, of the clergy and people, on various occasions, afforded different precedents, which were insensibly converted into positive laws and provincial customs:⁶⁹⁰ but it was everywhere admitted, as a fundamental maxim of religious policy, that no bishop could be imposed on an orthodox church without the consent of its members. The emperors, as the guardians of the public peace, and as the first citizens of Rome and Constantinople, might effectually declare their wishes in the choice of a primate: but those absolute monarchs respected the freedom of ecclesiastical elections; and, while they distributed and resumed the honours of the state and army, they allowed eighteen hundred perpetual magistrates to receive their important offices from the free suffrages of the people.⁶⁹¹ It was agreeable to the dictates of justice, that these magistrates should not desert an honourable station from which they could not be removed; but the wisdom of councils endeavoured, without much success, to enforce the residence, and to prevent the translation, of bishops. The discipline of the West was indeed less relaxed than that of the East; but the same passions which made those regulations necessary rendered them ineffectual. The reproaches which angry prelates have so vehemently urged against each other serve only to expose their common guilt and their mutual indiscretion.

II. The bishops alone possessed the faculty of spiritual generation; and this extraordinary privilege might compensate, in some degree, for the painful celibacy⁶⁹² which was imposed Edition: current; Page: [318] as a virtue, as a duty, and at length as a positive obligation. The religions of

Justinian confines the right of election to the nobility. Novell. cxxiii. 1.

⁶⁸⁹The epistles of Sidonius Apollinaris (iv. 25, vii. 5, 9) exhibit some of the scandals of the Gallican church; and Gaul was less polished and less corrupt than the East.

⁶⁹⁰A compromise was sometimes introduced by law or by consent: either the bishops or the people chose one of the three candidates who had been named by the other party.

⁶⁹¹All the examples quoted by Thomassin (*Discipline de l'Église*, tom. ii. l. ii. c. 6, p. 704-714) appear to be extraordinary acts of power, and even of oppression. The confirmation of the bishop of Alexandria is mentioned by Philostorgius as a more regular proceeding (*Hist. Eccles.* l. ii. 11).

⁶⁹²The celibacy of the clergy during the first five or six centuries is a subject of discipline, and indeed of controversy, which has been very diligently examined. See in particular Thomassin, *Discipline de l'Église*, tom. i. l. ii. c. lx. lxi. p. 886-902, and Bingham's *Antiquities*, l. iv. c. 5. By each of these learned but partial critics, one half of the truth is produced, and the other is concealed.

antiquity, which established a separate order of priests, dedicated a holy race, a tribe or family, to the perpetual service of the Gods.⁶⁹³ Such institutions were founded for possession rather than conquest. The children of the priests enjoyed, with proud and indolent security, their sacred inheritance; and the fiery spirit of enthusiasm was abated by the cares, the pleasures, and the endearments of domestic life. But the Christian sanctuary was open to every ambitious candidate who aspired to its heavenly promises or temporal possessions. The office of priests, like that of soldiers or magistrates, was strenuously exercised by those men whose temper and abilities had prompted them to embrace the ecclesiastical profession, or who had been selected by a discerning bishop as the best qualified to promote the glory and interest of the church. The bishops⁶⁹⁴ (till the abuse was restrained by the prudence of the laws) might constrain the reluctant, and protect the distressed; and the imposition of hands for ever bestowed some of the most valuable privileges of civil society. The whole body of the Catholic clergy, more numerous perhaps Edition: current; Page: [319] than the legions, was exempted by the emperors from all service, private or public, all municipal offices, and all personal taxes and contributions which pressed on their fellow-citizens with intolerable weight; and the duties of their holy profession were accepted as a full discharge of their obligations to the republic.⁶⁹⁵ Each bishop acquired an absolute and indefeasible right to the perpetual obedience of the clerk whom he ordained: the clergy of each episcopal church, with its dependent parishes, formed a regular and permanent society; and the cathedrals of Constantinople⁶⁹⁶ and Carthage⁶⁹⁷ maintained their peculiar establishment of five hundred ecclesiastical ministers. Their ranks⁶⁹⁸ and numbers were insensibly multiplied by the superstition of the times, which introduced into the church the splendid ceremonies of a Jewish or Pagan temple; and a long train of priests, deacons, sub-deacons, acolytes, exorcists, readers, singers, and door-keepers contributed, in their respective stations, to swell the pomp and harmony of religious worship. The clerical name and privilege were extended to many pious fraternities, who devoutly supported the ecclesiastical throne.⁶⁹⁹ Six hundred parabolani, Edition: current;

⁶⁹³Diodorus Siculus attests and approves the hereditary succession of the priesthood among the Egyptians, the Chaldeans, and the Indians (l. i. p. 84 [c. 73], l. ii. p. 142, 153 [29, 40, and 41 ad fin.], edit. Wesseling). The Magi are described by Ammianus as a very numerous family: [*Hebrew*] *Per sæcula multa ad præsens unâ eâdemque prosapiâ multitudo creata, Deorum cultibus dedicata*[*Hebrew*]” (xxiii. 6). Ausonius celebrates the *Stirps Druidarum* (De Professorib. Burdigal. iv.); but we may infer from the remark of Cæsar (vi. 13), that, in the Celtic hierarchy, some room was left for choice and emulation.

⁶⁹⁴The subject of the vocation, ordination, obedience, &c., of the clergy, is laboriously discussed by Thomassin (*Discipline de l’Eglise*, tom. ii. p. 1-83) and Bingham (in the fourth book of his *Antiquities*, more especially the fourth, sixth, and seventh chapters). When the brother of St. Jerom was ordained in Cyprus, the deacons forcibly stopped his mouth, lest he should make a solemn protestation which might invalidate the holy rites.

⁶⁹⁵The charter of immunities which the clergy obtained from the Christian emperors is contained in the sixteenth book of the Theodosian Code; and is illustrated with tolerable candour by the learned Godefroy, whose mind was balanced by the opposite prejudices of a civilian and a protestant.

⁶⁹⁶Justinian. Novell. ciii. Sixty presbyters or priests, one hundred deacons, forty deaconesses, ninety sub-deacons, one hundred and ten readers, twenty-five chanters, and one hundred door-keepers; in all, five hundred and twenty-five. This moderate number was fixed by the emperor, to relieve the distress of the church, which had been involved in debt and usury by the expense of a much higher establishment.

⁶⁹⁷*Universus clerus ecclesiæ Carthaginiensis . . . fere quinginti vel amplius; inter quos quamplurimi erant lectores infantuli.* Victor Vitensis, de Persecut. Vandal, v. 9, p. 78, edit. Ruinart. This remnant of a more prosperous state subsisted under the oppression of the Vandals.

⁶⁹⁸The number of seven orders has been fixed in the Latin church, exclusive of the episcopal character. But the four inferior ranks, the minor orders, are now reduced to empty and useless titles.

⁶⁹⁹See Code. Theodos. l. xvi. tit. 2, leg. 42, 43. Godefroy[*Hebrew*]’s Commentary, and the Ecclesiastical History of Alexandria, shew the danger of these pious institutions, which often disturbed the peace of that turbulent capital.

Page: [320] or adventurers, visited the sick at Alexandria; eleven hundred *copiatæ*, or gravediggers, buried the dead at Constantinople; and the swarms of monks, who arose from the Nile, overspread and darkened the face of the Christian world.

III. The edict of Milan secured the revenue as well as the peace of the church.⁷⁰⁰ The Christians not only recovered the lands and houses of which they had been stripped by the persecuting laws of Diocletian, but they acquired a perfect title to all the possessions which they had hitherto enjoyed by the connivance of the magistrate. As soon as Christianity became the religion of the emperor and the empire, the national clergy might claim a decent and honourable maintenance: and the payment of an annual tax might have delivered the people from the more oppressive tribute which superstition imposes on her votaries. But, as the wants and expenses of the church increased with her prosperity, the ecclesiastical order was still supported and enriched by the voluntary oblations of the faithful. Eight years after the edict of Milan, Constantine granted to all his subjects the free and universal permission of bequeathing their fortunes to the holy Catholic church;⁷⁰¹ and their devout liberality, which during their lives was checked by luxury or avarice, flowed with a profuse stream at the hour of their death. The wealthy Christians were encouraged by the example of their sovereign. An absolute monarch, who is rich without patrimony, may be charitable without merit; and Constantine too easily Edition: current; Page: [321] believed that he should purchase the favour of Heaven, if he maintained the idle at the expense of the industrious, and distributed among the saints the wealth of the republic. The same messenger who carried over to Africa the head of Maxentius might be entrusted with an epistle to Cæcilian, bishop of Carthage. The emperor acquaints him that the treasurers of the province are directed to pay into his hands the sum of three thousand folles, or eighteen thousand pounds sterling, and to obey his farther requisitions for the relief of the churches of Africa, Numidia, and Mauritania.⁷⁰² The liberality of Constantine increased in a just proportion to his faith, and to his vices. He assigned in each city a regular allowance of corn, to supply the fund of ecclesiastical charity; and the persons of both sexes who embraced the monastic life became the peculiar favourites of their sovereign. The Christian temples of Antioch, Alexandria, Jerusalem, Constantinople, &c., displayed the ostentatious piety of a prince ambitious, in a declining age, to equal the perfect labours of antiquity.⁷⁰³ The form of these religious edifices was simple and oblong; though they might sometimes swell into the shape of a dome, and sometimes branch into the figure of a cross. The timbers were framed for the most part of cedars of Libanus; the roof was covered with tiles, perhaps of gilt brass; and the walls, the columns, the pavement, were incrustured with variegated marbles. The most precious ornaments of gold and silver, of silk and gems, were profusely dedicated to the service of the altar; and this specious magnificence was supported on the solid and perpetual basis of Edition: current; Page: [322] landed property. In the space of two centuries, from the reign of Constantine

⁷⁰⁰The edict of Milan (de M. P. c. 48) acknowledges, by reciting, that there existed a species of landed property, *ad jus corporis eorum, id est, ecclesiarum non hominum singulorum pertinentia*. Such a solemn declaration of the supreme magistrate must have been received in all the tribunals as a maxim of civil law. [Cp. above, p. 284, n. 15.]

⁷⁰¹*Habeat unusquisque licentiam sanctissimo Catholicæ (ecclesiæ) venerabilique concilio, decedens bonorum quod optavit relinquere*. Cod. Theodos. l. xvi. tit. ii. leg. 4. This law was published at Rome, ad 321, at a time when Constantine might foresee the probability of a rupture with the emperor of the East.

⁷⁰²Eusebius, Hist. Eccles. l. x. 6; in Vit. Constant. l. iv. c. 28. He repeatedly expatiates on the liberality of the Christian hero, which the bishop himself had an opportunity of knowing and even of tasting.

⁷⁰³Eusebius, Hist. Eccles. l. x. c. 2, 3, 4. The bishop of Cæsarea, who studied and gratified the taste of his master, pronounced in public an elaborate description of the church of Jerusalem (in Vit. Const. l. iv. c. 46). It no longer exists, but he has inserted in the life of Constantine (l. iii. c. 36) a short account of the architecture and ornaments. He likewise mentions the church of the holy Apostles at Constantinople (l. iv. c. 59).

to that of Justinian, the eighteen hundred churches of the empire were enriched by the frequent and unalienable gifts of the prince and people. An annual income of six hundred pounds sterling may be reasonably assigned to the bishops, who were placed at an equal distance between riches and poverty,⁷⁰⁴ but the standard of their wealth insensibly rose with the dignity and opulence of the cities which they governed. An authentic but imperfect⁷⁰⁵ rent roll specifies some houses, shops, gardens, and farms, which belonged to the three Basilicæ of Rome, St. Peter, St. Paul, and St. John Lateran, in the provinces of Italy, Africa, and the East. They produce, besides a reserved rent of oil, of linen, paper, aromatics, &c., a clear annual revenue of twenty-two thousand pieces of gold, or twelve thousand pounds sterling. In the age of Constantine and Justinian, the bishops no longer possessed, perhaps they no longer deserved, the unsuspecting confidence of their clergy and people. The ecclesiastical revenues of each diocese were divided into four parts: for the respective uses of the bishop himself, of his inferior clergy, of the poor, and of the public worship; and the abuse of this sacred trust was strictly and repeatedly checked.⁷⁰⁶ The patrimony of the church was Edition: current; Page: [323] still subject to all the public impositions of the state.⁷⁰⁷ The clergy of Rome, Alexandria, Thessalonica, &c., might solicit and obtain some partial exemptions; but the premature attempt of the great council of Rimini, which aspired to universal freedom, was successfully resisted by the son of Constantine.⁷⁰⁸

IV. The Latin clergy, who erected their tribunal on the ruins of the civil and common law, have modestly accepted as the gift of Constantine⁷⁰⁹ the independent jurisdiction which was the fruit of time, of accident, and of their own industry. But the liberality of the Christian emperors had actually endowed them with some legal prerogatives, which secured and dignified the sacerdotal character.⁷¹⁰ 1. Under Edition: current; Page: [324] a despotic government, the bishops alone

⁷⁰⁴See Justinian. Novell. cxxiii. 3. The revenue of the patriarchs, and the most wealthy bishops, is not expressed; the highest annual valuation of a bishopric is stated at thirty, and the lowest at two, pounds of gold; the medium might be taken at sixteen, but these valuations are much below the real value.

⁷⁰⁵See Baronius (Annal. Eccles. ad 324, No. 58, 65, 70, 71). Every record which comes from the Vatican is justly suspected; yet these rent-rolls have an ancient and authentic colour; and it is at least evident, that, if forged, they were forged in a period when farms, not kingdoms, were the objects of papal avarice.

⁷⁰⁶See Thomassin, Discipline de l'Église, tom. iii. l. ii. c. 13, 14, 15, p. 689-706. The legal division of the ecclesiastical revenue does not appear to have been established in the time of Ambrose and Chrysostom. Simplicius and Gelasius, who were bishops of Rome in the latter part of the fifth century, mention it in their pastoral letters as a general law, which was already confirmed by the custom of Italy.

⁷⁰⁷Ambrose, the most strenuous assertor of ecclesiastical privileges, submits without a murmur to the payment of the land-tax. [Hebrew] Si tributum petit Imperator, non negamus; agri ecclesiæ solvunt tributum; solvimus quæ sunt Cæsaris Cæsari, et quæ sunt Dei Deo: tributum Cæsaris est; non negatur. [Hebrew] Baronius labours to interpret this tribute as an act of charity rather than of duty (Annal. Eccles. ad 387); but the words, if not the intentions, of Ambrose, are more candidly explained by Thomassin, Discipline de l'Église, tom. iii. l. i. c. 34, p. 268.

⁷⁰⁸In Ariminense synodo super ecclesiarum et clericorum privilegiis tractatû habito, usque eo dispositio progressa est, ut juga quæ viderentur ad ecclesiam pertinere, a publicâ functione cessarent inquietudine desistente: quod nostra videtur dudum sanctio repulsiisse. Cod. Theod. l. xvi. tit. ii. leg. 15. Had the synod of Rimini carried this point, such practical merit might have atoned for some speculative heresies.

⁷⁰⁹From Eusebius (in Vit. Constant. l. iv. c. 27) and Sozomen (l. i. c. 9) we are assured that the episcopal jurisdiction was extended and confirmed by Constantine; but the forgery of a famous edict, which was never fairly inserted in the Theodosian Code (see at the end, tom. vi. p. 303), is demonstrated by Godefroy in the most satisfactory manner. It is strange that M. de Montesquieu, who was a lawyer as well as a philosopher, should allege this edict of Constantine (Esprit des Loix, l. xxix. c. 16) without intimating any suspicion.

⁷¹⁰The subject of ecclesiastical jurisdiction has been involved in a mist of passion, of prejudice, and of interest. Two of the fairest books which have fallen into my hands are the Institutes of Canon Law, by the Abbé de Fleury, and the Civil History of Naples, by Giannone. Their moderation was the effect of situation as well as of temper. Fleury was a French ecclesiastic, who respected the authority of the parliaments; Giannone was an Italian lawyer, who dreaded the power of

enjoyed and asserted the inestimable privilege of being tried only by their peers; and even in a capital accusation, a synod of their brethren were the sole judges of their guilt or innocence. Such a tribunal, unless it was inflamed by personal resentment or religious discord, might be favourable, or even partial, to the sacerdotal order: but Constantine was satisfied⁷¹¹ that secret impunity would be less pernicious than public scandal: and the Nicene council was edified by his public declaration that, if he surprised a bishop in the act of adultery, he should cast his Imperial mantle over the episcopal sinner. 2. The domestic jurisdiction of the bishops was at once a privilege and a restraint of the ecclesiastical order, whose civil causes were decently withdrawn from the cognizance of a secular judge. Their venial offences were not exposed to the shame of a public trial or punishment; and the gentle correction, which the tenderness of youth may endure from its parents or instructors, was inflicted by the temperate severity of the bishops. But, if the clergy were guilty of any crime which could not be sufficiently expiated by their degradation from an honourable and beneficial profession, the Roman magistrate drew the sword of justice without any regard to ecclesiastical immunities. 3. The arbitration of the bishops was ratified by a positive law; and the judges were instructed to execute, without appeal or delay, the episcopal decrees, whose validity had hitherto depended on the consent of the parties. The conversion of the magistrates themselves, and of the whole empire, might gradually remove the fears and scruples of the Christians. But they still resorted to the tribunal of the bishops, whose abilities and integrity they esteemed: and the venerable Austin enjoyed Edition: current; Page: [325] the satisfaction of complaining that his spiritual functions were perpetually interrupted by the invidious labour of deciding the claim or the possession of silver and gold, of lands and cattle. 4. The ancient privilege of sanctuary was transferred to the Christian temples, and extended, by the liberal piety of the younger Theodosius, to the precincts of consecrated ground.⁷¹² The fugitive, and even guilty, suppliants were permitted to implore either the justice or the mercy of the Deity and his ministers. The rash violence of despotism was suspended by the mild interposition of the church; and the lives or fortunes of the most eminent subjects might be protected by the mediation of the bishop.

V. The bishop was the perpetual censor of the morals of his people. The discipline of penance was digested into a system of canonical jurisprudence,⁷¹³ which accurately defined the duty of private or public confession, the rules of evidence, the degrees of guilt, and the measure of punishment. It was impossible to execute this spiritual censure, if the Christian pontiff, who punished the obscure sins of the multitude, respected the conspicuous vices and destructive crimes of the magistrate; but it was impossible to arraign the conduct of the magistrate without controlling the administration of civil government. Some considerations of religion, or loyalty, or fear, protected the sacred persons of the emperors from the zeal or resentment of the bishops; but they Edition:

the church. And here let me observe that, as the general propositions which I advance are the result of many particular and imperfect facts, I must either refer the reader to those modern authors who have expressly treated the subject or swell these notes to a disagreeable and disproportioned size.

⁷¹¹Tillemont has collected from Rufinus, Theodoret, &c., the sentiments and language of Constantine. *Mém. Ecclés.* t. iii. p. 749, 750.

⁷¹²See Cod. Theod. l. ix. tit. xlv. leg. 4. In the works of Fra Paolo (tom. iv. p. 192, &c.) there is an excellent discourse on the origin, claims, abuses, and limits of sanctuaries. He justly observes that ancient Greece might perhaps contain fifteen or twenty asyla or sanctuaries; a number which at present may be found in Italy within the walls of a single city.

⁷¹³The penitential jurisprudence was continually improved by the canons of the councils. But, as many cases were still left to the discretion of the bishops, they occasionally published, after the example of the Roman Prætor, the rules of discipline which they proposed to observe. Among the canonical epistles of the fourth century, those of Basil the Great were the most celebrated. They are inserted in the Pandects of Beveridge (tom. ii. p. 47-151), and are translated by Chardon, *Hist. des Sacremens*, tom. iv. p. 210-277.

current; Page: [326] boldly censured and excommunicated the subordinate tyrants who were not invested with the majesty of the purple. St. Athanasius excommunicated one of the ministers of Egypt; and the interdict which he pronounced, of fire and water, was solemnly transmitted to the churches of Cappadocia.⁷¹⁴ Under the reign of the younger Theodosius, the polite and eloquent Synesius, one of the descendants of Hercules,⁷¹⁵ filled the episcopal seat of Ptolemais, near the ruins of ancient Cyrene,⁷¹⁶ and the philosophic bishop supported, with dignity, the character which he had assumed with reluctance.⁷¹⁷ He vanquished the monster of Libya, the president Andronicus, who abused the authority of a venal office, invented new modes of rapine and torture, and aggravated the guilt of Edition: current; Page: [327] oppression by that of sacrilege.⁷¹⁸ After a fruitless attempt to reclaim the haughty magistrate by mild and religious admonition, Synesius proceeds to inflict the last sentence of ecclesiastical justice,⁷¹⁹ which devotes Andronicus, with his associates and their families, to the abhorrence of earth and heaven. The impenitent sinners, more cruel than Phalaris or Sennacherib, more destructive than war, pestilence, or a cloud of locusts, are deprived of the name and privileges of Christians, of the participation of the sacraments, and of the hope of Paradise. The bishop exhorts the clergy, the magistrates, and the people to renounce all society with the enemies of Christ; to exclude them from their houses and tables; and to refuse them the common offices of life and the decent rites of burial. The church of Ptolemais, obscure and contemptible as she may appear, addresses this declaration to all her sister churches of the world; and the profane who reject her decrees will be involved in the guilt and punishment of Andronicus and his impious followers. These spiritual terrors were enforced by a dexterous application to the Byzantine court; the trembling president implored the mercy of the church; and the descendant of Hercules enjoyed the satisfaction of raising a prostrate tyrant from the ground.⁷²⁰ Such principles

⁷¹⁴Basil Epistol. xlvii. in Baronius (Annal. Eccles. ad 370, No. 91), who declares that he purposely relates it, to convince governors that they were not exempt from a sentence of excommunication. In his opinion, even a royal head is not safe from the thunders of the Vatican; and the cardinal shews himself much more consistent than the lawyers and theologians of the Gallican church.

⁷¹⁵The long series of his ancestors, as high as Eurysthenes, the first Doric king of Sparta, and the fifth in lineal descent from Hercules, was inscribed in the public registers of Cyrene, a Lacedæmonian colony. (Synes. Epist. lvii. p. 197, edit. Petav.) Such a poor and illustrious pedigree of seventeen hundred years, without adding the royal ancestors of Hercules, cannot be equalled in the history of mankind.

⁷¹⁶Synesius (de Regno, p. 2) pathetically deplores the fallen and ruined state of Cyrene, πόλις [Heβρεω]λλήν[Heβρεω]ς, παλαι[Heβρεω]ν [Heβρεω]νομα κα[Heβρεω] σεμν[Heβρεω]ν, κα[Heβρεω]ν [Heβρεω]δη μυρί[Heβρεω] των πάλαι σοφων, νυν πένης κα[Heβρεω] κατηφ[Heβρεω]ς, κα[Heβρεω] μέγα [Heβρεω]ρείπιον. Ptolemais, a new city, 82 miles to the westward of Cyrene, assumed the metropolitan honours of the Pentapolis, or Upper Libya, which were afterwards transferred to Sozusa. See Wesseling, Itinerar. p. 67, 68, 732. Cellarius Géograph. tom. ii. part ii. p. 72, 74. Carolus a Sto Paulo Geograph. Sacra, p. 273. D[Hebrew]'Anville, Géographie ancienne, tom. iii. p. 43, 44, Mémoires de l[Hebrew]'Acad. des Inscriptions, tom. xxxvii. p. 363-391.

⁷¹⁷Synesius had previously represented his own disqualifications (Epist. cv. p. 246-250). He loved profane studies and profane sports; he was incapable of supporting a life of celibacy; he disbelieved the resurrection; and he refused to preach fables to the people, unless he might be permitted to philosophise at home. Theophilus, primate of Egypt, who knew his merit, accepted this extraordinary compromise. See the Life of Synesius in Tillemont, Mém. Ecclés. tom. xii. p. 499-554.

⁷¹⁸See the invective of Synesius, Epist. lvii. p. 191-201. The promotion of Andronicus was illegal; since he was a native of Berenice, in the same province. The instruments of torture are curiously specified, the πιεστήριον, or press, the δακτυλήθρα, the ποδοστράβη, the [Heβρεω]ινολαβίς, the [Heβρεω]τάγρα, and the χειλοστρόφιον, that variously pressed or distended the fingers, the feet, the nose, the ears, and the lips of the victims [in Ep. lviii. p. 1399, ed. Migne].

⁷¹⁹The sentence of excommunication is expressed in a rhetorical style. (Synesius, Epist. lviii. p. 201-203.) The method of involving whole families, though somewhat unjust, was improved into national interdicts.

⁷²⁰See Synesius, Epist. xlvii. p. 186, 187. Epist. lxxii. p. 218, 219. Epist. lxxxix. p. 230, 231.

and such examples insensibly prepared the triumph of the Roman pontiffs, who have trampled on the necks of kings.

VI. Every popular government has experienced the effects Edition: current; Page: [328] of rude or artificial eloquence. The coldest nature is animated, the firmest reason is moved, by the rapid communication of the prevailing impulse; and each hearer is affected by his own passions, and by those of the surrounding multitude. The ruin of civil liberty had silenced the demagogues of Athens and the tribunes of Rome; the custom of preaching, which seems to constitute a considerable part of Christian devotion, had not been introduced into the temples of antiquity; and the ears of monarchs were never invaded by the harsh sound of popular eloquence, till the pulpits of the empire were filled with sacred orators who possessed some advantages unknown to their profane predecessors.⁷²¹ The arguments and rhetoric of the tribune were instantly opposed, with equal arms, by skilful and resolute antagonists; and the cause of truth and reason might derive an accidental support from the conflict of hostile passions. The bishop, or some distinguished presbyter, to whom he cautiously delegated the powers of preaching, harangued, without the danger of interruption or reply, a submissive multitude, whose minds had been prepared and subdued by the awful ceremonies of religion. Such was the strict subordination of the Catholic church that the same concerted sounds might issue at once from an hundred pulpits of Italy or Egypt, if they were tuned⁷²² by the master hand of the Roman or Alexandrian primate. The design of this institution was laudable, but the fruits were not always salutary. The preachers recommended the practice of the social duties; but they exalted the perfection of monastic Edition: current; Page: [329] virtue, which is painful to the individual and useless to mankind. Their charitable exhortations betrayed a secret wish that the clergy might be permitted to manage the wealth of the faithful for the benefit of the poor. The most sublime representations of the attributes and laws of the Deity were sullied by an idle mixture of metaphysical subtleties, puerile rites, and fictitious miracles: and they expatiated, with the most fervent zeal, on the religious merit of hating the adversaries, and obeying the ministers, of the church. When the public peace was distracted by heresy and schism, the sacred orators sounded the trumpet of discord, and perhaps of sedition. The understandings of their congregations were perplexed by mystery, their passions were inflamed by invectives: and they rushed from the Christian temples of Antioch or Alexandria, prepared either to suffer or to inflict martyrdom. The corruption of taste and language is strongly marked in the vehement declamations of the Latin bishops; but the compositions of Gregory and Chrysostom have been compared with the most splendid models of Attic, or at least of Asiatic, eloquence.⁷²³

VII. The representatives of the Christian republic were regularly assembled in the spring and autumn of each year: and these synods diffused the spirit of ecclesiastical discipline and legislation through the hundred and twenty provinces of the Roman world.⁷²⁴ The archbishop or metropolitan

⁷²¹See Thomassin (*Discipline de l'[Hebrew]'Eglise*, tom. ii. l. iii. c. 83, p. 1761-1770) and Bingham (*Antiquities*, vol. i. l. xiv. c. 4, p. 688-717). Preaching was considered as the most important office of the bishop; but this function was sometimes entrusted to such presbyters as Chrysostom and Augustin.

⁷²²Queen Elizabeth used this expression, and practised this art, whenever she wished to prepossess the minds of her people in favour of any extraordinary measure of government. The hostile effects of this music were apprehended by her successor, and severely felt by his son. [*Hebrew*]When pulpit, drum ecclesiastic, [*Hebrew*]" &c., see Heylin [*Hebrew*]'s *Life of Archbishop Laud*, p. 153.

⁷²³Those modest orators acknowledged that, as they were destitute of the gift of miracles, they endeavoured to acquire the arts of eloquence.

⁷²⁴The council of Nice, in the fourth, fifth, sixth, and seventh canons, has made some fundamental regulations concerning synods, metropolitans, and primates. The Nicene canons have been variously tortured, abused, interpolated

was empowered, by the laws, to summon the suffragan bishops of his province, to revise their conduct, to vindicate their rights, to declare their faith, and to examine the merit of the candidates Edition: current; Page: [330] who were elected by the clergy and people to supply the vacancies of the episcopal college. The primates of Rome, Alexandria, Antioch, Carthage, and afterwards Constantinople, who exercised a more ample jurisdiction, convened the numerous assembly of their dependent bishops. But the convocation of great and extraordinary synods was the prerogative of the emperor alone. Whenever the emergencies of the church required this decisive measure, he despatched a peremptory summons to the bishops, or the deputies of each province, with an order for the use of post-horses, and a competent allowance for the expenses of their journey. At an early period, when Constantine was the protector, rather than the proselyte, of Christianity, he referred the African controversy to the council of Arles; in which the bishops of York, of Treves, of Milan, and of Carthage met as friends and brethren, to debate in their native tongue on the common interest of the Latin or Western church.⁷²⁵ Eleven years afterwards, a more numerous and celebrated assembly was convened at Nice in Bithynia, to extinguish, by their final sentence, the subtle disputes which had arisen in Egypt on the subject of the Trinity. Three hundred and eighteen bishops obeyed the summons of their indulgent master; the ecclesiastics, of every rank and sect and denomination, have been computed at two thousand and forty-eight persons;⁷²⁶ the Greeks appeared in person; and the consent of the Latins was expressed by the legates of the Roman pontiff. The session, which lasted about two months, was frequently honoured by the presence of the emperor. Leaving his guards at the door, he seated himself (with the permission Edition: current; Page: [331] of the council) on a low stool in the midst of the hall. Constantine listened with patience and spoke with modesty: and, while he influenced the debates, he humbly professed that he was the minister, not the judge, of the successors of the apostles, who had been established as priests and as gods upon earth.⁷²⁷ Such profound reverence of an absolute monarch towards a feeble and unarmed assembly of his own subjects can only be compared to the respect with which the senate had been treated by the Roman princes, who adopted the policy of Augustus. Within the space of fifty years, a philosophic spectator of the vicissitude of human affairs might have contemplated Tacitus in the senate of Rome, and Constantine in the council of Nice. The fathers of the Capitol and those of the church had alike degenerated from the virtues of their founders; but, as the bishops were more deeply rooted in the public opinion, they sustained their dignity with more decent pride, and sometimes opposed, with a manly spirit, the wishes of their sovereign. The progress of time and superstition erased the memory of the weakness, the passion, the ignorance, which disgraced these ecclesiastical synods; and the Catholic world has unanimously submitted⁷²⁸

or forged, according to the interest of the clergy. The Suburbicarian churches, assigned (by Rufinus) to the bishop of Rome, have been made the subject of vehement controversy. See Sirmond. Opera, tom. iv. p. 1-238.

⁷²⁵We have only thirty-three or forty-seven episcopal subscriptions: but Ado, a writer indeed of small account, reckons six hundred bishops in the council of Arles. Tillemont, Mém. Ecclés. tom. vi. p. 422.

⁷²⁶See Tillemont, tom. vi. p. 915, and Beausobre, Hist. du Manichéisme, tom. i. p. 529. The name of bishop, which is given by Eutychius to the 2048 ecclesiastics (Annal. tom. i. p. 440, vers. Pocock), must be extended far beyond the limits of an orthodox or even episcopal ordination.

⁷²⁷See Euseb. in Vit. Constantin. l. iii. c. 6-21. Tillemont, Mém. Ecclésiastiques, tom. vi. p. 669-759.

⁷²⁸Sancimus igitur vicem legum obtinere, quæ a quatuor Sanctis Conciliis . . . expositæ sunt aut firmatæ. Prædictarum enim quatuor synodorum dogmata sicut sanctas Scripturas et regulas sicut leges observamus. Justinian. Novell. cxxxi. Beveridge (ad Pandect. proleg. p. 2) remarks that the emperors never made new laws in ecclesiastical matters; and Giannone observes, in a very different spirit, that they gave a legal sanction to the canons of councils. Istoria Civile di Napoli, tom. i. p. 136.

to the infallible decrees of the general councils.⁷²⁹

Edition: current; Page: [332]

⁷²⁹See the article Concile in the *Encyclopédie*, tom. iii. p. 668-679, édition de Lucques. The author, M. le docteur Bouchaud, has discussed, according to the principles of the Gallican church, the principal questions which relate to the form and constitution of general, national, and provincial councils. The editors (see Preface, p. xvi.) have reason to be proud of this article. Those who consult their immense compilation seldom depart so well satisfied.

Chapter Xxi

Persecution of Heresy [*Hebrew*] The Schism of the Donatists [*Hebrew*] The Arian Controversy [*Hebrew*] Athanasius [*Hebrew*] Distracted State of the Church and Empire under Constantine and his Sons [*Hebrew*] Toleration of Paganism

The grateful applause of the clergy has consecrated the memory of a prince who indulged their passions and promoted their interest. Constantine gave them security, wealth, honours, and revenge: and the support of the orthodox faith was considered as the most sacred and important duty of the civil magistrate. The edict of Milan, the great charter of toleration, had confirmed to each individual of the Roman world the privilege of choosing and professing his own religion. But this inestimable privilege was soon violated: with the knowledge of truth, the emperor imbibed the maxims of persecution; and the sects which dissented from the Catholic church were afflicted and oppressed by the triumph of Christianity. Constantine easily believed that the Heretics, who presumed to dispute his opinions or to oppose his commands, were guilty of the most absurd and criminal obstinacy; and that a seasonable application of moderate severities might save those unhappy men from the danger of an everlasting condemnation. Not a moment was lost in excluding the ministers and teachers of the separated congregations from any share of the rewards and immunities which the emperor had so liberally bestowed on the orthodox clergy. But, as the sectaries might still exist under the cloud of royal disgrace, the conquest of the East was immediately followed by an edict which announced their total destruction.⁷³⁰ After a Edition: current; Page: [333] preamble filled with passion and reproach, Constantine absolutely prohibits the assemblies of the Heretics, and confiscates their public property to the use either of the revenue or of the Catholic church. The sects against whom the Imperial severity was directed appear to have been the adherents of Paul of Samosata; the Montanists of Phrygia, who maintained an enthusiastic succession of prophecy; the Novatians, who sternly rejected the temporal efficacy of repentance; the Marcionites and Valentinians, under whose leading banners the various Gnostics of Asia and Egypt had insensibly rallied; and perhaps the Manichæans, who had recently imported from Persia a more artful composition of Oriental and Christian theology.⁷³¹ The design of extirpating the name, or at least of restraining the progress, of these odious Heretics was prosecuted with vigour and effect. Some of the penal regulations were copied from the edicts of Diocletian; and this method of conversion was applauded by the same bishops who had felt the hand of oppression and had pleaded for the rights of humanity. Two immaterial circumstances Edition: current; Page: [334] may serve, however, to prove that the mind of Constantine was not entirely corrupted by

⁷³⁰Eusebius in Vit. Constantin. l. iii. c. 63, 64, 65, 66.

⁷³¹After some examination of the various opinions of Tillemont, Beausobre, Lardner, &c., I am convinced that Manes did not propagate this sect, even in Persia, before the year 270. It is strange that a philosophic and foreign heresy should have penetrated so rapidly into the African provinces; yet I cannot easily reject the edict of Diocletian against the Manichæans, which may be found in Baronius. (Annal. Eccl. ad 287.) [The earliest mention of the Manichæans is in Eusebius, H.E. vii. 31. (For Diocletian[*Hebrew*]'s edict, see Cod. Gregorianus, ed. Haenel, 14, 4, where it is said that the doctrine came in hunc mundum de Persica adversaria nobis gente.) For the life and doctrines of Manes, we have now two important Eastern sources: (a) His Life written by Muhammed ben Ishak, towards close of the 10th century and published with a translation by Flugel (in Mani, seine Lehre und seine Schriften), from which we learn that Manes wrote his works (some Persian, some Syriac) in a special [*Hebrew*]Manichæan[*Hebrew*] alphabet, derived from Persian and Syriac. (b) Albirûni[*Hebrew*]'s Chronology of Ancient Nations (transl. by Sachau, 1879), written early in 11th cent. at Khiva, which preserves central Asian traditions of Manes, and shows that some of his works existed there then. Of the works of Manes may be mentioned his Gospel, The Treasure of Life, Book of Mysteries. Baur wrote a treatise on Manichæism (das Manick. Religionssystem, 1831). Compare Chwolsohn, Die Ssabier, vol. i., and the excellent article in the Dict. of Christian Biography.]

the spirit of zeal and bigotry. Before he condemned the Manichæans and their kindred sects, he resolved to make an accurate inquiry into the nature of their religious principles. As if he distrusted the impartiality of his ecclesiastical counsellors, this delicate commission was entrusted to a civil magistrate, whose learning and moderation he justly esteemed, and of whose venal character he was probably ignorant.⁷³² The emperor was soon convinced that he had too hastily proscribed the orthodox faith and the exemplary morals of the Novatians, who had dissented from the church in some articles of discipline which were not perhaps essential to salvation. By a particular edict, he exempted them from the general penalties of the law;⁷³³ allowed them to build a church at Constantinople, respected the miracles of their saints, invited their bishop Acesius to the council of Nice, and gently ridiculed the narrow tenets of his sect by a familiar jest, which, from the mouth of a sovereign, must have been received with applause and gratitude.⁷³⁴

The complaints and mutual accusations which assailed the throne of Constantine, as soon as the death of Maxentius had submitted Africa to his victorious arms, were ill adapted to edify an imperfect proselyte. He learned with surprise that the provinces of that great country, from the confines of Edition: current; Page: [335] Cyrene to the columns of Hercules, were distracted with religious discord.⁷³⁵ The source of the division was derived from a double election in the church of Carthage; the second, in rank and opulence, of the ecclesiastical thrones of the West. Cæcilian and Majorinus were the two rival primates of Africa; and the death of the latter soon made room for Donatus, who, by his superior abilities and apparent virtues, was the firmest support of his party. The advantage which Cæcilian might claim from the priority his ordination was destroyed by the illegal, or at least indecent, haste with which it had been performed, without expecting the arrival of the bishops of Numidia. The authority of these bishops, who, to the number of seventy, condemned Cæcilian and consecrated Majorinus, is again weakened by the infamy of some of their personal characters; and by the female intrigues, sacrilegious bargains, and tumultuous proceedings which are imputed to this Numidian council.⁷³⁶ The bishops of the contending factions maintained, with equal ardour and obstinacy, that Edition: current; Page: [336] their adversaries were degraded,

⁷³²Constantius enim, cum limatius superstitionum quæreret sectas, Manichæorum et similium, &c. Ammian. xv. 15. Strategius, who from this commission obtained the surname of Musonianus, was a Christian of the Arian sect. He acted as one of the counts at the council of Sardica. Libanius praises his mildness and prudence. Vales. ad locum Ammian.

⁷³³Cod. Theod. l. xvi. tit. v. leg. 2. As the general law is not inserted in the Theodosian Code, it is probable, that in the year 438 the sects which it had condemned were already extinct.

⁷³⁴Sozomen, l. i. c. 22. Socrates, l. i. c. 10. These historians have been suspected, but I think without reason, of an attachment to the Novatian doctrine. The emperor said to the bishop, [*Hebrew*]Acesius, take a ladder, and get up to Heaven by yourself.[*Hebrew*] Most of the Christian sects have, by turns, borrowed the ladder of Acesius.

⁷³⁵The best materials for this part of ecclesiastical history may be found in the edition of Optatus Milevitanus, published (Paris, 1700 [leg. 1702]) by M. Dupin, who has enriched it with critical notes, geographical discussions, original records, and an accurate abridgment of the whole controversy. M. de Tillemont has bestowed on the Donatists the greatest part of a volume (tom. vi. part i.): and I am indebted to him for an ample collection of all the passages of his favourite St. Augustin which relate to those heretics. [The particular point on which the controversy at first turned is not made quite clear in Gibbon/*Hebrew*'s text. It was whether Felix, who ordained Cæcilian, was a traditor or not, that is, one of those who in the recent persecution had handed over holy vessels and sacred writings to the officers of the government. Constantine, inquiring into the question in 313, decided in favour of Felix. It is to be observed that his supporters maintained not that consecration by a traditor was allowable but that Felix was not a traditor.]

⁷³⁶Schisma igitur illo tempore confusæ mulieris iracundia peperit; ambitus nutrit, avaritia roboravit. Optatus, l. i. c. 19. The language of Purpurius is that of a furious madman. Dicitur te necasse filios sororis tuæ duos. Purpurius respondit, Putas me terreri a te . . . occidi; et occido eos qui contra me faciunt. Acta Concil. Cirtensis, ad calc. Optat. p. 274. When Cæcilian was invited to an assembly of bishops, Purpurius said to his brethren, or rather to his accomplices, [*Hebrew*]Let him come hither to receive our imposition of hands; and we will break his head by way of penance.[*Hebrew*] Optat. l. i. c. 19.

or at least dishonoured, by the odious crime of delivering the Holy Scriptures to the officers of Diocletian. From their mutual reproaches, as well as from the story of this dark transaction, it may justly be inferred that the late persecution had embittered the zeal, without reforming the manners, of the African Christians. That divided church was incapable of affording an impartial judicature; the controversy was solemnly tried in five successive tribunals which were appointed by the emperor; and the whole proceeding, from the first appeal to the final sentence, lasted above three years. A severe inquisition, which was taken by the Prætorian vicar and the proconsul of Africa, the report of two episcopal visitors who had been sent to Carthage, the decrees of the councils of Rome and of Arles, and the supreme judgment of Constantine himself in his sacred consistory, were all favourable to the cause of Cæcilian; and he was unanimously acknowledged by the civil and ecclesiastical powers as the true and lawful primate of Africa. The honours and estates of the church were attributed to his suffragan bishops, and it was not without difficulty that Constantine was satisfied with inflicting the punishment of exile on the principal leaders of the Donatist faction. As their cause was examined with attention, perhaps it was determined with justice. Perhaps their complaint was not without foundation, that the credulity of the emperor had been abused by the insidious arts of his favourite Osius. The influence of falsehood and corruption might procure the condemnation of the innocent, or aggravate the sentence of the guilty. Such an act, however, of injustice, if it concluded an importunate dispute, might be numbered among the transient evils of a despotic administration, which are neither felt nor remembered by posterity.

But this incident, so inconsiderable that it scarcely deserves a place in history, was productive of a memorable schism, which afflicted the provinces of Africa above three hundred years, and was extinguished only with Christianity Edition: current; Page: [337] itself. The inflexible zeal of freedom and fanaticism animated the Donatists to refuse obedience to the usurpers whose election they disputed and whose spiritual powers they denied. Excluded from the civil and religious communion of mankind, they boldly excommunicated the rest of mankind, who had embraced the impious party of Cæcilian, and of the Traditors, from whom he derived his pretended ordination. They asserted with confidence, and almost with exultation, that the Apostolical succession was interrupted; that all the bishops of Europe and Asia were infected by the contagion of guilt and schism; and that the prerogatives of the Catholic church were confined to the chosen portion of the African believers, who alone had preserved inviolate the integrity of their faith and discipline. This rigid theory was supported by the most uncharitable conduct. Whenever they acquired a proselyte, even from the distant provinces of the East, they carefully repeated the sacred rites of baptism⁷³⁷ and ordination; as they rejected the validity of those which he had already received from the hands of heretics or schismatics. Bishops, virgins, and even spotless infants were subjected to the disgrace of a public penance, before they could be admitted to the communion of the Donatists. If they obtained possession of a church which had been used by their Catholic adversaries, they purified the unhallowed building with the same jealous care which a temple of idols might have required. They washed the pavement, scraped the walls, burnt the altar, which was commonly of wood, melted the consecrated plate, and cast the Holy Eucharist to the dogs, with every circumstance of ignominy which could Edition: current; Page: [338] provoke and perpetuate the animosity of

⁷³⁷The councils of Arles, of Nice, and of Trent confirmed the wise and moderate practice of the church of Rome. The Donatists, however, had the advantage of maintaining the sentiment of Cyprian, and of a considerable part of the primitive church. Vincentius Lirinensis (p. 332, ap. Tillemont, *Mém. Ecclés.* tom. vi. p. 138) has explained why the Donatists are eternally burning with the Devil, while St. Cyprian reigns in heaven with Jesus Christ. [Cp. Appendix 14.]

religious factions.⁷³⁸ Notwithstanding this irreconcilable aversion, the two parties, who were mixed and separated in all the cities of Africa, had the same language and manners, the same zeal and learning, the same faith and worship. Proscribed by the civil and ecclesiastical powers of the empire, the Donatists still maintained in some provinces, particularly in Numidia, their superior numbers; and four hundred bishops acknowledged the jurisdiction of their primate. But the invincible spirit of the sect sometimes preyed on its own vitals; and the bosom of their schismatical church was torn by intestine divisions. A fourth part of the Donatist bishops followed the independent standard of the Maximianists. The narrow and solitary path which their first leaders had marked out continued to deviate from the great society of mankind. Even the imperceptible sect of the Rogatians could affirm, without a blush, that, when Christ should descend to judge the earth, he would find his true religion preserved only in a few nameless villages of the Cæsarean Mauritania.⁷³⁹

The schism of the Donatists was confined to Africa: the more diffusive mischief of the Trinitarian controversy successively penetrated into every part of the Christian world. The former was an accidental quarrel, occasioned by the abuse of freedom; the latter was a high and mysterious argument, derived from the abuse of philosophy. From the age of Constantine to that of Clovis and Theodoric, the temporal interests both of the Romans and Barbarians were deeply involved in the theological disputes of Arianism. The historian may therefore be permitted respectfully to withdraw the veil of the sanctuary; and to deduce the progress of reason and faith, of error and passion, from the school of Plato to the decline and fall of the empire. Edition: current; Page: [339]

The genius of Plato, informed by his own meditation, or by the traditional knowledge of the priests of Egypt,⁷⁴⁰ had ventured to explore the mysterious nature of the Deity. When he had elevated his mind to the sublime contemplation of the first self-existent, necessary cause of the universe, the Athenian sage was incapable of conceiving how the simple unity of his essence could admit the infinite variety of distinct and successive ideas which compose the model of the intellectual world; how a Being purely incorporeal could execute that perfect model, and mould with a plastic hand the rude and independent chaos. The vain hope of extricating himself from these difficulties, which must ever oppress the feeble powers of the human mind, might induce Plato to consider the divine nature under the threefold modification: of the first cause, the reason or Logos, and the soul or spirit of the universe. His poetical imagination sometimes fixed and animated these metaphysical abstractions; the three archical or original principles were represented in the Platonic system of three Gods, united with each other by a mysterious and ineffable generation; and the Logos was particularly considered under the more accessible character of the Son of an Eternal Father, and the Creator and Governor of the world. Such appear to have been the secret doctrines which were cautiously whispered in the gardens of the academy; and which, according to the more recent disciples of Plato, could not be perfectly understood, till after an assiduous study of thirty years.⁷⁴¹ Edition: current; Page: [340]

⁷³⁸See the sixth book of Optatus Milevitanus, p. 91-100.

⁷³⁹Tillemont, *Mém. Ecclésiastiques*, tom. vi. part i. p. 253. He laughs at their partial credulity. He revered Augustin, the great doctor of the system of predestination.

⁷⁴⁰Plato *Ægyptum peragravit ut a sacerdotibus Barbaris numeros et caelestia acciperet*. Cicero de Finibus, v. 25. The Egyptians might still preserve the traditional creed of the Patriarchs. Josephus has persuaded many of the Christian fathers that Plato derived a part of his knowledge from the Jews; but this vain opinion cannot be reconciled with the obscure state and unsocial manners of the Jewish people, whose scriptures were not accessible to Greek curiosity till more than one hundred years after the death of Plato. See Marsham, *Canon. Chron.* p. 144. Le Clerc, *Epistol. Critic.* vii. p. 177-194.

⁷⁴¹The modern guides who lead me to the knowledge of the Platonic System are Cudworth (*Intellectual System*, p.

The arms of the Macedonians diffused over Asia and Egypt the language and learning of Greece; and the theological system of Plato was taught with less reserve, and perhaps with some improvements, in the celebrated school of Alexandria.⁷⁴² A numerous colony of Jews had been invited, by the favour of the Ptolemies, to settle in their new capital.⁷⁴³ While the bulk of the nation practised the legal ceremonies, and pursued the lucrative occupations of commerce, a few Hebrews, of a more liberal spirit, devoted their lives to religious and philosophical contemplation.⁷⁴⁴ They cultivated with diligence, and embraced with ardour, the theological system of the Athenian sage. But their national pride would have been mortified by a fair confession of their former poverty: and they boldly marked, as the sacred inheritance of their ancestors, the gold and jewels which they had so lately stolen from their Egyptian masters. One hundred years before the birth of Christ, a philosophical treatise, which manifestly betrays the style and sentiments of the school of Plato, was produced by the Alexandrian Jews, and unanimously received as a genuine and valuable relic of the inspired Wisdom of Solomon.⁷⁴⁵ A similar union of the Mosaic faith and the Grecian philosophy distinguishes the works of Philo, which were composed, for the most part, under the reign of Augustus.⁷⁴⁶ The material soul of the universe⁷⁴⁷ might offend the piety of the Hebrews: but they applied the character of the Logos to the Jehovah of Moses and the patriarchs; and the Son of God was introduced upon earth under a visible, and even human, appearance, to perform those familiar offices which seem incompatible with the nature and attributes of the Universal Cause.⁷⁴⁸

The eloquence of Plato, the name of Solomon, the authority of the school of Alexandria, and the consent of the Jews and Greeks were insufficient to establish the truth of a mysterious doctrine which might please, but could not satisfy, a rational mind. A prophet or apostle, inspired by the Deity, can alone exercise a lawful dominion over the faith of mankind; and the theology of Plato might have been for ever confounded with the philosophical visions of the Academy, the Porch, and the Lyceum, if the name and divine attributes of the Logos had not been confirmed by the

568-620), Basnage (*Hist. des Juifs*, l. iv. c. iv. p. 53-86), Le Clerc (*Epist. Crit.* vii. p. 194-209), and Brucker (*Hist. Philos.* tom. i. p. 675-706). As the learning of these writers was equal, and their intention different, an inquisitive observer may derive instruction from their disputes, and certainty from their agreement.

⁷⁴²Brucker, *Hist. Philosoph.* tom. i. p. 1349-1357. The Alexandrian school is celebrated by Strabo (l. xvii.) and Ammianus (xxii. 6). [Cp. Vacherot, *Ecole d'[Hebrew]' Alexandrie*.]

⁷⁴³Joseph. *Antiquitat.* l. xii. c. 1, 3. Basnage, *Hist. des Juifs*, l. vii. c. 7.

⁷⁴⁴For the origin of the Jewish philosophy, see Eusebius, *Præparat. Evangel.* viii. 9, 10. According to Philo, the Therapeutæ studied philosophy; and Brucker has proved (*Hist. Philosoph.* tom. ii. p. 787) that they gave the preference to that of Plato.

⁷⁴⁵See Calmet, *Dissertations sur la Bible*, tom. ii. p. 277. The book of the Wisdom of Solomon was received by many of the fathers as the work of that monarch; and, although rejected by the Protestants for want of a Hebrew original, it has obtained, with the rest of the Vulgate, the sanction of the council of Trent.

⁷⁴⁶The Platonism of Philo, which was famous to a proverb, is proved beyond a doubt by Le Clerc (*Epist. Crit.* viii. p. 211-228). Basnage (*Hist. des Juifs*, l. iv. c. 5) clearly ascertained that the theological works of Philo were composed before the death, and most probably before the birth, of Christ. In such a time of darkness, the knowledge of Philo is more astonishing than his errors. Bull, *Defens. Fid. Nicen.* s. i. c. i. p. 12. [Philo may have been about 25 years old at birth of Christ. For chronol. of his works see Massebleau, *Le classement des œuvres de Philon*.]

⁷⁴⁷*Mens agitat molem, et magno se corpore miscet.*

⁷⁴⁸Petav. *Dogmata Theologica*, tom. ii. l. viii. c. 2, p. 791. Bull, *Defens. Fid. Nicen.* s. i. c. 1, p. 8, 13. This notion, till it was abused by the Arians, was freely adopted in the Christian theology. Tertullian (*adv. Praxeam*, c. 16) has a remarkable and dangerous passage. After contrasting, with indiscreet wit, the nature of God and the actions of Jehovah, he concludes: *Scilicet ut hæc de filio Dei non credenda fuisse si non scripta essent; fortasse non credenda de Patre licet scripta.*

celestial pen of the last and most sublime of the Evangelists.⁷⁴⁹ The Christian Edition: current; Page: [342] Revelation, which was consummated under the reign of Nerva, disclosed to the world the amazing secret that the Logos, who was with God from the beginning and was God, who had made all things and for whom all things had been made, was incarnate in the person of Jesus of Nazareth; who had been born of a virgin, and suffered death on the cross. Besides the general design of fixing on a perpetual basis the divine honours of Christ, the most ancient and respectable of the ecclesiastical writers have ascribed to the evangelic theologian a particular intention to confute two opposite heresies, which disturbed the peace of the primitive church.⁷⁵⁰ I. The faith of the Ebionites,⁷⁵¹ perhaps of the Nazarenes,⁷⁵² was gross and imperfect. They revered Jesus as the greatest of the prophets, endowed with supernatural virtue and power. They ascribed to his person and to his future reign all the predictions of the Hebrew oracles which relate to the spiritual and everlasting kingdom of the promised Messiah.⁷⁵³ Some Edition: current; Page: [343] of them might confess that he was born of a virgin: but they obstinately rejected the preceding existence and divine perfections of the Logos, or Son of God, which are so clearly defined in the Gospel of St. John. About fifty years afterwards, the Ebionites, whose errors are mentioned by Justin Martyr with less severity than they seem to deserve,⁷⁵⁴ formed a very inconsiderable portion of the Christian name. II. The Gnostics, who were distinguished by the epithet of Docetes, deviated into the contrary extreme, and betrayed the human, while they asserted the divine, nature of Christ. Educated in the school of Plato, accustomed to the sublime idea of the Logos, they readily conceived that the brightest Æon, or Emanation of the Deity, might assume the outward shape and visible appearances of a mortal;⁷⁵⁵ but they vainly pretended that the imperfections of matter are incompatible with the purity of a celestial substance. While the blood of Christ yet smoked on Mount Calvary, the Docetes invented the impious and extravagant hypothesis that, instead of issuing from the womb of the Virgin,⁷⁵⁶ he had descended on the banks of the Jordan in the form of perfect manhood; that

⁷⁴⁹The Platonists admired the beginning of the Gospel of St. John, as containing an exact transcript of their own principles. Augustin, de Civitat. Dei, x. 29. Amelius apud Cyril. advers. Julian. l. viii. p. 283. But in the third and fourth centuries, the Platonists of Alexandria might improve their Trinity by the secret study of the Christian theology.

⁷⁵⁰See Beausobre, Hist. Critique du Manichéisme, tom. i. p. 377. The Gospel according to St. John is supposed to have been published about seventy years after the death of Christ. [The controversy as to the date and the authorship is still hot. It betrays the influence of Alexandrian theology. The influence of Plato, which Gibbon dwells on, is more particularly that of the Jew Philo. His view of the Logos as the ε[Heβρεω]x[Heβρεω]v θεον, image of God, &c., may be considered the origin of the doctrine of the Word, developed by Christian theologians.]

⁷⁵¹The sentiments of the Ebionites are fairly stated by Mosheim (p. 331) and Le Clerc (Hist. Eccles. p. 535). The Clementines published among the apostolical Fathers, are attributed by the critics to one of these sectaries. [See vol. ii. p. 272, note 22.]

⁷⁵²Staunch polemics, like Bull (Judicium Eccles. Cathol. c. 2), insist on the orthodoxy of the Nazarenes; which appears less pure and certain in the eyes of Mosheim (p. 330).

⁷⁵³The humble condition and sufferings of Jesus have always been a stumbling-block to the Jews. [Hebrew]Deus . . . contrariis coloribus Messiam depinxerat; futurus erat Rex, Judex, Pastor,[Hebrew]" &c. See Limborch et Orobio Amica Collat. p. 8, 19, 53-76, 192-234. But this objection has obliged the believing Christians to lift up their eyes to a spiritual and everlasting kingdom.

⁷⁵⁴Justin. Martyr. Dialog. cum Tryphonte, p. 143, 144. See Le Clerc, Hist. Eccles. p. 615. Bull and his editor Grabe (Judicium Eccles. Cathol. c. 7, and Appendix) attempt to distort either the sentiments or the words of Justin; but their violent correction of the text is rejected even by the Benedictine editors.

⁷⁵⁵The Arians reproached the orthodox party with borrowing their Trinity from the Valentinians and Marcionites. See Beausobre, Hist. du Manichéisme, l. iii. c. 5, 7.

⁷⁵⁶Non dignum est ex utero credere Deum, et Deum Christum . . . non dignum est ut tanta majestas per sordes et squalores mulieris transire credatur. The Gnostics asserted the impurity of matter, and of marriage; and they were scandalised by the gross interpretations of the fathers, and even of Augustin himself. See Beausobre, tom. ii. p. 523.

he had imposed on the senses of his enemies, and of his disciples; and that the ministers of Pilate had wasted their Edition: current; Page: [344] impotent rage on an airy phantom, who seemed to expire on the cross and, after three days, to rise from the dead.⁷⁵⁷

The divine sanction which the Apostle had bestowed on the fundamental principle of the theology of Plato encouraged the learned proselytes of the second and third centuries to admire and study the writings of the Athenian sage, who had thus marvellously anticipated one of the most surprising discoveries of the Christian revelation. The respectable name of Plato was used by the orthodox,⁷⁵⁸ and abused by the heretics,⁷⁵⁹ as the common support of truth and error: the authority of his skilful commentators, and the science of dialectics, were employed to justify the remote consequences of his opinions, and to supply the discreet silence of the inspired writers. The same subtle and profound questions concerning the nature, the generation, the distinction, and the equality of the three divine persons of the mysterious Triad, or Trinity,⁷⁶⁰ were agitated in the philosophical, and in the Christian, schools of Alexandria. An eager spirit of curiosity Edition: current; Page: [345] urged them to explore the secrets of the abyss; and the pride of the professors and of their disciples was satisfied with the science of words. But the most sagacious of the Christian theologians, the great Athanasius himself, has candidly confessed⁷⁶¹ that, whenever he forced his understanding to meditate on the divinity of the Logos, his toilsome and unavailing efforts recoiled on themselves; that the more he thought, the less he comprehended; and the more he wrote, the less capable was he of expressing his thoughts. In every step of the inquiry, we are compelled to feel and acknowledge the immeasurable disproportion between the size of the object and the capacity of the human mind. We may strive to abstract the notions of time, of space, and of matter, which so closely adhere to all the perceptions of our experimental knowledge. But, as soon as we presume to reason of infinite substance, of spiritual generation; as often as we deduce any positive conclusions from a negative idea, we are involved in darkness, perplexity, and inevitable contradiction. As these difficulties arise from the nature of the subject, they oppress, with the same insuperable weight, the philosophic and the theological disputant; but we may observe two essential and peculiar circumstances which discriminated the doctrines of the Catholic church from the opinions of the Platonic school.

I. A chosen society of philosophers, men of a liberal education and curious disposition, might silently meditate, and temperately discuss, in the gardens of Athens or the library of Alexandria,

[That Christ was not born was the view of Marcion, not that of the early Docetæ, who accepted the incarnation by Mary, but regarded her as passive, and not contributing her substance, [*Hebrew*] like a pipe through which water flows.]

⁷⁵⁷Apostolis adhuc in sæculo superstitibus apud Judæam Christi sanguine recente et phantasma corpus Domini asserebatur. Cotelierius thinks (Patres Apostol. tom. ii. p. 24) that those who will not allow the Docetes to have arisen in the time of the Apostles may with equal reason deny that the sun shines at noon-day. These Docetes, who formed the most considerable party among the Gnostics, were so called because they granted only a seeming body to Christ.

⁷⁵⁸Some proofs of the respect which the Christians entertained for the person and doctrine of Plato may be found in De la Mothe le Vayer, tom. v. p. 135, &c., edit. 1757; and Basnage, Hist. des Juifs, tom. iv. p. 29, 79, &c.

⁷⁵⁹Doleo bona fide, Platonem omnium hæreticorum condimentarium factum. Tertullian. de Anima, c. 23. Petavius (Dogm. Theolog. tom. iii. proleg. 2) shews that this was a general complaint. Beausobre (tom. i. l. iii. c. 9, 10) has deduced the Gnostic errors from Platonic principles; and, as in the school of Alexandria those principles were blended with the oriental philosophy (Brucker, tom. i. p. 1356), the sentiment of Beausobre may be reconciled with the opinion of Mosheim (General History of the Church, vol. i. p. 37).

⁷⁶⁰If Theophilus, bishop of Antioch (see Dupin, Bibliothèque Ecclésiastique, tom. i. p. 66), was the first who employed the word Triad, Trinity, that abstract term, which was already familiar to the schools of philosophy, must have been introduced into the theology of the Christians after the middle of the second century.

⁷⁶¹Athanasius, tom. i. p. 808. His expressions have an uncommon energy; and, as he was writing to monks, there could not be any occasion for him to affect a rational language.

the abstruse questions of metaphysical science. The lofty speculations which neither convinced the understanding, nor agitated the passions, of the Platonists themselves were carelessly overlooked by the idle, the busy, and even the studious part of mankind.⁷⁶² But, after the Logos Edition: current; Page: [346] had been revealed as the sacred object of the faith, the hope, and the religious worship of the Christians, the mysterious system was embraced by a numerous and increasing multitude in every province of the Roman world. Those persons who, from their age, or sex, or occupations, were the least qualified to judge, who were the least exercised in the habits of abstract reasoning, aspired to contemplate the economy of the Divine Nature; and it is the boast of Tertullian⁷⁶³ that a Christian mechanic could readily answer such questions as had perplexed the wisest of the Grecian sages. Where the subject lies so far beyond our reach, the difference between the highest and the lowest of human understandings may indeed be calculated as infinitely small; yet the degree of weakness may perhaps be measured by the degree of obstinacy and dogmatic confidence. These speculations, instead of being treated as the amusement of a vacant hour, became the most serious business of the present, and the most useful preparation for a future, life. A theology, which it was incumbent to believe, which it was impious to doubt, and which it might be dangerous, and even fatal, to mistake, became the familiar topic of private meditation and popular discourse. The cold indifference of philosophy was inflamed by the fervent spirit of devotion; and even the metaphors of common language suggested the fallacious prejudices of sense and experience. The Christians, who abhorred the gross and impure generation of the Greek mythology,⁷⁶⁴ were tempted Edition: current; Page: [347] to argue from the familiar analogy of the filial and paternal relations. The character of Son seemed to imply a perpetual subordination to the voluntary author of his existence,⁷⁶⁵ but, as the act of generation, in the most spiritual and abstracted sense, must be supposed to transmit the properties of a common nature,⁷⁶⁶ they durst not presume to circumscribe the powers or the duration of the Son of an eternal and omnipotent Father. Fourscore years after the death of Christ, the Christians of Bithynia declared before the tribunal of Pliny that they invoked him as a god; and his divine honours have been perpetuated in every age and country by the various sects who assume the name of his disciples.⁷⁶⁷ Their tender reverence for the memory of Christ and their horror for the profane worship of any created being would have engaged them to assert the equal and absolute divinity of the Logos, if their rapid ascent towards the throne of heaven had not been imperceptibly checked by the apprehension of violating the unity and sole supremacy of the great Father of Christ and of the Universe. The suspense and fluctuation

⁷⁶²In a treatise which professed to explain the opinions of the ancient philosophers concerning the nature of the gods we might expect to discover the theological Trinity of Plato. But Cicero very honestly confessed that, though he had translated the *Timæus*, he could never understand that mysterious dialogue. See Hieronym. *præf. ad l. xii. in Isaiam*, tom. v. p. 154.

⁷⁶³Tertullian in *Apolog.* c. 46. See Bayle, *Dictionnaire, au mot Simonids*. His remarks on the presumption of Tertullian are profound and interesting.

⁷⁶⁴Lactantius, iv. 8. Yet the Proboule, or Prolatio, which the most orthodox divines borrowed without scruple from the Valentinians, and illustrated by the comparisons of a fountain and stream, the sun and its rays, &c., either meant nothing or favoured a material idea of the divine generation. See Beausobre, tom. i. l. iii. c. 7. p. 548.

⁷⁶⁵Many of the primitive writers have frankly confessed that the Son owed his being to the will of the Father. See Clarke[*Hebrew*]'s *Scripture Trinity*, p. 280-287. On the other hand, Athanasius and his followers seem unwilling to grant what they are afraid to deny. The schoolmen extricate themselves from this difficulty by the distinction of a preceding and a concomitant will. Petav. *Dogm. Theolog.* tom. ii. l. vi. c. 8, p. 587-603.

⁷⁶⁶See Petav. *Dogm. Theolog.* tom. ii. l. ii. c. 10, p. 159.

⁷⁶⁷*Carmenque Christo quasi Deo dicere secum invicem*. Plin. *Epist.* x. 97. The sense of Deus, Θε[*Heβρεω*], Elohim, in the ancient languages, is critically examined by Le Clerc (*Ars Critica*, p. 150-156), and the propriety of worshipping a very excellent creature is ably defended by the Socinian Emlyn (*Tracts*, p. 29-36, 51-145).

produced in the minds of the Christians by these opposite tendencies may be observed in the writings of the theologians who flourished after the end of the apostolic age and before the origin of the Arian controversy. Their suffrage is claimed, with equal confidence, by the orthodox and by the heretical parties; and the most inquisitive critics have fairly allowed that, if they had the good fortune of possessing the Catholic verity, Edition: current; Page: [348] they have delivered their conceptions in loose, inaccurate, and sometimes contradictory language.⁷⁶⁸

II. The devotion of individuals was the first circumstance which distinguished the Christians from the Platonists; the second was the authority of the church. The disciples of philosophy asserted the rights of intellectual freedom, and their respect for the sentiments of their teachers was a liberal and voluntary tribute, which they offered to superior reason. But the Christians formed a numerous and disciplined society; and the jurisdiction of their laws and magistrates was strictly exercised over the minds of the faithful. The loose wanderings of the imagination were gradually confined by creeds and confessions;⁷⁶⁹ the freedom of private judgment submitted to the public wisdom of synods; the authority of a theologian was determined by his ecclesiastical rank; and the episcopal successors of the apostles inflicted the censures of the church on those who deviated from the orthodox belief. But in an age of religious controversy every act of oppression adds new force to the elastic vigour of the mind; and the zeal or obstinacy of a spiritual rebel was sometimes stimulated by secret motives of ambition or avarice. A metaphysical argument became the cause or pretence of political contests; the subtleties of the Platonic school were used as the badges of popular factions, and the distance which separated their respective tenets was enlarged or magnified by the acrimony of dispute. As long as the dark heresies of Edition: current; Page: [349] Praxeas and Sabellius laboured to confound the Father with the Son,⁷⁷⁰ the orthodox party might be excused if they adhered more strictly and more earnestly to the distinction, than to the equality, of the divine persons. But, as soon as the heat of controversy had subsided, and the progress of the Sabellians was no longer an object of terror to the churches of Rome, of Africa, or of Egypt; the tide of theological opinion began to flow with a gentle but steady motion toward the contrary extreme; and the most orthodox doctors allowed themselves the use of the terms and definitions which had been censured in the mouth of the sectaries.⁷⁷¹ After the edict of toleration had restored peace and leisure to the Christians, the Trinitarian controversy was revived in the ancient seat of Platonism, the learned, the opulent, the tumultuous city of Alexandria; and the flame of religious

⁷⁶⁸See Daillé de Usu Patrum, and Le Clerc, Bibliothèque Universelle, tom. x. p. 409. To arraign the faith of the Ante-Nicene fathers was the object, or at least has been the effect, of the stupendous work of Petavius on the Trinity (Dogm. Theolog. tom. ii.); nor has the deep impression been erased by the learned defence of Bishop Bull.

⁷⁶⁹The most ancient creeds were drawn up with the greatest latitude. See Bull (Judicium Eccles. Cathol.), who tries to prevent Episcopius from deriving any advantage from this observation. [Before the Nicene Council, no creed had been drawn up as a test of orthodoxy. There were various formulæ of Christian belief (πίστεις) in various places for the use of catechumens. This has been emphasised by Mr. Gwatkin.]

⁷⁷⁰The heresies of Praxeas, Sabellius, &c., are accurately explained by Mosheim (p. 425, 680-714). Praxeas, who came to Rome about the end of the second century, deceived, for some time, the simplicity of the bishop, and was confuted by the pen of the angry Tertullian. [These are the Monarchian heresies; see below, p. 353.]

⁷⁷¹Socrates acknowledges that the heresy of Arius proceeded from his strong desire to embrace an opinion the most diametrically opposite to that of Sabellius. [For the comprehension of the theological import of the Arian controversy, consult Gwatkin[Hebrew]'s Arianism, p. 9. [Hebrew]Arianism laid down a merely external, Sabellianism a merely economic, Trinity.[Hebrew]" As neither satisfied, it [Hebrew]became necessary to fall back on Scripture to revise the idea of a divine personality, and acknowledge not three individuals but three eternal aspects ([Hebrew]προστάσεις) of the divine, facing inward on each other as well as outward on the world.[Hebrew]" The earlier conception of God, so far as distinguished from the world, was one of abstract simplicity; the expulsion of this inadequate conception from the doctrine of the Trinity is the chief result won out of the Arian controversy.]

discord was rapidly communicated from the schools to the clergy, the people, the province, and the East. The abstruse question of the eternity of the Logos was agitated in ecclesiastical conferences and popular sermons; and the heterodox opinions of Arius⁷⁷² were soon made public by his own zeal and by that of his adversaries. His most implacable adversaries Edition: current; Page: [350] have acknowledged the learning and blameless life of that eminent presbyter, who, in a former election, had declared, and perhaps generously declined, his pretensions to the episcopal throne.⁷⁷³ His competitor Alexander assumed the office of his judge. The important cause was argued before him; and, if at first he seemed to hesitate, he at length pronounced his final sentence, as an absolute rule of faith.⁷⁷⁴ The undaunted presbyter, who presumed to resist the authority of his angry bishop, was separated from the communion of the church. But the pride of Arius was supported by the applause of a numerous party. He reckoned among his immediate followers two bishops of Egypt, seven presbyters, twelve deacons, and (what may appear almost incredible) seven hundred virgins. A large majority of the bishops of Asia appeared to support or favour his cause; and their measures were conducted by Eusebius of Cæsarea, the most learned of the Christian prelates, and by Eusebius of Nicomedia, who had acquired the reputation of a statesman without forfeiting that of a saint. Synods in Palestine and Bithynia were opposed to the synods of Egypt. The attention of the prince and people was attracted by this theological dispute; and the decision, at the end of six years,⁷⁷⁵ was referred to the supreme authority of the general council of Nice. Edition: current; Page: [none]

Baptistry of St. John, in the Lateran, built by Constantine. From a photograph.

Edition: current; Page: [351]

When the mysteries of the Christian faith were dangerously exposed to public debate, it might be observed that the human understanding was capable of forming three distinct, though imperfect, systems concerning the nature of the Divine Trinity; and it was pronounced that none of these systems, in a pure and absolute sense, were exempt from heresy and error.⁷⁷⁶ I. According to the first hypothesis, which was maintained by Arius and his disciples, the Logos was a dependent and spontaneous production, created from nothing by the will of the Father. The Son, by whom all things were made,⁷⁷⁷ had been begotten before all worlds, and the longest of the astronomical

⁷⁷²The figure and manners of Arius, the character and numbers of his first proselytes, are painted in very lively colours by Epiphanius (tom. i. Hæres. lxi. 3, p. 729); and we cannot but regret that he should soon forget the historian, to assume the task of controversy.

⁷⁷³See Philostorgius (l. i. c. 3) and Godefroy[*Hebrew*]'s ample Commentary. Yet the credibility of Philostorgius is lessened in the eyes of the orthodox by his Arianism; and in those of rational critics by his passion, his prejudice, and his ignorance.

⁷⁷⁴Sozomen (l. i. c. 15) represents Alexander as indifferent, and even ignorant, in the beginning of the controversy; while Socrates (l. i. c. 5) ascribes the origin of the dispute to the vain curiosity of his theological speculations. Dr. Jortin (Remarks on Ecclesiastical History, vol. ii. p. 178) has censured, with his usual freedom, the conduct of Alexander: *πρ[ῆβρεω]ς ὀρτ[ῆβρεω]ν [ῆβρεω]ξάπτεται . . . [ῆβρεω]μοίως φρονεῖν [ῆβρεω]κέλευσε.*

⁷⁷⁵The flames of Arianism might burn for some time in secret; but there is reason to believe that they burst out with violence as early as the year 319. Tillemont, *Mém. Ecclés.* tom. vi. p. 774-780.

⁷⁷⁶Quid credidit? Certe, aut tria nomina audiens tres Deos esse credidit, et idololatra effectus est; aut in tribus vocabulis trinominem credens Deum, in Sabelli hæresim incurrit; aut edoctus ab Arianis unum esse verum Deum, Patrem, filium et spiritum sanctum credidit creaturas. Aut extra hæc quid credere potuerit nescio. Hieronym. adv. Luciferianos. Jerom reserves for the last the orthodox system, which is more complicated and difficult.

⁷⁷⁷As the doctrine of absolute creation from nothing was gradually introduced among the Christians (Beausobre, tom. ii. p. 165-215), the dignity of the workman very naturally rose with that of the work. [A statement by Arius of his own doctrine is preserved by Theodoret, H.E. i. 5. [*Hebrew*]By will and counsel the Son existed ([ῆβρεω]πέστη) before time (πρ[ῆβρεω] χρόνων κα[ῆβρεω] πρ[ῆβρεω] αἰώνων), full, God, only begotten, unchangeable; and before his begetting or creation or defining or founding, he was not; for he was not unbegotten.[*Hebrew*]” Another formulation of his doctrine,

periods could be compared only as a fleeting moment to the extent of his duration; yet this duration was not infinite,⁷⁷⁸ and there had been a time which preceded the ineffable generation of the Logos. On this only-begotten Son the Almighty Father had transfused his ample spirit, and impressed the effulgence of his glory. Visible image of invisible perfection, he saw, at an immeasurable distance beneath his feet, the thrones of the brightest archangels: yet he shone only with a reflected light, and, like the sons of the Roman emperors who were invested with the Edition: current; Page: [352] titles of Cæsar or Augustus,⁷⁷⁹ he governed the universe in obedience to the will of his Father and Monarch. II. In the second hypothesis, the Logos possessed all the inherent, incommunicable perfections which religion and philosophy appropriate to the Supreme God. Three distinct and infinite minds or substances, three co-equal and co-eternal beings, composed the Divine Essence;⁷⁸⁰ and it would have implied contradiction that any of them should not have existed or that they should ever cease to exist.⁷⁸¹ The advocates of a system which seemed to establish three independent Deities attempted to preserve the unity of the First Cause, so conspicuous in the design and order of the world, by the perpetual concord of their administration and the essential agreement of their will. A faint resemblance of this unity of action may be discovered in the societies of men, and even of animals. The causes which disturb their harmony proceed only from the imperfection and inequality of their faculties: but the omnipotence which is guided by infinite wisdom and goodness cannot fail of choosing the same means for the accomplishment of the same ends. III. Three Beings, who, by the self-derived necessity of their existence, possess all the divine attributes in the most perfect degree; who are eternal in duration, infinite in space, and intimately present to each other and to the whole universe; irresistibly force themselves Edition: current; Page: [353] on the astonished mind as one and the same Being,⁷⁸² who, in the economy of grace, as well as in that of nature, may manifest himself under different forms, and be considered under different aspects. By this hypothesis, a real substantial Trinity is refined into a trinity of names and abstract modifications, that subsist only in the mind which conceives them. The Logos is no longer a person, but an attribute; and it is only in a figurative sense that the epithet of Son can be applied to the eternal reason which was with God from the beginning, and by which, not by whom, all things were made. The incarnation of the Logos is reduced to a mere inspiration of the Divine Wisdom, which filled the soul, and directed all the actions, of the man Jesus. Thus, after revolving round the theological circle, we are surprised to find that the Sabellian ends where the Ebionite had begun; and that the incomprehensible mystery which excites our adoration eludes our inquiry.⁷⁸³

after his own work *Thalia*, is given by Athanasius in the *Orat. contra Arianos*, i. 5. Gibbon brings out the point that the Son was created though he began to be before time.]

⁷⁷⁸The metaphysics of Dr. Clarke (*Scripture Trinity*, p. 276-280) could digest an eternal generation from an infinite cause.

⁷⁷⁹This profane and absurd simile is employed by several of the primitive fathers, particularly by Athenagoras, in his *Apology* to the emperor Marcus and his son; and it is alleged, without censure, by Bull himself. See *Defens. Fid. Nicen.* s. iii. c. 5, No. 4.

⁷⁸⁰See Cudworth [*Hebrew*]'s *Intellectual System*, p. 559, 579. This dangerous hypothesis was countenanced by the two Gregories of Nyssa and Nazianzen [Nazianzus], by Cyril of Alexandria, John of Damascus, &c. See Cudworth, p. 603. Le Clerc, *Bibliothèque Universelle*, tom. xviii. p. 97-105. [Observe that Tritheism as the technical name of a heresy does not appear till the sixth century, when it designates a form of Monophysitism.]

⁷⁸¹Augustin seems to envy the freedom of the philosophers. *Liberis verbis loquuntur philosophi. . . . Nos autem non dicimus duo vel tria principia, duos vel tres Deos.* *De Civitat. Dei*, x. 23.

⁷⁸²Boetius, who was deeply versed in the philosophy of Plato and Aristotle, explains the unity of the Trinity by the in-difference of the three persons. See the judicious remarks of Le Clerc, *Bibliothèque Choisie*, tom. xvi. p. 225, &c.

⁷⁸³If the Sabellians were startled at this conclusion, they were driven down another precipice into the confession, that

If the bishops of the council of Nice⁷⁸⁴ had been permitted to Edition: current; Page: [354] follow the unbiassed dictates of their conscience, Arius and his associates could scarcely have flattered themselves with the hopes of obtaining a majority of votes, in favour of an hypothesis so directly adverse to the two most popular opinions of the Catholic world. The Arians soon perceived the danger of their situation, and prudently assumed those modest virtues which, in the fury of civil and religious dissensions, are seldom practised, or even praised, except by the weaker party. They recommended the exercise of Christian charity and moderation; urged the incomprehensible nature of the controversy; disclaimed the use of any terms or definitions which could not be found in the scriptures; and offered, by very liberal concessions, to satisfy their adversaries without renouncing the integrity of their own principles. The victorious faction received all their proposals with haughty suspicion; and anxiously sought for some irreconcilable mark of distinction, the rejection of which might involve the Arians in the guilt and consequences of heresy. A letter was publicly read, and ignominiously torn, in which their patron, Eusebius of Nicomedia, ingenuously confessed that the admission of the Homoousion, or Consubstantial, a word already familiar to the Platonists, was incompatible with the principles of their theological system. The fortunate opportunity was eagerly embraced by the bishops who governed the resolutions of the synod; and, according to the lively expression of Ambrose,⁷⁸⁵ they used the sword, which heresy itself had drawn from the scabbard, to cut off the head of the hated monster. The consubstantiality of the Father and the Son was established by the council of Nice, and has been Edition: current; Page: [355] unanimously received as a fundamental article of the Christian faith, by the consent of the Greek, the Latin, the Oriental, and the Protestant churches. But, if the same word had not served to stigmatise the heretics and to unite the Catholics, it would have been inadequate to the purpose of the majority by whom it was introduced into the orthodox creed. This majority was divided into two parties, distinguished by a contrary tendency to the sentiments of the Tritheists and of the Sabellians. But, as those opposite extremes seemed to overthrow the foundations either of natural or revealed religion, they mutually agreed to qualify the rigour of their principles and to disavow the just, but invidious, consequences which might be urged by their antagonists. The interest of the common cause inclined them to join their numbers and to conceal their differences; their animosity was softened by the healing counsels of toleration, and their disputes were suspended by the use of the mysterious Homoousion, which either party was free to interpret according to their peculiar tenets. The Sabellian sense, which, about fifty years before, had obliged the

the Father was born of a virgin, that he had suffered on the cross; and thus deserved the odious epithet of Patri-passians, with which they were branded by their adversaries [in the West]. See the invectives of Tertullian against Praxeas, and the temperate reflections of Mosheim (p. 423, 681); and Beausobre, tom. i. l. iii. c. 6, p. 533. [Sabellianism was a particular form of the more general heresy of Monarchianism (initiated by Praxeas towards close of second century), which, with the purpose of avoiding the danger of the Gnostic doctrines which seemed by their *[Hebrew]* emanations *[Hebrew]* to weaken the absolute unity of God *[Hebrew]*'s government, insisted on the Monarchy of the Father and fell into the other extreme of endangering Christ *[Hebrew]*'s divinity. See Harnack *[Hebrew]*'s article on Monarchianism in Herzog and Plitt *[Hebrew]*'s Realencyclopädie. *[Hebrew]* Sabellius lived c. 200 ad He used the phrase persons (πρόσωπα) of the Trinity in the literal sense of masks.]

⁷⁸⁴The transactions of the council of Nice are related by the ancients not only in a partial, but in a very imperfect, manner. Such a picture as Fra Paolo would have drawn can never be recovered; but such rude sketches as have been traced by the pencil of bigotry, and that of reason, may be seen in Tillemont (Mém. Ecclés. tom. vi. p. 669-759) and in Le Clerc (Bibliothèque Universelle, tom. x. p. 435-454).

⁷⁸⁵We are indebted to Ambrose (de Fide, l. iii. cap. ult.) for the knowledge of this curious anecdote. Hoc verbum posuerunt Patres, quod viderunt adversariis esse formidini; ut tanquam evaginato ab ipsis gladio, ipsum nefandæ caput hæreseos amputarent.

council of Antioch⁷⁸⁶ to prohibit this celebrated term, had endeared it to those theologians who entertained a secret but partial affection for a nominal Trinity. But the more fashionable saints of the Arian times, the intrepid Athanasius, the learned Gregory Nazianzen, and the other pillars of the church, who supported with ability and success the Nicene doctrine, appeared to consider the expression of substance as if it had been synonymous with that of nature; and they ventured to illustrate their meaning by affirming that three men, as they belong to the same common species, are consubstantial or homoousian to each other.⁷⁸⁷ This pure Edition: current; Page: [356] and distinct equality was tempered, on the one hand, by the internal connection, and spiritual penetration, which indissolubly unites the divine persons;⁷⁸⁸ and on the other, by the pre-eminence of the Father, which was acknowledged as far as it is compatible with the independence of the Son.⁷⁸⁹ Within these limits the almost invisible and tremulous ball of orthodoxy was allowed securely to vibrate. On either side, beyond this consecrated ground, the heretics and the demons lurked in ambush to surprise and devour the unhappy wanderer. But, as the degrees of theological hatred depend on the spirit of the war rather than on the importance of the controversy, the heretics who degraded, were treated with more severity than those who annihilated, the person of the Son. The life of Athanasius was consumed in irreconcilable opposition to the impious madness of the Arians;⁷⁹⁰ but he defended above twenty years the Sabellianism of Marcellus of Ancyra; and, when at last he was compelled to withdraw himself from his communion, he continued to mention, with an ambiguous smile, the venial errors of his respectable friend.⁷⁹¹

The authority of a general council, to which the Arians themselves had been compelled to submit, inscribed on the banners of the orthodox party the mysterious characters of the word Homoousion, which essentially contributed, notwithstanding Edition: current; Page: [357] some obscure disputes, some nocturnal combats, to maintain and perpetuate the uniformity of faith, or at least of language. The Consubstantialists, who by their success have deserved and obtained the title of Catholics, gloried in the simplicity and steadiness of their own creed, and insulted the repeated variations of their adversaries, who were destitute of any certain rule of faith. The sincerity or the cunning of the Arian chiefs, the fears of the laws or of the people, their reverence for Christ, their hatred of Athanasius, all the causes, human and divine, that influence and disturb the councils of a theological faction, introduced among the sectaries a spirit of discord and inconstancy, which, in the course of a few years, erected eighteen different models of religion,⁷⁹² and avenged the violated

⁷⁸⁶See Bull, Defens. Fid. Nicen. sect. ii. c. i. p. 25-36. He thinks it his duty to reconcile two orthodox synods.

⁷⁸⁷According to Aristotle, the stars were homoousian to each other. [*Hebrew*]That Homoousius means of one substance in kind, hath been shown by Petavius, Curcellæus, Cudworth, Le Clerc, &c., and to prove it would be acium agere.[*Hebrew*]” This is the just remark of Dr. Jortin (vol. ii. p. 212), who examines the Arian controversy with learning, candour, and ingenuity.

⁷⁸⁸See Petavius (Dogm. Theolog. tom. ii. l. iv. c. 16, p. 453, &c.), Cudworth (p. 559), Bull (sect. iv. p. 285-290, edit. Grab.). The περιχώρησις or circumincessio is perhaps the deepest and darkest corner of the whole theological abyss.

⁷⁸⁹The third section of Bull[*Hebrew*]’s Defence of the Nicene Faith, which some of his antagonists have called nonsense, and others heresy, is consecrated to the supremacy of the Father.

⁷⁹⁰The ordinary appellation with which Athanasius and his followers chose to compliment the Arians was that of Ariomanites.

⁷⁹¹Epiphanius, tom. i. Hæres. lxxii. 4, p. 837. See the adventures of Marcellus in Tillemont (Mém. Ecclés. tom. vii. p. 880-899). His work, in one book, of the unity of God, was answered in the three books, which are still extant, of Eusebius. After a long and careful examination, Petavius (tom. ii. l. i. c. 14, p. 78) has reluctantly pronounced the condemnation of Marcellus.

⁷⁹²Athanasius in his epistle concerning the synods of Seleucia and Rimini (tom. i. p. 886-905) has given an ample list of Arian creeds, which has been enlarged and improved by the labours of the indefatigable Tillemont (Mém. Ecclés. tom. vi. p. 477).

dignity of the church. The zealous Hilary,⁷⁹³ who, from the peculiar hardships of his situation, was inclined to extenuate rather than to aggravate the errors of the Oriental clergy, declares that in the wide extent of the ten provinces of Asia, to which he had been banished, there could be found very few prelates who had preserved the knowledge of the true God.⁷⁹⁴ The oppression which he had felt, the disorders of which he was the spectator and the victim, appeased, during a short interval, the angry passions of his soul; and in the following passage, of which I Edition: current; Page: [358] shall transcribe a few lines, the bishop of Poitiers unwarily deviates into the style of a Christian philosopher. *[Hebrew]*It is a thing,*[Hebrew]*" says Hilary, *[Hebrew]*equally deplorable and dangerous, that there are as many creeds as opinions among men, as many doctrines as inclinations, and as many sources of blasphemy as there are faults among us; because we make creeds arbitrarily, and explain them as arbitrarily. The Homoousion is rejected, and received, and explained away by successive synods. The partial or total resemblance of the Father and of the Son is a subject of dispute for these unhappy times. Every year, nay every moon, we make new creeds to describe invisible mysteries. We repent of what we have done, we defend those who repent, we anathematise those whom we defended. We condemn either the doctrine of others in ourselves or our own in that of others; and, reciprocally tearing one another to pieces, we have been the cause of each other*[Hebrew]*'s ruin.*[Hebrew]*"⁷⁹⁵

It will not be expected, it would not perhaps be endured, that I should swell this theological digression by a minute examination of the eighteen creeds, the authors of which, for the most part, disclaimed the odious name of their parent Arius. It is amusing enough to delineate the form, and to trace the vegetation, of a singular plant; but the tedious detail of leaves without flowers, and of branches without fruit, would soon exhaust the patience, and disappoint the curiosity, of the laborious student. One question which gradually arose from the Arian controversy may however be noticed, as it served to produce and discriminate the three sects who were united only by their common aversion to the Homoousion of the Nicene synod. 1. If they were asked, whether the Son was like unto the Father, the question was resolutely answered in the negative by the heretics who adhered to the Edition: current; Page: [359] principles of Arius, or indeed to those of philosophy; which seem to establish an infinite difference between the Creator and the most excellent of his creatures. This obvious consequence was maintained by Aetius,⁷⁹⁶ on whom the zeal of his adversaries bestowed the surname of the Atheist. His restless and aspiring spirit urged him to try almost every profession of human life. He was successively a slave, or at least a husbandman, a travelling tinker, a goldsmith, a physician, a schoolmaster, a theologian, and at last the apostle of a new church, which was propagated by the abilities of his disciple Eunomius.⁷⁹⁷ Armed with texts

⁷⁹³Erasmus, with admirable sense and freedom, has delineated the just character of Hilary. To revise his text, to compose the annals of his life, and to justify his sentiments and conduct, is the province of the Benedictine editors.

⁷⁹⁴Absque episcopo Eleusio et paucis cum eo, ex majore parte Asianæ decem provinciæ, inter quas consisto, vere Deum nesciunt. Atque utinam penitus nescirent! cum proclivior enim veniâ ignorarent quam obtrecentarent. Hilar. de Synodis, sive de Fide Orientalium, c. 63, p. 1186, edit. Benedict. In the celebrated parallel between atheism and superstition, the bishop of Poitiers would have been surprised in the philosophic society of Bayle and Plutarch.

⁷⁹⁵Hilarius ad Constantium, l. ii. c. 4, 5, p. 1227, 1228. This remarkable passage deserved the attention of Mr. Locke, who has transcribed it (vol. iii. p. 470) into the model of his new common-place book.

⁷⁹⁶In Philostorgius (l. iii. c. 15) the character and adventures of Aetius appear singular enough, though they are carefully softened by the hand of a friend. The editor Godefroy (p. 153), who was more attached to his principles than to his author, has collected the odious circumstances which his various adversaries have preserved or invented. [Aetius was honest and downright. He and his party were disgusted by the endless shufflings of the semi-Arians.]

⁷⁹⁷According to the judgment of a man who respected both those sectaries, Aetius had been endowed with a stronger understanding, and Eunomius had acquired more art and learning (Philostorgius, l. viii. c. 18). The confession and

of scripture, and with captious syllogisms from the logic of Aristotle, the subtle Aetius had acquired the fame of an invincible disputant, whom it was impossible either to silence or to convince. Such talents engaged the friendship of the Arian bishops, till they were forced to renounce and even to persecute a dangerous ally, who by the accuracy of his reasoning had prejudiced their cause in the popular opinion and offended the piety of their most devoted followers. 2. The omnipotence of the Creator suggested a specious and respectful solution of the likeness of the Father and the Son; and faith might humbly receive what reason could not presume to deny, that the Supreme God might communicate his infinite perfections, and create a being similar only to himself.⁷⁹⁸ These Arians were powerfully supported by the weight and abilities of Edition: current; Page: [360] their leaders, who had succeeded to the management of the Eusebian interest, and who occupied the principal thrones of the East. They detested, perhaps with some affectation, the impiety of Aetius; they professed to believe, either without reserve, or according to the scriptures, that the Son was different from all other creatures and similar only to the Father. But they denied that he was either of the same or of a similar substance; sometimes boldly justifying their dissent, and sometimes objecting to the use of the word substance, which seems to imply an adequate, or at least a distinct, notion of the nature of the Deity. 3. The sect which asserted the doctrine of a similar substance was the most numerous, at least in the provinces of Asia; and, when the leaders of both parties were assembled in the council of Seleucia,⁷⁹⁹ their opinion would have prevailed by a majority of one hundred and five to forty-three bishops. The Greek word which was chosen to express this mysterious resemblance bears so close an affinity to the orthodox symbol, that the profane of every age have derided the furious contests which the difference of a single diphthong excited between the Homoiousians and the Homoiousians. As it frequently happens that the sounds and characters which approach the nearest to each other accidentally represent the most opposite ideas, the observation would be itself ridiculous, if it were possible to mark any real and sensible distinction between the doctrine of the Semi-Arians, as they were improperly styled, and that of the Catholics themselves. The bishop of Poitiers, who in his Phrygian exile very wisely aimed at a coalition of parties, endeavours to Edition: current; Page: [361] prove that, by a pious and faithful interpretation,⁸⁰⁰ the Homoiousion may be reduced to a consubstantial sense. Yet he confesses that the word has a dark and suspicious aspect; and, as if darkness were congenial to theological disputes, the Semi-Arians, who advanced to the doors of the church, assailed them with the most unrelenting fury.

The provinces of Egypt and Asia, which cultivated the language and manners of the Greeks, had deeply imbibed the venom of the Arian controversy. The familiar study of the Platonic system, a vain and argumentative disposition, a copious and flexible idiom, supplied the clergy and people of the East with an inexhaustible flow of words and distinctions; and, in the midst of their fierce contentions, they easily forgot the doubt which is recommended by philosophy, and the submission

apology of Eunomius (Fabricius, Biblioth. Græc. tom. viii. p. 258-305) is one of the few heretical pieces which have escaped.

⁷⁹⁸Yet, according to the opinion of Estius and Bull (p. 297), there is one power, that of creation, which God cannot communicate to a creature. Estius, who so accurately defined the limits of Omnipotence, was a Dutchman by birth, and by trade a scholastic divine. Dupin, Bibliot. Eccles. tom. xvii. p. 45. [The chief leader of the Homœans was Acacius.]

⁷⁹⁹Sabinus (ap. Socrat. l. ii. c. 39) had copied the acts; Athanasius and Hilary have explained the divisions of this Arian synod; the other circumstances which are relative to it are carefully collected by Baronius and Tillemont.

⁸⁰⁰Fideli et piâ intelligentiâ . . . De Synod. c. 77, p. 1193. In his short apologetical notes (first published by the Benedictines from a MS. of Chartres) he observes, that he used this cautious expression, qui intelligerem et impiam, p. 1206. See p. 1146. Philostorgius, who saw those objects through a different medium, is inclined to forget the difference of the important diphthong. See in particular viii. 17, and Godefroy, p. 352.

which is enjoined by religion. The inhabitants of the West were of a less inquisitive spirit; their passions were not so forcibly moved by invisible objects; their minds were less frequently exercised by the habits of dispute, and such was the happy ignorance of the Gallican church that Hilary himself, above thirty years after the first general council, was still a stranger to the Nicene creed.⁸⁰¹ The Latins had received the rays of divine knowledge through the dark and doubtful medium of a translation. The poverty and stubbornness of their native tongue was not always capable of affording just equivalents for the Greek terms, for the technical words of the Platonic philosophy,⁸⁰² which had been consecrated by the gospel or by the church to express the mysteries of the Christian faith; and a verbal defect might introduce into the Latin theology a long train of error or perplexity.⁸⁰³ But, as the Western provincials had the good fortune of deriving their religion from an orthodox source, they preserved with steadiness the doctrine which they had accepted with docility; and, when the Arian pestilence approached their frontiers, they were supplied with the seasonable preservative of the Homoousion, by the paternal care of the Roman pontiff. Their sentiments and their temper were displayed in the memorable synod of Rimini, which surpassed in numbers the council of Nice, since it was composed of above four hundred bishops of Italy, Africa, Spain, Gaul, Britain, and Illyricum. From the first debates it appeared that only fourscore prelates adhered to the party, though they affected to anathematise the name and memory of Arius. But this inferiority was compensated by the advantages of skill, of experience, and of discipline; and the minority was conducted by Valens and Ursacius, two bishops of Illyricum, who had spent their lives in the intrigues of courts and councils, and who had been trained under the Eusebian banner in the religious wars of the East. By their arguments and negotiations, they embarrassed, they confounded, they at last deceived, the honest simplicity of the Latin bishops; who suffered the palladium of the faith to be extorted from their hands by fraud and importunity rather than by open violence. The council of Rimini was not allowed to separate, till the members had imprudently subscribed a captious creed, in which some expressions, susceptible of an heretical sense, were inserted in the room of the Homoousion. It was on this occasion that, according to Jerom, the world was surprised to find itself Arian.⁸⁰⁴ But the bishops of the Latin provinces had no sooner reached their respective dioceses than they discovered their mistake and repented of their weakness. The ignominious capitulation was rejected with disdain and abhorrence; and the Homoousian standard, which had been shaken but not overthrown, was more firmly replanted in all the churches of the West.⁸⁰⁵

Such was the rise and progress and such were the natural revolutions of those theological disputes which disturbed the peace of Christianity under the reigns of Constantine and of his sons. But, as those princes presumed to extend their despotism over the faith, as well as over the lives

⁸⁰¹Testor Deum cæli atque terræ me cum neutrum audissem, semper tamen utrumque sensisse. . . . Regeneratus pridem et in episcopatu aliquantisper manens fidem Nicenam nunquam nisi exsulaturus audivi. Hilar. de Synodis, c. xci. p. 1205. The Benedictines are persuaded that he governed the diocese of Poitiers several years before his exile.

⁸⁰²Seneca (Epist. lviii.) complains that even the τ[ε]β[ε]ρ[ε]ω of the Platonists (the ens of the bolder schoolmen) could not be expressed by a Latin noun.

⁸⁰³The preference which the fourth council of the Lateran at length gave to a numerical rather than a generical unity (see Petav. tom. ii. l. iv. c. 13, p. 424) was favoured by the Latin language; τριὰς seems to excite the idea of substance, trinitas of qualities.

⁸⁰⁴Ingenuit totus orbis, et Arianum se esse miratus est. Hieronym. adv. Lucifer. tom. i. p. 145.

⁸⁰⁵The story of the council of Rimini is very elegantly told by Sulpicius Severus (Hist. Sacra, l. ii. p. 419-430, edit. Ludg. Bat. 1647 [c. 41]), and by Jerom in his dialogue against the Luciferians. The design of the latter is to apologise for the conduct of the Latin bishops, who were deceived, and who repented. [The council of Rimini was a victory for Acacius and his Homœans.]

and fortunes, of their subjects; the weight of their suffrage sometimes inclined the ecclesiastical balance: and the prerogatives of the King of Heaven were settled, or changed, or modified, in the cabinet of an earthly monarch.

The unhappy spirit of discord which pervaded the provinces of the East interrupted the triumph of Constantine; but the emperor continued for some time to view, with cool and careless indifference, the object of the dispute. As he was yet ignorant of the difficulty of appeasing the quarrels of theologians, he addressed to the contending parties, to Alexander and to Arius, a moderating epistle;⁸⁰⁶ which may be ascribed, Edition: current; Page: [364] with far greater reason, to the untutored sense of a soldier and statesman than to the dictates of any of his episcopal counsellors. He attributes the origin of the whole controversy to a trifling and subtle question, concerning an incomprehensible point of the law, which was foolishly asked by the bishop, and imprudently resolved by the presbyter. He laments that the Christian people, who had the same God, the same religion, and the same worship, should be divided by such inconsiderable distinctions; and he seriously recommends to the clergy of Alexandria the example of the Greek philosophers; who could maintain their arguments without losing their temper, and assert their freedom without violating their friendship. The indifference and contempt of the sovereign would have been, perhaps, the most effectual method of silencing the dispute, if the popular current had been less rapid and impetuous, and if Constantine himself, in the midst of faction and fanaticism, could have preserved the calm possession of his own mind. But his ecclesiastical ministers soon contrived to seduce the impartiality of the magistrate, and to awaken the zeal of the proselyte. He was provoked by the insults which had been offered to his statues; he was alarmed by the real, as well as the imaginary, magnitude of the spreading mischief; and he extinguished the hope of peace and toleration, from the moment that he assembled three hundred bishops within the walls of the same palace. The presence of the monarch swelled the importance of the debate; his attention multiplied the arguments; and he exposed his person with a patient intrepidity, which animated the valour of the combatants. Notwithstanding the applause which has been bestowed on the eloquence and sagacity of Constantine,⁸⁰⁷ a Roman general, whose religion might be still a subject of doubt, and whose mind had not been enlightened either by study or by inspiration, was indifferently qualified to discuss, in the Greek language, a metaphysical question, or an article of faith. But Edition: current; Page: [365] the credit of his favourite Osius, who appears to have presided in the council of Nice, might dispose the emperor in favour of the orthodox party; and a well-timed insinuation that the same Eusebius of Nicomedia, who now protected the heretic, had lately assisted the tyrant,⁸⁰⁸ might exasperate him against their adversaries. The Nicene creed was ratified by Constantine; and his firm declaration that those who resisted the divine judgment of the synod must prepare themselves for an immediate exile annihilated the murmurs of a feeble opposition; which from seventeen, was almost instantly reduced to two, protesting bishops. Eusebius of Cæsarea yielded a reluctant and ambiguous consent to the Homousion;⁸⁰⁹ and the wavering conduct of

⁸⁰⁶Eusebius, in Vit. Constantin. l. ii. c. 64-72. The principles of toleration and religious indifference, contained in this epistle, have given great offence to Baronius, Tillemont, &c., who suppose that the emperor had some evil counsellor, either Satan or Eusebius, at his elbow. See Jortin[Hebrew]'s Remarks, tom. ii. p. 183.

⁸⁰⁷Eusebius, in Vit. Constantin. l. iii. c. 13.

⁸⁰⁸Theodoret has preserved (l. i. c. 20) an epistle from Constantine to the people of Nicomedia, in which the monarch declares himself the public accuser of one of his subjects; he styles Eusebius, ὁ τῆς τυραννικῆς [Hebrew]μότητος συμ[Hebrew]στης and complains of his hostile behaviour during the civil war.

⁸⁰⁹See in Socrates (l. i. c. 8), or rather in Theodoret (l. i. c. 12), an original letter of Eusebius of Cæsarea, in which he attempts to justify his subscribing the Homousion. The character of Eusebius has always been a problem; but those

the Nicomedian Eusebius served only to delay, about three months, his disgrace and exile.⁸¹⁰ The impious Arius was banished into one of the remote provinces of Illyricum; his person and disciples were branded by law with the odious name of Porphyrians; his writings were condemned to the flames: and a capital punishment was denounced against those in whose possession they should be found. The emperor had now imbibed the spirit of controversy, and the angry sarcastic style of his edicts was Edition: current; Page: [366] designed to inspire his subjects with the hatred which he had conceived against the enemies of Christ.⁸¹¹

But, as if the conduct of the emperor had been guided by passion instead of principle, three years from the council of Nice were scarcely elapsed before he discovered some symptoms of mercy, and even of indulgence, towards the proscribed sect, which was secretly protected by his favourite sister. The exiles were recalled; and Eusebius, who gradually resumed his influence over the mind of Constantine, was restored to the episcopal throne from which he had been ignominiously degraded. Arius himself was treated by the whole court with the respect which would have been due to an innocent and oppressed man. His faith was approved by the synod of Jerusalem; and the emperor seemed impatient to repair his injustice, by issuing an absolute command that he should be solemnly admitted to the communion in the cathedral of Constantinople. On the same day which had been fixed for the triumph of Arius, he expired; and the strange and horrid circumstances of his death might excite a suspicion that the orthodox saints had contributed more efficaciously than by their prayers to deliver the church from the most formidable of her enemies.⁸¹² The three principal leaders of the Catholics, Athanasius of Alexandria, Eustathius of Antioch, and Paul of Constantinople, were deposed on various accusations, by the sentence of numerous councils; and were afterwards banished into distant provinces by the first of the Christian emperors, who, in the last moments of Edition: current; Page: [367] his life, received the rites of baptism from the Arian bishop of Nicomedia. The ecclesiastical government of Constantine cannot be justified from the reproach of levity and weakness. But the credulous monarch, unskilled in the stratagems of theological warfare, might be deceived by the modest and specious professions of the heretics, whose sentiments he never perfectly understood; and, while he protected Arius, and persecuted Athanasius, he still considered the council of Nice as the bulwark of the Christian faith and the peculiar glory of his own reign.⁸¹³

The sons of Constantine must have been admitted from their childhood into the rank of

who have read the second critical epistle of Le Clerc (Ars Crit. tom. iii. p. 30-69) must entertain a very unfavourable opinion of the orthodoxy and sincerity of the bishop of Cæsarea. [It is interesting to remark that Eusebius proposed that the creed (πιστις) in use at Cæsarea, which he had learnt as a catechumen, should be adopted by the council; that the council accepted the suggestion; but so altered the wording, especially by adding the attribute Homooousios, that a Cæsarean could not have recognised it and Eusebius hesitated to subscribe.]

⁸¹⁰Athanasius, tom. i. p. 727; Philostorgius, l. i. c. 10, and Godefroy, Commentary, p. 41.

⁸¹¹Socrates, l. i. c. 9. In his circular letters, which were addressed to the several cities, Constantine employed against the heretics the arms of ridicule and comic raillery. [As to the result of the council: *[Hebrew]*the triumph was rather a surprise than a solid victory,*[Hebrew]*" Gwatkin (Arian Controversy, p. 39).]

⁸¹²We derive the original story from Athanasius (tom. i. p. 670), who expresses some reluctance to stigmatise the memory of the dead. He might exaggerate; but the perpetual commerce of Alexandria and Constantinople would have rendered it dangerous to invent. Those who press the literal narrative of the death of Arius (his bowels suddenly burst out in a privy) must make their option between poison and miracle.

⁸¹³The change in the sentiments, or at least in the conduct, of Constantine may be traced in Eusebius (in Vit. Constant. l. iii. c. 23, l. iv. c. 41), Socrates (l. i. c. 23-39), Sozomen (l. ii. c. 16-34), Theodoret (l. i. c. 14-34), and Philostorgius (l. ii. c. 1-17). But the first of these writers was too near the scene of action and the others were too remote from it. It is singular enough that the important task of continuing the history of the church should have been left for two laymen and a heretic. [Mr. Gwatkin rejects the view that Constantin turned Arian.]

catechumens, but they imitated, in the delay of their baptism, the example of their father. Like him, they presumed to pronounce their judgment on mysteries into which they had never been regularly initiated:⁸¹⁴ and the fate of the Trinitarian controversy depended, in a great measure, on the sentiments of Constantius; who inherited the provinces of the East, and acquired the possession of the whole empire. The Arian presbyter or bishop, who had secreted for his use the testament of the deceased emperor, improved the fortunate occasion which had introduced him to the familiarity of a prince whose public counsels were always swayed by his domestic favourites. The eunuchs and slaves diffused the spiritual poison through the palace, and the dangerous infection was communicated, by the female attendants to the guards, and by the empress to her unsuspecting husband.⁸¹⁵ The partiality which Constantius Edition: current; Page: [368] always expressed towards the Eusebian faction⁸¹⁶ was insensibly fortified by the dexterous management of their leaders; and his victory over the tyrant Magnentius increased his inclination, as well as ability, to employ the arms of power in the cause of Arianism. While the two armies were engaged in the plains of Mursa, and the fate of the two rivals depended on the chance of war, the son of Constantine passed the anxious moments in a church of the martyrs, under the walls of the city. His spiritual comforter, Valens, the Arian bishop of the diocese, employed the most artful precautions to obtain such early intelligence as might secure either his favour or his escape. A secret chain of swift and trusty messengers informed him of the vicissitudes of the battle; and, while the courtiers stood trembling round their affrighted master, Valens assured him that the Gallic legions gave way; and insinuated with some presence of mind that the glorious event had been revealed to him by an angel. The grateful emperor ascribed his success to the merits and intercession of the bishop of Mursa, whose faith had deserved the public and miraculous approbation of Heaven.⁸¹⁷ The Arians, who considered as their own the victory of Constantius, preferred his glory to that of his father.⁸¹⁸ Cyril, bishop of Jerusalem, immediately Edition: current; Page: [369] composed the description of a celestial cross encircled with a splendid rainbow; which during the festival of Pentecost, about the third hour of the day, had appeared over the Mount of Olives, to the edification of the devout pilgrims and the people of the holy city.⁸¹⁹ The size of the meteor was gradually magnified; and the Arian historian has ventured to affirm that it was conspicuous to the two armies in the plains of Pannonia; and that the tyrant, who is purposely represented as an idolater, fled

⁸¹⁴Quia etiam tum catechumenus sacramentum fidei merito videretur potuisse nescire. Sulp. Sever. Hist. Sacra, l. ii. p. 410 [c. 39].

⁸¹⁵Socrates, l. ii. c. 2. Sozomen, l. iii. c. 18. Athanas. tom. i. p. 813, 834. He observes that the eunuchs are the natural enemies of the Son. Compare Dr. Jortin[Hebrew]'s Remarks on Ecclesiastical History, vol. iv. p. 3, with a certain genealogy in Candide (ch. ix.), which ends with one of the first companions of Christopher Columbus.

⁸¹⁶[It is important to note that the anti-Nicenes, headed by Eusebius and opposed to Athanasius, did not dare to avow open Arianism till ad 357. The strength of the opposition, as Mr. Gwatkin has well brought out, rested on a [Hebrew]formidable mass of conservative discontent,[Hebrew]" including Jews, pagans, &c., and especially strong in the province of Asia.]

⁸¹⁷Sulpicius Severus, in Hist. Sacra, l. ii. p. 405, 406 [c. 38].

⁸¹⁸Cyril (apud Baron. ad 353, No. 26) expressly observes that in the reign of Constantine the cross had been found in the bowels of the earth; but that it had appeared, in the reign of Constantius, in the midst of the heavens. This opposition evidently proves that Cyril was ignorant of the stupendous miracle to which the conversion of Constantine is attributed; and this ignorance is the more surprising, since it was no more than twelve years after his death that Cyril was consecrated bishop of Jerusalem by the immediate successor of Eusebius of Cæsarea. See Tillemont, Mém. Ecclés. tom. viii. p. 715.

⁸¹⁹It is not easy to determine how far the ingenuity of Cyril might be assisted by some natural appearances of a solar halo.

before the auspicious sign of orthodox Christianity.⁸²⁰

The sentiments of a judicious stranger, who has impartially considered the progress of civil or ecclesiastical discord, are always entitled to our notice: and a short passage of Ammianus, who served in the armies, and studied the character, of Constantius, is perhaps of more value than many pages of theological invectives. [Hebrew]The Christian religion, which, in itself,[Hebrew]" says that moderate historian, [Hebrew]is plain and simple, he confounded by the dotage of superstition. Instead of reconciling the parties by the weight of his authority, he cherished and propagated, by verbal disputes, the differences which his vain curiosity had excited. The highways were covered with troops of bishops, galloping from every side to the assemblies, which they call synods; and, while they laboured to reduce the whole sect to their own particular opinions, the public establishment of the posts was almost ruined by their hasty and repeated journeys.[Hebrew]"⁸²¹ Our more intimate knowledge of Edition: current; Page: [370] the ecclesiastical transactions of the reign of Constantius would furnish an ample commentary on this remarkable passage; which justifies the rational apprehensions of Athanasius that the restless activity of the clergy, who wandered round the empire in search of the true faith, would excite the contempt and laughter of the unbelieving world.⁸²² As soon as the emperor was relieved from the terrors of the civil war, he devoted the leisure of his winter quarters at Arles, Milan, Sirmium, and Constantinople, to the amusement or toils of controversy: the sword of the magistrate, and even of the tyrant, was unsheathed, to enforce the reasons of the theologian; and, as he opposed the orthodox faith of Nice, it is readily confessed that his incapacity and ignorance were equal to his presumption.⁸²³ The eunuchs, the women, and the bishops, who governed the vain and feeble mind of the emperor, had inspired him with an insuperable dislike to the Homoousion; but his timid conscience was alarmed by the impiety of Aetius. The guilt of that atheist was aggravated by the suspicious favour of the unfortunate Gallus; and even the deaths of the Imperial ministers who had been massacred at Antioch were imputed to the suggestions of that dangerous sophist. The mind of Constantius, which could neither be moderated by reason nor fixed by faith, was blindly impelled to either side of the dark and empty abyss by his horror of the opposite extreme: he alternately embraced and condemned the sentiments, he successively banished and recalled the leaders, of the Arian and Semi-Arian factions.⁸²⁴ During the Edition: current; Page: [371] season of public business or festivity, he employed whole days, and even nights, in selecting the words, and weighing the syllables, which composed his fluctuating creeds. The subject of his meditation still pursued and

⁸²⁰Philostorgius, l. iii. c. 26. He is followed by the author of the Alexandrian Chronicle, by Cedrenus, and by Nicephorus (see Gothofred. Dissert. p. 188). They could not refuse a miracle, even from the hand of an enemy.

⁸²¹So curious a passage well deserves to be transcribed. Christianam religionem absolutam et simplicem, anili superstitione confundens; in quâ scrutandâ perplexius quam componendâ gravius excitaret discidia plurima; quæ progressa fusius aluit concertatione verborum, ut catervis antistitum jumentis publicis ultro citroque discurrentibus, per synodos (quas appellant) dum ritum omnem ad suum trahere conantur ([so best MS.], Valesius reads conatur) rei vehiculariæ concideret nervos. Ammianus, xxi. 16.

⁸²²Athanas. tom. i. p. 870.

⁸²³Socrates, l. ii. c. 35-47. Sozomen, l. iv. c. 12-30. Theodoret, l. ii. c. 18-32. Philostorg. l. iv. c. 4-12; l. v. c. 1-4; l. vi. c. 1-5.

⁸²⁴Sozomen, l. iv. c. 23, Athanas. tom. i. p. 831. Tillemont (Mém. Ecclés. tom. vii. p. 947) has collected several instances of the haughty fanaticism of Constantius from the detached treatises of Lucifer of Cagliari. The very titles of these treatises inspire zeal and terror; [Hebrew]Moriendum pro Dei Filio,[Hebrew]De Regibus Apostaticis,[Hebrew]De non conveniendo cum Hæretico,[Hebrew]De non parcendo in Deum delinquentibus.[Hebrew]" [Exiled 355-361. His strictness led him to renounce communion with Athanasius as tainted by Arianism. His works are printed in Migne, Patrol. xiii., and there is a new ed. by Hartel, 1886.]

occupied his slumbers; the incoherent dreams of the emperor were received as celestial visions; and he accepted with complacency the lofty title of bishop of bishops, from those ecclesiastics who forgot the interest of their order for the gratification of their passions. The design of establishing an uniformity of doctrine, which had engaged him to convene so many synods in Gaul, Italy, Illyricum, and Asia, was repeatedly baffled by his own levity, by the divisions of the Arians, and by the resistance of the Catholics; and he resolved, as the last and decisive effort, imperiously to dictate the decrees of a general council. The destructive earthquake of Nicomedia, the difficulty of finding a convenient place, and perhaps some secret motives of policy, produced an alteration in the summons. The bishops of the East were directed to meet at Seleucia, in Isauria; while those of the West held their deliberations at Rimini, on the coast of the Hadriatic; and, instead of two or three deputies from each province, the whole episcopal body was ordered to march. The Eastern council, after consuming four days in fierce and unavailing debate, separated without any definitive conclusion. The council of the West was protracted till the seventh month. Taurus, the Prætorian prefect, was instructed not to dismiss the prelates till they should all be united in the same opinion; and his efforts were supported by a power of banishing fifteen of the most refractory, and a promise of the consulship if he achieved so difficult an adventure. His prayers and threats, the authority of the sovereign, the sophistry of Valens and Ursacius, the distress of cold and Edition: current; Page: [372] hunger, and the tedious melancholy of a hopeless exile, at length extorted the reluctant consent of the bishops of Rimini. The deputies of the East and of the West attended the emperor in the palace of Constantinople, and he enjoyed the satisfaction of imposing on the world a profession of faith which established the likeness, without expressing the consubstantiality, of the Son of God.⁸²⁵ But the triumph of Arianism had been preceded by the removal of the orthodox clergy, whom it was impossible either to intimidate or to corrupt; and the reign of Constantius was disgraced by the unjust and ineffectual persecution of the great Athanasius.

We have seldom an opportunity of observing, either in active or speculative life, what effect may be produced, or what obstacles may be surmounted, by the force of a single mind when it is inflexibly applied to the pursuit of a single object. The immortal name of Athanasius⁸²⁶ will never be separated from the Catholic doctrine of the Trinity, to whose defence he consecrated every moment and every faculty of his being. Educated in the family of Alexander, he had vigorously opposed the early progress of the Arian heresy: he exercised the important functions of secretary under the aged prelate; and the fathers of the Nicene council beheld, with surprise and respect, the rising virtues of the young deacon. In a time of public danger, the dull claims of age and of rank are sometimes superseded; and within five months after his return from Nice,⁸²⁷ the deacon Athanasius was seated on the Edition: current; Page: [373] archiepiscopal throne of Egypt. He filled that eminent station above forty-six years, and his long administration was spent in a perpetual combat against the powers of Arianism. Five times was Athanasius expelled from his throne; twenty years he passed as an exile or a fugitive; and almost every province of the Roman empire was successively witness to his merit, and his sufferings in the cause of the Homooousion, which

⁸²⁵Sulp. Sever. Hist. Sacra, l. ii. p. 418-430 [c. 41-44]. The Greek historians were very ignorant of the affairs of the West.

⁸²⁶We may regret that Gregory Nazianzen composed a panegyric instead of a life of Athanasius; but we should enjoy and improve the advantage of drawing our most authentic materials from the rich fund of his own epistles and apologies (tom. i. p. 670-951). I shall not imitate the example of Socrates (l. ii. c. 1), who published the first edition of his history without giving himself the trouble to consult the writings of Athanasius. Yet even Socrates, the more curious Sozomen, and the learned Theodoret connect the life of Athanasius with the series of ecclesiastical history. The diligence of Tillemont (tom. viii.) and of the Benedictine editors has collected every fact, and examined every difficulty.

⁸²⁷[The Coptic date is 17th April, 326.]

he considered as the sole pleasure and business, as the duty, and as the glory, of his life. Amidst the storms of persecution, the archbishop of Alexandria was patient of labour, jealous of fame, careless of safety; and, although his mind was tainted by the contagion of fanaticism, Athanasius displayed a superiority of character and abilities, which would have qualified him, far better than the degenerate sons of Constantine, for the government of a great monarchy. His learning was much less profound and extensive than that of Eusebius of Cæsarea, and his rude eloquence could not be compared with the polished oratory of Gregory or Basil; but, whenever the primate of Egypt was called upon to justify his sentiments or his conduct, his unpremeditated style, either of speaking or writing, was clear, forcible, and persuasive. He has always been revered in the orthodox school, as one of the most accurate masters of the Christian theology; and he was supposed to possess two profane sciences, less adapted to the episcopal character, the knowledge of jurisprudence⁸²⁸ and that of divination.⁸²⁹ Some fortunate conjectures of future events, which impartial reasoners might ascribe to the experience and judgment of Athanasius, were attributed by his Edition: current; Page: [374] friends to heavenly inspiration, and imputed by his enemies to infernal magic.

But, as Athanasius was continually engaged with the prejudices and passions of every order of men, from the monk to the emperor, the knowledge of human nature was his first and most important science. He preserved a distinct and unbroken view of a scene which was incessantly shifting; and never failed to improve those decisive moments which are irrecoverably past before they are perceived by a common eye. The archbishop of Alexandria was capable of distinguishing how far he might boldly command, and where he must dexterously insinuate; how long he might contend with power, and when he must withdraw from persecution; and, while he directed the thunders of the church against heresy and rebellion, he could assume, in the bosom of his own party, the flexible and indulgent temper of a prudent leader. The election of Athanasius has not escaped the reproach of irregularity and precipitation,⁸³⁰ but the propriety of his behaviour conciliated the affections both of the clergy and of the people. The Alexandrians were impatient to rise in arms for the defence of an eloquent and liberal pastor. In his distress he always derived support, or at least consolation, from the faithful attachment of his parochial clergy; and the hundred bishops of Egypt adhered, with unshaken zeal, to the cause of Athanasius. In the modest equipage which pride and policy would affect, he frequently performed the episcopal visitation of his provinces, from the mouth of the Nile to the confines of Æthiopia; familiarly conversing with the meanest of the populace, and humbly saluting the saints and hermits of the desert.⁸³¹ Nor was it only in ecclesiastical assemblies, Edition: current; Page: [375] among men whose education and manners were similar to his own, that Athanasius displayed the ascendancy of his genius. He appeared with easy and respectful firmness in the courts of princes; and in the various turns of his prosperous and adverse fortune, he never lost the confidence of his friends or the esteem of his enemies.

⁸²⁸Sulpicius Severus (*Hist. Sacra*, l. ii. p. 396 [c. 36, ad init.]) calls him a lawyer, a jurisconsult. This character cannot now be discovered either in the life or writings of Athanasius [*uirum sanctum* is the true reading, not *iuris consultum*].

⁸²⁹*Dicebatur enim fatidicarum sortium fidem, quæve augurales portenderent alites scientissime callens aliquoties prædixisse futura.* Ammianus, xv. 7. A prophecy, or rather a joke, is related by Sozomen (l. iv. c. 10), which evidently proves (if the crows speak Latin) that Athanasius understood the language of the crows.

⁸³⁰The irregular ordination of Athanasius was slightly mentioned in the councils which were held against him. See Philostorg. l. ii. c. 11, and Godefroy, p. 71; but it can scarcely be supposed that the assembly of the bishops of Egypt would solemnly attest a public falsehood. Athanas. tom. i. p. 726.

⁸³¹See the *History of the Fathers of the Desert*, published by Rosweide; and Tillemont, *Mém. Ecclés.* tom. vii. in the lives of Anthony, Pachomius, &c. Athanasius himself, who did not disdain to compose the life of his friend Anthony, has carefully observed how often the holy monk deplored and prophesied the mischiefs of the Arian heresy. Athanas. tom. ii. p. 492, 498, &c.

In his youth, the primate of Egypt resisted the great Constantine, who had repeatedly signified his will that Arius should be restored to the Catholic communion.⁸³² The emperor respected, and might forgive, this inflexible resolution; and the faction who considered Athanasius as their most formidable enemy were constrained to dissemble their hatred, and silently to prepare an indirect and distant assault. They scattered rumours and suspicions, represented the archbishop as a proud and oppressive tyrant, and boldly accused him of violating the treaty which had been ratified in the Nicene council with the schismatic followers of Meletius.⁸³³ Athanasius had openly disapproved that ignominious peace, and the emperor was disposed to believe that he had abused his ecclesiastical and civil power, to persecute those odious sectaries; that he had sacrilegiously broken a chalice in one of their churches of Mareotis; that he had whipped or imprisoned six of their bishops; and that Arsenius, a seventh Edition: current; Page: [376] bishop of the same party, had been murdered, or at least mutilated, by the cruel hand of the primate.⁸³⁴ These charges, which affected his honour and his life, were referred by Constantine to his brother Dalmatius the censor, who resided at Antioch; the synods of Cæsarea and Tyre were successively convened; and the bishops of the East were instructed to judge the cause of Athanasius before they proceeded to consecrate the new church of the Resurrection at Jerusalem. The primate might be conscious of his innocence; but he was sensible that the same implacable spirit which had dictated the accusation would direct the proceeding, and pronounce the sentence. He prudently declined the tribunal of his enemies, despised the summons of the synod of Cæsarea; and, after a long and artful delay, submitted to the peremptory commands of the emperor, who threatened to punish his criminal disobedience if he refused to appear in the council of Tyre.⁸³⁵ Before Athanasius, at the head of fifty Egyptian prelates, sailed from Alexandria, he had wisely secured the alliance of the Meletians; and Arsenius himself, his imaginary victim and his secret friend, was privately concealed in his train. The synod of Tyre was conducted by Eusebius of Cæsarea with more passion, and with less art, than his learning and experience might promise; his numerous faction repeated the names of homicide and Edition: current; Page: [377] tyrant; and their clamours were encouraged by the seeming patience of Athanasius; who expected the decisive moment to produce Arsenius alive and unhurt in the midst of the assembly. The nature of the other charges did not admit of such clear and satisfactory replies; yet the archbishop was able to prove that, in the village where he was

⁸³²At first Constantine threatened in speaking, but requested in writing, κα[Heβρεω]γράφως μ[Heβρεω]ν [Heβρεω]πέλει, γράφων δ[Heβρεω], [Heβρεω]ξίου. [The first menaces were from Eusebius. Afterwards Constantine wrote threateningly, Socrates, i. 27.] His letters gradually assumed a menacing tone; but, while he required that the entrance of the church should be open to all, he avoided the odious name of Arius. Athanasius, like a skilful politician, has accurately marked these distinctions (tom. i. p. 788), which allowed him some scope for excuse and delay.

⁸³³The Meletians in Egypt, like the Donatists in Africa, were produced by an episcopal quarrel which arose from the persecution. I have not leisure to pursue the obscure controversy, which seems to have been misrepresented by the partiality of Athanasius, and the ignorance of Epiphanius. See Mosheim[Hebrew]'s General History of the Church, vol. i. p. 201.

⁸³⁴The treatment of the six bishops is specified by Sozomen (l. ii. c. 25); but Athanasius himself, so copious on the subject of Arsenius and the chalice, leaves this grave accusation without a reply. [Gibbon omits to mention that Athanasius was summoned to Nicomedia (331-2) to answer a first set of charges, and was victorious (cp. Athanasius, Festal letter iv.). The charge as to Arsenius was made subsequently and was to be heard by Dalmatius, but Constantine, hearing from Egypt that Arsenius was alive, stopped the proceedings, and then Athanasius was reconciled with his opponent Arcaph, the leader of the Meletians. Thus there is an interval between this episode and the council of Cæsarea summoned in 334 at the instigation of Eusebius.]

⁸³⁵Athanas. tom. i. p. 788. Socrates, l. i. c. 28. Sozomen, l. ii. c. 25. The emperor, in his epistle of Convocation (Euseb. in Vit. Constant. l. iv. c. 42), seems to prejudge some members of the clergy, and it was more than probable that the synod would apply those reproaches to Athanasius.

accused of breaking a consecrated chalice, neither church nor altar nor chalice could really exist. The Arians, who had secretly determined the guilt and condemnation of their enemy, attempted, however, to disguise their injustice by the imitation of judicial forms: the synod appointed an episcopal commission of six delegates to collect evidence on the spot; and this measure, which was vigorously opposed by the Egyptian bishops, opened new scenes of violence and perjury.⁸³⁶ After the return of the deputies from Alexandria, the majority of the council pronounced the final sentence of degradation and exile against the primate of Egypt. The decree, expressed in the fiercest language of malice and revenge, was communicated to the emperor and the Catholic church; and the bishops immediately resumed a mild and devout aspect, such as became their holy pilgrimage to the sepulchre of Christ.⁸³⁷

But the injustice of these ecclesiastical judges had not been countenanced by the submission, or even by the presence, of Athanasius. He resolved to make a bold and dangerous experiment, whether the throne was inaccessible to the voice of truth; and, before the final sentence could be pronounced at Tyre, the intrepid primate threw himself into a bark which was ready to hoist sail for the Imperial city. The request of a formal audience might have been opposed or eluded; but Edition: current; Page: [378] Athanasius concealed his arrival, watched the moment of Constantine[*Hebrew*]'s return from an adjacent villa, and boldly encountered his angry sovereign as he passed on horseback through the principal street of Constantinople. So strange an apparition excited his surprise and indignation; and the guards were ordered to remove the importunate suitor; but his resentment was subdued by involuntary respect; and the haughty spirit of the emperor was awed by the courage and eloquence of a bishop, who implored his justice and awakened his conscience.⁸³⁸ Constantine listened to the complaints of Athanasius with impartial and even gracious attention; the members of the synod of Tyre were summoned to justify their proceedings; and the arts of the Eusebian faction would have been confounded, if they had not aggravated the guilt of the primate by the dexterous supposition of an unpardonable offence: a criminal design to intercept and detain the cornfleet of Alexandria, which supplied the subsistence of the new capital.⁸³⁹ The emperor was satisfied that the peace of Egypt would be secured by the absence of a popular leader; but he refused to fill the vacancy of the archiepiscopal throne; and the sentence which, after a long hesitation, he pronounced was that of a jealous ostracism, rather than of an ignominious exile. In the remote province of Gaul, but in the hospitable court of Treves, Athanasius passed about twenty-eight months. The death of the emperor changed Edition: current; Page: [379] the face of public affairs; and, amidst the general indulgence of a young reign, the primate was restored to his country by an honourable edict of the younger Constantine, who expressed a deep sense of the innocence and merit of his venerable guest.⁸⁴⁰

⁸³⁶See, in particular, the second Apology of Athanasius (tom. i. p. 763-808), and his Epistles to the Monks (p. 808-866). They are justified by original and authentic documents; but they would inspire more confidence if he appeared less innocent, and his enemies less absurd. [It is clear from the authorities that the commission was a mere farce.]

⁸³⁷Eusebius in Vit. Constantin. l. iv. c. 41-47.

⁸³⁸Athanas. tom. i. p. 804. In a church dedicated to St. Athanasius this situation would afford a better subject for a picture than most of the stories of miracles and martyrdoms.

⁸³⁹Athanas. tom. i. p. 729. Eunapius has related (in Vit. Sophist. p. 36, 37, edit. Commelin) a strange example of the cruelty and credulity of Constantine on a similar occasion. The eloquent Sopater, a Syrian philosopher, enjoyed his friendship, and provoked the resentment of Ablavius, his Prætorian prefect. The corn-fleet was detained for want of a south wind; the people of Constantinople were discontented; and Sopater was beheaded, on a charge that he had bound the winds by the power of magic. Suidas adds that Constantine wished to prove, by this execution, that he had absolutely renounced the superstition of the Gentiles.

⁸⁴⁰In his return he saw Constantius twice, at Viminacium and at Cæsarea in Cappadocia (Athanas. tom. i. p. 676).

The death of that prince exposed Athanasius to a second persecution; and the feeble Constantius, the sovereign of the East, soon became the secret accomplice of the Eusebians. Ninety bishops of that sect or faction assembled at Antioch, under the specious pretence of dedicating the cathedral. They composed an ambiguous creed, which is faintly tinged with the colours of Semi-Arianism, and twenty-five canons, which still regulate the discipline of the orthodox Greeks.⁸⁴¹ It was decided, with some appearance of equity, that a bishop, deprived by a synod, should not resume his episcopal functions, till he had been absolved by the judgment of an equal synod; the law was immediately applied to the case of Athanasius, the council of Antioch pronounced, or rather confirmed, his degradation: a stranger, named Gregory, was seated on his throne; and Philagrius,⁸⁴² the prefect of Egypt, was instructed to support the new primate with the civil and military powers of the province. Oppressed by the conspiracy of the Asiatic prelates Athanasius withdrew from Alexandria, and passed three⁸⁴³ years as an exile and a suppliant Edition: current; Page: [380] on the holy threshold of the Vatican.⁸⁴⁴ By the assiduous study of the Latin language, he soon qualified himself to negotiate with the Western clergy; his decent flattery swayed and directed the haughty Julius: the Roman Pontiff was persuaded to consider his appeal as the peculiar interest of the Apostolic see; and his innocence was unanimously declared in a council of fifty bishops of Italy.⁸⁴⁵ At the end of three years, the primate was summoned to the court of Milan by the emperor Constans, who, in the indulgence of unlawful pleasures, still professed a lively regard for the orthodox faith. The cause of truth and justice was promoted by the influence of gold,⁸⁴⁶ and the ministers of Constans Edition: current; Page: [381] advised their sovereign to require the convocation of an ecclesiastical assembly, which might act as the representatives of the Catholic

Tillemont supposes that Constantine introduced him to the meeting of the three royal brothers in Pannonia (*Mémoires Ecclés. tom. viii. p. 69*).

⁸⁴¹See Beveridge, *Pandect. tom. i. p. 429-452*, and *tom. ii. Annotation. p. 182*. Tillemont, *Mém. Ecclés. tom. vi. p. 310-324*. St. Hilary of Poitiers has mentioned this synod of Antioch with too much favour and respect. He reckons ninety-seven bishops.

⁸⁴²This magistrate, so odious to Athanasius, is praised by Gregory Nazianzen, *tom. i. Orat. xxi. p. 390, 391*.

Sæpe premente Deo fert Deus alter opem.

⁸⁴³The chronological difficulties which perplex the residence of Athanasius at Rome are strenuously agitated by Valesius (*Observat. ad Calcem, tom. ii. Hist. Eccles. l. i. c. 1-5*) and Tillemont (*Mém. Ecclés. tom. viii. p. 674, &c.*). I have followed the simple hypothesis of Valesius, who allows only one journey, after the intrusion of Gregory. [Rightly; but the date must be Easter 340. This follows from the true date of the Council of Sardica, fixed by Hefele (*Conciliengeschichte, i. p. 503-516*) to ad 343, autumn-344, spring (Mansi had put it in 344); which date itself depends on the true date of the return of Athanasius to Alexandria. This had been formerly placed in 349; but the fragment of an anonymous biographer of Athanasius (c. 385 ad), published by Maffei in *Osservazioni litterarie, iii. p. 60*, in 1738, gave the right date, 346 (21st Oct.), and occasioned an admirable discussion of the chronology by Mansi, *Concilia, 3, p. 87 sqq.* This was confirmed by one of the Festal Letters (Ep. 19), written after the return of Athanasius, in 347; and agrees with the *Historia Acephala*, and Jerome[*Hebrew*]'s *Chronicle* (Migne, 8, 682). Hefele[*Hebrew*]'s correction of Mansi as to the Council takes account of the date 343, given in the Index to the Festal Letters.]

⁸⁴⁴I cannot forbear transcribing a judicious observation of Wetstein (*Prolegomen. N. T. p. 19*): *Si tamen Historiam Ecclesiasticam velimus consulere patebit jam inde a seculo quarto, cum, ortis controversiis, ecclesiæ Græciæ doctores in duas partes scinderentur, ingenio, eloquentiâ, numero, tantum non æquales, eam partem quæ vincere cupiebat Roman confugisse, majestatemque pontificis comiter coluisse, eoque pacto oppressis per pontificem et episcopos Latinos adversariis prævaluisse, atque orthodoxiam in consiliis stabilivisse. Eam ob causam Athanasius, non sine comitatu, Romam petiit, pluresque annos ibi hæsit.*

⁸⁴⁵[A letter of Pope Julius, reporting the decision of the Synod to the Easterns, is extant, which Mr. Gwatkin describes as [*Hebrew*]one of the ablest documents of the entire controversy.[*Hebrew*]]

⁸⁴⁶*Philostor. l. iii. c. 12*. If any corruption was used to promote the interest of religion, an advocate of Athanasius might justify or excuse this questionable conduct by the example of Cato and Sidney; the former of whom is said to have given, and the latter to have received, a bribe, in the cause of liberty.

church. Ninety-four bishops of the West, seventy-six bishops of the East, encountered each other at Sardica on the verge of the two empires, but in the dominions of the protector of Athanasius. Their debates soon degenerated into hostile altercations; the Asiatics, apprehensive for their personal safety, retired to Philippopolis in Thrace; and the rival synods reciprocally hurled their spiritual thunders against their enemies, whom they piously condemned as the enemies of the true God. Their decrees were published and ratified in their respective provinces; and Athanasius, who in the West was revered as a saint, was exposed as a criminal to the abhorrence of the East.⁸⁴⁷ The council of Sardica reveals the first symptoms of discord and schism between the Greek and Latin churches, which were separated by the accidental difference of faith and the permanent distinction of language.

During the second exile in the West, Athanasius was frequently admitted to the Imperial presence: at Capua, Lodi, Milan, Verona, Padua, Aquileia, and Treves. The bishop of the diocese usually assisted at these interviews; the master of the offices stood before the veil or curtain of the sacred apartment; and the uniform moderation of the primate might be attested by these respectable witnesses, to whose evidence he solemnly appeals.⁸⁴⁸ Prudence would undoubtedly suggest the mild and respectful tone that became a subject and a bishop. In these familiar conferences with the sovereign Edition: current; Page: [382] of the West, Athanasius might lament the error of Constantius; but he boldly arraigned the guilt of his eunuchs and his Arian prelates; deplored the distress and danger of the Catholic church; and excited Constantius to emulate the zeal and glory of his father. The emperor declared his resolution of employing the troops and treasures of Europe in the orthodox cause; and signified, by a concise and peremptory epistle to his brother Constantius, that, unless he consented to the immediate restoration of Athanasius, he himself, with a fleet and army, would seat the archbishop on the throne of Alexandria.⁸⁴⁹ But this religious war, so horrible to nature, was prevented by the timely compliance of Constantius; and the emperor of the East condescended to solicit a reconciliation with a subject whom he had injured. Athanasius waited with decent pride, till he had received three successive epistles full of the strongest assurances of the protection, the favour, and the esteem of his sovereign; who invited him to resume his episcopal seat, and who added the humiliating precaution of engaging his principal ministers to attest the sincerity of his intentions. They were manifested in a still more public manner by the strict orders which were despatched into Egypt to recall the adherents of Athanasius, to restore their privileges, to proclaim their innocence, and to erase from the public registers the illegal proceedings which had been obtained during the prevalence of the Eusebian faction. After every satisfaction and security had been given, which justice or even delicacy could require, the primate proceeded, by slow journeys, through the provinces of Thrace, Asia, and Syria; and his progress was marked by the abject homage of the oriental bishops, who excited his contempt without deceiving his penetration.⁸⁵⁰ At Antioch he saw the emperor Edition: current; Page: [383] Constantius; sustained,

⁸⁴⁷The Canon which allows appeals to the Roman pontiffs [*Hebrew*] in honour of the memory of Peter [*Hebrew*]" has almost raised the council of Sardica to the dignity of a general council; and its acts have been ignorantly or artfully confounded with those of the Nicene synod. See Tillemont, tom. viii. p. 689, and Geddes [*Hebrew*]'s Tracts, vol. ii. p. 419-460.

⁸⁴⁸As Athanasius dispersed secret invectives against Constantius (see the Epistle to the Monks), at the same time that he assured him of his profound respect, we might distrust the professions of the archbishop, tom. i. p. 677.

⁸⁴⁹Notwithstanding the discreet silence of Athanasius, and the manifest forgery of a letter inserted by Socrates, these menaces are proved by the unquestionable evidence of Lucifer of Cagliari, and even of Constantius himself. See Tillemont, tom. viii. p. 693.

⁸⁵⁰I have always entertained some doubts concerning the retraction of Ursacius and Valens (Athanas. tom. i. p. 776).

with modest firmness, the embraces and protestations of his master, and eluded the proposal of allowing the Arians a single church at Alexandria, by claiming, in the other cities of the empire, a similar toleration for his own party; a reply which might have appeared just and moderate in the mouth of an independent prince. The entrance of the archbishop into his capital was a triumphal procession; absence and persecution had endeared him to the Alexandrians; his authority, which he exercised with rigour, was more firmly established; and his fame was diffused from Æthiopia to Britain, over the whole extent of the Christian world.⁸⁵¹

But the subject who has reduced his prince to the necessity of dissembling can never expect a sincere and lasting forgiveness; and the tragic fate of Constans soon deprived Athanasius of a powerful and generous protector. The civil war between the assassin and the only surviving brother of Constans, which afflicted the empire above three years, secured an interval of repose to the Catholic church; and the two contending parties were desirous to conciliate the friendship of a bishop who, by the weight of his personal authority, might determine the fluctuating resolutions of an important province. He gave audience to the ambassadors of the tyrant, with whom he was afterwards accused of holding a secret correspondence;⁸⁵² and the emperor Constantius Edition: current; Page: [384] repeatedly assured his dearest father, the most reverend Athanasius, that, notwithstanding the malicious rumours which were circulated by their common enemies, he had inherited the sentiments, as well as the throne, of his deceased brother.⁸⁵³ Gratitude and humanity would have disposed the primate of Egypt to deplore the untimely fate of Constans, and to abhor the guilt of Magnentius; but, as he clearly understood that the apprehensions of Constantius were his only safeguard, the fervour of his prayers for the success of the righteous cause might perhaps be somewhat abated. The ruin of Athanasius was no longer contrived by the obscure malice of a few bigoted or angry bishops, who abused the authority of a credulous monarch. The monarch himself avowed the resolution, which he had so long suppressed, of avenging his private injuries;⁸⁵⁴ and the first winter after his victory, which he passed at Arles, was employed against an enemy more odious to him than the vanquished tyrant of Gaul.

If the emperor had capriciously decreed the death of the most eminent and virtuous citizen of the republic, the cruel order would have been executed without hesitation, by the ministers of open violence or of specious injustice. The caution, the delay, the difficulty with which he proceeded in the condemnation and punishment of a popular bishop, discovered to the world that the privileges of the church had already revived a sense of order and freedom in the Roman government. The sentence which was pronounced in the synod of Tyre, and subscribed by a large majority of the Eastern bishops, had never been expressly repealed; and, as Athanasius had been once degraded from his episcopal dignity by the judgment of his brethren, every subsequent act might be considered as irregular, and even criminal. But the Edition: current; Page: [385] memory

Their epistles to Julius, bishop of Rome, and to Athanasius himself, are of so different a cast from each other that they cannot both be genuine. The one speaks the language of criminals who confess their guilt and infamy; the other of enemies who solicit on equal terms an honourable reconciliation.

⁸⁵¹The circumstances of his second return may be collected from Athanasius himself, tom. i. p. 769 and 822, 843; Socrates, l. ii. c. 18; Sozomen, l. iii. c. 19; Theodoret, l. ii. c. 11, 12; Philostorgius, l. iii. c. 12.

⁸⁵²Athanasius (tom. i. p. 677, 678) defends his innocence by pathetic complaints, solemn assertions, and specious arguments. He admits that letters had been forged in his name, but he requests that his own secretaries, and those of the tyrant, may be examined, whether those letters had been written by the former or received by the latter.

⁸⁵³Athanas. tom. i. p. 825-844.

⁸⁵⁴Athanas. tom. i. p. 861. Theodoret, l. ii. c. 16. The emperor declared that he was more desirous to subdue Athanasius than he had been to vanquish Magnentius or Sylvanus.

of the firm and effectual support which the primate of Egypt had derived from the attachment of the Western church engaged Constantius to suspend the execution of the sentence, till he had obtained the concurrence of the Latin bishops. Two years were consumed in ecclesiastical negotiations; and the important cause between the emperor and one of his subjects was solemnly debated, first in the synod of Arles, and afterwards in the great council of Milan,⁸⁵⁵ which consisted of above three hundred bishops. Their integrity was gradually undermined by the arguments of the Arians, the dexterity of the eunuchs, and the pressing solicitations of a prince, who gratified his revenge at the expense of his dignity, and exposed his own passions, whilst he influenced those of the clergy. Corruption, the most infallible symptom of constitutional liberty, was successfully practised: honours, gifts, and immunities were offered and accepted as the price of an episcopal vote;⁸⁵⁶ and the condemnation of the Alexandrian primate was artfully represented as the only measure which could restore the peace and union of the Catholic church. The friends of Athanasius were not, however, wanting to their leader, or to their cause. With a manly spirit, which the sanctity of their character rendered less dangerous, they maintained in public debate, and in private conference with the emperor, the eternal obligation of religion and justice. They declared that neither the hope of his favour nor the fear of his displeasure should prevail on them to join in the condemnation of an absent, an innocent, a respectable Edition: current; Page: [386] brother.⁸⁵⁷ They affirmed, with apparent reason, that the illegal and obsolete decrees of the council of Tyre had long since been tacitly abolished by the Imperial edicts, the honourable re-establishment of the archbishop of Alexandria, and the silence or recantation of his most clamorous adversaries. They alleged that his innocence had been attested by the unanimous bishops of Egypt, and had been acknowledged, in the councils of Rome and Sardica,⁸⁵⁸ by the impartial judgment of the Latin church. They deplored the hard condition of Athanasius, who, after enjoying so many years his seat, his reputation, and the seeming confidence of his sovereign, was again called upon to confute the most groundless and extravagant accusations. Their language was specious; their conduct was honourable: but in this long and obstinate contest, which fixed the eyes of the whole empire on a single bishop, the ecclesiastical factions were prepared to sacrifice truth and justice to the more interesting object of defending, or removing, the intrepid champion of the Nicene faith. The Arians still thought it prudent to disguise, in ambiguous language, their real sentiments and designs; but the orthodox bishops, armed with the favour of the people and the decrees of a general council, insisted on every occasion, and particularly at Milan, that their adversaries should purge themselves from the suspicion of heresy, before they presumed to arraign the conduct of the great Athanasius.⁸⁵⁹

But the voice of reason (if reason was indeed on the side of Edition: current; Page: [387]

⁸⁵⁵The affairs of the council of Milan are so imperfectly and erroneously related by the Greek writers that we must rejoice in the supply of some letters of Eusebius, extracted by Baronius from the archives of the church of Vercellæ, and of an old life of Dionysius of Milan, published by Bollandus. See Baronius, ad 355, and Tillemont, tom. vii. p. 1415

⁸⁵⁶The honours, presents, feasts, which seduced so many bishops, are mentioned with indignation by those who were too pure or too proud to accept them. [*Hebrew*]We combat (says Hilary of Poitiers) against Constantius the antichrist; who strokes the belly instead of scourging the back; [*Hebrew*] "qui non dorsa cædit, sed ventrem palpat. Hilarius contra Constant. c. 5, p. 1240.

⁸⁵⁷Something of this opposition is mentioned by Ammianus (xv. 7), who had a very dark and superficial knowledge of ecclesiastical history. Liberius . . . perseveranter renitebatur, nec visum hominem, nec auditum damnare nefas ultimum sæpe exclamans; aperte scilicet recalcitrans Imperatoris arbitrio. Id enim ille Athanasio semper infestus, &c.

⁸⁵⁸More properly by the orthodox part of the council of Sardica. If the bishops of both parties had fairly voted, the division would have been 94 to 76. M. de Tillemont (see t. viii. p. 1147-1158) is justly surprised that so small a majority should have proceeded so vigorously against their adversaries, the principal of whom they immediately deposed.

⁸⁵⁹Sulp. Severus in Hist. Sacra, l. ii. p. 412 [c. 39].

Athanasius) was silenced by the clamours of a factious or venal majority; and the councils of Arles and Milan were not dissolved, till the archbishop of Alexandria had been solemnly condemned and deposed by the judgment of the Western, as well as of the Eastern, church. The bishops who had opposed, were required to subscribe, the sentence; and to unite in religious communion with the suspected leaders of the adverse party. A formulary of consent was transmitted by the messengers of state to the absent bishops: and all those who refused to submit their private opinion to the public and inspired wisdom of the councils of Arles and Milan were immediately banished by the emperor, who affected to execute the decrees of the Catholic church. Among those prelates who led the honourable band of confessors and exiles, Liberius of Rome, Osius of Cordova, Paulinus of Treves, Dionysius of Milan, Eusebius of Vercellæ, Lucifer of Cagliari, and Hilary of Poitiers may deserve to be particularly distinguished. The eminent station of Liberius, who governed the capital of the empire; the personal merit and long experience of the venerable Osius, who was revered as the favourite of the great Constantine, and the father of the Nicene faith; placed those prelates at the head of the Latin church: and their example, either of submission or resistance, would probably be imitated by the episcopal crowd. But the repeated attempts of the emperor to seduce or to intimidate the bishops of Rome and Cordova were for some time ineffectual. The Spaniard declared himself ready to suffer under Constantius, as he had suffered threescore years before under his grandfather Maximian. The Roman, in the presence of his sovereign, asserted the innocence of Athanasius, and his own freedom. When he was banished to Berœa in Thrace, he sent back a large sum which had been offered for the accommodation of his journey; and insulted the court of Milan by the haughty remark that the emperor and his eunuchs might want that gold to pay their soldiers and their Edition: current; Page: [388] bishops.⁸⁶⁰ The resolution of Liberius and Osius was at length subdued by the hardships of exile and confinement. The Roman pontiff purchased his return by some criminal compliances; and afterwards expiated his guilt by a seasonable repentance. Persuasion and violence were employed to extort the reluctant signature of the decrepit bishop of Cordova, whose strength was broken, and whose faculties were perhaps impaired, by the weight of an hundred years; and the insolent triumph of the Arians provoked some of the orthodox party to treat with inhuman severity the character, or rather the memory, of an unfortunate old man, to whose former services Christianity itself was so deeply indebted.⁸⁶¹

The fall of Liberius and Osius reflected a brighter lustre on the firmness of those bishops who still adhered, with unshaken fidelity, to the cause of Athanasius and religious truth. The ingenious malice of their enemies had deprived them of the benefit of mutual comfort and advice, separated those illustrious exiles into distant provinces, and carefully selected the most inhospitable spots of a great empire.⁸⁶² Yet they soon experienced that the deserts of Libya and the most barbarous tracts of Cappadocia were less inhospitable than the residence of those cities in which an Arian bishop could satiate, without restraint, the exquisite rancour of theological hatred.⁸⁶³ Their Edition:

⁸⁶⁰The exile of Liberius is mentioned by Ammianus, xv. 7. See Theodoret, l. ii. c. 16; Athanas. tom. i. p. 834-837; Hilar. Fragment. i.

⁸⁶¹The life of Osius is collected by Tillemont (tom. vii. p. 524-561), who in the most extravagant terms first admires, and then reprobates, the bishop of Cordova. In the midst of their lamentations on his fall, the prudence of Athanasius may be distinguished from the blind and intemperate zeal of Hilary.

⁸⁶²The confessors of the West were successively banished to the deserts of Arabia, or Thebais, the lonely places of Mount Taurus, the wildest parts of Phrygia, which were in the possession of the impious Montanists, &c. When the heretic Aetius was too favourably entertained at Mopsuestia in Cilicia, the place of his exile was changed, by the advice of Acacius, to Amblada, a district inhabited by savages and infested by war and pestilence. Philostorg. l. v. c. 2.

⁸⁶³See the cruel treatment and strange obstinacy of Eusebius, in his own letters, published by Baronius, ad 356, No.

current; Page: [389] consolation was derived from the consciousness of rectitude and independence, from the applause, the visits, the letters, and the liberal alms of their adherents,⁸⁶⁴ and from the satisfaction which they soon enjoyed of observing the intestine divisions of the adversaries of the Nicene faith. Such was the nice and capricious taste of the emperor Constantius, and so easily was he offended by the slightest deviation from his imaginary standard of Christian truth, that he persecuted, with equal zeal, those who defended the consubstantiality, those who asserted the similar substance, and those who denied the likeness, of the Son of God. Three bishops, degraded and banished for those adverse opinions, might possibly meet in the same place of exile; and, according to the difference of their temper, might either pity or insult the blind enthusiasm of their antagonists, whose present sufferings would never be compensated by future happiness.

The disgrace and exile of the orthodox bishops of the West were designed as so many preparatory steps to the ruin of Athanasius himself.⁸⁶⁵ Six and twenty months had elapsed, during which the Imperial court secretly laboured, by the most insidious arts, to remove him from Alexandria, and to withdraw the allowance which supplied his popular liberality. But, when the primate of Egypt, deserted and proscribed by the Latin church, was left destitute of any foreign support, Constantius despatched two of his secretaries with a verbal commission to announce and execute the order of his banishment. Edition: current; Page: [390] As the justice of the sentence was publicly avowed by the whole party, the only motive which could restrain Constantius from giving his messengers the sanction of a written mandate must be imputed to his doubt of the event; and to a sense of the danger to which he might expose the second city, and the most fertile province, of the empire if the people should persist in the resolution of defending, by force of arms, the innocence of their spiritual father. Such extreme caution afforded Athanasius a specious pretence respectfully to dispute the truth of an order, which he could not reconcile either with the equity, or with the former declarations, of his gracious master. The civil powers of Egypt found themselves inadequate to the task of persuading or compelling the primate to abdicate his episcopal throne; and they were obliged to conclude a treaty with the popular leaders of Alexandria, by which it was stipulated that all proceedings and hostilities should be suspended till the emperor[*Hebrew*]'s pleasure had been more distinctly ascertained. By this seeming moderation, the Catholics were deceived into a false and fatal security; while the legions of the Upper Egypt and of Libya advanced, by secret orders and hasty marches, to besiege, or rather to surprise, a capital habituated to sedition and inflamed by religious zeal.⁸⁶⁶ The position of Alexandria, between the sea and the lake Mareotis, facilitated the approach and landing of the troops; who were introduced into the heart of the city, before any effectual measures could be taken either to shut the gates or to occupy the important posts of defence. At the hour of midnight, twenty-three days after the signature of the treaty, Syrianus, duke of Egypt, at the head of five thousand soldiers, armed and prepared for an assault,

92-102.

⁸⁶⁴*Cæterum exules satis constat, totius orbis studiis celebratos pecuniasque eis in sumptum affatim congestas legationibus quoque eos plebis Catholicæ ex omnibus fere provinciis frequentatos.* Sulp. Sever. Hist. Sacra, p. 414 [c. 39]. Athanas. tom. i. p. 836, 840.

⁸⁶⁵Ample materials for the history of this third persecution of Athanasius may be found in his own works. See particularly his very able Apology to Constantius (tom. i. p. 673), his first Apology for his flight (p. 701), his prolix Epistle to the Solitaries (p. 808), and the original Protest of the People of Alexandria against the violences committed by Syrianus (p. 866). Sozomen (l. iv. c. 9) has thrown into the narrative two or three luminous and important circumstances.

⁸⁶⁶Athanasius had lately sent for Anthony and some of his chosen Monks. They descended from their mountain, announced to the Alexandrians the sanctity of Athanasius, and were honourably conducted by the archbishop as far as the gates of the city. Athanas. tom. ii. p. 491, 492. See likewise Rufinus, iii. 164, in Vit. Patr. p. 524.

unexpectedly invested the church of St. Theonas, where the archbishop, with a party of his clergy and people, performed Edition: current; Page: [391] their nocturnal devotions. The doors of the sacred edifice yielded to the impetuosity of the attack, which was accompanied with every horrid circumstance of tumult and bloodshed; but, as the bodies of the slain and the fragments of military weapons remained the next day an unexceptionable evidence in the possession of the Catholics, the enterprise of Syrianus may be considered as a successful irruption, rather than as an absolute conquest. The other churches of the city were profaned by similar outrages; and, during at least four months, Alexandria was exposed to the insults of a licentious army, stimulated by the ecclesiastics of an hostile faction. Many of the faithful were killed; who may deserve the name of martyrs, if their deaths were neither provoked nor revenged; bishops and presbyters were treated with cruel ignominy; consecrated virgins were stripped naked, scourged, and violated; the houses of wealthy citizens were plundered; and, under the mask of religious zeal, lust, avarice, and private resentment were gratified with impunity, and even with applause. The Pagans of Alexandria, who still formed a numerous and discontented party, were easily persuaded to desert a bishop whom they feared and esteemed. The hopes of some peculiar favours, and the apprehension of being involved in the general penalties of rebellion, engaged them to promise their support to the destined successor of Athanasius, the famous George of Cappadocia. The usurper, after receiving the consecration of an Arian synod, was placed on the episcopal throne by the arms of Sebastian, who had been appointed Count of Egypt for the execution of that important design. In the use, as well as in the acquisition, of power, the tyrant George disregarded the laws of religion, of justice, and of humanity; and the same scenes of violence and scandal which had been exhibited in the capital were repeated in more than ninety episcopal cities of Egypt. Encouraged by success, Constantius ventured to approve the conduct of his ministers. By a public and passionate epistle, the emperor congratulates the deliverance of Alexandria from Edition: current; Page: [392] a popular tyrant, who deluded his blind votaries by the magic of his eloquence; expatiates on the virtues and piety of the most reverend George, the elected bishop; and aspires, as the patron and benefactor of the city, to surpass the fame of Alexander himself. But he solemnly declares his unalterable resolution to pursue with fire and sword the seditious adherents of the wicked Athanasius, who, by flying from justice, has confessed his guilt, and escaped the ignominious death which he had so often deserved.⁸⁶⁷

Athanasius had indeed escaped from the most imminent dangers; and the adventures of that extraordinary man deserve and fix our attention. On the memorable night when the church of St. Theonas was invested by the troops of Syrianus, the archbishop, seated on his throne, expected, with calm and intrepid dignity, the approach of death. While the public devotion was interrupted by shouts of rage and cries of terror, he animated his trembling congregation to express their religious confidence, by chanting one of the psalms of David, which celebrates the triumph of the God of Israel over the haughty and impious tyrant of Egypt. The doors were at length burst open; a cloud of arrows was discharged among the people; the soldiers, with drawn swords, rushed forwards into the sanctuary; and the dreadful gleam of their armour was reflected by the holy luminaries which burnt round the altar.⁸⁶⁸ Athanasius still rejected the pious importunity of the Monks and Presbyters, who were attached to his person; and nobly refused to desert his episcopal

⁸⁶⁷Athanas. tom. i. p. 694. The emperor, or his Arian secretaries, while they express their resentment, betray their fears and esteem of Athanasius.

⁸⁶⁸These minute circumstances are curious, as they are literally transcribed from the protest which was publicly presented three days afterwards by the Catholics of Alexandria. See Athanas. tom. i. p. 867.

station, till he had dismissed in safety the last of the congregation. The darkness and tumult of the night favoured the retreat of the archbishop; and, though he was oppressed by the waves of an agitated multitude, though he was thrown to the ground, Edition: current; Page: [393] and left without sense or motion, he still recovered his undaunted courage, and eluded the eager search of the soldiers, who were instructed by their Arian guides that the head of Athanasius would be the most acceptable present to the emperor. From that moment the primate of Egypt disappeared from the eyes of his enemies, and remained above six years concealed in impenetrable obscurity.⁸⁶⁹

The despotic power of his implacable enemy filled the whole extent of the Roman world; and the exasperated monarch had endeavoured, by a very pressing epistle to the Christian princes of Æthiopia, to exclude Athanasius from the most remote and sequestered regions of the earth. Counts, prefects, tribunes, whole armies, were successively employed to pursue a bishop and a fugitive; the vigilance of the civil and military powers were excited by the Imperial edicts; liberal rewards were promised to the man who should produce Athanasius, either alive or dead; and the most severe penalties were denounced against those who should dare to protect the public enemy.⁸⁷⁰ But the deserts of Thebais were now peopled by a race of wild yet submissive fanatics, who preferred the commands of their abbot to the laws of their sovereign. The numerous disciples of Anthony and Pachomius received the fugitive primate as their father, admired the patience and humility with which he conformed to their strictest institutions, collected every word which dropt from his lips as the genuine effusions of inspired wisdom; and persuaded themselves that their prayers, their fasts, and their vigils were less meritorious than the zeal which they expressed, and the dangers which they braved, in the defence of truth and Edition: current; Page: [394] innocence.⁸⁷¹ The monasteries of Egypt were seated in lonely and desolate places, on the summit of mountains, or in the islands of the Nile; and the sacred horn or trumpet of Tabenne was the well-known signal which assembled several thousand robust and determined Monks, who, for the most part, had been the peasants of the adjacent country. When their dark retreats were invaded by a military force, which it was impossible to resist, they silently stretched out their necks to the executioner, and supported their national character that tortures could never wrest from an Egyptian the confession of a secret which he was resolved not to disclose.⁸⁷² The archbishop of Alexandria, for whose safety they eagerly devoted their lives, was lost among a uniform and well-disciplined multitude; and on the nearer approach of danger, he was swiftly removed, by their officious hands, from one place of concealment to another, till he reached the formidable deserts, which the gloomy and credulous temper of superstition had peopled with demons and savage monsters. The retirement of Athanasius, which ended only with the life of Constantius, was spent, for the most part, in the society of the Monks, who faithfully served him as guards, as secretaries, and as messengers; but the importance of maintaining a more intimate connection with the Catholic party tempted him, whenever the diligence of the pursuit was abated, to emerge from the desert, to introduce himself into Alexandria, and to trust his person to the discretion of his friends and adherents. His various

⁸⁶⁹The Jansenists have often compared Athanasius and Arnauld, and have expatiated with pleasure on the faith and zeal, the merit and exile, of those celebrated doctors. This concealed parallel is very dexterously managed by the Abbé de la Bléterie, *Vie de Jovien*, tom. i. p. 130.

⁸⁷⁰*Hinc jam toto orbe profugus Athanasius, nec ullus ei tutus ad latendum super erat locus. Tribuni, Præfecti, Comites, exercitus quoque, ad pervestigandum eum moventur edictis imperialibus: præmia delatoribus proponuntur, si quis eum vivum, si id minus, caput certe Athanasii detulisset.* *Rufin.* l. i. c. 16.

⁸⁷¹*Gregor. Nazianzen*, tom. i. *Orat.* xxi. p. 384, 385. See Tillemont, *Mém. Ecclés.* tom. vii. p. 176-410, 820-880.

⁸⁷²*Et nulla tormentorum vis inveniri adhuc potuit, quæ obdurato illius tractûs latroni invito elicere potuit, ut nomen proprium dicat.* *Ammian.* xxii. 16 and Valesius ad locum.

adventures might have furnished the subject of a very entertaining romance. He was once secreted in a dry cistern, which he had scarcely left before he was betrayed by the treachery of a female slave;⁸⁷³ Edition: current; Page: [395] and he was once concealed in a still more extraordinary asylum, the house of a virgin, only twenty years of age, and who was celebrated in the whole city for her exquisite beauty. At the hour of midnight, as she related the story many years afterwards, she was surprised by the appearance of the archbishop in a loose undress, who, advancing with hasty steps, conjured her to afford him the protection which he had been directed by a celestial vision to seek under her hospitable roof. The pious maid accepted and preserved the sacred pledge which was entrusted to her prudence and courage. Without imparting the secret to any one, she instantly conducted Athanasius into her most secret chamber, and watched over his safety with the tenderness of a friend and the assiduity of a servant. As long as the danger continued, she regularly supplied him with books and provisions, washed his feet, managed his correspondence, and dexterously concealed from the eye of suspicion this familiar and solitary intercourse between a saint whose character required the most unblemished chastity and a female whose charms might excite the most dangerous emotions.⁸⁷⁴ During the six years of persecution and exile, Athanasius repeated his visits to his fair and faithful companion; and the formal declaration that he saw the councils of Rimini and Seleucia⁸⁷⁵ forces us to believe that he was secretly present at the time and place of their convocation. The advantage of personally negotiating with his friends, and of observing and improving the divisions of his enemies, might justify, in a prudent statesman, Edition: current; Page: [396] so bold and dangerous an enterprise; and Alexandria was connected by trade and navigation with every seaport of the Mediterranean. From the depth of his inaccessible retreat, the intrepid primate waged an incessant and offensive war against the protector of the Arians; and his seasonable writings, which were diligently circulated and eagerly perused, contributed to unite and animate the orthodox party. In his public apologies, which he addressed to the emperor himself, he sometimes affected the praise of moderation; whilst at the same time, in secret and vehement invectives, he exposed Constantius as a weak and wicked prince, the executioner of his family, the tyrant of the republic, and the antichrist of the church. In the height of his prosperity, the victorious monarch, who had chastised the rashness of Gallus, and suppressed the revolt of Sylvanus, who had taken the diadem from the head of Vetricius, and vanquished in the field the legions of Magnentius, received from an invisible hand a wound which he could neither heal nor revenge; and the son of Constantine was the first of the Christian princes who experienced the strength of those principles which, in the cause of religion, could resist the most violent exertions of the civil power.⁸⁷⁶

The persecution of Athanasius and of so many respectable bishops, who suffered for the truth of

⁸⁷³Rufin l. i. c. 18. Sozomen, l. iv. c. 10. This and the following story will be rendered impossible, if we suppose that Athanasius always inhabited the asylum which he accidentally or occasionally had used. [Compare the story of the virgin Eudæmonis, tortured to betray Athanasius whom she hid, in the Index to the Festal Letters.]

⁸⁷⁴Palladius (Hist. Lausiaca. c. 136, in Vit. Patr. p. 776), the original author of this anecdote, had conversed with the damsel, who in her old age still remembered with pleasure so pious and honourable a connection. I cannot indulge the delicacy of Baronius, Valesius, Tillemont, &c., who almost reject a story so unworthy, as they deem it, of the gravity of ecclesiastical history.

⁸⁷⁵Athanas. tom. i. p. 869. I agree with Tillemont (t. viii. p. 1197), that his expressions imply a personal, though perhaps secret, visit to the synods.

⁸⁷⁶The Epistle of Athanasius to the Monks is filled with reproaches, which the public must feel to be true (vol. i. p. 834, 856); and, in compliment to his readers, he has introduced the comparisons of Pharaoh, Ahab, Belshazzar, &c. The boldness of Hilary was attended with less danger, if he published his invective in Gaul after the revolt of Julian; but Lucifer sent his libels to Constantius, and almost challenged the reward of martyrdom. See Tillemont, tom. vii. p. 905.

their opinions, or at least for the integrity of their conscience, was a just subject of indignation and discontent to all Christians, except those who were blindly devoted to the Arian faction. The people regretted the loss of their faithful pastors, whose banishment was usually followed by the intrusion of a stranger⁸⁷⁷ into the Edition: current; Page: [397] episcopal chair; and loudly complained that the right of election was violated, and that they were condemned to obey a mercenary usurper, whose person was unknown, and whose principles were suspected. The Catholics might prove to the world that they were not involved in the guilt and heresy of their ecclesiastical governor, by publicly testifying their dissent, or by totally separating themselves from his communion. The first of these methods was invented at Antioch, and practised with such success that it was soon diffused over the Christian world. The doxology or sacred hymn, which celebrates the glory of the Trinity, is susceptible of very nice, but material, inflections; and the substance of an orthodox, or an heretical, creed may be expressed by the difference of a disjunctive, or a copulative, particle. Alternate responses, and a more regular psalmody,⁸⁷⁸ were introduced into the public service by Flavianus and Diodorus, two devout and active laymen, who were attached to the Nicene faith. Under their conduct, a swarm of Monks issued from the adjacent desert, bands of well-disciplined singers were stationed in the cathedral of Antioch, the Glory to the Father, and the Son, and the Holy Ghost,⁸⁷⁹ was triumphantly chanted by a full chorus of voices; and the Catholics insulted, by the purity of their doctrine, the Arian prelate who had usurped the throne of the venerable Eustathius. The same zeal which inspired their songs prompted the more scrupulous members of the orthodox party to form separate assemblies, which were governed by the presbyters, till the death of their exiled bishop allowed the election and consecration of a new episcopal Edition: current; Page: [398] pastor.⁸⁸⁰ The revolutions of the court multiplied the number of pretenders; and the same city was often disputed, under the reign of Constantius, by two, or three, or even four bishops, who exercised their spiritual jurisdiction over their respective followers, and alternately lost and regained the temporal possessions of the church. The abuse of Christianity introduced into the Roman government new causes of tyranny and sedition; the bands of civil society were torn asunder by the fury of religious factions; and the obscure citizen, who might calmly have surveyed the elevation and fall of successive emperors, imagined and experienced that his own life and fortune were connected with the interests of a popular ecclesiastic. The example of the two capitals, Rome and Constantinople, may serve to represent the state of the empire, and the temper of mankind, under the reign of the sons of Constantine.

I. The Roman pontiff, as long as he maintained his station and his principles, was guarded by the warm attachment of a great people; and could reject with scorn the prayers, the menaces, and the oblations of an heretical prince. When the eunuchs had secretly pronounced the exile of Liberius, the well-grounded apprehension of a tumult engaged them to use the utmost precautions

⁸⁷⁷ Athanasius (tom. i. p. 811) complains in general of this practice, which he afterwards exemplifies (p. 861) in the pretended election of Felix. Three eunuchs represented the Roman people, and three prelates, who followed the court, assumed the functions of the bishops of the Suburbicarian provinces.

⁸⁷⁸ Thomassin (*Discipline de l'Église*, tom. i. l. ii. c. 72, 73, p. 966-984) has collected many curious facts concerning the origin and progress of church-singing, both in the East and West.

⁸⁷⁹ Philostorgius, l. iii. c. 13. Godefroy has examined this subject with singular accuracy (p. 147, &c.). There were three heterodox forms: [*Hebrew*]To the Father by the Son, and in the Holy Ghost:[*Hebrew*]To the Father and the Son in the Holy Ghost:[*Hebrew*] and [*Hebrew*]To the Father in the Son and the Holy Ghost.[*Hebrew*]"

⁸⁸⁰ After the exile of Eustathius, under the reign of Constantine, the rigid party of the orthodox formed a separation, which afterwards degenerated into a schism, and lasted above fourscore years. See Tillemont, *Mém. Ecclés.* tom. vii. p. 35-54, 1137-1158, tom. viii. p. 537-632, 1314-1332. In many churches, the Arians and Homoiousians, who had renounced each other's communion, continued for some time to join in prayer. Philostorgius, l. iii. c. 14.

in the execution of the sentence. The capital was invested on every side, and the prefect was commanded to seize the person of the bishop, either by stratagem or by open force. The order was obeyed; and Liberius, with the greatest difficulty, at the hour of midnight, was swiftly conveyed beyond the reach of the Roman people, before their consternation was turned into rage. As soon as they were informed of his banishment into Thrace, a general Edition: current; Page: [399] assembly was convened, and the clergy of Rome bound themselves, by a public and solemn oath, never to desert their bishop, never to acknowledge the usurper Felix; who, by the influence of the eunuchs, had been irregularly chosen and consecrated within the walls of a profane palace. At the end of two years, their pious obstinacy subsisted entire and unshaken; and, when Constantius visited Rome, he was assailed by the importunate solicitations of a people, who had preserved, as the last remnant of their ancient freedom, the right of treating their sovereign with familiar insolence. The wives of many of the senators and most honourable citizens, after pressing their husbands to intercede in favour of Liberius, were advised to undertake a commission, which, in their hands, would be less dangerous and might prove more successful. The emperor received with politeness these female deputies, whose wealth and dignity were displayed in the magnificence of their dress and ornaments: he admired their inflexible resolution of following their beloved pastor to the most distant regions of the earth, and consented that the two bishops, Liberius and Felix, should govern in peace their respective congregations. But the ideas of toleration were so repugnant to the practice, and even to the sentiments, of those times that, when the answer of Constantius was publicly read in the Circus of Rome, so reasonable a project of accommodation was rejected with contempt and ridicule. The eager vehemence which animated the spectators in the decisive moment of a horse-race was now directed towards a different object; and the Circus resounded with the shout of thousands, who repeatedly exclaimed, *[Hebrew]* One God, One Christ, One Bishop.*[Hebrew]*" The zeal of the Roman people in the cause of Liberius was not confined to words alone; and the dangerous and bloody sedition which they excited soon after the departure of Constantius determined that prince to accept the submission of the exiled prelate, and to restore him to the undivided dominion of the capital. After some ineffectual resistance, his rival was expelled from the city by the permission Edition: current; Page: [400] of the emperor, and the power of the opposite faction; the adherents of Felix were inhumanly murdered in the streets, in the public places, in the baths, and even in the churches; and the face of Rome, upon the return of a Christian bishop, renewed the horrid image of the massacres of Marius and the proscriptions of Sylla.⁸⁸¹

II. Notwithstanding the rapid increase of Christians under the reign of the Flavian family, Rome, Alexandria, and the other great cities of the empire still contained a strong and powerful faction of Infidels, who envied the prosperity, and who ridiculed, even on their theatres, the theological disputes, of the church. Constantinople alone enjoyed the advantage of being born and educated in the bosom of the faith. The capital of the East had never been polluted by the worship of idols; and the whole body of the people had deeply imbibed the opinions, the virtues, and the passions, which distinguished the Christians of that age from the rest of mankind. After the death of Alexander, the episcopal throne was disputed by Paul and Macedonius. By their zeal and abilities they both deserved the eminent station to which they aspired; and, if the moral character of Macedonius was less exceptionable, his competitor had the advantage of a prior election and a more orthodox doctrine. His firm attachment to the Nicene creed, which has given Paul a place in the calendar

⁸⁸¹See, on this ecclesiastical revolution of Rome, Ammianus, xv. 7; Athanas. tom. i. p. 834, 861; Sozomen, l. iv. c. 15; Theodoret, l. ii. c. 17; Sulp. Sever. Hist. Sacra, l. ii. p. 413 [c. 39]; Hieronym. Chron. Marcellin. et Faustin. Libell. p. 3, 4; Tillemont, Mém. Ecclés. tom. vi. p. 336.

among saints and martyrs, exposed him to the resentment of the Arians. In the space of fourteen years he was five times driven from the throne; to which he was more frequently restored by the violence of the people than by the permission of the prince; and the power of Macedonius could be secured only by the death of his rival. The unfortunate Paul was dragged in chains from the sandy deserts of Mesopotamia to the most Edition: current; Page: [401] desolate places of Mount Taurus,⁸⁸² confined in a dark and narrow dungeon, left six days without food, and at length strangled, by the order of Philip, one of the principal ministers of the emperor Constantius.⁸⁸³ The first blood which stained the new capital was spilt in this ecclesiastical contest; and many persons were slain on both sides, in the furious and obstinate seditions of the people. The commission of enforcing a sentence of banishment against Paul had been entrusted to Hermogenes, the master-general of the cavalry; but the execution of it was fatal to himself. The Catholics rose in the defence of their bishop; the palace of Hermogenes was consumed; the first military officer of the empire was dragged by the heels through the streets of Constantinople, and, after he expired, his lifeless corpse was exposed to their wanton insults.⁸⁸⁴ The fate of Hermogenes instructed Philip, the Prætorian prefect, to act with more precaution on a similar occasion. In the most gentle and honourable terms, he required the attendance of Paul in the baths of Zeuxippus, which had a private communication with the palace and the sea. A vessel, which lay ready at the garden-stairs, immediately hoisted sail; and, while the people were still ignorant of the meditated sacrilege, their bishop was already embarked on his voyage to Thessalonica. They soon beheld, with surprise and indignation, the gates of the palace Edition: current; Page: [402] thrown open, and the usurper Macedonius seated by the side of the prefect on a lofty chariot, which was surrounded by troops of guards with drawn swords. The military procession advanced towards the cathedral; the Arians and the Catholics eagerly rushed to occupy that important post; and three thousand one hundred and fifty persons lost their lives in the confusion of the tumult. Macedonius, who was supported by a regular force, obtained a decisive victory; but his reign was disturbed by clamour and sedition; and the causes which appeared the least connected with the subject of dispute were sufficient to nourish and to kindle the flame of civil discord. As the chapel in which the body of the great Constantine had been deposited was in a ruinous condition, the bishops transported those venerable remains into the church of St. Acacius. This prudent and even pious measure was represented as a wicked profanation by the whole party which adhered to the Homoousian doctrine. The factions immediately flew to arms, the consecrated ground was used as their field of battle; and one of the ecclesiastical historians has observed, as a real fact, not as a figure of rhetoric, that the well before the church overflowed with a stream of blood, which filled the porticoes and the adjacent courts. The writer who should impute these tumults solely to a religious principle would betray a very imperfect knowledge of human nature; yet it must be confessed that the motive which misled the sincerity of zeal, and the pretence which disguised the licentiousness of passion, suppressed the remorse which, in another cause,

⁸⁸²Cucusus was the last stage of his life and sufferings. The situation of that lonely town, on the confines of Cappadocia, Cilicia, and the Lesser Armenia, has occasioned some geographical perplexity; but we are directed to the true spot by the course of the Roman road from Cæsarea to Anazarbus. See Cellarii Geograph. tom. ii. p. 213; Wesseling ad Itinerar. p. 179, 703.

⁸⁸³Athanasius (t. i. p. 703, 813, 814) affirms, in the most positive terms, that Paul was murdered; and appeals, not only to common fame, but even to the unsuspecting testimony of Philagrius, one of the Arian persecutors. Yet he acknowledges that the heretics attributed to disease the death of the bishop of Constantinople. Athanasius is servilely copied by Socrates (l. ii. c. 26); but Sozomen, who discovers a more liberal temper, presumes (l. iv. c. 2) to insinuate a prudent doubt.

⁸⁸⁴Ammianus (xiv. 10) refers to his own account of this tragic event. But we no longer possess that part of his history.

would have succeeded to the rage of the Christians of Constantinople.⁸⁸⁵

The cruel and arbitrary disposition of Constantius, which did not always require the provocations of guilt and resistance, Edition: current; Page: [403] was justly exasperated by the tumults of his capital and the criminal behaviour of a faction, which opposed the authority and religion of their sovereign. The ordinary punishments of death, exile, and confiscation were inflicted with partial rigour; and the Greeks still revere the holy memory of two clerks, a reader and a sub-deacon, who were accused of the murder of Hermogenes, and beheaded at the gates of Constantinople. By an edict of Constantius against the Catholics, which has not been judged worthy of a place in the Theodosian Code, those who refused to communicate with the Arian bishops, and particularly with Macedonius, were deprived of the immunities of ecclesiastics and of the rights of Christians; they were compelled to relinquish the possession of the churches; and were strictly prohibited from holding their assemblies within the walls of the city. The execution of this unjust law, in the provinces of Thrace and Asia Minor, was committed to the zeal of Macedonius; the civil and military powers were directed to obey his commands; and the cruelties exercised by this semi-Arian tyrant in the support of the Homoiousion, exceeded the commission, and disgraced the reign, of Constantius. The sacraments of the church were administered to the reluctant victims, who denied the vocation, and abhorred the principles, of Macedonius. The rites of baptism were conferred on women and children, who, for that purpose, had been torn from the arms of their friends and parents; the mouths of the communicants were held open, by a wooden engine, while the consecrated bread was forced down their throat; the breasts of tender virgins were either burnt with red-hot egg-shells or inhumanly compressed between sharp and heavy boards.⁸⁸⁶ Edition: current; Page: [404] The Novatians of Constantinople and the adjacent country, by their firm attachment to the Homoiousian standard, deserved to be confounded with the Catholics themselves. Macedonius was informed that a large district of Paphlagonia⁸⁸⁷ was almost entirely inhabited by those sectaries. He resolved either to convert or to extirpate them; and, as he distrusted, on this occasion, the efficacy of an ecclesiastical mission, he commanded a body of four thousand legionaries to march against the rebels, and to reduce the territory of Mantinium under his spiritual dominion. The Novatian peasants, animated by despair and religious fury, boldly encountered the invaders of their country; and, though many of the Paphlagonians were slain, the Roman legions were vanquished by an irregular multitude, armed only with scythes and axes; and, except a few who escaped by an ignominious flight, four thousand soldiers were left dead on the field of battle. The successor of Constantius has expressed, in a concise but lively manner, some of the theological calamities which afflicted the empire, and more especially the East, in the reign of a prince who was the slave of his own passions and of those of his eunuchs. [*Hebrew*]Many were imprisoned, and persecuted, and

⁸⁸⁵See Socrates, l. ii. c. 6, 7, 12, 13, 15, 16, 26, 27, 38, and Sozomen, l. iii. 3, 5, 7, 9; l. iv. c. 2, 21. The acts of St. Paul of Constantinople, of which Photius has made an abstract (Phot. Bibliot. p. 1419-1430), are an indifferent copy of these historians; but a modern Greek, who could write the life of a saint without adding fables and miracles, is entitled to some commendation.

⁸⁸⁶Socrates, l. ii. c. 27, 38. Sozomen, l. iv. c. 21. The principal assistants of Macedonius, in the work of persecution, were the two bishops of Nicomedia and Cyzicus, who were esteemed for their virtues, and especially for their charity. I cannot forbear reminding the reader that the difference between the Homoiousion and Homoiousion is almost invisible to the nicest theological eye.

⁸⁸⁷We are ignorant of the precise situation of Mantinium. In speaking of these four bands of legionaries, Socrates, Sozomen, and the author of the Acts of St. Paul use the indefinite terms of [*Hebrew*]χιλιοί, φάλαγγες, τάγματα, which Nicephorus very properly translates thousands. Vales. ad Socrat. l. ii. c. 38. [Mantinium was in Honorias; see Ramsay, Hist. Geogr. of Asia Minor, p. 194, where Acta Sanct. 24th Aug., Mart. S. Tatiani, and ib. 12th Sept., Vit. S. Autonomi, are quoted. The position of the place is still unknown.]

driven into exile. Whole troops of those who were styled heretics were massacred, particularly at Cyzicus, and at Samosata. In Paphlagonia, Bithynia, Galatia, and in many other provinces, towns and villages were laid waste and utterly destroyed.*[Hebrew]*"⁸⁸⁸

While the flames of the Arian controversy consumed the vitals of the empire, the African provinces were infested by Edition: current; Page: [405] their peculiar enemies the savage fanatics, who, under the name of Circumcellions, formed the strength and scandal of the Donatist party.⁸⁸⁹ The severe execution of the laws of Constantine had excited a spirit of discontent and resistance; the strenuous efforts of his son Constans to restore the unity of the church exasperated the sentiments of mutual hatred which had first occasioned the separation; and the methods of force and corruption employed by the two Imperial commissioners, Paul and Macarius, furnished the schismatics with a specious contrast between the maxims of the apostles and the conduct of their pretended successors.⁸⁹⁰ The peasants who inhabited the villages of Numidia and Mauritania were a ferocious race, who had been imperfectly reduced under the authority of the Roman laws; who were imperfectly converted to the Christian faith; but who were actuated by a blind and furious enthusiasm in the cause of their Donatist teachers. They indignantly supported the exile of their bishops, the demolition of their churches, and the interruption of their secret assemblies. The violence of the officers of justice, who were usually sustained by a military guard, Edition: current; Page: [406] was sometimes repelled with equal violence; and the blood of some popular ecclesiastics, which had been shed in the quarrel, inflamed their rude followers with an eager desire of revenging the death of these holy martyrs. By their own cruelty and rashness, the ministers of persecution sometimes provoked their fate; and the guilt of an accidental tumult precipitated the criminals into despair and rebellion. Driven from their native villages, the Donatist peasants assembled in formidable gangs on the edge of the Gætulian desert; and readily exchanged the habits of labour for a life of idleness and rapine, which was consecrated by the name of religion and faintly condemned by the doctors of the sect. The leaders of the Circumcellions assumed the title of captains of the saints; their principal weapon, as they were indifferently provided with swords and spears, was a huge and weighty club, which they termed an Israelite; and the well-known sound of *[Hebrew]*Praise be to God,*[Hebrew]*" which they used as their cry of war, diffused consternation over the unarmed provinces of Africa. At first their depredations were coloured by the plea of necessity; but they soon exceeded the measure of subsistence, indulged without control their intemperance and avarice, burnt the villages which they had pillaged, and reigned the licentious tyrants of the open country. The occupations of husbandry, and the administration of justice, were interrupted; and, as the Circumcellions pretended to restore the primitive equality of mankind and to reform the abuses of civil society, they opened a secure asylum for the slaves and debtors, who flocked in

⁸⁸⁸Julian. Epistol. lii. p. 436, edit. Spanheim.

⁸⁸⁹See Optatus Milevitanus (particularly iii. 4), with the Donatist history, by M. Dupin, and the original pieces at the end of his edition. The numerous circumstances which Augustin has mentioned of the fury of the Circumcellions against others, and against themselves, have been laboriously collected by Tillemont, Mém. Ecclés. tom. vi. p. 147-165; and he has often, though without design, exposed the injuries which had provoked those fanatics.

⁸⁹⁰It is amusing enough to observe the language of opposite parties, when they speak of the same men and things. Gratus, bishop of Carthage, begins the acclamations of an orthodox synod, *[Hebrew]*Gratias Deo omnipotenti et Christo Jesu . . . qui imperavit religiosissimo Constanti Imperatori, ut votum gereret unitatis, et mitteret ministros sancti operis famulos Dei Paulum et Macarium.*[Hebrew]*" Mon. Vet. ad Calcem Optati, p. 313. *[Hebrew]*Ecce subito*[Hebrew]*" (says the Donatist author of the Passion of Marculus), *[Hebrew]*de Constantis regis tyrannicâ domo . . . pollutum Macarianæ persecutionis murmur increpuit, et duabus bestiis ad Africam missis, eodem scilicet Macario et Paulo execrandum prorsus ac dirum ecclesiæ certamen indictum est; ut populus Christianus ad unionem cum traditoribus faciendam, nudatis militum gladiis et draconum præsentibus signis, et tubarum vocibus cogeretur.*[Hebrew]*" Monument. p. 304.

crowds to their holy standard. When they were not resisted, they usually contented themselves with plunder, but the slightest opposition provoked them to acts of violence and murder; and some Catholic priests, who had imprudently signalised their zeal, were tortured by the fanatics with the most refined and wanton barbarity. The spirit of the Circumcellions was not always exerted against their defenceless enemies; they engaged, and sometimes defeated, the troops of the province; and in Edition: current; Page: [407] the bloody action of Bagai, they attacked in the open field, but with unsuccessful valour, an advanced guard of the Imperial cavalry. The Donatists who were taken in arms received, and they soon deserved, the same treatment which might have been shewn to the wild beasts of the desert. The captives died, without a murmur, either by the sword, the axe, or the fire; and the measures of retaliation were multiplied in a rapid proportion, which aggravated the horrors of rebellion, and excluded the hope of mutual forgiveness. In the beginning of the present century, the example of the Circumcellions has been renewed in the persecution, the boldness, the crimes, and the enthusiasm of the Camisards; and, if the fanatics of Languedoc surpassed those of Numidia by their military achievements, the Africans maintained their fierce independence with more resolution and perseverance.⁸⁹¹

Such disorders are the natural effects of religious tyranny; but the rage of the Donatists was inflamed by a frenzy of a very extraordinary kind; and which, if it really prevailed among them in so extravagant a degree, cannot surely be paralleled in any country or in any age. Many of these fanatics were possessed with the horror of life, and the desire of martyrdom; and they deemed it of little moment by what means, or by what hands, they perished, if their conduct was sanctified by the intention of devoting themselves to the glory of the true faith and the hope of eternal happiness.⁸⁹² Sometimes they rudely disturbed the festivals and profaned the temples of paganism, with the design of exciting the most zealous of the idolaters to revenge the insulted honour of their gods. They sometimes forced their way into the courts of justice, and compelled the affrighted judge to give orders Edition: current; Page: [408] for their immediate execution. They frequently stopped travellers on the public highways, and obliged them to inflict the stroke of martyrdom, by the promise of a reward, if they consented, and by the threat of instant death, if they refused to grant so very singular a favour. When they were disappointed of every other resource, they announced the day on which, in the presence of their friends and brethren, they should cast themselves headlong from some lofty rock; and many precipices were shewn, which had acquired fame by the number of religious suicides. In the actions of these desperate enthusiasts, who were admired by one party as the martyrs of God, and abhorred by the other as the victims of Satan, an impartial philosopher may discover the influence and the last abuse of that inflexible spirit, which was originally derived from the character and principles of the Jewish nation.

The simple narrative of the intestine divisions, which distracted the peace, and dishonoured the triumph, of the church, will confirm the remark of a pagan historian, and justify the complaint of a venerable bishop. The experience of Ammianus had convinced him that the enmity of the Christians towards each other surpassed the fury of savage beasts against man;⁸⁹³ and Gregory Nazianzen most pathetically laments that the kingdom of heaven was converted, by discord, into

⁸⁹¹The *Histoire des Camisards*, in 3 vols. 12mo. Villefranche, 1760, may be recommended as accurate and impartial. It requires some attention to discover the religion of the author.

⁸⁹²The Donatist suicides alleged in their justification the example of Razias, which is related in the 14th chapter of the second book of the Maccabees.

⁸⁹³*Nullas infestas hominibus bestias, ut sunt sibi ferales plerique Christianorum expertus.* Ammian. xxii. 5.

the image of chaos, of a nocturnal tempest, and of hell itself.⁸⁹⁴ The fierce and partial writers of the times, ascribing all virtue to themselves, and imputing all guilt to their adversaries, have painted the battle of the angels and dæmons. Our calmer reason will reject such pure and perfect monsters of vice or sanctity, and will impute an equal, or at least an indiscriminate, measure of good and evil to the hostile sectaries, who assumed and bestowed the appellations of Edition: current; Page: [409] orthodox and heretics. They had been educated in the same religion, and the same civil society. Their hopes and fears in the present, or in a future, life were balanced in the same proportion. On either side, the error might be innocent, the faith sincere, the practice meritorious or corrupt. Their passions were excited by similar objects; and they might alternately abuse the favour of the court or of the people. The metaphysical opinions of the Athanasians and the Arians could not influence their moral character; and they were alike actuated by the intolerant spirit which has been extracted from the pure and simple maxims of the gospel.

A modern writer, who, with a just confidence, has prefixed to his own history the honourable epithets of political and philosophical,⁸⁹⁵ accuses the timid prudence of Montesquieu for neglecting to enumerate, among the causes of the decline of the empire, a law of Constantine, by which the exercise of the pagan worship was absolutely suppressed, and a considerable part of his subjects was left destitute of priests, of temples, and of any public religion. The zeal of the philosophic historian for the rights of mankind has induced him to acquiesce in the ambiguous testimony of those ecclesiastics, who have too lightly ascribed to their favourite hero the merit of a general persecution.⁸⁹⁶ Instead of alleging this imaginary law, which would have blazed in the front of the Imperial codes, we may safely appeal to the original epistle which Constantine addressed to the followers of the ancient religion; at a time when he no longer disguised his conversion nor Edition: current; Page: [410] dreaded the rivals of his throne. He invites and exhorts, in the most pressing terms, the subjects of the Roman empire to imitate the example of their master; but he declares that those who still refuse to open their eyes to the celestial light may freely enjoy their temples and their fancied gods. A report that the ceremonies of paganism were suppressed is formally contradicted by the emperor himself, who wisely assigns, as the principle of his moderation, the invincible force of habit, of prejudice, and of superstition.⁸⁹⁷ Without violating the sanctity of his promise, without alarming the fears of the pagans, the artful monarch advanced, by slow and cautious steps, to undermine the irregular and decayed fabric of Polytheism. The partial acts of severity which he occasionally exercised, though they were secretly prompted by a Christian zeal, were coloured by the fairest pretences of justice and the public good; and, while Constantine designed to ruin the foundations, he seemed to reform the abuses, of the ancient religion. After the example of the wisest of his predecessors, he condemned, under the most rigorous penalties, the occult and impious arts of divination; which excited the vain hopes, and sometimes the criminal attempts, of those who were discontented with their present condition. An ignominious silence was imposed

⁸⁹⁴Gregor. Nazianzen, Orat. i. p. 33. See Tillemont, tom. vi. p. 501, quarto edit.

⁸⁹⁵Histoire Politique et Philosophique des Etablissemens des Européens dans les deux Indes, tom. i. p. 9.

⁸⁹⁶According to Eusebius (in Vit. Constantin. l. ii, c. 45) the emperor prohibited, both in cities and in the country, τ[Ηεβρεω] μυσαρ[Ηεβρεω] . . . της Εἰδωλογατρείας; the abominable acts or parts of idolatry. Socrates (l. i. c. 17) and Sozomen (l. ii. c. 4, 5) have represented the conduct of Constantine with a just regard to truth and history; which has been neglected by Theodoret (l. v. c. 21) and Orosius (vii. 28). Tum deinde (says the latter) primus Constantinus justo ordine et pio vicem vertit edicto; siquidem statuit citra ullam hominum cædem paganorum templa claudi.

⁸⁹⁷See Eusebius, in Vit. Constantin. l. ii. c. 56, 60. In the sermon to the assembly of saints, which the emperor pronounced when he was mature in years and piety, he declares to the idolaters (c. xi.) that they are permitted to offer sacrifices and to exercise every part of their religious worship.

on the oracles, which had been publicly convicted of fraud and falsehood; the effeminate priests of the Nile were abolished; and Constantine discharged the duties of a Roman censor, when he gave orders for the demolition of several temples of Phœnicia, in which every mode of prostitution was devoutly practised in the face of day, and to the honour of Venus.⁸⁹⁸ The Imperial city of Edition: current; Page: [411] Constantinople was, in some measure, raised at the expense, and was adorned with the spoils, of the opulent temples of Greece and Asia; the sacred property was confiscated; the statues of gods and heroes were transported, with rude familiarity, among a people who considered them as objects, not of adoration, but of curiosity: the gold and silver were restored to circulation; and the magistrates, the bishops, and the eunuchs improved the fortunate occasion of gratifying at once their zeal, their avarice, and their resentment. But these depredations were confined to a small part of the Roman world; and the provinces had been long since accustomed to endure the same sacrilegious rapine, from the tyranny of princes and proconsuls, who could not be suspected of any design to subvert the established religion.⁸⁹⁹

The sons of Constantine trod in the footsteps of their father, with more zeal and with less discretion. The pretences of rapine and oppression were insensibly multiplied;⁹⁰⁰ every indulgence was shewn to the illegal behaviour of the Christians; every doubt was explained to the disadvantage of paganism; and the demolition of the temples was celebrated as one of the auspicious events of the reign of Constans and Constantius.⁹⁰¹ The name of Constantius is prefixed to a concise law, which might have superseded the necessity of any future prohibitions. [Hebrew]It is our pleasure that in all Edition: current; Page: [412] places, and in all cities, the temples be immediately shut, and carefully guarded, that none may have the power of offending. It is likewise our pleasure that all our subjects should abstain from sacrifices. If any one should be guilty of such an act, let him feel the sword of vengeance, and, after his execution, let his property be confiscated to the public use. We denounce the same penalties against the governors of the provinces, if they neglect to punish the criminals.[Hebrew]"⁹⁰² But there is the strongest reason to believe that this formidable edict was either composed without being published, or was published without being executed. The evidence of facts, and the monuments which are still extant of brass and marble, continue to prove the public exercise of the pagan worship during the whole reign of the sons of Constantine. In the East, as well as in the West, in cities, as well as in the country, a great number of temples were respected, or at least were spared; and the devout multitude still enjoyed the luxury of sacrifices, of festivals,

⁸⁹⁸See Eusebius, in Vit. Constantin. l. iii. c. 54-58, and l. iv. c. 23, 25. These acts of authority may be compared with the suppression of the Bacchanals, and the demolition of the temple of Isis, by the magistrates of pagan Rome.

⁸⁹⁹Eusebius (in Vit. Constant. l. iii. c. 54) and Libanius (Orat. pro Templis, p. 9, 10, edit. Gothofred.) both mention the pious sacrilege of Constantine, which they viewed in very different lights. The latter expressly declares that [Hebrew]he made use of the sacred money, but made no alteration in the legal worship; the temples indeed were impoverished, but the sacred rites were performed there.[Hebrew]" Lardner[Hebrew]'s Jewish and Heathen Testimonies, vol. iv. p. 140.

⁹⁰⁰Ammianus (xxii. 4) speaks of some court eunuchs who were spoliis templorum pasti. Libanius says (Orat. pro Templ. p. 23), that the emperor often gave away a temple, like a dog, or a horse, or a slave, or a gold cup: but the devout philosopher takes care to observe that these sacrilegious favourites very seldom prospered.

⁹⁰¹See Gothofred. Cod. Theodos. tom. vi. p. 262; Liban. Orat. Parental. c. x. in Fabric. Bibl. Græc. tom. vii. p. 235.

⁹⁰²Placuit omnibus locis atque urbibus universis claudi protinus templa, et accessu vetitis omnibus licentiam delinquendi perditis abnegari. Volumus etiam cunctos a sacrificiis abstinere. Quod si quis aliquid forte hujusmodi perpetraverit, gladio sternatur: facultates etiam perempti fisco decernimus vindicari: et similiter adfligi rectores provinciarum si facinora vindicare neglexerint. Cod. Theodos. l. xvi. tit. x. leg. 4. Chronology has discovered some contradiction in the date of this extravagant law; the only one, perhaps, by which the negligence of magistrates is punished by death and confiscation. M. de la Bastie (Mém. de l[Hebrew]'Académie, tom. xv. p. 98) conjectures, with a show of reason, that this was no more than the minutes of a law, the heads of an intended bill, which were found in Scriniis Memoriae, among the papers of Constantius, and afterwards inserted, as a worthy model, in the Theodosian Code.

and of processions, by the permission, or by the connivance, of the civil government. About four years after the supposed date of his bloody edict, Constantius visited the temples of Rome; and the decency of his behaviour is recommended by a pagan orator as an example worthy of the imitation of succeeding princes. [Hebrew]That emperor,[Hebrew]" says Symmachus, [Hebrew]suffered the privileges of the vestal virgins to remain inviolate; he bestowed the sacerdotal dignities on Edition: current; Page: [413] the nobles of Rome, granted the customary allowance to defray the expenses of the public rites and sacrifices: and, though he had embraced a different religion, he never attempted to deprive the empire of the sacred worship of antiquity.[Hebrew]"⁹⁰³ The senate still presumed to consecrate, by solemn decrees, the divine memory of their sovereigns; and Constantine himself was associated, after his death, to those gods whom he had renounced and insulted during his life. The title, the ensigns, the prerogatives of sovereign pontiff, which had been instituted by Numa, and assumed by Augustus, were accepted, without hesitation, by seven Christian emperors; who were invested with a more absolute authority over the religion which they had deserted than over that which they professed.⁹⁰⁴

The divisions of Christianity suspended the ruin of paganism;⁹⁰⁵ and the holy war against the infidels was less Edition: current; Page: [414] vigorously prosecuted by princes and bishops who were more immediately alarmed by the guilt and danger of domestic rebellion. The extirpation of idolatry⁹⁰⁶ might have been justified by the established principles of intolerance: but the hostile sects, which alternately reigned in the Imperial court, were mutually apprehensive of alienating,

⁹⁰³Symmach. Epistol. x. 54.

⁹⁰⁴The fourth Dissertation of M. de la Bastie, sur le Souverain Pontificat des Empereurs Romains (in Mém. de l'[Hebrew]' Acad. tom. xv. p. 75-144), is a very learned and judicious performance, which explains the state, and proves the toleration, of paganism from Constantine to Gratian. The assertion of Zosimus that Gratian was the first who refused the pontifical robe is confirmed beyond a doubt; and the murmurs of bigotry, on that subject, are almost silenced.

⁹⁰⁵As I have freely anticipated the use of pagans and paganism, I shall now trace the singular revolutions of those celebrated words. 1. Παγή [παγά], in the Doric dialect, so familiar to the Italians, signifies a fountain; and the rural neighbourhood which frequented the same fountain derived the common appellation of pagus and pagans (Festus sub voce, and Servius ad Virgil. Georgic. ii. 382). 2. By an easy extension of the word, pagan and rural became almost synonymous (Plin. Hist. Natur. xxviii. 5); and the meaner rustics acquired that name, which has been corrupted into peasants in the modern languages of Europe. 3. The amazing increase of the military order introduced the necessity of a correlative term (Hume[Hebrew]'s Essays, vol. i. p. 555); and all the people who were not enlisted in the service of the prince were branded with the contemptuous epithet of pagans (Tacit. Hist. iii. 24, 43, 77. Juvenal. Satir. xvi. [33]. Tertullian. de Pallio, c. 4). 4. The Christians were the soldiers of Christ; their adversaries, who refused his sacrament, or military oath of baptism, might deserve the metaphorical name of pagans: and this popular reproach was introduced as early as the reign of Valentinian (ad 365) into Imperial laws (Cod. Theodos. l. xvi. tit. ii. leg. 18) and theological writings. 5. Christianity gradually filled the cities of the empire; the old religion, in the time of Prudentius (advers. Symmachum, l. i. ad fin.) and Orosius (in Præfat. Hist.), retired and languished in obscure villages; and the word pagans, with its new signification, reverted to its primitive origin. 6. Since the worship of Jupiter and his family has expired, the vacant title of pagans has been successively applied to all the idolaters and polytheists of the old and new world. 7. The Latin Christians bestowed it, without scruple, on their mortal enemies the Mahometans; and the purest unitarians were branded with the unjust reproach of idolatry and paganism. See Gerard Vossius, Etymologicon Linguae Latinae, in his works, tom. i. p. 420. Godefroy[Hebrew]'s Commentary on the Theodosian Code, tom. vi. p. 250, and Ducange, mediæ et infimæ Latinitat. Glossar. [Latin pagus, canton or village, has nothing to do with παγή.]

⁹⁰⁶In the pure language of Ionia and Athens, Εἰδωλον and Λατρεία were ancient and familiar words. The former expressed a likeness, an apparition (Homer, Odyss. xi. 601), a representation, an image, created either by fancy or art. The latter denoted any sort of service or slavery. The Jews of Egypt, who translated the Hebrew scriptures, restrained the use of these words (Exodus xx. 4, 5) to the religious worship of an image. The peculiar idiom of the Hellenists, or Grecian Jews, has been adopted by the sacred and ecclesiastical writers; and the reproach of idolatry (Εἰδωλολατρεία) has stigmatised that visible and abject mode of superstition which some sects of Christianity should not hastily impute to the polytheists of Greece and Rome.

and perhaps exasperating, the minds of a powerful, though declining, faction. Every motive of authority and fashion, of interest and reason, now militated on the side of Christianity; but two or three generations elapsed before their victorious influence was universally felt. The religion which had so long and so lately been established in the Roman empire was still revered by a numerous people, less attached indeed to speculative opinion than to ancient custom. The honours of the state and army were indifferently bestowed on all the subjects of Constantine and Constantius; and a considerable portion of knowledge and wealth and valour was still engaged in the Edition: current; Page: [415] service of Polytheism. The superstition of the senator and of the peasant, of the poet and the philosopher, was derived from very different causes, but they met with equal devotion in the temples of the gods. Their zeal was insensibly provoked by the insulting triumph of a proscribed sect; and their hopes were revived by the well-grounded confidence that the presumptive heir of the empire, a young and valiant hero, who had delivered Gaul from the arms of the Barbarians, had secretly embraced the religion of his ancestors.

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Appendix Additional Notes by the Editor

1.: the Rescript of Antoninus Concerning the Christians [Hebrew] (p. 30)

The authenticity of this edict has not yet been finally determined. It has come down to us in three forms: (1) in Eusebius, H.E. iv. 13, (2) in Rufinus, H.E. iv. 13, which is merely a free rendering of the Greek text in Eusebius, and does not rest on a Latin original, (3) in a fourteenth century MS. of Justin. Harnack, who has thoroughly discussed the whole question (in his *Texte u. Untersuch.* xiii. 4), has shown satisfactorily that the version in Justin is not independent, but is taken from Eusebius with certain [Hebrew]tendenziös[Hebrew]" changes. The most striking difference between the Justin version and the Eusebian (Rufinus) is in the title; in the former the edict is attributed to Titus, in the latter to Marcus. But the context in Eusebius shows that he regarded the edict as issuing from Titus; and so it would seem, as Harnack suggests, that he found the incorrect title in his source and did not venture to omit or alter it, while he assumed it to be wrong. But in any case, the title is a clumsy forgery, for Marcus is described as Ἀρμένιος (he did not possess the true title [Hebrew]ρμενιαχός so early as 161), and the name of Lucius Verus his colleague does not appear. In regard to the authenticity of the rescript as Eusebius gives it, Harnack points out that he had a Greek, not a Latin (as in other cases, iv. 9; vii. 13; viii. 17), copy before him, and that this cannot have been the original. The comparison between the behaviour of Christians and pagans to the advantage of the former is clearly a Christian interpolation. Harnack attempts to restore the original Greek form of the rescript, in whose authenticity he believes (though he owns that certainty cannot be attained). The rescript was an answer to a petition of the *κοινόν* of Asia, and Harnack thinks that the copy used by Eusebius was preserved (and interpolated) in Christian circles.

The difference between the rescripts of Hadrian and Antoninus was that the former protected the Christians against calumnious accusation; the latter against the accusation of atheism in general.

2.: Exile of Marcellus and Eusebius, Bishops of Rome [Hebrew] (p. 77)

Most interesting traces of the early Bishops of Rome have been found in the Catacombs. We owe them to the activity of Bishop Damasus in subterranean Rome. The subject can be studied in English, in the [Hebrew]Roman Sotteranea[Hebrew]" of Messrs. Northcote and Brownlow (2 vols.), an excellent compilation from the researches of the Cavaliere di Rossi, the greatest authority of this century on Christian Rome. Edition: current; Page: [418]

Marcellus and Marcellinus were [Hebrew]different persons.[Hebrew]" Marcellinus is mentioned in the inscription of the Deacon Severus found in the Catacomb of St. Callixtus (op. cit. i. 350). Both Marcellus and Marcellinus were buried not in this cemetery but in that of St. Priscilla (ib. 304).

Eusebius, the successor of Marcellus, was like him severe to the [Hebrew]Lapsed,[Hebrew]" and like him banished. This is shown by the following inscription, found in the Catacomb of St. Callixtus, [Hebrew] the fellow of that relating to Marcellus quoted in Gibbon[Hebrew]'s note (p. 77).

Heraclius vetuit lapsos peccata dolere;
Eusebius miseros docuit sua crimina flere.
scinditur in partes populus gliscente furore;
seditio caedes bellum discordia lites;
extemplo pariter pulsi feritate tyranni,
integra cum rector servaret foedera pacis,
pertulit exilium domino sub iudice laetus,
litore Trinacrio mundum vitamque reliquit.

The author of these epitaphs had a limited vocabulary. But they throw light on the divisions in the Roman Church at the time, and on the interference of Maxentius, in the interests of order, [Hebrew] which won for him in later times the name of a persecutor.

3.: PERSECUTIONS OF THE CHRISTIANS IN THE FIRST AND SECOND CENTURIES, ad [Hebrew] (C. XVI.)

A considerable literature has sprung up in recent years regarding the attitude of the Roman government to Christianity from Nero to Marcus Aurelius (Th. Keim, *Rom und das Christenthum*, ed. Ziegler, 1881; K. J. Neumann, *der römische Staat und die allgemeine Kirche*, vol. i. 1890; Th. Mommsen, *der Religionsfrevler nach römischem Recht*, in Sybel[Hebrew]'s *Hist. Zeitschrift*, 1890; Professor Ramsay[Hebrew]'s *The Church in the Roman Empire*, 1893; may be mentioned). A thorough and instructive discussion of the whole question will be found in Mr. E. G. Hardy[Hebrew]'s *Christianity and the Roman Government*, 1894. A summary of some of his results will illustrate the sixteenth chapter of Gibbon.

From a review of the practical policy of the Roman state towards foreign cults Mr. Hardy concludes that they were tolerated in so far as they did not (1) injure the national religion, (2) encourage gross immoralities, (3) seem likely to lead to political disaffection (p. 35-6). Various considerations led to the toleration of Judaism, and Mr. Hardy points out that its toleration would by no means logically lead to that of Christianity, a religion [Hebrew]claiming to overstep all limits of nationality[Hebrew]" (p. 37). The contact between the state and the Christians at Rome in 64 ad, on the occasion of the conflagration, was accidental. The charge of incendiarism broke down at the trials, but it was converted into a charge of odium generis humani (a brief summary of the antisocialism and other characteristics of Christianity). It was for this that they were punished; and Suetonius does not bring their punishment into connection with the fire, which was the occasion, not the ground, of their condemnation (Ner. 16: *adfecti suppliciiis Christiani genus hominum superstitionis nouæ ac maleficæ*). Mr. Hardy seems to have quite made out his point that in the Neronian persecution the Christians were condemned as Christians, not on any special charge.

This charge odium generis humani, for the use of which the Neronian Edition: current; Page: [419] episode set a precedent, did not come under maiestas of the formula of any regular quæstio. According to Mommsen, whose view in this respect Mr. Hardy accepts, it was a matter for police regulation, to be dealt with by virtue of the coercitio vested in magistrates. In Rome, such cases would come under the jurisdiction of the prefect of the city (Tac. Ann. vi. 11); and the provincial governor was empowered to deal with them by his instructions to maintain the peace and tranquillity of his province, [Hebrew]which he will find no difficulty in effecting, if he be careful ut malis hominibus provincia careat cosque conquirat[Hebrew]" (e.g., sacrilegi, latrones, &c.). Mr. Ramsay holds that a new principle was introduced into the State policy towards Christians between 65 and 95 ad, namely that whereas under Nero they were attacked by charges of special and definite crimes (incendiarism), under the Flavians Christianity itself became a punishable offence. But if Mr. Hardy is right as to the Neronian persecution, this change in attitude would disappear. [Hebrew]As soon as the Christians were once convicted of an odium generis humani, they were potentially outlaws and brigands and could be treated by the police administration as such, whether in Rome or the provinces[Hebrew]" (p. 82). That the distinction between Judaism and Christianity had been clearly recognised in the East as early as 70 ad, is proved by the speech of Titus in Sulpicius Severus, ii. 30 (taken from a lost book of Tacitus, as we may with some confidence assume); one of the advantages of the destruction of Jerusalem will be, that prince is reported to say, the extirpation of the Jewish and the Christian religion. We need not infer, as Mr. Hardy points out, that Titus had special designs against the Christians: [Hebrew]the persecution of the Christians was a standing one like that of brigands[Hebrew]" (Mommsen).

[Hebrew]With Roman citizens,[Hebrew]" however, [Hebrew]of standing and importance a more definite charge was necessary, and this we find from Dio Cassius was primarily [Heβρεω]θεοτης, i.e., not so much sacrilegium as a refusal to worship the national gods of the state[Hebrew]" (p. 88). This was applied in the case of Flavius Clemens, cousin of Domitian, who was executed, and his wife Domitilla, who was banished, 95 ad The reign of Domitian introduced no new principle, but a very convenient test [Hebrew] e.g., the observance of the imperial cult [Hebrew] for discovering whether a person suspected of the crime of Christianity (a crime, that is, in the eyes of the police administration, not of the law) was justly suspected.

Nor does the Bithynian persecution introduce (according to Mr. Hardy) any new principle. The letter of Trajan to Pliny is described (p. 117) as [Hebrew]the decision of a practical statesman who declined on the one hand to be led into severe repressive measures against a body which was only remotely and theoretically dangerous to the state, while he, on the other, refused to give up on humanitarian grounds the claim of the state to absolute obedience on the part of all its subjects.[Hebrew]" It is in no sense an edict of proscription or of toleration, but it is [Hebrew]an index of the imperial policy[Hebrew]" (p. 122).⁹⁰⁷ As to Hadrian[Hebrew]'s rescript to Minucius Fundanus (whose genuineness is by no means above suspicion), Mr. Hardy considers (143) that it [Hebrew]was intended, as indeed it naturally would be, for the special circumstances of Asia: it does not in any way, as I interpret it, rescind the decision of Trajan that the nomen was a crime, but to avoid any miscarriage of justice . . . it lays down more stringent conditions for the proof of punishable crime.[Hebrew]" Under M. Antoninus and his successor things remained theoretically the same. In the reign of the former there were some persecutions, [Hebrew] Ptolemæus and Lucius Edition: current; Page: [420] were executed at Rome (Justin Apol. ii. 2) and (according to M. Waddington[Hebrew]'s date) Polycarp at Smyrna. The remarkable point in the persecutions of Aurelius is that they take place in the western as well as the eastern provinces, and not so much their extent or the number of victims (p. 147). In general tenor these conclusions agree with the view of Mommsen and Ramsay that there were no laws against the Christians. I cannot see that this has been made out, for the second century at least, though it may be true of the Flavian period. It does not appear that the explicit statement of Sulpicius Severus in ii. 29, post etiam datis legibus religio vetabatur (referring to the whole period after Nero), is definitely disproved. Some of Mr. W. T. Arnold[Hebrew]'s criticisms (Eng. Hist. Review, 1895, p. 546 sqq.) are very much to the point.

Gibbon[Hebrew]'s general view of the slight extent of the early persecutions, resting as it does on the strong testimony of Origen (c. Cels. 3, 8), is commonly admitted. Compare Hardy, p. 131: [Hebrew]There seems good reason to suppose that this state of things [Hebrew] a general indulgence and toleration on the part of the emperors, occasionally interrupted by violent manifestations of popular feeling, which provincial governors had either not the will or not the strength to resist [Hebrew] continued throughout the second century: that the Christians were still punished for the name, but that the initiative in the way of searching them out was not taken by the governors, while accusers had to come forward in their own name; and finally, that the number of victims was on the whole a comparatively small one.[Hebrew]" It must at the same time be remembered that it was the policy of the Apologists (on whose evidence our knowledge is largely based) [Hebrew]to accentuate and in a measure to exaggerate the indulgent attitude of the government, especially in the period preceding their own, or at any rate to omit anything unfavourable to their own cause[Hebrew]" (p. 132).

⁹⁰⁷It is to be observed that the condemnation of Christians in Bithynia had nothing to do with the general laws or special regulations against collegia.

Two important documents give a notion of the proceedings adopted in the trials of Christians in the second century: (1) the Acts of Martyrs of Scili in Numidia, in 181 ad (ed. Usener, 1881, and Robinson in Texts and Studies, vol. i.), and (2) the Acts of Apollonius, tried at Rome in the first years of Commodus (Armenian version of a lost Greek original, discovered by Mr. Conybeare, who has given a translation in his Acts and Monuments of Early Christianity). The credit of these documents as trustworthy rests chiefly on the circumstance that miracles are conspicuously absent. Mr. Hardy gives an account of them in an Appendix. Cp. Mommsen, Der Process des Christen Apollonios, in the Sitzungsberichte of the Berlin Academy, xxvii. 1894.

B. Aubé has written several books dealing with the subject of the persecutions of the Christians: Les persecutions de l[Hebrew]'église jusqu[Hebrew]'à la fin des Antonins; Les Chrétiens dans l[Hebrew]'empire romain; L[Hebrew]'église et l[Hebrew]'état dans le 2me moitié du 3me siècle.

On Nero[Hebrew]'s persecution also see C. F. Arnold, Die neronische Christenverfolgung, and an article by Hilgenfeld in his Zeitschrift, vol. xxxiii. p. 216 sqq.

On church and state from Decius to Diocletian: Görres, Jahrb. für protest. Theologie, xvi. 1890, p. 454 sqq.

On Diocletian[Hebrew]'s persecution: Mason[Hebrew]'s The Persecution of D., 1876; Hunziker, Zur Reg. u. Christenverfolgung des K. Diokletian und s. Nachfolger, in Büdinger[Hebrew]'s Untersuch. zur römischen Kaisergeschichte; papers of F. Görres in Hilgenfeld[Hebrew]'s Zeitsch. f. wiss. Theol., xxxiii. p. 314 sqq. (cp. 469 sqq.). I. Belser, Zur Diokl. Christenverfolgung, 1891. Cp. also Schwarze, Unters. über die äussere Entwicklung der afrik. Kirche, 1892. Edition: current; Page: [421]

On church and state in fourth century: A. de Broglie, L[Hebrew]'église et l[Hebrew]'empire romain au quatrième siècle. Some other works have been mentioned in the footnotes.

An important memoir has been published as a supplement to the Acta Sincera of Ruinart by E. Le Blant: Les actes des martyrs, in Mém. of the National Institute of France (Acad. d. Belles lettres, t. xxx., 1883, p. 57-347). Le Blant is too anxious to rescue apocryphal lives, and overdoes his criticism of technical terms of Roman procedure. But he has done good work here (as well as in his essay, Sur les bases juridiques des poursuites dirigées contre les martyrs, in Comptes rendus of Académie des Inscriptions, N.S., ii. 1866), and any one studying martyrological Acta will do ill to neglect this memoir.

4.: Augusteum and Forum of Constantine [*Hebrew*] (p. 104-106)

The chief thoroughfare in the new city of Constantine led from the Golden Gate (in the wall of Constantine, not to be confused with the later Golden Gate in the wall of Theodosius ii.) eastward (passing through the Forum Bovis, the Forum Amastrianorum, and the Forum Tauri) to the Golden Milestone in the Augusteum. Before it reached the Augusteum it passed through the Forum of Constantine in which stood the Pillar of Constantine (and the Churches of S. Constantine and S. Mary of the Forum). In the Augusteum (which we might translate Place Impériale) it came to an end, in front of the Senate house (Σενάτον) and west wall of the Palace. The Augusteum was bounded on the north by St. Sophia; on the east, by Senate house and palace buildings; on the south, by the Palace (the great entrance gate, known as the Chalkê, was here) and the north side of the Hippodrome, beside which were the Baths of Zeuxippus. There was no public way between the east side of the Hippodrome and the Palace. According to Labarte, the Augusteum was enclosed by a wall, with gates, on the west side, running from south-west of St. Sophia to a point between the Palace and the Hippodrome; so that the entrance to the Hippodrome and the Zeuxippus would have been outside the Augusteum. The street connecting the Augusteum with the Forum of Constantine was called Middle St., [*Hebrew*] Μέση. The Chalkoprateia, and the Church of the Theotokos (Mother of God) in Chalkoprateia, were not in the Augusteum where Labarte places them, but west of St. Sophia, to the right of the Mese (as Mordtmann has shown, *Esquisse Top.* § 6, p. 4, and also Bieliaiev, cp. *Byz. Zeitsch.* ii. p. 138; but probably close to the Mese, cp. Krasnoseljcev, in the *Annual Hist.-Phil. Publication of the Odessa University*, iv. (Byz. section, 2) p. 309 sqq.). A plan of the Augusteum and adjoining buildings will appear in vol. vii., to illustrate the Nika riots under Justinian.

The chief guides to the topography of Constantinople used by Gibbon were Ducange[*Hebrew*]'s folio, *Constantinopolis Christiana*, and the little 32mo of Petrus Gyllius, *de Constantinopoleos topographia*, libri iv., 1632; both still of great value. The prolix work in 2 vols. of Skarlatos D. Byzantios ([*Hebrew*] Κωνσταντινούπολος, Athens, 1851) is unscientific and must be used with great caution. The reconstruction of the Imperial Palace, involving a theory of the topography of the Augusteum and adjacent buildings, was undertaken by Jules Labarte (*Le Palais impérial de Constantinople et ses abords*, 1861) Edition: current; Page: [422] whose scholarly book marked a new departure and is of permanent value. The diligent Greek antiquarian A. G. Paspatis succeeded in establishing several valuable identifications in his Βυζαντενα[*Hebrew*] Μελέται (Constantinople, 1877), but his τ[*Hebrew*] Βυζαντιν[*Hebrew*]νάκτορα (1885; in English: *The Great Palace of Constantinople*, translated by Mr. Metcalfe, 1893) is a retrorgression compared with Labarte (see above, vol. i. *Intro.* p. lxxviii.-lxxix.). The problems of the Palace have been critically and thoroughly dealt with by D. Th. Bieliaiev in his *Obzor glavnykh chastei bolshago dvortsa Vizantiiskich tsarei* (Part 1 of *Byzantina*), 1891, where it is shown that we must retain the main line of Labarte[*Hebrew*]'s reconstruction, but that in most of the details we must be content for the present to confess our ignorance.

In 1892 Dr. Mordtmann[*Hebrew*]'s *Esquisse topographique de Constantinople* appeared. It is not well arranged, but it is an important contribution to the subject; and his map has been an indispensable guide in the preparation of the plan in this volume. He clearly recognises the true position of the Hebdomon on the Propontis; and I may observe that I had already pointed out (in 1889) that the received view which placed it near Blachernae must be wrong (Later Roman Empire, vol. ii. p. 556). The most recent work on Constantinople is: *Constantinople*, 2 vols., by E. A. Grosvenor, Professor of History at Robert College, Constantinople.

It is impossible to notice all the smaller contributions to the subject, but I must specially refer to

some valuable articles of the late G. S. Destunis in the Zhurnal Min. Narodnago Prosviescheniia in 1882-1883.

5.: the New Monarchy [*Hebrew*] (c. Xvii.)

All the main points in the new absolute monarchy, founded by Diocletian and organised by Constantine, have been brought out in the brilliant description of Gibbon (ch. xvii.): the new organisation of the provinces; the hierarchical administration; the separation of civil from military functions; the abolition of the distinction between Italy and the Provinces; the loss of her unique position by Rome, which is closely connected with the clearly pronounced tendency of the Empire to part into an eastern and a western half. Anticipations of some of these results we have seen in the history of the third century. The formal oligarchy of Emperor and Senate, in which the Senate had been gradually becoming more and more a silent partner, formally ceases; the distinction between senatorial and imperial provinces vanishes, there are no senatorial provinces; and the *aerarium*, which had many years before lost its importance, is no longer a state treasury but merely a municipal chest. Externally the change from the Principate to undisguised monarchy is indicated by the assumption of oriental state by the emperor (here Aurelian had pointed the way). The thorough-going reformation of the military system, which was not fully understood till Mommsen[*Hebrew*]'s recent investigation, demands a note to itself; and the new division of provinces another. To distinguish between the work of Diocletian and that of Constantine is in many cases impossible, and Gibbon did not attempt it; it will be seen however in the two following appendices that some distinctions can be established. To Diocletian was due the separation of the civil and military authority (Lactant., *de Mort. P.*, 7; Euseb., *de Mart. Pal.*, 13). The dioceses and prefectures are an instructive, and I think we may say, typical instance of the relation between the work of the two great emperors. We know beyond question that the dioceses were instituted by Diocletian (Lact., *ib.*), but it has been disputed whether the prefectures were due to him or (so Zosimus) to Constantine. Edition: current; Page: [423] The latter view seems the more probable; but the quadruple division of the Empire between Diocletian, Maximian and the two Cæsars (implying four prefects; there is distinct evidence that the Cæsar Constantius had a prefect) was the suggestion and anticipation of the three (sometimes four; after 395 ad four) prefectures. Constantine abandoned the artificial, adoptive system of Diocletian for a dynastic principle, but he retained the geographical side of that system and stereotyped it in the prefectures.

A few words may be said here on (a) the new ceremonial, (b) the imperial titles, and (c) the consistorium.

(a) For the adoration see Godefroy on *Cod. Theod.*, vol. ii. p. 83. Those who approached the Emperor bent the knee, and drew the edge of his purple robe to their lips. The Emperor wore a robe of silk, embroidered with gold, and adorned with gems (introduced by Aurelian); or the purple cloak of the military commander (first worn in Rome by Septimius Severus, and since then an imperial insigne). He also wore the diadem (perhaps first worn by Aurelian, see Victor, *Epit.* 35, 5; but the novelty is also ascribed to Diocletian, and to Constantine). Constantine introduced the gold band round the head, which was called *nimbus* (cp. Eckhel, *Doct. Num.*, 8, 79). The emperor is officially called *deus*, and the cult of the imperial majesty, which at an early time had made its way in the camp, is further developed; and, when a new Emperor is proclaimed, his bust crowned with laurel is carried round in procession in the provinces. See Schiller, ii. p. 33, 34.

(b) The style of imperial titles which was usual in the latter part of the Principate was maintained until the time of Gratian. It was *Imperator Cæsar pius (felix or) invictus Augustus pontifex Maximus* [*Hebrew*] *icus* [Sarmaticus, &c.] *maximus trib. pot. [ii. &c.] consul [ii. &c.] imperator [ii. &c.] pater patriae proconsul*. [The order of *imperator* and *consul* is variable. The only change made was the substitution of *maximus victor ac triumphator* for *invictus*. Gratian dropped the title *pontifex*

maximus, and the other titles were at the same time abandoned in favour of a shorter formula, Dominus noster {pius felix semper Augustus invictissimus princeps, &c.

The chief reminiscence of the republican constitution of the principate, so carefully contrived by Augustus, was the practice of numbering the years of a reign by the formula trib. pot., which appears as late as Theodosius ii. (on coins, Eckhel, 8, 182). Dominus, which (like deus) Aurelian had only used in the dative case, is from Constantine forward the ordinary official title of the Emperor (equivalent of *[Hebrew]*His Majesty*[Hebrew]*). Schiller, ii. 31-33.

(c) The consilium, which had been organised by Hadrian, is superseded in the new monarchy by a council called consistorium (the name first occurs in an inscription of 353 ad, C.I.L. 6, 1739), which assembled at fixed times in the Emperor*[Hebrew]*'s presence. The chief of the Hadrianic consilium was the praetorian prefect; but, as that officer has been diverted to new administrative functions and as the provincial administration and palace offices are kept carefully apart, his position in the council is inherited by the quaestor sacri pal. who presides over the consistorium. It is however unlikely that the quaestor had this position at first under Diocletian and Constantine; for he does not belong to the class of illustres till after Valentinian I. It has been conjectured (by Mommsen) that the president of the council was at first entitled praepositus and afterwards developed into the quaestor, and that he had a deputy, the vicarius a sacris consiliis, who developed into the magister officiorum (Schiller, ii. 66). The members of the council (entitled at first a consiliis sacris, afterwards comites consistoriani) were divided into two Edition: current; Page: [424] classes with a difference of stipend: ducenarii (200,000 sesterces), sexagenarii (60,000 sesterces), and mainly consisted of jurists. The functions of the council were properly confined to judicature, but they also assisted the Emperor in legislation. The two finance ministers belonged to the council, and in later times praetorian prefects and masters of soldiers were sometimes invited by the Emperor, but did not belong to the consistory ex officio. See on the subject, E. Cuq, Le conseil des empereurs d*[Hebrew]*'Auguste à Dioclétien.

6.: DIOCESES AND PROVINCES [*Hebrew*] (P. 126 sqq.)

Diocletian made considerable modifications in the provincial divisions of the Empire, and distributed all the provinces under twelve large Dioceses. Three changes in his diocesan arrangement were made in the course of the fourth century, and by 400 ad we find thirteen Dioceses. (a) Egypt, which was at first part of the Diocese of the East, was promoted to be a separate Diocese towards the end of the fourth century. (b) Diœcesis Moesiarum was broken up into Diœcesis Daciae and Diœcesis Macedoniae. (c) On the other hand, Diœcesis Galliarum and Diœcesis Viennensis were combined to form a single Diocese of Gaul. In the case of this change we find an interesting example of the survival of nomenclatures which had ceased to be appropriate. The south of Gaul was at first divided into five provinces (Novempopuli, Aquitanica, Narbonensis, Viennensis, Alpes Maritimae). But when these became seven by the subdivision of Aquitanica and Narbonensis the Diocese (Viennensis) still continued to be known as Quinque Provinciae as well as by the amended title Septem Provinciae. But this was not all. When Northern Gaul, the original Diœcesis Galliarum, was added to the sphere of the governor of the Diœcesis Viennensis, the whole united Diocese was known not only as the Diocese of the Gauls but as the Septem Provinciae; while the old name Quinque Provinciae was appropriated to the seven southern provinces, which, though they were no longer a separate Diocese, preserved a fragment of their former integrity by having financial officers (*rationales*) to themselves.

(1) A record of the new organisation as it existed in 297 ad has been preserved in the List of Verona (*Laterculus Veronensis*), published with a valuable commentary by Mommsen in the *Abhandl. of the Berlin Acad.*, 1862, p. 489 sqq., and reprinted by Seeck in his edition of the *Notitia Dignitatum*.⁹⁰⁸ (2) Our next list is (incomplete) in the *Breviarium of Festus* (above, vol. i. App. 1), dating from 369 ad, just before the foundation of the new Britannic province Valentia. (3) This defective list is supplemented by another, dating from much the same time, of the eastern provinces of the Empire (dioceses of Illyricum, Thrace, Pontus, Asia, East, Egypt), which is preserved in the *Laterculus of Polemius Silvius*, drawn up in 449 ad. The list of Polemius with a complete critical apparatus is edited by Mommsen in *Chron. Minora*, i. p. 511-551 (also printed in Seeck[*Hebrew*]'s *Notit. Dign.*). Mommsen has shown that Polemius is up to date in regard to the western provinces, but that for the eastern he practically reproduces a list dating from about the middle of the fourth century, with one or two blunders, and only adding the new provinces of Arcadia and Honorias, which bearing the names of the sons of Theodosius were more likely than other new provinces to be known of in the west. (4) A list of the Gallic provinces in Ammianus (writing between 383 and 390 ad), xv. 11, 7 sqq., who clearly used an official *laterculus*. Mommsen, *Chron. Min.* i. p. 552 sqq. Ammianus Edition: current; Page: [425] also enumerates the provinces of Egypt, xxii. 16, 1. (5) *Notitia Galliarum*, between 190 and 413 ad, edited by Mommsen, *ib.*, 552-612; printed in Seeck, *op. cit.*; the provinces are the same as in the *Not. Dign.* (6) *Notitia Dignitatum*: first years of the fifth century. Panciroli[*Hebrew*]'s commentary, used by Gibbon, has been completely superseded by that of Böcking (2 vols., 1839-53), which is absolutely indispensable to the student; but Böcking[*Hebrew*]'s text has been superseded by that of O. Seeck, 1876. For a good account of work and history of the Codex, with its curious pictures, see Hodgkin, *Italy and her Invaders*, i. 594 sqq. For date cp. above, p. 112, n. 73. From the fact that the twentieth legion does not appear in the *Not.*, it has been argued that the date is ad 402 [*Hebrew*] at the moment when this legion was recalled from Britain and had not yet been enrolled among the Italian forces (Hodgkin, *ib.* p.

⁹⁰⁸First published by S. Maffei in 1742.

717). (7) The Laterculus of Polemius Silvius: for the western provinces, ad 449, see above. I have arranged the data of these successive documents in parallel columns.

(Literature: L. Czwalina, Ueber das Verzeichniss der röm. Prov. v. Jahr. 297, 1881; L. Jullian, De la réforme provinciale attribuée à Diocl., Revue Hist., 19, 331 sqq.; Schiller, Röm. Gesch. ii. 45-50; W. Ohnesorge, Die römische Provinzliste von 297, Teil. i., 1889. Cp. also Marquardt, Staatsverwaltung, vol. i.) Edition: current; Page: [426]

1These names were clearly given in honour of Diocletian and Maximian.

2This name first occurs in an edict of 342 ad C. Theod. xii. 1, 34.

3Arcadia is added by Polemius; it cannot have stood in the old laterculus which he used, which was prior to 384 ad

4Arcadia (and Honorias) formed after 384; Mommsen thinks perhaps as late as 393, when Arcadius became Augustus.

6See Nöldeke, Hermes, x. 163 sqq. Ohnesorge (Die röm. Provinzliste, v. 297, p. 33 sqq.) has shown that northern province (chief city, Bostra) was Arabia (the addition [Hebrew]Aug. Lib.[Hebrew]" was dropped early in the fourth century), and the southern (Diocletian[Hebrew]'s Arabia) was renamed Palæstina Salutaris before 325 ad (p. 43).

5Not a regular province; governed by a satrap.

List of Verona List in [Hebrew]Polemius[Hebrew]" Ammianus Notitia Dignitatum

Diocese of the East (L. Ver.) = Diocese of Egypt (L. Polem., Notit.). Libya superior Libya Pentapolis Pentapolis Libya superior

Libya inferior Libya Sicca Libya Libya inferior

Thebais Thebais Thebais Thebais

Ægyptus Jovia1 Ægyptus Ægyptus Ægyptus

Ægyptus Herculea1 Augustamnica2 Augustamnica Augustamnica

[Hebrew]3

Arcadia4

List of Verona List in [Hebrew]Polemius[Hebrew]" Notitia Dignitatum

Diocese of the East continued (L. Ver.) = Diocese of the East (L. Pol., Not.). Arabia [Hebrew]Palæstina Salutaris6

Arabia Augusta Libanensis [Hebrew]Arabia

Palæstina Syria Palæstina Palæstina

Phœnice Syria Phœnice Phœnice

Syria Cœle Syria Cœle Syria

Augusta Euphratensis Euphratesia Euphratensis

Cilicia Cilicia Cilicia

Isauria Isauria Isauria

Cyprus Cyprus Cyprus

Mesopotamia Mesopotamia Mesopotamia

Osroena Osroene Osroena

[Hebrew] Sophanene5 [Hebrew]Palæstina secunda

[Hebrew]Phœnice Libani

[Hebrew]Syria Salutaris

[Hebrew]Cilicia secunda

Edition: current; Page: [427]

9Polemius places it in the Diocese of Asia, probably by an oversight.

7There is a later false adscript *nunc in duas divisa*.

8Another note (from the hand of the same interpolator) *et nunc maior addita* records the conquest of Diocletian.

10Cappadocia II. is mentioned in an edict of 386, Cod. Theod. xiii. 11, 2 (wrong reference in Mommsen, Chron. Min. i. p. 533). Armenia I. was the northern, Armenia II. the southern, half of Little Armenia. Galatia Salutaris also existed already in 386, Cod. Theod., *ib*.

11*I.e.*, Lycia et Pamphylia. We find Lycia and Pamphylia as one province in 313 ad, C. Th. xiii. 10, 2, but separate in the subscriptions (not always reliable) in the Acts of the Council of Nice, 325 ad

12Lycaonia became a separate province in 373. See Tillemont, v. 99.

List of Verona List in [Hebrew]Polemios[Hebrew]" Notitia

Diocese of Pontus. Bithynia Bithynia Bithynia

Cappadocia Cappadocia Cappadocia prima

Galatia Galatia⁹ Galatia

Paphlagonia⁷ Paphlagonia Paphlagonia

Diospontus Pontus Amasia Helenopontus

Pontus Polemiacus Pontus Polemiacus Pontus Polemoniachus

Armenia Minor⁸ Armenia Minor Armenia prima

[Hebrew]Armenia Maior [Hebrew]Honorias Honorias

[Hebrew]Cappadocia secunda¹⁰

[Hebrew]Galatia Salutaris¹⁰

[Hebrew]Armenia secunda¹⁰

Diocese of Asia. Pamphylia¹¹ Pamphylia Pamphylia

Phrygia prima Phrygia prima Phrygia Pacatiana

Phrygia secunda Phrygia Salutaris Phrygia Salutaris

Asia Asia Asia

Lydia Lydia Lydia

Caria Caria Caria

Insulae Cyclades Insulae

Pisidia Pisidia Pisidia

Hellespontus Hellespontus Hellespontus

[Hebrew]Lycia Lycia

[Hebrew]Lycaonia¹² Lycaonia

Edition: current; Page: [428]

13Polemios has put the right names Haemimontus and Scythia under the wrong diocese, Illyricum; in this place he substitutes Thracia Secunda and Scythia inferior. The list used by Polemios seems to have included the dioceses of Dacia, Macedonia, and Illyricum under the head Illyricum.

14Dacia med. and Dardania were at this time names of the same province. Between the composition of the List of Polemios and 386 ad (see C. Theod. i. 32, 5) the province was divided into Dardania and Dacia med.

15A mysterious priantina usurps the place of Achaia. Mommsen conjectured that it is a dittogram of privalitana which follows, and that Achaia has dropped out.

List of Verona Festus List in [Hebrew]Polemios[Hebrew]Notitia

Diocese of Thrace. Europa Europa Europa Europa

Rhodope Rhodope Rhodope Rhodope
 Thracia Thracia Thracia [prima] Thracia
 Haemus mons Haemimontus Haemimontus¹³ Haemimontus
 Scythia Scythia Scythia¹³ Scythia
 Moesia inferior Moesia inferior Moesia inferior Moesia secunda
 Diocese of the Moesias (L. Ver.) = Diocese of Dacia (Not.). Dacia Dacia Dacia Dacia ripensis
 Moesia superior Margensis Moesia Moesia superior Moesia prima
 Dardania Dacia¹⁴ Dardania Dardania
 Praevalitana Praevalis Praevalis Praevalitana
 [Hebrew]Dacia mediterranea¹⁴
 Diocese of the Moesias continued (L. Ver.) [Hebrew] Diocese of Macedonia (Not.). Macedonia
 Macedonia Macedonia Macedonia
 Thessalia Thessalia Thessalia Thessalia
 [Achaia]¹⁵ Achaia Achaia Achaia
 Epirus nova Epirus Epirus nova Epirus nova
 Epirus vetus Epirus Epirus vetus Epirus vetus
 Creta Creta Creta Creta
 [Hebrew]Macedonia Salutaris
 Diocese of the Pannonias (L. Ver.) = Diocese of Illyricum (Not.). Pannonia inferior Pannonia
 Pannonia secunda Pannonia secunda
 Savensis Savia Savia Savia
 Dalmatia Dalmatia Dalmatia Dalmatia
 Valeria Valeria Valeria [Hebrew]Pannonia superior Pannonia Pannonia prima Pannonia prima
 Noricus ripariensis Noricum Noricus ripensis Noricum ripense
 Noricus mediterranea Noricum Noricus mediterranea Noricum mediterraneum
 Edition: current; Page: [429]
¹⁶These names seem to be connected with the Cæsar Flavius Constantius (Chlorus) who won
 back Britain in 296 ad
¹⁷Formed 369 ad In Polemius Silvius an interpolator added Orcades, suggested, as Mommsen
 observes, by Eutropius, 7, 13.
¹⁸Appear in the notit. Galliarum.
¹⁹The mention of a single Narbonensis by both Festus and Ammianus, and of a single Aquitan-
 ica by Ammianus, must be regarded as merely errors.
List of Verona Festus Ammianus Notitia Polemius Silvius
 Diocese of the Britains. Prima Britannia prima
 Britannia prima Britannia prima
 Secunda Britannia scunda
 Britannia secunda Britannia secunda
 Maxima Cæsariensis¹⁶ Maxima Cæsariensis
 Maxima Cæsariensis Maxima
 Flavia Cæsariensis¹⁶ Flavia
 Flavia Cæsariensis Flavia
 [Hebrew]Valentia¹⁷ Valentiniana
 Diocese of the Gauls (L. Ver.) = Diocese of the Gauls (Not., Pol.). Belgica prima Belgica Belgica
 prima Belgica prima Belgica prima

Belgica secunda Belgica Belgica secunda Belgica secunda Belgica secunda
 Germania prima Germania Germania prima Germania prima Germania prima
 Germania secunda Germania Germania secunda Germania secunda Germania secunda
 Sequania Maxima Sequanorum Sequania Maxima Sequanorum Maxima Sequanorum
 Lugdunensis prima Lugdunensis Lugdunensis prima Lugdunensis prima Lugdunensis prima
 Lugdunensis secunda Lugdunensis Lugdunensis secunda Lugdunensis secunda Lugdunensis
 secunda

Alpes Graiæ et Pœninæ Alpes Graiæ Alpes Graiæ et Pœninæ Alpes Pœninæ et Graiæ Alpes
 Graiæ

[Hebrew]Lugdunensis tertia¹⁸ Lugdunensis tertia

[Hebrew]Lugdunensis Senonia¹⁸ Senonia

Diocese of Vienna (L. Ver.) = Aquitania (Fest., Amm.) = Provinciæ septem (Notit. Gall.) = Dioc.
 of Gauls (Not., Pol.). Viennensis Provincia Viennensis Viennensis Viennensis Viennensis

Narbonensis prima Narbonensis Narbonensis Narbonensis prima Narbonensis prima

Narbonensis secunda [Hebrew]¹⁹ [Hebrew]¹⁹ Narbonensis secunda Narbonensis secunda

Novem populi Novempopulana Novem populi Novem populi Novempopulana

Aquitania prima Aquitania Aquitania¹⁹ Aquitania prima Aquitania prima

Aquitania secunda Aquitania [Hebrew]Aquitania secunda Aquitania secunda

Alpes maritimæ Alpes maritimæ [Hebrew]Alpes maritimæ Alpes maritimæ

Edition: current; Page: [430]

²²An interpolator of sixth or seventh century added Alpes Appenninæ. I wonder at the
 appearance of this province in Sieglin[Hebrew]'s atlas, in the map of the Empire under Diocletian.
 Liguria came down to the sea-coast.

²⁰There is an accidental omission in the MS., for the Italian provinces are introduced by the
 words *Diocensis Italiciana habet provincias numero xvi.*; but we cannot tell how many provinces are
 omitted. For in the case of the other dioceses the copyist has sometimes counted rightly, sometimes
 wrongly. If his enumeration is correct here, seven provinces are lost; if he has counted each name
 as a province, only three. Probably his reckoning was based partly on the right, and partly on the
 wrong principle. As Valeria must have been formed by Diocletian, we can supply with certainty:
 Campania, Samnium (or Campania et Samnium), Sicilia, Sardinia, Valeria, and Aemilia et Liguria
 (which formed a single province in 385 ad, C. Th. ii. 4, 4). If we could assume that Rætia was
 already subdivided, the number xvi. would be correct.

²³The same interpolator added Nursia and Valeria.

²¹The Italian Valeria had a habit of vanishing and reappearing, being sometimes separate from,
 sometimes united with, Picenum. Thus: (1) instituted by Diocletian; (2) it disappears in 364 ad,
 C. Theod. ix. 30, 1; (3) reappears in 399, C. Th. ix. 30, 5; (4) disappears in 400 C.I.L., 6, 1706;
 (5) reappears in the Notitia; (6) disappears in 413, C. Theod. xi. 28, 7, and is not mentioned in
 Polemius (interpolated in some MSS.), see Mommsen, Chron. Min. i. p. 532. Ohnesorge, holding
 that Flaminia and Picenum formed one province in 297 and were not divided till 364, places the
 separation of Valeria from Picenum suburb, after that date, *op. cit.*, p. 8 and 10.

List of Verona Notitia Dignitatum Polemius Silvius

Diocese of Italy. Venetia Histria Venetia Venetia cum Histria

Flaminia Flaminia et Picenum annonarium Flaminia

Picenum Picenum suburbicarium Picenum

Tuscia Umbria Tuscia Umbria Tuscia Umbria

Apulia Calabria Apulia Calabria Apulia Calabria

Lucania Lucania Brittii Brittia Lucania

Corsica Corsica Corsica

Alpes Cottiae Alpes Cottiae Alpes Cottiae²²

Rætia Rætia prima Rætia prima

[Hebrew]²⁰ Rætia secunda Rætia secunda

[Hebrew]Campania Campania

[Hebrew]Aemilia Aemilia²³

[Hebrew]Liguria Liguria

[Hebrew]Samnium Samnium

[Hebrew]Sicilia Sicilia

[Hebrew]Sardinia Sardinia

[Hebrew]Valeria²¹ [Hebrew]Edition: current; Page: [431]

²⁴It is a question whether Numidia Milicianiana is a name, or corruption, for Tripolitana, or is a distinct province which afterwards became obsolete (Tripolitana being accidentally omitted). The latter view is adopted in Sieglin[Hebrew]'s new Historical Atlas, and in the map of the Empire in the preceding volume.

²⁵In MS. Mauritania Tabia insidiana.

List of Verona Festus Notitia Dignitatum Polemius Silvius

Diocese of the Spains. Bætica Bætica Bætica Bætica

Lusitania Lusitania Lusitania Lusitania

Karthaginiensis Karthaginiensis Carthaginiensis Carthaginensis

Gallæcia Gallæcia Gallæcia Gallæcia

Tarraconensis Tarraconensis Tarraconensis Tarraconensis

Mauritania Tingitana Mauritania Tingitana Tingitania Tingitana

[Hebrew]Balears insulæ Balears

Diocese of Africa. proconsularis Zeugitana proconsularis Africa proconsularis

Byzacena Byzacium Byzacium Byzacium

Numidia Cirtensis Numidia Numidia Numidia

Numidia milicianiana²⁴ [Hebrew]Tripolis Tripolitana Tripolis

Mauritania Cæsariensis Mauritania Cæsariensis Mauritania Cæsariensis Mauritania Cæsariensis

Mauritania [Sitifensis]²⁵ Mauritania Sitifensis Mauritania Sitifensis Mauritania Sitifensis

Edition: current; Page: [432]

7.: THE ORGANISATION OF THE ARMY UNDER THE NEW SYSTEM [Hebrew] (P. 136 sqq.)

Mommsen has brought light and order into the subject of the new military organisation which was introduced in the epoch of Diocletian and Constantine, by his article entitled *Das römische Militärwesen seit Diocletian*, which appeared in *Hermes* in 1889 (vol. xxiv. p. 195 sqq.). The following brief account is based on this important study.

Under Diocletian the regular army seems to have fallen into two main divisions: the troops who followed the emperor as he moved throughout his dominion, and the troops stationed on the frontier. The latter were called *limitanei*, the former were possibly distinguished as in *sacro comitatu* (cp. C.I.L. 3, 6194). But early in Constantine[Hebrew]'s reign the troops in *sacro comitatu* were broken up into two classes, the *comitatenses* and the *Palatini* (before 310, for the *comitatenses* existed then, cp. C.I.L. 5565; *palatini* occurs first in a law of 365 ad, *Cod. Theod.* vii. 4, 22). Thus there were three great divisions of the army: 1, (a) *palatini*, (b) *comitatenses*, and 2, *limitanei*. Thus Gibbon[Hebrew]'s use of *palatines* to include the *comitatenses* is erroneous.

The other most important changes introduced by Constantine were: the increase of the *comitatenses* (who were under the command of the *magister militum*) at the expense of the *limitanei*, who had been increased by Diocletian; and the separation of the cavalry from the infantry.

1. *Limitanei* (commanded by *duces*). The statement that Diocletian strengthened the frontier troops (*Zos.* ii. 34) is borne out by the fact that if we compare the list of the legions in the time of Marcus (C.I.L. 6, 3492) with the *Notitia Dignitatum*, we find in the former twenty-three legions, in the latter the same twenty-three and seventeen new legions (leaving out of account Britain, Germany, Africa, for which we have not materials for comparison). And if we remember that Constantine drafted away regiments (the pseudo-*comitatenses*) to increase his *comitatenses*, we may conclude that Diocletian doubled the numbers of the frontier armies.

The *limitanei* consisted of both infantry and cavalry. (1) The infantry consisted of *legiones*, *auxilia*, and *cohortes*. (a) The legions are of two kinds. The old legions of the Principate retain their old strength of 6000 men; while the new legions correspond to the old legionary detachments, and are probably 1000 strong. But the larger legions are usually broken into detachments which are distributed in different places, and the *præfectus legionis* consequently disappears. (b) The *auxilia* are of barbarian formation, and as such are thought more highly of than the rest of the frontier infantry; they are found only in the Illyric provinces. The size of the *auxilium* is probably 500. (c) The *cohortes*, 500 strong as under the Principate, are found everywhere except in the duchies on the Lower Danube. (2) The (a) *cunei equitum* probably differ from (b) *equites*, by being of barbarian formation and of higher rank. The (c) *ala* is generally 600 (not as before 500) strong.

Constantine[Hebrew]'s new organisation reduced the *limitanei* to second-class troops, as compared with the imperial troops of both kinds.

2. Imperial Troops. (a) *Comitatenses* (under Masters of Soldiers) consist of infantry and cavalry: (α) The legion is of the smaller size, about 1000 strong; (β) the *vexillatio* of horse is about 500 strong. Connected with the *comitatenses* but of lower rank are the pseudo-*comitatenses*, drawn from the frontiers (eighteen legions in the west, twenty in the east). (b) *Palatini* (under Masters of Soldiers in *præsenti*) consist of infantry and cavalry: (α) the legion of 1000; (β) the *vexillatio* of 500. Edition: current; Page: [433]

In connection with the *Palatini*, the *auxilia palatina* demand notice. These are troops of light infantry, higher in rank than the legion of the *comitatenses*, lower than the palatine legion. They

chiefly consist of Gauls and include Germans from beyond the Rhine (but virtually no orientals). Mommsen makes it probable that their formation was mainly the work of Maximian (p. 233). They were perhaps the most important troops in the army.

The *scholae*, which seem to have been instituted by Constantine, must also be mentioned here (cp. *Cod. Theod.* 14, 17, 9). They were probably so called from having a hall in the palace to await orders. At first they were composed of Germans (but in fifth century under Leo I., of Armenians; under Zeno, of Isaurians; afterwards of the best men who could be got, *Procop.*, *Hist. Arc.* c. 24). There were at first five divisions of 500 men; then seven; finally under Justinian eleven. The division was commanded by a tribune, who was a person of much importance (e.g., Valentinian I.). They ultimately lost their military character, and the *excubitores* (first introduced by Leo I.) took their place.

Gibbon considers the question of the size of the army under the New Monarchy. On one side, we have the fact that under Severus at the beginning of the third century there were thirty-three legions, which, reckoned, along with their adjuncts, at the usual strength, give as the total strength of the army about 300,000. On the other side we have the statement of Agathias quoted by Gibbon, which puts the nominal strength of the army in the middle of the sixth century at 645,000. Taking into account the great increase of the troops under Diocletian, the record that the army was further strengthened by Valentinian (cp. *Amm. Marc.*, 30, 7, 6, *Zos.* 4, 12), and a statement of Themistius (*Or.* 18, p. 270) as to the strength of the frontier forces under Theodosius the Great, we might guess that at the beginning of the fifth century, when the *Notitia* was drawn up, the army numbered five, if not six, hundred thousand. These *a priori* considerations correspond satisfactorily with the rough calculation which Mommsen has ventured to make from the data of the *Notitia*. His figures deserve to be noted, though he cautions us that we must not build on them.

Limitanei Foot, 249,500; Horse, 110,500 Total 360,000

Comitatenses } Foot, 148,000; Horse, 46,500 Total 194,500

Palatini (with aux.) }

Total 554,500

A word must be said about the *gentes*, who, outside the Roman provinces and formally independent, but within the Roman sphere of influence and virtually dependent on the Empire, helped to protect the frontiers and sometimes supplied auxiliary troops to the Roman army. (Thus in *Amm.* xxiii. 2, 1, we read of *legationes gentium plurimarum auxilia pollicentium*; Julian refuses such *adventicia adiumenta*.) The most important of these *gentes* are the Saracens on the borders of Syria, and the Goths on the right bank of the Danube. They are *fæderati*; and their relation to the Empire depends on a *fædus* which determines the services they are bound to perform. Under the Principate the theory was that such *fæderati* were tributaries, but in return for their military services the tribute was either remitted or diminished. But under the new system, they are considered rather in the light of a frontier force and, like the regular *riparienses*, are paid for their work. Consequently the amount of the *annonæ fæderaticæ* is the chief question to be arranged in a *fædus*. The Lazi of Colchis were an exception to this rule; Edition: current; Page: [434] though *federates* they received no *annonæ* (*Procop.*, B. P. 2, 15). The inclusion of the *federates* in the Empire is illustrated by the treaty with Persia in 532 ad, in which the Saracens are included as a matter of course, without special mention (*Procop.*, B. P. 1, 17; 2, 1). See Mommsen, *op. cit.* p. 215 sqq.

8.: *Protectores and Domestici [Hebrew]* (p. 150)

The origin and organisation of the imperial guards, named *Protectores* and *Domestici*, who so often meet us in our historical authorities from the time of Constantine forward, have been elucidated, so far as the scanty material allows, by Mommsen in a paper entitled *Protectores Augusti*, in the *Ephemeris Epigraphica*, v. p. 121 sqq.

In the second half of the third century there existed *protectores* of two kinds: *protectores Augusti*, and *protectores* of the praetorian prefect. The latter (whose existence is proved by epigraphic evidence, cp. C.I.L. vi. 3238) naturally ceased when, under Constantine[Hebrew]'s new régime, the praetorian prefect ceased to have military functions.

The earliest instance of a protector Augusti whose date we can control is that of Taurus, who was consul in 261 ad, and held the office of praetorian prefect. An inscription (whose date must fall between 261 and 267 ad, Orelli, 3100) mentions that he had been a protector Augusti. Mommsen calculates that he must have held that post before 253 ad, and infers that protectors were instituted about the middle of the century, by Decius or possibly Philip. The full title of the protector was *protector divini lateris Augusti nostri*, preserved in one inscription found at Ocriculæ (Orelli, 1869); for this form cp. Cod. Theod. vi. 24, 9. The abbreviation *protector Augusti* is the regular formula up to Diocletian; after Diocletian it is simply *protector*.

The protectors were soldiers who had shown special competence in their service, and were rewarded by a post in which they received higher pay (they were called *ducenarii* from the amount of their salary) and had the expectation of being advanced to higher military commands. Gallienus hindered Senators from serving as officers in the army, and from that time the service of the protectors became a sort of military training school (Mommsen, l. c. p. 137) to supply commanders (*ad regendos milites*, Ammianus). From Aurelian[Hebrew]'s time (ib. 131) the protectors seem to have been organised as a bodyguard of the Emperor, with a captain of their own. (The earliest mention of the service in legislation is in a law of 325 ad, Cod. Th. vii. 20, 4.);

Constantine completely abolished the praetorian and the military functions of the *praef. praet.* With this change we must connect his reorganisation of the *protectores* (ib. 135). The nature of this reorganisation was determined by his abrogation of the measure of Gallienus which excluded senators from military command. A body of guards was instituted, called *Domestici* or Houseguards, which was designed to admit nobles and sons of senators to a career in the army. Thus there were now two corps of palace guards, that of the *Protectores* who were enrolled for distinguished service, and were consequently veterans, and that of the *Domestics* who were admitted *nobilitate et gratia*, through birth and interest. But the two were closely connected and jointly commanded by captains called Counts of the *Domestics*; and the two names came to be interchangeable and used indifferently of one or the other.

It cannot indeed be strictly demonstrated that Constantine organised the *Domestics*, who are first mentioned in a law of 346 ad (Cod. Th. xii. 1, 38); but this hypothesis is far more likely than any other. At the same time the pay of the guards was probably increased [Hebrew] a necessary result of the new Edition: current; Page: [435] monetary system of Constantine.⁹⁰⁹ The epithet *ducenarii* was given up, and became attached to the *schola* of *agentes in rebus*. The rank of a guardsman was *perfectissimus*, but the first ten in standing (*decem primi*) were *clarissimi*.

By a law of Valentinian (Cod. Th. vi. 24, 2) veterans were enrolled in the guards *gratis*,

⁹⁰⁹We may guess that under Diocletian they were still *ducenarii*, and so profited by his raising the weight of the aureus from 1-170th to 1-60th. Constantine would not have reduced their pay; so that they would no longer be *ducenarii*.

while all others had to pay. The ultimate result was that veterans ceased to be enrolled altogether, and the post of domesticus or protector was regularly purchased. The traffic in these offices in Justinian[*Hebrew*]'s time is noticed by Procopius, Hist. Arc. c. 24.

9.: THE TRAGEDY OF FAUSTA AND CRISPUS [Hebrew] (P. 175 sqq.)

The attempt of Gibbon to show that Fausta was not put to death by Constantine was unsuccessful; for the text on which he chiefly relied has nothing to do with Constantine the Great, but refers to an Emperor of the fifteenth century (see above, vol. ii. App. 10, p. 360); and from the subsidiary passage in Julian (p. 211, n. 25) no inference can be drawn. On the other hand, as Seeck has pointed out, the sign of the Constantinople mint appears on coins of Constantine I. and II., Constantius, Constans, Helena, Theodore, Delmatius and Hannibalianus, in short all the members of the imperial family who survived the foundation of the Capital (11th May, 330); but in the Fausta series as in the Crispus series the sign never appears, and in the Trier mint the latest coins of both belong to the same emission. Eusebius, the writer of the Anonymous Valesian fragment, and Aurelius Victor are silent as to the death of Fausta; but this proves nothing, on the principle, as Seeck observes, [Hebrew]im Hause des Gehenkten redet man nicht vom Stricke.[Hebrew]The evidence as to the circumstances of the tragedy is investigated in a suggestive manner by Seeck, [Hebrew]Die Verwandtenmorde Constantins des Grossen,[Hebrew]" in Ztsch. f. wiss. Theol. 33, 1890, p. 63 sqq. He distinguishes four independent testimonies. (1) Eutropius (on whom Jerome and Orosius depend) states simply that Constantine put to death his son and wife. (2) Sidonius Apollinaris mentions (Ep. v. 8) that Crispus was poisoned, Fausta suffocated by a hot bath. These kinds of death were suitable to avoid the appearance of violence. (3) Philostorgius (ii. 4) assigns causes. He says that Crispus, calumniated by Fausta, was put to death, and that she was afterwards found guilty of adultery with a cursor and killed in a hot bath. (4) A common source, on which the Epitome of Victor, the account of Zosimus, and that of John the Monk in the Vita S. Artemii (Acta Sanct. 8th October) depend, stated that Fausta charged Crispus with having offered her violence; Crispus was therefore executed; then Helena persuaded Constantine that Fausta was the guilty one, and induced him to kill her by an overheated bath. Then Constantine repents; the heathen priests declared that his deeds could not be expiated; Christianity offered forgiveness and he became a Christian. Seeck points out that this unknown source agrees with Philostorgius in three points: the manner of Fausta[Hebrew]'s death; her guilt in causing the death of Crispus; her connection with a story of adultery. In the details (which Gibbon, p. 178-180, combines) they differ.

Seeck argues for the view that the drama of Fausta and Crispus was a renewal of that of Phædra and Hippolytus. It is certainly by no means impossible that this is the solution; the evidence for it is not absolutely convincing Edition: current; Page: [436] (especially as the Vita Artemii is of extremely doubtful value; cp. Görres, Z. f. wiss. Theol., 30, 1887, 243 sqq.). Seeck conjectures that Constantine[Hebrew]'s law of 22nd April (C. Th. ix. 7, 2), which confines the liberty to bring accusations of adultery to the husband[Hebrew]'s and the wife[Hebrew]'s nearest relatives, and in their case converts the liberty into a duty, &c., was partly occasioned by the Emperor[Hebrew]'s own experience.

But I cannot regard as successful Seeck[Hebrew]'s attempt to show that the younger Licinius (1) was not the son of Constantia, but the bastard of a slave-woman whom Constantia was compelled to adopt, and (2) was not killed in 326, but was alive in 336; by means of the rescripts Cod. Theod. iv. 6, 2 and 3. Cp. the criticisms of Görres in the same vol. of Z. f. wiss. Theol. p. 324-327.

10.: DIVISIONS OF THE EMPIRE, ad 293 to 378 [Hebrew] (P. 183, 196)

The chief interest of the divisions of the Empire in ad 335 and 337-8 lies in their connection with the general subject of the lines of geographical division drawn by imperial partitions in the century between Diocletian and Arcadius. The divisions in the first half of this period (ad 285-338) present various difficulties, from the circumstance that the statements of our best authorities are not sufficiently precise, and those of secondary authorities are often divergent. Here I would lay stress upon a principle which has not been sufficiently considered. Later writers were accustomed to certain stereotyped lines of division which had been fixed by the partitions of ad (364 and) 395; and they were determined by these in interpreting the geographical phrases of earlier writers. It is therefore especially important in this case to consider the testimonies of the earlier writers apart from later exegesis. It is also clear that names like Illyricum (which came to be distinguished into the diocese [Western] and the prefecture [Eastern]), Thrace (which might mean either the diocese or the province, or might bear, as in Anon. Val., its old sense, covering the four provinces south of Mount Haemus), Gaul (which might include Spain and Britain), were very likely to mislead into false and various explanations.

I. Division of ad 293. (1) a, Maximian: Italy, Africa, Spain; b, Constantius: Gaul and Britain. (2) c, Diocletian: Dioceses of Pontus and the East, including Egypt; d, Galerius: Dioceses of Pannonia, Dacia, Macedonia, Thrace, and Asia.

As to (1), a passage in the *De Mort.*, our earliest authority, is quite decisive; in c. 8, Africa vel (= et) Hispania, are assigned to Maximian. Against this, we cannot entertain Julian[Hebrew]'s ascription of Spain to Constantius (*Or. ii. p. 65*); an error which would easily arise from the inclusion (under Constantine) of Spain in the Prefecture of Gaul. Under Diocletian the division of the west is drawn across the map, by Alps and Pyrenees, not downward. (*Victor, Cæs.*, 39, 30, does not mention Spain; his Galliae might = Gaul + Britain, or = Gaul + Britain + Spain. Praxagoras mentions neither Africa nor Spain.) As to (2), our authorities are Praxagoras and Victor, and the truth has been obscured by following the statements of later writers. Praxagoras assigns to Galerius της τε [Hebrew]λλάδος κα[Hebrew] της κάτω [Hebrew]σίας κα[Hebrew] Θρ[Hebrew]κης; to Diocletian της τε Βιθυνίας κα[Hebrew] της Αιβύης κα[Hebrew] της Α[Hebrew]γύπτου. Now in this enumeration a rough principle may be observed. He enumerates countries which mark the lines of division. Less well informed as to the west, he does not commit himself about Spain. Beginning at the north, he gives Britain to Constantius (Κ Βρετανίας [Hebrew]βασίλ.), and Italy to Maximian; implying that Maximian[Hebrew]'s realm began, where Constantius[Hebrew]'s ended. Thus Gaul is implicitly assigned to Edition: current; Page: [437] Constantius; Africa to Maximian. From the extreme south, Diocletian[Hebrew]'s part reaches to Bithynia, which implies the Dioceses of Pontus and the East; while Thrace and Asia ([Hebrew] κάτω [Hebrew]σία, to designate the diocese, not the province) mark the line of partition on the side of Galerius, whose realm in the other direction stretches, it is implied, to Italy. (Hellas is mentioned, doubtless, because the writer was an Athenian.) There is no good reason for rejecting this evidence; the same assignment of Asia is repeated (on the same authority) at the later division of 315. It is at least not contradicted by the not precise statement of *Aur. Victor* (ib.): *Illyrica ora adusque Ponti fretum Galerio; cetera Valerius retentavit*. Later writers, accustomed to the later division of the Prefectures of Illyricum and the East, could hardly realise this cross division; the utmost their imaginations could compass would be to connect Thrace with Illyricum instead of Asia Minor. That the statesmen of Diocletian[Hebrew]'s age did not regard the Propontis as a necessary geographical boundary, and that a part of Asia could be as easily attached to Europe as a part of Europe could be attached to Asia, is proved by the next division on

incontestably good evidence.

II. ad 305. (1) a, Severus: Maximian[*Hebrew*]'s portion with Diocese of Pannonia; b, Constantius: as before, with Spain (?). (2) c, Maximin: Egypt, the East; Pontus (?) except Bithynia; d, Galerius: as before, with Bithynia, but without Pannonia.

Anon. Val. iii. 5. Maximino datum est orientis imperium: Galerius sibi Illyricum Thracias et Bithyniam tenuit. (Thraciæ: the point of the plural is probably to include Moesia ii. and Scythia; as, in 18, the singular excludes them. See below.) Victor, with his usual vagueness (40, 1), gives Italy to Severus; quæ Iouius obtinuerat to Maximin. Anon. Val. 4, 9. Severo Pannoniæ et Italiæ urbes et Africae contigerunt.

III. ad 306 (on death of Constantius). (1) a, Constantine: Britain and Gaul; b, Severus (Maxentius): as before, with Spain. (2) c, d, As before.

It is clear that, since (according to Anon. Val.) the Cæsar Severus had Diocese of Pannonia, he could not have also had Spain; for his realm would have been quite out of proportion to that of the Augustus Constantius. We may therefore assume that on Maximian[*Hebrew*]'s resignation Constantius took over Spain, but that after his death it was claimed by Severus, as Augustus, and actually held for a time by Maxentius.

IV. ad 314. Constantine now has all the dominions that from 293 to 305 were held by Constantius, Maximian, and Galerius, with the exception of Thrace. Licinius has Diocletian[*Hebrew*]'s part, along with Thrace. The important point in this arrangement is the beginning of an administrative connection between Thrace and the East; they would now be governed by the same Prætorian Prefect.

Praxagoras (F.H.G. iv. p. 3): [Ἑβρεω]λλάδος τε κα[Ἑβρεω] Μακεδον[Ἑβρεω]ς κα[Ἑβρεω] της κάτω (ita leg. pro κατ[Ἑβρεω]) [Ἑβρεω]σίας were acquired by Constantine. Anon. Val. 18; Licinius: orientem, Asiam, Thraciam, Moesiam, minorem Scythiam.

V. ad 335. [The arrangement of this year was not a division of the Empire, but partly a confirmation of the assignment of administrative spheres, already made to his sons, and partly a new assignment of administrations to his nephews. Constantine did not directly sacrifice the unity of the Empire, which was still realised in his own sovereignty, though he adopted a policy which might at any moment endanger it. [*Hebrew*]Von einer Erbtheilung ist dabei nicht die Rede, sondern nur von einem Antheil an der Verwaltung[*Hebrew*]” (Ranke, Weltgeschichte, iv. 2, 270).]

(1) Constantine had Gaul, Britain, and Spain (= the later [*Hebrew*]Prefecture of Edition: current; Page: [438] Gaul[*Hebrew*]”); (2) Constantius, Asia and Egypt; (3) Constans, Italy, Africa, and Illyricum (including Thrace). For Delmatius the ripa Gothica was cut off from the portion of Constans; Hannibalian had (at the expense of Constantius) a [*Hebrew*]kingdom[*Hebrew*]” composed of principalities in the regions of Pontus and Armenia.⁹¹⁰

The question is, what were the limits of the province of Delmatius? Is ripa Gothica [I have not seen noticed a parallel expression in De Mortibus, 17, where Galerius reaches Nicomedia, per circuitum ripæ strigæ, where the emendation Istricæ is doubtless right] to be interpreted as Eastern Illyricum (= dioceses of Dacia, Macedonia, and Thrace)? So Schiller (ii. 235), Ranke, Burckhardt, and others. But the Epitome of Victor (41, 20) includes in the share of Constans [*Hebrew*]Dalmatia, Thrace, Macedonia, and Achaia.[*Hebrew*]” Ranke supposes that Dalmatiam here is a scribe[*Hebrew*]’s mistake for Delmatius, and that we should interpret the ripa Gothica of the Anonymous by the words thus amended. If we adopted this view, it would be better to read: Dalmaci <;us Daci=;am

⁹¹⁰Chron. Pasch., p. 532, ed. B. gives Mesopotamia to Delmatius (Godefroy accepted the statement). I conjecture that Μεσοποταμίαν may have arisen from Μυσίαν παραποταμίαν = Moesiam ripensem.

Thraciam Macedoniam Achaïamque.

But a view that necessitates tampering with a text which in itself gives perfect sense cannot be accepted as satisfactory. There is a further objection here. The text of the Epitome agrees remarkably with the statement of Zonaras, xiii. 5, which assigns to Constans Italy, Africa, Sicily and the islands, Illyricum, Macedonia, [Hebrew]Achaia, with the Peloponnesus.[Hebrew]" The Epitome was not a direct source of Zonaras; but the agreement is explained by the fact that both (the author of the Epitome directly, Zonaras indirectly) drew from a common source (probably Ammianus: cp. L. Jeep, Quellenunt. zu den gr. Kirchengeschichtern, p. 67). Thus the assumption of a textual error in the Epitome means the assumption of an error in the text of an earlier authority; and therefore becomes decidedly hazardous and unconvincing. Add to this that the interpretation of *ripa Gothica* to include or to imply Macedonia and Greece is extremely forced. The natural meaning of the expression is: the provinces of Dacia, Moesia I. and II. and Scythia and perhaps Pannonia and Noricum. The actual testimonies of the two best authorities, that are explicit, concur in showing that the main division of ad 335 was tripartite [Hebrew] between the Emperor[Hebrew]'s three sons [Hebrew] and that only subsidiary (though highly responsible) posts in frontier regions were given to the two nephews. This view is also more in accordance with Zosimus, ii. 39, who distinctly marks a triple division.⁹¹¹ Nor is it contradicted by Eusebius, Panegy. ch. iii., which only proves that Delmatius (unlike Hannibalian) was a Cæsar, and thus co-ordinate in dignity with his cousins.

VI. ad 337-8. (1) Constantius: as before, along with the kingdom of Hannibalian, and the four provinces of D. Thrace, south of Haemus;⁹¹² (2) Constans: as before, along with *ripa Gothica*, including Moesia II. and Scythia; and without (?) Raetia or part of Africa; (3) Constantine: as before, along with some part of Africa or of the Diocese of Italy (?).

We have not data for determining the details of this partition. The problem was to divide the provinces held by the two nephews into three parts. To secure geographical continuity Constans would naturally take the *ripa* Edition: current; Page: [439] *Gothica*, and hand over some part of his western dominions to Constantine; he likewise resigned Thrace south of Haemus (not Moesia and Scythia, I infer from Zos. ii. 39, who gives to Constans and Constantine τ[Hebrew]περ[Hebrew] τ[Hebrew]ν Ε[Hebrew]ξείνον πόντον) to Constantius. The war which broke out between Constans and Constantine was probably connected with the question of the territorial compensation to be received by the latter; seeing that Zos. ii. 41, ascribes it to a dispute about Africa and Italy.

Gibbon (with Tillemont) has accepted from the Chron. Alex. of Eutychius a curious notice (under Ol. 279) that Constantine the younger reigned for a year at Constantinople. The only possible support I can see for this statement must be derived from the passage of Zosimus. He groups together the lands of Constantine and Constans, as if they ruled jointly over an undivided realm, in which he includes [Hebrew]the regions of the Euxine.[Hebrew]" A defender of Eutychius might urge that for some months at least Constans did not assert his independence, that his elder brother may have governed for him, and that the transference of Thrace to Constantius may have been subsequent. But without further evidence it is better to leave the Eutychian notice aside; and I may call attention to Ranke[Hebrew]'s remark that there is a tendency in the account of Zosimus, who desiring to justify Magnentius is hostile to Constans and anxious to throw on him the blame for the war with Constantine.

⁹¹¹He pretends to mark it as it existed at the death of Constantine (before the destruction of Delmatius); though he seems really to give the subsequent division.

⁹¹²The dates in the early edicts of the C. Th. are not certain enough to permit us to draw an inference from xi. 1, 4 (professedly issued by Constantius at Thessalonica in November 337).

The division of 338 ad is given as follows in the Life of St. Artemius (Acta Sanct., Oct. 20) [Hebrew] a document which merits more criticism than it has received: [Hebrew](1) Constantine: α[Hebrew]νω Γαλλίαι κα[Hebrew] τ[Hebrew]πέκεινα [Hebrew]λπεων (an expression often used to include Spain), α[Hebrew] τε Βρεττανικα[Hebrew] νησοι (Britain and the Orcades, etc.? cp. Eutropius 7, 13, and the interpolation in the Laterculus of Polemius Silvius, see above, App. 6), κα[Hebrew]ως τον [Hebrew]σπερίου [Hebrew]κεανον. (2) Constans: α[Hebrew] κάτω Γαλλίαι [Hebrew]γουν α[Hebrew]ταλίας (Italy with its adjuncts, Sicily, Africa, etc.), κα[Hebrew] α[Hebrew]τη [Hebrew]ώμη. (3) Constantius: τ[Hebrew] της [Hebrew]νατολης μέρος, Βυζάντιον, τ[Hebrew]π[Hebrew] τον [Hebrew]λλυρικον (implying that Illyricum went to Constans) μέχρι της Προποντίδος [Hebrew]πόσα [Hebrew]πήκοα τοις [Hebrew]ωμαίοις τήν τε Συρίαν κα[Hebrew] Παλαιστίνην κα[Hebrew] Μεσοποταμίαν κα[Hebrew] Α[Hebrew]γυπτον κα[Hebrew] τ[Hebrew]ς νήσους [Hebrew]πάσας.

The Vita Artemii (the Greek text was first published by A. Mai in Spicilegium Romanum, vol. iv.) was composed by [Hebrew]John the Monk,[Hebrew]" and professes to be compiled from the Ecclesiastical History of Philostorgius and some other writers. Eusebius, Socrates, and Theodoret are also referred to. There is evidence that Philostorgius was largely used, and consequently the Life of Artemius becomes an important mine of material for the restoration of the history of that Arian writer. The story of Gallus is, I presume, derived from him, and I conjecture that the statement of the partition of the Empire among the sons of Constantine comes from the same source. If so, both passages ultimately depend on Eunapius, who was doubtless the source of Philostorgius.

From the same source is certainly derived the statement of the partition in Constantine Porphyrogenetos, de Them., ii. 9 (ed. Bonn, p. 57). The portion of Constantine is described in exactly the same words as in the Vita Artemii (τ[Hebrew]ς [Hebrew]νω Γαλλίας κα[Hebrew] τ[Hebrew]πέκεινα [Hebrew]λπ[Hebrew]ων [Hebrew]ως τον [Hebrew]σπερίου [Hebrew]κεανον) except that instead of [Hebrew]the British Isles[Hebrew]" the imperial geographer says [Hebrew]as far as the city of Canterbury itself[Hebrew]" (Κάνταβριν). The expression α[Hebrew] κάτω Γαλλ[Hebrew]αι is also used, but, in expanding the concise expressions of his source, Constantine falls into error and assigns Illyricum and Greece to Constantius.

VII. ad 364. (1) Valentinian i.: Prefectures of Gaul, and of Italy and Illyricum; (2) Valens: Prefecture of the East, including D. of Thrace. Edition: current; Page: [440]

VIII. ad 378. (1) Gratian and Valentinian ii.: Prefectures of Gaul and of Italy, including Western Illyricum; (2) Theodosius: Prefecture of the East, along with Dioceses of Dacia and Macedonia (Soz. vii. 4).

This partition, which drew a new line of division between East and West, probably established definitely the system of four prefectures which Zosimus attributed to the express enactment of Constantine. Up to this time three pr. prefects seem to have been the rule, four an exception. But now, instead of adding Eastern Illyricum to the large Prefecture of the East, Theodosius instituted a new Prefecture.

11.: the Sarmatians [Hebrew] (p. 186)

It is often asserted that [Hebrew]Sarmatian[Hebrew]" was a generic name for Slavonic peoples. It is certain that a great many Slavonic tribes must have been often described under the name, but it is extremely doubtful whether any of the chief Sarmatian peoples [Hebrew] the Bastarnae, the Roxolani (? Rox-alani) or Jazyges [Hebrew] were Slavonic. I believe that Šafarik, in taking up a negative position on this question, was right (Slawische Alterthümer, ed. Wuttke, i. 333 sqq.). But I cannot think that he has quite made out the Slavonic race of the Carpi (ib. 213-214), though this is accepted by Jireček (Gesch. der Bulgaren, p. 77); he has a more plausible case, perhaps, for the Kostoboks. On the other hand it is extremely likely, though it cannot be absolutely proved, that in the great settlements of non-German peoples, made in the third and fourth centuries in the Illyrian peninsula by the Roman Emperors, some Slavonic tribes were included. This is an idea which was developed by Drinov in his rare book on the Slavic colonisation of the Balkan lands, and has been accepted by Jireček. There is much probability in the view that Slavonic settlers were among the 300,000 Sarmatae, to whom Constantine assigned abodes in 334 ad It is an hypothesis such as, in some form, is needed to account for the appearance of Slavonic names before the beginning of the sixth century in the Illyrian provinces.

Šafarik tried to show that the Alani, Roxolani, Bastarnae, Jazyges, &c., were of Iranian race, allied to the Persians and Medes, [Hebrew] like the Scythians of Herodotus.

12.: Battle of Singara [*Hebrew*] (p. 200)

I have shown in the *Byzantinische Zeitschrift* (vol. 5) that we should accept Julian[*Hebrew*]'s notice as to the date of this battle (and place it in ad 344), instead of following Jerome[*Hebrew*]'s date (adopted by Idatius), ad 348. One might be tempted to guess that there were two battles at Singara, and that the nocturna pugna was placed in the wrong year by an inadvertence of Jerome; this might be considered in connection with Förster[*Hebrew*]'s reconstruction of the corrupt passage of Festus, Brev. ch. 27: Verum pugnis Sisaruenta, Singarena, et iterum Singarena praesente Constantio ac Siggarena, &c. The νυκτομαχία is described below as: nocturna Elliensi prope Singaram pugna. Elliensi is mysterious.

The events of the Persian wars of Constantius and Julian are briefly narrated by General F. R. Chesney in his Expedition for the Survey of the Rivers Euphrates and Tigris, vol. 2, p. 430 sqq. (quarto ed.).

Edition: current; Page: [441]

13.: Sources and Chronology of Armenian History Under Trdat and His Successors [*Hebrew*] (c. Xix.)

Some works bearing on Armenia have been mentioned in connection with general oriental history in vol. i. Appendix 13. In addition to these must now be mentioned (besides St. Martin[*Hebrew*]'s *Mémoires sur l'Arménie* and the notes to his edition of Lebeau[*Hebrew*]'s *Bas-Empire*): Ter Mikelian, *Die armenische Kirche in ihren Beziehungen zur byzantinischen* (saec. 4-13), 1892; Chalatianz, *Zenob of Glak* (in modern Armenian; known to me through Stackelberg[*Hebrew*]'s summary in *Byz. Zeitschrift*, 4, 368-370), 1893; and above all Gelzer[*Hebrew*]'s highly important essay, *Die Anfänge der armenischen Kirche* (in the *Ber. der kön. sächs. Gesellschaft der Wiss.*), 1895.

1. Sources. (a) Faustus. For Armenian history in the fourth century after death of Trdat (Tiridates), ad 317, our only trustworthy source is Faustus, who wrote his *History of Armenia* in Greek (before the Armenian alphabet was introduced; the Greek original is quoted by Procopius, *Pers.* i. 5), probably in first years of King Vram Šapuh, who reigned from 395 to 416 (Gelzer, p. 116). The work is marked by enthusiasm for the clergy, and a certain prejudice against the policy of those who were loyal to the kings; also by chronological errors. [*Hebrew*]Faustus is completely a national Armenian; therein lies his strength and his weakness[*Hebrew*]" (ib. 117). He consulted official documents in the royal archives (ib.) and made use of old songs. It is announced that H. Gelzer and L. Babajan will issue a translation of Faustus, and Gelzer[*Hebrew*]'s name is a guarantee that it will be trustworthy. (b) Agathangelos, who lived about half a century later, contains a work which is our only good source for the reign of Trdat. His work (preserved both in Armenian and in a Greek translation, which mutually check each other) has been dissected by A. von Gutschmid (*Kleine Schriften*, 3, 395, sqq.). It contains an earlier *Life of St. Gregory* (perhaps originally composed in Syriac, Gelzer, p. 114) and an *Apocalypse of Gregory* written between 452 and 456 by a priest of Valarsapat. The latter is valuable as throwing indirect light on the church history of the fifth century, but worthless for the history of Trdat. (c) The conclusion of Carrière (mentioned in vol. i. App. 13) that the date of Moses of Chorene is very late (beginning of eighth century) is accepted by Chalatianz and Gelzer, and seems to be established. (d) The worthlessness of the *History of Taron* by Zenob of Glak has been shown by the investigation of Chalatianz (op. cit.). Hitherto supposed to have been written in Syriac in the fourth century and translated into Armenian in the seventh, it is now shown to be an apocryphal work of an impostor of the eighth or ninth century. There is a French translation by Langlois, F.H.G. vol. v.

2. Chronology. The student who consults the translation of Langlois (Agathangelos and Faustus; op. cit.) must be warned that the chronological indications in the notes are set down at random and contradict one another. And, if he has read the note in Smith[*Hebrew*]'s edition of the *Decline and Fall*, vol. ii. p. 369, which is taken from St. Martin[*Hebrew*]'s edition of Lebeau, and compares it with the chronological list of kings in the same scholar[*Hebrew*]'s *Mémoires*, he will find that the two accounts diverge. (In the *Mémoires*, p. 412-413, the dates are: death of Trdat, 314; interregnum; accession of Chosroes II., 316; Tiran II., 325; Arsaces, 341; Pap, 370. According to the old view, which appears, though not consistently, in Langlois[*Hebrew*]' collection, and seems to be assumed in Ter Mikelian[*Hebrew*]'s op. cit., Trdat reigned from 286 to 342.) The following reconstruction seems most probable: [*Hebrew*]Edition: current; Page: [442]

Death of Chosrov I., accession of Trdat, 261 ad

Accession of Chosrov II., 317 ad

Accession of Chosrov Train, 326 ad
Accession of Chosrov Aršak, 337 ad
Accession of Chosrov Pap, 367 ad
to 374 ad

There are not sufficient data for determining the dates of the Catholici; the statements of Moses will not bear criticism, see Gelzer, p. 121 sqq. The only certainties we have are that Aristakēs, son and successor of Gregory, attended the Council of Nicæa, 325; and that Nersēs was poisoned by King Pap before 374.

3. Trdat and Constantine (Gelzer, 165 sqq.). Officially the Armenian kings adopted the style [Hebrew]Arsaces[Hebrew]" (just as the Severian Emperors adopted Antoninus), and he appears in Cod. Theod. xi. i. 1 (Constantine and Licinius ad 315) as Arsacis regis Armeniæ. In the previous year, he and Gregory visited Constantine in Illyricum ([Hebrew]the land of the Dalmatians[Hebrew]" in the Armenian Agathangelos) in [Hebrew]the royal city of the Romans,[Hebrew]" probably Serdica. There the alliance mentioned by Faustus (iii. 21; Langlois, p. 232) was concluded, which endured till 363. The authenticity of the account of Agathangelos (doubted by Gutschmid) has been successfully vindicated by Gelzer.

On Trdat[Hebrew]'s death the Romans intervened to put Chosrov on the throne, and Tiran likewise owed his elevation to Constantine. In 337 he was betrayed to the Persians by his chamberlain, seized by the governor of Atropatene, and blinded. The armed intervention of Constantine and Constantius led to the elevation of Arsak, the son of Tiran, who declined to resume the sovereignty. Aršak first married Olympias, a Greek lady connected with the Constantinian house; and afterwards a daughter of the Persian king. His policy was to hold the balance between Rome and Persia throughout the wars of Constantius and Julian.

4. In Eusebius, H. E. vi. 46, 2, we find this notice: κα[Hebrew] τοις κατ[Hebrew]ρμενίαν [Hebrew]σαύτως περ[Hebrew] μετανοίας [Hebrew]πιστέλλει [Hebrew]ν [Hebrew]πescόπευε Μερουζάνης. Gelzer (p. 171 sqq.) points out that this bishopric of Meruzanes cannot have been in the Roman provinces called Armenia, and therefore was in Great Armenia; and he seeks to show that it may have been in the south-eastern corner, the district of Vaspurakan. The words in Eusebius are from a letter of Dionysios of Alexandria (248-265), and the inference seems to be that Christianity was introduced into an outlying district of Armenia in the fifties of the third century.⁹¹³ But the formal conversion of Armenia began about 280 under the auspices of King Trdat, through the labours of Gregory the Illuminator. The destruction of the temples of the gods, in spite of strong opposition from the priests, was one of the first parts of the change, and preceded Gregory[Hebrew]'s journey to Cæsarea (between 285 and 290 according to Gelzer) to be consecrated by Leontius. The Armenian Church was dependent on the see of Cæsarea, and under Greek influence for nearly a century. After the death of the Patriarch Nersēs, it was severed and made autocephalous by King Pap (circa ad 373-4. Cp. Ter Mikelian, p. 31). During the fourth century the seat of the Catholicus and the spiritual centre of Armenia was Aštišat in the southern Edition: current; Page: [443] district of Taron, as has been well brought out by Gelzer. It was afterwards removed to Valaršapat, when no longer dependent on Cæsarea, and then the priests of Valaršapat invented stories to prove the antiquity of their seat and the original independence of the Armenian Church. In the fourth century,

⁹¹³My friend Mr. F. C. Conybeare is inclined to believe that Gregory the Illuminator used an Armenian version of New Testament Scriptures made from a pre-Peshito Syriac text, long before the time of Mesrop. This version may have been due to the Church in Vaspurakan. Apparently the non-existence of Mesrop[Hebrew]'s alphabet did not prevent literary composition in Armenian.

the chief feature of the domestic history of Armenia is the struggle between the monarch and the Catholicus, between the spirit of nationality and the subjection to foreign influences. It culminated in the reign of Pap, who solved the question by poison.

In regard to the conversion of Armenia, its progress was partly determined by the feudal condition of the country (Gelzer, 132). The nobles were easily won over by the personal influence of the king; the priests were naturally the most obstinate opponents. The new faith seems to have been slow in taking root among the people, and it is noteworthy that women, even in high rank, clung tenaciously to the old religion (like the wife of Chosrov, Faustus, iii. 3, and the mother of Pap, ib. 44).

I have read with interest the remarkable study of N. Marr, *O nachalnoi istorii Armenii Anonima*, in *Viz. Vremennik*, i. 263 sqq. (1894). He discusses the character of the brief History of Armenia, which is prefixed to Sebeos[*Hebrew*]' History of the Emperor Heraclius (Russ. tr. by Patkanian, 1862); and its relation to Moses of Chorene. This document (which appears in the collection of Langlois under the title *Pseudo-Agathange*) he regards as the earliest extant Armenian history of early Armenia; it was worked up by a later (also anonymous) writer, of whose composition a large extract has been preserved in Moses of Chorene, bk. i. c. 8 (in Langlois, under the title, *Mar Apas Catina*). Moses also used the original work. Marr points out a number of resemblances between Faustus and the first Anonymous, and hazards the conjecture (295 sqq.) that this history of Armenia may be part of the first two books of Faustus, whose work, as we have it, begins with book iii.

14.: Constantine and Christianity [Hebrew] (c. Xx.)

The attitude of Constantine to the Christian religion has been the theme of many discussions, and historians are still far from having reached a general agreement. Burckhardt, in his attractive monograph, developed the view that Constantine was [Hebrew]ganz wesentlich unreligiös,[Hebrew]" constitutionally indifferent to religion, because he was a [Hebrew]genialer Mensch,[Hebrew]" dominated by ambition; and that in his later years he exhibited personal inclinations rather towards paganism than towards Christianity. H. Richter has some remarkable pages on Constantine[Hebrew]'s system of parity between the two religions; and Brieger, in an excellent article in his *Zeitschrift j. Kirchengesch.* (iv., 1881, p. 163 sqq.), agrees with Gibbon that Constantine[Hebrew]'s Christianity was due entirely to political considerations. Many of the data admit of different interpretations. Those who ascribe to him a policy of parity, or the idea of a state religion which might combine elements common to enlightened paganism and Christianity (so Schiller), appeal to the fact that the sacerdotales and flamines in Africa were granted privileges; but it is replied that they had ceased to carry on the ritual and simply, as a matter of equity, had the old rights secured to them, while they no longer performed the old duties. If the [Hebrew]cult[Hebrew]" of Tyche at Constantinople is alleged, it is urged that she had no temple-service. The temples of Constantinople are explained away; and the [Hebrew]aedes Flaviae nostrae gentis[Hebrew]" of the remarkable inscription of Hispellum (date between 326 and 337; Orelli, 5580) is asserted not to have been intended for the worship of the Emperors, but simply as a fine hall for Edition: current; Page: [444] public spectacles.⁹¹⁴ (See V. Schultze, in Brieger[Hebrew]'s *Zeitschrift*, vii. 352 sqq.) The indulgence to paganism was simply the toleration of a statesman who could not discreetly go too fast in the accomplishment of such a great reformation. And certainly on the hypothesis that Constantine had before his eyes, as the thing to be achieved, the ultimate establishment of Christianity as the exclusive state religion, his attitude to paganism would be, in general, the attitude we should expect from a really great statesman. Ranke[Hebrew]'s remark hits the point (*Weltgesch.* iii. 1, 532): [Hebrew]Er konnte unmöglich zugeben dass an die Stelle der Unordnungen der Verfolgung die vielleicht noch grosseren einer gewaltsamen Reaction träten.[Hebrew]It seems to me that Seeck, in holding that Constantine had really broken with the old religion and was frankly a Christian, is nearer the mark than Gibbon or Schiller. From the evidence which we have, I believe that Constantine adopted the Christian religion and intended that Christianity should be the State religion. As to a great many details, there may be uncertainty in regard to the facts themselves or their interpretation, but I would invite attention to the following general considerations.

(1) The theory that the motives of Constantine[Hebrew]'s Christian policy were purely political, and that he was religiously indifferent, seems perilously like an anachronism, [Hebrew] ascribing to him modern ideas. There is no reason to suppose that he was above the superstitiousness of his age. (2) The theory that he was a Deist, that he desired to put Paganism and Christianity on an equality, emphasising some common features, and that circumstances led him to incline the balance towards Christianity in his later years, is not the view naturally suggested by the (a) Christian education he gave his children, and (b) the hostility of the pagan Emperor Julian to his memory. (3) The fact that he countenanced Paganism and did not completely abolish the customs of the old State religion proves nothing; the remark of Ranke quoted above is a sufficient answer. In fact, those who have dealt with the question have sometimes failed to distinguish between two different things. It is one

⁹¹⁴Compare the words: *ne aedis nostro nomini dedicata cuiusquam contagiosae superstitionis fraudibus polluat*ur, insisted on by Seeck, *Untergang der antiken Welt*, p. 439.

thing to say that Constantine[*Hebrew*]'s motives for establishing Christianity were purely secular. It is quite another to say that he was guided by secular considerations in the methods which he adopted to establish Christianity. The second thesis is true [*Hebrew*] Constantine would have been a bad statesman if he had not been so guided; [*Hebrew*] but its truth is quite consistent with the falsity of the first.

Schiller (iii. 301 sqq.) has conveniently summarised the chief facts, and his results may be arranged as follows: [*Hebrew*](1) Coins. In Constantine[*Hebrew*]'s western mints coins appeared with Mars, with genius pop. Rom., and with Sol, but certainly not in the two first cases, perhaps not in the last case, after 315 ad Further, Constantinian coins with Juppiter were not struck in the west, but in the mints of Licinius. Thus we may say that between 315 and 323 pagan emblems were disappearing from Constantine[*Hebrew*]'s coinage, and indifferent legends took their place, such as Beata tranquillitas.

We also find coins with [Editor: see p. 444 of the PDF for this image], as a sign of the mint; and at the end of Constantine[*Hebrew*]'s reign a series of copper coins was issued in which two soldiers were represented on the reverse holding the labarum, that is a flag with the monogram [Editor: see p. 444 of the PDF for this image].

We see then two stages in Constantine[*Hebrew*]'s policy. At first he removes from Edition: current; Page: [445] his coins symbols which might offend his Christian soldiers and subjects whom he wished to propitiate (this is Schiller[*Hebrew*]'s interpretation); and finally he allows to appear on his money symbols which did not indeed commit him to Christianity, but were susceptible of a Christian meaning.

(2) Laws. After the great Edict of Milan, 312-3 ad (which, according to Seeck, was never issued), the following measures were taken by Constantine to put Christianity on a level with the old religion. (1) 313 ad, the Catholic clergy were freed from all state burdens. (2) 313 (or 315), the Church was freed from annona and tributum. (3) 316 (321), Manumissions in the Church were made valid. (4) 319, (1) was extended to the whole empire. (5) 320, exception to the laws against celibacy made in favour of the clergy, allowing them to inherit. (6) 321, wills in favour of the Catholic Church permitted. (7) 323, forcing of Christians to take part in pagan celebrations forbidden. On the other hand, a law of 321 (Cod. Theod. xvi. 10, 1) forbids private consultation of haruspices, but allows it in public. [Cp. further Seuffert, Constantins Gesetze und das Christenthum, 1891.]

(3) Eusebius describes in his Ecclesiastical History (bk. x. 1 sqq.) a number of acts of Constantine after his victory over Maxentius, which attest not only toleration but decided favour towards the Christians. He entertains Christian priests, heaps presents on the Church, takes an interest in ecclesiastical questions. There is no reason to doubt these statements; but Schiller urges us to remember (1) that Eusebius does not mention what favour Constantine bestowed on the pagans, and (2) that, when the final struggle with Licinius came and that Emperor resorted to persecution, policy clearly dictated to Constantine the expediency of specially favouring Christianity. In general, according to Schiller, from 313 to 323 Constantine not only maintained impartial toleration, but bestowed positive benefits on both the old and the new religion. The account of Eusebius is a misrepresentation through omission of the other side.

One or two points may be added. Eusebius states that after the victory over Maxentius Constantine erected a statue of himself with a cross in his right hand at Rome. This statement occurs in Hist. E. ix. c. 10, 11; Paneg. ix. 18; Vit. C. i. 40. Is this to be accepted as a fact? A statement in H. E. is more trustworthy than any statement in the Vit. C.; and Brieger thought that in this case the passage in H. E. is an interpolation from that in the Vit. C. (Ztsch. f. Kirchengesch. 1880, p. 45).

But Schultze (ib. vii. 1885, 343 sqq.) has shown that Eusebius mentioned the statue in question, in his speech at Tyre in 314 ad, from H. E. x. 4, 16. This adds considerable weight to the evidence.

In regard to the monogram [Editor: see p. 444 of the PDF for this image], Rapp in his paper, *Das Labarum und der Sonnenkultus* (Jahrb. des Vereins von Altertumsfreunden im Rheinlande, 1866, p. 116 sqq.), showed that it appears on Greco-Bactrian coins of 2nd and 1st centuries bc It appears still earlier on Tarentine coins of the first half of the 3rd century. It is not clear that Constantine used it as an ambiguous symbol; nor yet is there a well-attested instance of its use as a Christian symbol before ad 323 (cp. Brieger in his *Ztschr.* iv. 1881, p. 201).

Several examples of the Labarum as described by Eusebius are preserved; I may refer especially to one on a Roman sarcophagus in the Lateran Museum.

For [Hebrew]Christian emblems on the coins of Constantine the Great, his family and his successors,[Hebrew]" see Madden in the *Numismatic Chronicle*, 1877-8.

For the Tyche, to whom Constantine dedicated his new city, the most recent and instructive study is the brief paper of Strzygovski, in *Analecta Græciensia* (Graz, 1893). Edition: current; Page: [446]

As to the connection of Constantine with the Donatist controversy, attention may be drawn to the article of O. Seeck in Brieger[Hebrew]'s *Zeitsch. f. Kirchengeschichte*, x. 505-568 (Quellen und Urkunden über die Anfänge des Donatismus). He fixes the date of the Council of Arles to ad 316 (cp. Euseb. V. C. i. 44-45). The general result of his discussion is to discredit the authority of Optatus, whom he regards as a liar, drawing from a lying source. The only value of the work of Optatus is to be found, he concludes, in the parts which rest on the protocols of the Synods of Circa and Rome, and the lost parts of the Acta of the process of Felix (viz., I., 13, 14, 23, 24, 27, and perhaps the story of the choice of Cæcilian, 16-18).

For Constantine in mediæval legend see the *Incerti Auctoris de C. Magno eiusque matre Helena*, edited by Heydenreich (1879); Extracts from a popular Chronicle (Greek) given by A. Kirpitschnikow, *Byz. Ztsch.* i. p. 308 sqq. (1892); Heydenreich, C. der Grosse in den Sagen des Mittelalters, *Deutsche Ztsch. f. Geschichts-wissenschaft*, 9, 1 sqq. (1893), and *Griechische Berichte über die Jugend C. des G.*, in *Gr. Stud. H. Lipsius zum Geburtstag dargebracht*, p. 88 sqq. (1894). For his father Constantius in mediæval legend see *Li contes dou roi Constant l[Hebrew]'Emperor*, ed. in the *Bibl. Elzevir*, by MM. Moland and d[Hebrew]'Hericault, 1856. An English translation by Mr. Wm. Morris has appeared, 1896.

15.: Ecclesiastical Geography [*Hebrew*] (p. 314)

The ecclesiastical divisions of the empire, referred to incidentally by Gibbon, are not closely enough connected with the subject to require an editorial note. But, as they sometimes throw light on the political boundaries, and as they have been recently much investigated, some bibliographical indications of literature on the eastern bishoprics may be useful.

Parthey: *Notitiæ Græcæ Episcopatum* (along with Hierocles). H. Gelzer: *Die Zeitbestimmung der griech. Not. Episc.*, Jahrb. f. protest. Theologie, xii. 556 sqq.; Zeitsch. f. wiss. Theologie, xxxv. 419 sqq.; Byz. Ztsch., i. 245 (on eastern Patriarchates); ii. 22. Also edition of Basil[*Hebrew*]'s *Notitia* (early in ninth century) in [*Hebrew*] *Georgius Cyprius*[*Hebrew*] (edition Teubner, 1890). W. Ramsay: *Articles in the Journal of Hellenic Studies*, 1884, 1887; *Historical Geography of Asia Minor*, 1890, passim. De Boor: *Ztsch. f. Kirchengeschichte*, xii. 303 sqq., 519 sqq. (1890); xiv. 573 sqq. (1893). Duchesne: *Byz. Ztsch.*, i. 531 sqq. (eccl. geogr. of Illyricum).

Montfaucon has represented some of these tablets or diptychs; see *Supplément à l'Antiquité expliquée*, tom. iii. p. 220.

From the reign of Carus to the sixth consulship of Honorius, there was an interval of one hundred and twenty years, during which the emperors were always absent from Rome on the first day of January. See the *Chronologie de Tillemont*, tom. iii. iv. and v.

[*Hebrew*] *strictasque procul radiare secures*.

In Cons. Prob. 229 [232].

The reputation of Father Sirmond led me to expect more satisfaction than I have found in his note (p. 144) on this remarkable passage. The words, *suo vel suorum nomine*, betray the perplexity of the commentator.

It is somewhat singular, that these satirical lines should be attributed, not to an obscure libeller, or a disappointed patriot, but to Ablavius [Ablabius], prime minister and favourite of the emperor. We may now perceive that the imprecations of the Roman people were dictated by humanity, as well as by superstition. Zosim. l. ii. p. 105 [29 ad fin., 30 ad in.].

See in the *Recherches sur les Américains*, tom. ii. p. 236-271, a very curious dissertation on poisoned darts. The venom was commonly extracted from the vegetable reign; but that employed by the Scythians appears to have been drawn from the viper and a mixture of human blood. The use of poisoned arms, which has been spread over both worlds, never preserved a savage tribe from the arms of a disciplined enemy.

This play is translated from Menander, and the original must have appeared soon after the Eastern conquests of Alexander.

By the word *spado* the Romans very forcibly expressed their abhorrence of this mutilated condition. The Greek appellation of eunuchs, which insensibly prevailed, had a milder sound and a more ambiguous sense.

Besides this material soul, Cudworth has discovered (p. 562) in Amelius, Porphyry, Plotinus, and, as he thinks, in Plato himself, a superior, spiritual, hypercosmian soul of the universe. But this double soul is exploded by Brucker, Basnage, and Le Clerc, as an idle fancy of the latter Platonists.

For the credit of human nature, I am always pleased to discover some good qualities in those men whom party has represented as tyrants and monsters.